**UNIVERSITY OF SANTO TOMAS**
**FACULTY OF CIVIL LAW**
**España, Manila**

# CRIMINAL LAW REVIEWER

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*This reviewer is based on Prosec Notes from 2021 to 2024 with additional lecture notes this A.Y. 2024-2025 and formatted based on 2025 bar syllabus.*

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*May the odds be in our favor.*

**AB-4C | 2024 - 2025**

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# I. FUNDAMENTAL PRINCIPLES IN CRIMINAL LAW

## A. NATURE & DEFINITION

**Criminal Law** - a branch of public law that deals with crimes, treats of their nature and provides for their penalties.

**NOTE:** It is a branch of public law because it deals with the relationship of an individual with the State.

**Aspects of a Criminal Case**

Whenever a criminal case is filed in court, it always has two aspects: the civil and the criminal. This is based on the fundamental theory that whenever a violation of public law is committed, there are two different entities who were offended:

a. The State whose law has been violated; and (social injury)
    - Violation of public law
b. The victim or the offended party who was directly injured by the offender's act or omission. (personal injury)

The participation of the private offended party is limited only to civil liability because it is the State that is primarily offended because of the disturbance of public order.

Under Article 100, every person criminally liable is civilly liable. The victim does not need to file a separate civil action. It is deemed included in the criminal action.

**GUY v. TULFO**

**RULING:** Generally, a criminal case has two aspects, the civil and the criminal. This notion is rooted in the fundamental theory that when a criminal act is committed, two (2) different entities are offended: (1) the State, whose law has been violated; and (2) the person directly injured by the offender's act or omission.

In any criminal prosecution, the private offended party's participation is only to serve as a witness for the State. He will be presented in court in order to testify as to the act done against him by the said offender.

After the trial of the case, the judge will rule on the penalty and also, civil indemnity. The penalty is an act of remedy in favor of the State. The civil liability goes to the private offended party because of the damage/injury sustained by the said private offended party.

**Penalty v. Civil Liability**

Whenever a person is convicted of a crime, aside from the penalty, there is also imposition of civil liability. The penalty of imprisonment or fine is for the disturbance of public order. The imposition of civil liability is for the damage, injury or prejudice sustained by the private offended party.

**IENT v. TULLETT PREBON**

The Supreme Court said that the Corporation Code is not a penal statute. The Corporation Code is a regulatory measure. Violation of the Corporation Code will act until the imposition of punishment and penalty. In this case, violations of Sections 31 and 34 of the Corporation Code the offenders cannot be penalized because the Corporation Code is not a penal statute that imposes penalties in case of violation. It is a regulatory measure.

**Crime** - an act committed or omitted in violation of the public law forbidding or compelling it.

Crime is an encompassing word – it includes:

1. Felony – an act or omission punished by the Revised Penal Code (RPC) as provided for under Art. 3, RPC.
2. Offense – an act or omission punished by special penal law.
3. Infraction of the law – an act or omission prohibited by the ordinances enacted by the local Sanggunian.

Whether it is a felony, an offense, or an infraction of the law, they are all called crimes. Crime is an umbrella word that includes the three.

## B. THEORIES IN CRIMINAL LAW

| CLASSICAL/JURISTIC PHILOSOPHY | POSITIVIST/REALISTIC PHILOSOPHY |
|---|---|
| The basis of criminal liability is human free will. Man is a moral creature who understands right from wrong, good from evil. Hence, when he does a wrong, he does so knowingly and willfully. | The basis of criminal liability is man's social environment.<br><br>All men are born good. What makes man do evil things is the association that he has with his fellow human beings, with his social environment, and from his upbringing.<br><br>Crimes are social phenomena which constrain a person to do wrong although not of his own volition. |
| The purpose of the penalty is to exact retribution. Classical philosophy revolves around the maxim *"an eye for an eye, a tooth for a tooth."*<br><br>For every crime committed, there is a corresponding commensurate penalty. | The purpose of penalty is reformation. Positivist philosophy believes that each accused is a sick individual who has to be cured, rehabilitated, reformed and not punished. |
| The determination of penalty is done mechanically. The penalty imposed is always in direct proportion to the injury that the offender has committed.<br><br>If the offender killed the victim, his penalty should also be death or capital punishment. | The determination of penalty is done individually on a case-to-case basis after each accused has already been investigated or interviewed by a group of social scientists, which does not include lawyers.<br><br>They do not want their decision to be influenced by law. |
| The emphasis of the law is on the offense and not the offender. This philosophy does not take into consideration the reason as to why the offender committed the crime. It suffices that he violated the law and for that, he has to be given a penalty or punishment. | The emphasis of the law is the offender, not the offense. The emphasis of the law is on the criminal, not on the crime.<br><br>The positivist philosophy takes into consideration the reason why the offender committed the crime and the circumstances surrounding the commission of the crime. |

**Mixed or Eclectic Philosophy**

If you mixed the characteristics of both, we have the so-called mixed or eclectic philosophy. Under this, crimes which are heinous in nature shall be dealt with in the classical manner, and crimes which are considered social or economic in nature, shall be dealt with in the positivist or realistic manner.

**Utilitarian/ Protective Theory**

The purpose of penalty in criminal law is to protect society from actual and potential wrongdoers. Hence, courts should see to it that in imposing the penalty, they are only imposed on potential and actual wrongdoers.

The SC said that even in case of violation of SPL, wherein criminal intent is immaterial, courts should see to it that penalties are only imposed on actual or potential wrongdoers. The basis of this so called utilitarian theory is the maxim *actus non facet reum nisi men cit rea*. **The act is not criminal when the mind is not criminal.** We have also *nullum crimen nulla poena sine lege*. **There is no crime, when there is no law that punishes the act.**

The Philippines is a civil law country. In our jurisdiction, no matter how obnoxious, immoral, perverted an act is, if there is no law that defines and punishes the said act, the doer of the act cannot be prosecuted in court, unlike in common law countries. In common law countries, an obnoxious or immoral act, through the passage of time, becomes criminal in nature. This is not true in the Philippines because the Philippines is a civil law country.

**MAGNO v. CA**

**FACTS:** Magno contracted Mancor Industries, as represented by Teng, to supply his car repair service equipment for his car repair shop. However, he lacked funds with which to purchase the necessary equipment to make his business operational. Teng then referred him to LS Finance and Management Corporation for the

provision of credit facilities. The arrangement went through on the condition that Magno has to put up a warranty deposit equivalent to 30% of the total value of the pieces of equipment to be purchased. Magno requested Gomez to look for a third party who could lend him the amount of the warranty deposit. Unknown to Magno, it was Teng who advanced the deposit in question, on the condition that the same would be paid as a short-term loan at 3% interest. After the delivery of equipment to Magno, he then issued post-dated checks. Later on, Magno could not pay LS Finance the monthly rentals resulting in the pulling out of garage equipment leased out to him. Teng deposited the subject post-dated checks but they were returned for the reason the account closed. Magno was charged with the crime of four (4) counts of BP 22.

**ISSUE:** W/N Magno is liable for four (4) counts of BP 22(NO)

**RULING:** NO. To argue that after the termination of the lease agreement, the warranty deposit should be refundable in full to Teng by Magno when he did not cash out the warranty deposit for his official or personal use, is to stretch the nicety of BP 22 violated. This maneuvering has serious implications especially with respect to the threat of the penal sanction of the law in issue, as in this case. And, with a willing court system to apply the full harshness of the special law in question, using the "mala prohibitia" doctrine, the noble objective of the law is tainted with materialism and opportunism in the highest degree.

Under the utilitarian theory, the protective theory in criminal law, affirms that the primary function of punishment is the protection of society against actual and potential wrongdoers. It is not clear whether Magno could be considered as having actually committed the wrong sought to be punished in the offense charged, but on the other hand, it can be safely said that the actuations of Teng amount to that of potential wrongdoers whose operations should also be clipped at some point in time in order that the unwary public will not be failing prey to such a vicious transaction.

Thus, in applying the punishment imposed upon the accused, the objective of retribution of a wronged society, should be directed against the "actual and potential wrongdoers." In the instant case, there is no doubt that Magno's four (4) checks were used to collateralize an accommodation, and not to cover the receipt of an actual "account or credit for value" as this was absent, and therefore, Magno should not be punished for mere issuance of the checks in question.

**NOTE:** In the case of **Magno v. CA,** the SC said that it behooves upon the Court that in imposing a penalty, they should only impose it on actual and potential wrongdoers. This will apply even in crimes where criminal intent is immaterial – just like violation of BP 22.

In this case, Magno was charged with counts of violation of BP 22. Although convicted in the lower courts, SC acquitted Magno based on the utilitarian theory. SC said that it is Mrs. Teng, the private complainant who is the actual wrongdoer and not Magno. She took back the machineries, so she is obligated to return the checks to Magno because the checks were not supposed to be in payment of the obligation but only as collateral. So, when she received the equipment, she should have returned the checks but instead, she deposited such checks. To penalize Magno is to foster materialism and opportunism.

The maxim behind the so-called utilitarian/ protective theory is *"actus non facet reum nisi men cit rea"*, **the act cannot be criminal when the mind is not criminal.** Therefore, the SC said, in cases of felonies, in case of acts mala in se, there must be the concurrence of both the *mens rea* – the guilty mind, and the *actus reus* – the guilty act. Both must be present. And this is important only in acts *mala in se*.

## C. CONSTITUTIONAL LIMITATIONS ON THE POWER OF CONGRESS TO ENACT PENAL LAWS

In the Philippines, it is the Congress which has the power to enact penal laws. Congress is composed of the Upper House (Senate) and the Lower House (House of Representatives).

The power of Congress to enact penal laws, however, is not absolute. There are certain limitations on the power of Congress to enact penal laws.

These limitations include:

1. Penal laws enacted by Congress must be general in its application. Otherwise, it would be violative of the equal protection clause of the Constitution.
2. Penal laws enacted by Congress must not partake in the nature of an ex post facto law.
3. Penal laws enacted by Congress must not partake in the nature of a bill of attainder.
4. Penal laws enacted by Congress cannot impose cruel, excessive or unusual punishments.

**BAR Q: Distinguish an ex post facto law from a bill of attainder**?
A: An ex post facto law is a law which makes an act criminal although by the time it was committed, it was not yet so. A bill of attainder is a law which punishes an offender without due process of law or without giving the accused his day in court or to air his side in a fair trial.

**Q: What if President BBM, through Executive Secretary, Bersamin, issued an executive order that mandates a certain department to sequester the ill-gotten wealth of public officers and employees convicted of the crime of plunder (RA 7080), and the crime of Graft and Practices Act (RA 3019). Public Officer X, assailed the constitutionality of the Executive Order, it being a bill of attainder. Is the Executive Order a bill of attainder?**
A: NO, because a bill of attainder is a legislative act that imposes penalties in case of violation. Here, there is no penalty imposed. What is being directed is to sequester the ill -gotten of those public officers and employees who are already convicted of the crime of plunder and RA 3019. Hence, it cannot be considered as a bill of attainder.

## D. CARDINAL PRINCIPLES OF CRIMINAL LAW

The following are the characteristics of Criminal Law:

a. Generality;
b. Territoriality; and
c. Prospectivity.

### A. GENERALITY

**GR:** Our penal laws shall be binding on all persons who live, reside or sojourn in the Philippines. Whether he is a Filipino citizen, or a foreigner, for as long as he is here in the Philippines, although temporary, he is obligated to comply and to follow Philippine penal laws.

Everyone – regardless of race, creed, color, religion and other personal circumstances – must comply with Philippine penal laws. Otherwise, that person who violates the law can be arrested, prosecuted and thereafter punished.

**XPNs:** The generality characteristic of criminal law, however, is not absolute in nature. The exceptions are as follows:

1. **Generally accepted principles of public international law**

Sovereigns, heads of states, and other diplomatic representatives, such as public ministers, are immune from the criminal jurisdiction of the country where they are assigned. Hence, the host country cannot arrest, prosecute or punish them for violations against penal laws.

These diplomatic representatives enjoy **blanket diplomatic immunity from suit.** Meaning, they cannot be charged, criminally, civilly, and administratively by the host country.

**NOTE:** Although a consul is also a diplomatic representative or diplomatic agent, a consul does not enjoy absolute or blanket diplomatic immunity from suit. A consul can be prosecuted if he violated any of the laws of the host country, except:

1. When the act done by the consul pertains to the performance of his official functions; and
2. Whenever there is a treaty stipulation between the mother country of the consul and the host country stating that the consul shall be immune from suits.

.
**Q: Ambassador X is a South Korean Ambassador to the Philippines. It was his son's birthday, they scheduled a birthday party at the Manila Hotel at 3:00PM. Around 2:30PM, they were still at the house. And so, Ambassador X was driving too fast to reach Manila**

**Hotel on time. He ignored the traffic lights and suddenly hit a child. The child died. The traffic enforcers arrived at the scene, but Ambassador X was allowed to leave on the condition that he should be available anytime they called him for questioning. Ambassador X's wife suggested that they should cancel the birthday party as they just hit a child who died – it was a bad omen. And so, the Ambassador told the Manila Hotel that they would no longer proceed with the birthday, that they will cancel the checks. However, expenses have been incurred by Manila Hotel in preparation for the birthday, the tables, chairs, balloons, etc. When the Manila Hotel tried to encash the check, the checks bounced. Can Ambassador X be held liable for Reckless Imprudence Resulting in Homicide for killing the said child and for violation of BP 22 considering the check he issued is a personal check?**

A: NO. Ambassador X enjoys blanket diplomatic immunity from suit. He cannot be arrested, prosecuted or charged by any court for any violation of Philippine Laws. Hence, both cases will not prosper.

**Q: The president of country X, President W, arrived in Manila. President W was welcomed by the President of the Philippines. Thereafter, they went to Malacañang and had a breakfast meeting and luncheon. There was a ceremony to welcome President W. One of the lady security guards therein went to President W and told the latter, "Mr. President, could you please put on your mask? We are very strict here, and it is necessary that people inside the palace must wear a mask except when they are eating." However, President W ignored the said guard and did not put on his face mask. And so, here comes again the said guard and said, "Excuse me, sir, would you please put on your face mask? I am already being instructed by my head to tell you to put on your mask." At this moment, President W got mad at the guard, stood up and repeatedly slapped the face of the said guard. He was about to slap her more when he was prevented by other people. Can the said lady security guard file a case of injuries against President W of Country X for the injuries she sustained?**

A: NO. President W of Country X enjoys blanket diplomatic immunity from suit. He cannot be arrested, prosecuted or punished by the receiving state, which is the Philippines. Under the Vienna Convention on Diplomatic Relations, a diplomatic agent enjoys immunity from criminal jurisdiction of the receiving state. Therefore, the said President W of Country X cannot be charged with the crime of physical injuries.

**SIMILAR Q: Ambassador X inflicted less serious physical injuries to Flight Stewardess Y when the former was urged to wear a face mask in-flight.**

A: NO. X, being an ambassador of South Korea in the Philippines, enjoys blanket diplomatic immunity from suit. He is immune from the criminal jurisdiction of the Philippines. Hence, he cannot be arrested, prosecuted or punished by PH courts for inflicting less serious physical injuries to Steward Y.

**Q: President of Country X was in Manila. He boarded his car and left the bodyguard. President was driving recklessly and hit and bumped a pedestrian. The pedestrian suffered serious physical injuries. May he be prosecuted for reckless imprudence resulting in serious physical injuries?**

A: No. As a Chief of State, he enjoys blanket/absolute immunity from suit. Thus, he cannot be prosecuted here.

**Q: What if he is only the consul of country X? And after lunch, he hit and bumped a pedestrian? May he now be prosecuted for reckless imprudence resulting in serious physical injuries?**

A: Yes. Consuls enjoy immunity only insofar as those relating to his official functions and if there was an agreement between the host country and his country. His act of bumping the pedestrian is not related to his functions.

**Q: The President of China arrived in the Philippines and he went to Malacañan for dinner with the President. In this dinner there were members of Congress and other dignitaries in honor of the President of China. While the waiter was serving the said President of China, he was a little nervous. As a result, the said waiter accidentally poured the soup on the pants of the President of China. The President of China, stood up, and was very mad. As a result, in front of everybody the President of China repeatedly boxed the face and the eyes of the poor waiter. He was only stopped by the bodyguard when the waiter was taken away and removed from the scene. The said poor waiter suffered less serious physical injuries. His eyes need medical treatment. Can the said waiter file a case of less serious physical injuries against the President of China?**

A: NO. Prosec did not offer any explanation. Student answered NO, because he was performing his official functions, he is the chief of state, he enjoys absolute immunity from suit.

**Q: What if the said dinner party was already done and the President of China was on his way to the hotel where he was staying. He felt hungry, he did not like the dishes served in Malacañan. He wanted Chinese food. The said driver passed by a well-known Chinese restaurant. The President of China told him to stop, and they went inside the restaurant in order to dine.**

**While he was having dinner, the waiver in said restaurant serving the soup accidentally poured the soup on the pants of the said President. He was so mad, he stood up and boxed the said waiter. Can said waiter file a case of less seriously physical injuries against the President of China?**
A: NO. Since the President of China, the sovereign, the chief of state of China, he enjoys blanket diplomatic immunity from suit for all violations of our penal laws. The same is afforded to the President of the Philippines.

**Q: But what if in the same problem it was the consul of China who was invited in Malacañang? Can the waiter file a case for less serious physical injuries?**
A: NO. No explanation given by Prosec.

**Q: But what if the said dinner was already done, the consul of China was on his way to the embassy, felt hungry, stopped by a Chinese restaurant, he was dining therein and the waiter accidentally poured the soup on the said consul of China. He boxed the waiter. Can the waiter file a case for less serious physical injuries?**
A: YES. Insofar as the Consul is concerned, he shall only be immune if the said act of violation took place in the performance of his function. Hence, during the first time that he boxed the waiter, he was having dinner in Malacañang. For every violation he committed therein, he will be immune from suit. However, when he was already in the private restaurant, dining, inflicted injuries upon the waiter, since he was no longer in the performance of his function, the said waiter can file a case for less serious physical injuries and the case will prosper.

**JEFFREY LIANG v. PEOPLE**

**FACTS:** Jeffrey Liang was an Asian Development Bank (ADB) economist. He uttered defamatory words against a fellow ADB employee, Joyce Cabal. Cabal felt maligned and filed two counts of oral defamation against Liang before the MeTC of Mandaluyong City. When the cases were filed before the MeTC judge received a letter protocol from the Department of Foreign Affairs (DFA). The said letter protocol from the DFA states that Liang is immune from legal processes based on the agreement between the Philippines and the ADB. After reading the said letter of protocol, the MeTC judge outrightly dismissed the cases. According to the Judge, based on the letter, Liang is immune from suit, Liang enjoys diplomatic immunity from suit.

**ISSUE/s:**
1. WON MeTC Judge is correct in outrightly dismissing the case simply based on the letter protocol coming from the DFA saying that Liang is immune from suit. (NO)

2. WON Liang is entitled to diplomatic immunity from suit. (NO)

**RULING:** First, Philippine Courts cannot blindly adhere and take on its face the communication from the DFA that a certain accused is covered by any immunity. The DFA's determination that a certain person is covered by immunity is only preliminary which has no binding effect in courts. It is necessary for the courts to admit, to receive evidence in order to determine in what capacity those alleged acts were committed. According to the Supreme Court, the mere fact that a letter of protocol already arrived, it doesn't give sufficient to mean the case file must be outrightly dismissed. Therefore, in outrightly or ipso facto dismissing the two criminal cases without giving notice to the prosecution, the Judge committed an error. There must first be an inquiry in what capacity did Liang uttered the said defamatory remarks – that is evidentiary in nature. Therefore, pieces of evidence should've been admitted by the said Judge.

Second, based on Sec. 45 of the agreement between ADB and Philippine Government, immunity from legal process is not absolute, but subject to the exception that the act was done in "official capacity." Therefore, the prosecution should have been given the chance to rebut the DFA protocol and it must be accorded the opportunity to present its controverting evidence, should it so desire.

Third, slandering, defaming, maligning a person could not possibly can never be part of a person's official act and be covered by the immunity agreement because our laws do not allow the commission of a crime, such as defamation, in the name of official duty.
Hence, in this case, the MeTC Judge of Mandaluyong simply committed an error, acted without jurisdiction, outrightly dismissing the case, thereby denying the prosecution their right to due process.

Lastly, under the Vienna Convention on Diplomatic Relations, a diplomatic agent enjoys immunity from criminal jurisdiction of the receiving state except in the case of an action relating to any professional or commercial activity exercised by the diplomatic agent in the receiving state outside his official functions. Therefore, it is necessary that evidence should've been presented before outrightly dismissing the case simply based on the letter of protocol coming from the DFA saying that Liang is immune from suit.

**Q: Can Liang enjoy blanket diplomatic immunity from suit?**

A: NO. Liang is not a diplomatic representative. He is not an ambassador, public minister, or sovereignty. Therefore, the said blanket diplomatic immunity from suit will not apply.

## WESTFALL v. LOCSIN

**FACTS:** In this case, there was a new position, Technical Advisor for Urban and Water in ADB. Since Matthew has been with ADB for 21 years already, he applied. He felt he was qualified. However, days thereafter, after being interviewed by the screening committee, Matthew was not selected. Thereafter, Matthew saw two documents being circulated in ADB. These were the notes and comments coming from the screening committee. With these comments, people stated that Matthew was not chosen and appointed because he lacks the knowledge on the urban stuff that will make him unviable as head. Macho felt maligned and this is an attack on his professional capacity and that he always gets high ratings in the evaluation as an employee.

He filed a civil action for damages against Locsin and the other members of the screening committee. Locsin et al. filed a motion to dismiss the case on the ground that they are immune from being employees of the ADB because the act they performed was in the performance of their official function.

RTC Dismissed the complaint and denied the motion for consideration. The CA affirmed the RTC.

**RULING:** The civil action for damage filed by Matthew Westfall against Locsin and other officers of the ADP should be dismissed. SC said international organizations enjoyed almost absolute. (if not absolute immunity from suit) Personnel and employees of international organizations enjoy only functional immunity from suit. Functional immunity from suit is when they are only immune from suit for acts committed by them, for acts done by them in the performance of their official duty.

Here, SC said that the acts done by Locsin, et al. were done in the performance of their duty. They were members of the screening committee tasked to enforce the selection process of ABB in choosing the person qualified for the said position. Since the act and statements were done in the performance of their official functions, then this case for damages has no merits.

## MINUCHER v. CA

**FACTS:** Minucher was engaged in the business of selling caviar, Persian carpets, pistachio nuts, and other Iranian products. He was introduced to Scalzo who showed interest in buying caviar. Scalzo gave Minucher his calling card showing that he is a special agent of the Drug Enforcement Administration of the US Department of Justice, and offered his assistance to process the Visas of Minucher and his wife. Thereafter, Scalzo went to the house of Minucher and invited him to meet his cousin. When he got out of his house, Minucher was already surrounded by soldiers and was placed in handcuffs.

Minucher and Torabian were charged with violation of Sec. 4 of RA 6425. However, they were acquitted. Munichер then filed for a civil case for damages against Scalzo on account of the alleged trumped-up charges of drug trafficking made upon him. In his defense, Scalzo claimed that he is entitled to diplomatic immunity.

**ISSUE/s:**
1. W/N Scalzo is a diplomatic agent entitled to diplomatic immunity from suit. (NO)
2. Considering he is not a diplomatic agent, is he still immune from suit? (YES)

**RULING:**
1. Under the Vienna Convention, only diplomatic agents are granted blanket diplomatic immunity from both criminal and civil suits. A diplomatic agent is defined as an individual tasked with representing their state on political matters. In this case, Scalzo, as a special agent of the US Drug Enforcement Agency, was not in the Philippines in a diplomatic capacity. Rather, his presence was aimed at conducting operations to assist the Philippines in combating drug trafficking.

2. Although Scalzo does not qualify as a diplomatic agent, he is still immune from suit under the Doctrine of State Immunity. According to this doctrine, a State cannot be sued in the courts of a foreign State because suing a representative of the State is essentially equivalent to suing the State itself. If the Philippines were to sue Scalzo, it would be viewed as suing the United States, thus, violating the Doctrine of State Immunity. Consequently, Scalzo enjoys State Immunity from suit, leading to the dismissal of the case.

### 2. Laws on Preferential Application

These are certain laws which exempt certain or particular individuals from prosecution.

Under Art. VI of the 1987 Constitution, where members of Congress cannot be prosecuted for libel, slander, or defamation based on every speech or debate they made in the halls of Congress while Congress is in regular or special session. In Political Law, this is known as the congressional privilege of speech and debate.

**Example:** In a privileged speech, Sen. Lacson made defamatory remarks against a well-known successful and influential businessman, that the businessman cannot file against him of libel, oral defamation, or slander against him because it is a law of preferential application, the Constitution itself provides, said Senator cannot be prosecuted.

**Q: Senator Riza Hontiveros, delivered a public speech against former Justice Sereno because of her bill, which Sereno objects to, the bill on anti-pregnancy. Because of that, Senator Hontiveros deliberately attacking the former justice. The former justice felt maligned and said "it's not funny". Can she file a case of libel against Senator Risa Hontiveros?**
**A:** NO. Senator Hontiveros enjoys his congressional privilege of speech and debate enshrined under the Constitution. For every speech or debate she makes in the Hall of Congress, she cannot be prosecuted for libel, defamation or slander. She will be immune from suit and with other members of Congress. That is an example of a law of preferential application.

## B. TERRITORIALITY

**Art. 2.** *Application of its provisions.* — Except as provided in the treaties and laws of preferential application, the provisions of this Code shall be enforced not only within the Philippine Archipelago, including its atmosphere, its interior waters and maritime zone, [PAR 1 INTRA-TERRITORIAL] but also outside of its jurisdiction, against those who:

1. Should commit an offense while on a Philippine ship or airship;
2. Should forge or counterfeit any coin or currency note of the Philippine Islands or obligations and securities issued by the Government of the Philippine Islands;
3. Should be liable for acts connected with the introduction into these islands of the obligations and securities mentioned in the presiding number;
4. While being public officers or employees, should commit an offense in the exercise of their functions; or
5. Should commit any of the crimes against national security and the law of nations, defined in Title One of Book Two of this Code. [PAR. 2 EXTRA-TERRITORIAL]

**GR:** Our penal laws shall have force and effect only on acts committed within the Philippine archipelago, including its atmosphere, internal waters, and maritime zones. Our penal laws will no longer apply for acts committed outside the Philippine territory. Our courts will have no jurisdiction.

**XPNs:** The exceptions to the territoriality characteristic are found under Article 2 of the RPC. Except as provided in treaties and laws of preferential application, the provisions of the Revised Penal Code shall be enforced, not only within the Philippine archipelago, including its atmosphere, its interior waters, and maritime zone, but also, outside of its jurisdiction against the following groups.

The five enumerations in Article 2 of the RPC are the exceptions to the Territoriality Characteristic of Criminal Law. In these five instances, even if the crime is committed outside the Philippine territory, the offender can still be prosecuted.

1. *Should commit an offense while on a Philippine ship or airship*

The vessel or the aircraft must be registered and licensed under Philippine laws; otherwise, it cannot fly with the flag of the Philippines. Citizenship of the owner of the vessel or aircraft is immaterial. Even if an aircraft is fully owned by a foreigner, if it's registered under Philippine laws, it is a Philippine ship.

It must have been committed outside the territory of the Philippines but not in the territory of another country. Otherwise, the laws of the foreign country will govern.

**Q: MV Maria Soleded is a vessel registered in the Philippines, it is a passenger cargo vessel whose route is Philippines-Malaysia and Malaysia- Philippines. It is now in the Philippines. It is bound to go to Malaysia. While the vessel was sailing in Philippine waters, one of the passengers, a Malaysian, saw by chance Y who is his mortal enemy. It gave X an opportunity for him to get even with Y. Y at that time was reading the newspaper, X went behind Y. Thereafter, X took out the icepick that he was hiding and repeatedly stabbed Y. Y**

**died. People shouted. X is prosecuted for the crime of Homicide under Art. 249 of the RPC before the Philippine courts. X said that the Philippines has no jurisdiction over him. He is a Malaysian citizen and his victim is also a Malaysian citizen. Is X's argument meritorious?**
A: NO. His argument has no merit for two (2) reasons: Generality and Territoriality characteristic of penal laws. Although a foreigner, he is still in the Philippines. The Philippine vessel is on the Philippine waters. Therefore, the crime is committed within the Philippine territory. Under the Generality characteristic, all those in the Philippines, regardless of citizenship, are bound to comply with Philippine laws. Although he is a Malaysian citizen, since he is in the Philippines and he committed the act here, he can be prosecuted for Homicide. Likewise, based on the Territoriality characteristic, the act of killing took place in Philippine waters.

**Q: What if the vessel was already outside the Philippine territory, on the body of sea not owned by any country when the killing took place. X said that the Philippines has no jurisdiction over him because the killing happened outside the Philippine territory. Is X's argument meritorious?**
A: NO. His argument has no merit. Here, you apply the first circumstance/exception of the extraterritorial application of the RPC. Although the vessel was already outside the Philippine territory, based on the extraterritorial application of the RPC the said offender may be prosecuted before Philippine courts.

**Q: What if MV Maria Soleded was already on the waters of Malaysia and passengers were already disembarking, a passenger X who is a Filipino Citizen saw another Filipino Citizen Y, his mortal enemy. X stabbed Y from behind. He is now behind bars, to be prosecuted before Malaysian Courts based on Malaysian Penal Law. He said that the crime was committed on board a Philippine vessel; therefore, only the Philippines has jurisdiction over the offense. Is X's argument meritorious?**
A: NO. His argument has no merit. Although the crime was committed on board the Philippine vessel, the Philippine vessel is already in the territory of Malaysia. All penal laws are territorial in nature. Although he is a Filipino citizen who committed a crime on board a Filipino vessel, since the Philippine vessel is already in the territory of Malaysia, it is Malaysia who has jurisdiction over the criminal offense. The penal laws of Malaysia are also territorial in nature.

2. *Should forge or counterfeit any coin or currency note of the Philippine Islands or obligations and securities issued by the Government of the Philippine Islands;*
3. *Should be liable for acts connected with the introduction into these islands of the obligations and securities mentioned in the presiding number;*

Even if the offender commits it outside the Philippines, he can be prosecuted before the Philippines, and bringing it to the Philippines, he can be prosecuted before the Philippine courts.

**Q: X, Y, and Z were caught *in flagrante delicto* counterfeiting Philippine peso coins in Hongkong. Can they be extradited back to the Philippines and charged before the Philippine Courts even though the crime was committed in Hongkong?**
A: YES, they can be extradited back to the Philippines and charged before the Philippine Courts based on the second paragraph of Article 2 of the RPC.

**Q: What if ABCDE went to Hong Kong, and there in HK they counterfeited Philippine 10 peso coins. They are Filipino citizens. They placed it inside a big case. They are now on board the plane going back to the Philippines. At the NAIA, the said case filed with 10 peso coins was intercepted. Can they be prosecuted before Philippine courts? Their argument: if they committed a crime, they committed it in Hong Kong, outside the territory of the Philippines.**
A: The argument Has no merit. The extra-territorial application of the RPC applies. Although they counterfeited the PH peso coins in a foreign country, they can be prosecuted before the Philippine courts. Moreso, they did not only counterfeit, they are also bringing it to the Philippines in order to alter it in the Philippines.

4. *While being public officers or employees, should commit an offense in the exercise of their functions; or*

These are public officers and employees of the Philippine government who are assigned in a foreign country, particularly, in the embassies of the Philippines in a foreign country. And while they are working in said foreign country, they would commit a crime.

If the criminal act done by them is in any way connected to the performance of their functions, they shall be prosecuted before the Philippine courts.

However, if the crime they have committed has nothing to do with the performance of their functions, they can only be prosecuted before the courts of the said host country.

**Reason:** Although they are public officers and employees of the Philippine government, they acted in their private

capacity. Hence, they may only be prosecuted before the courts of the foreign land.

**Q: Y was the secretary of Ambassador X in Japan. Her salary does not suffice for her big family. And so, Y engaged in extracurricular jobs – i.e., she has been selling jewelry to OFWs. One time, one (1) OFW was mad saying that the jewelry was fake, and it has no value. The OFW wants to file a case against Y, where can he file the case? (2024 Prosec Notes)**
A: The case can only be filed in the COURTS OF JAPAN. The said Estafa or deceiving the OFW is not in any way connected to the performance of the functions of secretary Y. Therefore, although she is a public officer, she acted in her private capacity in committing estafa.

**Q: Will the charge of estafa filed by W against X before the Philippine Court prosper? (similar question in 2023)**
A: It will NOT prosper. Although X is a public officer assigned in a foreign land, although it is true that she committed estafa by deceiving W of the said jewelry, the said act was done outside the Philippine territory and the said act of estafa has nothing to do with the performance of her official duty as the secretary to the Philippine consul. Therefore, she acted in her private capacity in committing the said criminal act. She can only be prosecuted before the courts of Japan and not before the Philippine courts.

**Q: An OFW is following up a document from Ambassador X because he needed the document desperately. Secretary Y said, "I can have the documents signed, just give me 50 dollars". And so, the moment Ambassador X arrives, Secretary Y immediately asked Ambassador X to sign the document of the OFW. The moment it was signed, they met outside. Thereafter, there was the exchange of 50 dollars and the signed document between Secretary Y and the OFW. Another employee was envious, and reported this. Secretary Y was then called and thereafter, was charged of a crime of Direct Bribery under Art. 210 of the RPC. Will the case prosper?**

2024 ANSWER: YES. The said act was done in connection with the performance of the duty of Secretary Y. She committed direct bribery under the second paragraph. She received the marked money in the amount of 50 dollars. The act of asking for the documents to be signed is not unlawful in itself, but she would not do it without the bribe. Hence, it became a crime.

2023 ANSWER: The case will prosper, because the act done by X is in connection with her official function. As the secretary, she had access to the documents to be signed by the said consul; therefore, prioritizing it over others in a huge pile. It is not wrongful, it is unjust, but it becomes wrongful because he asked for money, he asked for a bribe. Therefore, X will be liable for direct bribery before the Philippine courts.

**Q: X was born in California, USA of Filipino parents. He is considered a US citizen. He's now an adult and wanted to travel to the Philippines in order to see the country of his parents. He applied for a passport at the Philippine Embassy in California. He made a follow up of his application. So he was sad because he was on vacation from work, and he wanted to use the said vacation to go to the Philippines.**

**As he was leaving, a Filipino clerk who works at the Philippine Embassy approached him and told him that he can facilitate the immediate release of his passport. And so, the Filipino clerk invited X in a coffee shop outside the Philippine Embassy. And there, he told X just for $200, I can facilitate the immediate release of your passport. X gave him the $200. However, the passport was not released and the clerk used the money for his own personal benefit. This was discovered. Can the Filipino clerk be prosecuted before the PH courts?**
A: NO, he cannot be charged before the Philippine courts because the act done by him has nothing to do with the performance of his official function. As a Filipino clerk, he has no authority to facilitate the release, the issuance of a passport. That is not the job of a clerk in the Philippine embassy. Therefore, the crime that he committed is not direct bribery because for direct bribery to arise, it is necessary that the bribe money must be given in connection with the performance of its official function.

The clerk instead committed the crime of estafa. Which is committed by him in his personal capacity, not in his official capacity. Therefore, he can only be prosecuted before the Courts of California, not before the PH courts.

5. *Should commit any of the crimes against national security and the law of nations, defined in Title One of Book Two of this Code.*

Those who should commit a **crime against national security s**uch as Treason, Conspiracy, and Proposal to Commit Treason, Misprision of Treason, Espionage, Inciting to War, Violation of Neutrality, Correspondence with Hostile Country, Flight to Enemy's Country. Anyone committing these crimes even outside the Philippines can be prosecuted before the Philippine courts.

The four **crimes against the law of nations** are Piracy, Qualified Piracy, Mutiny, Qualified Mutiny on the High Seas. If these are the crimes committed, the offender can be prosecuted in the Philippines, in fact anywhere in the world because they are crimes against the Law of Nations.

In *People v. Tin* and *People v. Lol-lo,* the SC held that piracy is a crime against mankind and humanity. Hence, the offender can be prosecuted here in the PH, viz:

**PEOPLE v. LOL-LO**

**FACTS:** A boat boarding Dutch subjects was surrounded by six vintas manned by armed Moros between the Islands of Buang and Bukid in the Dutch East Indies. The Moros attacked the passenger of the boat in a manner too horrible to be described. After 11 days, the boat arrived at Maruro, a Dutch possession. When the Moros returned to their home in Sulu, they were charged before the CFI with the crime of piracy. Accused interposed a demurrer grounded on lack of jurisdiction.

**RULING:** Pirates are in law *hostes humani generis.* Piracy is a crime not against any particular state but against all mankind. It may be punished in the competent tribunal of any country where the offender may be found or into which he may be carried. The jurisdiction of piracy unlike all other crimes has no territorial limits. As it is against all so may it be punished by all. Nor does it matter that the crime was committed within the jurisdictional 3-mile limit of a foreign state, *"for those limits, though neutral to war, are not neutral to crimes."*

Therefore, since piracy is a crime against the law of nations, the offender can be prosecuted before the courts of any country.

**DEL SOCORRO v. VAN WILSEM**

**FACTS: FACTS:** Del Socorro and Van Wilsem got married in the Netherlands and were blessed with a son. Thereafter, they obtained a Divorce Decree issued by the appropriate Dutch Court. Del Socorro, together with her 18-month-old son, came home to the Philippines. Van Wilsem made a promise to provide monthly support to their son. However, since their arrival in the Philippines, Van Wilsem never gave support to the son. Del Socorro later learned that Van Wilsem married another Filipina and resided in Cebu City. She sent a demand letter to Van Wilsem seeking support for their son, but it was not heeded. Van Wilsem was charged with violation of R.A. No. 9262 for his unjust refusal to support his minor child with Del Socorro.

Van Wilsem's defenses:

1. He is not a Filipino citizen. Being a foreigner, our penal laws do not apply to him.
2. The failure to give support happened in the Netherlands, hence, PH courts do not have jurisdiction.

**ISSUE:** W/N a foreign national can be held criminally liable under R.A. No. 9262 for his unjustified failure to support his minor child (YES)

**RULING:** YES. The SC dismissed Van Wilsem's arguments for lack of merit.

<u>On the First Argument</u>
His claim that being a foreigner absolves him from complying with Philippine Penal Laws was incorrect. According to the generality characteristic of criminal law, individuals present in the Philippines, whether temporarily or permanently, are obligated to adhere to Philippine Penal Laws. Therefore, Van Wilsem, despite his foreign nationality, is required to provide support to his minor son in accordance with Philippine law.

<u>On the Second Argument</u>
Furthermore, the SC invoked the territoriality characteristic of criminal law to address Van Wilsem's argument that the failure to provide support occurred in the Netherlands. Even though the initial failure to provide support may have transpired in the Netherlands, the ongoing failure to fulfill this obligation continued while Van Wilsem was in the Philippines. Consequently, under the territoriality characteristic, Van Wilsem remains obligated to provide support to his son, as the failure to do so persists within Philippine territory.

**NOTE:** In the case of **Del Socorro v. Van Wilsem**, the SC said that Van Wilsem, although a foreigner, is obligated to give support to the said son based on RA 9262. S<u>ince Van Wilsem failed to produce that Netherlands document which supports that he is not obligated to provide support, then our laws presumed that both laws are the same.</u> Hence, he is obligated to comply with RA 9262 on the basis of generality characteristic. The act of giving financial support, although it started in the Netherlands, it continued here in the Philippines. It is a continuing or transitory offense.

**Q: X and Y are husband and wife. They had been married for just six months when suddenly, the husband was among those chosen by the company to**

**undergo a six-month training in Singapore. And so, the husband together with his co-employees chosen to undergo the said training program went abroad. Just a week after the husband left, the wife received photos and messages saying that her husband was having an extramarital affair, and her husband was actually cohabiting with another Filipina.**

**Six (6) months after the training, the husband and the employee arrived. The wife filed two (2) complaints against the husband. She filed a case for Concubinage under Art. 334 of the RPC and another case for violation of Sec. 5(i) on psychological violence under RA 9262. How should the public prosecutor resolve the complaints?**

A: Insofar as the case of Concubinage is concerned, the public prosecutor should resolve to DISMISS THE CASE. The said act of cohabitation with another woman other than the wife occurred outside the Philippines. Hence, our courts have no jurisdiction. Likewise, our penal laws do not apply.

However, insofar as the case of violation of RA 9262 is concerned, the case WILL PROSPER. In the case of **AAA vs. BBB,** the SC said that in inflicting psychological violence against the wife by reason of marital infidelity, the same is a transitory or a continuing offense. A continuing offense is one where the offender can be prosecuted in any place where any of the elements occurred. In this case, while the extramarital affair happened in Singapore, the mental anguish and distress occurred in the Philippines. Therefore, the husband can be prosecuted before the Philippine courts based on Sec. 5(i) on psychological violence under RA 9262.

**Q: X and Y, together with Z – best friend of X, the husband, went to Hong Kong for a vacation of just 2 weeks. They checked into a hotel where one room is occupied by husband and wife X and Y, and the next room is occupied by the best friend of X, Z. They went out of their place and went shopping, etc.**

**Suddenly, the wife said she wanted to go back to the hotel and rest for a while. The friend Z also said that he too was not feeling well and wanted to go back to his room in the hotel. The husband said, "It's alright you can go back already. I just need to go around for an hour or two." So, the wife of X and his friend Z went back to the hotel. However, instead of roaming around for about an hour, X is excited to go back to the hotel too.**

**And so, when X opened the room where they had checked in, X saw his own wife having sexual intercourse with his best friend Z. He was so hurt. His wife and best friend are doing this act in a foreign land. He never thought that they had a relationship. So right there and there, he flew back to the Philippines. Later, the wife and his best friend flew back to the Philippines.**

**In the Philippines, X, the husband, immediately filed a case of adultery against his own wife Y as well as his best friend Z. He filed a complaint for adultery before the office of the public prosecutor. Upon seeing that the said place where the said act of adultery was committed was in Hong Kong, the public prosecutor outrightly dismissed the case. Is the public prosecutor correct?**

A: The public prosecutor is correct. The charge of adultery under Article 333 of RPC filed before the MeTC did not prosper because the said act of adultery was committed outside the Philippine jurisdiction. Therefore, since it was committed by the wife outside the Philippine jurisdiction, the case will not prosper in the Philippines.

**Q: But what if the husband went to Singapore with some friends. They were to attend a particular conference for two weeks. The wife of X, the husband, was left in the Philippines. While the husband was there in Singapore, the wife received photos and videos from their friends showing that X was having an extra-marital affair with another woman and right after every conference, they would go to a hotel. They would check in the hotel.**

**Based on the photos sent to the wife, her husband and the woman were already cohabiting in Singapore. The wife, upon seeing all of the photos and videos, was crying and crying in the Philippines. She even attempted to commit suicide until a friend advised her to consult a counsel. After consulting with the counsel, she was advised to file a case of violation of Sec. 5 (i) or psychological violence under R.A. 9262 against her husband before Philippine courts. Per advice of her counsel, the wife filed the said case. Will the case prosper?**

A: Yes, the case will prosper. Although the said act of extramarital affair happened in Singapore and not in the Philippines, the case of violation of Sec. 5 (i) or psychological violence under R.A. 9262 will prosper before Philippine courts because as held by the Supreme Court, psychological violence, as one of the acts prohibited under R.A. 9262, is a transitory or continuing offense.

Since it is a transitory or continuing offense, even if the said extra-marital affair took place in a foreign land, the

emotional pain, the mental distress was felt by the wife here in the Philippines.

Therefore, the offender can be prosecuted before the courts of the place where any of the elements of the crime happened. One element is the emotional pain, the mental distress felt by the wife here in the Philippines. Thus, the case will prosper as an exception to the territoriality characteristic of criminal law

## C. PROSPECTIVITY

**GR:** Our penal laws shall only operate prospectively. Our penal laws, as a rule, cannot be given retroactive application. It shall only be applied at the time of its effectivity and thereafter.

**XPNs:**

1. Under Art. 22 of the RPC, penal laws shall be given retroactive application if they favor the accused, provided the accused is not a habitual delinquent/criminal.
2. When it is the penal law itself that provides for its retroactive application.

**Example:** RA 9344 or the Juvenile Justice and Welfare Act of 2006. Sec. 68 of the said law specifically and explicitly provides for its retroactive application to minor offenders who have already been convicted and are serving sentences because it is beneficial. It is the law itself that provides for its retroactive application.

**Q: Public officer X was charged with malversation. Based on the evidence established in Court, he appropriated 11,000 from his collections. And so as a result, the incident happened in 2015. The judgment is now to be promulgated and the judge found him guilty beyond reasonable doubt of Malversation. However, before the promulgation of judgment, a new law was passed by Congress, which lowers the penalty to be imposed based on damages and injuries caused on the offended party. Can the said judge consider and apply this new law in imposing the penalty on X whom the judge found guilty?**
A: YES. The said new law is favorable to X. It will lower the imposable penalty. It is favorable to him therefore it can be applied by the court. The penalty should be based on this new law and not on the RPC.

**Q: What if the judge has already rendered his decision against X, convicting him of malversation, imposing upon him the penalty of reclusion temporal in its minimum period. The judgment is already final and executory. When suddenly, here comes R.A. 10951 taking into effect. Can the judge still consider R.A. 10951 despite the fact that his judgment on the malversation case has already become final and executory?**
A: YES. Although there is this so-called immutability of judgment, since it is for the benefit of the accused because the penalty would be lowered, the case can still be opened.

**NOTE:** The case will be opened only insofar as changing the penalty is concerned and not regarding the merits of the case.

### HERNAN v. SANDIGANBAYAN

**FACTS:** Hernan was a Supervising Fiscal Clerk of the Department of Transportation and Communication (DOTC) in Baguio City. Her duties involve receiving cash and other collections from customers and clients for the payment of telegraphic transfers, toll fees, and special message fees, and depositing them to the bank account of DOTC in the Land Bank of the Philippines. After the conduct of an audit by the COA, it was found that P11,300.00 was unaccounted for. Hernan was charged with Malversation Of Public Funds with a penalty of prision mayor. After the judgment attained finality, RA 1095 was enacted into law. The new amends the penalty among those is Art. 217, Malversation Of Public Funds which states that if the amount malversed is less than P40,000.00, the penalty is only prision correccional.

**ISSUE:** W/N the judgment rendered by the Sandiganbayan may still be opened in order to lower the imposable penalty (YES)

**RULING:** YES. The general rule is that a judgment that has acquired finality becomes immutable and unalterable, and may no longer be modified in any respect even if the modification is meant to correct erroneous conclusions of fact or law and whether it will be made by the court that rendered it or by the highest court of the land. When, however, circumstances transpire after the finality of the decision rendering its execution **unjust and inequitable**, the Court may sit en banc and give due regard to such exceptional circumstance warranting the relaxation of the doctrine of immutability.

With the recent passage of RA 10951, the SC found that this is a novel situation wherein the judgment convicting the accused has already become final and executory and yet the penalty imposed thereon has been reduced by virtue of the passage of said law. Because of this, not

only must Hernan's sentence be modified respecting the settled rule on the retroactive effectivity of laws, the sentencing being favorable to the accused, she may even apply for probation, as long as she does not possess any ground for disqualification. Therefore, the SC reduced the penalty imposed on Hernan from *prision mayor* to *prision correccional.*

**NOTE:** In the case of **Hernan v. Sandiganbayan,** Hernan was convicted of Malversation. Judgment became final and executory. Here comes RA 10951, it is beneficial to the said accused because it lowers the imposable penalty for certain crimes which include Malversation. Under Art. 272, if the amount malversed is less than P40,000.00, the penalty is prision mayor. Under RA 10951, it is reduced to *prision correctional* with a maximum of six (6) years.

The SC sitting En banc can amend or reopen the case – not to touch the merits of the case, but only to give RA 10951 a retroactive application as to reduce the imposable penalty to Hernan from *prison mayor* to *prision correcional*. Hence, the SC, in the case, reduced the imposable penalty. In the latter part of the ruling, the SC even gave advice to Hernan. The SC said that since the penalty has been reduced, he can now file for probation.

**Q: Is RA 10592 (Good Conduct Time Allowance Law), which reduces the convict's sentence based on the convict's good behavior, a penal law?**
A: No. It is not a penal law because it does not define a crime and prescribe a penalty. However, since it affects the offender as it reduces his service of sentence, it may be given retroactive effect. *(See Inmates of New Bilibid v. De Lima)*

**Q: What does the term penal law mean?**
A: It means that it must be a substantive law – these laws must define a crime and prescribe a penalty.

In **Aguinaldo IV v. People,** it is a similar case with **Hernan v. Sandiganbayan**, except that in **Hernan** it is malversation and in this case it is estafa.

## E. PRO REO PRINCIPLE / RULE OF LENITY / EQUIPOISE RULE

**Doctrine of Pro Reo**

Penal laws shall always be construed and applied liberally in favor of the accused and strictly against the State. This is only exclusive to penal laws.

The maxim is *in dubio pro reo*. In case of doubt, rule in favor of the accused.

**Reason:** Constitutional presumption of innocence. All accused are presumed innocent, unless proven guilty beyond reasonable doubt.

**Lenity Rule**

Whenever a penal provision is susceptible of two interpretations, one interpretation is lenient and will favor the accused, and the other interpretation is strict and will go against the accused, the lenient interpretation shall prevail over the strict interpretation, legitimating leniency in favor of the accused.

**Reason:** The constitutional presumption of innocence. All accused are presumed innocent unless proven guilty beyond reasonable doubt.

**Equipoise Rule**

Whenever the evidence of the prosecution is equally balanced with the evidence of the defense, the scale of justice shall be tilted in favor of the accused.

**Reasons:**
- Constitutional presumption of innocence; and,
- In every criminal action filed in court, the conviction of the accused will depend on the strength of the evidence of the prosecution and not on the weakness of the evidence of the defense.

In fact, the evidence of the defense is immaterial the moment the prosecution was able to prove his guilt beyond reasonable doubt. It depends on the prosecution that is why the prosecution is always given the first chance to present the evidence. If the evidence of the prosecution is weak, it will not be applicable.

**Illustration:** X was in a passenger jeepney, waiting for the jeepney to be full. The police came and said to him "Are you X?". He answered, "Yes Sir, I am X." He got arrested because of a tip. X was forcibly brought inside the patrol car and he was prosecuted for illegal possession of dangerous drugs.

During the hearing of the case, the State presented the two arresting police officers. Both of them testified and corroborated each other's testimony that they received a call from a very reliable and trusted informant and then thereafter boarded a jeepney. They went as a jeepney with a plate number identified by the caller. And indeed they found X. And according to the police, they placed X. For having acted suspiciously, and when they frisked him, they found a plastic sheet of shabu

inside the pocket of his pants. That was the testimony for the prosecution coupled with the testimony of the forensic chemist who examined the drugs found to be indeed methamphetamine hydrochloride.

The defense, however, presented three witnesses. Accused X, who categorically denied the accusation and two other witnesses, the driver of the jeepney and another passenger who was inside the jeepney at the time of the incident.

Both the driver and the passenger testified that the police arrived and they inquired if that person was X. When he said he was X, he was immediately placed in handcuffs and forced to be brought in the police car. They both testified they did not see any act of violence nor any act of frisking. They did not see any shabu taken from the pocket of his pants. They did not see anything according to the driver and the passenger, both totally strangers to X. Based on this evidence, it should be unambiguous. The State was unable to prove the guilt of X beyond reasonable doubt.

The words of the police versus the words of these three persons, just equally balanced, therefore, it should be tilted in favor of the accused.

**ARRIOLA v. PEOPLE**

According to Arriola, the Equipoise Rule shall be applied to his case and he should be acquitted. The SC ruled NO, the Equipoise Rule is just inapplicable.

In this case, the prosecution was able to prove that Arriola, when he represented himself to have the power to sell the property of Candelaria in Tagtay then Rosario believed, and so he paid the amount of money but the TCT or transfer certificate of title could not be given by Arriola to Del Rosario. Hence, Del Rosario was asking for the return of the money but the money could not be returned.

SC said that the prosecution was able to prove all the elements of Estafa by means of false pretense under Article 315 par 2(a) of the RPC. The Equipoise Rule is inapplicable. It will only apply if the evidence of the prosecution is balanced with the evidence of the defense. Here, the evidence of the prosecution is way above because it was able to prove the elements of the crime.

## F. NULLUM CRIMEN, NULLA POENA SINE LEGE

*There is no crime where there is no law that punishes it.* Since PH is a civil country, penal laws are enacted; hence, no matter how heinous an act, it is not considered a crime unless there is a law that punishes it. It also covers the application of ex post facto law. *(Boado, 2022)*

The Philippines is a civil law country, in our jurisdiction, before an immoral act, before a pervert act, before an obnoxious act, when an act becomes criminal in nature, there must first be a law enacted by Congress that defines and punishes the sinner. As opposed to common law countries, an immoral act may, through the passage of time, become a punishable act, but not in the Philippines because in the Philippines, our penal laws are enacted by the Philippine Congress. The only jurisdiction of the court is to dismiss the case. However, under Article 5 of the RPC, the court may, through the Department of Justice, recommend to the President and to Congress that henceforth, this act should be subject of a penal legislation.

**Q: The judge convicted the accused. The penalty prescribed by law is *reclusion perpetua.* The judge felt the penalty was too harsh taking into consideration the circumstances under which he committed a crime. The judge is not guilty of the abuse. What is the duty of the court if the court finds that the penalty prescribed by law for the crime committed is too excessive?**
A: The court shall nevertheless impose the penalty as prescribed by law. Note, penalties are prescribed by law, enacted by Congress. Judges only impose them as prescribed by law. Hence, if the prosecution does not find that the crime committed is too excessive, the court shall nevertheless impose the penalty as prescribed by law, able to prove all the evidence, the guilt of the abuse, the judge cannot do anything but impose. The penalty as prescribed by law. However, under Article 5, the judge may, through the Department of Justice, send a recommendation to the President that this accused deserves clemency, pardon, and reduction of penalty.

**CADAJAS v. PEOPLE**

Christian Cadajas was charged with child pornography. His girlfriend was only 14 years old. He enticed his girlfriend to send photos of her breast and vagina, she took off her clothing, took photos of her private parts, and sent it to the facebook of her boyfriend. A case of child pornography, RA 9775 in relation to RA 10175 or the Cybercrime Prevention of 2012 has been filed. Condemned. The Supreme Court offered the conviction, but many justices dissented because of

the penalty. The moment a crime is committed in relation to the Anti -Cybercrime Prevention Act, the law provides the penalty will be a degree higher. Since the penalty for child pornography Under RA 9771 is reclusion temporal, a degree higher is *reclusion perpetua.* Hence, the felony to be imposed on the Cadajas is *reclusion perpetua.*

The Supreme Court justices said that the penalty is too harsh. The majority of the justices said, yes, it is too harsh, but the remedy is not with the Supreme Court. The remedy is with Congress and Malacanang. Hence, at the latter part of the case, the Supreme Court said, let a copy of this decision be sent to the office of the President and the Congress because the remedy lies in there. They can refuse the penalty, they can amend the law, but the Supreme Court has to obey the law as described.

## PENALOSA v. OCAMPO

**FACTS:** An allegedly libelous Facebook post against Ocampo Jr. was posted by Penalosa on her account. Penalosa was charged with the crime of Libel. The case was dismissed by the RTC on the ground that at the time the acts were committed, the Cybercrime Prevention Act was not yet enacted into law. However, the CA ruled that his acts constitute Libel in the form of writing, which is punishable under the RPC.

**ISSUE:** W/N making an allegedly libelous Facebook post before the enactment of the Cybercrime Prevention Act of 2012 is punishable under the RPC (NO)

**RULING:** NO. Under Art. 355 of the RPC, "similar means" could not have included "online defamation" under the statutory construction rule of noscitur a sociis–,"where a particular word or phrase is ambiguous in itself or is equally susceptible to various meanings, its correct construction may be made clear and specific by considering the company of words in which it is founded or with which it is associated.

In Art. 355, the associated words clearly excludes "computer systems or other similar means which may be derived in the future", specifically added in Art. 4(c)(4) of the Cybercrime Prevention Act. If it were true that Art. 355 of the RPC already includes Libel made through computer systems, then Congress had no need to legislate Article 4(c)(4) of the Cybercrime Prevention Act, for the latter legal provision will be superfluous. That Congress had to legislate Article 4(c)(4) means that libel done through computer systems, i.e., Cyber libel, is an additional means of committing libel, punishable only under the Cybercrime Prevention Act.

To make cyber libel punishable under Art. 355 of the RPC is to make a penal law effective retroactively but unfavorably to the accused. This is contrary to Art. 22 of the RPC.

In this case, an allegedly libelous Facebook post made may only be punished under the Cybercrime Prevention Act, not under Art. 355 of the RPC. Since the Facebook post complained of was made in 2011, a year before the Cybercrime Prevention Act was passed, there was no Libel punishable under Art. 355 of the RPC. *Nullum crimen, nulla poena sine lege* – there is no crime when there is no law punishing it.

**Q: What if X was charged of a crime. The Court found out that the case filed against him was not punished or the act allegedly done by this accused X, although it is immoral or obnoxious, is not penalized by any law. The Judge could not find any law violated by X. What is the duty of the Court?**
A: The duty of the Court is to dismiss the case pursuant to Article 5 of the RPC. Why should the crime be dismissed? *Nulla crimen nullum poena sine lege.* **There is no crime when there is no law that defines or punishes the said act.** Therefore, no matter how immoral, obnoxious, perverted the act done by X, since the Judge could not find a law that punishes the said act, the only duty of the court is to dismiss the case. The court cannot hear the case because there is nothing to try, X did not violate any law. *Nulla crimen nullum poena sine lege.* Do not say acquitted because it means there was a trial, reception of evidence and after trial the accused is found not guilty. It is correct to outright dismiss the case because there was no law punishing the acts alleged in the information.

**Q: A complaint against X was filed, but they cannot find any law that defines and punishes the act allegedly done by X. What is the duty of the public prosecutor?**
A: DISMISS THE CASE. *Nullum crimen nulla poena sine lege*. There is no crime when there is no law that punishes the act because the Philippines is a civil law country. In our jurisdiction, no matter how immoral an act is, it will never evolve into an illegal act. There must be a law enacted by Congress defining and punishing the said act, only then can it be considered as a criminal or illegal act.

**NOTE:** In the case of **Penalosa v. Ocampo, Jr.** penned by Justice Leonen, the SC said that Cyberlibel is not within the meaning of ordinary Libel under the Art. 355. The act by Penalosa was done in 2011 before the effectivity of the Anti-cybercrime Prevention Act. At the time, there is still

no law that punishes Cyberlibel; and since Cyberlibel is not included in ordinary Libel, then the case has to be dismissed. *Nullum crimen nulla poena sine lege.*

There is just a recently uploaded decision, **Causing v. People** penned by Justice Inting. In the said case, bumalik na naman ang SC saying that Cyberlibel is nothing new. It is just an ordinary Libel under Art. 355. And so, it just maintained its decision in Disini v. Secretary of Justice that cyberlibel is nothing new because it is within the meaning of "other similar means".

**NOTE:** Magkaiba ang decision but use this recent one that Cyberlibel is nothing new. It is inherent in ordinary Libel.

## G. MALA IN SE AND MALA PROHIBITA

## H. MENS REA & ACTUS REUS

**NOTE:** These topics were combined as Prosec's discussion of both concepts and cases were intertwined.

**Mens Rea & Actus Reus**

a. **Actus Reus** (Physical/Objective Element)

Latin term for *"guilty act."* It pertains to the external or overt acts or omissions included in a crime's definition

b. **Mens Rea** (Mental/Subjective Element)

Latin term for *"guilty mind."* It pertains to the accused's guilty state of mind or criminal intent accompanying the actus reus.

**Mala In Se & Mala Prohibita**

**Acts Mala In Se -** acts which are inherently evil or wrong. They are wrong per se, wrong by their very nature. There need not be a law to say it is unlawful, criminal, or illegal.

**Example:** To kill a person. There need not be a law to state that if you take a person's life, you will be considered a criminal is an unlawful act. Everyone knows you have no right to take a person's life. Everyone knows it is unlawful to kill someone. It is inherently evil and wrong. It is an act *malum in se*, or *mala in se (plural)*. Also, child pornography is an act *malum in se,* although punished under RA 9775, as amended. Child pornography is inherently illegal. There need not be a law to tell you that it is inherently evil or wrong to sexually molest a child.

**Acts Mala Prohibita -** acts which are only wrong because there is a law that defines and punishes the said act.

**Example:** Illegal possession of loose firearms. Possessing, owning a firearm is not per se illegal because firearms are not per se contraband. What the law punishes is the possession, the ownership of the firearm without the corresponding license or permit or registration. What is being punished is only possessing the said firearm without license. If there is no law that will punish it, then it will not be considered criminal in nature. It is an act *malum prohibitum,* or acts *mala prohibita (*plural).

| MALUM IN SE | MALUM PROHIBITA |
|---|---|
| Acts which are inherently evil or wrong per se, | Acts which are only wrong because there is a law that |

| | |
|---|---|
| wrong by their very nature. | defines and punishes the act. |
| The basis of criminal liability is the moral trait or the criminal intent of the offender. | The basis of criminal liability is the actual doing of the prohibited act. |
| Good faith or lack of criminal intent is a valid defense. | Good faith or lack of criminal intent is not a valid defense unless otherwise provided. |
| Modifying circumstances such as mitigating and aggravating circumstances are considered by the court in imposing the penalty. | No modifying circumstances may be appreciated by the court unless otherwise expressly provided. |
| The stage of the execution of the crime whether the crime is in the attempted, frustrated, or consummated stage is considered in imposing the said penalty. | It must always be an act done, hence, always consummated. No frustrated and attempted stages. |
| The degree of participation of an offender whether he is a principal, accomplice, or an accessory is considered in imposing the penalty. | There is no degree considered. All perpetrators are punished to the same extent. No principal, no accomplice, no accessory. |

There is a common misconception that crimes punished under the RPC are always *mala in se* and that crimes punished under special penal laws are always *mala prohibit*a. There are many crimes punished by special penal laws and there are also acts under the RPC which are considered as *mala prohibita*.

**BAR EXAM TIP:** If this is asked in the Bar and you see that the corresponding point is one (1) point, state only 1-2 distinctions; but if the corresponding points are five (5) points, you state all the distinctions.

**Q: Can an act malum in se absorb acts mala prohibita?**
A: NO. *See Loney v. People below.*

**LONEY v. PEOPLE**

**FACTS:** Loney and his co-accused were officers of Marcopper Mining Corporation, a corporation engaged in mining in the province of Marinduque. Marcopper had been storing tailings from its operations in a pit in Mt. Tapian resulting to the discharge of millions of tons of tailings into the Boac and Makalupnit Rivers. They were charged with the violation of the Water Code, National Pollution Control, and Philippine Mining Act. They were likewise charged with the violation of Reckless Imprudence Resulting in Damage to Property. Loney and his co-accused moved to quash the Informations on ground that these were duplicitous because there is only a single act. The Informations for violation of the Water Code and Anti-Pollution law were dismissed by the MTC. However, the RTC ruled that there is no absorption by one offense of the three other offenses, as the acts penalized by these laws are separate and distinct from each other.

**ISSUE:** W/N the three (3) Special Penal Laws are absorbed by Reckless Imprudence Causing Damage to Property (NO)

**RULING:** A single act or incident might offend against two or more entirely distinct and unrelated provisions of law, thus, justifying the prosecution of the accused for more than one offense. The only limit to this rule is the Constitutional prohibition that no person shall be twice put in jeopardy of punishment for "the same offense."

The comparative analysis among PD 1067, PD 984, RA 7942, and Art. 365 of the RPC showed that in each of these laws on which Loney and his co-accused were charged, there is one essential element not required of the others:

In P.D. 1067 (Philippines Water Code), the additional element to be established is the dumping of mine tailings into the Makulapnit River and the entire Boac River System without prior permit from the authorities concerned.

In P.D. 984 (Anti-Pollution Law), the additional fact that must be proved is the existence of actual pollution.

In R.A. 7942 (Philippine Mining Act), the additional fact that must be established is the willful violation and gross neglect on the part of the accused to abide by the terms and conditions of the Environmental Compliance

Certificate, particularly that the Marcopper should ensure the containment of run-off and silt materials from reaching the Mogpog and Boac Rivers.

On the other hand, the additional element that must be established in Art. 365 of the RPC is the lack of necessary or adequate precaution, negligence, recklessness, and imprudence on the part of the accused to prevent damage to property. This element is not required under the previous laws.

Moreover, the offenses punished by special law are *mala prohibita* in contrast with those punished by the RPC which are mala in se. Therefore, a mala in se felony cannot absorb *mala prohibita* crimes. What makes the former a felony is criminal intent (dolo) or negligence (culpa); what makes the latter crimes are the special laws enacting them.

**NOTE:** In the case of **Loney v. People**, the SC said that an act malum in se, such as Reckless Imprudence Causing Damage to Property, cannot absorb acts *mala prohibita* because what makes an act malum in se is the presence of criminal intent or negligence. What makes an act *malum prohibitum* is the presence of the special law that punishes the act.

In the case of **Dungo v. People**, the SC said that it is a misconception to say that acts punished under the RPC are acts mala in se and acts punished under Special Penal Laws are *mala prohibita*, because not all acts punished by Special Penal Laws are *mala prohibita*, and not all acts punished by the RPC are mala in se. Plunder is punished under a Special Penal Law, RA 7080, however, the SC in the case of **Estrada v. Sandiganbayan** said that plunder is an act malum in se because it is inherently evil or wrong to amass, accumulate, or acquire ill-gotten wealth.

Inflicting psychological violence in the woman or her child by denial of financial support legally due under Sec. 5(i) of the RA 9262, the SC said that is an act malum in se, not an act *malum prohibitum.* A husband's mere denial or mere failure to give financial support to the wife or to the child does not automatically mean a conviction. It is an act *malum in se*, so it must be proven that he willfully and consciously denied to give support to his wife and to his child in order to inflict upon them emotional and mental distress. There must be a concurrence of both the guilty mind and the guilty act. These are held by the Court in the cases of **Acharon v. People** and **Calingasan v. People.**

**Q: In the case of Acharon v. People, nasunog ang pabrika na pinagta-trabahuhan ng asawa kaya hindi na siya nakapagbigay ng support sa wife. Nagalit si wife. She then filed a case for psychological violence because of the failure of the husband to give support. Is the husband guilty?**

A: NO. The SC said that although he failed to give support, it was not deliberate on his part. He has no job, the factory was gutted down by fire, he has no money so how can he give support? There was no deliberate intent, it was not done willfully and consciously in order to inflict upon his wife emotional and mental distress.

SC said that violations of Section 5(i) and Section 5(b) of RA 9262 or The Anti -Violence Against Women and Their Children Act, inflicting psychological violence, economic abuse, by denying the wife and the child the financial support legally due them, these are acts mala in se and not *mala prohibita e*ven if RA 9265 is violation of special penal law. Therefore, a husband cannot immediately be convicted for violation of RA 9262, just by mere denial of financial support. There must be evidence showing that in denying the financial support, he has the deliberate intent to inflict mental and emotional anguish upon his wife and child..

Also, in the case of **Cadajas v. People**, the SC said, child pornography, violation of RA 9775, is an act malum in se and not *malum prohibitum,* although it is punished by Special Penal Law. The SC said that there must be intent on the part of the accused to commit child pornography and here, it is present, according to the SC. Cadajas was already 22 years old, he was the one with mental maturity, for him to induce his girlfriend who was only 14 years old to undress herself and obtain photos of her breasts and vagina, and to send it to social media, SC said that is child pornography. Hence, Cadajas was convicted. It is *mala in se*, not *mala prohibita*.

In the case of **Garcia v. CA,** Arsenia was an election officer. She decreased the votes of Senator Pimentel by more than 5,000. It was discovered and she was charged under RA 6646 or The Electoral Reforms Law of 1987. She contended that she lack criminal intent and the wrong number/figure was because she was already tired and sleepy and that 5,000 votes decreased or deducted from Pimentel was not added to the votes of another candidate. However, what was charged here is a special penal law in which criminal intent is immaterial and good faith is not a valid defense.

SC said that the decreasing or increasing of a candidate's votes is an act *mala in se* because it is inherently wrong or evil to reduce or increase the votes of a political candidate.

**Q: So, if it is a mala in se, how come Arsenia's defense of good faith, defense of lack of criminal intent was not considered by the Supreme Court?**

A: SC said by her own admission, she acted negligently. Her duty requires extraordinary diligence in counting, stating the votes because otherwise, it will result in a disenfranchisement of the voters. Here it is an act *mala in se* and not *mala prohibita*.

So these are the acts punished under special penal laws which are considered crimes mala in se. A provision, a criminal act under RPC which is considered as *malum prohibitum* which is technical malversation under Article 220. Technical malversation according to the Supreme Court is an act *malum prohibitum* and not an act malum in se. The moment the public officer transfers the funds earmarked by law for a particular purpose to another public use, the crime arises regardless of criminal intent, regardless of good faith.

**BAR Q: Mayor X transferred the funds which are appropriated by an ordinance for the feeding program to a construction project. And so, Mayor X was charged for violation of Art. 220 – Technical Malversation under the RPC. Mayor X said that he is not liable because he acted in good faith. He lacks criminal intent. The said construction is with urgency than that of feeding the malnourished children. Is the defense of Mayor X tenable?**
A: NO. The SC said that in the case of *Isidoro v. People*, violation of Art. 220 – Technical Malversation, although under the RPC, is not an act *malum in se* but an act *malum prohibitum*. The mere transfer of funds appropriated by an ordinance to another public use makes the offender already criminally liable. Good faith is not a defense. Lack of criminal intent is not a defense. No matter how lawful the objective of Mayor Isidoro is, he is liable. SC said that *"Dura Lex Sed Lex"* – sorry na lang, nag violate ka. But the SC only imposed a penalty of fine.

# II. BOOK ONE, REVISED PENAL CODE and RELATED SPECIAL PENAL LAWS

## A. FELONIES (ART. 3)

**Art. 3**. *Definitions.* – Acts and omissions punishable by law are felonies *(delitos)*.

Felonies are committed not only by means of deceit *(dolo)* but also by means of fault *(culpa)*.

There is deceit when the act is performed with deliberate intent and there is fault when the wrongful act results from imprudence, negligence, lack of foresight, or lack of skill.

- **Felonies** - The word *"law"* in this provision refers to the revised penal law. Consequently, acts and omissions punishable by law are felonies.
- **Offenses** - Acts or omissions punished by special penal laws are considered as offenses.
- **Infractions of the Law** - Acts or omissions punished by ordinances enacted by the LGUs are considered as infractions of the law.

**NOTE:** Whether it is a felony, an offense, or an infraction of the law, they're all considered as crimes.

### 1. KINDS & ELEMENTS

**Kinds of Felonies**

Based on the manner of committing felonies, there are two (2) kinds of felonies:

1. **Intentional felonies** are those which are committed by means of deliberate intent; and

   **ELEMENTS:**
   a. Criminal intent on the part of the offender;
   b. Freedom of action in doing the act; and
   c. Intelligence of the offender.

2. **Culpable felonies** are those where the wrongful act results from imprudence, negligence, lack of foresight, and lack of skill.

   **ELEMENTS:**
   a. Criminal negligence on the part of the offender;
   b. Freedom of action in doing the act; and
   c. Intelligence of the offender.

Both intentional and culpable felonies are voluntary acts. Without voluntariness, there is neither an intentional felony nor a culpable felony.

Both have the same elements except on the first element. In the case of intentional felony, it is the criminal intent. In the case of culpable felony, it is criminal negligence.

An important element of an intentional felony is criminal intent. Intent is the use of a particular means to achieve the desired result.

## 2. CRIMINAL INTENT

It can't be seen because it is an internal state of the mind. Criminal intent can be established through the overt acts performed by the offender in the execution of the crime or through the instruments or means used by the offender in the commission of the crime.

Illustration: The offender attacks the victim with a bolo. It reveals intent to kill. The offender attacks the victim by slapping the face. It reveals only intent to injure. The offender opened the bag of another without asking permission from the owner. It reveals intent to gain. So, the criminal intent on the part of the offender is reviewed through his overt acts or through the weapons that he used in the commission of the crime.

**BAR Q: Distinguish general criminal intent from specific criminal intent. Illustrate.**

**A:** *General criminal intent* is presumed by law from the mere doing of the act and therefore, it requires no proof; whereas specific criminal intent is never presumed by law. *Specific criminal intent* must be proven by the prosecution beyond reasonable doubt just like any element of the crime. It is never presumed by law. It is considered as an ingredient element of the crime, which must be proven by the prosecution beyond reasonable doubt to bring about a conviction.

**Illustration:** X stabbed Y. Y sustained a non-fatal wound near the shoulder and was brought to the hospital. The doctor said that the wound would heal within a period of five (5) days. Thereafter, Y filed a case of Attempted Homicide against X. Since the case filed is Attempted Homicide, it is the burden of the said private complainant Y and the State/prosecution to prove intent to kill on the part of X when he stabbed Y, inflicting upon him a slight injury on the shoulder. If the State/prosecution failed to prove X's specific criminal intent to kill, then X can only be convicted of Slight Physical Injuries.

On the other hand, if X stabbed Y, X intended only to threaten Y. However, when he tried to stab Y, the said knife hit the heart of Y. It penetrated through the heart of Y which caused his instantaneous death. And so, X is now being prosecuted for Homicide. X said that he has no intention to kill. His only intention was only to threaten him with his knife. Here, X's defense has no merit. Since the victim died, intent to kill becomes a general criminal intent because the best evidence of intent to kill is the fact that the victim died. Therefore, it requires no proof. The prosecution need not prove that X has the intention to kill Y because since Y died, the law presumes that the intent of X was to kill the said victim.

### RIVERA v. PEOPLE

**FACTS:** The Rivera brothers attacked Ruben and in the course thereof Ruben was hospitalized and eventually died. Based on the medical legal certificate, the wounds sustained by Ruben were only superficial in nature. The crime charged was attempted murder.

**ISSUE:** Whether there was intent to kill on the part of the Rivera brothers. (YES)

**RULING:** YES.

First, a day prior to the incident, there was a heated argument between Ruben as well as Edgardo, one of the Rivero brothers.

Second, The nature and number of weapons used by the accused. The Rivera brothers used their feet, their legs, and even used a hollow block.

Third, the nature, number, and location of wounds inflicted on the victim. The medical legal certificate states that the victims sustained were superficial; it was only because the three accused ran when the police arrived. Had they not run, they could have killed the victim.

Fourth, the manner of committing the crime. The three brothers acted simultaneously in conspiracy, in a synchronous manner, in attacking the victim.

And lastly, the acts or statements made by the accused before, during, and after the commission. Before the crime, they all rounded on him. At the time of the commission of the crime, they acted simultaneously in mauling him, beating him, bashing him, and hitting him with hollow blocks. And after the commission of the crime, when they heard the arrival of the police, they ran away all at the same

time.
SC said based on the evidence of record, there was, on the part of the accused, an intent to kill. Hence, the Supreme Court affirmed the conviction of attempted murder.

**PEOPLE v. DELIM**

Delim brothers have abducted their adopted brother, Modesto. The main contention is when the case reached the Supreme Court, some justices believed that the information filed against the Delim brothers, based on the allegation, is not for murder but for kidnapping.

So although the fact that he's murdered, if you will look at the allegations in the information, it is for kidnapping. Because in the information, it was alleged that he abused willfully, unlawfully, and feloniously, grabbed, hang-tied, gagged with a piece of cloth, and abducted Modesto a day before he was found dead. Some of the Justices of the Supreme Court were saying that if the information alleges kidnapping, then the conviction cannot be for the crime of killing, for the act of killing, but the majority prevailed and the majority said No. If you look at the allegation in the information, it is for murder. The crime charged was correctly stated as murder.

Because according to the majority of the Supreme Court, in murder, the specific criminal intent is to kill and in kidnapping, the specific criminal intent is to deprive the person of his liberty.

Here, based on the allegation in the information, the specific criminal intent was to kill the victim. Hence, the act of kidnapping is merely incidental in order to attain its specific criminal intent to kill the victim.

Hence, the Supreme Court said since the charge in the information was for murder, they convicted the accused of homicide because treachery was not proven by the prosecution proof beyond reasonable doubt.

**Q: While X was walking, A, B, C, D, and E suddenly stopped him. A immediately hit him with a samurai in the arm. B, C, D, and E also hit him. X was wounded and bleeding and fell to the ground and upon seeing it they had already left. A, B, C, D, and E were arrested and charged with frustrated murder. The RTC convicted them of attempted murder. Is the crime committed frustrated or attempted murder?**
A: Both the charge and conviction are wrong because based on the facts, there was no intent to kill on the part of A, B, C, D, and E. They were greater in numbers. Five versus one. They were greater in strength and weapon. They were armed with Samurai. Had they wanted to kill the victim, now that the victim was down and slumped on the ground, they would have immediately done so. They could continuously attack him and the victim will be dead. But, upon seeing that he's already wounded and bleeding, they leave. Obviously, they have no intention to kill. Therefore, the proper conviction is only for physical injuries, and not for frustrated murder nor attempted murder because of want of intent.

## 3. MOTIVE

Motive is the moving power which impels a person to do an act to achieve the desired result.

**Motive v. Criminal Intent**

Motive precedes criminal intent because motive is the reason behind criminal intent. While criminal intent is material to determine the offender's criminal liability, motive is not material to determine an offender's criminal liability.

**GR:** Motive is not material if:
- ➢ the offense is identified;
- ➢ the offender admitted to the commission of the crime;
- ➢ the prosecution has an eyewitness, direct evidence in the commission of the crime;
- ➢ the crime charge is a culpable felony; or
- ➢ the crime charge is a violation of special penal law.

So as a rule, motive does not matter in determining the criminal liability of an offender

**XPNs:** The instances where motive becomes material to determine the offender's criminal liability are:
1. When the act of the offender will result to variant crimes;
2. When there is doubt on the identity of the offender; and,
3. When the prosecution has only circumstantial evidence to prove the guilt of the offender.

**Q: Around 5:30 in the morning, the mayor was seen jogging in the park. His bodyguards were a little bit far from him. There were very few people in**

**the park so the mayor was there jogging. Here comes X. X arrived, began jogging and trying to walk near the mayor. When he was already very near the mayor, side by side with the mayor, he pulled out a gun and fired shots repeatedly at the head of the mayor and X was arrested. After investigation by the police, a complaint for murder was filed against X before the office of the public prosecutor. If you were the assigned public prosecutor, will you indict X as charged by the police?**

A: You have to first investigate, get a counter affidavit, and know the reason, the motive behind the killing. The said mayor is a person in authority. At the time of the attack, he was not in the performance of his function. Therefore, you have to know the motive behind the killing.

If X killed the mayor for a personal reason, the crime is correctly charged as murder. But, if X killed the mayor because of the mayor's past performance of his official duty, the proper charge is qualified direct assault with murder.

So here, since the act of killing would result to variant crimes, either murder or qualified direct assault with murder, it is important to know the motive. On the part of the accused, including the mayor. So here, motive matters.

**FERNANDEZ v. PEOPLE**

Fernandez was charged with frustrated murder for allegedly shooting Garino in the buttocks.

During the hearing of the case, Fernandez was convicted after the CA for frustrated murder when the case reached the Supreme Court, he was acquitted.

Both the victim, the private complainer, and the accused, testified in court that they didn't know each other before this case. In fact, Garino, the victim, didn't even know the name of Fernandez. The name of Fernandez was only suggested by a coworker and he testified, it was totally dark that prevented him from knowing who shot him. The court said there is a doubt on the identity of the shooter. Whether it was Fernandez or not, because by all admission of the victim, it was totally dark in the said place. Therefore, since there's doubt, we consider the motive.

***Can there be a motive on the part of Fernandez to shoot Garrido?***

The Supreme Court said none. They didn't know each other. Therefore, there cannot be a motive on the part of Fernandez to shoot Garrido because in the first place, they didn't know each other from the first time or from the second time. They only came to each other during the hearing of the case. So for one good motive on the part of the accused, considering that there was doubt on his identity because of the darkness of the night, the Supreme Court said it is unfounded. A defense against criminal intent is mistaken.

## 4. MISTAKE OF FACT

**Mistake of Fact** is the misapprehension of facts on the part of the person who caused injury to another. If the person acted under mistake of fact, the offender is absolved from criminal liability. Mistake of fact negates criminal liability because the offender acted without criminal intent.

**ELEMENTS:**

1. That the act done would have been lawful and justifiable had the facts been as the accused believed them to be;

   **NOTE:** Granting for the sake of argument that the facts are what the accused believed them to be, the act done by the accused is justified and lawful.

2. The intention of the offender in performing the act must be lawful; and

   **NOTE:** His intention is lawful. He is guided by a legitimate, justifiable intent.

3. The mistake must be without fault, negligence, and carelessness on the part of the offender.

   **NOTE:** Mistake of fact may be raised only as a defense in case of intentional felony. It is not a defense in culpable felony because the first element of a culpable felony is criminal negligence and mistake of fact requires that there must be no negligence or fault on the part of the offender.

   In order to raise as a defense mistake fact, evidence may show that the offender exercised diligence in ascertaining the truth facts because of this third element, that the mistake must be

without fault, negligence, or carelessness on the part of the offender.

**U.S v. AH CHONG**

The Court acquitted Ah Chong for homicide. All the elements of mistake of fact are present.

*First, what the act done would have been lawful and justifiable.* Let the facts be as they have been stated. Ah Chong thought an intruder, a robber, was trying to enter the house. Had it been true that the one trying to enter the house was a robber, an intruder, Ah Chong is justified in killing.

*Second, the intention of the offender in performing the act must be lawful.* His intention was lawful, to protect himself and his property.

*Third element, the mistake must be without fault, negligence, carelessness on the part of the offender.* Ah Chong inquired thrice. Who is it? Who is it? Who is it? The roommate did not respond. Had he only responded, saying that I am your roommate, then, Ah Chong could have opened the door but when he failed to respond, Ah Chong suspected that he was an intruder and robber.

Hence, the Supreme Court said all the elements of mistake of fact are present. It will be an acquittal.

**YAPYUCO v. SANDIGANBAYAN**

The Supreme Court said that the defense raised by the accused as a mistake of fact has no merit.

That the act done would have been lawful and justifiable and facts been as the accused believed them to be. Granting for the sake of argument, that as they believe those persons inside the van were members of the NPA. Still, they are not justified in just firing at them. Their intention was unlawful to kill the people inside the vehicle. And last element, the mistake was with fault. They could have easily ascertained the identity of these people instead of just immediately firing at them. Hence, the Supreme Court said this time, mistake of fact cannot be an absolutory cause on the part of these police officers.

**Q: Police officer X and his two companions were walking. It was night time, they were patrolling the area. police officer X and his two companions chanced upon Y. Y is said to be a notorious and serial police killer. If you go to the police station, there are photos of Y stating wanted criminal police killer. There was an exchange of gunfire. Police officer X was hit by Y on the left side of his body. Y ran away. Though he was wounded, he was bleeding, police officer X and his two companions continued chasing Y. They saw Y entered a warehouse that was slightly dim and the three police officers also entered the warehouse. When they were already inside the warehouse, in the mezzanine, police officer X suddenly saw a man getting out of a pile of boxes and the man seemed to be armed with a gun and the gun was pointed at them. And so, before they could have been shot, police officer X shot the man for no reason. Thereafter, the three police officers went to the man and discovered it was the warehouseman. The warehouse man holding was not a gun, but a knife. So police officer X is now prosecuted for the crime of homicide. Police X's defense is a mistake of fact. Is his defense meritorious?**

A: YES, he should be absolved of criminal liability. First, is the act done would have been lawful and justifiable as the facts given as X believed them to be. Police officer X thought he was Y, the notorious police killer who wounded him already in the earlier exchange of gunfire. Had he been Y, police officer X is justified. He would not let X fire another shot because he is already wounded.

The first element is present, his intention was good to save his life and the life of his two companions. X's mistake cannot be said to be with fault and negligence. It happened at the spur of the moment, is this really Y or is this another person? Because to think that way, it would mean he could already be fired, so time is of the essence. Since it happened at the spur of the moment, it is wise to save their lives. All the elements are present, therefore, mistake of fact and lie in favor of the said police officers and must be acquitted of the crime charged.

## B. PROXIMATE CAUSE THEORY & IMPOSSIBLE CRIME DOCTRINE (ART. 4)

**Art. 4.** *Criminal liability*. - Criminal liability shall be incurred:

1. By any person committing a felony (delito) although the wrongful act done be different from that which he intended.
2. By any person performing an act which would be an offense against persons or property, were it not for the inherent impossibility of its accomplishment or an account of the employment of inadequate or ineffectual means.

### PARAGRAPH 1

### PROXIMATE CAUSE

Under Article 4, 1st Paragraph, criminal liability shall be incurred by any person committing a felony, although the wrongful act can be different from that which he intended.

**ELEMENTS:**

1. That the intended act is a felonious act;
2. The resulting act is a felony; and
3. The resulting felony is the direct, natural, and logical consequence of the offender's felonious act.

**Definition:** Proximate cause is that cause that sets into motion all other causes, and which unbroken by an efficient intervening cause, produces the felony without which the felony could not have resulted.

Based on this definition of proximate cause, for one to be liable under the Proximate Cause Doctrine, it is necessary that there is no efficient intervening cause that would have broken the causal connection between the offender's felonious act and the resulting felony. The moment there is an efficient intervening or supervening force that would break the connection between the offender's felonious act and the resulting felony, then the offender cannot be liable for the said resulting felony.

**BAR EXAM TIP:** First and foremost thing that you have to look into the problem, is the accused doing a felonious act? Is his intended act a felonious act? If the first element is present, if his intended act is a felonious act, if he was doing a felonious act then, he would become liable for the resulting felony, although the different from which he intended. But, if he is not doing a felonious act, whatever felony would result, he cannot be criminally liable.

**Efficient Intervening Cause**

An efficient intervening cause is an active force which is a distinct act or fact absolutely foreign from the felonious act of the offender.

It is one where it has nothing to do nor connected to the offender's felonious act. Only then can it be considered as an efficient intervening cause.

Insofar as Proximate Cause Doctrine is concerned, for one to be liable under Art. 4(1), it is not necessary that the offender has touched the body of the victim. It suffices that by reason of the offensive act, fear has been generated to the mind of the victim and because of the fear, the victim performed act/s that move them, and the offender would be liable for such.

### GARCIA v. PEOPLE

**FACTS:** Garcia and his friends were having a drinking spree. Chy went to them, ang ingay-ingay niyo pinaki hinaan ang boses, but Garcia took it badly. Some other time, Garcia and his friends again were having a drinking spree and Chy passed by and went to the group. Garcia, without any warning, knocked him, punched him, kicked him, and even hit him with a bottle. When Chy saw an opportunity, he ran fast to his house, told his wife that he was home, and to please call the police. So the wife called and when police arrived he was already salivating. When brought to the hospital, he died. Cause of death, myocardial infarction or heart attack. Garcia was charged for homicide.

**RULING:** The medical certificate clearly shows that the injuries he inflicted on Chy were only slight physical injuries superficial in nature. Therefore, he cannot be liable for the death of this victim. He was convicted by the RTC and affirmed by the Supreme Court and said although the cause of death was myocardial infarction or heart attack, it is stated also that the cause of death was myocardial infarction secondary to trauma. Were it not for the trauma brought about by Garcia on Chy, he would not have been, he would not have suffered a heart attack.

Therefore, the approximate cost was the mulling done by Garcia on Chy. Garcia was ultimately liable for the death of Chy for the crime of homicide.

**Q: X and Y are sweethearts. X found that Y has another woman. X was very mad because she loves Y so much and finding that Y has another woman, it is really painful for X. So X decided to take her on life and now that Y has found another, she couldn't accept it. So X went to a building. The topmost portion and decided to jump from the said top portion to end her life.**

**At that particular moment, there were two men on the ground. They were gays. A told B, I don't love you anymore and I'm ending our relationship. B said no, I love you so much and B embraced A. When B embraced A, A pushed B. B fell on the ground at that particular moment, and X jumped from the building. X landed on B who was on the ground. What is X's criminal liability In the death of B? What is A's criminal liability in the death of B? Does Article 4, First Paragraph apply in both cases?**

**A:** In so far as the liability of X, in the death of B, to commit suicide, to take one's life, one's own life, is not a felonious act, is not a punishable act under the RPC, or under any special law. You want to take your life? So be it. You will not be punished by law for your intent for committing suicide. It is not a crime, it is not a felony, it is not unlawful. So, when X jumped from the said building, he was not committing a felonious act. Therefore, Article 4, First Paragraph, proximate cause doctrine is inapplicable. The first element is immediately absent. Since he is not committing a felonious act, otherwise stated, he was performing a lawful act. In performing the lawful act, she did not do so with due care and so because of that, he will become liable for simple imprudenc resulting in homicide for the death of B.

And so as A is concerned, A is not liable for any crime. To push a person, pushing a person is not a criminal act. Therefore, since he was not performing a felonious act, then Article 4 does not apply. A does not incur any criminal liability for the death of B.

**Q: X is a street sweeper. As early as 7am, he was already sweeping the street near a girls' school, near a ladies dormitory. While X was doing his job in sweeping the street, he took notice of a man. He seemed to be a man peeping through the ladies' dormitory and then he seemed to be taking photos and videos.**

**So, X was there staring at that man and suddenly X went near the man and he said, "Boy Tatang, what are you doing there peeping." Tatang was so shocked when he turned around and upon seeing X, X at the time was wearing white shirt and a fatigue just like police officers. And so all the while, Tatang thought X is a police officer because of that he suddenly became pale and he fell. He suffered a heart attack. X is now being prosecuted for the crime of homicide for the death of the said man. Is X liable as charged?**

**A:** NO. He wasn't committing a felonious act. In fact, it was the man who was committing a felonious act. Since in the first place, he wasn't committing a felonious act then he cannot be criminally liable for any resulting crime that will happen. In this case, X cannot be criminally liable for the said resulting crime.

**Q: X and Y, after a day's work, good friends, they decided to eat and have some drinks before going home. It was Friday night. While they were eating and drinking at the same time, they were discussing politics. X said, VP Sara should be impeached. Y said, no it is PBBM who should resign. So they have different points of view. There was a heated argument between them until both of them stood up. The moment they were both standing, X punched Y. Y said, bakit mo sinuntok? And, because of that Y also punched X. There was no exchange of punches between them. In the course thereof, X pulled out a knife and he stabbed his best friend in the abdomen. Thereafter, seeing blood coming out from the body of his best friend, afraid, he left the scene. While trying to go to the nearest hospital, he was trying to lock for a ride and a taxi wanted to board him. And so he was walking, the rain poured. There was lightning, there was thunder. He was hit by lightning. He was struck by lightning. He was burned to death. The autopsy report revealed that the cause of death was burning caused by the lightning. However, the autopsy report also discovered in the abdomen a fatal wound caused by the said stabbing and because of this, the wife of Y charged X with homicide. Based on the facts, if you were the judge, would you convict X?**

A: The first element of the proximate cause doctrine is present. The intended act is a felonious act. Stabbing someone in the abdomen is a felony. It resulted in a felony that is, the death of the subject in the homicide. But the third element is absent. The resulting felony is not the direct, natural, and logical consequence of the said felonious act because there was an efficient intervening cause that broke the causal connection between the offender's said felonious act and the resulting felony, and that is lightning. The lightning can

be considered as an efficient intervening cause because it is an active force which is totally distinct from the said act of the offender. So, as the judge, you should not convict X of homicide. The third element of the proximate cause of death in Article 4, first paragraph is absent. You should convict X of frustrated homicide. Because the wound that he inflicted is a fatal wound on a vital part of the body of a person.

**URBANO v. IAC**

In the case at bar, Javier suffered a 2-inch incised wound on his right palm when he parried the bolo which Urbano used in hacking him. This incident took place on October 23, 1980. After 22 days, or on November 14, 1980, he suffered the symptoms of tetanus, like lockjaw and muscle spasms. The following day, November 15, 1980, he died.

If, therefore, the wound of Javier inflicted by the appellant was already infected by tetanus germs at the time, it is more medically probable that Javier should have been infected with only a mild cause of tetanus because the symptoms of tetanus appeared on the 22nd day after the hacking incident or more than 14 days after the infliction of the wound. Therefore, the onset time should have been more than six days. Javier, however, died on the second day from the onset time. The more credible conclusion is that at the time Javier's wound was inflicted by the appellant, the severe form of tetanus that killed him was not yet present. Consequently, Javier's wound could have been infected with tetanus after the hacking incident. Considering the circumstance surrounding Javier's death, his wound could have been infected by tetanus 2 or 3 or a few but not 20 to 22 days before he died.

The rule is that the death of the victim must be the direct, natural, and logical consequence of the wounds inflicted upon him by the accused. And since we are dealing with a criminal conviction, the proof that the accused caused the victim's death must convince a rational mind beyond reasonable doubt. The medical findings, however, lead us to a distinct possibility that the infection of the wound by tetanus was an efficient intervening cause later or between the time Javier was wounded to the time of his death. The infection was, therefore, distinct and foreign to the crime.

**PEOPLE v. VILLACORTA**

The proximate cause of the death of Cruz is the tetanus infection and not the stab wound. Proximate cause is defined as "that cause, which, in natural and continuous sequence, unbroken by any efficient intervening cause, produces the injury, and without which the result would not have occurred." Here, Cruz was stabbed on Jan. 23, 2002. On Feb. 14, 2002, he was admitted to San Lazaro Hospital for symptoms of severe tetanus infection where he died the next day.

As a rule, the death of the victim must be the direct, natural, and logical consequence of the wounds inflicted upon him by the accused. Where there is doubt, There is a likelihood that the wound was but the remote cause and its subsequent infection, for failure to take necessary precautions, with tetanus may have been the proximate cause of the victim's death with which the petitioner had nothing to do. Here, there was a 22-day interval between the stabbing incident and when Cruz was rushed to San Lazaro Hospital exhibiting symptoms of severe tetanus infection. In cases of severe tetanus, the incubation period is short which is less than 14 days. It can be deduced that that Cruz's stab wound was merely the remote cause, and its subsequent infection with tetanus might have been the proximate cause of Cruz's death.

In the case of **Urbano v. IAC** and **People v. Villacorta**, in both cases, the Supreme Court considered tetanus poisoning as an efficient intervening cause that broke the causal connection between the act of hacking or tubbing and the death of the victim. Almost the same circumstances and facts.

In **Urbano v. IAC,** Urbano hacked Javier using a bolo, Javier ran away from Urbando but Urbano hacked him again on the left leg with the back portion of the bolo, which caused swelling. Javier went to the doctor and said it is not fatal and was allowed to go home. 22 days thereafter, Javier showed signs of tetanus poisoning. The next day, he died of tetanus.

In **People v. Villacorta,** while Cruz was buying bread, Villacorta suddenly appeared and stabbed the left side of his body with a sharpened bamboo stick. Villacorta left, Cruz was brought to the hospital. A non-fatal wound, he was treated as an outpatient, allowed to go home. Twenty-two days thereafter, he showed signs of tetanus poisoning. The next day, he died.

In both cases, the Supreme Court did not convict the accused for the death of the victim. The Supreme Court did not convict Urbano of homicide and did not convict Villacorta of murder because the Supreme Court considered the testimony of the doctor. According to

the doctor, the incubation period for tetanus poisoning is two weeks or 14 days.

Based on this, the Supreme Court said, if the hack wound inflicted by Urbano on Javier, if the stab wound inflicted by Villacorta on Cruz, had severe tetanus germs, both victims could have died within 14 days, but they did not. It was only on the 22nd day that they showed signs of tetanus. So the Supreme Court said, these victims performed acts that brought the tetanus germs on their wounds.

Hence, in both cases, the accused were not held liable. In the case of **Urbano,** there was an amicable settlement. So more liability, in the case of **Villacorta**, the conviction of physical injuries qualified by treachery because the said act was treacherous.

**Q: X and Y were fighting. X stabbed Y. Y sustained a non-fatal wound, an unserious wound. Y was brought to the hospital and while being treated he had some infections in the bloodstream and suffered a respiratory disease. That brought about complications that later caused his death. X is now being prosecuted for homicide. X said no, he can't be liable for homicide. Because according to X, it was the respiratory disorder that brought about the death of the victim, not his act of stabbing the victim.**
**Can X be liable?**
A: X can be held liable. The said infection in the bloodstream, the respiratory disorder, cannot be considered as an efficient intervening cause because were it not for the stabbing, he would not be needing medical intervention. Had he not been in the hospital, he would not be suffering from infection in the bloodstream and respiratory disease. Therefore, the proximate cause was the stabbing of the accused on the victim. Hence, the accused should be held liable.

**CICL XXX v. PEOPLE**

**FACTS:** The accused is a minor and the defense raised by CICL, it is not my fault. It is the fault of his parents that he was brought late to the hospital. So it is the delay in bringing the victim to the hospital that caused the victim's death.

**RULING:** It is settled in jurisprudence that delay in bringing the victim to the hospital is not considered an efficient intervening cause that would break the causal connection between the felonious act and the resulting crime. Therefore, delay in bringing the hospital, in the hospital, cannot be considered as an efficient intervening cause.

## THREE INSTANCES UNDER ART. 14(1)

Three instances where the accused becomes criminally liable for the resulting felony although different from what he intended under Article 4(1):

a. *Abberatio Ictus* or mistake in the blow;
b. *Error in Personae* or mistake in the identity; and,
c. *Praetor Intentionem* or when the consequence went beyond the intention.

### a. ABERRATIO ICTUS

***Aberratio Ictus*** or **Mistake in the Blow** is a situation where the offender directed a blow at his intended victim, but because of poor aim, the blow landed on another person.

Generally, *Abberatio Ictus* will result into two (2) crimes:

1. The crime against the intended victim; and,
2. The crime against the actual victim.

**Art. 48.** *Penalty for complex crimes.* **–** When a single act constitutes two or more grave or less grave felonies, or when an offense is a necessary means for committing the other, the penalty for the most serious crime shall be imposed, the same to be applied in its maximum period.

**NOTE:** If these two (2) crimes happen to be grave or less grave felonies, we apply Art. 48 or the complexity of crimes, hence, the offender will be prosecuted based on one (1) Information only, a complex crime.

But, if one of the resulting crime/s happens to be only a light felony, Art. 48 will not apply, because Art. 48 does not apply to light felonies.

**Q: X was looking for Y. X wanted to take revenge on Y. Y molested his daughter. He has been looking for Y until someone told him that Y is in another town, having a drinking spree. In one of the houses there, the address was given to X because it was the fiesta in the said town. On board his motorcycle, X went to the said town. He went to the said address and sure enough, the gate was open. Y together with four other men in one round table, were having a drink. X positioned himself on the other side of the road, took out his gun, and then thereafter, aimed it at Y and fired but because of poor aim, the bullet did not hit Y, the bullet hit Z, the person next to him. Z died. What crime or crimes are committed by X?**

A: X is liable, in so far as Y is concerned, the intended victim, attempted murder. In so far as Z, the actual victim, the crime is murder. These two grave felonies murder of a single act of firing. So Article 48, complex crime comes in and the crime to be stated in one information, he shall be charged with the complex crime of murder with attempted murder.

**PEOPLE v. FLORA**

**FACTS:** Hermogenes Flora and Oscar had a violent altercation. They were pacified by Oscar's uncle, Ireneo. Days later, Flora and his co-accused attended a party. However, at around 1:30 in the morning, Edwin made a signal to which Hermogenes drew out his .38 caliber revolver and fired twice. The first shot hit Flor and Emerita. While the second shot hit Ireneo. When Rosalie was uttering "si Bodoy, si Bodoy", referring to Hermogenes Flora, Edwin poked a knife at her neck, and threatened to kill her. Thereafter, Edwin and Hermogenes fled the scene. Emerita and Ireneo died, while Flor sustained injuries. Edwin and Hermogenes were charged with the crimes of two (2) counts of Murder and Attempted Murder. In their defense, they interposed alibi.

**ISSUE:** W/N Flora can escape criminal liability on the basis of *aberratio ictus* (NO)

**RULING: NO.** When Hermogenes Flora first fired his gun at Ireneo, but missed, and hit Emerita Roma and Flor Espinas instead, he became liable for Emerita's death and Flor's injuries**.** Hermogenes cannot escape culpability on the basis of *aberratio ictus* principle. Criminal liability is incurred by any person committing a felony, although the wrongful act be different from that which he intended.

The death of Emerita and of Ireneo were attended by treachery. In order for treachery to exist, two conditions must concur namely: (a) the employment of means, methods or manner of execution which would ensure the offender's safety from any defense or retaliatory act on the part of the offended party; and (b) such means, method or manner of execution was deliberately or consciously chosen by the offender. When Hermogenes Flora suddenly shot Emerita and Ireneo, both were helpless to defend themselves. Their deaths were murders, not simply homicides since the acts were qualified by treachery.

**PEOPLE v. ADRIANO**

**FACTS:** While police officers were on their way to Camp Olivas, a speeding blue Toyota Corolla overtook them and a maroon Honda CRV. When the Corolla reached alongside the CRV, one of the passengers of the Corolla shot the CRV causing the vehicle to swerve and fall unto the canal in the road embankment. Thereafter, four (4) armed men alighted the Corolla and proceeded to shot the driver of the CRV, Cabiedes. On occasion of the shooting, a bystander, Bulanan, was hit by a stray bullet. Cabiedes and Bulanan sustained fatal wounds, resulting to their death. Adriano was identified as one of the assailants. He was charged with the crimes of two (2) counts of Murder.

**ISSUE:** W/N Adriano is liable for the death of Bulanan (YES)

**RULING: YES.** Stray bullets, obviously, kill indiscriminately and often without warning, precluding the unknowing victim from repelling the attack or defending himself. At the outset, Adriano had no intention to kill Bulanan, much less, employ any particular means of attack. Logically, Bulanan's death was random and unintentional and the method used to kill her, as she was killed by a stray a bullet, was, by no means, deliberate. Nonetheless, Adriano is guilty of the death of Bulanan under Art. 4 of the RPC, pursuant to the doctrine of aberratio ictus, which imposes criminal liability for the acts committed in violation of law and for all the natural and logical consequences resulting therefrom. While it may not have been Adriano's intention to shoot Bulanan, this fact will not exculpate him. Bulanan's death caused by the bullet fired by Adriano was the natural and direct consequence of Adriano's felonious deadly assault against Cabiedes.

In both cases of **People v. Flora** and **People v. Adriano,** the Supreme Court said that treachery is attendant in so far as the intended felony is concerned and is also present in so far as the actual victim.

So when X fired at Y intending to kill Y treacherously, but instead the bullet hit Z, that same treachery applies to the actual victim. Hence, the crime committed so far as Z is concerned is murder because that victim too is totally without any defense.

**Q: Same problem with twisted facts. X fired at Y to take revenge intending to kill Y. The bullet hit Z. Z was hit in the neck. Z was brought to the hospital. It was a fatal wound but because of immediate**

**medical intervention, Z survived. What crimes are committed by X?**
A: In so far as Y, the intended victim, the crime committed is attempted murder. In so far as Z, the actual victim, the crime committed is serious physical injuries. Why serious physical injuries? Why not frustrated murder? Is the wound of the wounded victim fatal? Why serious physical injuries? Because insofar as Z is concerned, X has no intent to kill Z.

In the *first problem,* even if X has no intent to kill Z, the moment Z died, intent becomes a general criminal intent.

In the *second problem*, since the victim, the actual victim survived, and since X has no intent insofar as the actual victim is concerned, it is only serious physical injuries.

Again, apply Article 48 and complex it. We have attempted murder with serious physical injuries.

**Q: But if in the same problem, the wound sustained by the actual victim was only slight physical injuries. Yes, the bullet hit him but it only grazes the forearm but a minor crime should be filed against X this time.**
A: One is attempted murder, insofar as Y concerned, and the other one is slight physical injury. Why not complex it? Because in the learning book one, the Article 48 of complex crime does not apply to light felonies. It only applies to grave and less grave felonies.

**PEOPLE v. BENDECIO**

**FACTS:** Jerry was heading to the street with his friends but was fetched by his wife and they were now on their way home. But Jerry bumped the accused, Nestor Bendecio. Nestor was mad and shouted, "Anong problema mo?" Jerry was apologetic. Jerry said, Uy Nestor, ako to si Jerry. But Nestor said wala ako pakialam at hindi kita kilala.Thereafter, the wife held Jerry and they both proceeded in moving home.

While Jerry was already closing the door at a distance about an arm length distance, he saw Nestor, armed with a gun, pointed a gun at him, and fired. However, because of poor aim, Jerry wasn't hit. It was his daughter, his seven year old daughter, Jonabelle, who was hit. Jonabelle was brought to the hospital, but she died a day thereafter.

**ISSUE:** What kind of crimes are committed by Nestor Benedecio?

**RULING:** It is a complex crime of murder with attempted murder because it was done treacherously. He deliberately adopted the ways, means, and methods to kill Jerry and at that time totally without any defense. It just so happened that he lost and due to the poor aim that the bullet landed on the sad child who was at the time totally also without any defense.

The Supreme Court said in case of *Abberatio Ictus* or mistake in the blow that treachery is present in the intended victim would also apply insofar as the actual victim is concerned.

The Supreme Court convicted the accused of the complex crime of murder with attempted murder.

**b. ERROR IN PERSONAE**

***Error in Personae* or Mistake in the Identity** is a situation where the offender directed a blow at the person whom he thought to be the intended victim.

In case of mistake in the blow, both the intended victim and actual victim are present in the scene of the crime.

In *error in personae*, the intended victim was not at the scene of the crime. It is only the actual victim. The intended victim is absent; not present in the scene of the crime.

**Art. 49.** *Penalty to be imposed upon the principals when the crime committed is different from that intended.* – In cases in which the felony committed is different from that which the offender intended to commit, the following rules shall be observed:

1. If the penalty prescribed for the felony committed be higher than that corresponding to the offense which the accused intended to commit, the penalty corresponding to the latter shall be imposed in its maximum period.

2. If the penalty prescribed for the felony committed be lower than that corresponding to the one which the accused intended to commit, the penalty for the former shall be imposed in its maximum period.

3. The rule established by the next preceding paragraph shall not be applicable if the acts committed by the guilty person shall also constitute an attempt or frustration of another crime, if the law prescribes a higher penalty for either of the latter offenses, in which

case the penalty provided for the attempted or the frustrated crime shall be imposed in its maximum period

**Q: What is the effect of *error in personae* on the offender's criminal liability?**
A: IT DEPENDS – whether you will apply Art. 49 or not.

Under Art. 49, in case of error in personae, if the intended felony is different from the felony actually committed, the lesser of the two (2) penalties shall be imposed at its maximum period.

But if the intended felony is the same as the actual felony committed, Art. 49 does not apply.

If Art. 49 applies, error in personae will be a mitigating circumstance because it will reduce the penalty to the lighter penalty between the intended penalty and felony actually committed, in its maximum period.

**Q: X boxed Y so hard on the chest that the latter fell on the ground. He fell face down. X went near Y and kicked him. Before leaving, he also kicked Y's butt who was wounded; in severe pain. Y, wanting to get even, stood up with all his force and opened a knife and stabbed the person next to him, thinking it was X. It was not X but rather, his father who came to help Y. Y stabbed his father, resulting to his death. Y is now being prosecuted for Parricide. Based on the facts, if you were the judge, how would you rule?**
A: If I were the judge, I would convict him of Parricide. Since this is a clear case of error in personae, Art. 49 applies. Since there is variance between the intended felony of Homicide and the actual felony of Parricide, applying Art. 49, the lesser penalty shall be imposed. Therefore, although as a judge, I have to convict Y of PARRICIDE, I have to IMPOSE THE PENALTY CORRESPONDING ONLY TO HOMICIDE, which is reclusion temporal. In this case, error in personae mitigates the criminal liability.

**Q: X told Y, you better confess. The year will not end without you being killed. Those were the statements made by X today. Since then, X has been preparing for the time, bought a gun and waited for an opportunity. Four months thereafter, after conducting surveillance for a number of times and knowing that every night, 8pm during weekdays Y would be passing by this place.**

**That day, when X decided to execute the crime, he went to the said place before 8pm and hid behind a big tree. He was waiting for Y to pass, past 8pm someone passed by. X believed it was Y, because Y usually passed at 8pm and X came out from hiding and fired at the said man repeatedly. When the man fell, X went to the man and discovered he was not Y and he is Z.**

**X is now being prosecuted for murder. His defense, he cannot be held liable for the crime of murder because his no intention is against Y. Since he has no intent to kill Z, he cannot be liable for the death of Z. It was a clear error in personae or mistake of identity. Is his defense meritorious?**

A: NO. As held in the case of **People v. Sabalones**, X defense has no merit. The Supreme Court said error in personae or mistake in the identity is not an absolutory cause. It is only a mitigating circumstance if there is a variance between the intended felony and the felony actually committed. Here, there was no variance. The intended felony was murder. The felony actually committed is indeed murder. Therefore, Article 49 does not apply. It will not mitigate the criminal liability of the offender. As held in the case of **People v. Sabalones**, the gravity of the offense is the same whether the crime is committed against the intended victim or against the actual victim. Same gravity. Hence, X is convicted of the crime of murder.

**PEOPLE v. SABALONES**

**FACTS:** At 6'o clock in the evening, Nelson and his group were attending a wedding at the house of Maj. They met Stephen who asked them to drive his car home. Thereafter, Nelson and his group, on board Stephen's car and an owner-type jeep, drove to the residence of Stephen. However, when they arrived at the gate of the house of Stephen, an armed group fired at the jeep. Despite his injury, Nelson was able to maneuver the car back to their residence. Two (2) members of Nelson's group died and others were injured. Sabalones and his co-accused were charged with two (2) counts of Murder and three (3) counts of Frustrated Murder.

**ISSUE:** W/N *aberratio ictus* is applicable in this case. (NO)

**RULING:** NO. The Court has held that "mistake in the identity of the victim carries the same gravity as when the accused zeroes in on his intended victim." The case is better characterized as error personae or mistake in the identity of the victims, rather than *aberratio ictus* which means mistake in the blow, characterized by aiming at one but hitting the other due to imprecision in the blow.

In this case, evidence sufficiently showed that Sabalones and his co-accused believed that they were suspected of having killed the recently slain Nabing Velez, and that they expected his group to retaliate against them. Hence, upon the arrival of the victims' vehicles, which they mistook to be carrying the avenging men of Nabing Velez, they opened fire. Nevertheless, the fact that they were mistaken does not diminish their culpability.

The Supreme Court said in case of *Abberatio Ictus* or mistake in the blow that treachery is present in the intended victim would also apply insofar as the actual victim is concerned.

The Supreme Court convicted the accused of the complex crime of murder with attempted murder.

**BAR Q: What if X, wanting to get even with Y, went to the worksite of Y. Upon seeing Y, X armed with a piece of wood, began hitting Y without any warning. Y did not put a defense as the attack was sudden.**

**When X saw that Y was already down on the ground and in pain, X left. X had no intention to kill Y. His only intention was to injure him. As X was leaving, he saw Y coming inside the worksite. He was shocked. He has just seriously injured Y and now Y is in front of him.**

**When X looked back, it was only at that time that he realized that the person that he seriously injured was the identical twin brother of Y.**

**The twin brother filed a case of Serious Physical Injuries against X. X's defense is that he cannot be held liable for Serious Physical Injuries because, according to him, he has no intention to injure the twin brother. His intention was to injure Y, not the said twin brother. Therefore, according to X, he cannot be held criminally liable for Serious Physical Injuries because there is the presence of error in personae or mistake in the identity. Is X's defense correct?**

A: NO. X's defense is wrong. As held in the SC in the case of **People v. Sabalones**, error in personae or mistake in the identity is not an absolutory cause. It is not an exempting circumstance.

It can only be mitigating if there is a variance. In this case, there was no variance between the intended felony and the felony actually committed. Therefore, since Art. 49 will not apply, X shall be held criminally liable for Serious Physical Injuries although it was done on a different victim.

**Q:X and Y are fighting. X punched Y two times in the chest, Y fell on the ground. When Y was down on the ground, X went to him and kicked him more, two times, also in the chest. Y was shouting in pain. X left the scene. When X left the scene, Y, who couldn't accept defeat, tried to stand up. As he was standing up, believing that X was still there, Y was secretly opening his balisong and when he was already upstanding he suddenly stabbed the man next to him thinking he was X. But X had already left. The man he stabbed was his own father. He stabbed the father right in the heart. He was shocked to see his father. His father was there because his father saw how he was attacked by X and the father wanted to help Y. Y brought his father to the hospital but the father died. Y is now being prosecuted for the crime of Parricide. If you are the judge, are you convicting Y for the crime of Parricide? What penalty will you impose on Y? Will you impose the penalty as provided for under Article 246 for Parricide which is reclusion perpetua to death? or Will you impose the penalty for homicide under Article 249, Reclusion Temporal?**
A: Here, there is a variance between the intended felony and the felony actually committed. Y's intended felony was to stab which is homicide but the crime he actually committed was a parricide because he stabbed his own father.

However, since there is a variance between the intended felony homicide and the resulting felony parricide, then Article 49 applies, the lesser of the two penalties shall be the one imposed in its maximum period.

Therefore, as the judge, you have to convict Y of parricide but the penalty would only be reclusion temporal in its maximum period based on Article 49 of the RPC.

### c. PRAETER INTENTIONEM

**P*raeter Intentionem*** or **when the consequence went beyond the intention** is a situation where the offender directed a blow against the victim, the latter receiving it but the injurious effects are far greater than what would have been foreseen from the acts done by the offender.

**ELEMENTS:**

1. That a felony has been committed; and
2. That there is a notable disparity between the means employed by the offender and the resulting felony.

No one could have foreseen that out of the offender's act, this felony would result.

Whenever *praeter intentionem* is present, it is considered as a mitigating circumstance because it is expressly provided for under Art.13(3) that the offender has no intention to commit so grave a wrong as that committed. It is always and always a mitigating circumstance if the elements were proven.

**PEOPLE v. SALES**

**FACTS:** Noemar and Junior attended a parade of Our Lady of Peñafrancia without their parents' permission. Their mother found them the following day in the nearby barangay. When they reached home, Sales was furious and proceeded to whip them with a stick which was later broken. Thereafter, he brought his children outside their house and tied their hands and feet to a coconut tree. While being tied, Noemar and Junior were continuously being beaten with a thick piece of wood. When they returned inside the house, the mother noticed several injuries on Junior and Noemar, including a crack on Noemar's head. Noemar suddenly collapsed and lost consciousness. Despite the efforts of the mother to revive Noemar, he remained motionless and he was pronounced dead. Sales was charged with the crime of Parricide.

**ISSUE:** W/N praeter intentionem should be appreciated (NO)

**RULING:** NO. In order that a person may be criminally liable for a felony different from that which he intended to commit, it is indispensable (i) that a felony was committed and (ii) that the wrong done to the aggrieved person be the direct consequence of the crime committed by the perpetrator. Here, there is no doubt appellant in beating his son, Noemar, and inflicting upon him physical injuries, committed a felony. As a direct consequence of the beating suffered by the child, he expired. Appellant's criminal liability for the death of his son, Noemar, is, thus, clear.

There is mitigating circumstance of voluntary surrender but not lack of intention to commit so grave a wrong. Appellant adopted means to ensure the success of the savage battering of his sons. He tied their wrists to a coconut tree to prevent their escape while they were battered with a stick to inflict as much pain as possible. Noemar suffered injuries in his face, head and legs that immediately caused his death.

The mitigating circumstance of lack of intent to commit so grave a wrong as that actually perpetrated cannot be appreciated where the acts employed by the accused were reasonably sufficient to produce and did actually produce the death of the victim, such as when the accused adopted means to ensure the success of the savage battering of his sons.

**NOTE:** In the case of **People v. Sales,** the SC in convicting Sales of Parricide, did not appreciate *praeter intentionem.* The acts done by Sales, repeatedly beating his son with the piece of wood, would indeed produce the death of the boy. There was no notable disparity between the means employed and the resulting crime which is the death of the child.

**Q: When the mother arrived at home there was no power in their house. But in the neighborhood there was and so the mother asked the children, Why? How come our house has no power? And the children told their mother that their eldest brother sold the electric wires. So the mother confronted the son, why did you sell the electric wires? The son said, because he needed money for a project in school. The teacher said, everybody must submit a project and he has been asking for money from his mother but the mother is not giving him money. He has to buy materials for the project in school. The mother got mad. The mother cut the broom and repeatedly hit the head of the son.**

**With the same, the son became unconscious. The following morning, the mother was trying to get the son to bring him to the dining table. The son could not even afford to stand up. There was urine on the bed. There was urine on the floor. It means the said son could not afford to go to the restroom to urinate. When the said son was already at the dining table, he could not even lift the spoon. The mother got mad because of that the mother again took the broom, hit the son again. Not satisfied, the mother took the handle of the broom and inserted it in the mouth of his son. The son lost consciousness. The other children were crying. The neighbors arrived. The son was brought to the hospital and died. The mother is now being prosecuted for the crime of parricide. Should she be given the benefit of *praeter intentionem* and so as to mitigate her criminal liability?**

A: NO. The Supreme Court said based on the facts of the case, it is evident that the mother wanted to kill the son. When the son became unconscious, the first act of a mother would be to bring the son to the nearest hospital but she became very mad and took again the broom, hit the son, and even inserted a

handle in the mouth. The Supreme Court said, this act would definitely bring about the death of the son. That woman is not entitled to *praeter intentionem* and convicted for parricide without the benefit of *praeter intentionem.*

**Q: The husband and the wife were fighting over financial matters. The wife kept on nagging and the two (2) continued shouting until the husband got so mad over the wife, resulting in the former punching the neck of his wife.**

**Since at the time, the wife was walking towards the dining area, she lost control of her balance and fell on the floor. It was a bad fall; her head hit the cemented pavement. Because of that, there was bleeding, she went into coma, and then, her death ensued.**

**The husband is now prosecuted for the crime of parricide. Is he liable for the said crime?**

A: YES. he is liable for Parricide under the Proximate Cause Doctrine. All the elements are present. First element: The intended act is a felonious act. Punching the wife on the neck is a felonious act. Second element: It resulted to a felony, the death of the wife. Third element: The said Parricide is the direct, natural, and logical consequence of the husband's felonious act.

**Q: In case of admission, can he be given the benefit of *praeter intentionem*?**

A: YES. The husband is entitled to the mitigating circumstance of *praeter intentionem*. All the elements are present. First element: A felony has been committed. Second element: There was a notable disparity between the means employed and the resulting death.

No one could have foreseen that out of one's punch on the neck, death would immediately proceed. Therefore, the husband shall be given the benefit of *praeter intentionem*.

**BAR EXAM TIP:** If you noticed, when I answer a problem, I took time to state the elements and explain/apply it because I want you to answer that way in the exam and in the Bar. Always connect the elements to the facts of the case.

## PARAGRAPH 2
## IMPOSSIBLE CRIME

An **impossible crime** is one wherein the act done would have amounted to a crime against persons or property, but it is not accomplished because of its inherent possibility, or employment of ineffectual or inadequate means.

In reality, an impossible crime is not indeed a crime. There is no disturbance of the public order because the act is not accomplished. The act did not produce into a crime. There is that inherent impossibility for the act to consummate into a crime.

However, the offender shall be prosecuted for an impossible crime in order to prevent or to punish his criminal tendency or criminal perversity. So, he shall be charged with an Impossible Crime under Art. 4(2) in relation to Art. 59.

**ELEMENTS:**

1. The act done would have amounted to a crime against persons or property;

   **NOTE:** Based on the first element, there can only be an impossible crime if the act had been accomplished would amount to any of the crimes under Title VIII, Crimes Against Persons, or any of the crimes under Title X, Crimes Against Property.

   In crimes against public order, in crimes against personal liberty and security, in crimes against justice, it is not applicable. Only in crimes against persons and/or property.

2. The act was done with evil intent;

   **NOTE:** The act was not linked to human death. As I said earlier, the offender is being punished for his criminal tendency.

3. The act was not accomplished because of its inherent impossibility, or the employment of inadequate or ineffectual means; and,

4. The act does not fall under any other provision of the RPC.

   **NOTE:** Impossible crime is a crime of last resort. You can only file a case of an impossible crime if the act done does not constitute any other violation of the RPC. If the act done would fall under any other provision of the RPC, that is the proper charge and not an impossible crime.

**Q: X abducted Y, wanting to extort ransom from the family of Y. Before calling the parents of Y, the police**

**arrived and arrested X. After investigation, since the ransom failed, the police filed a case of Impossible Crime of Kidnapping for Ransom against X. If you are the public prosecutor, how will you resolve it?**
A: As the public prosecutor, you have to DISMISS THE COMPLAINT. The first element is immediately absent because kidnapping for ransom is under Title 9 – a crime against personal liberty and security under Art. 267. There can never be an impossible crime for kidnapping with ransom. The second element is present; that the act was done with evil intent. The third element is not present. The act is already accomplished. Under Art. 267, the law does not require that the ransom is paid. All the law requires is that the purpose is to extort which was already committed. The first and third element not being met, the proper crime charged should be Kidnapping with Ransom.

## INTOD v. CA

**FACTS:** Intod and his group went to the house of Mandaya. They asked Mandaya to go with them to the house of Palangpangan. Thereafter, they had a meeting with Dumalagan. Intod told Mandaya that he wanted to kill Palangpangan because of a land dispute between them and that Mandaya should accompany his group, otherwise, he would also be killed. Intod and his group arrived at the house of Palangpangan. After Mandaya pointed to the location of Palangpangan's bedroom, Intod and his group fired at the room. However, it turned out that Palangpangan was in another city and her home was then occupied by her son-in-law and his family. No one was injured on occasion of the shooting. Intod was charged with the crime of Attempted Murder.

**ISSUE:** Whether or not Intod is liable for an Impossible Crime (YES)

**RULING:** YES. To be impossible under Art. 4(2), the act intended by the offender must be by its nature one impossible of accomplishment. There must be either (i) legal impossibility, or (ii) physical impossibility of accomplishing the intended act in order to qualify the act as an Impossible Crime. Legal impossibility occurs where the intended acts, even if completed, would not amount to a crime.

Thus, legal impossibility would apply to those circumstances where (i) the motive, desire and expectation is to perform an act in violation of the law; (ii) there is intention to perform the physical act, (iii) there is a performance of the intended physical act; and (iv) the consequence resulting from the intended act does not amount to a crime.

On the other hand, factual impossibility occurs when extraneous circumstances unknown to the actor or beyond his control prevent the consummation of the intended crime. One example is the man who puts his hand in the coat pocket of another with the intention to steal the latter's wallet and finds the pocket empty.

The case at bar belongs to this category. Garcia shot the place where he thought his victim would be, although in reality, the victim was not present in said place and thus, Garcia failed to accomplish his end.

In our jurisdiction, impossible crimes are recognized. The impossibility of accomplishing the criminal intent is not merely a defense, but an act penalized by itself. Furthermore, the phrase "inherent impossibility" that is found in Art. 4(2) of the RPC makes no distinction between factual or physical impossibility and legal impossibility. *Ubi lex non distinguit nec nos distinguere debemos.*

In this case, the Supreme Court said we have two kinds of inherent impossibility. We have legal impossibility and the other one is physical or factual impossibility.

There is **legal impossibility** when all the intended acts, even if accomplished, do not amount to a crime.

There is **physical or factual impossibility** when extraneous circumstances unknown to the offender prevented the consummation of the crime.

The example given by the Supreme Court for **legal impossibility** is killing a dead person. The Supreme Court said, there is legal impossibility. Even if the offender performed all the elements of murder, all the elements of homicide, the crime of murder, the crime of homicide will not arise because the person killed is already dead. So it is an impossible crime of murder, an impossible crime of homicide. There is legal impossibility.

The other kind is **physical or factual,** the example given by the Supreme Court is when a person inserts his hand inside the bag of another, wanting to take the things in the bag. But the bag was empty. The Supreme Court said it is an impossible crime because circumstances are unknown to the offender and prevented the consummation of the crime. Hence, he was not able to consummate the crime of theft.

## JACINTO v. PEOPLE

**FACTS:** Jacinto was the then collector of Mega Foam International, Inc. She received a BDO check in the amount of P10,000.00 representing the payment for the purchases of a customer, Aquino. However, she deposited the check to the Land Bank account of Generoso, who was the husband of her sister. Another employee, Ricablanca, received a phone call from a customer and learned that the customer was instructed by Jacqueline to make check payments to Mega Foam payable to cash. Thereafter, she received another call from an employee of Land Bank informing her that the BDO check deposited in the account of Generoso was dishonored. Later on, Valencia divulge to Ricablanca the plan to take the cash and divide it equally among themselves. The plan was reported by Ricablanca to the owner of Mega Foam. With the assistance of the NBI, an entrapment operation was conducted which led to the arrest of Jacinto and her co-accused. They were charged with the crime of Qualified Theft.

**ISSUE:** W/N Jacinto should be convicted of Qualified Theft (NO)

**RULING:** NO. Under Art. 4(2), the act performed by the offender cannot produce an offense against persons or property because: (i) the commission of the offense is inherently impossible of accomplishment; or (ii) the means employed is either inadequate or ineffectual. To be impossible under this clause, the act intended by the offender must be by its nature one impossible of accomplishment. There must be either legal impossibility, or physical impossibility of accomplishing the intended act in order to qualify the act as an impossible crime.

Legal impossibility occurs where the intended acts, even if completed, would not amount to a crime. The impossibility of killing a person already dead falls in this category.

Factual impossibility occurs when extraneous circumstances unknown to the actor or beyond his control prevent the consummation of the intended crime.

Ex.: A man puts his hand in the coat pocket of another with the intention to steal the latter's wallet, but gets nothing since the pocket is empty.

In the case at bar, herein petitioner's case is closely akin to the above example of factual impossibility. In this case, petitioner performed all the acts to consummate the crime of Qualified Theft, which is a crime against property. Petitioner's evil intent cannot be denied, as the mere act of unlawfully taking the check meant for Mega Foam showed her intent to gain or be unjustly enriched. Were it not for the fact that the check bounced, she would have received the face value thereof, which was not rightfully hers. Therefore, it was only due to the extraneous circumstance of the check being unfunded, a fact unknown to petitioner at the time, that prevented the crime from being produced. The thing unlawfully taken by petitioner turned out to be absolutely worthless, because the check was eventually dishonored, and Mega Foam had received the cash to replace the value of said dishonored check

**Q: X went to an exhibit of Y. He found a painting and discovered that his stolen painting was in the exhibit. X wanted his painting so he later went to the house of Y and took the painting. What crime is committed? Is X liable for an Impossible Crime of Robbery?**
A: NO. X is not liable for Robbery. In Robbery or Theft, it is essential that the thing taken belongs to another person. In this case, the thing taken by X belongs to him. Therefore, in doing the act of taking, there is no intent to gain; thus, he cannot be liable.

Is he liable for the said Impossible Crime of Robbery? First element: The crime, if accomplished, would have amounted to a crime against property. Second element: The act was done with evil intent. Third element: The act was not accomplished because of its inherent impossibility; robbery cannot be accomplished because the thing he took does not belong to another person. Fourth element: The fourth element is absent; the act done would fall under another provision in the RPC which is Trespass to Dwelling.

Based on the last element, impossible crimes are crimes of last resort; you can only file impossible crimes if the acts done would not fall under any provision under RPC. If any act would constitute another violation under the RPC, that is the proper charge and not an impossible crime.

**2024 BAR Q: Taylor received Harry in her house and told him to feel at home. Inside the house, Harry planned to steal money from Taylor and covertly got hold of her cellphone. Harry tried to access Taylor's electronic wallet account. After several attempts, Harry successfully opened Taylor's electronic wallet but it has zero balance. Harry returned Taylor's cellphone and left the house disappointed. Harry was charged with and convicted of impossible crime of theft. Is Harry liable for the impossible crime of theft?**
A: YES. The act done may have been accomplished if there is no inherent impossibility. There is inherent impossibility, that is physical or factual impossibility.

Under any circumstances, he cannot get the money because it is a zero balance. The act doesn't hold under any other provision of the RPC. The intent of Harry was not on the cellphone, but on the money, on that electronic money. That was the intent of Harry, to get the money from the e-wallet, not the cellphone.

It would be different if the intention was to get the cellphone and then after you returned the cellphone, that is consummated theft. Hence, the crime committed is an impossible crime of theft.

**BAR Q: X arrived home. He caught his wife having sex with another man. He filed a case of adultery against his wife and her paramour. The public prosecutor found that the wife was actually born a man, but had her sex changed to a woman. Thus, adultery does not lie against her. The prosecutor filed against the wife a crime of impossible crime of adultery. Is the prosecutor correct?**
A: NO. The first element is immediately absent because the crime of adultery is a crime against chastity, not a crime against persons or property. Therefore, impossible crime does not lie.

**BAR Q: X kidnapped Y and extorted for ransom from the parents of Y. However, even before X was able to communicate to the parents of Y to ask for ransom, the police already arrived, rescued the boy, and arrested him and brought to the police station. Thereafter, the police officers filed a complaint for kidnapping for ransom before the Office of Prosecutor. After reading the facts of the case, the narration, and everything during the investigation, the office of the public prosecutor filed a case of impossible crime of kidnapping for ransom. Is the crime charged correct?**
A: NO. The crime charge is wrong. First, there can never be an impossible crime of kidnapping for ransom because kidnapping for ransom is under Title IX. It is a crime against personal liberty and security. It is not a crime against a person, it is not a crime against property. Second, under Article 267 of the RPC, kidnapping for ransom is committed the moment the purpose of the kidnapping is to extort ransom. The law doesn't require that ransom be communicated. The law does not require that ransom be paid. It suffices that they communicate the intent of the offender in kidnapping another for extortion. In this case, it was stated that X was abducted Y intending to extort ransom from the parents that will suffice, hence, itis already kidnapping for ransom.

**Q: X had been looking at the cellphone. X followed Y and they were already in a portion of the street, then X told Y "This is a holdup. Give me the phone or I will stab you." Y gave the phone and ran away. X looked at the phone and noticed that it looks exactly like the one he lost a week ago. And indeed, it was his phone. He was arrested and charged with an impossible crime of robbery. Is he liable?**
A: No. The act done would have amounted to simple robbery because it was done with intimidation. The act was done with evil intent. However, the act was not accomplished because of its inherent impossibility. Robbery would not arise because it is necessary that the thing taken must belong to another. There is legal impossibility. However, the last element is absent. The act done would fall under any other provision of the RPC which is grave coercion by compelling someone by means of violence or intimidation to do an act against his will. Hence, X would not be charged with an impossible crime of robbery, but grave coercion under Art 286, in particular, compulsive coercion.

## C. DUTY OF THE COURTS (ART. 5)

**Art. 5.** *Duty of the court in connection with acts which should be repressed but which are not covered by the law, and in cases of excessive penalties.* - Whenever a court has knowledge of any act which it may deem proper to repress and which is not punishable by law, it shall render the proper decision, and shall report to the Chief Executive, through the Department of Justice, the reasons which induce the court to believe that said act should be made the subject of legislation.

In the same way, the court shall submit to the Chief Executive, through the Department of Justice, such statement as may be deemed proper, without suspending the execution of the sentence, when a strict enforcement of the provisions of this Code would result in the imposition of a clearly excessive penalty, taking into consideration the degree of malice and the injury caused by the offense.

**Q: Police officers arrested X because X was performing a pervert act. The investigating prosecutor could not find any violation of the law. What should the resolution of the public prosecutor be?**

A: The prosecutor should not charge him in court because under Art. 5 of the RPC, if a person is charged in court, and the court finds that the act of which he was charged was not defined and penalized by any other law, the court must dismiss the case. DO NOT SAY ACQUIT THE ACCUSED. Acquittal comes after trial on the merits.

Under Art. 5, the court may, through the DOJ, recommend that this act be subject of a penal legislation. If a judge tried the case and all the elements have been proven, even if the judge took pity on the accused under the circumstances, the judge has no recourse but to impose the penalty prescribed by law. Judges only apply the penalty. However, the judge, through the SOJ can recommend to the President that this accused be given clemency.

## D. STAGES IN THE EXECUTION OF A FELONY (ART. 6)

**Art. 6.** *Consummated, frustrated, and attempted felonies.* - Consummated felonies as well as those which are frustrated and attempted, are punishable.

A felony is consummated when all the elements necessary for its execution and accomplishment are present; and it is frustrated when the offender performs all the acts of execution which would produce the felony as a consequence but which, nevertheless, do not produce it by reason of causes independent of the will of the perpetrator.

There is an attempt when the offender commences the commission of a felony directly or over acts, and does not perform all the acts of execution which should produce the felony by reason of some cause or accident other than this own spontaneous desistance.

### TWO PHASES IN THE COMMISSION OF THE CRIME

1. **SUBJECTIVE PHASE** - this is the portion in the commission of the act wherein the offender commences the commission of the crime up to the time that the offender still has control over his acts. The offender can either proceed with the commission of the crime or desist. If he desisted, he does not incur criminal liability.

2. **OBJECTIVE PHASE -** the moment the offender loses control over his acts, he is already in the objective phase of committing a felony.

**Stages in the Execution of a Felony**

1. Attempted;
2. Frustrated; and
3. Consummated.

### ATTEMPTED STAGE

There is an attempt when the offender commences the commission of a felony directly by over acts, and does not perform all the acts of execution which should produce the felony by reason of some cause or accident other than this own spontaneous desistance.

**ELEMENTS:**

1. That the offender commences the commission of a felony directly by overt acts;
2. That the offender was not able to perform all the acts of execution; and

3. The offender was not able to perform all the acts of execution by reason of some cause or accident other than his own spontaneous desistance.

**First element - that the offender commences the commission of a felony directly by overt acts**

This is the most important element. It simply means that the attempted felony that is punished by the law is the one that is directly connected to the overt act committed by the offender. So, the basis is the overt act done by the offender although he may have a different crime in mind.

It is necessary that the attempted felony charge is that which is directly connected to the overt act although the offender may have a different crime in mind.

**Second and third element - The offender was not able to perform all the acts of execution by reason of some cause or accident other than his own spontaneous desistance**

Based on the second and third element, the offender was not able to consummate the crime by reason of some cause or accident other than his own spontaneous desistance; therefore, if the reason for the non-consummation of the crime in the attempted stage is desistance, it negates criminal liability.

**Reason:** The reason is that in the attempted stage the offender is still in the subjective phase of committing the felony. The offender begins the commission of the felony up to the time that he still has control over his acts. He may proceed to consummate the crime, or he may desist. Desistance negates criminal liability in the attempted stage. It absolves the offender of the criminal liability if he desisted in the attempted stage.

However, if the desistance comes in the frustrated and consummated stage, no amount of desistance will negate criminal liability because in these stages, the offender has performed all the acts of execution and nothing more is left for him to do. Hence, it is only in the attempted stage where it negates criminal liability.

## INDETERMINATE OFFENSE

The overt act in relation to the intent of the offender is ambiguous. Out of the overt act, you cannot know what the real intent of the said offender was.

You cannot charge a person with an indeterminate offense because according to SC, an indeterminate offense has no juridical standpoint in the RPC; hence, you can only charge the offender for the crime which is directly connected to the overt act done by him.

**Overt Act**

It refers to any external act which if allowed to continue will naturally and logically ripen into a crime. What the law requires is that the overt act must be directly connected to the intended felony. The offender commences the commission of the crime directly by overt act.

**Directly by Overt Act**

It means that the overt acts performed by the offender must be directly connected to the intended felony. The attempted felony that is punished by law is one which is directly connected to the overt act performed by the offender although he has admitted the crime.

In both cases of *Lamahang v. People* and *Baleros v. People*, the SC made mention of an indeterminate offense.

### PEOPLE v. LAMAHANG

**FACTS:** While patrolling on the streets of Iloilo City, Policeman Tomambing caught Lamahang in the act of making an opening on the wall of a store of cheap goods with the use of an iron bar. Lamahang only succeeded in breaking one board and in unfastening another from the wall, when the policeman showed up and arrested him. He was charged with the crime of Attempted Robbery.

**ISSUE:** Whether Lamahang should be convicted of Attempted Robbery. (NO)

**RULING:** The SC said what we have is an attempt to commit an **indeterminate offense**. Once inside, he may do other things not necessarily to rob the store. Therefore, he can only be held liable for attempted trespass to dwelling.

An attempt to commit an offense is that which has a logical relation to a particular or concrete offense, which is the beginning of the execution of the offense by overt acts of the perpetrator, leading to its realization and consummation. It is not sufficient that an act objectively performed constitutes a mere beginning of execution; it is necessary to establish its unavoidable connection with the deed which upon its consummation will develop into one of the offenses defined and punished by this Code.

Thus, in case of Robbery, in order that the simple act of entering by means of force or violence another person's dwelling may be considered an attempt to commit this

offense, it must be shown that the offender clearly intended to take possession, for the purpose of gain, of some personal property belonging to another.

Here, records established that Lamahang was making an opening by means of an iron bar on the wall of Yu's store. Hence, it may only be inferred as a logical conclusion that his evident intention was to enter by means of force in the said store against the will of its owner. However, his final objective, once he succeeded in entering the store, was to rob, to cause physical injury to the inmates, or to commit any other offense, was not supported by the records.

## BALEROS v. PEOPLE

**FACTS:** Early in the morning, Baleros entered the room of Malou, and tightly pressed on her face a piece of cloth soaked with chemicals while pinning her down on the bed. Malou was awakened and struggled to fight off Balaeros. She was able to free her right hand and proceeded to squeeze the sex organ of Baleros.
Thereafter, Baleros let her go and escaped. He was charged with the crime of Attempted Rape.

**ISSUE:** Whether Baleros should be convicted of Attempted Rape (NO)

**RULING:** The attempt which the Penal Code punishes is that which has a logical connection to a particular, concrete offense; that which is the beginning of the execution of the offense by overt acts of the perpetrator, leading directly to its realization and consummation.

Overt act has been defined as some physical activity or deed, indicating the intention to commit a particular crime, more than a mere planning or preparation, which it carried out to its complete termination following its natural course, without being frustrated by external obstacles nor by the voluntary desistance of the perpetrator, will logically and necessarily ripen into a concrete offense.

As it were, Baleros did not commence at all the performance of any act indicative of an intent or attempt to rape Malou. Baleros was fully clothed and that there was no attempt on his part to undress Malou, let alone touch her private part. The Information contained an allegation that he forcefully covered the face of Malou with a piece of cloth soaked in chemicals.

Verily, while the series of acts committed by the Baleros do not determine Attempted Rape, they constitute unjust vexation punishable as Light Coercion under the second paragraph of Art. 287 of the RPC. That Malou, after the incident in question, cried while relating to her classmates what she perceived to be a sexual attack and the fact that she filed a case for Attempted Rape proved beyond cavil that she was disturbed, if not distressed by the acts of petitioner.

**NOTE:** In the cases of **Lamahang v. People** and **Baleros v. People**, in both instances, the SC did not convict the accused of the crime charged.

In the case of **Lamahang v. People**, the accused was charged with Attempted Robbery. The SC said that it cannot be Attempted Robbery because his overt act of opening the store with the use of an iron bar is not directly or in any way connected with Robbery. What we have is an attempt to commit an indeterminate offense. Once inside, he may do other things not necessarily to rob the store. Therefore, he can only be held liable for Attempted Trespassing.

In the case of **Baleros v. People**, the overt act of pressing a cloth soaked with chemical on the face of a woman is not directly connected to the crime of rape. The SC said that the obvious intent of Baleros was to make Malou unconscious by pressing a cloth soaked with chemicals on her face. However, the moment Malou becomes unconscious, Baleros may do any other act not necessarily to rape the woman; he may rape, commit acts of lasciviousness, rob, or kill her. The said overt act of pressing a cloth soaked with chemicals on the face of Malou is not directly connected to rape. Hence, SC said that it cannot be considered as Attempted Rape. He is just convicted with unjust vexation which is a form of Light Coercion under Art. 287 of RPC.

**Q: X in going home chanced upon Y. He has long been wanting to kill Y. X opened the cabinet of clothes of their house and found a gun. X shot Y. But the gun jammed and the bullet did not come out. What crime, if any, was committed by X?**
A: Attempted homicide. The overt acts - aiming the gun at Y, pulling the trigger with intent to kill Y, are acts directly related to homicide. He was unable to perform all acts of execution because the gun was jammed, not by his spontaneous desistance.

**What if X fired the gun but it turned out the gun was not loaded. Is X liable for any crime?**
A: Impossible crime of homicide. Under any and all circumstances, a gun without a bullet will not kill a person. There is an inherent impossibility to consummate the

crime. Thus, X is liable for the impossible crime of homicide.

**Q: X parked his car in front of the gate. She was about to go to the gate in order to open it then here comes Y. Y pointed a knife at X and told X, "Give me the key, or I am going to stab you!" Because of this, X gave the key to Y. Thereafter, Y forcibly told X to enter back inside her car. Suddenly, the police arrived and arrested Y. Y was charged with attempted kidnapping. Is Y liable as charged for attempted kidnapping?**

A: NO, Y is not liable for attempted kidnapping. The overt acts performed by Y (i.e., asking for the key at knifepoint, forcing X to go back to her car) are not directly connected to kidnap a person. Therefore, it cannot be attempted kidnapping. It is also an indeterminate offense. The moment he told X to go back to his car, Y may drive away the car, he may rape X or Y may kill X there. When we say there is an indeterminate offense, the overt act of the offender in relation to his criminal intent is ambiguous. Therefore, in this case, the said charge for attempted kidnapping would not prosper.

## ATTEMPTED FELONY V. IMPOSSIBLE CRIME

| ATTEMPTED FELONY | IMPOSSIBLE CRIME |
|---|---|
| Evil intent is possible of accomplishment all the acts of execution. | Evil intent is not possible of accomplishment. |
| The crime was not accomplished by reason of some cause or accident other than the offender's own spontaneous desistance. | The crime was not accomplished because of its inherent impossibility |

**Q: X was in need of money. His son was in the hospital. When X was walking towards home in this vicinity, he took notice of a big house. Upon looking at the house, he saw that all windows were open. Because of that, he believed that it would be very easy for him to enter and rob the house. Indeed, he jumped over the fence, climbed the house, entered the house hoping to take all valuables to sell it to have money. The moment he entered the house, however, X was disappointed and frustrated. The house was empty, it contained nothing. So, he went down the house very sad.**

**As he was leaving the house, as he opened the gate, there were already 3 Brgy. Tanods waiting for him and he was apprehended. These Brgy. Tanods earlier saw him enter the house passing through the window. They did not apprehend him inside because they knew he would not be able to take anything because the house was empty.**

**At the police station after investigation, X was charged by the police before the Office of the Public Prosecutor for the crime of Attempted Robbery. In the counter-affidavit filed by X, he was insisting, if ever he was liable, it would be an impossible crime and not attempted robbery. If you were the public prosecutor assigned in the case, of what crime would you indict X?**

**A:** You have to indict X for violation of Article 281 Trespass to Property.

It cannot be attempted robbery because X's act of entering the house is NOT DIRECTLY CONNECTED to intent to gain, it is not directly connected to intent to rob. It didn't show his intention to rob. It is an indeterminate offense. Once inside, he can do any other things, not necessarily to rob, although that was the thing in his mind.

**However**, his overt act of entering would not reveal intent to gain. Therefore, it cannot be attempted robbery.

It is **not also an impossible crime** because the 4th element of an impossible crime is absent - **the act must not fall under any other provision of the RPC**. In this case, his act would constitute another violation of the RPC. He entered an uninhabited place. The said house was uninhabited, no one inside, nothing inside.

Therefore, it amounted to another form of trespass, otherwise known as **Trespass to Property under Article 281.** Since it constituted another violation of the RPC, it cannot be an impossible crime because **an impossible crime is a crime of last resort.** You can only file it if the act done by the offender would not constitute another violation of the RPC.

## FRUSTRATED STAGE

A felony is frustrated when the offender performs all the acts of execution which would produce the felony as a consequence but which, nevertheless, do not produce it by reason of causes independent of the will of the perpetrator.

**ELEMENTS:**

1. That the offender has performed all the acts of execution to produce the felony; and
2. The felony was not produced by reason of causes independent of the will of the perpetrator.

## ATTEMPTED FELONY V. FRUSTRATED FELONY

| ATTEMPTED FELONY | FRUSTRATED FELONY |
|---|---|
| Offender merely commences the commission of a felony.<br><br>He has not yet performed all the acts of execution. | Offender has already performed all the acts of execution. Nothing more is left to do. |
| The felony was not produced by reason of some cause or accident other than the offender's spontaneous desistance. | The felony was not produced by reason of causes independent of the will of the perpetrator. |
| Offender is still in the subjective phase in committing the felony. | Offender is already in the objective phase of committing the felony. He has no more control of his acts. |

## PEOPLE v. LABIAGA

**FACTS:** Labiaga and his co-accused were outside the house of Gregorio. When Labiaga was approximately five (5) meters away from Gregorio, the former suddenly shot the latter. Gregorio called Judy for help. However, when Judy rushed to aid him, Labiga shot her in the abdomen. Thereafter, Labiaga and his co- accused fled the scene. Judy was pronounced dead on arrival at the hospital, while Gregorio was able to recover after receiving medical treatment. Labiaga and his co-accused were charged with the crimes of Murder with the Use of Unlicensed Firearm and Frustrated Murder with the Use of Unlicensed Firearm.

**ISSUE:** Whether Labiaga should be convicted of Murder and Frustrated Murder (NO)

**RULING:** There is an attempt when the offender commences the commission of a felony directly by overt acts, and does not perform all the acts of execution which should produce the felony by reason of some cause or accident other than his own spontaneous desistance.

In *Serrano v. People*, the Court distinguished a frustrated felony from an attempted felony in this manner:

1. In a frustrated felony, the offender has performed all the acts of execution which should produce the felony as a consequence; whereas in an attempted felony, the offender merely commences the commission of a felony directly by overt acts and does not perform all the acts of execution.

2. In [a] frustrated felony, the reason for the non-accomplishment of the crime is some cause independent of the will of the perpetrator; on the other hand, in [an] attempted felony, the reason for the non- fulfillment of the crime is a cause or accident other than the offender's own spontaneous desistance.

In frustrated murder, there must be evidence showing that the wound would have been fatal were it not for timely medical intervention. If the evidence fails to convince the Court that the wound sustained would have caused the victim's death without timely medical attention, the accused should be convicted of Attempted Murder and not Frustrated Murder.

In the instant case, it does not appear that the wound sustained by Gregorio Conde was mortal. This was further admitted upon medical examination of Gregorio after the shooting incident.

In the case **People v. Labiaga**, the SC said in case of intentional killings – Parricide, Murder, Homicide, Infanticide, in order to bring about the frustrated stage, it is necessary that the wound inflicted must be a fatal/ mortal wound. The offender has performed all acts of execution and nothing more is left to be done. The victim only survived by reason of cause independent of the will of the perpetrator, and that is the immediate medical intervention.

If the wound inflicted upon the victim is a **non-fatal wound**, the felony is **only in the attempted stage** because the infliction of a non-fatal/non-mortal wound means there must be an act to be done to consummate the crime. He merely commences the commission of the crime.

Thus, if a problem on intentional killing is given, if the wound inflicted by the perpetrator of the crime upon the victim is a non-mortal/non-fatal wound, then it will only be in the attempted stage.

But if the wound inflicted by the accused upon the victim is a mortal/fatal wound, sufficient to bring about death, but the victim survived because of the immediate medical intervention, the crime committed is in the frustrated stage.

**QUIJANO v. PEOPLE**

In this case, we find that the prosecution failed to present evidence to prove that the victim would have died from his wound without timely medical assistance, **as his Medical Certificate alone, absent the testimony of the physician who diagnosed and treated him, or any physician for that matter, is insufficient proof of the nature and extent of his injury.** This is especially true, given that said Medical Certificate merely stated the victim's period of confinement at the hospital, the location of the gunshot wounds, the treatments he received, and his period of healing.

The SC converted the crime from frustrated murder to only attempted murder

**OLIVEROS v. PEOPLE**

In this case, The RTC and the CA erred when they concluded that the wounds by the victim were fatal based merely on the location of the hack wounds, two (2) of which were on the victim's face. Their rulings run contrary to the testimony of the medico-legal officer that such injuries, without medical timely attention, **could only possibly cause death** to the victim due to infection and/or tetanus; that the victim **might** lose blood, and the wound will get infected and/or tetanus. The medico-legal officer, when asked how long would it take for the victim to die if no medical treatment was given to him, answered, **"it depends on the resistance of his body for the infection."**

The medico-legal officer failed to categorically state whether the wounds sustained by the victim were fatal. This cannot be inferred from the fact alone that he was hacked in the face, near the brain, a vital organ of the body. The prosecution failed to prove beyond reasonable doubt that the wounds sustained by the victim were fatal.

The SC converted the crime from frustrated murder to only attempted murder.

**Q: In the course of a fight, X pulled out a gun and fired at Y, intending to kill him. Y was able to evade the shot. Again, X fired at Y, but the latter evaded the shot. What crime is committed by X?**
**A:** X is liable for ATTEMPTED HOMICIDE. X's overt act of firing at Y twice - all acts of execution were not performed which would produce Homicide, because it was purely accidental that Y was able to evade the shot twice.

**Q: What if in the same problem, in the course of a fight, X fired at Y. X was aiming at the chest. However, since Y lowered his body, he was hit near the shoulder and subsequently brought to the hospital. It was stated that the wounds would heal within a period of 10 days. What crime is committed by X?**
**A:** X is liable for ATTEMPTED HOMICIDE. His overt acts of firing at Y, with intent to kill, inflicting a non-fatal wound, are directly connected to killing. However, he was not able to perform all acts of execution which would produce homicide because the wound he inflicted was only a non-fatal wound. It is not sufficient to bring about death. He must perform another act to consummate the crime.

**Q: What if in the same problem, X fired at Y. Y was hit on the chest and subsequently brought to the hospital. The doctor said that an operation must be done immediately, otherwise, Y would die. After the operation, Y survived. What crime is committed by X?**
**A:** X is liable for FRUSTRATED HOMICIDE. The moment X fired at Y inflicting a fatal wound, X had already performed all the acts of execution. There was nothing more to be done but wait for his death. But death did not supervene because of a cause independent of X's will which is the doctor's immediate medical intervention.

**Q: The doctor's husband, X, has a mistress. X wanted to get rid of the wife so that he will be able to live happily with his mistress and also, for insurance purposes. And so, he decided to place poison on the food of his wife. When the wife ate the food, indeed, she was poisoned. As he was looking at his wife suffering, showing signs of being poisoned, he felt pity because they have been together for years. Because of that, he went to his bag, took the antidote, and administered it to his wife. Thereafter, he immediately brought the wife to the hospital. The wife survived; the wife did not die. X is now being charged with the crime of Frustrated Parricide. Is the husband liable for the said crime?**
**A:** NO. First element: the offender has already performed all the acts of execution that would produce the felony as a consequence. Here, when the doctor husband placed the poison on the food and the wife ate the food with poison and showed signs of being poisoned, the doctor husband has already performed all acts of execution that would lead to the death of his wife. Nothing more is left for him to do. Thus, the first element is present.

Second element: the felony was not produced by reason of causes independent of the will of the perpetrator. Here, the felony of Parricide was not produced because of the doctor

husband's own will. He was the one who applied the antidote, and he brought the wife to the hospital. Therefore, the second element is absent because of a cause that depended on the voluntary will of X. The second element being absent, therefore, the husband is not liable for the crime of Frustrated Parricide.

**Q: What if in the same problem, X argued that should he be held liable, it should be for Attempted Parricide. Is the contention of X correct?**
**A:** NO. The first element of attempted felony is immediately absent. First element: that the offender commences the commission of a felony directly by overt act. Here, the doctor husband did not only commence the commission of the felony; he has already performed all acts of execution. His act has passed the subjective phase and the attempted stage. Therefore, it cannot be Attempted Parricide because all the acts of execution had already been produced by him. The husband should not be charged with Attempted Parricide.

**Q: In the same problem, what is the proper charge for the crime committed by X?**
**A:** The proper charge would be **PHYSICAL INJURIES** depending on the days that the said wife would be needing medical intervention.

1. Serious Physical Injuries - if the wife will be needing medical intervention for a period of more than 30 days;
2. Less Physical Injuries - if the said wife will be needing medical intervention for 10-30 days;
3. Slight Physical Injuries - if the wife will be needing medical intervention for 1-9 days.

## CONSUMMATED STAGE

A felony is consummated when all the elements necessary for its execution and accomplishment are present.

### CRIMES THAT DO NOT ADMIT THE FRUSTRATED STAGE

There are certain crimes which do not admit frustrated stage as follows:

1. Theft;
2. Rape; and,
3. Arson.

### THEFT

#### VALENZUELA v. PEOPLE

**FACTS:** A security guard saw accused Valenzuela hauling a push cart loaded with cases of Tide detergent and unloaded them where his co-accused Calderon was waiting. Valenzuela then returned inside the supermarket, and later emerged with more cartons of detergent. Thereafter, Valenzuela hailed a taxi and started loading the boxes of detergent inside. As the taxi was about to leave the security guard asked Valenzuela for the receipt of the merchandise. The accused reacted by fleeing on foot, but were subsequently apprehended at the scene. They were convicted by the RTC of consummated theft. Valenzuela, on appeal, argued that he only committed frustrated theft because he was not able to freely dispose of the merchandise stolen.

**ISSUE:** Is petitioner Valenzuela guilty only of frustrated theft? NO

**RULING:** Art. 6 of the RPC provides that a felony is consummated when all the elements necessary for its execution and accomplishment are present. In the crime of theft, the following elements should be present: (i) that there be taking of personal property; (ii) that said property belongs to another; (iii) that the taking be done with intent to gain; (iv) that the taking be done without the consent of the owner; and (v) that the taking be accomplished without the use of violence against or intimidating of persons or force upon things. The Court held that Theft is produced when there is deprivation of personal property by one with intent to gain. Thus, it is immaterial that the offender is able or unable to freely dispose of the property stolen since he has already committed all the acts of execution and the deprivation from the owner has already ensued from such acts. Therefore, Theft cannot have a frustrated stage, and can only be attempted or consummated.

As held in the landmark case of **Valenzuela v. People**, the SC said that there is no frustration in the crime of Theft because by its definition under Art. 308 of the RPC, Theft is committed by any person, who with the intent to gain, shall take the personal property of another without the consent of the owner, without violence against or intimidation of persons or use of force upon things.

The only operative act necessary to consummate the crime of theft is the unlawful taking of the personal property of another. And the said act of unlawful taking is deemed complete the moment the offender gains possession of the personal property of another even if he has no opportunity to dispose of said property.

#### CANCERAN v. PEOPLE

**FACTS:** Canceran paid for two boxes of biscuits at one of the counters of a mall in Cagayan de Oro when the security guard of the mall approached the bagger and asked whether the boxes had been checked. When the bagger opened the boxes, they found out that the contents of the boxes were not biscuits, but beauty cream products.

**RULING:** Based on the allegation in the information, a crime charged on the OCP was frustrated theft. After trial on the merits, the judge convicted Canceran of theft in the consummated stage. The judge said "this is very wrong for the prosecution to charge him with frustrated theft. There is no frustrated theft, it should be consummated theft." Because of that, Canceran appealed and said that when the judge convicted him of consummated theft in an information that alleges frustrated theft, he was **denied his right to be informed of the nature of the cause of accusation against him.** The SC said Canceran is correct. Since the crime charged by the OCP in the information was only frustrated theft, it is wrong for the court to convict him of consummated theft. **You cannot convict an accused of a crime higher than that for what is charged because in doing so, you deny him to rebut the allegations. You deny him of his due process. You deny him to be informed of the nature of the cause of accusation against him.** The Supreme Court said, even if in this case in reality, theft was already consummated, we cannot convict him of consummated theft because the information charges only frustrated theft. Hence, the Supreme Court said, Canceran shall only be convicted of attempted theft.

**Q: The daughter will be having her 7th birthday. And so, the mother wanted to have a beautiful dress for the daughter, but they did not have the money. They went to the children's section of the department store. The mother picked five dresses for her daughter and proceeded to the fitting room. However, the mother only returned two dresses to the saleslady and headed on their way out. The saleslady told the guard to stop the mother and daughter. It was discovered that the daughter was wearing the three dresses from the department store. When asked by the management, the daughter said that her mother forced her to wear them. What crime is committed by the said mother?**
**A:** The mother is liable for THEFT in the consummated stage. The moment the said mother asked her to wear all the three dresses, they already gained possession of the dresses owned by the department store, even if they did not have the opportunity to dispose of them. Therefore, theft is already in the consummated stage.

**Q: Brothers, X and Y, went around town with their kariton for bote/dyaryo. They do not have enough money to buy food. On their way home, they passed by a big warehouse which was open. They could see sacks piled up, which seemed to be sacks of rice. Since there was no person around, they entered the warehouse and took one sack. They brought it to their kariton and hurriedly left. However, midway to their house, they had a change of heart because they remembered their mother's teachings - "huwag kumain ng nakaw." So, they decided to go back in order to return the sack of rice. But suddenly, the guard saw them. The guard apprehended them. X and Y are now being charged with the crime of Consummated Theft. Through their counsel, they contended that the case should be dismissed because they returned the sack of rice, which amounted to desistance. Is their argument meritorious?**
**A:** NO. X and Y are liable for theft in the consummated stage. The moment the brothers took the sack of rice from the said warehouse and brought it to their kariton, unlawful taking is complete. Their act of returning cannot be considered as desistance, but an act of restitution. Restitution is not desistance. Restitution is the return of the thing which was already taken. Therefore, it only proved they have already taken the said sack of rice.

Restitution is only a mitigating circumstance which is analogous to voluntary surrender. Restitution is not an absolutory cause. Hence, they can still be charged with a crime of Theft. The said act of restitution will only mitigate their criminal liability. Likewise, there shall be no civil liability awarded against them.

**Q: X was applying for a job and was being interviewed. The phone of the manager rang, and she excused herself and went outside to answer the call. X took notice of the bag of the manager. He went to the bag and took the wallet and placed it inside his coat. He took his own bag and was about to leave when the door opened, and the manager entered.**
**A:** X is liable for theft. The moment he took the wallet and placed it inside his coat, unlawful taking was complete.
Therefore, theft is consummated even if he has not left the room to dispose of the thing.

**Q: What if in the same problem, after X took the wallet and went back to his seat, he had a change of mind. He went back to the bag and returned the wallet. All his acts were shown in the CCTV footage. Can X be charged of any crime?**
**A:** X is liable for consummated theft. The moment he took the wallet, unlawful taking is complete. The fact that he returned the wallet cannot be considered as desistance that would absolve him of criminal liability. Theft is already

consummated. The effect of such return would only mitigate his liability under Art 13, because the SC considered restitution as voluntary surrender. Analogous to voluntary surrender. Also, no civil liability would be adjudged against him.

**Q: What if in the same problem, & went to the bag, opened the zipper and was about to take the wallet when suddenly the door opened. He went back to his seat.**
**A:** X is liable for attempted theft. X has no right to open the zipper of the bag without the consent of the manager. When he does so, even if he has not yet taken anything, it reveals his intent. It is an overt act directly connected to theft; however, theft was not consummated due to an accident in which the door opened, and the manager entered the room.

## RAPE

### PEOPLE v. CAMPUHAN

**FACTS:** Campuhan was a helper in the business of the family of the victim, a 4-year-old girl. One time, the mother of the victim heard the latter cry, "Ayoko!", prompting her to rush upstairs. There, she saw Campuhan kneeling before the victim, whose pajamas and panty were already removed, while his short pants were down to his knees. Campuhan was apprehended. Physical examination of the victim yielded negative results. No evident sign of extra-genital physical injury was noted. Her hymen was intact and its orifice was only .5 cm in diameter. Trial court found him guilty of statutory rape and sentenced him to death.

**ISSUE:** Whether Campuhan is guilty of statutory rape. NO.

**RULING:** Touching when applied to rape cases does not simply mean mere epidermal contact, stroking or grazing of organs, a slight brush or a scrape of the penis on the external layer of the victim's vagina, or the mons pubis, as in this case. There must be sufficient and convincing proof that the penis indeed touched the labias or slid into the female organ, and not merely stroked the external surface, for an accused to be convicted of Consummated Rape.

In the present case, the prosecution failed to prove that Campuhan's penis was able to penetrate Crysthel's vagina however slight. Corazon alleged that she saw Campuhan poking his penis on the vagina of Crysthel without explaining her relative position to them as to enable her to see clearly and sufficiently, in automotive lingo, the contact point. Campuhan's kneeling position rendered an unbridled observation impossible.

Under RPC 6 in relation to RPC 335, rape is attempted when the offender commences the commission of rape directly by overt acts, and does not perform all acts of execution which should produce the crime of rape by reason of some cause or accident other than his own spontaneous desistance. All the elements of attempted rape are present in this case.

The SC reiterated that there is no Frustrated Rape. Rape has only two (2) stages – the attempted and consummated stages.

### PEOPLE v. AGAO

**FACTS:** In 2014, Agao was charged with two counts of Statutory Rape and was convicted by the RTC. The charges pertain to alleged incidents of sexual abuse committed against a minor, AAA, in July 2010 and January 2012, who was then 10 and 13 years old, respectively. Agao, the step-father of AAA, purportedly had sexual intercourse with AAA by means of force and intimidation.

**ISSUE:** Whether Agao is guilty of two counts of statutory rape? NO (only 1 statutory rape and 1 simple rape)

**RULING:** Mere introduction, however slight, into the cleft of the *labia majora* by a penis that is capable of penetration, regardless of whether such penile penetration is thereafter fully achieved, consummates the crime of rape. "Mere touch" of the penis on the labia majora legally contemplates not mere surface touch or skin contact, but the slightest penetration of the vulval or pudendal cleft, however minimum in degree.

**For pre-puberty victims:** for child victims in the pre-puberty age, the genital contact threshold for a finding of consummated rape through penile penetration is deemed already met once the entirety of the prosecution evidence establishes a clear physical indication of the inevitability of the minimum genital contact threshold as clarified here, if it were not for the physical immaturity and underdevelopment of the minor victim's vagina, which may include repeated touching of the accused's erect penis on the minor victim's vagina and other indicative acts of penetration.

The following can aid the courts in their determination of the existence of penile penetration: (i) when the victim testifies she felt pain in her genitals; (ii) when

there is bleeding in the same; (iii) when the labia minora was observed to be gaping or has redness, or otherwise discolored; (iv) when the hymenal tags are no longer visible; or (v) when the sex organ of the victim has sustained any other type of injury.

Applying the clarified threshold in the case of Agao, the Court found that **Agao's erect penis touching AAA's vulval cleft categorically shows that the minimum penile-vaginal contact between the penis and the vulval cleft needed for a finding of consummate rape was present.**

However, Agao should only be convicted of one charge of Statutory Rape, which occurred when AAA was 10 years old. The other charge should be reduced to Simple Rape, as it happened when AAA was 13 years old.

The SC clarified when the crime of rape through penile penetration is considered consummated and laid down the parameters used for pre-puberty victims in the case of **People v. Agao.**

The SC in the end said, the genital contact threshold that constitutes consummated rape is the erect penis penetrating the vulval cleft or the pudendal cleft of the labia majora of a woman's vagina, no matter how minimum. That is now the definition of slightest penile penetration.

According to Justice Leonen in his dissent, in the case of **People v. Jumawan,** we have already upgraded the definition of rape. In the said case, we have stated that rape is not about sex; rape is about the violation of the human dignity of a woman. Therefore, it does not matter what part of the vagina has been reached by the penis.

In giving this definition of slightest penile penetration, according to Justice Leonen, we went back to the barbaric definition of rape. While the woman is being raped, the burden is on her to determine what part of her vagina has been touched by the penis. Only then can she file for the crime of Consummated Rape. Therefore, the burden is upon her to prove in court what part of her vagina has been reached.

**BAR EXAM TIP:** But at present, that is the definition of slightest penile penetration. In case that is asked in the Bar, you can cite the case of Agao because that is En Banc.

***Attempted Rape vis-à-vis Acts of Lasciviousness***

**CRUZ v. PEOPLE**

**FFACTS:** Cruz was accused of attempted rape and acts of lasciviousness involving different victims AAA and BBB, both minors. The incidents reportedly occurred while AAA and BBB were employed by Cruz and his spouse to sell wares in Bangar, La Union. The victims allege that Cruz undressed AAA and lay on top of her, touching her breast and vagina with intentions of intercourse. Subsequently, Cruz also purportedly touched BBB's private parts. The defense contended that Cruz could not have committed the crimes due to the location and presence of other people, and suggested a motive of extortion by the complainants.

**ISSUE:** Is petitioner guilty of attempted rape against AAA? NO

**RULING:** The difference between attempted rape and acts of lasciviousness is the offender's intent to lie with the female. In rape, intent to lie with the female is indispensable, but this element is not required in acts of lasciviousness. Attempted rape is committed when the "touching" of the vagina by the penis is coupled with the intent to penetrate. The intent to penetrate is manifest only through the showing of the penis *capable of consummating* the sexual act touching the external genitalia of the female. Without such showing, only the felony of acts of lasciviousness is committed.

The SC ruled that his embracing her and touching her vagina and breasts did not directly manifest his intent to lie with her. The lack of evidence showing his erect penis being in the position to penetrate her when he was on top of her deterred any inference about his intent to lie with her. At most, his acts reflected lewdness and lust for her.

## ARSON

Another crime which does not admit of the frustrated stage is arson. Arson is the malicious destruction of a property by means of fire.

There are two (2) kinds of arson:

1. destructive arson; and
2. simple arson.

Whether it is destructive arson or simple arson, there is no such crime as frustrated arson.

By the definition of arson, it is the malicious destruction of property by means of fire. The law does not require that the entire property, building, dwelling, be damaged by means of fire. The law does not require that the entire

house be gutted down by fire. It suffices that the said house or building is damaged by means of fire. The offender has already performed all the acts of execution, therefore, it is already in the consummated stage. Hence, by reason of its definition, there is no frustration in the crime of arson.

**Q: X was mad at Y. He wanted to burn the resthouse of Y. X placed hay and straws around Y's house, intending to burn the house. With the use of a match, X set the hays and straws on fire. The hays and straws were already on fire, but suddenly, Z, the caretaker of the rest house, arrived. Z immediately asked the neighbors for help. They cooperated and poured water on the fire, hence, the said fire was put out. Only the hays and straws placed by X were on fire; no part of the house has yet been damaged. What crime was committed?**

**A:** The crime committed was ATTEMPTED ARSON. The overt act of placing hays and straws around Y's house is directly connected to arson. Obviously, his intent was to set the house on fire. However, he was not able to perform all the acts of execution because it was purely an accident, a cause that is when the caretaker suddenly arrived, called the help of the neighbors, and put out the fire.

**Q: What if in the same problem, after X placed the hays and straws, he lit the match, and the hays and straws were already burning. The fire already spread on the walls of the rest house. The right wall of the house was already on fire when the caretaker arrived. The caretaker asked the neighbors for help. With the help of the neighbors and firemen, they were able to put out the fire. However, the right wall of the house was already burned. What crime was committed?**
**A:** The crime committed was CONSUMMATED ARSON. The moment any part of a dwelling or building is damaged or destroyed by means of fire, it is already Consummated Arson. Hence, by reason of its definition, there is no crime of frustrated arson.

## FORMAL CRIMES

Formal crimes are punished based on consequence and based on result, not based on tendency. Hence, they have no attempted and frustrated stage.

**Examples:**
- Adultery can be punished only the moment there is a carnal union between a married woman and another man who is not her husband.
- False testimony can be punished only if the said false witness testified falsely against the accused or in favor of the accused.
- Physical injuries have no attempted or frustrated stage, they are punished based on result. Is it serious, less serious, or slight?

## MATERIAL CRIMES

Crimes that admit different stages – attempted, frustrated, and consummated.

**Example:** Robbery, Theft, and Rape.

**Q: What if X was charged with the crime of Homicide. W was called to the witness stand. The court interpreter told W, "Raise your right hand. Do you swear to tell the truth and nothing but the truth?" And W said, "Yes, Your Honor." Thereafter he was told, "You may sit down." The court interpreter told W, "State your name, your address, your civil status, your job, etc." After that, the judge told the fiscal, "Fiscal, your witness." The fiscal stood up.**

**Before the fiscal was able to ask the first question, the door of the courtroom opened and here came the wife of W. The wife told the judge, "The witness is my husband. My husband was paid. He accepted the money because we are in need of money." The judge banged the gavel.**

**In the chamber of the judge, admitted that he was paid to testify against the accused. Because of this, W was charged with Attempted False Testimony. Will the case prosper?**
**A:** NO. The case will not prosper because false testimony is a formal crime. It is punished only in the consummated stage. There are no attempted and frustrated false testimony because false testimony is consummated the moment the said offender stated under oath in a judicial proceeding falsities.

In this case, W has not yet stated any falsity. He correctly stated his address, name, and civil status. He has not yet stated any falsity because the fiscal was only about to start the first question. W has not yet answered any question. Therefore, he did not commit any crime. False testimony will only be consummated upon making false testimonies under oath in a judicial proceeding, whether criminal or civil. Therefore, the case of Attempted False Testimony will not prosper.

## E. CONSPIRACY & PROPOSAL TO COMMIT A FELONY

**Art. 8.** *Conspiracy and proposal to commit felony.* - Conspiracy and proposal to commit felony are punishable only in the cases in which the law specially provides a penalty therefor.

A conspiracy exists when two or more persons come to an agreement concerning the commission of a felony and decide to commit it.

There is proposal when the person who has decided to commit a felony proposes its execution to some other person or persons.

There is **conspiracy** when two or more persons come to an agreement concerning the commission of a felony and they decide to commit it. On the other hand, there is a **proposal** to commit a felony when a person who has decided to commit a felony proposes its execution to some other person or persons.

**GR:** Both conspiracy to commit a felony and proposal to commit a felony are not punishable acts because they are mere preparatory acts.

**XPN:** Paragraph one of Art. 8 provides that conspiracy and proposal to commit a felony are punishable the moment the law specially provides a penalty therefor.

The moment the law expressly punishes the mere act of conspiring or the mere act of proposing to commit a felony, conspiracy, and proposal to commit a felony become crimes by themselves.

**There are two (2) concepts of conspiracy:**

1. Conspiracy as a crime by itself, and
2. Conspiracy as a means of committing a felony.

| CONSPIRACY AS A CRIME BY ITSELF | CONSPIRACY AS A MEANS OF COMMITTING A FELONY |
|---|---|
| The mere act of conspiring will already make the offender liable.<br><br>Examples of conspiracy as a crime by itself:<br><br>1. conspiracy to commit treason,<br>2. conspiracy to commit rebellion,<br>3. conspiracy to commit coup d'etat, and<br>4. conspiracy to commit sedition.<br><br>These are all crimes by themselves because Book Two of the RPC prescribes a penalty for mere conspiracy. | The fact that the offenders conspired will not make them immediately criminally liable.<br><br>The offenders will not yet become criminally liable, although they are already conspirators, unless and until they perform an overt act related to the crime agreed upon. |

**Q: A, B, C D, and E met, planned, and agreed to kill W. They were arrested because someone overheard them planning the killing. They were charged with Conspiracy to Commit Murder. Will the case prosper?**
**A:** NO. The case has to be dismissed because there is no such crime as conspiracy to commit murder. A, B, C, D, and E must perform at least an overt act for them to be held liable for Attempted Murder. Absent that, for merely entering into an agreement, they are not yet criminally liable. Here, conspiracy is only a means of committing a felony.

**Q: A, B, C, D, and E agreed to have public uprising for the purpose of going against what the Government wants to promulgate. They were conspiring to commit sedition. They were arrested and charged with conspiracy to commit sedition. Will the case prosper?**
**A:** The case will prosper because conspiracy to commit sedition is a crime by itself - the law prescribes a particular penalty for conspiracy to commit sedition.

**Q: What if A, B, C, D, and E, when planning the killing of W, were armed, had pistols, and decided to kill W by firing at their guns. The police arrived and they were arrested after they came up with the agreement. May they be held liable for conspiracy to commit murder?**
**A:** They cannot be held liable for conspiracy to commit murder because it is not a crime by itself. They can be held criminally liable, however, for illegal assembly because it is a meeting attended by armed persons who agreed to commit a crime punished under the RPC (murder).

**Q: X was stabbing Y. Z passed by and watched without giving Y any help because he approved of X's act of stabbing Y. is Z an implied conspirator of X?**
**A:** No. The mere approval of a crime does not make one a conspirator. The approval by Z of X's stabbing of Y does not make Z a co-conspirator.

## 1. EXPRESS CONSPIRACY v. IMPLIED CONSPIRACY

The two (2) kinds of conspiracy as a means of committing a felony are:

| DIRECT / EXPRESS CONSPIRACY | INFERRED / IMPLIED CONSPIRACY |
|---|---|
| The conspirators met, planned, and agreed to commit a crime. It is a conspiracy based on a preconceived agreement. | It is a conspiracy deduced from the mode and manner of committing a crime.<br><br>The conspirators acted simultaneously in a synchronized and coordinated manner toward a common criminal objective or criminal goal. |
| Since it is a conspiracy based on a prior agreement, there need not be a direct participation, an active participation in the commission of the crime.<br><br>All those who conspired or greed to commit the crime, the moment they appeared at the scene of the crime, their mere act of providing moral ascendancy will already make them criminally liable because they were part of the authors of the criminal design. | Since it is a conspiracy deduced from the mode and manner of committing a crime, before one can be held liable as a conspirator, there must be an active participation in the commission of the crime.<br><br>Mere presence, mere approval, acquiescence to the commission of the crime will not make the offender criminally liable.<br><br>Without an active participation in the commission of the crime, a conspirator cannot be said to be engaged in an implied conspiracy.<br><br>The basis in holding one liable as a conspirator is the act that he performed in the commission of the crime. Therefore, there must be an active participation in the commission of the crime. |

### DIRECT/EXPRESS CONSPIRACY

In the cases of **People v. Carandang, People v. Octa,** and **People v. Feliciano,** the SC appreciated conspiracy. The Court said there was <u>direct or express conspiracy</u> among the conspirators.

#### PEOPLE v. CARANDANG

**FACTS:** The drug enforcement unit received a request for assistance regarding a drug deal. SPO2 Red formed a team. They proceeded to the place and surrounded Milan's house. When the group introduced themselves as police officers, Milan immediately shut the door. PO2 Alonzo and SPO2 Red pushed the door open, causing it to fall and propelling them inside. When they were finally able to break open said door, Carandang peppered them with bullets which killed them instantly.

SPO2 Montecalvo, who was right behind SPO2 Red, was shot and hit by Carandang. SPO2 Montecalvo fell to the ground. SPO1 Estores heard Chua say to Milan, "Sugurin mo na!". Milan lunged towards SPO1 Montecalvo, but the latter was able to fire his gun and hit Milan.

In the post-mortem examination on the bodies of SPO2 Red and PO2 Alonzo, it was found that their gunshot wounds were the cause of their deaths. SPO1 Montecalvo was operated on and a bullet was removed from the right portion of his nape.

**ISSUE:** Whether Milan and Chua conspired with Carandang during the shooting of the victims? YES

**RULING:** Conspiracy exists when two or more persons come into an agreement concerning the commission of a felony and decide to commit it. Evidence need not establish the actual agreement among the conspirators showing the preconceived plan or motive for the commission of the crime. Proof of concerted act before, during and after the crime, which demonstrates their unity of design and objective, is sufficient. When conspiracy is established, the act of one is the act of all, regardless of the degree of participation of each.

In this case, the conclusion that Milan and Chua conspired with Carandang was established by their acts:

1. **BEFORE** Carandang shot the victim:

Milan closed the door when the police officers introduced themselves. This allowed Carandang to to wait in ambush;

2. **AFTER** the shooting:

Chua gave a directive for Milan to attack SPO1 Montecalvo, and Milan followed such instruction.

Contrary to the suppositions of Milan and Chua, these facts are NOT meant to prove that Chua is a principal by inducement, or that Milan's act of attacking SPO1 Montecalvo was what made him a principal by direct participation. Instead, these facts are convincing circumstantial evidence of the unity of purpose in the minds of the three. As co-conspirators, all three are considered principal by direct participation.

Unlike evident premeditation, there is no requirement for conspiracy to exist that there be a sufficient period of time to elapse to afford full opportunity for meditation and reflection. Instead, conspiracy arises on the very moment the plotters agree, expressly or impliedly, to commit the subject felony.

In **People v. Carandang**, only Carandang fired the shots at the police officers that caused the death of two and the fatal wound on the third police officer, Montecalvo. The only participation of Milan, the owner of the house, was to close the door. The only participation of Chua was to instruct Milan to fire the shot at Montecalvo.

That act of Milan is very crucial because when he shut the door, it gave Carandang the opportunity to wait in ambush for the police officers to get inside. Hence, when the police officers entered the house, Carandang was able to fire at them without the officers giving any counter-attack.

Likewise, the act of Chua showed that he exercised moral ascendancy on the others because he ordered Milan to fire a shot and Milan was about to obey. Therefore, based on their acts before, during, and after the commission of the crime, it is evident that they planned the killing of the said police officers although it was only Carandang who fired the shots.

## PEOPLE v. OCTA

**FACTS:** After Johnny and Mike were kidnapped, the kidnappers communicated to Johnny's wife giving the information that they have in their custody her husband and her brother Mike. The kidnappers demanded P538k which was accepted by the kidnappers.

The kidnappers instructed the wife to deliver the wrapped bundled ransom money to the man wearing the red cap. When she saw the man with the red cap, she was asked for the money. The man with the red cap was later identified in court as accused Octa. Johnny and Mike were released by their captors after the payment of ransom money.

Octa claims that he cannot be considered as a conspirator to the kidnapping in the absence of concrete proof that he actually participated in the execution of the essential elements of the crime by overt acts indispensable to its accomplishment. That his receipt of the ransom money transpired only after the kidnapping had been consummated and was not an essential element of the crime.

**ISSUE:** Whether Octa is a co-conspirator to the crime of kidnapping for ransom. YES

**RULING:** In this case, at the time Octa received the ransom money, the crime of kidnapping was still continuing, since both victims were still being illegally detained by the kidnappers. While his receipt of the ransom money was not a material element of the crime, it was nevertheless part of the grand plan and was in fact the main reason for kidnapping the victims.

Ransom is money, price or consideration paid or demanded for the redemption of a captured person or person; or payment that releases them from captivity. Without ransom money, the freedom of the detained victims cannot be achieved.

## PEOPLE v. FELICIANO

**FACTS:** Seven members of the Sigma Rho Fraternity were attacked by several masked men carrying baseball bats and lead pipes. Some of them sustained injuries that required hospitalization. One of them, Ventura, died from his injuries.

**ISSUE:** Whether Feliciano and his co-accused should be convicted of Attempted Murder against Natalicio and Fortes, and of slight physical injuries against Mangrobang, Lachica, and Gaston (NO)

**RULING:** Conspiracy, express or implied, once proven, has the effect of attaching liability to all of the accused, regardless of their degree of participation. Once an express or implied conspiracy is proved all of the conspirators are liable as co-principals regardless of the extent and character of their respective active participation in the commission of the crime or crimes perpetrated in furtherance of the conspiracy because in contemplation of the law the act of one is the act of all.

In this case, the liabilities of the accused arose from a single incident wherein the accused were armed with baseball bats and lead pipes, all in agreement to do the highest amount of damage possible to the victims. The intent to kill was already present at the moment of the attack and that intent was shared by all of the accused alike when the presence of conspiracy was proven. It is therefore immaterial to distinguish between the seriousness of the injuries suffered by the victims to determine the respective liabilities of their attackers.

Therefore, the CA erred in finding the accused guilty only of slight physical injuries. It would be illogical to presume that despite the swiftness and suddenness of the attack, the attackers intended to kill only Venturina, Natalizio, and Fortes, and only intended to injure Lachica, Mangrobang, and Gaston. Since the intent to kill was evident from the moment the accused took their first swing, all of them are liable for that intent to kill. For this reason, the accused should be liable for the murder of Venturina, and the attempted murder of Natalicio, Mangroband, Lachica, Fortes, and Gaston.

**PEOPLE v. DIEGA**

**FACTS:** Diega, together with three John Does, were charged with the crime of rape of AAA. The prosecution established that AAA was brought by a certain Ismael to a nearby store and introduced her to his friends, alias Obat, alias Kalbo, and Diega. The group had their drinking session. AAA felt dizzy and started to drowse off. AAA laid down and saw Carlo remove her pants and underwear. AAA tried to kick him, but someone held her legs and spread them apart and another held her hands. AAA felt someone spitting on her vagina. Carlo went on top of AAA, inserted his penis into her vagina, and made pumping motions. Afterwards, Kalbo, Ismael, and Obat took turns in having carnal knowledge with AAA.

**ISSUE:** Whether conspiracy is present among Carlo and his three companions, if so, should he be held liable for the other counts of Rape that his co-conspirators committed. YES

**RULING:** Conspiracy may be deduced from the mode and manner in which the offense was perpetrated, showing that at the time of the commission of the offense, all the perpetrators had the same purpose and were united in its execution.

In this case, Carlo and his three companions successively raped AAA and that while one of them had carnal knowledge of the victim, the others held her arms and kept her from struggling. In its totality, the individual participation of each perpetrator pointed to a joint purpose and criminal design. The rapes were committed in the following manner, first by Carlo, second by Kalbo, third by Ismael, and fourth by Obat. Thus, the victim was raped four times.

The accused is responsible not only for the Rape he committed but also for the other counts of Rape that his co-conspirators perpetrated although they were unidentified or at large. This is consistent with the rule that where there is a conspiracy, the act of one is the act of all. Consequently, Carlo must be held liable for four counts of Rape instead of 1 count only.

Since the victim was raped four times, accused Diega is responsible not only for the act he committed, but also for the other acts of his co-conspirators committed. Although, these three co-conspirators were unidentified and at large. SC said that this is the rule on conspiracy that the act of one conspirator is the act of all conspirators. In this case, although the charge against Diega is one count of rape, the SC convicted him for four counts of rape sentencing him of *reclusion perpetua* for all four counts of rape.

Because of the reason of conspiracy that the act of one is the act of all, if the victim is raped four (4) times, the said accused is responsible not only for his own act of rape but also for the other counts of rape that his co-conspirators perpetrated although these co-conspirators were not identified or not caught.

**INFERRED / IMPLIED CONSPIRACY**

It is a conspiracy where there is no preconceived plan or preconceived agreement. The conspiracy is deduced from the mode and manner of committing the crime. The offenders acted simultaneously in a synchronized manner towards a common criminal objective, a common criminal goal.

**Q: While X was eating in a restaurant, suddenly he said, "It smells Marijuana. It seems that someone is smoking Marijuana". So X looked on the right side of the table and saw two men. Indeed, these two men were smoking Marijuana. Upon getting out of the restaurant, he saw a police car on standby and a police officer inside the car wearing a uniform. He immediately told the police that there is someone smoking Marijuana inside the restaurant, a public place. The police officer went to Y and Z, and immediately collared Y and Z and said to them, "You are smoking Marijuana in a public place". When the police officer was holding the right**

**hand of Y and the left hand of Z, Z surreptitiously pulled out a knife from his scabbard tucked in his waist and stabbed the police. In order to protect himself, the police officer tried to get his firearm in order to resist the attack coming from Z; however, Y restrained the hands of the police. Hence, the police officer was not able to get his pistol. Because of this, Z freely stabbed the police officer until the police officer died. Both Y and Z were charged for the death of the police officer. Is Y a co-conspirator of Z in the killing of the said police officer?**
**A:** YES. Y is a co-conspirator of Z in the killing of the said police officer because Y acted as a principal by indispensable cooperation in the said killing of the police officer. Y's act of restraining the hands of the police officer in order to prevent him from getting his pistol, thereby allowing Z to stab the police officer repeatedly at the back, it is a positive overt act which established that Y has the same criminal intent, has the same criminal design as that of Z for the killing of the said police officer.

At that particular moment, an implied conspiracy was established between Y and Z. At that particular moment, Y's act of restraining the hands of the police officer showed that he has the same criminal intent as that of Z which is to kill the police officer. Therefore, Y can be criminally liable as a co-conspirator of Z in the killing of the said police officer. What is present is an implied conspiracy. So, the moment that conspiracy is established, the act of one is the act of all.

**Q: A, B, and C boarded the tricycle of D. They stopped in this big house. The tricycle was there. D was there. A, B, and C entered the big house, ransacked it, and killed the people inside. Thereafter, they boarded the tricycle of D. Then they left. A instructed D "lahat ng yan kay Mama Elsa." They parted ways but they were subsequently arrested. A, B, C, and D were charged as conspirators for robbery with homicide. D countered that he cannot be held liable because he did not even enter the house. He was not part of the robbers who killed the victim. He was simply the driver of the tricycle. Is D liable as a co-conspirator for the crime of robbery with homicide?**
**SC:** He is liable as a co-conspirator. D provided the means for A, B, and C to go to the place and for an easy escape. Thus, he has a common purpose as that of A, B, and C. He was part of the plan. Second, when D was given by A the instruction, D knew that the loot must go to Mama Elsa. The fact that D knew what to do means he had information of the criminal design.

**Q: X was walking. A, B, C, D, and E suddenly appeared. They were all armed with a piece of wood and A, B, C, D, and E ganged up on X, each one of them hitting X until X was on the ground. A, B, C, D, and E kept hitting X's head. They left when they saw other people were coming. X died. Was there conspiracy?**
**A:** Yes - in murder. Though there was no direct evidence of planning X's killing, it may be established by their acts immediately prior to - they suddenly appeared and encircled X; at the time of - all of them hit X with a piece of wood; and after the commission of the crime - when they saw people coming, they left. Direct evidence need not be considered insofar as the planning of the conspiracy was concerned.

**Q: While X was walking, A immediately hit him many times on the face and the chest. Because of the suddenness of the attack, X fell on the ground. A kicked and kicked X. X was bleeding. A went on top of X. A picked up his fan knife, opened it, and as he was about to stab X, A stabbed the ground. A left X. B and C, brothers of A, arrived after A left and repeatedly stabbed X. A, B, and C were charged as conspirators for X's killing. Is there a conspiracy?**
**A:** There was conspiracy between B and C but none insofar as A is concerned. This is because there was no intent to kill on the part of A, which was present on the part of B and C. There was no intent to kill on the part of A because he desisted in killing X.

**Q: Three armed men, A, B, and C, conspired to rob the house of E. A, B, and C has this express agreement that no other crime will be committed except to rob the other house. No killing involved and no other crime shall be committed. On the day that they executed the crime, A, B, and C went to the house of E. They entered the house of E by passing through the window. And thereafter, A, B, and C began ransacking, opening the cabinet, taking every valuables that they could get. Suddenly, C told A and B, "I will look for the CR, I need to relieve myself.". So, C went around the house. C saw the bedroom of the minor daughter of E. C entered the said bedroom and then thereafter, by use of force, had carnal knowledge of the young girl. Later, C went back to A and B, and all three of them left the house. They were all arrested. A, B and C are now prosecuted for the special complex crime of Robbery with Rape as conspirators. Is the crime charged for the special complex crime of Robbery with Rape against all three of them, A, B, and C, as conspirators correct?**
**A:** NO. Only C should be prosecuted for the special complex crime of Robbery with Rape. A and B should only be charged with Robbery. Based on the facts of the case, the express agreement was to commit robbery only and that no other crime shall be committed. Therefore, as conspirators, they shall only be liable for the crime agreed upon and for such other crimes which are the natural and logical consequence of the crime agreed upon.

In the case of Robbery, Rape is not a logical and natural consequence of robbery. Therefore, only C shall be held criminally liable for the special complex crime of Robbery with Rape. A and B shall be held conspirators for the crime of Robbery, they have nothing to do with the act of rape. A and B are not present during the time of the rape of the girl. A and B were not given the opportunity in order to prevent the commission of the crime.

**PEOPLE v. CASTILLO**

Padayhag's act of fetching Rocky is not conclusive proof of her complicity with Castillo's plan, a plan Padayhag did not even know. Padayhag met Castillo only because Castillo told Padayhag that her boyfriend was sick. It was precisely on the pretext that they were to visit her boyfriend that the two met. When they met, Padayhag realized that Castillo had deceived her. After her stroll with Castillo and Rocky, she left when Castillo brought the boy to her sister's house in Caloocan. She never visited nor contacted Castillo afterwards. She remained at her house and refused to go with Castillo when the latter suddenly tried to coax her to go to Dipolog. None of the money used as ransom was found in her possession. Her involvement in the "pay-off" was never established. The facts, as established, show that the only thing Castillo told Padayhag was to fetch Rocky because Castillo missed her former ward. There is no allegation or evidence that Padayhag knew the criminal plan of Castillo. Neither is there any hint that Castillo told Padayhag to abduct the boy, or to misrepresent herself or use means that would have led Padayhag to suspect that Castillo had some criminal design. Nor was there any proof that Padayhag knew that Castillo had no permission from the boy's parents.

Padayhag's acts before, during, and after the crime all point to the conclusion that she was no more than an unwitting tool of Castillo. Nothing links Padayhag to the demand for ransom. She never received any part of the ransom, precisely because she didn't even know it existed.

**PEOPLE v. BOKINGCO**

In this case, the finding of conspiracy was premised on Elsa's house and allegedly ordering her to open the pawnshop vault. Nobody witnessed the commencement of the attack. Col was not seen at the apartment where Pasion was being attacked by Bokingco. In fact, he was at Elsa's house and allegedly ordered her to open the pawnshop. Based on these, it cannot be logically inferred that Col conspired with Bokingco in killing. At the most, Col's actuations can be equated to attempted robbery. Elsa testified that she heard Bokingco call out to Col that Pasion had been killed and that they had to leave the place. This does not prove that they acted in concert towards the consummation of the crime. It only proves that there were two crimes committed simultaneously and they were united in their efforts to escape from the crimes they separately committed.

Their acts did not reveal a unity of purpose that is to kill Pasion. Bokingco already killed Pasion even before he sought Col. Their moves were not coordinated because while Bokingco was killing Pasion, Col was attempting to rob the pawnshop.

If conspiracy was not proven beyond reasonable doubt by the State, each offender shall be liable only based on the acts that they performed in the commission of the crime. Their liabilities will be individual.

As held by the SC in the case of **People v. Castillo**, conspiracy was not established by the prosecution, hence, the SC acquitted one of the accused.

In the case of **People v. Bokingco,** only Bokingco was held criminally liable by the SC. SC said that only Bokingco is liable and it is for Homicide. SC said that Col has nothing to do with the act of killing. While Bokingco was killing Pasion, Col was inside the house, asking the wife of Pasion to open the vault. Therefore, while Bokingco was busy killing the husband, Col was busy trying to stage a robbery. Hence, they have different criminal designs and criminal intent. Therefore, they cannot be criminally liable as co-conspirators for the act of killing the victim. Only Bokingco was held liable.

The prosecution argued, Bokingco called Col saying, *"Tara, patay na siya."* while the vault was not yet opened by the wife. Thereafter, without taking anything, Col left together. SC said that it only showed that they conspired in escaping but it does not show that they conspired in the act of killing. Hence, SC said, since the crime charged here is Murder and Col has nothing to do with the said act, then he should be acquitted of the crime charged because the proper charge against him should be Attempted Robbery.

## 2. WHEEL OR CIRCLE CONSPIRACY vs. CHAIN CONSPIRACY

In the case of **GMA v. People** and **Fernan, Jr. v. People**,

the SC held that there are two (2) types of multiple conspiracy:

1. Wheel or Circle Conspiracy; and,
2. Chain Conspiracy.

| WHEEL/CIRCLE CONSPIRACY | CHAIN CONSPIRACY |
|---|---|
| There is wheel or circle conspiracy when a person or persons known as the "hub" deals individually with another person or group of persons known as the "spokes." | When like in ordinary business transactions, there is continuous communication and interaction among the manufacturer with the wholesaler, the wholesaler with the retailer, and the retailer with the consumer |

**GMA v. PEOPLE**

**FACTS:** Former President Gloria Macapagal-Arroyo (GMA) and other officials were charged with plunder before the Sandiganbayan for the alleged excessive disbursements of the Confidential and Intelligence Funds. In the records, it appears that Uriarte (PCSO General Manager and Vice Chairman) would ask for additional CIF, by letter and GMA approves it by affixing her signature on the same letter-request. There were seven letters or memoranda to GMA, with the subject "Request for Intelligence Fund." All the disbursements from CIF from 2007 to 2010, the total of which amounts to P366 million. After the prosecution rested its case, GMA filed a demurrer to evidence asserting that the prosecution did not establish a case for plunder against them.

The SB denied the demurrer holding that there was sufficient evidence that they had conspired to commit plunder. GMA's "OK" notation and signature on Uriarte's letter-requests signified unqualified approval of Uriarte's request to use the additional CIF. Moreover, the SB said that the performance of an overt act is not indispensable when a conspirator is the mastermind.

**ISSUE:** Whether the State sufficiently established the existence of conspiracy among GMA and her co-accused. NO.

**RULING:** The prosecution did not sufficiently allege the existence of a conspiracy among GMA and her co-accused. A perusal of the information suggests that what the prosecution sought to show was an implied conspiracy to commit plunder among all of the accused on the basis of their collective actions prior to, during and after the implied agreement. It is notable that the prosecution did not allege that the conspiracy among all of the accused was by express agreement or was a wheel conspiracy or a chain conspiracy.

The law requires in the criminal charge for plunder against individuals that there must be a main plunderer and her co-conspirators; In this case, the prosecution did not properly allege and prove the existence of conspiracy among GMA and her co-accused. **The prosecution failed to allege and prove who is the hub or the main plunderer.**

SB's conclusion that President GMA had been the mastermind of plunder was plainly conjectural and outrightly unfounded considering that the Information did not aver at all that she had been the mastermind; hence, the Sandigabayan thereby acted capriciously and arbitrarily. In the second place, the treatment by the Sandiganbayan of her handwritten unqualified "OK" as an overt act of plunder was absolutely unwarranted considering that such act was a common legal and valid practice of signifying approval of a fund release by the President.

**NOTE:** In the case of **GMA v. People,** counsel of GMA filed a Demurrer to Evidence. According to the counsel of the former President, the State failed to prove the guilt of the accused beyond reasonable doubt. The SB denied the demurrer to evidence, so they went to the SC. The SC granted the demurrer to evidence and dismissed the case.

The SC said, GMA, together with Aguas and other officials of the PCSO, were charged as conspirators for the crime of Plunder. What is present here, according to the SC, is a wheel or circle conspiracy that allegedly these persons were one in committing the act of Plunder.

However, the SC said that the prosecution failed to allege and failed to prove who is the hub, who is the main plunderer. There was no allegation in the Information who is that hub, who is that public officer or main plunderer that dealt individually with other co-conspirators. SC said that absent an express statement, absent an express allegation in the Information as to who is the hub, who is the main plunderer, they cannot say that it is established that there exists a wheel or circle conspiracy. Likewise, SC said that the mere act of the former President signing "OK" will not make her criminally liable, absent any overt act which shows that she is one in amassing and accumulating

ill-gotten wealth. Hence in the case, the SC dismissed the case of the former President.

Likewise, another reason for dismissing the case, was that according to the SC, the participation of the former President was merely an approval, an "OK." As held in the case of **Arias v. Sandiganbayan**, heads of office could rely to a reasonable extent on their subordinates and on their good faith. He may be negligent in signing such, however, that will not make him a co-conspirator. Because in conspiracy, it requires intentionality in the commission of the crime. If conspiracy is not established each conspirator is liable only for the acts committed by him.

**FERNAN v. PEOPLE**

**FACTS:** Mangubat and his co-accused hatched an ingenious plan to garner large sums of money from government coffers. Mangubat had found a way to withdraw government money through the use of fake Letter of Advice Allotments (LAAs), vouchers, and other documents and to conceal traces thereof with the connivance of government officials. Other government employees allowed their names to be used and they signed spurious documents. Their scheme was, however, discovered upon COA's investigation. Fernan, Jr. was accused of having allegedly signed six (6) tally sheets or statements of deliveries. Fernan, Jr. and his co-accused were charged with the crime of Estafa through Falsification of Public Documents.

**ISSUE:** Whether Fernan, Jr. and his co-accused should be convicted as conspirators (YES)

**RULING:** Indeed, the burden of proving the allegation of conspiracy falls to the shoulders of the prosecution. Considering the difficulty in establishing conspiracy, settled jurisprudence finds no need to prove it by direct evidence. In *Estrada v. Sandiganbayan,* there is a so-called wheel or circle conspiracy where there is a single person or group (the hub) dealing individually with two or more other persons or groups (the spokes). The Court found that the conspiracy in the instant case resembles the wheel conspiracy. The 36 disparate persons who constituted a massive conspiracy to defraud the government were controlled by a single hub - Mangubat, Preagido, Sayson, and Cruz who controlled the separate spokes of the conspiracy.

## 3. THE ACT OF ONE IS THE ACT OF ALL

***"The Act of One is the Act of All"***

The moment conspiracy is established, the act of one is the act of all. It means that the moment conspiracy is established, all perpetrators are punished to the same extent, regardless of the quantity or quality of their participation in the commission of the crime.

The moment a conspiracy is established, you do not ask who inflicted the fatal blow, who merely stood there, who performed a minor act. Those are immaterial the moment conspiracy is established.

## 4. CONSPIRACY IN SPECIAL PENAL LAWS

There are two cases where the SC appreciated conspiracy in the violation of a special penal law.

**PEOPLE v. MORILLA**

In conspiracy, it need not be shown that the parties actually (actual conspiracy) came together and agreed in express terms to pursue a common design. The assent of the minds may be and, from the secrecy of the crime, usually inferred (implied conspiracy) from proof of facts and circumstances which, taken together, indicate that they are parts of some complete whole.

In this case, Morilla conspired with Mayor Mitra in a common desire to transport the dangerous drugs. Both vehicles loaded with several sacks of dangerous drugs, were on convoy from Quezon to Manila. Mayor Mitra was able to pass through the checkpoint set up by the police operatives. When it was Morilla's turn to pass through the checkpoint, he was requested to open the rear door for a routinary check. Noticing white granules scattered on the floor, the police officers requested Morilla to open the sacks. If indeed he was not involved in conspiracy with Mayor Mitra, he would not have told the police that he was with the Mayor.

In the case of **People v. Morilla**, the driver of the ambulance, Morilla, and Mayor Mitra of Quezon were charged as conspirators for violation of Sec. 5 of RA 9165, the Comprehensive Dangerous Drugs Act. In particular, they were charged as conspirators for the act of illegally transporting dangerous drugs.

The SC said that Morilla and former Mayor Mitra of Quezon are liable as conspirators. But it is a violation of special penal law, how come there is conspiracy when it is a violation of special penal law? SC said that there is conspiracy even if what is involved is a violation of a Special Penal Law, particularly Sec. 5 - Illegal transportation of dangerous drugs because it is expressly provided under Sec. 26 of RA 9165 that there is conspiracy

in case of violation of Sec. 5. Since it is the Special Penal Law itself that provides that there can be conspiracy in illegal transporting of dangerous drugs, then the said offenders, although violating a Special Penal Law, can be held liable as conspirators.

**GO-TAN v. SPS. TAN**

**FACTS:** Sharica Go-Tan and Steven were married. Barely six years later, Sharica filed a Petition with Prayer for the Issuance of a Temporary Protective Order (TPO) against Steven and her parents-in-law, Spouses Tan. She alleged that Steven, in conspiracy with Spouses Tan, committed verbal, psychological, and economic abuses upon her in violation of RA 9262. In their defense, Spouses Tan claimed that they are not covered by RA 9262 since Sec. 3 thereof explicitly provides that the offender should be related to the victim only by marriage, a former marriage, or a dating or sexual relationship. The petition was dismissed by the RTC.

**ISSUE**: Whether the principle of conspiracy under the RPC applies to violations of RA 9262 (YES)

**RULING**: Legal principles developed from the Penal Code may be applied in a supplementary capacity to crimes punished under special laws, such as RA 9262, in which the special law is silent on a particular matter.

Once conspiracy or action in concert to achieve a criminal design is shown, the act of one is the act of all the conspirators, and the precise extent or modality of participation of each of them becomes secondary, since all the conspirators are principals. It must be further noted that Sec. 5 of RA 9262 expressly recognizes that the acts of violence against women and their children may be committed by an offender through another. In addition, the protection order that may be issued for the purpose of preventing further acts of violence against the woman or her child may include individuals other than the offending husband.

Finally, Sec. 4 of RA 9262 calls for a liberal construction of the law. It bears mention that the intent of the statute is the law and that this intent must be effectuated by the Courts. In the present case, the express language of RA 9262 reflects the intent of the legislature for liberal construction as will best ensure the attainment of the object of the law according to its true intent, meaning and spirit - the protection and safety of victims of violence against women and children.

However, conspiracy is an evidentiary matter which should be threshed out in a full-blown trial on the merits and cannot be determined in the present petition since the Court is not a trier of facts. It is, thus, premature for Sharica to argue evidentiary matters since this controversy is centered only on the determination of whether respondents may be included in a petition under RA 9262. The presence or absence of conspiracy can be best passed upon after a trial on the merits.

According to the SC, RA 9262 does not preclude the application of the principle of conspiracy under the RPC for two reasons:

1. It is expressly stated under Sec. 47 of RA 9262 that the RPC shall apply suppletory to violations of RA 9262; and

2. Under Art. 10 of the RPC, it is expressly provided that the RPC apply suppletorily or supplementarily to violations of Special Penal Laws unless Special Penal Laws provide otherwise.

There is nothing, in case of violation of RA 9262 that provides otherwise, in fact, it is expressly stated under Sec. 47 of RA 9262 that the RPC may provide suppletorily application. Therefore, conspiracy will lie against the said parents-in-law in case of violation of RA 9262.

## F. FELONIES ACCORDING TO SEVERITY (ART. 9, AS AMENDED BY RA 10951)

**Art. 9.** *Grave felonies, less grave felonies and light felonies.*- Grave felonies are those to which the law attaches the capital punishment or penalties which in any of their periods are afflictive, in accordance with Article 25 of this Code.

Less grave felonies are those which the law punishes with penalties which in their maximum period are *correctional*, in accordance with the abovementioned article.

Light felonies are those infractions of law for the commission of which the penalty of *arresto menor* or a fine not exceeding Forty thousand pesos (P40,000) or both is provided.

## G. SUPPLETORY APPLICATION OF THE RPC (ART. 10)

**Art. 10.** *Offenses not subject to the provisions of this Code.* - Offenses which are or in the future may be punishable under special laws are not subject to the provisions of

this Code. This Code shall be supplementary to such laws, unless the latter should specially provide the contrary.

## H. JUSTIFYING CIRCUMSTANCES (ART. 11)

**Art. 11.** *Justifying circumstances.* - The following do not incur any criminal liability:

1. Anyone who acts in defense of his person or rights, provided that the following circumstances concur:

   First. Unlawful aggression.
   Second. Reasonable necessity of the means employed to prevent or repel it.
   Third. Lack of sufficient provocation on the part of the person defending himself.

2. Any one who acts in defense of the person or rights of his spouse, ascendants, descendants, or legitimate, natural or adopted brothers or sisters, or his relatives by affinity in the same degrees and those consanguinity within the fourth civil degree, provided that the first and second requisites prescribed in the next preceding circumstance are present, and the further requisite, in case the revocation was given by the person attacked, that the one making defense had no part therein.

3. Anyone who acts in defense of the person or rights of a stranger, provided that the first and second requisites mentioned in the first circumstance of this Article are present and that the person defending be not induced by revenge, resentment, or other evil motive.

4. Any person who, in order to avoid an evil or injury, does not act which causes damage to another, provided that the following requisites are present;

   First. That the evil sought to be avoided actually exists;
   Second. That the injury feared be greater than that done to avoid it;
   Third. That there be no other practical and less harmful means of preventing it.

5. Any person who acts in the fulfillment of a duty or in the lawful exercise of a right or office.

6. Any person who acts in obedience to an order issued by a superior for some lawful purpose.

**Justifying circumstances** - if present or attendant in the commission of a felony, would serve to free the offender from criminal and civil liability because the offender acted within the bounds of the law; there is no transgression of the law.

Hence, if the offender acted based on a justifying circumstance, there is no crime committed, no criminal liability and there is no civil liability.

**Shift of Burden of Evidence**

If an accused is charged in court and he raises a justifying circumstance under Art. 11, that accused is in effect admitting the acts alleged in the information but he is trying to avoid criminal responsibility by saying that the act is justified.

The invocation of a justifying circumstance is both an admission and an avoidance. He admits the acts alleged in the information but he is saying no he is not criminally liable because his acts are justified under Art. 11.

The moment the accused raises a justifying circumstance in court, the judge will order an inverted trial. While in a normal prosecution of a criminal action, it is always the prosecution which shall first present its evidence because the burden is on the State to prove the guilt of the accused beyond reasonable doubt . If the defense raises a justifying circumstance, the trial will be inverted because the burden of evidence is shifted to the accused to prove that his acts are justified.

## 1. SELF-DEFENSE

1. Anyone who acts in defense of his person or rights, provided that the following circumstances concur:

   First. Unlawful aggression.
   Second. Reasonable necessity of the means employed to prevent or repel it.
   Third. Lack of sufficient provocation on the part of the person defending himself.

The first part of Art. 11 is commonly known as self-defense.

Self-defense includes:
1. Defense of one's life and limb;
2. Defense of one's honor and chastity; and
3. Defense of one's property if coupled by an attack on the person entrusted with the said property.

**ELEMENTS:**

1. **Unlawful aggression**

   The primordial element of self-defense is unlawful aggression as without it coming from the victim there's no reason for the accused to defend himself.

   **ELEMENTS**
   a. There must be physical or material attack or assault;
   b. The attack or assault must be actual or at least imminent; and
   c. The attack or assault must be unlawful.

   **KINDS**
   a. Physical or Material Unlawful Aggression - when the attack was done by means of physical force or a weapon.
   b. Imminent Unlawful Aggression - when the attack is impending or at the point of happening.

2. **Reasonable necessity of the means employed to prevent or repel it**

   The means used by the accused to defend his life and limb must be reasonable and rational There are certain factors that will help in the determination of whether the means used by the accused was reasonable or rational, viz,

   a. The nature and number of weapons used by the unlawful aggressor versus of that of the person defending himself;
   b. The personal circumstances of the unlawful aggressor versus of that of the person defending himself; and
   c. The place and occasion of the assault.

   These factors will determine if the means used by the accused to defend his life and limb is indeed reasonable, rational and necessary.

3. **Lack of sufficient provocation**

   There must be no sufficient provocation coming from the accused. Provocation is allowed – what the law requires is that there is no sufficient provocation.

   Provocation refers to any improper or unjust act which is capable of inciting or exciting a person to

do a wrongful act. Provocation is said to be sufficient when it is adequate to stir a person to commit a wrongful act and it is proportionate to the gravity of the said act.

The maxim behind self- defense is *"stand ground when in the right."* It means when the accused is where he should be, the law does not require him to retreat when he sees his assailant fast approaching, otherwise, he runs the risk of being stabbed in the back.

In the cases of **People v. Olarbe (2018), Ganal, Jr. v. People (2020)** and **Abuyo v. People (2022)**, the Court appreciated self-defense in favor of the accused and therefore acquitted the accused therein.

In the cases of **Ganal, Jr. v. People** and **People v. Olarbe,** the SC appreciated self-defense in favor of the accused. In these cases, the SC said that the test to determine the presence of self-defense is whether the accused subjectively believed the imminence and seriousness of the danger, and the reasonableness of his belief must be viewed from the standpoint of the accused at the time that he acted. The right of the person to take life in self-defense arises from his belief in the necessity of doing so. That the reasonableness thereof must be judged in the light of the circumstances of the accused as they appear to him, not in the light of the circumstances as they appear to other people. Therefore, if at that particular moment, the accused believed his life was in danger, he had to save his life. So, in both cases the SC acquitted the accused on the ground of self-defense.

**PEOPLE v. OLARBE**

**FACTS:** Olarbe and his common-law wife Juliet were sleeping in their house in Barangay San Antonio, Sitio Pananim, Luisiana, Laguna. Suddenly they were awakened by the sound of a gunshot and shouting from Arca who appeared to be drunk. Arca was holding a rifle (an airgun converted to a calibre .22) and shouted "mga putang ina ninyo, pagpapatayin ko kayo." Then, Arca forcibly entered their house and aimed the gun at them. Olarbe immediately grabbed the gun from him and they grappled for its possession. Olarbe managed to wrest the gun away from Arca. In a jiff, Olarbe shot Arca causing the latter to lean sideward ("napahilig"). Nevertheless, Arca managed to get his bolo from his waist and continued to attack them. Olarbe grabbed the bolo and in their struggle for its possession, they reached the outer portion of the house. Olarbe was able to wrestle the bolo and instantly, he hacked Arca. After the killing incident, Olarbe voluntarily surrendered to the police authorities.

Based on the autopsy report, the cause of death of the victim were both gunshot wounds and the hack wounds.

**ISSUE:** Whether self-defense and defense of a stranger be appreciated as justifying circumstances in the present case. **(YES)**

**RULING:** The Supreme Court acquitted Olarbe. The three elements of Self-defense are present in this case.

**1) Unlawful Aggression**

Arca committed continuous and persistent unlawful aggression against Olarbe and his common-law spouse that lasted from the moment he forcibly barged into the house and brandished his gun until he assaulted Olarbe's common-law spouse with the bolo. Such armed assault was not a mere threatening act. Olarbe was justified in believing his and his common-law spouse's lives to be in extreme danger from Arca who had just fired his gun in anger outside their home and whose threats to kill could not be considered idle in the light of his having forced himself upon their home. The imminent threat to life was positively strong enough to induce Olarbe to act promptly to repel the unlawful and unprovoked aggression.

**2) Reasonable Necessity**

Arca sustained several wounds, the majority of the wounds were lacerations whose nature and extent were not explained. The lack of explanations has denied us the means to fairly adjudge the reasonableness of the means adopted by Olarbe to prevent or repel Arca's unlawful aggression. Accordingly, to rule out reasonable necessity of the means adopted by Olarbe solely on the basis of the number of wounds would be unfair to him. In any event, we have to mention that the rule of reasonable necessity is not ironclad in its application, but is dependent upon the established circumstances of each particular case.

It is settled that reasonable necessity of the means employed does not imply material commensurability between the means of attack and defense. What the law requires is **rational equivalence**, in the consideration of which will enter the principal factors the emergency, the imminent danger to which the person attacked is exposed, and the instinct, more than the reason, that moves or impels the defense, and the proportionateness thereof does not depend upon the harm done, but rests upon the imminent danger of such injury.

**3) Lack of sufficient provocation**

The absence of any showing that Olarbe had provoked Arca, or that he had been induced by revenge, resentment or other evil motive has been equally palpable. We deem to be established, therefore, that the third elements of the justifying circumstances of self-defense and defense of stranger were present.

In the case of **People v. Olarbe**, is the act of Olarbe hacking the victim a reasonable means to defend his life and limb? There was a struggle over the possession of the gun. Olarbe gained possession of the gun, and shot Arca in the head. When Arca was down on the ground, he stood up and this time held out his bolo and tried to hack the wife. So again there was a struggle over the possession of the said bolo between Olarbe and Arca. Again, Olarbe gained possession and hacked Arca. Autopsy report said that the death was caused by the gunshot wound and the hacking. Was the means employed by Olarbe reasonable? YES.

**GANAL, JR. v. PEOPLE**

**FACTS:** In the evening of May 20, 2013, feast day of the patron saint of Santor, Baggao, Cagayan, stones were hurled at the roofs of the adjacent houses of Petitioner Prudencio Ganal, Jr. and his father, Ganal, Sr. Ganal, Sr. went out to check and saw Angelo Follante in the company of his uncle Julwin Alvarez - the deceased. The two were in the middle of the road near the front gate. Ganal, Sr. approached and asked them to go home because his wife was suffering from hypertension and should not be disturbed. Julwin replied that he did not care if Ganal, Sr.'s wife died, he would kill all of them, including petitioner. Ganal, Sr. tried to pacify the two, assuring them that they would settle whatever problem they had the following day.

Alvarez, then holding palm-sized stones in both hands, managed to push open the gate. As Ganal, Sr. tried to pull back the gate, Alvarez hit him with a stone on the chest. Ganal, Sr. fell on the plant box made of hollow blocks and passed out.

Petitioner, from the main door of his house, saw what happened. Julwin, who had a knife tucked in his waistband and holding two (2) stones, started to advance toward him. Petitioner thus rushed inside his house, got his gun, and fired a warning shot into the air. Ganal, Sr. this time had regained consciousness and hid near the gate. Angelo ran away but Julwin just continued moving closer and closer to petitioner who then was constrained to shoot him once. But still Julwin did not retreat. He just kept moving closer, this time even threatening to kill everyone inside petitioner's house. Responding to the situation, petitioner then used up all the four (4) bullets on Julwin who, as a result, fell dead just within a meter from petitioner's door.

Petitioner borrowed the cellphone of his mother Erlinda Ganal and called the Baggao Police Station. He asked assistance from PO3 Marcelino and committed to surrender himself. When the police officers arrived, petitioner admitted he killed Julwin, turned over his gun, and voluntarily surrendered. The post mortem examination showed that Julwin died due to "severe hemorrhage secondary to multiple gunshot wounds and lacerations."

**ISSUE:** Ganal, Jr. consumed all the bullets of his gun on the body of Julwin. Is that reasonable necessity of the means employed to prevent or repel him? **YES.**

**RULING:**
**The second element, contrary to the lower courts' decisions, is present.** Reasonable necessity of the means employed to repel the unlawful aggression does not mean absolute necessity. It must be assumed that one who is assaulted cannot have sufficient tranquility of mind to think, calculate and make comparisons that can easily be made in the calmness of reason. The law requires rational necessity, not indispensable need. In each particular case, it is necessary to judge the relative necessity, whether more or less imperative, in accordance with the rules of rational logic. The accused may be given the benefit of any reasonable doubt as to whether or not he employed rational means to repel the aggression. It is settled that reasonable necessity of the means employed does not imply material commensurability between the means of attack and defense. What the law requires is rational equivalence, in the consideration of which will enter the principal factors the emergency, the imminent danger to which the person attacked is exposed, and the instinct, more than the reason, that moves or impels the defense, and the proportionateness thereof does not depend upon the harm done, but rests upon the imminent danger of such injury.

Here, though petitioner inflicted five (5) bullet wounds and two (2) lacerations on Julwin, the number of wounds alone should not automatically lead to the conclusion that there was a determined effort on petitioner's part to kill the victim. Petitioner was overcome by the instinct of self-preservation on seeing that Julwin brashly entered into his property and even knocked his father unconscious for getting in the way.

Julwin was determined to inflict injury on petitioner - he brought two (2) large stones and knife for the purpose.

In the case of **Ganal, Jr. v. People,** Ganal Jr. inflicted five gunshot wounds and two lacerations on Julwin. Julwin was armed with only two palm-sized stones. Was the means used by Ganal Jr. reasonable, rational, to prevent the unlawful aggression of Julwin? (YES)

**ABUYO v. PEOPLE**

**FACTS:** While petitioner Abuyo and his wife were on their way home on board their motorcycle, petitioner Abuyo suddenly saw Cesar and his son Charles who were armed with a balisong and a gun, respectively. Cesar and Charles block Leo's way. However, Leo swerved and sped towards the house his father Leonardo Abuyo. Charles followed and went outside Leonardo's house. Charles was furious. He kicked the bamboo fence of Leonardo, pointed his gun to people, and yelled for Leo to come out. Leonardo tried to pacify Charles but Cesar arrived and stabbed Leonardo in the lower left part of his chest.

Leo chased Cesar. During their confrontation, Cesar tried to stab Leo. As a defense, Leo got a hold of a bolo on top of the table and hacked Cesar's right hand. Consequently, Cesar dropped the balisong. Cesar still managed to pick up the balisong again but Leo stabbed him again in the lower part of his stomach which later caused his death.

Leo voluntarily surrendered himself to authorities after the incident. Leo pleaded not guilty and contended that he merely acted in self-defense and defense of a relative.

**ISSUE:** Whether Leo acted in self-defense and defense of a relative. YES.

**RULING:** Leo acted in self-defense and defense of a relative. Here, Leo had the right to repel the unlawful aggression in order to protect himself and his father. Also, there was no provocation on the part of Leo since the attack originated from Cesar and Charles. Leo and his wife were peacefully traversing their way home when Cesar and Charles blocked their way and chased them.

Moreover, the requisite of reasonable necessity of the means employed does not imply material commensurability between the means of attack and defense. What the law requires is rational equivalence which presupposes the consideration not only of the nature and quality of the weapons used by the defender and the assailant — but of the totality of circumstances surrounding the defense vis-à-vis the unlawful aggression. Moreover, the law requires rational necessity, not indispensable need.

Here, Leo used reasonable means to defend himself and his father. Facts show that even after Leo hacked Cesar's right hand, Cesar's unlawful aggression did not cease when he regained possession of the knife. At that point, Cesar's determination to kill Leo and Leonardo was aggravated — more imminent and more dangerously real — into a fixed mindset to subdue Leo's opposition.

In the case of **Leo Abuyo v. People**, Cesar tried to stab Leo with the use of a balisong. Leo got ahold of a bolo on top of the table and he used it in order to hack the right hand of Cesar. Because of that, Cesar's balisong fell on the ground. When Cesar was about to take back the balisong, Leo again hacked him, this time in the abdomen which resulted to Cesar's death. Was it necessary on the part of Leo Abuyo to inflict that fatal blow? YES.

Although the RTC and CA stated that the second element is absent, the SC said that it is present. The SC said that Leo used reasonable means in order to defend himself and the life of his father. According to the SC, based on the evidence presented, after Leo hacked Ceasar's hand, the balisong fell on the ground, but still Ceasar didn't stop. Ceasar picked up the balisong, therefore, at that moment, the unlawful aggression did not cease to exist. He picked up the balisong, which means he still wanted to attack Leo. The act of Ceasar of picking up the balisong showed his aggravated determination to kill Leo and his father. It is evident based on the facts that it was the instinct of self preservation that prevailed upon Leo when he stabbed Ceasar. He stabbed Ceasar in the act of self-defense. Hence, the SC acquitted Leo Abuyo.

**NOTE:** In these three cases, the Supreme Court said the right of a person to take life in self-defense arises from his belief in the necessity in doing so, and this belief and the reasonableness thereof are to be judged in the light of the circumstances as they appeared to the accused not in the light of the circumstances as they appear to other people. If at that particular moment, Olarbe felt that his life or the life of his wife were in danger… If Ganal, Jr. felt his life and the life of his family were in danger… If at that particular moment, Leo Abuyo felt that his life was in danger… then the SC said that the basis is on the said circumstances appearing on the accused at the time not in the light of the circumstances as they appear to other people. Hence, their acts were justified according to the Supreme Court.

**Q: There was a Valentine's day party in the Barangay Hall. The Chairman and the Barangay Tanods were manning the area when they heard successive gunfires and so the chairman inquired where the noise was coming from "saan nanggaling ang putok?" The constituents said "Doon po chairman, doon po sa kabilang kalye."**

**So the chairman and the two tanods went there and they saw X holding a gun. The Chairman instructed X to hand over the gun. X, however, instead of giving the gun, pointed it to the Chairman. And so the Chairman shouted "X, put the gun on the ground." X became afraid so he followed the instructions. After he put the gun on the ground, the Chairman hit X's head repeatedly. The two tanods joined the Chairman in hitting the head of X repeatedly until X's head was already bleeding. They only stopped when X's mother arrived and asked the three to stop hitting the head of X. Prosecuted for Serious Physical Injuries, the chairman and the tanods said that they merely acted in self-defense. Will self-defense lie in their favor?**

A: First element, was there unlawful aggression? The act of X of pointing the gun at the chairman when the chairman asked the latter to hand over the gun constituted unlawful aggression. However, the moment the chairman commanded X to put the gun on the ground and X obeyed, the unlawful aggression commenced by X has already ceased to exist. Hence, there was no more reason for the Barangay Chairman to hit X. Self-defense will not lie in their favor.

## CAMBE v. PEOPLE

**FACTS:** Brothers Lynyrd and Paul Cueva together with their cousins James Francis Cueva and Roberto, and friend Royce headed to the Bachelor's Bar, a videoke bar. There, they saw two (2) men, herein petitioners PO2 Anthony Cacho and PO2 Randolph Cambe, having a drinking spree inside a nearby hut. About thirty (30) minutes later, Merlyn, their mother, arrived to fetch them. On their way out, however, they caused some noise which irritated petitioners. They were already about to leave on board a tricycle when petitioners blocked their path. PO2 Cacho blurted "Putang-ina nyo, ang iingay nyo at ang yayabang nyo!" Lynyrd, thus, alighted from the tricycle and asked PO2 Cacho, "Sir, ano po ba problema? Pauwi na kami." Merlyn also got off the tricycle and asked PO2 Cambe, "Sir, ano po ba problema, mga anak ko po at pamangkin ko yang mga yan." PO2 Cambe replied, "Wala akong pakialam, putang ina ninyo!"

PO2 Cambe pushed Merlyn before pointing his gun at her and uttered to wit "Wag kang makialam putang ina mo. Thereafter, Roberto stealthily hit him with a beer bottle in the head, causing him to fall on the ground. Before he could even stand up, however, Lynyrd and Paul also got poised to attack him, prompting him to pull his service firearm and shot the Lynyrd and Paul hitting them in the left abdomen and left knee respectively. Then, the petitioners fled the scene on board a motorcycle.

Thereafter, PO2 Cambe and PO2 Cacho were charged both with two (2) counts of Frustrated Murder.

**ISSUE:** Whether Petitioner Cambe may properly invoke the justifying circumstance of self-defense. **(NO)**

**RULING: The Supreme Court ruled that only the first two elements of self-defense are present here**.

**The first element of self-defense is unlawful aggression**. Here, PO2 Cambe was subjected to the group's hostility and aggression. Initially, Roberto hit PO2 Cambe with a beer bottle in the head, causing the latter to slump on the ground. The aggression continued and this time the attack was going to come from Lynyrd and Paul. The group proved to be determined to cause more injury to PO2 Cambe while the latter was still dazed, bloodied, and helpless on the ground.

The prosecution nevertheless argues that it was PO2 Cambe who was first to attack as he pointed his gun to Merlyn after pushing her. However, PO2 Cambe's equivocal act of pushing Merlyn is not characterized as unlawful aggression. It does not positively determine the intent of the aggressor to cause the injury, nor does it establish that Merlyn's life was put into real peril. A mere push or a shove is insufficient to constitute unlawful aggression. It nevertheless qualifies as sufficient provocation as will be discussed in further detail elsewhere in this decision.

**As for the second element of self-defense, reasonable necessity of the means employed**.

Here, while PO2 Cambe was already slumped on the ground wounded, Lynyrd and Paul poised to follow up and attack him too. To be sure, his instinct for self preservation caused him to act fast and repel at once the clean and imminent attack on his life and limbs. The only available tool of defense for him at that time was his service pistol which he readily drew to shoot Lynyrd and Paul.

The fact that the two were unarmed did not render PO2 Cambe's act of shooting them unnecessary, nay, an unreasonable act of self-defense. Under the perilous situation he found himself, he was not expected to think as clearly, logically, and cautiously as he would have under normal circumstances. At that moment, there was an actual threat to his life and limbs. Though unarmed with a gun or any lethal weapon, the sheer number off the victims and their companions and their clear capacity to improvise, using bottles for example, to overcome their opponent was a real and imminent danger to reckon with.

**As to the third element, there was sufficient provocation on the part of petitioners**.

Provocation is sufficient when it is proportionate to the aggression, that is, adequate enough to impel one to attack the person claiming self-defense. When the law speaks of provocation, the reference is to an unjust or improper conduct of the offended party capable of exciting, inciting, or irritating anyone; it is not enough that the provocative act be unreasonable or annoying; the provocation must be sufficient to excite one to commit the wrongful act and should immediately precede the act.

Here, a verbal altercation ensued which led PO2 Cambe to push Merlyn and curse at the latter "Wag kang makialam putang ina mo!" Thereupon, Roberto struck PO2 Cambe, using a beer bottle, causing the latter to slump on the ground. Lynyrd and Paul immediately prepared to follow up on the attack, hence, PO2 Cambe shot each of them once. This showed how the verbal altercation escalated into a shooting incident. As it was, PO2 Cambe's act of pushing and cursing Merlyn triggered Lynyrd, Paul and Roberto to assault him. Roberto launched an attack on PO2 Cambe. Lynyrd and Paul were about to follow up on the attack but PO2 Cambe repelled them with his service firearm.

Considering that only the first two elements of self-defense are present here, PO2 Cambe cannot successfully invoke the justifying circumstance.

In the case of **PO2 Cambe v. People**, PO2 Cambe and PO2 Cacho were charged with two counts of Frustrated Murder. The RTC charged them with one count of Frustrated Murder and one count of Attempted Murder. CA affirmed. The SC said it is only one count of Frustrated Homicide and one count of Attempted Homicide. SC said there is no self-defense because the third element is missing. The altercation was started by police officers Cambe and Cacho. They were the ones who confronted the brothers because they were being noisy and they also pushed the mother of Lynyrd and Paul. Hence, there was sufficient provocation coming from the two accused.

On the liability of PO2 Cacho, SC said that he is a co-conspirator because at the moment of the incident, an implied conspiracy was established. When Camble was about to shoot the brothers, Cacho said *"Sige ubusin mo na sila".* When the bouncer arrived to pacify the fight, Cacho told the bouncer *"wag ka mangialam kundi papatayin kita".* All of these circumstances proved his intent to kill them as manifested by his acts during and after the shooting. Hence, the SC said that both of them are liable with Frustrated Homicide and Attempted Homicide.

## PEOPLE v. JAURIGUE

**FACTS:** Prior to his death, Amado Capiña (Amado), the deceased, had been courting defendant Avelina Jaurigue (Avelina) in vain.

Some of his interactions with her included:

1. Snatching a handkerchief belonging to her while it was being washed by her cousin;

2. Speaking of his love to her, which she flatly refused, then proceeding to embrace her and touch her breast, to which Avelina responded by slapping, punching, and kicking him. She kept the matter to herself, until the following morning when she informed her mother about it. Since then, she armed herself with a long fan knife, whenever she went out, evidently for self-protection;

3. Intruding the room where Avelina slept and touched her, which made her scream and expose Amado to her parents, defendant Nicolas Jaurigue (Nicolas), her father, and her mother. Amado gossiped about this incident to their neighborhood, claiming to have had sex with her and that Avelina even asked him to elope with her.

One night, Nicolas and Avelina went to the chapel of the Seventh Day Adventists to attend religious services. Inside the chapel it was quite bright as there were electric lights. Amado, seated on another side of the chapel, saw Avelina and sat beside her, then proceeded to touch the upper part of her right thigh.

Upon observing the highly improper and offensive conduct of Amado, Avelina, conscious of her personal dignity and honor, pulled out her fan knife with the intention of punishing Amado's offending hand. Amado

seized Avelina's right hand, but she quickly grabbed the knife with her left hand and stabbed Amado once at his neck, inflicting upon him a wound about 41/2 inches deep, which was necessarily mortal. Amado died a few minutes later.

Avelina surrendered herself to the barrio lieutenant who was in the same chapel who then instructed the father and daughter to lock themselves in their home to prevent retaliation by Amado's relatives. They complied and it was in their home where they waited for the arrival of the municipal authorities.

**ISSUE:** Whether Avelina acted in self-defense and can be absolved of criminal liability. **(NO)**

**RULING:** When Amado sat by the side of Avelina on the same bench and placed his hand on the upper portion of her right thigh, without her consent, the said chapel was lighted with electric lights, and there were already several people, about ten of them, inside the chapel, including her own father and the barrio lieutenant and other dignitaries of the organization; and under the circumstances, **there was and there could be no possibility of her being raped**.

Also, when she stabbed Amado at the base of the left side of his neck, inflicting upon him a mortal wound 41/2 inches deep, causing his death a few moments later, the means employed by her in the defense of her honor was evidently excessive; and under the facts and circumstances of the case, she cannot be legally declared completely exempt from criminal liability.

Thus, in stabbing to death the deceased Amado Capiña, Avelina committed the crime of homicide, with no aggravating circumstance whatsoever, but with at least three mitigating circumstances (voluntary surrender, passion or obfuscation, and absence of intent to kill) of a qualified character to be considered in her favor

In the case of **People v. Jaurigue**, the place was a chapel that is duly lighted. Avelina's father was there and other people as well when Amado sat beside Avelina and placed his hand on the latter's thigh. Avelina then used a knife to stab the base of the neck of Amado which resulted to his death. Supreme Court said there is no self-defense, there is no defense on one's honor and chastity taking into consideration the place of the incident. It was inside a fully lighted chapel, her father was there, other people were there, so it just impossible for Amado to have molested Avelina. Thus, according to the SC, unlawful aggression is absent. It was a conviction.

## PEOPLE v. TOLEDO

**FACTS:** On September 16, 1995, petitioner Noe Toledo went home late in the afternoon, he saw the group of Ricky Guarte and his friends drinking gin at the house of the Spouses Manuel and Eliza Guarte, Ricky's parents. His house is about 5m away from the house of Spouses Guarte. He requested the group of Ricky to refrain from making any noise and proceeded inside his house and went to sleep. Later Ricky Guarte's party went home to the Spouses Guarte's house and they all went to sleep. They had not laid down for long when they heard stones being hurled at the roof of the house. The stoning was done 3 times. Ricky peeped through a window and saw petitioner stoning their house. Ricky went out of the house and proceeded to Noe's house. Ricky asked Noe, his uncle, why he was stoning their house. Noe did not answer but met Ricky at the doorstep of his house and, without any warning, stabbed Ricky on the abdomen with a bolo. Eliza had followed his son and upon seeing that Ricky was stabbed, shouted for help. Ricky was put on the tricycle and taken to the hospital. Ricky had sustained 1 stab wound but due to massive blood loss, he died while being operated on.

**ISSUE:** Whether or not the petitioner is guilty beyond reasonable doubt of homicide. (YES)

**RULING: Yes. Both Self-defense and Accident were not appreciated in this case.** Self-defense under Article 11(1) necessarily implies a deliberate and positive overt act of the accused to prevent or repel an unlawful aggression of another with the use of reasonable means. The accused has freedom of action. He is aware of the consequences of his deliberate acts. The defense is based on necessity which is the supreme and irresistible master of men of all human affairs, and of the law. From necessity, and limited by it, proceeds the right of self-defense. The right begins when necessity does, and ends where it ends. Although the accused, in fact, injures or kills the victim, however, his act is in accordance with law so much so that the accused is deemed not to have transgressed the law and is free from both criminal and civil liabilities.

On the other hand, the basis of exempting circumstances under Article 12 is the complete absence of intelligence, freedom of action, or intent, or the absence of negligence on the part of the accused. The basis of the exemption in Article 12(4) is lack of negligence and intent. The accused does not commit either an intentional or culpable felony. The accused commits a crime but there is no criminal liability because of the complete absence of any of the conditions which constitute free will or

voluntariness of the act. An accident is a fortuitous circumstance, event or happening; an event happening wholly or partly through human agency, an event which under the circumstances is unusual or unexpected by the person to whom it happens.

Self-defense under Article 11(1) and accident under Article 12(4) are affirmative defenses which the accused is burdened to prove, with clear and convincing evidence.

In the case of **People v. Toledo**, SC said that there is no such thing as accidental self-defense. In the said case, Toledo raised Accident before the Trial Court. On appeal, he said he acted in self-defense. SC said that it is erroneous on the part of the accused to raise both accident and self-defense because they are inconsistent with one another. When you say an accident, it happened outside the sway of things, there was no intent on the part of the offender. But when you say self-defense, it is a deliberate positive overt act done by the offender based on the impulse of self-preservation. In case of self-defense, the offender deliberately wounded or killed the victim in order to save his own life.

Therefore, the SC said that you cannot raise the exempting circumstance of accident and the justifying circumstance of self-defense at the same time because they are inconsistent with one another.

**Q: X was walking. While X was walking, Y followed X. Then Y pointed a gun at X and Y told X, *" this is a hold-up! Give me your watch, give me your wallet, give me your cellphone."* So X gave his wallet and his cellphone and then Y told X *"how about your watch? I want your watch. "* And so X extended his hand but instead of giving the watch he suddenly grabbed the gun of Y and pointed it at Y instructing him to give back the wallet and the cellphone. However, instead of giving back the wallet and the cellphone, Y started running away. X shouted for him to stop but he didn't stop so X fired at him, hitting him on the arm. The said holdapper fell on the ground and X rushed towards him, took his cellphone and wallet and then left. A passerby saw the encounter and X is now being prosecuted for Serious Physical Injury. X raised the defense that he was merely acting in self-defense. Will self-defense lie in his favor?**

A: Was there unlawful aggression? Yes. The act of Y pointing his gun at X placed X's life and limb in actual and imminent danger. However, X was able to grab the gun. Does this mean that the unlawful aggression commenced by Y has already ceased to exist? No, because Y was still in possession of X's belongings and so the unlawful aggression continues to exist. The act of X firing at the arm of the holdaper is a reasonable necessity in order to get back his wallet and his cellphone. If he wanted to kill Y, he would likely to have repeatedly shot Y, but his only intention was to get back his cellphone and wallet. Third element *(Lack of sufficient provocation on the part of the accused)* and therefore, X shall be acquitted of time crime charged on the ground of self-defense.

## 2. DEFENSE OF A RELATIVE

2. Any one who acts in defense of the person or rights of his spouse, ascendants, descendants, or legitimate, natural or adopted brothers or sisters, or his relatives by affinity in the same degrees and those consanguinity within the fourth civil degree, provided that the first and second requisites prescribed in the next preceding circumstance are present, and the further requisite, in case the revocation was given by the person attacked, that the one making defense had no part therein.

**ELEMENTS:**

1. Unlawful aggression;
2. Reasonable necessity of the means employed to prevent or repel it; and,
3. In case the provocation was given by the person attacked, that the one making defense had no part therein.

   **NOTE:** Even if the relative being defended is the one who gave the provocation, for as long as the relative making the defense is not party to the said provocation, there is still a valid defense of a relative.

For defense of relative to lie in favor of the accused, it is necessary that the said relative he is defending must be included in the enumeration provided for in the second paragraph, to wit:

1. Spouse;
2. Ascendants;
3. Descendants;
4. Legitimate, natural, adopted brothers/sisters;
5. Relatives by affinity within the same degree; and
6. Relatives by consanguinity within the 4th civil degree.

## 3. DEFENSE OF A STRANGER

3. Anyone who acts in defense of the person or rights of a stranger, provided that the first and second requisites mentioned in the first circumstance of this Article are present and that the person defending be not induced by revenge, resentment, or other evil motive.

Anyone who acts in defense of the person or rights of a stranger.

**ELEMENTS:**

1. Unlawful aggression;
2. Reasonable necessity of the means employed to prevent or repel it; and,
3. The person defending is not induced by revenge, resentment, or other evil motive.

   **NOTE:** It is necessary for the defense of a stranger to lie in favor of the accused that he is not motivated by any ill motive, by any act of revenge but only by a noble objective of helping, defending a total stranger.

**BAR Q: The group of students from the University Belt planned to stage a rally at Liwasan, Bonifacio. They applied for a permit. However, City Mayor Lacuña of Manila denied their application for a permit to hold a rally at Liwasan, Bonifacio. Nevertheless, these students proceeded with the said rally. They went from the University Belt, and walked towards Liwasan, Bonifacio. The moment they were already approaching the rally site, these students were met by police officers who were already there. These police officers were armed with truncheon, water hose, all other things, and they began attacking, they began arresting the said students. When one of the students, W, saw a policeman striking X, a fellow student with his truncheon, the said student W hit the forearm of the police officer with an empty bottle of Coke in order to prevent the police officer from further hitting the head of his fellow student with his truncheon. Other police officers came, and arrested W.**

**W was charged with Direct Assault. W raised that he was merely acting in defense of a stranger. Are all the elements for defense of a stranger present or is W liable for direct assault?**

A: W is NOT LIABLE for direct assault. He merely acted in DEFENSE OF A STRANGER. All the elements are present.

*First element:* There was unlawful aggression. The police officer was hitting the head of X with a truncheon, that placed the life and limb of X in imminent danger.

*Second element:* Reasonable necessity of the means employed to prevent or repel the unlawful aggression. What W used was only an empty bottle of Coke. W only hit the arm of the police officer with an empty bottle of coke in order to prevent him from further hitting a fellow student with a truncheon. The means used are reasonable.

*Third element:* That the person defending be not induced by revenge, resentment, or other evil motive. Based on the facts of the case, there was no showing that W was ignited by any evil motive, his only intention was to help a fellow student who was being attacked on the head with a police truncheon.

All the elements are present. Therefore, the defense of a stranger will lie in favor of W. He should be acquitted of the crime of direct assault.

**Q: X saw his mother-in-law about to be stabbed by the neighbor whom she's having an altercation with. He ran towards the scene and he hit the neighbor to prevent the latter from stabbing his mother-in-law. The neighbor was injured. X was charged with Serious Physical Injury. X raised the defense of a relative. Will defense of a relative lie in favor of X?**

A: Yes. The said mother-in-law is a relative by affinity of X. If the person being defended is a relative by affinity, he must be the same degree as of ascendants, descendants, or legitimate, natural, adopted brothers/sisters. In this case, the mother-in-law is of the same degree as ascendants. Therefore, defense of relative will lie in favor of X.

**Q: *Same fact except that the person this time being defended by X is the son of his aunt who is the sister of his mother.* The neighbor was about to stab the said son. So X arrived at the scene of the crime and he hit the neighbor to prevent the son from being stabbed. Prosecuted for Serious Physical Injury, X raised defense of a relative. Will defense of a relative lie in favor of X?**
**A:** Yes. The said relative is the son of the sister of his mother. Therefore, he is X's first cousin. He is within the 4th civil degree of consanguinity. Thus, defense of a relative will prosper.

**Q: But what if the person X was trying to defend was the first cousin of his wife?**
**A:** Defense of a relative will not lie because the first cousin of his wife is a relative by affinity in so far as X is concerned. If the person being defended is a relative by affinity, he must be the same degree as of ascendants, descendants, or legitimate, natural, adopted

brothers/sisters. Cousin is not included in the said enumeration. Therefore, defense of a relative will not lie.

Instead, the defense should be defense of a stranger. All the elements of defense of a stranger under Art. 11(3) are present. In this case, X was not ignited by any evil motive. His only intention was to save the life of the first cousin of his wife. Therefore, defense of a stranger will lie in favor of X.

## 4. STATE OF NECESSITY

4. Any person who, in order to avoid an evil or injury, does not act which causes damage to another, provided that the following requisites are present;

First, That the evil sought to be avoided actually exists;
Second. That the injury feared be greater than that done to avoid it;
Third. That there be no other practical and less harmful means of preventing it.

**ELEMENTS:**

1. That the evil sought to be avoided actually exists;
2. That the injury feared be greater than that done to avoid it; and,
3. That there be no other practical or less harmful means of preventing it.

This is otherwise known as **state of necessity**. In case of justifying circumstance, there is no crime, there is no criminal, there is no criminal liability and therefore there is no civil liability.

An exception to that is Art. 11(4) of the RPC – state of necessity. Based on the fourth paragraph, there is no criminal liability but there is civil liability. However, this civil liability shall be imposed not only on the accused but also to other persons who have been benefited by the said state of necessity.

Under Art. 101 of the RPC, if there are many people who benefited with the said state of necessity, the court shall divide the civil liability proportionately among these people who benefited over the state of necessity.

**NOTE:** It is necessary that the said accused is not the author of the state of necessity. If the accused authored the state of necessity, then he has no right to raise it as a defense.

**2010 Bar Q: X was driving his car suddenly he saw a 10-wheeler truck which was parked at the middle of the road. He was already very near when he saw it because there was no light nor warning signs. If he goes on, his car will collide with this truck. If he turns to the left, he will be hitting the island. If he turns to the right, he will be hitting two persons who are talking. He turned to the right and hit two person who both sustained serious physical injuries. He is now being prosecuted for the serious physical injury sustained by these two men. He raised as a defense the fourth justifying circumstance: State of Necessity. Are all the elements present?**

A: Yes. *First, that the evil sought to be avoided actually exists.* The evil that the sought to avoid is the collision of his car to the 10-wheeler truck.

*Second, that the injury feared be greater than that done to avoid it.* If his car collides with the said truck, there is a great probability that he will die. The injury he feared of is death and that is greater than the injury he cause to the two persons.

*Third, that there be no other practical and less harmful means of preventing it.* At that particular moment based on his judgment there is no other way to save his life life except to hit these two persons. If he goes on, his car will collide with the truck and he might die. If he turns to the left, he will be hitting the island and may turn his car upside down and also he might die. The only way to go about it is to turn to the right to save his life. All the elements are present. Thus, there will be no criminal liability but there is civil liability. Who shall pay? -Not only X but also the persons in the truck because had there been a collision, they too might have died. Since they benefited from the said state of necessity, they too should be responsible in paying the civil indemnity to the persons who have been injured by reason of state of necessity.

**Q: X is a taxi driver. He has two passengers, a man and a woman. They got picked up from Makati and they are going to Pasig. It is very traffic in EDSA and so they had to find an alternate route. As he was passing by another road in Greenhills, he suddenly saw a big road sign "do not enter deep excavation at the end", but X entered and even increased speed. He even ignored the warnings of his passengers of the presence of the big sign. He went on and at the end of the road there is indeed a deep excavation. If he goes on, the car will fall on the big excavation. Turn to the right, there is a big truck. Turn to the left, there were children playing. He turned to the left and injured three children- obtaining less physical injuries. Prosecuted for less serious**

**physical injury, he claimed as a defense State of Necessity. Will the defense lie in his favor?**
A: No, because X is the author of the said State of Necessity. If the accused authored the state of necessity, then he has no right to raise it as a defense.

**NOTE 2011 BAR Q: To save himself from crashing into an unlighted truck abandoned on the road, Jose swerved his car to the right towards the graveled shoulder, killing two bystanders. Is he entitled to the justifying circumstance of state of necessity?**

A:

(A) No, because the bystanders had nothing to do with the abandoned truck on the road.
(B) No, because the injury done is greater than the evil to be avoided.
**(C) Yes, since the instinct of self-preservation takes priority in an emergency.**
(D) Yes, since the bystanders should have kept off the shoulder of the road.

**PEOPLE v. HERNANDEZ**

**FACTS:** Norma Hernandez has this wedding with the private complainant. It is a wedding based on the agreement of the elderlies, and Norma Hernandez didn't love the man. And so, she did not appear on the date of the wedding because of the embarrassment, because of the pain. Because of the acts done by Norma Hernandez, it brought embarrassment on the part of the said private complainant, the groom-to-be, as well as the family, and so, Norma was charged with Slander by Deed. To free herself both from criminal and civil liability, she raised as a defense the justifying circumstance of state of necessity

**ISSUE:** Should she be absolved of criminal liability? Should she be absolved of civil liability? Is there state of necessity as a justifying circumstance?

**RULING:**

*First element: That the evil sought to be avoided actually exists.* SC said that it is present. The SC said that the evil sought to be avoided by Norma was to live in a loveless marriage with this man all her life.

*Second element: That the injury feared be greater than that done to avoid it.* The injury that she feared to be with this man whom she doesn't love all her life is greater than the embarrassment of not appearing in the said wedding.

*Third element: That there be no other practical and less harmful means of preventing it.* There is no other way she could prevent herself from being in that situation except not to appear in the said wedding.

The SC said all the elements of state of necessity are present. Therefore, Norma Hernandez is acquitted for the crime of Slander by Deed. She acted in a state of necessity, otherwise, she will be living a life of a loveless marriage with this man whom she does not love.

In state of necessity, it does not mean that the offender is also not civilly liable. Although as a rule, in case of justifying circumstances, an offender is not criminally and civilly liable. An exception to that rule is in case of paragraph four – state of necessity. In case of state of necessity, the offender is not criminally liable, but civilly liable.

In this case, although Norma was acquitted of criminal liability for Slander by Deed, she was held liable civilly. So, yes, state of necessity is present. However, the SC said that she is liable civilly. There were already expenses because of the wedding preparations.

## 5. FULFILLMENT OF DUTY

5. Any person who acts in the fulfillment of a duty or in the lawful exercise of a right or office.

**ELEMENTS:**

1. Offender acted in the due performance of his duties or in the performance of a lawful exercise of a right or office; and
2. The resulting felony is an unavoidable consequence of the performance of his duty.

In order for the fulfillment of duty to lie, it is not only necessary that the said offender is performing his duty; it is also necessary that whatever injury that was caused by him, it was the unavoidable or necessary consequence of the due performance of his duty.

**Q: Does it mean that it can only apply to a public officer?**
A: NO, even private individuals are included. This does not apply exclusively to public officers and employees.

**Example:** X, a private individual, saw a person in danger. It is his duty to help that person. Otherwise, he can be charged with abandonment of persons in danger.

Because of the offender's due performance of his duty, lawful exercise of a right, he caused an injury, a felony resulted. If the said injury is the unavoidable consequence of the due performance of his duty, then the said justifying circumstance would lie in favor of the offender.

**PEOPLE v. DAGANI**

**FACTS:** Accused Otello Santiano (Santiano) and Rolando Dagani (Dagani) were security officers of the Philippine National railways (PNR). They were charged with the crime of murder for the killing of one Ernesto Javier (Javier).

The group of Javier had been drinking at the canteen inside the compound of the PNR. All of a sudden, the accused entered the canteen and approached the group. Dagani then held Javier while Santiano shot Javier twice at his left side, killing the latter.

Accused testified that they were ordered by their desk officer to investigate a commotion at the canteen. Dagani approached Javier who had been striking a bottle of beer on the table. Javier then pulled out a 0.22 caliber revolver and attempted to fire at Dagani, but the gun failed to go off. Then suddenly, while outside the canteen, Santiano heard gunfire and from his vantage point, he saw Javier and Dagani grappling for a .22 caliber gun which belonged to Javier. During the course of the struggle, the gun went off, forcing Santiano to fire a warning shot. He heard Javier's gun fire again, so he decide to rush into the canteen. Santiano then shot Javier from a distance of less than four (4) meters.

**ISSUE:** Whether the accused invocation of the justifying circumstances of self defense and lawful performance of official duty as PNR security officers is meritorious. (NO)

**RULING:** The Court ruled in the **NEGATIVE**.

**On the invocation of self-defense under Art. 11(1) of the RPC:**

Self-defense requires that there be:

1. There is unlawful aggression on the part of the victim;
2. There is reasonable necessity of the means employed to prevent or repel such unlawful aggression; and
3. That there is no sufficient provocation on the part of the person defending himself.

**FIRST ELEMENT: Unlawful Aggression –** Unlawful aggression is an actual, sudden, and unexpected attack or imminent danger on the life and limb of a person - not mere threatening or intimidating attitude.There is aggression in contemplation of the law when the one attacked faces real and immediate threat to one's life. The peril sought to be avoided must be imminent and actual, not just speculative.

**In this case,** the assertions that it was quite probable that Javier, during the course of the struggle for the firearm, could have easily killed the accused are uncertain and speculative. The defense failed to prove that there was unlawful aggression on the part of Javier. They were unable to present evidence that the victim actually fired his gun. No spent shells from the 0.22 gun were found. No bullets were recovered from the scene of the crime. Javier also tested for gunpowder.

When an unlawful aggression that has begun no longer exists, the one who resorts to self-defense has no right to kill or even to wound the former aggressor.

**In this case,** even if it were established that Javier fired his gun, the imminence of the danger to their lives had already ceased the moment Dagani held down the victim and grappled for the gun with the latter. After the victim has been thrown-off balance, there was no longer any unlawful aggression that would have necessitated the act of killing. Santiano went beyond the call of self-preservation when he proceeded to inflict the excessive and fatal injuries on Javier, even when the alleged unlawful aggression had already ceased.

**SECOND ELEMENT**: The means employed to neutralize the unlawful aggression are reasonable and necessary. **Reasonable necessity of the means employed does not imply material commensurability between the means of attack and defense. What the law requires is RATIONAL EQUIVALENCE.**

**In this case,** the circumstances in their entirety which surround the grappling of the firearm by Daganu and Javier do not justify Santiano'a act of fatally shooting the victim twice, such as:

1. the nature and number of gunshot wounds sustained by the victim which amounted to two fatal wounds;
2. that Dagani was able to restrain the hands of Javier and push them away from his body;
3. that Dagani was larger than Javier and push had

finished SWAT hand-to-hand combat training; and
4. Javier was inebriated that the time of the incident.

All things considered, the Court finds no error on the part of the courts *aquo* in rejecting the claim of self-defense.

**On the invocation of lawful performance of official duty under Art. 11(5) of the RPC:**

A person who acts in the fulfillment of a duty or in the lawful exercise of a right or office does not incur any criminal liability. Two (2) requisites must be present:
1. The accused must have acted in the performance of a duty or in the lawful exercise of a right or office; and
2. The injury caused or the offense committed should have been the necessary consequence of such lawful exercise.

**In this case,** the defense failed to prove that they were in fact on duty at the time they were at the canteen. The accused were unable to submit their daily time records to show that they were on duty at the time.

In the case of **People v. Dagani**, the security guards at the PNR shot the victim. They raised the defense of fulfillment of duty. The Supreme Court said that based on their time records, the said security guards were not acting in the performance of their duty because their shift was already done. The SC said that the first element is immediately absent. It cannot be said that the said security guards were acting in the due performance of their duty because based on the evidence, based on the timecard presented, they were already off duty at that time. Their duty has already lapsed at the time of the incident. Since they were off duty, the first element is immediately absent. Hence, this fulfillment of duty as a justifying circumstance was not considered by the SC.

The first thing you have to look into is if the said accused is acting in the performance of his duty or in the lawful exercise of his office.

## 6. OBEDIENCE TO A LAWFUL ORDER

6. Any person who acts in obedience to an order issued by a superior for some lawful purpose.

**ELEMENTS:**

1. An order has been issued by a superior officer;
2. Order was for a lawful purpose; and
3. The means employed to carry out the order is lawful.

### TABUENA V. SANDIGANBAYAN

**FACTS:** Luis A. Tabuena and Adolfo M. Peralta were convicted by the Sandiganbayan for malversation under Article 217 of the Revised Penal Code, having misappropriated a total of P55 million from the Manila International Airport Authority (MIAA) during their tenure as General Manager and Acting Finance Services Manager, respectively. The funds were withdrawn in three separate transactions, purportedly for payments to the Philippine National Construction Corporation (PNCC), but it was established that there were no outstanding obligations to PNCC at the time of the withdrawals.

**ISSUE:** Whether the accused acted with criminal intent or in good faith, which would negate the element of malversation. (YES)

**RULING:** The Supreme Court acquitted Tabuena and Peralta, ruling that there was a lack of criminal intent due to their good faith in complying with presidential directives. Good faith is a valid defense in a prosecution for malversation for it would negate criminal intent on the part of the accused

In so far as Tabuena is concerned, with the due presentation in evidence of the MARCOS Memorandum, we are swayed to give credit to his claim of having caused the disbursement of the P55 Million solely by reason of such memorandum. Tabuena had no other choice but to make the withdrawals, for that was what the MARCOS Memorandum required him to do. He could not be faulted if he had to obey and strictly comply with the presidential directive, and to argue otherwise is something easier said than done. Marcos was undeniably Tabuena's superior — the former being then the President of the Republic who unquestionably exercised control over government agencies such as the MIAA and PNCC. In other words, Marcos had a say in matters involving inter-government agency affairs and transactions, such as for instance, directing payment of liability of one entity to another and the manner in which it should be carried out. And as a recipient of such kind of a directive coming from the highest official of the land no less, good faith should be read on Tabuena's compliance, without hesitation nor any question, with the MARCOS Memorandum.

The MARCOS Memorandum is patently legal (for on its face it directs payment of an outstanding liability) and that Tabuena acted under the honest belief that the P55 million was a due and demandable debt and that it was just a portion of a bigger liability to PNCC. Thus, even if the order is illegal if it is patently legal and the subordinate is not aware of its illegality, the subordinate is not liable, for then there would only be a mistake of fact committed in good faith.

In the case of **Tabuena v. Sandiganbayan,** the SC appreciated obedience to a lawful order as a justifying circumstance. Although in reality, the transfer of the said funds is unlawful, since the order came from former Pres. Marcos Sr., since it came from Malacanang, the highest man in the land, the President, who is Tabuena not to obey? According to the SC, even if the order is unlawful, if the subordinate is made to believe that it is lawful and he complied with the said unlawful order, then the justifying circumstance of obedience to a lawful order will lie in his favor.

**Q: The police officers are armed with a warrant of arrest against X whose conviction is final and executory. They received a tip that X was hiding in his house. They went and surrounded the said house. The police officer said, "X napapalibutan na kami, lumabas ka, walang mangyayari sayo lumabas ka." However, no X came out, but the police officer saw X peeped through the window. The police officer gave a second warning saying that if he will not come out of his hiding place, they are going to barge inside and forcibly arrest you. No X came out. So, the police officers, ten of them, barge inside the house. Seeing X near the wall, the police officers repeatedly fired at X, all ten of them. X died. Prosecuted for homicide, the police officers raised as a defense fulfillment of duty saying that their act is justified because X would not want to surrender. Are all the elements of fulfillment of duty as a justifying circumstance present?**

A: NO. *The first element is present.* The police officers acted in the due performance of their duties. X had been hiding for the longest time, the judgment had already been final and executory, it is their duty to bring him to the national penitention and they were armed with a warrant of arrest issued by the court. Therefore, they were there to fulfill their duty to serve the warrant of arrest and arrest X.

T*he second element is absent*. The resulting injury, the death of X, is not an unavoidable necessary consequence of the police officers' fulfillment of duty. X was alone. Based on the facts, he was not armed and he just peeked through the window but when the police officers barged inside they repeatedly fired at him. In the first place, the police officers stated, "if you do not come out, the police officers will barge inside and arrest you." However, when they barged inside, they did not arrest him, they fired at him repeatedly. The death of X cannot be considered as the necessary consequence of their fulfillment of duty.

Therefore, they will be liable as charged with only the privileged mitigating circumstance of incomplete fulfillment of duty. Since there are two elements for the fulfillment of duty, based on the first mitigating circumstance under Art. 13, the presence of one element is already majority, hence, it is already considered a privileged mitigating circumstance of incomplete fulfillment of duty lowering the imposable penalty by one degree.

**BAR Q: What if X is about to be brought to the national penitentiary but he was able to escape and ran towards a neighborhood. The prison guards followed him. The people in the neighborhood are afraid. They saw X, obviously a prisoner, as he was wearing an orange shirt with a big letter "P." They saw him enter a house. They told the prison guards, *"Doon po pumunta, doon po sa bahay na yun."* So, police officers X and Z, and the BJMP personnel went to the said house and called on X to come out. However, when X came out, he was already holding a pregnant woman hostage. A bolo was placed on the neck of the said pregnant woman. The neck of the pregnant woman was already bleeding. X told the police officers, "If you will not allow me to leave, I will stab this pregnant woman. It is her life or mine." X was trying to walk, holding a knife against the neck of this pregnant woman held by him as hostage, when suddenly the said pregnant woman struggled and kicked X. At that particular moment, Police Officer Y fired a shot at X hitting him on the head. X instantly died.**

**Police officer Y is now being prosecuted for the crime of Homicide. If you are the counsel of police officer Y, what defenses will you raise in order to free your client Y from criminal and civil liability?**

A: Police officer Y may raise the **defense of fulfillment of duty.** All the elements are present

**First element:** Police officer Y was acting in the performance of his duty. It was his duty to first, bring this prisoner back to jail; and second, to save the life of this pregnant woman.

**Second element:** The said resulting injury, that is the death of X, was the unavoidable consequence of the police

officer's performance of duty. Had he not fired at X, the said woman might have been killed.

*Both elements are present,* therefore, police officer Y merely acted in the fulfillment of his duty, he should be acquitted of the crime charged. His act is justified.

As a counsel, you could also raise the **defense of a stranger.** All the elements are present.

**First element**: There is unlawful aggression coming from X, there was a knife pointed at the neck of the pregnant woman.

**Second element:** Reasonable necessity of the means employed to avoid or repel the unlawful aggression, the means used by Y was reasonable. Had he not shot X, X could have killed the said woman.

**Third element:** Based on the facts of the case, there was no showing that police officer Y was ignited by any evil motive, only a motive to save the life of the said pregnant woman held as hostage. Therefore, this justifying circumstance may also be raised by the counsel.

## 7. VIOLENCE AGAINST WOMEN AND CHILDREN (RA 9262)

**Sec. 3.** *Definition of Terms.*- As used in this Act: xxx

*(b) "Battery"* refers to an act of inflicting physical harm upon the woman or her child resulting to the physical and psychological or emotional distress.

*(c) "Battered Woman Syndrome"* refers to a scientifically defined pattern of psychological and behavioral symptoms found in women living in battering relationships as a result of cumulative abuse.

**Sec. 26.** *Battered Woman Syndrome as a Defense.* – Victim-survivors who are found by the courts to be suffering from battered woman syndrome do not incur any criminal and civil liability notwithstanding the absence of any of the elements for justifying circumstances of self-defense under the Revised Penal Code.

In the determination of the state of mind of the woman who was suffering from battered woman syndrome at the time of the commission of the crime, the courts shall be assisted by expert psychiatrists/ psychologists.

**Battered Woman Syndrome as a Justifying Circumstance**

Battered Woman Syndrome, under Sec. 3(C) of RA 9262, is the scientifically defined pattern of psychological symptoms found in women living in battering relationship as a result of cumulative abuse.

Under Sec. 26 of RA 9262, victim-survivors who are found by the court suffering from Battered Woman Syndrome do not incur any criminal liability nor civil liability, notwithstanding, the absence of any of the elements of the justifying circumstance of self-defense.

Therefore, based on Secs. 3(C) and 26 of RA 9262, if it is proven in court that the said accused woman, accused wife, is suffering from Battered Woman Syndrome, she incurs no criminal liability and no civil liability, notwithstanding the absence of the elements of the justifying circumstance of self-defense is present, even if there was no unlawful aggression coming from the victim. No criminal liability, no civil liability, therefore, it is akin to a justifying circumstance.

**Q: X and Y are married. They have been living together for 5 years. It was a happy marriage until suddenly X lost his job. After he lost his job, X has been a drunkard. Every night he would go drinking with his friends and when he comes home he would be verbally abusing his wife. This has been going home for two years already. At the time, Y became the breadwinner of the family. One night, the husband arrived home, the wife was not yet there. So he seated at the sofa while waiting. Passed 9pm, the wife arrived and so the husband stood up saying "bakit ngayon ka lang? Umuwi ka pa." The wife said "It was raining hard, I had a hard time looking for a bus and the traffic was heavy."**

**As the wife was explaining, the husband was verbally abusing the wife. When the wife reasoned out again, this time, the husband slapped her. She shouted "Sige ulitin mo pa!"**

**The husband left her and the husband went to bed. The wife and her children ate dinner. The wife went to the bedroom to get clothing for their children. As she was getting out of the bedroom, she passed by the bed where her husband was fast asleep. As she was staring at the husband, she was shivering, she was so afraid. All five (5) years of her life, she was afraid of this man. In fact, she was already under treatment and medication by psychiatrists. As she was staring at this man, tonight this man was about to stab her. She was afraid, tomorrow she might die.**

**The next day, her children might be killed. According to the wife, everything must end. So, she went to the**

**kitchen, took a knife, and thereafter, the wife stabbed the husband while the husband was fast asleep.**

**Thereafter, she went to the police station and narrated what happened. She is now being prosecuted for the crime of Parricide. Will the defense of Battered Woman Syndrome lie in her favor?**

**A:** Battered Woman Syndrome, under Sec. 3(C) of RA 9262, is the scientifically defined pattern of psychological symptoms found in women living in a battering relationship as a result of cumulative abuse.

Under Sec. 26 of RA 9262, victim-survivors who are found by the court suffering from Battered Woman Syndrome do not incur any criminal liability nor civil liability, notwithstanding, the absence of any of the elements of the justifying circumstance of self-defense.

Therefore, based on Secs. 3(C) and 26 of RA 9262, if it is proven in court that the said accused woman, accused wife, is suffering from Battered Woman Syndrome, she incurs no criminal liability and no civil liability, even if none of the elements of the justifying circumstance of self- defense is present, even if there was no unlawful aggression coming from the victim, even if the husband was fast asleep when he was stabbed to death by the wife.

As defined, Battered Woman Syndrome requires battering incidents. When you say Battery, Sec. 3 (B) of RA 9262, "Battery" refers to an act of inflicting **physical harm** upon the woman or her child resulting in physical and psychological or emotional distress.

In this case, we have verbal abuses and one physical abuse. It is only one time that he has been slapped by the husband. Therefore, Battered Woman Syndrome will not lie in her favor.

In the case of **People v. Marivic Genosa,** in order to bring about Battered Woman Syndrome, the SC said that there must be two battering episodes of abuses, and these two battering episodes of abuses must consist of a cycle of violence characterized by three phases.

These three phases of characterizing battering relationships are:

1. Tension building phase;
2. Acute battering phase; and
3. Tranquil or loving phase.

In this case, there is only one battering episode. Therefore, Battered Woman Syndrome will not lie in favor of the wife.

**Q: X and Y got married. Since the first night of their marriage, X began abusing Y. From the first night up until their 5th year of marriage X has been physically abusing his wife. In fact, Y was already under treatment and medication by a psychiatrist for two years already. Every night the husband would physically abuse her and every morning, upon seeing the bruises and concussions on the different parts of the body of Y, the husband would apologize, hug her and give her flowers and chocolates. But when nighttime comes, the husband will again physically abuse the wife.**

**One night, the husband arrived home, again he is drunk. Upon seeing the husband, the wife told the husband, "Kumain ka muna bago ka humiga. Pinaghanda kita ng hapunan." Instead of thanking the wife for the dinner, the husband punched the wife in her face. The wife fell. She shouted back at the husband, "Bakit naman?" When the wife answered back, the husband pulled out a knife and was about to stab the wife, but the wife shouted "Help!" Afraid that people will come, the husband put down the knife went to bed and fell asleep.**

**The wife went to the bedroom. As she was staring at the husband, she was shivering, she was so afraid. All five (5) years of her life, she was afraid of this man. In fact, she was already under treatment and medication by psychiatrists. As she was staring at this man, tonight this man was about to stab her. She was afraid, tomorrow she might die. The next day, her children might be killed. According to the wife, everything must end. So, she went to the kitchen, took a knife, and thereafter, the wife stabbed the husband while the husband was fast asleep.**

**The wife is now being prosecuted for the crime of Parricide. The wife raises as a defense of Battered Woman Syndrome, therefore, was moving for an acquittal.**

**To prove Battered Woman Syndrome, the defense counsel presented the psychiatrist who has been treating Y for two years.**

A: Under Sec. 26, second paragraph of RA 9262, in order to determine the state of mind of this woman abused at the time of the commission of the crime, there must be expert testimony coming from a psychiatrist and psychologist. Otherwise stated, the court by itself cannot determine the state of mind of the said offender woman. Therefore, the presentation of a psychiatrist or psychologist is indispensable to bring about an acquittal based on

Battered Woman Syndrome. The duty of the court is to acquit the said woman offender.

## I. EXEMPTING CIRCUMSTANCES (ART. 12)

**Art. 12.** *Circumstances Which Exempt from Criminal Liability.* — The following are exempt from criminal liability:

1. An imbecile or an insane person, unless the latter has acted during a lucid interval.

   When the imbecile or an insane person has committed an act which the law defines as a felony *(delito)*, the court shall order his confinement in one of the hospitals or asylums established for persons thus afflicted, which he shall not be permitted to leave without first obtaining the permission of the same court.

2. A person under nine years of age.*(Repealed by Sec. 6 of RA 9344)*

3. 3. A person over nine years of age and under fifteen, unless he has acted with discernment, in which case, such minor shall be proceeded against in accordance with the provisions of article 80 of this Code.

   When such minor is adjudged to be criminally irresponsible, the court, in conformity with the provisions of this and the preceding paragraph, shall commit him to the care and custody of his family who shall be charged with his surveillance and education; otherwise, he shall be committed to the care of some institution or person mentioned in said article 80. *(Repealed by Sec. 6 of RA 9344)*

4. Any person who, while performing a lawful act with due care, causes an injury by mere accident without fault or intention of causing it.

5. Any person who acts under the compulsion of an irresistible force.

6. Any person who acts under the impulse of an uncontrollable fear of an equal or greater injury.

7. Any person who fails to perform an act required by law, when prevented by some lawful or insuperable cause.

**Exempting Circumstances** - if present or attendant in the commission of a felony would serve to exempt the offender from criminal liability but not from civil liability.

In case of *justifying circumstances*, as a rule, no criminal liability, no civil liability. In case of exempting circumstances, no criminal liability, but as a rule, there is civil liability because a wrong has indeed been committed.

In *exempting circumstances*, the offender is absolved of criminal liability because the offender acted without voluntariness. There is the absence of any of the elements of voluntariness. We have discussed that the element of voluntariness, in case of intentional felony, we have:

1. Criminal Intent;
2. Freedom of action; and,
3. Intelligence .

Without voluntariness, there is no crime committed.

In case of exempting circumstances, just like in justifying circumstances, if the offender raises as a defense an exempting circumstance, that offender as an effect admits the acts alleged in the information but is trying to avoid criminal responsibility by saying that his case falls under Article 12 of the RPC.

| JUSTIFYING CIRCUMSTANCES | EXEMPTING CIRCUMSTANCES |
|---|---|
| The offender acted within the bounds of the law. The offender did not transgress the law. | The offender violated the law. |
| Affects the act or the crime committed. | Affects the offender. |
| There is no crime nor criminal. | There is a crime but there is no criminal since the offender acted without voluntariness. |
| There is no criminal liability nor civil liability. | There is no criminal liability but, as a rule, there is civil liability because a wrong has been committed. |
| May be raised as a defense only in intentional felonies. | May be raised as a defense in both intentional and culpable felonies. |

## 1. IMBECILE OR INSANE PERSON

1. An imbecile or an insane person, unless the latter has acted during a lucid interval.

When the imbecile or an insane person has committed an act which the law defines as a felony *(delito)*, the court shall order his confinement in one of the hospitals or asylums established for persons thus afflicted, which he shall not be permitted to leave without first obtaining the permission of the same court.

**Imbecility**

An imbecile person is one who is already advanced in age, but he has only the mental capacity of a child. An imbecile person has no lucid interval. Imbecility is at all times exempting unlike insanity.

**Insanity**

The total mental aberration of the mind. Because of the total mental aberration of the mind, this person cannot distinguish right from wrong and would not know the consequence of his acts.

| Insanity | Imbecility |
|---|---|
| An insane person is someone who has total mental aberration of the mind. That insane person cannot distinguish right from wrong, good from evil. | An imbecile person is someone who is already advanced in age, but he has only the mental capacity of a 2 to 7-year old child. |
| Insanity is not exempting in all circumstances. It is necessary that it is proven in court that the allegedly insane person did not act during the lucid interval, otherwise, he can still be convicted. | Imbecility is exempting under any and all circumstances. There is no lucid interval insofar as an imbecile person is concerned. |

In so far as insanity is concerned, the law, particularly, the Civil Code, presumes every man is sane, that every man is of sound mind. The law presumes that all acts done by a man are voluntary and willful. Therefore, based on this, an offender or an accused, who pleads the exempting circumstance of insanity, has the burden of proving beyond reasonable doubt that he or she was insane immediately, prior to, or at the time of the commission of the crime.

If the offender was able to prove that he was insane immediately prior to, or at the time of the commission of the crime, then he shall be absolved of criminal liability

because an insane person has no full and clear understanding of the nature and consequences of his act. However, if the said insane person failed to prove that he was insane immediately prior to, or at the time of the commission of the crime, then he shall be convicted as charged.

If the said person was sane at the time of the commission of the crime, he only became insane while his case was ongoing. Therefore, he only became insane after the commission of the crime. Such kind of insanity will not free him from criminal liability because the insanity that is exempting must be present immediately prior to, or at the time of the commission of the crime.

If the insanity existed after the commission of the crime, the said offender shall only be brought to the mental institution. His case shall first be archived by the RTC or MTC and he will be brought to the National Center for Mental Health, then the hearing of the case will be suspended. The moment he regains sanity, he will again be prosecuted before the court except when the crime has already prescribed.

**PEOPLE v. TANEO**

**FACTS:** Potenciano Taneo (Taneo) lived with his wife in his parent's house. A fiesta was being celebrated in their barrio and visitors were entertained in the house. Among them were Fred Tanner and Luis Malinao.

Early that afternoon, Taneo went to sleep and while sleeping, he suddenly got up, left the room with bolo in hand and, upon meeting his wife to stop him, he wounded her in the abdomen. Taneo also attacked Fred Tanner, Luis Malinao, and his father. After which he wounded himself. Taneo was charged and convicted of Parricide.

**ISSUE:** Whether Taneo is guilty of Parricide? No.

**RULING:** The Court ruled in the **NEGATIVE**.

**Taneo acted while in a dream and his acts, with which he is charged, were NOT VOLUNTARY in the sense of entailing criminal liability. –**

It appears from the evidence that:

1. The day before the commission of the crime, Taneo had a quarrel over a glass of *tuba* with Enrique Collantes and Valentin Abadilla, who invited him to come down and fight, and when he was about to go down, he was stopped by his wife and his mother;
2. On the day of the commission of the crime, Taneo was sad and weak. Early in that afternoon, he had a severe stomachache which made it necessary for him to go to bed and fall asleep.
3. When he fell asleep, he dreamed that Collantes was trying to stab him with a bolo, while Abadilla held his feet, by reason of which he got up; and as it seemed to him that his enemies were inviting him to come down, he armed himself with a bolo and left the room;
4. At the door, he met his wife who seemed to be wounded. Then, in desperation, he wounded himself;
5. As his enemies seemed to multiply around him, he attacked everybody who came his way.
6. Taneo did not have any trouble with his wife and that he loved her dearly. Neither did he have any dispute with Tanner and Malonao, nor had any motive for assaulting them.

Dr. Serafica, an expert witness, is also of the same opinion that Taneo acted while in a dream under the influence of a hallucination and not in his right mind.

Taneo did not dream that he was assaulting his wife but that he was defending himself from his enemies. And so, believing his wife was really wounded, in desperation, he stabbed himself.

In the case of People v. Taneo, the SC said that sleepwalking or *somnambulism* is akin to insanity because the offender does not know or is unconscious of what he was doing at the time of the commission of the crime. Thus, he is absolved of criminal liability.

**Q: X, the husband of Y, is having an illicit relationship with Z, the househelper. X told Z that he loves her so much but he can't leave his wife. Knowing that their relationship won't go anywhere, Z told X that she decided to go back to the province. According Z, she wanted to go back to the province because she wants to have a family of her own, a husband and children. So Z told X that she is leaving the next day. While the helper was sleeping, X entered the maid's quarter and strangled to death the said helper. The helper was found dead the next morning and the husband was found near the bed in a catatonic state. The husband was brought to the hospital and the doctor said that the husband was mentally ill. Prosecuted for the crime of murder, he raises as a defense insanity. Will insanity lie in favor of the husband?**

A: No. He became mentally ill after the commission of the crime. For insanity to exempt the offender from criminal

liability, it must exist immediately prior to or at the time of the commission of the crime. Here, he became mentally ill after he had already killed the helper. Therefore, insanity will not exempt him from criminal liability.

**Q: X was awakened at 5 o' clock in the morning. Upon getting out of bed, X immediately went to the kitchen. X took a knife and went to the house of their neighbor Y. He forcibly entered into the house of Y and went directly inside the bedroom. Finding Y asleep, X repeatedly stabbed Y until Y died. While still holding the weapon, X got out of the house of Y and went to their house. He saw his sister. The sister asked X what happened. X gave the knife to his sister and the sister embraced X. Thereafter, X sat on the ground, stomping his feet, and crying aloud like a child. The relatives of Y saw the incident and called the police. The police arrived and invited X for questioning at the police station.**

**X is now being prosecuted for the crime of Murder. According to X, he should not be held criminally liable because immediately prior to and at the time of the commission of the crime, he was suffering from insanity. Hence, X raised the defense of insanity.**

**To prove insanity, the defense counsel presented X himself. He testified in court that prior to the day of killing Y, he was suffering from all kinds of anxiety, sleepless nights, lack of appetite and nervousness. According to X, there was this voice ringing in his head saying that he has to kill Y and he only obeyed the said voice.**

**After X testified in court, the defense counsel presented the sister. The sister testified in court that prior to the day of the killing, she would often see her brother looking blankly at nowhere and talking to no one. There was also a time that she saw her brother hitting himself on the day of the commission of the crime. According to the sister, her brother went home crying and gave her the knife. Thereafter, her brother sat on the ground and cried aloud like a child. She said her brother is insane immediately prior to, or at the time of the commission of the crime.**

**Is X's defense of insanity present so as to free him from criminal liability? Will the defense of insanity lie in his favor?**

A: NO. The SC said that, in one of the cases assigned to you and other similar cases, even assuming that the accused's testimony is credible, these are merely suggestive of an abnormal mental condition which cannot be equated with total deprivation of will and total power to discern. Mere abnormality of mental faculties will not exclude imputability. Therefore, his defense of insanity will not lie in his favor.

Further, if you will look at the testimony of the sister, X went home. An insane person would not know where he lives. X recognized his sister and gave the weapon to his sister. An insane person would not even feel remorse for what he has done. There is showing that during the commission of the crime he was in lucid interval. Hence, defense of insanity will not lie.

**PEOPLE v. PUNO**

**FACTS:** Ernesto Puno (Puno) entered a bedroom of the house of Francisca Col (Aling Kikay). Puno insulted her by saying that she's a "mangkukulam" and "mambabarang mayroon kang bubuyog." He repeatedly slapped her and struck her several times on the head with a hammer until she was dead.

The assault was witnessed by Hilaria dela Cruz and by Lina Pajes. They testified that: Puno's eyes were reddish. His look was baleful and menacing. Puno told them that she already killed Aling Kikay. Puno warned them not to call the police, or else he will retaliate to them.

Puno's father surrendered him to the police. Puno was brought to the National Mental Hospital (NMH). Puno testified about five (5) months after the killing that he did not remember killing Aling Kikay. He believes that there are persons who are mangkukulam, mambabarang and mambubuyog, and that when one is victimized by those persons, his feet might shrink or his hands might swan. Puno believes that a person harmed by a mambabarang might have a headache or a swelling nose and ears and can be cured by a quack doctor (albolaryo). Consequently, it is necessary to kill the mangkukulam and mambabarang. Puno's wife testified that Puno's eyes were reddish and that he complained of a headache. The following day, Puno told his wife that a bumble wee was coming towards him and he warded it off with his hands. She did not see any bee. Puno's sister in law testified that she saw Puno while he was boxing a dog which he tied using a rope through its mouth and over its head.

**ISSUE:** Whether Puno exempted from criminal liability arising from the crime of murder. (NO)

**RULING:** The Court ruled in the **NEGATIVE**.

When insanity is alleged as a ground for exemption from responsibility, the **evidence must refer to the time preceding the act under prosecution or the other**

**very moment of its execution.**

**Insanity exists when:**

1. There is a complete deprivation of intelligence in committing the act;
2. The accused is deprived of reason;
3. The accused acts without the least discernment;
4. There is total deprivation of freedom of the will.

**Mere abnormality of the mental faculties will NOT exclude imputability.**

**In this case,** the Court concluded that Puno was NOT legally insane when he killed the hapless and helpless victim. The facts and the findings of the psychiatrist reveal that on that tragic occasion he was NOT completely deprived of reason and freedom of will.

In the case of **People v. Puno**, Puno killed a woman alleged to be mambabarang or mangkukulam. Yet, he spared the life of two other women. Supreme Court stated that obviously, the said defense of insanity will not lie. He targeted this one woman. It means he knows what he was doing at the time of the commission of the crime.

## TURALBA V. PEOPLE

**FACTS:** Calimag was driving his Honda CRV headed to a bakery shop. He parked his car 10 meters away from the bakery shop but he left the car key inside the vehicle. While he was about to get hold of the bread he bought, he turned around to check on his car but he noticed that his car was already moving away. He flagged down a tricycle and pursued the car until the car was caught in a traffic jam. He got hold of Turalba and the latter was later on arrested by the police.

Dr. Evangelista narrated that she met Turalba once for evaluation and management of his mental condition. After tests, Dr. Evangelista assessed Turalba with psychosis (*nawawala sa sarili)* due to use of alcohol and shabu. She prescribed medication and scheduled follow up checkup, but Turalba was not able to come back as we was already detained for the carnapping incident.

**ISSUE:** Whether Turalba is exempted from criminal liability on the ground of insanity. (NO)

**RULING:** The Court ruled in the **NEGATIVE**.

Insanity is an exempting circumstance under Art. 12(1) of the RPC. **Insanity exists when:**

1. There is a complete deprivation of intelligence in committing the act;
2. The accused is deprived of reason;
3. The accused acts without the least discernment;
4. There is total deprivation of freedom of the will.

Mere abnormality of the mental faculties will NOT exclude imputability.

Insanity, as a defense, is in the nature of a confession and avoidance. The person who asserts insanity is, in effect, admitting to the admission of the crime. Consequently, the burden of proof shifts to him, who must prove his defense with clear and convincing evidence. After a plea of insanity, the accused is tried on the issue of sanity alone, and if found to be sane, a judgment is rendered WITHOUT any trial on the issue of guilt, because the accused had already admitted committing the crime.

The accused must proved:

1. That the insanity constitutes a complete deprivation of intelligence, reason, or discernment; and
2. The insanity existed at the time of, or immediately preceding, the commission of the crime.

**In this case,** Turalba failed to establish his mental state, much less his insanity:

1. Aside from the testimony of Dr. Evangelista, no other witness testified as to the mental condition of Turalba. Although Dr. Evangelista opined that Turalba is suffering from psychosis, she declared that it is difficult to assess the exact mental condition of Turalba, having seen the latter only once, and she could not even identify the kind of psychosis he is afflicted with;
2. No evidence was presented to show proof that abnormal behavior before or simultaneous to the commission of the crime; and
3. While it can be true that there was some impairment of his mental faculties, since he was said to suffer from psychosis, such impairment was not so complete as to deprive him of this intelligence or the consciousness of his acts.

In the case of **Turalba v. People,** accused Turalba was charged with the crime of Carnapping. The defense raised by Turalba was insanity. To prove Turalba's insanity at the time of the commission of the crime, the defense counsel presented the doctor. According to the doctor, she first met Turalba at the mental institution in Mariveles and based on

his diagnosis of Turalba, Turalba has psychosis or *"nawawala sa sarili"* because of his continuous use of alcohol and Shabu or drugs.

Will such defense be sufficient in order to prove insanity for the crime of kidnapping? NO. The SC convicted Turalba. Although it may be true that by reason of alcoholism and use of drugs which resulted in psychosis, the accused has suffered impairment of mental faculties, such impairment does not mean complete deprivation of his intelligence and of his consciousness in the doing of his act. Hence, such defense of insanity will not lie in his favor.

**PEOPLE V. MACALINDONG (JAVIER, *J.*)**

**FACTS:** Lyn Joy Macalindong (7-year-old daughter of the accused) testified that, in one fateful evening, accused Macalindong and his live-in partner Jovelia were quarreling inside their home. Lyn Joy saw Macalindong stab Jovelia. When she approached Jovelia, the latter was already dead. Macalindong then went out of the house. Lyn Joy also testified that she heard her grandmother (Nanay Nina) saying that Jovelia was stabbed 22 times.

Macalindong testified that he could not remember what happened in the morning of the commission of the crime because he blacked out and when he woke up, he was already inside the provincial jail. The only thing he could remember was that he, Jovelia and their two children were inside the family home. He could not tell with certainty whether he was responsible for Jovelia's death. He submitted in evidence the initial report from the National Center for Mental Health (NCMH), and a Medical Certificate issued by Dr. Lindo, both certifying that he was suffering from schizophrenia.

**ISSUE:** Whether Macalindong is exempted from criminal liability on account of exempting circumstance of insanity. **(NO)**

**RULING:** Insanity, as a defense, is in the nature of a confession and avoidance. The person who asserts insanity is, in effect, admitting to the admission of the crime. Consequently, the burden of proof shifts to him, who must prove his defense with clear and convincing evidence. After a plea of insanity, the accused is tried on the issue of sanity alone, and if found to be sane, a judgment is rendered WITHOUT any trial on the issue of guilt, because the accused had already admitted committing the crime.

Establishing the insanity of an accused requires opinion testimony which may be given by a witness:

1. Who is intimately acquainted with the accused;
2. Who has rational basis to conclude that the accused was insane based on the witness' own perception of the accused; or
3. Who is qualified as an expert, such as a psychiatrist.

The testimony or proof of the accused's insanity must relate to the time preceding or coetaneous with the commission of the offense with which he is charged.

**The exempting circumstance of inanity requires two (2) elements:**

1. That the insanity of the accused constitutes **a complete deprivation of intelligence, reason, or discernment;** and
2. **The insanity existed at the time of, or immediately preceding, the commission of the crime**.

**In this case,** Macalindong's plea of insanity - that he was suffering from schizophrenia - at the time he killed Joevlia was unsubstantiated. Though he claimed to have blacked out on the day in question, there was no showing that the same happened at the time of, or immediately preceding, the killing of Joevelia. True, there was an initial report from NCMG and a Medical certificate issued by Dr. Lindo. Yet, Dr. Lincdo was not even called to identify the medical certificate, let alone, expound on the contents of the initial report, specifically the extent and the specific time frame of Macalindong's illness. Consequently, Macalindong's defense of insanity cannot be credited as an exempting circumstance.

In the case of **People v. Macalindong**, Macalindong was charged with the crime of Murder. He stabbed his live-in partner multiple times. The 7-year old daughter saw. The defense raised by Macalindong "nag blackout po ako." He said that the only thing he can remember is that he was with his wife and two children then he realized that he was already inside the provincial jail. No one was presented by the defense except him who told the court he blacked out. SC said there was no statement said as to when the blackout occurred. Was it after or before the commission of the crime? Therefore, SC said that insanity may not lie in his favor.

**BAR EXAM TIP:** Take note that Justice Amy Javier's decisions are simple and concise. So your answers must also be simple and direct. Direct to the point.

**Q: X was charged with Murder and two counts of Frustrated Murder. X raised the defense insanity. To prove insanity, X testified. According to X, X got out of**

**his house to go to the house of his friend when he passed by Y and his friends having a drinking spree. Y forced X to join him in the said drinking spree but X refused. However, Y pulled his arm and forced him to drink. Later on according to him, he did not know that Y placed drugs inside his drink and because of that he fell from his seat, fell asleep and when he woke up he's already inside the jail. He claimed insanity in the said shooting incident where he allegedly killed two persons and fatally wounded two others who survived. Will insanity lie in his favor?**

A: According to him, unknown to him drugs were placed inside his drinks, he fell from his seat and thereafter became unconscious. If it was true, he would not remember what happened to him. For insanity to lie, he must have a total mental aberration of the mind.

There was no doctor presented. Although expert testimony is not indispensable to prove insanity, this time, since the reasons for insanity is the said drugs mixed with the drinks, doctor should have been presented because it is only the doctor who can testify the connection between the said drugs and the said insanity.

## 2-3. MINORITY

**RA 9344, AS AMENDED**
**JUVENILE JUSTICE AND WELFARE ACT**

**Sec. 6.** *Minimum Age of Criminal Responsibility*. – A child fifteen (15) years of age or under at the time of the commission of the offense shall be exempt from criminal liability. However, the child shall be subjected to an intervention program pursuant to Sec. 20 of this Act.

A child is deemed to be fifteen (15) years of age on the day of the fifteenth anniversary of his/her birthdate.

A child above fifteen (15) years but below eighteen (18) years of age shall likewise be exempt from criminal liability and be subjected to an intervention program, unless he/she has acted with discernment, in which case, such child shall be subjected to the appropriate proceedings in accordance with this Act.

The exemption from criminal liability herein established does not include exemption from civil liability, which shall be enforced in accordance with existing laws.

**Q: What is the effect of minority on the criminal liability of an offender?**
A: You have to qualify. As provided for under Sec. 6 of RA 9344, as amended, or "The Juvenile Justice Act and Welfare Act", if a child is 15 years old or under at the time of the commission of the crime, he shall be totally exempted from criminal liability regardless of discernment.

If the child is above 15 but below 18 years old, he shall still be exempted from criminal liability unless he acted with discernment – in which case, he shall be prosecuted in court. Therefore, you have to first determine based on the facts if this minor child acted with discernment or not.

**NOTE:** Under Sec. 6 of RA 9344, as amended, a child in conflict with the law shall only be exempted from criminal liability but not from civil liability because a wrong has indeed been committed – that is why it is an exempting circumstance and not a justifying circumstance.

**Q: Who do you consider as a child in conflict with the law?**
A: As defined under RA 9344, as amended, a child in conflict with the law is a child who alleged as, accused of, or adjudged as having committed an offense under Philippine Laws.

**Q: For the longest time, Brothers X and Y have been asking Z to join their Rugby Boys Gang, but Z would refuse. As a result, Brothers X and Y have these feelings against Z.**

**X and Y are on one side of the road. Upon seeing Z coming, X and Y blocked the path of Z and told him, "Z, for the last time, we invite you to join our Rugby Boys Gang." However, Z answered, "X and Y, for the last time, I do not want to be part of your gang." Upon hearing these words, X and Y were very mad, and repeatedly boxed and mauled Z. For every attack, Z would bleed because the fists of X and Y have brass knuckles. Z fell on the ground.**

**The cousin of Z begged X and Y to stop attacking Z, otherwise, Z might die. Instead of stopping, X went on the back of Z while Y went on the legs of Z. Thereafter, X strangled the neck of Z resulting to his death. After killing Z and before leaving, X and Y warned the cousin of Z, "If you tell anyone what we did, we will come after you and we will do to you what we did to him."**

**At the time of the commission of the crime, X was 14 years old, while Y was 16 years old. The cousin informed the authorities. Hence, X and Y were arrested. They were charged with the crime of Homicide for killing Z.**

**If you are the judge, how will you rule on the said case?**

A: Insofar as X is concerned, X was only 14 years old at the time of the commission of the crime. Thus, the case should be outrightly DISMISSED regardless of discernment.

Insofar as Y is concerned, Y was 16 years old at the time of the commission of the crime. Y falls under the category of above 15 but below 18 years old. Hence, discernment matters.

Y acted with discernment. Such discernment is evident from the fact that Y warned the cousin – with that warning, it is evident that Y has knowledge of the consequences of his act. He knew that killing Z is an unlawful act and that if the authorities discover such, he will be arrested and prosecuted. Thus, the case should PROCEED before the court, and he shall be charged with the crime of Homicide.

**Q: (same facts) Y was charged with Homicide before the RTC. On the basis of the right to speedy trial, the hearing for the case proceeded until its termination when Y was 17 years old. Y was still a minor at the time of the promulgation of judgment finding Y guilty beyond reasonable doubt of the crime of Homicide What is the duty of the court?**

A: Under Sec. 38 of RA 9344, as amended, when a child in conflict with the law who is under 18 years old at the time of the commission of the crime is found guilty of the crime charged, the court shall determine and ascertain his civil liability arising from the crime committed. However, instead of pronouncing the judgment of conviction, the court shall place the child in conflict with the law under suspended sentence without need of application. Therefore, since the judge found Y guilty beyond reasonable doubt of Homicide at the time when he was still a minor – 17 years old, then the judge shall *motu proprio* place Y under suspended sentence without need of application. There is no need for his counsel to file a motion for a suspended sentence. It is motu proprio on the part of the court.

**Q: (same facts) what if it took the judge 2 years, and so at the time of the promulgation of judgment, Y was already 18 years old. What is the duty of the court?**

A: Since Y was a minor, 16 years old at the time of the commission of the crime, even if Y is already an adult at the time of the promulgation, still he is entitled to a suspended sentence. The court shall place Y under suspended sentence without the need of application because under Sec. 38 of RA 9344, as amended, the last sentence further provides that this suspended sentence will apply even if the juvenile offender is already 18 years old or above at the time of the promulgation of judgment. Even if the said child in conflict with the law who committed a crime when he was a minor, and became an adult at the time of the promulgation of judgment, such minor offender shall still be entitled to suspended sentence without need of application.

**RA 9344, AS AMENDED**
**JUVENILE JUSTICE AND WELFARE ACT**

**SECTION 38. Automatic Suspension of Sentence. –** Once the child who is under eighteen (18) years of age at the time of the commission of the offense is found guilty of the offense charged, the court shall determine and ascertain any civil liability which may have resulted from the offense committed. However, instead of pronouncing the judgment of conviction, the court shall place the child in conflict with the law under suspended sentence, without need of application: Provided, however, That suspension of sentence shall still be applied even if the juvenile is already eighteen years (18) of age or more at the time of the pronouncement of his/her guilt.
Upon suspension of sentence and after considering the various circumstances of the child, the court shall impose the appropriate disposition measures as provided in the SC Rule on Juveniles in Conflict with the Law.

**Q: (same facts) what if at the time of the promulgation of judgment, Y was already 22 years old. What is the duty of the court?**

A: The Court shall convict him. He is no longer entitled to suspended sentence. He shall be convicted as charged, but his minority at the time of the commission of the crime will be considered privileged mitigating circumstance.

**RA 9344, AS AMENDED**
**JUVENILE JUSTICE AND WELFARE ACT**

**SECTION 40. Return of the Child in Conflict with the Law to Court. –** If the court finds that the objective of the disposition measures imposed upon the child in conflict with the law have not been fulfilled, or if the child in conflict with the law has willfully failed to comply with the conditions of his/her disposition or rehabilitation program, the child in conflict with the law shall be brought before the court for execution of judgment.
If said child in conflict with the law has reached eighteen (18) years of age while under suspended sentence, the court shall determine whether to discharge the child in accordance with this Act, to order execution of sentence, or to extend the suspended sentence for a certain

specified period or until the child reaches the maximum age of twenty-one (21) years.

Under Art. 68 of the RPC, if the offender is a minor who acted with discernment, such minority at the time of the commission of the crime shall lower the imposable penalty by one degree. If minority is not exempting, minority shall always be a privileged mitigating circumstance.

**RA 9344, AS AMENDED**
**JUVENILE JUSTICE AND WELFARE ACT**

**Sec. 51. Confinement of Convicted Children in Agricultural Camps and Other Training Facilities.** – A child in conflict with the law may, after conviction and upon order of the court, be made to serve his/her sentence, in lieu of confinement in a regular penal institution, in an agricultural camp and other training facilities that may be established, maintained, supervised and controlled by the BUCOR, in coordination with the DSWD.

For as long as he is a minor at the time of the commission of the crime, the age of the offender at the time of promulgation of the judgment is immaterial - even he is already a senior citizen at the time of the promulgation of judgment - still, he cannot be placed in a regular penal institution to serve his sentence, instead, the offender shall be placed in an agricultural camp and other training facilities that may be established, maintained, supervised and controlled by the BUCOR, in coordination with the DSWD.

**PEOPLE V. SARCIA**

**FACTS:** Sarcia was charged with the crime of rape of **AAA, a five year old girl.** After almost 4 years, AAA's father filed a complaint for acts of lasciviousness, but the Office of the Prosecutor upgraded the charge to Rape.

The prosecution established that AAA, together with her playmates, was playing in the yard of Saling Crisologo. Suddenly, **Sarcia (who was then below 18 years old),** appeared and invited AAA to go with him to the backyard of Saling's house. She agreed. Upon reaching the palace, Sarcia removed AAA's shorts and underwear. He also removed his trousers and brief. Thereafter, Sarcia ordered AAA to lie down on her back. Then, he lay on top of her and inserted his penis into AAA's vagina. Sarcia made an up-and-down movement. AAA felt severe pain inside her vagina and said "aray". She also felt an intense pain inside her stomach. AAA's cousin witnessed Sarcia's dastardly act. After satisfying his lust, Sarcia left. The RTC found him guilty as charged. The CA affirmed the RTC. Hence, the appeal before the Supreme Court.

Meanwhile, when Sarcia was detained at the New Bilibid Prison pending the outcome of his appeal before the Supreme Court, **RA 9344 (The Juvenile Justice and Welfare Act of 2006) took effect on 20 May 2006. The RTC decision and CA decision were promulgated on 17 January 2003 and 14 July 2005, respectively.**

The promulgation of the sentence of conviction of Sarcia handed down by the RTC was not suspended as he was about 25 years old at that time, in accordance with Art. 192 of PD 603 (The child and Youth Welfare Code), and Sec. 32 of AM No. 02-1-18-SC (the Rule on Juveniles in Conflict with the Law). **Sarcia is now approximately 31 years old.** He was previously detained at the Albay Provincial Jail at Legazpi City and transferred to the New Bilibid Prison in Muntinlupa on 13 October 2003.

**ISSUE:** Whether the sentence of Sarcia shall be suspended pursuant to RA 9344. (NO)

**RULING:** The Court ruled in the **NEGATIVE**.

**Retroactive application of RA 9344. -** Under Sec. 68 of RA 9344 allows the retroactive application of the Act to those who have been convicted and are serving sentence at the time of the effectivity of the said Act, and who were below the age of 18 years at the time of the commission of the crime.

**Automatic suspension under RA 9344. -** Sec. 38 of RA 9344 provides for the **automatic suspension** of sentence of a child in conflict with the law (CICL), even if he/she is already 18 years old or more at the time he/she is found guilty of the offense charged.

**Automatic suspension under Sec. 38 is limited by Sec. 40 of RA 9344; Maximum age is 21 years old. –** While Sec. 38 of RA 9344 provides that suspension of sentence can still be applied even if the CICL is already 18 years of age or more at the time of the pronouncement of his/her guilt, Sec. 40 of the same law limits the said suspension until the said CICL reaches the maximum age of 21 years old.

**In this case,** to date, Sarcia is about 31 y/o, and the judgment of the RTC had been promulgated even before the effectivity of RA 9344. Thus, the application of Secs. 38 and 40 to the suspension is not moot and academic. However, Sarcia shall be entitled to disposition of Sec. 51 of RA 9344, which provides for the confinement of

convicted children. The Court remanded the case to the trial court for the appropriate disposition in accordance with Sec. 51 of RA 9344.

## PEOPLE V. MANTALABA

**FACTS:** The Task Force Regional Anti-Crime Emergency Response (RACER) in Butuan City received a report from an informer that a certain Allen Mantalaba, **who was seventeen (17) years old at the time**, was selling shabu in Butuan City. Thus, a buy-bust team was organized, composed of PO1 Randy Pajo, PO1 Eric Simon and two (2) poseur-buyers who were provided with two (2) pieces of P100 marked bills to be used in the purchase.

When the buy-bust team arrived at the place, the two poseur-buyers approached Allen who was sitting at a corner and said to be in the act of selling shabu. PO1 Pajo saw the poseur-buyers and appellant talking to each other. Afterwards, the appellant handed a sachet of shabu to one of the poseur-buyers and the latter gave the marked money to the appellant. The poseur-buyers went back to the police officers and told them that the transaction has been completed. Police officers Pajo and Simon rushed to the place and handcuffed the appellant as he was leaving the place.

The police officers, still in the area of operation and in the presence of barangay officials Richard S. Tandoy and Gresilda B. Tumala, searched the appellant and found a big sachet of shabu. PO1 Simon also pointed to the barangay officials the marked money, two pieces of P100 bill, thrown by the appellant on the ground.

After the operation, and in the presence of the same barangay officials, the police officers made an inventory of the items recovered from the appellant such as one big sachet of shabu, one small sachet of shabu and the 2 pieces of P100.00 marked money and a P50.00 bill. The sachets were submitted for laboratory examination which were positively identified as methamphetamine hydrochloride.

Thereafter, two separate Informations were filed before the RTC of Butuan City against appellant for violation of Sections 5 (Sale) and 11 (Illegal Possession) of RA 9165.

**ISSUE:** Whether the appellant is entitled to the suspension of his sentence due to his minority. **(NO)**

**RULING:** The appellant was **seventeen (17) years old when the buy-bust operation took place or when the said offense was committed**, but was **no longer a minor at the time of the promulgation of the RTC's Decision**.

It must be noted that RA 9344 took effect on May 20, 2006, while the RTC promulgated its decision on this case on September 14, 2005, when said appellant was no longer a minor. The RTC did not suspend the sentence in accordance with Article 192 of P.D. 603, The Child and Youth Welfare Code and Section 32 of A.M. No. 02-1 18-SC, the Rule on Juveniles in Conflict with the Law, the laws that were applicable at the time of the promulgation of judgment, because the imposable penalty for violation of Section 5 of RA 9165 is life imprisonment to death.

It may be argued that the appellant should have been entitled to a suspension of his sentence under Sections 38 and 68 of RA 9344 which provide for its retroactive application. However, this Court has already ruled in People v. Sarcia that while Section 38 of RA 9344 provides that suspension of sentence can still be applied even if the child in conflict with the law is already eighteen (18) years of age or more at the time of the pronouncement of his/her guilt, Section 40 of the same law limits the said suspension of sentence until the child reaches the maximum age of 21.

Hence, the appellant, who is now beyond the age of twenty-one (21) years can no longer avail of the provisions of Sections 38 and 40 of RA 9344 as to his suspension of sentence, because such is already moot and academic.

This would not have happened if the CA, when this case was under its jurisdiction, suspended the sentence of the appellant. The records show that the appellant filed his notice of appeal at the age of 19 (2005), hence, when RA 9344 became effective in 2006, appellant was 20 years old, and the case having been elevated to the CA, the latter should have suspended the sentence of the appellant because he was already entitled to the provisions of Section 38 of the same law, which now allows the suspension of sentence of minors regardless of the penalty imposed as opposed to the provisions of Article 192 of P.D. 603.

Nevertheless, the appellant shall be entitled to appropriate disposition under Section 51 of RA No. 9344, which provides for the confinement of convicted children in agricultural camps and other training facilities.

In the case of **People v. Sarcia** and **People v. Mantalaba**, after Sarcia and Mantalaba were convicted by the trial court, while the case was pending with the Supreme Court, RA 9344 took effect. Can RA 9344 be given retroactive application to Sarcia and Mantalaba? - YES, by express provision of the law. RA 9344 can be given retroactive application.

**RA 9344, AS AMENDED**
**JUVENILE JUSTICE AND WELFARE ACT**

**SEC. 68. Children Who Have Been Convicted and are Serving Sentence. -** Persons who have been convicted and are serving sentence at the time of the effectivity of this Act, and who were below the age of eighteen (18) years at the time the commission of the offense for which they were convicted and are serving sentence, shall likewise benefit from the retroactive application of this Act. They shall be entitled to appropriate dispositions provided under this Act and their sentences shall be adjusted accordingly. They shall be immediately released if they are so qualified under this Act or other applicable law.

**Q: Sarcia was charged with Rape. Mantalaba was charged with illegal sale of Dangerous Drugs. Both are Henious Crimes. Can he still be given suspended sentence as provided for under Sec. 38 of RA 9344, as amended?**

A: YES. The SC in the cases of *People v. Sarcia* and *People v. Mantalaba* said Sec. 38 of RA 9344, as amended, does not distinguish as to the crime committed by a child in conflict with the law. Whether the crime committed is a heinous crime punishable by Reclusion Perpetua or death, or a crime of lesser penalty, it is the duty of the court to place the said child in conflict with the law under suspended sentence without the need of application.

If the law does not distinguish, neither does the court distinguish. Hence, regardless of the crime committed by the said child in conflict with the law, he is entitled to a suspended sentence without the need of application, provided that at the time of the promulgation of judgment, he is not yet beyond 21 years old.

The moment the said offender, although a minor at the time of the commission of the crime, was already beyond 21 years old at the time of the promulgation of judgment, the court shall render the judgment of conviction. However, the penalty to be imposed shall consider the privileged mitigating circumstance of minority based on Article 68, second paragraph of the RPC.

Likewise, based on Sec. 51 of RA 9344, as amended, in lieu of the confinement in a regular penal institution, this offended who was a minor at the time of the commission of the crime shall serve his sentence in agricultural camps and other training facilities that may be established, maintained, supervised, and controlled by the Bureau of Correction in coordination with the DSWD.

Therefore, for as long as the offender is a minor at the time of the commission of the crime, regardless of his age at the time of promulgation of the judgment, he cannot be placed together with hardened criminals in regular penal institutions.

In **People v. ZZZ** and **CICL XXX v. People**, the SC defined discernment as the mental capacity of the person to appreciate the consequences of his act. It is the mental capacity of a person to distinguish right from wrong, good from evil and to appreciate or consider the consequences of his act.

**PEOPLE v. ZZZ**

SC said that ZZZ acted with discernment so the Court convicted him of the special complex crime of Rape with Homicide.

The following factors revealed that ZZZ acted with discernment:

1. He perpetrated the crime of Rape in a dark and isolated place;
2. After knowing that he had been tagged as the suspect, he evaded authorities by fleeing to Tarlac and concealing his identity;
3. As confirmed by the social worker assigned to him, he knew and understood the consequences of his acts; and
4. Dr. Bandonill concluded that AAA was raped by means of force, as evidenced by the contusions all over her body and by the tear from her vaginal area.

**CICL XXX v. PEOPLE**

**FACTS:** CICL XXX was charged with the crime of Frustrated Murder before the RTC on 1 March 2004. The Information was later amended to Frustrated Homicide. When the victim, AAA, died on 26 November 2008, the Information was amended anew, this time, to Homicide.

AAA testified against CICL XXX on during the hearing of the unrelated and separate complaint for physical injuries filed by DDD against CICL XXX before the Punong Barangay in Baguio City. AAA allegedly saw CICL XXX hit DDD with a bucket inside a bar in Assumption, Baguio City. The next day, at around 3AM, BBB (victim AAA's mom) awakened from sleep when someone shouted "Mama! Mama!" She woke up her husband and when they went outside the house, AAA was lying in front of their gate, his face and eyes bloodied. Her husband washed AAA's face with water and brought him

inside the house. When asked what happened to him, AAA told them that CICL XXX and his companion were inside their house. When AAA asked what they were doing inside his house, CICL XXX replied they were looking for somebody. Thereafter, CICL XXX struck his eyes. After narrating the incident to his parents, AAA fell asleep.

On the next day AAA complained of dizziness. As his other eye was already popping out, AAA was brought to the hospital for treatment, and was still confined at the same hospital the next day. The CT-Scan result showed that AAA suffered severe brain damage and was advised to transfer to another hospital. In the evening of the same date, he was transferred to Baguio General Hospital. Based on the CT-Scan results, the victim had massive cerebral contusions and bleeding on spaces in the brain which may have been caused by any force or object hard enough to cause damage to the brain. AAA's older sister, CCC, visited him at the hospital. AAA told her it was CICL XXX who mauled him. A few days later, AAA could no longer speak. He was later discharged from the hospital on 27 January 2004 in a vegetative state. After being bed-ridden for five years, AAA died on 26 November 2008.

In his defense, CICL XXX denied the allegations against him. He admitted meeting AAA at the Barangay Hall during the hearing of the complaint filed against him by DDD. However, CICL XXX claimed he was drinking with his friends at a computer shop in Bonifacio, Baguio City from 7PM to 12AM on 27 October 2003. Thereafter, he and his friends transferred to another bar and stayed there until 4AM of 28 October 2003. He then went home. CICL XXX admitted that he was only a student at that time. He quit school when the case was filed and returned home to Sagada to work.

**ISSUE:** Whether or not CICL XXX acted with discernment in committing the crime **(YES)**

**RULING:** The proximate cause of the death of AAA was the injury caused to him, and not the failure of his parents to immediately seek medical attention as claimed by the defense. The brain injury caused by the force of the blow of the object used in hitting AAA's head, and not the perceived delay in seeking medical help. The intent to kill is evident from the nature and location of the injury, conduct of the accused, and the circumstances under which the crime was committed. There is no justifying circumstance. However, the minority of CICL XXX warrants the retroactive application of RA 9344. Since CICL XXX was 17 at the time of the commission of the crime, it is important to determine whether CICL XXX acted with discernment in the commission of the acts complained of.

Discernment is the capacity of the child at the time of the commission of the offense to understand the difference between right and wrong and the consequences of the wrongful act. Intent is the desire of one's act, while discernment relates to the moral significance that person ascribes to the said act. The prosecution is burdened to prove that the accused acted with discernment and that the surrounding circumstances must demonstrate that the minor knew what he was doing and that it was wrong. In determining discernment, courts shall consider the totality of facts and circumstances in each case. Discernment may be established by either direct or circumstantial evidence. These include:

a) The very appearance, attitude, comportment, and behavior of the minor, not only before and during the commission of the act, but also after and even during trial;
b) The gruesome nature of the crime;
c) The minor's cunning and shrewdness;
d) The utterance of the minor;
e) His overt acts before, during and after the commission of the crime;
f) The nature of the weapon used;
g) His attempt to silence a witness; and
h) His disposal of evidence or his hiding the *corpus delicti.*

First, the gruesome nature of the attack against AAA indicates the discernment on the part of CICL XXX. He mauled the victim with a blunt object which is hard enough to break a skull or shake a brain. Second, the circumstances showed CICL XXX's cunning and shrewdness. He perpetrated the attack early in the morning at around 3:00 A.M. while accompanied by a companion. They waited for the victim to get home and after striking the victim, they escaped before any witnesses could see them. Third, CICL XXX's attack against the victim can be considered as an attempt to silence the latter or an act of retaliation for testifying against him in a separate mauling incident during the barangay proceedings. Fourth, CICL XXX testified that he quit school when the instant case was filed. He then fled to his home in Sagada. CICL XXX's overt acts of quitting school and returning home to Sagada are indicative of his awareness that what he did was wrong. CICL XXX's own testimony reveals his awareness that his actions were wrong. He dropped out of school because he was scared after he received a warning that he should watch his back. Lastly, the records bear that at or near the time of the incident, CICL XXX was a second-year Nursing

student. His level of education shows that he had the capacity to discern that inflicting bodily harm upon AAA was wrong, and it would likely result in his death.

In the case of ***CICL XXX v. People,*** the offender was charged with Homicide and the SC said he acted with discernment.

According to the Supreme Court, in determining discernment, courts shall consider the totality of facts and circumstances in each case. Such circumstances include, but are not limited to:

1. the very appearance, the very attitude, the very comportment and behavior of said minor, not only before and during the commission of the act, but also after and even during trial,
2. the gruesome nature of the crime,
3. the minor's cunning and shrewdness,
4. the utterances of the minor,
5. his overt acts before, during and after the commission of the crime,
6. the nature of the weapon used,
7. his attempt to silence a witness, and
8. his disposal of evidence or his hiding the *corpus delicti.*

CICL XXX was 17 years old when he hit the head of the victim that caused the victim to suffer brain damage. It happened at 3AM after the victim testified against him in a physical injury case. It is evident that CICL XXX acted with discernment.

**RA 9344, AS AMENDED**
**JUVENILE JUSTICE AND WELFARE ACT**

**SECTION 57. Status Offenses. –** Any conduct not considered an offense or not penalized if committed by an adult shall not be considered an offense and shall not be punished if committed by a child."

**SECTION 57-A.** Violations of Local Ordinances. – Ordinances enacted by local governments concerning juvenile status offenses such as, but not limited to, curfew violations, truancy, parental disobedience, anti-smoking and anti-drinking laws, as well as light offenses and misdemeanors against public order or safety such as, but not limited to, disorderly conduct, public scandal, harassment, drunkenness, public intoxication, criminal nuisance, vandalism, gambling, mendicancy, littering, public urination, and trespassing, shall be for the protection of children. No penalty shall be imposed on children for said violations, and they shall instead be brought to their residence or to any barangay official at the barangay hall to be released to the custody of their parents. Appropriate intervention programs shall be provided for in such ordinances. The child shall also be recorded as a 'child at risk' and not as a 'child in conflict with the law'. The ordinance shall also provide for intervention programs, such as counseling, attendance in group activities for children, and for the parents, attendance in parenting education seminars.

**Status Offenses**

Refers to any conduct not considered an offense or not penalized if committed by a child. (Sec. 57 of RA 9344, as amended by RA 10630)These status offenses include curfew violations, truancy, parental disobedience, anti-smoking, anti-drinking, etc.

**Q: Can LGUs enact or pass ordinances on status offenses?**
A: YES. Sec. 57 of RA 9344 was amended by RA 10630. There is a new Sec. 57-A which provides that LGUs are allowed to enact or pass ordinances on status offenses, provided they shall be intended for the protection of minors or children. Therefore, no penalty shall be imposed on children who violate the said ordinances; instead, these minors or children shall be brought to their residence, or to the barangay hall to be released to the custody of their parents only. Likewise, under Sec. 57-A of RA 9344 was amended by RA 10630, the said minors shall not be called as children in conflict with the law; instead, they shall be called as children at risk.They cannot be punished.

**Q: The Sanggunian passed an ordinance which states that minors below 18 years old who are found to be using and administering drugs shall be arrested and thereafter rehabilitated. For the second offense, they shall be prosecuted and placed behind bars. Here comes W, W challenged the constitutionality of this ordinance for being a status offense. Is it a status offense?**
A: No, it is not. Use of dangerous drugs is a crime penalized under RA 9165. Whether committed by an adult or a minor, makes the offender criminally liable. It is not a status enough because the law itself expressly punishes violation of Dangerous Drugs Act, whether minor or not.

## 4. ACCIDENT

4. Any person who, while performing a lawful act with due care, causes an injury by mere accident without fault or intention of causing it.

**ELEMENTS:**

1. That the offender is performing a lawful act;
2. He is performing the lawful act with due care;
3. He caused an injury by mere accident; and
4. There was no fault, no intent on the part of the said offender.

Accident is an exception to the general rule that in case of exempting circumstances, there is no criminal liability but there is civil liability. If accident is present in the commission of a crime, there is no criminal liability nor civil liability. Why? - because there is no fault nor intent.

**US v. TANEDO**

**FACTS:** The defendant took with him a shotgun and a few shells, with the intention to hunt wild chickens after he had set his laborers at work. Only one shot was heard that morning and a chicken was killed by a gunshot wound. The accused called Bernardino Tagampa, one of the laborers, to go with him and they disappeared for some time. The accused says that they went to the place where the body of the deceased lay and removed it to a place in the cogon grass where it would not be easily observed. That evening the accused and Tagampa went together to dispose of the body finally. They took it from the cogon grass where it lay concealed and carried it about seventeen or eighteen hundred meters from the place where it had originally fallen, and buried it in an old well, covering it with straw and earth and burning straw on top of the well for the purpose of concealing it.

**ISSUE:** Whether no criminal liability should be imposed to Tanedo for the death of Sanchez. YES.

**RULING:** The only possible reason that the accused could have for killing the deceased would be found in the fact of a sudden quarrel between them during the hunt. That idea is wholly negated by the fact that the chicken and the man were shot at the same time, there having been only one shot fired. It is uniformly held that if life is taken by misfortune or accident while in the performance of a lawful act executed with due care and without intention of doing harm, there is no criminal liability.

In this case there is absolutely no evidence of negligence upon the part of the accused. Neither is there any question that he was engaged in the commission of a lawful act when the accident occurred. Neither is there any evidence of the intention of the accused to cause the death of the deceased. The only thing in the case at all suspicious upon the part of the defendant are his concealment and denial. The evidence is insufficient to support the judgment of conviction.

In the case of **US v. Tanedo**, yung bumaril ng chicken, SC said acquittal because it is purely an accident.

**Prosec's comment:** my question here is that, why did he conceal the body of the deceased? I was doubtful here of the decision of the SC. Anyway, this is a landmark case that's why I included it.

**People v. Castillo**

**FACTS:** On November 5, 1993, in Cabuyao, Laguna, Castillo, armed with an illegally possessed sling and deadly arrow, intentionally shot his wife in the neck, resulting in a fatal injury that caused her instantaneous death

**ISSUE:** Whether Castillo can avail the defense of accident. **NO.**

**RULING:** "Accident" is an affirmative defense which the accused is burdened to prove, with clear and convincing evidence. The defense miserably failed to discharge its burden of proof. The essential requisites for this exempting circumstance, are:

1. A person is performing a lawful act;
2. With due care;
3. He causes an injury to another by mere accident;
4. Without fault or intention of causing it

By no stretch of imagination could playing with or using a deadly sling and arrow be considered as performing a "lawful act." Thus, on this ground alone, appellant's defense of accident must be struck down because he was performing an unlawful act during the incident.

In ***People v. Castillo***, SC said you cannot raise the defense of accident because mere possession of a sling and arrow is already unlawful. Therefore, the first element is immediately absent. This defense will not lie in favor of the said accused.

**Q: X was doing a content for Tiktok so he was in the middle of the road and he was holding a grenade. "Look at this grenade, I got this from my dad. My dad is a high ranking official of the AFP. I will show you how to use it." In the course of doing the said Tiktok video, he heard the sound of a police siren attending to an incident of Robbery, so he ran and the grenade fell. Afraid that it will explode, X picked it up and threw it so far itt exploded killing ten people.**

**X is now being prosecuted for multiple counts of Murder and he raised Accident as a defense. Will Accident lie in his favor.**
A: No. His mere possession of the grenade without license is already unlawful. Only members of the AFP and PNP can possess this. Since the first element is immediately absent, Accident may not lie in his favor.

**Q: X and Y struggled with the possession of a revolver gun. In the course of the struggle, the revolver fired once and again, it fired once, this time killing X. Y is now charged with the crime of homicide. Y's defense is Accident. Will Accident lie in his favor?**
A: No. Since the gun involved is a revolver, for it to fire another shot after the first shot, there must be a force employed on the trigger. Hence, it cannot be said to be purely an Accident. Accident will not lie.

**Q: X and Y struggled with the possession of a gun. The gun is a Calibre .45 pistol. In the course of the struggle, the gun fired hitting X two times. X died. Y is now charged with the crime of homicide. Y's defense is Accident. Will Accident lie in his favor?**
A: Yes, Accident will lie in his favor. In the case of calibre .45 pistol, after it has fired, it immediately bounces back. Hence there is no need to pull the trigger, in order for it to fire a second shot. This time, accident will lie in favor of Y.

## 5. IRRESISTIBLE FORCE

5. Any person who acts under the compulsion of an irresistible force.

**ELEMENTS:**

1. The compulsion is by physical force;
2. Physical force must be irresistible; and
3. Physical force must come from a third person.

**NOTE:** It is necessary that the force employed by the third person on the accused must be irresistible such that it reduced him to a mere instrument that he acted not only without will but also against his will.

Totally, there is no freedom of choice on the part of the accused. He has no choice but to commit the crime which he is being asked to do. Let us relate this to the sixth exempting circumstance…

## 6. UNCONTROLLABLE FEAR

6. Any person who acts under the impulse of an uncontrollable fear of an equal or greater injury.

**ELEMENTS:**

1. There exists an uncontrollable fear;
2. The fear must be real or at least imminent; and
3. The fear of the injury must be equal to or greater than the wrong act committed.

**NOTE:** Just like the fifth exempting circumstance, the offender does not have freedom of action – an element of voluntariness. The said offender has no choice but to do the criminal act which he is required to do.

### TY v. PEOPLE

In this case, far from it, the fear, if any, harbored by Ty was not real and imminent. Ty claims that she was compelled to issue the checks--a condition the hospital allegedly demanded of her before her mother could be discharged--for fear that her mother's health might deteriorate further due to the inhumane treatment of the hospital or worse, her mother might commit suicide. This is speculative fear; it is not the uncontrollable fear contemplated by law.

To begin with, there was no showing that the mother's illness was so life-threatening such that her continued stay in the hospital suffering all its alleged unethical treatment would induce a well-grounded apprehension of her death. Secondly, it is not the law's intent to say that any fear exempts one from criminal liability much less petitioner's flimsy fear that her mother might commit suicide. In other words, the fear she invokes was not impending or insuperable as to deprive her of all volition and to make her a mere instrument without will, moved exclusively by the hospital's threats or demands.

In the case of **Ty v. People**, the charges are violations of BP 22 but the defense was that she acted under the impulse of an uncontrollable fear of an equal or greater injury. According to her, she issued the checks because she was afraid that her mother would commit suicide. The said fear is purely speculative or imaginative. Hence, this exempting circumstance will not lie in her favor.

### PEOPLE v. LABUGUEN

**FACTS:** Florentino Labuguen y Francisco alias "Tinong" (Labuguen) and Romeo Zuniga (Zuniga) guilty beyond reasonable doubt of the crime of Robbery with Homicide and Frustrated Homicide.

While spouses Manuel Padre and Nenita Padre and their

two (2) daughters, Rhoda and Rachel, were having dinner at their home, five (5) men suddenly barged in. Labuguen pulled Rachel into the comfort room, together with her mother Nenita and sister Rhoda, who in turn were pulled by Macalinao and by an unidentified man, respectively. Manuel on the other hand was brought to the stores while Rhoda and Rachel were left in the comfort room. A few minutes later, Labuguen brought Rachel out of the comfort room, and she saw Zuniga, standing by the at the CR door and holding a gun. Labuguen stabbed Rachel with a small knife on the left breast and then Macalinao hit her on the forehead with the butt of a gun. Then Labuguen strangled her and as she could not remove his hands off her neck, she played dead. As soon as Labuguen stood up and left, together with the other perpetrators, she immediately ran for help to their neighbor who brought her to the hospital. At the hospital, she learned from her relatives that her parents and sister died on that fateful night. Dr. Gamabalan treated her serious injury on the left chest and less serious wounds on the head and abrasions on the check.

Zuniga, upon the instruction of Joel Albano (Albano) hit Manuel hard on the forehead, causing the latter to fall. Eric Madday, one of the five men and who also used to work for Manuel Padre, boxed Nenita on the abdomen and when Zuniga saw the chopping knife, he stabbed her (Nenita) at the back. Rudy Macalinao shot Rhoda when she tried to run away. On the belief that all members of the Padre family were dead, the group proceeded to Albano's house, where Zuniga learned that they got the money from the Padre family. He saw Albano gave a bundle of money to Rudy Macalinao. He left Delfin Albano and went into hiding.

The accused argues that the CA erred in not considering in favor of Zuniga the exempting circumstance of irresistible force and/uncontrollable fear of an equal or greater injury. Zuniga contends that he was compelled or forced at gun point by Joel Albano (Albano) to join them in robbing the house of Manuel Padre, and if he will resist, something bad will happen to him and his family.

**ISSUE:** Whether Zuniga is entitled to the exempting circumstance of uncontrollable fear. (NO)

**RULING:** The Court ruled in the **NEGATIVE**.

To avail of the exempting circumstance of an uncontrollable fear, the following requisites must be present:
The existence of uncontrollable fear;
That the fear must be real and imminent; and
The fear of an injury is greater than or at least equal to that committed.

A threat of future injury is insufficient. The compulsion must be of such a character as to leave no opportunity for the accused to escape.

In this case, Zuniga is not entitled to avail of this exempting circumstance. The malefactors had a well-hatched plan to commit the crime of robbery with homicide and that Zuniga was not only well-aware of every detail thereof but likewise actively participated in its commission. There was no genuine, imminent, and reasonable threat to his life and his family as he was an active participant in the commission of the crime charged. He acted on his own free will and was not under the impulse of an uncontrollable fear as he claims. Moreover, Zuniga had every opportunity to escape while they were passing through the cornfields on their way to Padre's house. However he did not avail of said chance. He did not perform any overt act to disassociate or detach himself from the conspiracy to commit the felony and prevent the commission thereof. While he refused to kill Rachel, he nonetheless delivered the fatal blow to Manuel's head and stabbed Nenita at her back using a chopping knife without any prodding or compulsion from his companions.

In the case of **People v. Labuguen**, the defense of Zuniga is that he was forced to participate in the special complex crime of Robbery with Homicide. According to him, he cannot be criminally liable together with the other co-conspirators. The SC ruled in the negative because Zuniga was present in all of the stages of the crime and he is part of the planning and execution of the crime. Also, the SC said that on their way to the house, Zuniga had all the means to escape but he did not show any act to disassociate himself from the crime. Also, although he said that he did not want to stab the daughter, the facts showed that he also stabbed the parents without the evidence of compulsion from his co-accused.

**Q: X was on his way home past 10 o'clock in the evening. There were no streetlights in the area. He suddenly heard gunshots. Thinking he was the one being fired at, he sat on the ground. After several seconds, he realized he was not the one being shot at. He stood up and decided to proceed going home, but he heard laughter coming from the other side of the road.**

**X went to the place where the sound was coming from and there, he saw three (3) men whom he knew to be A, B, and C, and one man whom he knew to be Y. He saw**

**that the three (3) men were all armed with guns and the victim Y was lying on the ground, bloody.**

**X then saw A firing at Y who was hit on the chest. X decided to leave but B and C saw him, and he was taken to A. X promised them that he will not tell anything to the authorities. A forced X to open his mouth and placed the gun in his mouth. Thereafter, A told X, "Shoot Y. If you do not shoot Y, I will shoot you right now." Afraid that he will be killed, X shot Y who was hit on the head. Y died.**

**A, B, and C were arrested and they were charged with the crime of Murder but they all pointed to X as the one who inflicted the fatal blow. A, B, and C told the authorities that X was a co-conspirator. X was also arrested. X raised the exempting circumstance that he merely acted under the impulse of an uncontrollable fear of an equal or greater injury. Are all the elements present?**
A: YES. All the elements are present. First element: There must exist an uncontrollable fear. What is that uncontrollable fear? X will be shot causing his death. Second element: The fear must be real or imminent. X saw A firing at Y with his own eyes. Definitely, A can also fire at him. Third element: The fear of the injury must be greater than or equal to the act committed. X feared being killed and this fear is greater than his fear of killing another person. Therefore, the exempting circumstance under the impulse of an uncontrollable fear of an equal or greater injury may be appreciated in X's favor.

**Q: So, he shall not be convicted because he is exempt of criminal liability. However, he is civilly liable. In this case, who shall bear the civil liability?**
A: The civil liability shall be adjudged against the person who employed the irresistible force or the person who gave the threat. However, in case of insolvency, then it will be against X, the one who committed the crime. (Art. 101, RPC)

## 7. FAILURE TO PERFORM AN ACT REQUIRED BY LAW

7. Any person who fails to perform an act required by law, when prevented by some lawful or insuperable cause.

If the offender fails to perform an act required by law because of some lawful insuperable cause, he is exempted from both criminal and civil liability. *(Just like in Accident-akin to a justifying circumstance.)*

## J. MITIGATING CIRCUMSTANCES (ART. 13)

**Art. 13.** *Mitigating Circumstances.* — The following are mitigating circumstances:

1. Those mentioned in the preceding chapter, when all the requisites necessary to justify the act or to exempt from criminal liability in the respective cases are not attendant
2. That the offender is under eighteen years of age or over seventy years. In the case of the minor, he shall be proceeded against in accordance with the provisions of article 80.
3. That the offender had no intention to commit so grave a wrong as that committed.
4. That sufficient provocation or threat on the part of the offended party immediately preceded the act.
5. That the act was committed in the immediate vindication of a grave offense to the one committing the felony *(delito)*, his spouse, ascendants, descendants, legitimate, natural, or adopted brothers or sisters, or relatives by affinity within the same degrees.
6. That of having acted upon an impulse so powerful as naturally to have produced passion or obfuscation.
7. That the offender had voluntarily surrendered himself to a person in authority or his agents, or that he had voluntarily confessed his guilt before the court prior to the presentation of the evidence for the prosecution.
8. That the offender is deaf and dumb, blind or otherwise suffering some physical defect which thus restricts his means of action, defense, or communication with his fellow beings.
9. Such illness of the offender as would diminish the exercise of the will-power of the offender without however depriving him of consciousness of his acts.
10. And, finally, any other circumstance of a similar nature and analogous to those above mentioned.

**Mitigating Circumstances** - when present or attendant in the commission of the felony, would serve to lower, reduce, or decrease the imposable penalty.

The penalty will be lowered because there is a diminution of the offender's voluntariness in the commission of the crime. There is either a diminished criminal intent, a diminished criminal action, or a diminished intelligence on the part of the accused.

In *exempting circumstances,* there is a total lack of voluntariness which is why the offender is exempted from criminal liability. In mitigating circumstances, there is voluntariness, but it is diminished. Thus, its only effect is to reduce or decrease the imposable penalty.

**Kinds of Mitigating Circumstances**

There are two kinds of mitigating circumstances:

1. **Ordinary mitigating circumstances** - may be offset by a generic aggravating circumstance. If it is not offset, its effect is to lower the penalty to the minimum period prescribed by law.

2. **Privileged mitigating circumstances** - cannot be offset by any kind of aggravating circumstance. Its effect is to lower the imposable penalty by one degree.

## 1. INCOMPLETE JUSTIFYING / EXEMPTING CIRCUMSTANCE

1. Those mentioned in the preceding chapter, when all the requisites necessary to justify the act or to exempt from criminal liability in the respective cases are not attendant

Those justifying circumstances or exempting circumstances when all the elements necessary to justify the act or exempt the offender from criminal liability in their respective cases are not attendant. Otherwise stated, we have an incomplete justifying circumstance, or incomplete exempting circumstance.

When all the elements necessary to justify the act are not present, we have an incomplete justifying circumstance. When all the elements necessary to exempt the offender from criminal liability are not present, we have an incomplete exempting circumstance.

**Rules on the Determination of Incomplete Justifying / Exempting Circumstances**

The Court is guided by some rules on how they determine whether an incomplete justifying circumstance, or incomplete exempting circumstance shall be considered as an ordinary mitigating or a privileged mitigating circumstance. The following are the rules:

1. If majority of the elements necessary to justify the act, or to exempt the offender from criminal liability attended the commission of the crime, the incomplete justifying or exempting circumstance shall be treated as a **privileged mitigating circumstance.**

2. If less than a majority of the elements necessary to justify the act or exempt the offender from criminal liability attended the commission of the crime, the incomplete justifying or exempting circumstance shall be treated as an **ordinary mitigating circumstance.**

3. If there are only two elements necessary to justify the act or exempt the offender from criminal liability, the presence of only one element shall be considered as a majority. Thus, it shall be considered as a privileged mitigating circumstance.

4. In case of incomplete self-defense, incomplete defense of a relative, or incomplete defense of a stranger, there must always be the element of unlawful aggression.

   If only the element of unlawful aggression attended the commission of the crime, the incomplete self-defense shall be considered as an **ordinary mitigating circumstance.**

   If aside from unlawful aggression, another element attended the commission of the crime, the incomplete self-defense shall be considered as a **privileged mitigating circumstance.**

**Q: X was hurting people passing by the road in his subdivision. His neighbors called for police assistance. Police Officer A arrived together with other police officers. They saw X armed with a bolo, threatening and hacking people passing by and so A told X to put the bolo on the ground. Instead of following Police Officer A, X raised the bolo and ran towards A in a hacking position. Because of this, the police officers fired at him and so X was wounded and fell on the ground but no fatal wounds. While X was down on the**

**ground Police officer A walked towards X, grabbed the bolo and fired three shots in his head. X died. Prosecuted for the crime of Murder, A raised the defense of self-defense and he is acting in the fulfillment of his duty as a police officer.**
**Is there self-defense or at least an incomplete self-defense?**
A: There is no self-defense as a justifying circumstance and there is also no incomplete self-defense as a mitigating circumstance. Here, what is missing is unlawful aggression. At the time X is already slumped on the ground and when police officer A has already grabbed the bolo, the unlawful aggression has ceased to exist.

**Q: Is there a fulfilment of duty as a justifying circumstance?**
A: *First element*, the offender acted in the due performance of his duties or in the performance of a lawful exercise of a right or office. Yes, it is present, he was there because the people called him asking for help.

*Second element,* the resulting felony is an unavoidable consequence of the performance of his duty. This second element is absent because killing X is not the unavoidable consequence of A's performance of duty. There was no more reason for police officer to shoot X on the head three times because X was already immobilized.

Since fulfillment of duty has only two elements, the presence of one is already majority and thus, it is considered as a **privilege mitigating circumstance of incomplete fulfilment of duty.**

## 2. MINORITY & SENIORITY

2. That the offender is under eighteen years of age or over seventy years. In the case of the minor, he shall be proceeded against in accordance with the provisions of article 80.

The second mitigating circumstance is "That the offender is under eighteen year of age or over seventy years."

Minority, if not an exempting circumstance, is always a privileged mitigating circumstance. Minority is considered a privileged mitigating circumstance when the child in conflict with the law is over 15 but under 18 and he acted with discernment. It is always a privileged mitigating circumstance since it is expressly provided under second paragraph of Art. 68 of the RPC. The moment the offender is over 15 but under 18, the penalty shall be lowered by one (1) degree. Hence, it is a privileged mitigating circumstance, never an ordinary mitigating circumstance.

*What about Seniority?*

**Q: X and Y are friends. X was borrowing money from Y, but Y said no. X got mad and stabbed Y causing his death. At the time of the killing, X was 74 years old. What is the effect of the fact that the accused was 74 years old at the time of the commission of the crime?**
A: It will lower the imposable penalty. It shall be considered as an ordinary mitigating circumstance.

## 3. PRAETER INTENTIONEM

3. That the offender had no intention to commit so grave a wrong as that committed.

**ELEMENTS:**

1. That a felony has been committed; and
2. That there is a notable disparity between the means employed by the offender and the resulting felony.

*Let us relate it to the 4th mitigating circumstance…*

## 4. SUFFICIENT PROVOCATION OR THREAT

4. That sufficient provocation or threat on the part of the offended party immediately preceded the act.

**ELEMENTS:**

1. That the provocation must be sufficient;

   Provocation is said to be sufficient –
   a. When it is adequate to stir a person to commit an unlawful act; and
   b. When it is proportionate to the gravity of the act.

2. The said provocation must originate from the offended party; and

   **NOTE:** It is necessary that the said provocation must come or originate from the victim or the private offended party. If it comes from any other person, this mitigating circumstance will not lie in favor of the accused. The very victim must be the one who provoked him to commit the crime.

3. The provocation must be immediate to the commission of the crime by the person provoked.

**NOTE:** The law requires that the provocation must be immediate to the commission of the crime by the accused or the person provoked. The word *"immediate"* here does not allow a lapse of time – right after the victim provoked the accused, the accused committed this wrongful act against the said victim. No lapse of time in between the provocation and the commission of the crime by the accused.

**URBANO v. PEOPLE**

**FACTS:** Victim Brigido Tomelden and Urbano had a heated altercation wherein the former hurled insulting remarks at Urbano. The exchange of words led to an exchange of blows. They refused to be pacified and continued throwing fist blows at each other. Urbano then delivered a "lucky punch" on Tomelden's face, which made Tomelden topple down. Rosario brought Tomelden to the Sison Memorial Provincial Hospital, where the attending physician diagnosed Tomelden to be suffering from "brain injury, secondary to mauling to consider cerebral hemorrhage." Later on, he died. Urbano was charged with the crime of Homicide.

**ISSUE:** W/N sufficient provocation on the part of the victim and lack of intent to commit so grave a wrong should be appreciated (YES)

**RULING: YES.** In the instant case, Tomelden's insulting remarks directed at Urbano and uttered immediately before the fist fight constituted sufficient provocation. This is not to mention other irritating statements made by the deceased while they were having beer in Bugallon. Urbano was the one provoked and challenged to a fist fight.
Moreover, the mitigating circumstance that Urbano had no intention to commit so grave a wrong as that committed should also be appreciated in his favor. While intent to kill may be presumed from the fact of the death of the victim, this mitigating factor may still be considered when attendant facts and circumstances so warrant, as in the instant case. Considering that Urbano tried to avoid the fight, being very much smaller than Tomelden. He tried to parry the blows of Tomelden, albeit he was able, during the scuffle, to connect a "lucky punch" that ended the fight. And lest it be overlooked, Urbano helped carry his unconscious co-worker to the office of the LIWAD's general manager. Surely, such gesture cannot reasonably be expected from, and would be unbecoming of, one intending to commit so grave a wrong as killing the victim. A bare-knuckle fight as a means to parry the challenge issued by Tomelden was commensurate to the potential violence Urbano was facing. It was just unfortunate that Tomelden died from that "lucky punch", an eventuality that could have possibly been averted had he had the financial means to get the proper medical attention. Thus, it is clear that the mitigating circumstance of no intention to commit so grave a wrong as that committed must also be appreciated in favor of Urbano while finding him guilty of Homicide. That Urbano landed a lucky punch on Tomelden's face while their co-workers were trying to separate them is a compelling indicium that he never intended so grave a wrong as to kill the victim.

In the case of *Urbano v. People***,** they were co-employees and were engaged in a drinking spree. Tomelden, the victim had always been bullying Urbano. Urbano said enough is enough. There was a heated argument that led to a fist fight. Urbano was losing because he was a small man. Still, he kept on fighting until he landed on the right jaw of Tomelden which the SC called "lucky punch. *Isang tama lang, tumba.* Tomelden became unconscious and after that he was in and out of the hospital until he died. Urbano now is being prosecuted for the crime of Homicide, convicted, the Court appreciated *praeter intentionem* since there was a notable disparity between the means employed by the accused in hitting the victim with one "lucky" punch and the resulting felony which produced the death of the victim. The Court held that the accused did not intend to commit so grave a wrong, as that of killing the victim.

The Court also considered sufficient provocation. The acts done by the victim, he kept on teasing and bullying Urbano, were sufficient to stir the accused to commit a wrongful act. The wrongful act was proportionate to the provocation since it merely ensued into a confrontation and later, into a fist fight. Therefore, there was sufficient provocation which originated from the victim.

**MIRANDA v. PEOPLE**

**FACTS:** Pilo and Damaso were already on their way home from a party when they passed by the house of Miranda and they threw stones at the latter's home. While Pilo was on his way home, Miranda suddenly went outside and started hacking Pilo. He hit Pilo' s right forehead. Again, Miranda tried to hit Pilo, but the latter parried the attack with his left arm. Miranda was charged with the crime of Frustrated Homicide. Miranda contends that while he admits that he hacked Pilo, his acts where done in self-defense.

**ISSUE:** W/N self-defense should be appreciated (NO)

**RULING:** N**O.** The SC held that although the justifying

circumstance of self-defense may not be appreciated in the present case, the mitigating circumstance of sufficient provocation may be appreciated.
In Gotis v. People, the Court held that while an act cannot be considered an unlawful aggression for the purpose of self-defense, the same act may be regarded as sufficient provocation for the purpose of mitigating the crime. "As a mitigating circumstance, sufficient provocation is any unjust or improper conduct or act of the victim adequate enough to excite a person to commit a wrong, which is accordingly proportionate in gravity." The victim must have committed a prior act that incited or irritated the accused. Likewise, in order to be mitigating, the provocation must be sufficient and should immediately precede the act.

Although Pilo' s act of hurling stones may not be regarded as an unlawful aggression, admittedly, however, such deed was vexatious, improper, and enough to incite Miranda into anger. The fact that Miranda was stirred to rage was understandable considering that his wife and daughter were at his home, and were peacefully having supper when Pilo threw the stones.

In fact, in a long line of cases, the Court considered that although there may have been no unlawful aggression on the part of the victim, if the latter was, nonetheless, deemed to have given sufficient provocation, then the accused's liability shall be mitigated. Such acts which were deemed vexatious range from the victim's act of challenging the accused's family while armed with a bolo; or thrusting a bolo at the accused while threatening to kill him, with the lives of the accused's wife and children placed in peril; and the victim attempting to hack the accused. Pilo's act falls within this range.

In another case, the victim came from a fiesta. He was walking and suddenly saw the house of Miranda. He pulled up stones from the ground and threw it on the house of Miranda. Miranda got mad and chased the victim and thereafter hit him. Miranda is being prosecuted for the Crime of Frustrated Homicide. The defense raised is the mitigating circumstance of sufficient provocation. According to Miranda, he was merely acting in self-defense in particular in defense of his life and defense of his property.

The SC held that the act of the victim in throwing stones at the house of the accused cannot be considered as unlawful aggression. Thus, the accused's invocation of self- defense has no merit. It is not unlawful aggression because based on the facts, the stones only hit the roof and the door of the house. Therefore, the said act of throwing the stones did not place the life and limb of the accused and his family in actual and imminent danger. However, while self-defense cannot be appreciated, sufficient provocation can be considered. According to the SC, the victim's act of throwing the stones annoyed, vexed or irritated the accused. It is an act that caused Miranda to chase the victim and thereafter hack the victim. Therefore, there is sufficient provocation as a mitigating circumstance.

## 5. IMMEDIATE VINDICATION OF A GRAVE OFFENSE

5. That the act was committed in the immediate vindication of a grave offense to the one committing the felony *(delito)*, his spouse, ascendants, descendants, legitimate, natural, or adopted brothers or sisters, or relatives by affinity within the same degrees.

**ELEMENTS:**

1. There be a grave offense to the one committing the felony, his spouse, ascendants, descendants, legitimate, natural, or adopted brothers or sisters, or relatives by affinity within the same degree; and
2. The said act or grave offense must be the proximate cause of the commission of the crime.

**Q: When you say "grave offense" is it necessary that the said act must be punished by law?**
A: No, grave offense refers to any act that caused the accused that feeling of wanting to have a revenge or vindicate himself or himself. It need not be an act punished by law.

Under the second element, the word "immediate" allows for a lapse of time. The reason given by the SC is that there was erroneous translation of the Spanish Codigo Penal. In the Spanish Codigo Penal, the word "proxima" was used, which was translated into "immediate" under the RPC. Under the second element, it suffices that the grave offense is the proximate cause for the commission of the crime.

### BACABAC v. PEOPLE

**FACTS:** Hernani Quidato (victim) was at a dance hall with Eduardo, Melchor, Jonathan Bacabac (son of the accused) and Edzel. The accused and Edzel (the accused group) left, and not long after, Hernani, Eduardo and Melchor (the victim group) also left. On their way home, the victim group encountered the accused group and they had a misunderstanding. Jesus Rosadio, a witness, saw Melchor "hugging" Edzel and later tying Jonathan with his hands, and that Hernani hit Edzel with a stick.

He warned the victim group that Edzel is the son of a councilor. Eduardo told Jesus to go away or they might shoot him, and Jesus did but went to Edzel's residence to report to the councilor what he witnessed. The accused group managed to flee.

As the victim group was headed home, they met Pat. Ricardo Bacabac (accused) with the rest of the accused group, and the councilor. The accused and the councilor were holding M-16 armalites, while Jonathan and Edzel were carrying a piece of wood and a revolver. Jesus pointed to the victim group as the ones manhandling Jonathan and Edzel. The victim group apologized, explaining that they mistook Jonathan and Edzel for other persons, but Jesus blurted out, "you are just bragging that you are brave. You are only bullying small children." Accused then fired his armalite into the air, while Jose fired his armalite at the victim group, even hitting Jonathan in the thigh in the process. Eduardo and Jernani fell into a kneeling position, and as they were raising their hands in surrender, Councilor Jose shot them again. Melchor escaped. Hernani was brought to the hospital and died upon arrival, while Eduardo died 2 hours later.

2 informations for murder, qualified by treachery and evident premeditation were filed against the accused group for the deaths of Eduardo and Hernani.

**ISSUE:** Whether or not the mitigating circumstance of immediate vindication absolves Bacabac of liability **(NO)**

**RULING:** NO. The offense committed on Edzel was "hitting" his ear with a stick (according to Jesus), a bamboo pole (according to Edzel). By Edzel's own clarification, he was hit at his ear, not on his head. That act would certainly not be classified as a "grave offense." And Edzel is the accused's nephew, hence, not a relative by affinity within the same degree contemplated in Article 13(5) of the RPC.

Further, from the mode and manner in which the crimes were perpetrated, the conduct of petitioner before, during, and after their commission, and the conditions attendant thereto, conspiracy, which need not be proved by direct evidence, is deduced. Petitioner's firing of his armalite could not have amounted to none other than lending moral assistance to his co-accused, thereby indicating the presence of conspiracy.

Almost simultaneously, the accused fired his gun into the air as Jonathan lunged at Hernani and his companions to hit them with the piece of wood. Almost simultaneously, Councilor Jose fired his gun at Hernani and shot Eduardo, hitting them and, in the process, hitting his nephew, Jonathan. The accused did not lift a finger when Jose fired at and shot Hernani and Eduardo. He stood by as Jose shot Hernani anew when the latter on bended knees, raised his 2 hands, in surrender. The accused group then fled from the scene, with their respective firearms and weapons. The overt act of the accused and Councilor in conjunto, constitute proof of conspiracy.

What is outrageous is that the Appellant was a policeman. He could very well have just arrested the culprits as they sauntered by and brought them to the police station for the requisite investigation and the institution of criminal complaints, if warranted. He could have dissuaded Jose and Jesus and assured them that the culprits will be duly investigated and charged if warranted. The Appellant did not.

Petitioner's failure to assist the victims after the shooting reinforces this Court's appreciation of community of design between him and his co-accused to harm the victims. That it was he who first officially reported the shooting to the police station does not make him any less a conspirator. Voluntary surrender and non-flight do not conclusively prove innocence. Besides, a conspirator who wants to extricate himself from criminal liability usually performs an overt act to dissociate or detach himself from the unlawful plan to commit the felony while the commission of the felony is in progress.

In the case of **Bacabac v. People**, Edzel was hit by a stick on the ear and so Bacabac and the other relatives attacked the group of the victim. According to them, there was a grave offense done to Edzel. SC said no, hitting the ear of Edzel with just a piece of stick cannot be considered as a grave offense that requires vindication. Hence, the mitigating circumstance of immediate vindication of a grave offense was not considered by the Supreme Court.

## 6. PASSION OR OBFUSCATION

6. That of having acted upon an impulse so powerful as naturally to have produced passion or obfuscation.

**ELEMENTS:**

1. There be an act both unlawful and sufficient to produce passion and obfuscation on the part of the accused; and
2. The act that produced the passion and obfuscation was not far removed from the commission of the crime by a considerable length of time during

which the offender might have recovered his normal equanimity.

That there must be an act both unlawful and sufficient. Therefore, the passion and obfuscation dealt by the accused must arise from **lawful sentiments** because an unlawful act had been done against him for there to be passion and obfuscation. Again, it must be done **immediately.**

**PEOPLE v. SABALBERINO**

**FACTS:** Angela and Jessica, daughters of William Sablberino and Delia Sablberino, awoke to the sound of their parents shouting at each other. They witnessed William punch Delia in the face. As Angela and Jessica rushed to embrace their mother, William went to the kitchen, got a knife, and proceeded to stab Delia in the chest below her armpit. Delia then collapsed. William then went to her aid, embraced her, and cried. He asked his children to call for help, but Delia died soon thereafter. William was charged with the crime of Parricide. In his defense, William interposed passion or obfuscation, voluntary surrender and lack of intention to commit so grave a wrong as that committed.

**ISSUE:** W/N passion or obfuscation, voluntary surrender and lack of intention to commit so grave a wrong as that committed should be appreciated (NO)

**RULING:**

Passion and obfuscation

It has been held that there is passional obfuscation when the crime was committed due to an uncontrollable burst of passion provoked by prior unjust or improper acts, or due to a legitimate stimulus so powerful as to overcome reason. The obfuscation must originate from lawful feelings. The excitement which is inherent in all persons who quarrel and come to blows does not constitute obfuscation.

In the present case, the prosecution was able to establish that the crime was precipitated by a quarrel between accused-appellant and the victim. However, such kind of argument, no matter how heated or serious it was, is not the kind that would cause the passion or obfuscation contemplated under the law.

Voluntary surrender

As to the mitigating circumstance of voluntary surrender, the same can be appreciated if the accused satisfactorily complies with three requisites, to wit: (1) he has not been actually arrested; (2) he surrendered himself to a person in authority or the latter's agent; and (3) the surrender is voluntary. There must be a showing of spontaneity and an intent to surrender unconditionally to the authorities, either because the accused acknowledges his guilt or he wishes to spare them the trouble and expense concomitant to his capture.

In the instant case, there was no showing of spontaneity on the part of accused-appellant as it was not he who asked for the police to go to their house. Neither was there proof that he acknowledged his guilt when apprehended by the police authorities. While it appears that he did not resist when the police officers brought him to the police station for questioning, such lack of resistance does not necessarily equate to his voluntary surrender. The voluntariness of one's surrender should denote a positive act and not a mere compliant or submissive behavior in the presence of authorities.

Lack of intention to commit so grave a wrong as that committed

This circumstance addresses itself to the intention of the offender at the particular moment when such offender executes or commits the criminal act.

In the instant case, the undeniable fact is that when the accused-appellant attacked the victim, the former used a deadly weapon and inflicted a mortal wound on the latter. While intent to kill is purely a mental process, it may be inferred from the weapon used, the extent of the injuries sustained by the offended party and the circumstances of the aggression, as well as the fact that the accused performed all the acts that should have resulted in the death of the victim. Indeed the location and nature of Delia's stab wound belie accused-appellant's claim of lack of intention to commit so grave a wrong against the victim.

In the case of **People v. Sabalberino**, the husband and the wife were fighting. The children came out and saw their parents fighting and they went to their mother. William took a knife and stabbed Delia on the chest. Delia tried to ask for help but eventually she died. Sumama si William sa mga pulis. Now being prosecuted for the crime of Parricide, he raised the mitigating circumstances of sudden impulse of passion and obfuscation, *praeter intentionem* and voluntary surrender.

The SC did not appreciate sudden impulse of passion and obfuscation. The SC said that the anxiety present in all kinds of quarrel is not the kind of passion and obfuscation that will mitigate the criminal liability of an accused because it must arise out of lawful sentiments.

In this same case, the SC also did not appreciate the mitigating circumstance of voluntary surrender because the element of spontaneity is not present. It was the neighbors who were the ones who called the police. Although William went with the police without any struggle, voluntarily, willingly, he went to the police for questioning and investigation; but the SC said, that will not amount to voluntary surrender because voluntary surrender requires a positive act and not mere compliance and submissive behavior before public authorities.

As to *praeter intentionem*, the SC said that the weapon used and the part of the body of the victim that was stabbed indicate that there is intention to kill. William stabbed Delia on the chest with a knife. Therefore, he cannot say that he had no intention to commit so grave a wrong as that committed.

**Q: X, the brother of Y, arrived home and he heard the voice of Y shouting for help. He rushed towards the sister, who was only 7 years old, naked, and on top of her sister is their neighbor who was also naked. When the neighbor saw X, he jumped outside the window and fled. X followed the neighbor, armed with a bolo, he repeatedly hacked the neighbor until the neighbor died. Prosecuted for homicide, X raised the defense of defense of a relative. Will the defense of a relative lie?**

A: Obviously, defense of a relative will not lie. The moment the neighbor has fled the scene, unlawful aggression has ceased to exist.

However, the mitigating circumstance of sudden impulse of passion and obfuscation is present. The act done was unlawful and it gave him that feeling to kill the said victim. Immediate vindication of a grave offense may also be raised. Both mitigating circumstances are present. However, you can only appreciate these two as one mitigating circumstance.

According to the Supreme Court, if par. 4, par. 5 and par. 6 of Art.13 of the RPC are all present in the commission of the crime and they arose out of the same facts and circumstances, they shall be treated only as one mitigating circumstance.

## 7. VOLUNTARY SURRENDER / VOLUNTARY PLEA OF GUILT

> 7. That the offender had voluntarily surrendered himself to a person in authority or his agents, or that he had voluntarily confessed his guilt before the court prior to the presentation of the evidence for the prosecution.

Under Par. 7, we have two mitigating circumstances:

a. Voluntary surrender; and
b. Voluntary plea of guilt.

### a. VOLUNTARY SURRENDER

**ELEMENTS:**

1. The offender has not been actually arrested;
2. He surrendered to a person in authority or his agent; and
3. The said surrender is voluntary in nature.

On the first element, that the offender has not been actually arrested, the offender has not yet been arrested by the police authorities or any other agencies of the government tasked to arrest a person.

Second, he surrendered to a person in authority, the governor, the barangay chairman, the mayor, or to an agent of a person in authority, the police officers, the barangay captains.

The third element, the surrender is done voluntarily. It is voluntary when it is done spontaneously and unconditionally. Spontaneously because either he felt remorse and he wanted to plead guilty for the crime he committed or he wanted to save the government expenses that it will incur the moment they serve the warrant of arrest to the offender.

### b. VOLUNTARY PLEA OF GUILT

**ELEMENTS:**

1. The plea of guilt must be done spontaneously and unconditionally;
2. The plea of guilt must be done in open court; and
3. The plea of guilt must be done before the presentation of evidence of the prosecution.

The plea of guilt is said to be done spontaneously when it is in the original crime charged. The crime charged is murder, he pleaded guilty to murder. It is done unconditionally when it is not subject to any condition. He is charged as principal in robbery, he pleaded guilty as a principal in robbery, it is not subject to any condition.

The second element, where is the plea of guilt done? Before the court trying the case. That is the trial courts, the METC or the RTC, etc.

When should the plea of guilt be done? Before the presentation of evidence of the prosecution. It can be before arraignment, before pre-trial, during the preliminary context, but not the moment the prosecution already presented their evidence.

**Q: X was charged with a crime of estafa, a complaint for estafa was filed before the office of the Public Prosecutor, it found probable cause, the case was filed before a judge, the judge then found probable cause, and a warrant of arrest was issued against X. X learned that a warrant of arrest was issued against him. Upon learning, he immediately went to the police and surrendered. The police went to the court if indeed a warrant of arrest was issued against X, and the court concurred. X posted bail. During arraignment, X pleaded guilty to the crime charged. Should the judge consider both voluntary surrender and voluntary plea of guilt?**

A: Yes. The judge should consider both. There is voluntary surrender, all the elements are present. First, he has not yet been arrested. He surrendered to agents of persons in authority, the police officers. The element of spontaneity in his act is when he learned that a warrant of arrest was issued against him, he immediately went to the PNP station to give himself up unconditionally.

There is also a voluntary plea of guilt the said the said plea of guilt was to the crime of estafa, the crime charged. It was made during arraignment before the presentation of evidence of the prosecution.

**Q: X was charged of murder attended by treachery. The public prosecutor found probable cause, the information was filed before the RTC, RTC found probable cause, RTC issued a warrant of arrest. The warrant was already with the PNP station, but they did yet started the arrest. X was at the time hiding, and upon the act of the wife saying "sumuko ka na, sumuko ka na, alang-ala sa anak mo." After 6 months, X went to the police and gave himself up. During arraignment, he was placed behind bars without possibility of bail. During arraignment, he pleaded not guilty at first but on plea bargaining, he pleaded guilty to the crime of homicide with the consent of the judge, the public prosecutor, and the heirs of the victim. Should the judge consider voluntary surrender and voluntary plea of guilt as mitigating circumstances?**

A: The judge should not consider both voluntary surrender and voluntary plea of guilt.

There is no element of spontaneity. He went into hiding. He was gone for 6 months. Even if he was convinced by his wife to surrender, 6 months has gone by and the element of spontaneity on the part of the accused is absent, therefore, it cannot be considered as voluntary surrender.

Likewise, there is no voluntary plea of guilt. Because the plea was not done spontaneously, and it was also done for

the lesser crime of homicide and the crime charged was murder.

**Q: X was charged with illegal possession of firearms under RA 10591. During arraignment, X immediately pleaded guilty to the crime charged. Should the judge consider the mitigating circumstance of voluntary plea of guilt?**

A: Yes, the judge should consider it. Even if RA 10591 which punishes illegal punishes of loose firearm, a violation of special penal law, it has the same nomenclature of penalties as the RPC. The penalties under RA 10591, are *reclusion perpetua, reclusion temporal, prison mayor.* Therefore, provisions of the RPC can apply to it based on Article 10 of the RPC. The RPC applies suppletorily.

**Q: X was charged with illegal sale of dangerous drugs. He pleaded guilty only to illegal possession of dangerous drugs. Can voluntary plea of guilt be considered in his case?**

A: No, it cannot be considered for two reasons. First, he pleaded guilty to a lesser crime. Second, unlike RA 10591 or illegal possession of firearms, RA 9165 expressly provides under Sec. 98 that the RPC cannot apply to violations of RA 9165, except only when the offender is a minor. In this case, X is not a minor. Therefore the judge cannot consider voluntary plea of guilt.

**Q: Public officer X and his cohorts were charged with violation of RA 7080 or Anti-Plunder law. They voluntarily surrendered and pleaded guilty. Should the Sandiganbayan consider the mitigating circumstances?**

A: Yes, by express provision of the law. Under Sec. 2 of RA 7080, it provides that in imposing the penalty of Reclusion Perpetua to death, the Sandiganbayan shall consider mitigating and extenuating circumstance and the degree of participation of the offender. So by express provision of the law, it will lower the imposable penalty may be considered. Mitigating may be considered, but not aggravating circumstances.

**PEOPLE v. MARIANO**

**FACTS:** De Leon was driving his owner-type jeep, while Mariano was driving his Toyota red pick-up. De Leon and Mariano had a traffic altercation, but was pacified by De Leon's uncle. Thereafter, De Leon decided to go to his mother's house to pick up some items. He parked his car in front of his mother's house and alighted the car. However, he was bumped by the moving vehicle driven by Mariano. De Leon lost consciousness and was brought to the hospital.

Mariano was charged with the crime of Frustrated Homicide. Upon review of the CA, the charged of Frustrated Homicide was modified to Reckless Imprudence Resulting in Serious Physical Injuries. Mariano interposed voluntary surrender.

**ISSUE:** W/N voluntary surrender should be appreciated (NO)

**Ruling:** (NO) The mitigating circumstance of voluntary surrender cannot be appreciated in his favor. The mitigating circumstance of voluntary surrender cannot be appreciated. In the imposition of the penalties, the courts shall have their sound discretion, without regard to the rules prescribed in Art. 64 of the RPC. The rationale behind the law is that in quasi offenses, the carelessness, imprudence, or negligence may vary from one situation to another, in nature, extent, and resulting consequences. In order that there may be a fair and just application of the penalty, the courts must have ample discretion in its imposition, without being bound by what the mathematical formula provided for in Article 64.

**Q: While X was driving, he hit and bumped a pedestrian. No CCTV in the area yet, so no one knows that he was the one driving the car that hit the pedestrian. But he is a man of conscience so he surrendered voluntarily to the police and informed them that he is the driver of the car that killed a pedestrian. During arraignment, he also pleaded guilty. After the judge determined the civil aspect of the case, the judge convicted him of the crime of reckless imprudence resulting in homicide. The judge cannot consider the mitigating circumstances of voluntary surrender and voluntary plea of guilt.**

A: The judge is correct. According to the Supreme Court in **People v. Mariano**, in case of quasi offenses under Art. 365, reckless imprudence resulting in homicide, serious physical injuries, etc. According to the Supreme Court, by express provision of Art. 365 (5) in imposing the penalty in case of quasi offenses, the decision or the imposition of the penalty, the consideration of mitigating and aggravating circumstances shall depend solely upon the sound discretion of the judge. Because by express provision of Art. 365 (5) in imposing the penalty, courts are not required to consider the provisions of Art 64. Art 64 provides for the computation of penalties in case of divisible penalties and judges need not consider that in case of quasi offenses.

## 8. PHYSICAL DEFECT

8. That the offender is deaf and dumb, blind or otherwise suffering some physical defect which thus restricts his means of action, defense, or communication with his fellow beings.

**ELEMENTS:**

1. The offender must be suffering from some physical defect; and
2. The said physical defect has restricted his means of action, defense, or communications with his fellow beings.

For physical to defect to mitigate the criminal liability of the offender, it is necessary that it must be related to the crime committed. Such that the said defect has restricted his means of action, defense, or communication with his fellow criminal. Otherwise, if there is no connection between the physical defect and the crime committed, even if he is blind or cripple, it will not mitigate his criminal liability.

**Q: A person who was crippled by reason of polio during his tender years, he grew up with no legs because of polio. He snatched a bag, he robbed and took something. Charged with the crime of theft, charged with the crime of robbery, will his physical defect mitigate his criminal liability?**

A: No, because his defect has no connection to the crime committed. The fact that he is crippled and mute, has nothing to do with the crime of stealing, taking, theft, or robbery, therefore it cannot be a mitigating circumstance.

**Q: In case of libel, there is this so-called defense of libel. If a person stated defamatory words against you, as a self defense you also countered it defamatory words. "Bad ka, magnanakaw ka!" X told Y. "Ikaw, magnanakaw ka rin. Bad ka rin!" Y answered. So you cannot file a case against each other right.**

**But X told Y, "Estafadora ka, magnanakaw ka!" To his mind, Y was saying "that is not true" but Y could not speak due to an accident. He could hear very clearly, but he could not totally speak. Y picked a piece of stone, and hit X. X was slightly wounded. Prosecuted for slight physical injuries, can Y claim physical defect?**

A: Yes. It has restricted his means of action, defense, or communication. If he had the power to talk and speak, he could also say the same bad words to X but he lost that power by reason of accident. The only means he could defend himself is by means of the said piece of stone hitting X to make X stop.

## 9. ILLNESS

9. Such illness of the offender as would diminish the exercise of the will-power of the offender without however depriving him of consciousness of his acts.

For an illness to be considered to be a mitigating circumstance, its effect must only be to diminish the exercise of the will power of the offender. If the effect is to totally deprive him of his consciousness of his act, then, it is already an exempting circumstance.

**Q: X is playing dolls, another girl passed by. That other girl took one of the dolls of X. X was mad. X took a piece of wood and repeatedly hit the other girl who took her doll. Prosecuted for physical injuries, X was proven to be 20 years old, but only had the mental capacity of 2-7 year old child. Will such illness mitigate her criminal liability?**

A: No. Because the said illness totally deprived her of consciousness of her acts because since she is already advanced in age, but has the mental capacity of a 2-7 year old child, then she is considered an imbecile person. Here, it is considered an exempting circumstance because it did not only diminish the exercise of his will power, but totally deprived him of consciousness of his acts.

## 10. ANALOGOUS CIRCUMSTANCES

10. And, finally, any other circumstance of a similar nature and analogous to those above mentioned.

### NIZURTADO v. SANDIGANBAYAN

**FACTS:** Nizurtado was the Barangay Captain. He received a check in the amount of P10,000.00 for the barangay's livelihood program. The barangay council discussed the project in which to invest the P10,000.00; however, the councilmen failed to agree on any livelihood project. Nizurtado then took the opportunity and encashed the check, thereby using the cash proceeds to furnish loans to borrowers. He was charged with Malversation of Public Funds through falsification of public documents. In his defense, he interposed voluntary surrender and restitution.

**ISSUE:** W/N voluntary surrender and restitution should be appreciated (YES)

**RULING:** YES. Voluntary surrender may be treated as a modifying circumstance independent and apart from restitution of the questioned funds by Nizurtado. The Court was convinced that Nizurtado had no intention to commit so grave a wrong as that committed, entitling him to three distinct mitigating circumstances.

The actual attendance of two separate mitigating circumstances of voluntary surrender and restitution entitles the accused to the penalty next lower in degree. For purposes of determining that next lower degree, the full range of the penalty prescribed by law for the offense, not merely the imposable penalty because of its complex nature, should, a priori, be considered. In fine, the one degree lower than prision mayor maximum to reclusion temporal minimum is prision mayor minimum to prision mayor medium the full range of which is six years and one day to ten years. This one degree lower penalty should, conformably with Article 48 of the Code (the penalty for complex crimes), be imposed in its maximum period or from eight years, eight months and one day to ten years.

In the case of **Nizurtado vs. Sandiganbayan**, restitution is a mitigating circumstance in malversation of public funds even in the crimes of plunder, stealing, theft, robbery, etc. Restitution is always a mitigating circumstance because it is akin to voluntary surrender.

Jealousy is akin to sudden impulse of passion or obfuscation. So any other circumstances which will have the same effect as paragraphs 1 to 9 will be considered as mitigating circumstance.

## K. AGGRAVATING CIRCUMSTANCES (ART. 14)

**Art.14.** *Aggravating circumstances.* - The following are aggravating circumstances:

1. That advantage be taken by the offender of his public position.
2. That the crime be committed in contempt or with insult to the public authorities.
3. That the act be committed with insult or in disregard of the respect due the offended party on account of his rank, age, or sex, or that is be committed in the dwelling of the offended party, if the latter has not given provocation.
4. That the act be committed with abuse of confidence or obvious ungratefulness.
5. That the crime be committed in the palace of the Chief Executive or in his presence, or where public authorities are engaged in the discharge of their duties, or in a place dedicated to religious worship.
6. That the crime be committed in the night time, or in an uninhabited place, or by a band, whenever such circumstances may facilitate the commission of the offense.
   Whenever more than three armed malefactors shall have acted together in the commission of an offense, it shall be deemed to have been committed by a band.
7. That the crime be committed on the occasion of a conflagration, shipwreck, earthquake, epidemic or other calamity or misfortune.
8. That the crime be committed with the aid of armed men or persons who insure or afford impunity.
9. That the accused is a recidivist.
   A recidivist is one who, at the time of his trial for one crime, shall have been previously convicted by final judgment of another crime embraced in the same title of this Code.
10. That the offender has been previously punished by an offense to which the law attaches an equal or greater penalty or for two or more crimes to which it attaches a lighter penalty.
11. That the crime be committed in consideration of a price, reward, or promise.
12. That the crime be committed by means of inundation, fire, poison, explosion, stranding of a vessel or international damage thereto, derailment of a locomotive, or by the use of any other artifice involving great waste and ruin.
13. That the act be committed with evidence premeditation.
14. That craft, fraud or disguise be employed.
15. That advantage be taken of superior strength, or means be employed to weaken the defense.
16. That the act be committed with treachery (alevosia).
    There is treachery when the offender commits any of the crimes against the person, employing means, methods, or forms in the execution thereof which tend directly and specially to insure its execution, without risk to himself arising from the defense which the offended party might make.
17. That means be employed or circumstances brought about which add ignominy to the natural effects of the act.
18. That the crime be committed after an unlawful entry. There is an unlawful entry when an entrance is effected by a way not intended for the purpose.
19. That as a means to the commission of a crime a wall, roof, floor, door, or window be broken.
20. That the crime be committed with the aid of persons under fifteen years of age or by means of motor vehicles, airships, or other similar means.
21. That the Wrong done in the commission of the crime be deliberately augmented by causing other wrong not necessary for its commission.

**Aggravating circumstances** - if present, will serve to increase the imposable penalty because it shows the greater criminality on the part of the offender.

### KINDS OF AGGRAVATING CIRCUMSTANCES

1. **Generic aggravating circumstances** are those which apply to all kinds of crimes.

   **Examples:**

   a. *Recidivism* – A recidivist is one who, at the time of his trial for one crime, shall have been previously convicted by final judgment of another crime embraced in the same title of this Code.

   b. *Nighttime* – Whatever be the crime, if the offender deliberately sought the cover of darkness to ensure the commission of the crime, then nighttime will be considered as an aggravating circumstance.

2. **Inherent aggravating circumstances** are those which are considered as ingredients in the commission of the crime. Hence, when they are

present, they are no longer to be considered so as to increase the imposable penalty because they are considered as elements in the commission of the crime. They are simply absorbed in the commission of the crime.

**Example:** *Evident premeditation* – The SC ruled that evident premeditation is inherent in all crimes under Title X – Crimes against property.

3. **Specific aggravating circumstances** are those which apply only to certain or particular crimes.

**Example:** *Treachery* – As expressly provided under paragraph 16 of Art. 14, treachery can be appreciated only in crimes against persons.

4. **Special aggravating circumstances** are those which if present in the commission of a felony would require the imposition of the maximum penalty prescribed by law. The moment a special aggravating circumstance is present in the commission of the crime, the maximum penalty prescribed by law shall be the one imposed regardless of mitigating circumstances. It cannot be offset by any mitigating circumstance because it is special.

**Example:** *Quasi-recidivism* – The moment an offender is a quasi-recidivist, the maximum penalty prescribed by law for the crime that he has committed shall be the one imposed. No mitigating circumstance shall be considered in his favor except privileged mitigating circumstance.

5. **Qualifying Aggravating Circumstances** are those which change the nature of the crime to bring about a more serious crime with a higher penalty, or even without changing the nature of the crime, it brings about the imposition of a higher penalty.

**Example:** *Treachery and all those enumerated under Art. 248 for the crime of Murder are considered as qualifying aggravating circumstances.* The presence of any one of them in the act of killing will change the nature of the killing from Homicide to become Murder to bring about a higher penalty of reclusion temporal in case of Homicide to reclusion perpetua to death in case of Murder.

## 1. TAKING ADVANTAGE OF PUBLIC POSITION

1. That advantage be taken by the offender of his public position.

An offender is said to take advantage of his public position when the said offender used or misused or abused his public position in order to commit the crime. The offender in this case is a public officer. The public officer used, misused, or abused his public position in order to commit the crime. The said public officer took advantage of the prestige, the ascendancy, and the influence that his office affords him in order to commit the crime. This will be considered as an aggravating circumstance.

Although under Art. 14 (1) taking advantage of one's public position, a generic aggravating circumstance, under Art. 62 of the RPC as amended by RA 7659, taking advantage of one's public position in the commission of the crime is a special aggravating circumstance. Because under Art 62, the law provides that the maximum penalty prescribed by law shall be the one imposed. Hence, it is a special aggravating circumstance.

**Q: The police officer was charged with the crime of Robbery extortion under Art. 294 (5). In the information filed before the Public Prosecutor, it was alleged that according to the Public Prosecutor the said public officer committed the crime of Robbery extortion by taking advantage of his position. That if not for his position, these people will not give him the said amount of money. It turns out that he collects money from sidewalk vendors. Sidewalk vendors would of course give money because they were afraid that their property would be taken. So it was proven that he had taken advantage of his public position in the commission of the crime.**
A: The judge would consider it as a special aggravating circumstance. Therefore the maximum penalty for robbery extortion under Art. 294 (5) shall be the one imposed because it is a special aggravating circumstance.

**Q: A police officer arrested a drug pusher who happens to be beautiful and sexy. After placing her behind bars, the arresting officer took him to his office. That night, the officer raped her.**
A: By taking advantage of his public position, obviously, had he not been a police officer he could not have arrested this woman and could not have raped her. He used the prestige and influence of his office. In fact the act of rape was committed inside the penal institution. What is the effect of taking advantage of ones public position? This time it is a qualifying aggravating circumstance by express provision of Art. 266 - B which states that the crime

committed by the said public officer is not only simple rape but qualified rape wherein the prescribed penalty is increased from reclusion perpetua to death penalty.

**Q: A notary public, who is a public officer, falsified a deed of absolute sale, it was totally non-existent. The information alleges that he did it by taking advantage of his public position as a notary public. It was proven. How should the judge appreciate it?**
A: Here, taking advantage of one's public position, is no longer to be considered. It is inherent in the commission of the crime. Under Art. 171 of the RPC, in case of falsification of a public document, it is an element that the public officer must have taken advantage of his public position. Without this, there is no violation of Art. 171, it is an inherent element, therefore, it will no longer be considered as an aggravating circumstance. It will just be absorbed as an element in the commission of the crime.

## 2. CONTEMPT OF OR INSULT TO PUBLIC AUTHORITIES

2. That the crime be committed in contempt or with insult to the public authorities.

**ELEMENTS:**

1. That the public authority is engaged in the discharge of his function;
2. That he is not the person against whom the crime is committed;
3. That the offender knows him to be a public authority; and
4. That the presence of the public authority did not prevent the offender from committing the crime.

### PEOPLE v. TIONGSON

**FACTS:** Tiongson, together with dela Cruz and Santiago, escaped from the Municipal Jail where they were detained under the charge of Attempted Homicide. While in the act of escaping, Tiongson killed two (2) persons: Pat. Zosimo Gelera, a member of the police force who was guarding him, and PC Constable Aurelio Canela from the PC Detachment who went in pursuit of them. He was charged with the crime two (2) counts of Murder.

**ISSUE:** Whether aggravating circumstance of in contempt of or with insult to public authorities is present.

**RULING:** The aggravating circumstance that the crimes were committed in contempt of or with insult to the public authorities cannot also be appreciated since Pat. Gelera and PC Constable Canela were the very ones against whom the crime were committed. Besides, Pat. Gelera and PC Constable Canela are not persons in authority, but merely agents of a person in authority.

**Q: X killed Y in the presence of the barangay chairman. The latter pacified the fight between X and Y. But X instead of being pacified, right in the presence of the barangay chairman, X stabbed Y to death.**
A: The commission of the crime is attended by the aggravating circumstance of contempt of or insult to public authorities. The chairman was in the discharge of his duties. He was trying to pacify these two persons who were fighting. The crime was not committed against him. X and Y knew him because they were his constituents, but the presence of the chairman did not stop X from stabbing Y. Therefore, the crime was committed in contempt of or with insult to public authorities. The basis of the crime is lack of respect to public authorities.

**Q: What if in the same problem, What if in the same problem, instead of the barangay chairman, this time it is a police officer who tried to mediate and pacify X and Y. But despite the presence of the police officer, X still stabbed Y. In the commission of the crime, is the aggravating circumstance of in contempt of or with insult of public authorities present?**
A: NO. As held in the case of **People v. Tiongson,** a peace officer, a police officer is not a public authority. A police/peace officer is merely an agent of public authority. Therefore, if the crime was committed in his presence, the SC held that you do not appreciate this second aggravating circumstance of in contempt of or with insult of public authority.

**Q: The crime was committed in the presence of the mayor at the time when the mayor was at the park together with his children and wife. They were enjoying the park when X stabbed Y in the presence of the said mayor.**
A: The mayor at the time was not in the performance of his duty, although the mayor is a public authority, he was doing a private time. He was enjoying the park with his wife and children. Therefore, the first element is absent in this case, the public authority not being in the discharge of his duties, even if the crime was committed in his presence, it cannot be considered as an aggravating circumstance.

## 3. DISREGARD OF RANK, AGE, OR SEX, OR DWELLING OF THE OFFENDED PARTY, IF THE LATTER HAS NOT GIVEN PROVOCATION

3. That the act be committed with insult or in disregard of the respect due the offended party on account of his rank, age, or sex, or that is be committed in the dwelling of the offended party, if the latter has not given provocation.

In the third paragraph we have four (4) aggravating circumstances:

1. Disregard of rank,
2. Disregard of age,
3. Disregard of sex, and
4. Disregard of the privacy of the offended party's dwelling.

**Disregard of Rank**

There is disregard of rank when in the commission of the crime, the offender deliberately insulted or disregarded the offended party's high social standing in society.

**Disregard of Age**

There is disregard of age when in the commission of the crime, the offender deliberately insulted or disregarded either the minor age or the senior age of the victim.

**Disregard of Sex**

There is disregard of sex when in the commission of the crime, the offender deliberately insulted, disregarded, disrespected the womanhood of the victim.

**NOTE:** Disregard of rank, age, and sex, may only be appreciated in crimes against persons under Title 8 - crimes against persons (homicide, murder) and Title 13 - crimes against honor (libel, defamation, slander by deed).

They can only be considered if there is evidence that the offender deliberately insulted or disregarded the age, the rank, or the womanhood of the said victim.

**Dwelling**

If the crime committed inside the dwelling of the offended party, it will be considered an aggravating circumstance. It is aggravating because it violates the Constitutional provision on giving respect to the privacy of one's abode. It shows greater criminality on the part of the accused. Instead of committing the crime outside, he chose to commit the crime while the victim was inside the privacy of his abode.

***When Dwelling is Not an Aggravating Circumstance***

When you say dwelling, it refers to a building or structure which is used for rest or comfort. If the crime is committed inside the privacy of one 's dwelling, it is an aggravating circumstance. But there are certain instances wherein even if the crime was committed inside the dwelling of the victim, dwelling is not an aggravating circumstance:

1. When it is the offended party who gave provocation to the accused;
2. When both the accused and the offended party are living in the same dwelling; or
3. When dwelling is inherent in the commission of the crime.

In these three (3) instances, dwelling is not considered an aggravating circumstance even if the crime is committed against the victim while he is inside his dwelling.

## 4. ABUSE OF CONFIDENCE AND OBVIOUS UNGRATEFULNESS

4. That the act be committed with abuse of confidence or obvious ungratefulness.

**ELEMENTS:**

1. That the offended party has trusted the offender;
2. That the offender has violated, abused the trust and confidence reposed on him;
3. The said abuse of trust and confidence facilitated the commission of the crime.

Obvious ungratefulness, there is lack of gratitude on the part of the said offender.

**Q: For that weekend, the mayor slept in the house of his mistress. He went there Friday evening, Saturday morning, he woke up and was having coffee together with the mistress at the terrace. Suddenly, the mayor fell, there was a shock right at his head. He was fired at by Y who was an enemy and an opposing candidate in the upcoming elections. The latter ran away but he was arrested.**

A: There is no disregard of rank as an aggravating circumstance. Because the crime committed is qualified direct assault with murder. Since this is the crime, disregard of rank is inherent in the commission of the crime. Because in case of direct assault, the offended party is always a person in authority or an agent of person in authority.

Dwelling can be considered here as an aggravating circumstance. For two reasons, First, dwelling does not

require ownership. Even if the said place is owned by the mistress, the fact is during that weekend, the mayor slept there and used it for rest. Second, the terrace is included in the meaning of dwelling as it is definitely attached to the said house which is his place for rest and comfort. Thus, dwelling is considered as an aggravating circumstance in this case.

**Q: X is a trusted helper of the family. X comes to work in the said house 6 in the morning and leaves 6 in the evening. So X by 6 PM, left the house. However, he returns to the said house together with his friends, Y and Z. About 10 in the evening, when he already knew that the family is fast asleep, he passed through an opening that he knew being the trusted helper in the said house. They ransacked the house. They broke the cabinets, chests, they took cash, valuables, and gadgets. However, because of the noise they were creating, the owner of the house, W, was awakened. And so W got out of bed and went downstairs and saw X and the latter's friends. Afraid that they will be reported, all of them killed W. X, Y, and Z, are now being prosecuted with the special complex crime of robbery with homicide. In the information, it was alleged that the following aggravating circumstances attended the commission of the crime: Dwelling, Abuse of Confidence, Disregard of Rank, and Nighttime.**

A: Nighttime is present. X left at 6 PM and deliberately went back at 10 PM because he knew by that time, everybody in the house were already fast asleep. Therefore, he deliberately took advantage of the cover of darkness in order to commit the crime. So nighttime may be considered as an aggravating circumstance.

Abuse of confidence may only be considered only insofar as X is concerned. It is personal to X and will not apply to Y and Z because X is a trusted helper of the family. There was trust and confidence reposed on him which he violated. Said violation of the trust and confidence facilitated the commission of the crime. Had he not been trusted, he would not know how to get inside, he would not be familiar with the place. Thus, there is abuse of confidence only insofar as X is concerned. It is an aggravating circumstance which is personally applicable to X and will not apply to Y and Z.

Disregard of rank is also not present. The offended party is his employer, the head of the family. Did they disregard the high position of the offended party? No, because in killing him, it cannot be said that there was intent to insult or disregard the high social standing of the offended party being his master.

Dwelling can be considered. It is settled in jurisprudence that dwelling can be considered in the special complex crime of Robbery with Homicide. Because this crime can be committed even outside the dwelling of the victim, hence, if it is committed inside the dwelling, it will be an aggravating circumstance. Dwelling is only inherent in case of robbery by use of force upon things under Art. 299. But dwelling is not inherent in all cases of robbery with violence against or intimidation of persons under Art. 294. Here, the crime committed was robbery with homicide under Art. 294 (1), thus dwelling can be appreciated as an aggravating circumstance.

## 5. PALACE OF THE CHIEF EXECUTIVE OR IN HIS PRESENCE; WHERE PUBLIC AUTHORITIES ARE ENGAGED IN THE DISCHARGE OF THEIR DUTIES; PLACE DEDICATED TO RELIGIOUS WORSHIP

> 5. That the crime be committed in the palace of the Chief Executive or in his presence, or where public authorities are engaged in the discharge of their duties, or in a place dedicated to religious worship.

In paragraph five of Art. 14, we have the following aggravating circumstance which are all places:

1. Palace of the Chief Executive;
2. Presence of the Chief Executive;
3. In a place where public authorities discharge their duties; or
4. A place dedicated to religious worship.

These are all places which ought to be respected, but instead of respecting these places, the offender committed a crime in these places. Hence, it reveals his greater criminality and greater perversity and dangerousness. So it will be an aggravating circumstance.

If it is committed in the presence of President Bongbong Marcos, it will always be another aggravating circumstance. He is the highest man of the land. He ought to be respected.

If the crime is committed in the place where public authorities are discharging their duties, it is necessary that at the time of the commission of the crime, these public authorities are actually performing or discharging their duties in order to show disrespect.

**Q: The crime was committed within the vicinity of the DENR at 12 o'clock in the evening.**
A: It is not considered as an aggravating circumstance, no one was working there at 12 o'clock in the evening. So it is wrong to say that there was an intent to disregard this

place, so in this case, it is not considered as an aggravating circumstance.

**Q: X saw Y in the church. Upon seeing Y at the church, they stared at each other. They had bad blood against each other. Y was near the alter while X left the church passing through a door. X then went back inside the church, this time, passing through the back door and went at the back of Y and stabbed Y to death. In the commission of the crime, what aggravating circumstances attended the crime?**
A: Treachery and Disregard of Place Dedicated to Religious Worship. On Disregard of Place Dedicated to Religious, it triggers greater criminality, the offender disrespected the church, a place dedicated to religious worship. Because of this, it reveals greater dangerousness as he did not even give respect to the said church.

## 6. NIGHTTIME; UNINHABITED PLACE; BY A BAND

> 6. That the crime be committed in the night time, or in an uninhabited place, or by a band, whenever such circumstances may facilitate the commission of the offense.
>
> Whenever more than three armed malefactors shall have acted together in the commission of an offense, it shall be deemed to have been committed by a band.

In paragraph 6, there are three aggravating circumstances:
1. Nighttime
2. Uninhabited place, and
3. By a band.

These three aggravating circumstances may be considered all at the same time or separate and distinct from each other depending on their presence on the commission of the crime.

### a. NIGHTTIME

**ELEMENTS:**

1. That the offender deliberately sought the cover of darkness; and
2. The purpose of the offender is to ensure the commission of the crime, or to ensure or avoid impunity.

### b. UNINHABITED PLACE

**ELEMENTS:**

1. In the place where the crime was committed, there was little or remote possibility for the victim to receive help; and
2. The offender deliberately took advantage of the said place in order to ensure or facilitate the commission of the crime.

### c. BY A BAND

A band is considered an aggravating circumstance when more than three armed malefactors shall have acted together in the commission of the crime.

At least there must be four armed malefactors and they actually participated in the commission of the crime.

**Q: The group of A, B, C, D, and E, on board the car of A, suddenly passed by this isolated house, far from other houses and town. It was a kilometer away from the town and the only house there. A, B, C, D, and E wanting to find a place they could hang out, passed by this house. During the first time they passed by, lights were still on. When they passed by the second time, they really waited for nighttime when it was about 11 o'clock, and when they parked the car, the lights were already off. All of them tried to enter, but they could not find a way until they saw an opening in the back room. Once inside, they tried to get things from the house. They opened the bedroom. They found out that it was the room of the daughter of the owner. A and B raped the daughter and continued ransacking the house after. As they tried to get out of the house, the owner W was awakened and he was shook and said "Who are you? What are you doing inside my house?" The father W realized that his daughter had been sexually molested. W tried to go up to get his gun, however the five men who were all armed fired at W. They were arrested, prosecuted for the special complex crime of Robbery with Homicide. Are the aggravating circumstances of nighttime, uninhabited place, by a band present?**

A: There is nighttime as an aggravating circumstance. Because when they first passed by there were still lights and they waited till 11 o'clock and total darkness in going to the place. Hence, there is an aggravating circumstance of nighttime.

There is aggravating circumstance of uninhabited place. The place was a kilometer away from the town. In fact, that is what attracted them to the said place. So they deliberately went to the place knowing that no one can reach out to the people inside. They deliberately sought the said place to ensure the commission of the crime. Knowing

that the people in the place would have very little means of being given help.

It is also committed by a band. In this case, five armed malefactors had acted together in the commission of the crime. Thus, they should all be convicted for the special complex crime of Robbery with Homicide with these aggravating circumstance.

There is also unlawful entry. It is not inherent to the crime, unlawful entry is only inherent in robbery by use of force upon things. So unlawful entry in this case can be considered as an aggravating circumstance.

**Q: X is a border of Y in one of the boarding house along Dapitan. About 11 PM, he felt pain in his stomach and needed medicine. He decided to go down to buy medicine from the drugstore. When he was on his way back to the boarding house, five men, A, B, C, D, and E, who belonged to another fraternity, suddenly surrounded X. These men were armed with dos por dos, one was also armed with an ice pick. All of them attacked X at the same time. After attacking him, all of them left. X was brought to the hospital and he survived. In the commission of the crime, are the aggravating circumstances of nighttime, uninhabited place, and a band present?**

A: Nighttime is not present. Although the crime was committed at 11 PM, it could be of judicial notice, it is a fact that Dapitan was still lit. There were still lights in Dapitan. Therefore it cannot be said that the men deliberately sought the cover of darkness in the commission of the crime.

Dapitan cannot be considered as uninhabited place. In fact, by the time, students were still everywhere.

By a band is present. Because all five of them were armed. Therefore this can be considered as an aggravating circumstance in the crime.

There is also treachery. Obviously they deliberately and consciously adopted the ways, means and methods to wound X. Suddenly they appeared and they all hit them with their weapons.

## 7. ON THE OCCASION OF A CONFLAGRATION, SHIPWRECK, EARTHQUAKE, EPIDEMIC OR OTHER CALAMITY OR MISFORTUNE

7. That the crime be committed on the occasion of a conflagration, shipwreck, earthquake, epidemic or other calamity or misfortune.

If the crime committed on the occasion of these calamities is that of killing a person, it will be a qualifying aggravating circumstance. It will change the nature of the crime from homicide to murder.

If the crime committed on the occasion of these calamities is that stealing, theft, taking the personal property of another, it will be a qualifying aggravating circumstance. It will change the nature of the crime from simple theft to qualified theft.

If any other crime is committed outside killing and stealing, it is considered a generic aggravating circumstance.

## 8. AID OF ARMED MEN

8. That the crime be committed with the aid of armed men or persons who insure or afford impunity.

The armed men merely aided the perpetrator in the commission of the crime. They merely gave support whether direct or indirect to the actual perpetrator in the commission of the crime.

In the case of a band, all of them acted together in the commission of the crime. Hence, in case of a band, all of the armed men are considered as co-conspirators. Whereas, in case of with the aid of armed men, the armed men that aided the actual perpetuator is generally considered as an accomplice in the commission of the crime.

**Q: In case of a band, A, B, C, D, and E, all armed. All of them committed the crime of killing X. A band is appreciated. The judge also considered conspiracy. Can the judge also consider both or is conspiracy absorbed by a band?**

A: The judge can consider both. Because conspiracy is not an aggravating circumstance as it is only a means of committing a felony, which means all of them will have the same penalty imposed upon them. A band, however, is an aggravating circumstance which has the effect of increasing the imposable penalty to the maximum period of the penalty prescribed by law if it is not offset by a mitigating circumstance.

## 9-10. FORMS OF HABITUALITY

### a. RECIDIVISM

9. That the accused is a recidivist.

A recidivist is one who, at the time of his trial for one crime, shall have been previously convicted by final judgment of another crime embraced in the same title of this Code.

**ELEMENTS:**

1. That the offender is on trial for one crime;
2. At the time of the said trial, he was previously convicted by final judgment of another crime;
3. Both the first crime and second crime are embraced in the same title of the RPC; and
4. He is also convicted of the new crime for which he is on trial.

Recidivism, based on its elements, requires that there must be at least two convictions:

1. The first conviction must be by final judgment; and
2. For the second crime for which he is on trial.

It is on this second conviction wherein the court will consider the aggravating circumstance of recidivism. Based on the elements, recidivism also requires that both crimes must fall under the same title of the RPC.

**No Prescriptive Period for Recidivism**

Recidivism has no prescriptive period. No matter how long has lapsed between the fist crime and second crime, for as long as they are embraced by the same title under the RPC, the offender is a recidivist.

Recidivism is a mere generic aggravating circumstance, therefore it can be offset by an ordinary mitigating circumstance. If not offset, its effect is the imposition of the maximum period of the penalty prescribed by law.

**Q: X was charged and thereafter convicted of Homicide. Homicide is a bailable offense. X posted bail, and is on temporary liberty. The case is ongoing trial. On the day of hearing, he always religiously attended the hearing. After the hearing, he was on his way home. While walking home, there were three men having a drinking spree. One of the men told the others "Dumaan ang kriminal, umattend siya ng hearing." X heard them and got hurt. X confronted A. When A stood up, X could no longer control himself and punched A in the face two times. A filed a case of slight physical injuries against X. It was filed before the MeTC. Since it is covered under the Rules of Summary Procedure, within a period of 6 months it was now time to promulgate judgment. In imposing the penalty for Slight Physical Injuries, having convicted X of the crime charged, should the court consider the aggravatig circumstance of recidivism?**
A: No. The first element is present, he is on trial for one crime, he is on trial for Slight Physical Injuries. Second element is absent, he is not yet convicted by final judgment of the crime of Homicide. In fact, the case is still ongoing trial. The second requisite being absent, recidivism cannot be considered by the court in imposing the penalty for Slight Physical Injuries.

**Q: X was charged and convicted of serious physical injuries. He served out the sentence. After the service of his sentence, he is now out of prison. Once out of prison, he tried to live a good life until he engaged in a fight. He was being bullied as an ex-convict. He could no longer contain it, so he engaged in a fight. He killed that person. He is now being charged for the crime of homicide. After trial on the merits, the Judge found him guilty of homicide and sentenced him the penalty thereof. Can the judge consider recidivism?**
A: YES. First element: He is on trial for homicide. Second element: At the time of the said trial, he has been previously convicted by final judgment of serious physical injuries. Third element: Both serious physical injuries and homicide are under Title 8 – Crimes against persons. Last element: He is also convicted of the new crime, homicide. Therefore, in imposing the penalty for homicide, the judge can consider the aggravating circumstance of recidivism.

**Q: What if in the same problem, X was charged and convicted of serious physical injuries. He served out the sentence. After the service of his sentence, he tried to live a good life. 12 years thereafter, he engaged in a fight and killed his opponent. He is now being prosecuted for homicide. The judge found him guilty of homicide. In imposing the penalty for homicide, can the judge consider the aggravating circumstance of recidivism despite the lapse of 12 years in between the first crime and the second crime?**
A: YES. Based on the provision on paragraph 9, recidivism requires no prescriptive period in between the first crime and second crime. It has no prescriptive period. The law does not require any lapse of time between the first crime and second crime. What the law requires only is that they come from the same title of the RPC. Therefore, even if 12 years have lapsed from the first conviction to the second conviction, for as long as they fall under the same title of the RPC, that offender is a recidivist.

**Q: How do you prove recidivism? Is it necessary for the prosecution to present the judge to testify that the offender has been priorly convicted by final judgment of a crime?**

A: NO. There is no need for the judge to go to the witness stand to testify. A mere certification of the said conviction coming from the court with the signature of the judge and his dry seal will suffice. It is considered as a public document which is presumed genuine and authentic. Therefore, that will suffice and there is no need to present any oral testimony. Documentary evidence will suffice.

**Q: X was convicted of Rape. The President granted him absolute pardon and released. Four years after his release, he committed the crime of Homicide. The judge found him guilty of the crime of Homicide. In imposing the penalty for Homicide can the judge consider recidivism as an aggravating circumstance?**
A: Yes. First element, he is on trial for one crime - Homicide. At the time of the said trial, he has ben previously convicted by final judgment of rape. Even if the president granted him absolute pardon, it does not affect the crime that he has been convicted of. The only effect of pardon is to excuse the convict from the service of his sentence. It does not erase, it does not obliterate the effects of the crime. His conviction stays. Therefore the second element is present. As to the third element, Rape and Homicide are both under Title 8 Crimes aginst Persons. As to the fourth element, he is also convicted of the crime. Therefore, recidivism shall be considered by the court in imposing the penalty for Homicide.

**Q: X was charged and thereafter convicted of sedition. While serving his final sentence, he learned that the President issued a special amnesty proclamation for criminal offenses. Through his counsel, he applied. It was granted and he was released from prison. Two years after release having been granted amnesty for seidition, he is now a participant in a conspiracy to commit Rebellion and he was among those arrested. He is charged with Conspiracy to Commit Rebellion. After trial on the merits, the Judge found him guilty as charged. In imposing the penalty for Conspiracy to Commit Rebellion, can the Judge consider recidivism against X?**
A: No. First element, he is on trial for one crime. Second element, he was previously convicted by final judgment for sedition, but he was granted amnesty. The effect of amnesty is to obliterate, to erase all the effects of the crime as if no crime has been committed. Therefore, it is as if he has not been convicted of the crime of sedition. Hence, the second element is absent. Recidivism cannot be considered as an aggravating circumstance in imposing the penalty for Conspiracy to Commit Rebellion.

**Q: X was charged with Malicious Mischief. The judge convicted him and imposed upon him the maximum penalty of *arresto mayor* 6 months. It is within the probational penalty of 6 years so he applied for probation. If the penalty imposed does not exceed one year, probation is for 2 years. And so he underwent probation for 2 years. After 2 years, he is now a totally free man. A week after his probation was terminated, he committed the crime of robbery. He robbed the house of his neighbor and took their valuables. He is now being prosecuted for the crime of robbery. The judge found him guilty. In imposing the penalty for Robbery, can the judge consider recidivism as an aggravating circumstance?**
A: First element, he is on trial for one crime - Robbery. Second element, he was convicted of the crime of Malicious Mischief but he applied for probation. The moment an offender applies for probation, it means that the offender is amenable to his conviction. He is no longer insisting on his innocence, he is no longer questioning the decision on his punishment. Therefore, it is akin to a convicted by final judgment. The second element is present. Third element, Malicious Mischief and Robbery falls under Title 10 of the RPC. They are embraced under the same title. Lasty, he is also convicted of the new crime. There is Robbery. Therefore, he is a recidivist. It can be considered as an aggravating circumstance in imposing the penalty for Robbery.

### b. REITERACION OR HABITUALITY

10. That the offender has been previously punished by an offense to which the law attaches an equal or greater penalty or for two or more crimes to which it attaches a lighter penalty.

**ELEMENTS:**

1. That the offender is on trial for one crime;
2. At the time of the said trial, he has previously served sentence for an offense to which the law attaches an equal or greater penalty, or two or more crimes to which the law attaches lighter penalties;
3. He is also convicted of the new crime for which he is on trial; and
4. Both crimes are not embraced in the same title of the RPC.

**Recidivism vis-à-vis Reiteracion**

| RECIDIVISM | REITERACION |
|---|---|
| A mere conviction by final judgment insofar as the first crime is concerned will suffice. | The offender must have served sentence for the first crime he committed. |

| | |
|---|---|
| The crimes are embraced in the same title of the RPC. | The crimes are not embraced in the same title of the RPC. |

**Two Situations in *Reiteracion***

You have to know that based on the second element of *reiteracion*, there are two (2) situations:

1. If there are only two (2) crimes committed by the offender, the law requires that the first crime that he have served sentence must carry a penalty equal to or greater than that of the new crime.
2. If there are three (3) crimes committed by the offender, the law requires that the first two (2) crimes that he had served sentence must carry lighter penalties than that of the new crime.

Just like recidivism, *reiteracion* is a generic aggravating circumstance, which may be offset by an ordinary mitigating circumstance. However, unlike recidivism wherein a mere conviction by final judgment as to the first crime will suffice, in case of *reiteracion*, the law requires that insofar as the first crime is concerned he has already served sentence. Likewise, in case of recidivism, the crimes must fall under the same title of the RPC. In case of *reiteracion*, the crimes must not fall under the same title of the RPC.

**Q: X was charged and thereafter convicted of the crime of Perjury. Penalty imposed is prision mayor. He served the sentence of 12 years. After 12 years of imprisonment, he as released. A year after, he committed the crime of Special Complex Crime of Robbery with Homicide. Judge found him guilty. In imposing the penalty for Robbery with homicide, can the judge consider the aggravating circumstance of *reiteracion*?**
A: No. The first element is present - he is on trial for the crime of Robbery with Homicide. As to the second element, at the time of the second trial, he had previously served sentence for perjury. Perjury carries a penalty lighter than the Special Complex Crime of Robbery with Homicide. Therefore, the second element is absent. Because the second element requires that when there are only two crimes committed, the first crime for which the accused has served sentence must carry a penalty equal to or greater than that of the new crime. In this case, the crime he has served sentence, perjury, carries a lighter penalty than that of the new crime. Therefore, the second element being absent, *reiteration* cannot be considered against the accused.

**Q: X was charged and thereafter, convicted of Malicious Mischief. Penalty imposed is arresto mayor – 6 months. After service of his sentence, he is now out of prison. Once out of prison, he committed Slight Physical Injuries in the course of a fight. He was prosecuted for Slight Physical Injuries. The judge found him guilty. In imposing the penalty, can the judge consider *reiteracion*?**
A: YES. **First element:** That the offender is on trial for one crime. X was tried for the crime of Slight Physical Injuries. **Second element:** At the time of the said trial, he has previously served a sentence for an offense to which the law attaches an equal or greater penalty. He has served a sentence for malicious mischief – *arresto mayor* which is greater than Slight Physical Injuries – *arresto menor*. Second element is present. **Third element:** X is also convicted of the new crime, Slight Physical Injuries. **Fourth element:** Malicious Mischief and Slight Physical Injuries do not fall under the same title in the RPC. Malicious Mischief is under Crimes against Property under Title 10, while Slight Physical Injuries is a Crime against Persons under Title 8. Therefore, the judge can consider aggravating circumstance of *reiteracion* in imposing the penalty of Slight Physical Injuries.

**Q: What if in exactly the same facts, except when X was convicted for Malicious Mischief – arresto mayor, since the penalty imposed on him is only a maximum of six (6) months, X immediately applied for probation. His application for probation was granted by the court. Since the penalty imposed is not more than one (1) year, the probation only for two (2) years. After two (2) years of complying with the probation, the probation was terminated. X engaged in a fight and inflicted Slight Physical Injuries upon his opponent. He was prosecuted for Slight Physical Injuries and he was found guilty. In imposing the penalty, can the judge consider *reiteracion*?**
**A:** No. **First element:** That the offender is on trial for one crime. He is on trial for Slight Physical Injuries. **Second element:** At the time of the said trial, he has previously served sentence for an offense to which the law attaches an equal or greater penalty. He has been convicted of Malicious Mischief, but he applied for probation. The moment a convict applies for probation, that convict did not serve his sentence.

The SC said in the case of **Moreno v. COMELEC**, the effect of probation is to suspend the execution of sentence. Therefore, he did not serve his sentence because in fact, the effect is to suspend the execution of the sentence.

Service under probation is not equal to service of sentence. Hence, in this case, the second element being absent, in imposing the penalty for Slight Physical Injuries, the judge cannot consider the aggravating circumstance of *reiteration.*

## c. HABITUAL DELINQUENCY

**Art. 62.** *Effects of the attendance of mitigating or aggravating circumstances and of habitual delinquency.* – Mitigating or aggravating circumstances and habitual delinquency shall be taken into account for the purpose of diminishing or increasing the penalty in conformity with the following rules: xxxx

For purposes of this article, a person shall be deemed to be a habitual delinquent, if within a period of ten years from the date of his release or last conviction of the crimes of serious or less serious physical injuries, robo, hurto, estafa or falsification, he is found guilty of any of said crimes a third time or oftener.

**ELEMENTS:**

1. The crimes are specified:
    a. Serious Physical Injuries;
    b. Less Serious Physical Injuries;
    c. Robbery;
    d. Theft;
    e. Estafa; or
    f. Falsification;
2. The law requires that there must be at least three (3) convictions; and
3. It is necessary that each conviction must come within a period of 10 years from the date of his last release or last conviction.

Recidivism is generic. Reiteracion is generic. Habitual delinquency is an extraordinary aggravating circumstance, because its effect is the imposition of an additional penalty. Aside from the penalty prescribed by law for the crime that he has committed, an additional penalty shall be imposed on him for being a habitual delinquent. The only qualification is that if you add the penalty for the crime that he has committed and the penalty for being a habitual delinquent, they must not exceed 30 years.

**Q: The court convicted X. The prosecution was able to prove the aggravating circumstances of both recidivism and habitual delinquency. Can the judge consider both aggravating circumstances against the accused?**
A: The judge can consider both, as held by the SC in the case of **People v. Melendrez**. If the accused is proven to be both a recidivist and a habitual delinquent, both can be considered by the court against the accused. Reason is that both aggravating circumstances have different effects. The effect that he is a recidivist is the imposition of the maximum penalty for the crime committed if it is not offset by an ordinary mitigating circumstance. The effect of being a habitual delinquent is the imposition of an additional penalty.

The doctrine of *pro reo* will not apply, because these two aggravating circumstances have different effects.

**Q: X was charged with the crime of Robbery. Based on the evidence, X has been previously convicted 3 times for theft. Each conviction for theft had come within 10 years from the date of his last release. In the Information filed, it was stated therein that the offender has committed the crime of Theft a third time and he is now being tried for Robbery. After trial on the merits, the judge convicted him of the crime of Robbery. The judge decided to appreciate habitual delinquency. Is the judge correct?**
A: YES. First element: He is being tried for the fourth time for the crime of Robbery. Second element: He has been previously convicted by final judgment of the crime of Theft. Third element: Each conviction of Theft comes within 10 years from the date of his last release. Therefore, he is a habitual delinquent.

**Q: What if in the same problem, the prosecution also stated that he is a recidivist. Should the judge also consider recidivism against him? Should the judge consider this as another aggravating circumstance?**
A: YES. All elements of recidivism are present. Firstelement: He is on trial for robbery. Second element: He has been convicted by final judgment of Theft. Third element: Theft and Robbery are both under the same title. Fourth element: He is convicted of the crime of Robbery. Therefore, he is also a recidivist.

**Q: As for the defense of the accused, granting for the sake of argument that both recidivism and habitual delinquency are present, based on the Doctrine Of Pro Reo, the judge should only consider recidivism against X and not habitual delinquency. How should the judge rule on this contention?**
A: The judge should still CONSIDER BOTH RECIDIVISM AND HABITUAL DELINQUENCY. As held in the case, People v. Melendrez, the SC said that if both recidivism and habitual delinquency are present, they can be appreciated by the court at the same time because they have different elements in imposing the penalty. The fact that the offender is a recidivist, means that in imposing the penalty of Robbery, the judge shall impose it in its maximum period if recidivism is not offset by any ordinary mitigating circumstance. The fact that he is a habitual delinquent means that an additional penalty must be imposed aside from the penalty of Robbery. Therefore, both can be considered by the court because they have different effects on the penalty to be
imposed on the part of the said offender.

**Recidivism vis-à-vis Habitual Delinquency**

| RECIDIVISM | HABITUAL DELINQUENCY |
|---|---|
| The law requires at least two (2) convictions. | The law requires at least three (3) convictions. |
| No prescriptive period between first conviction and second crime | 10 years from the date of his last release/conviction |
| The crimes are embraced in the same title in the RPC. | The crimes are specified:<br>1. Serious / Less Serious Physical Injuries<br>2. Falsification<br>3. Robbery<br>4. Theft<br>5. Estafa |
| It is a generic aggravating circumstance which be offset by any ordinary mitigating circumstance. | It is an extraordinary aggravating circumstance which provides for an additional penalty and cannot be offset by any ordinary mitigating circumstance |

**d. QUASI-RECIDIVISM**

**Art. 160.** C*ommission of another crime during service of penalty imposed for another offense; Penalty.* - Besides the provisions of Rule 5 of Article 62, any person who shall commit a felony after having been convicted by final judgment, before beginning to serve such sentence, or while serving the same, shall be punished by the maximum period of the penalty prescribed by law for the new felony.

Any convict of the class referred to in this article, who is not a habitual criminal, shall be pardoned at the age of seventy years if he shall have already served out his original sentence, or when he shall complete it after reaching the said age, unless by reason of his conduct or other circumstances he shall not be worthy of such clemency.

**ELEMENTS:**

1. It is necessary that he be convicted by final judgment of any crime, whether felony or an offense.
2. But, while he is serving or before serving his sentence, he must commit a felony, a crime punished by the RPC.

Quasi-recidivism is a special aggravating circumstance because Art 160 provides that the maximum penalty prescribed by law shall be the one imposed. The moment an offender is a quasi-recidivist, automatically the maximum penalty prescribed by law shall be imposed, no mitigating circumstances may be appreciated in his favor except privileged mitigating circumstances.

**SUMMARY:**

1. Recidivism - generic aggravating circumstance.
2. Reiteracion - generic aggravating circumstance.
3. Habitual Delinquency - extraordinary aggravating circumstance.
4. Quasi-Recidivism - special aggravating circumstance.

**Q: One morning when the officers of the National Penitentiary were doing the rounds, X stabbed the officer. After stabbing the officer, he took the keys and tried to escape. X was [previously] convicted and he was serving his sentence for the crime of carnapping in violation of RA 10883. What crime or crimes was committed by X? Is X a [quasi]recidivist?**
**A:** He stabbed the officer of the National Penitentiary, took the keys and tried to escape but he was arrested. He committed the crimes of Qualified Direct Assault with Murder and also committed Attempted Evasion of Service of Sentence.

He is a quasi-recidivist because he committed felonies while serving his sentence for the crime of carnapping by final judgment. In this case, X is a quasi-recidivist.

**Q: X was charged with a crime of Homicide. He was convicted, and judgment became final and executory. One morning, all the inmates were already up but X was still in bed. When his fellow inmates went to X, they held his hand, and they realized X's fever was very high. The inmates immediately informed the authorities of Bilibid. An ambulance arrived and X was now being lifted to be brought to the nearest hospital. The moment they lifted X, the police authorities found plastic sachets of Shabu under his bed. Because of this, X was charged with Illegal Possession of Dangerous Drugs under Sec. 11 of RA 9165. After trial on the merits, the judge found him guilty of violation of Sec. 11 of RA 9165. Can the judge consider quasi-recidivism**

**as an aggravating circumstance in imposing the penalty for violation of Sec. 11 of RA 9165?**
**A:** NO. The judge cannot consider quasi-recidivism as an aggravating circumstance because the second crime that he has committed while serving his sentence is not a felony, but a violation of a special penal law, that is Illegal Possession of Dangerous Drugs.

## 11. PRICE, REWARD, OR PROMISE

11. That the crime be committed in consideration of a price, reward, or promise.

For this aggravating circumstance to be considered against the accused, it is necessary that the price, reward or promise must be the primary reason, the main consideration, why the crime was committed. Otherwise, it cannot be appreciated against the accused.

This aggravating circumstance can be considered both against:

1. The person who gave the price, reward or promise – **Principal by inducement**;
2. 2. The person who accepted the price, reward or promise in order to commit the crime – **Principal by direct participation**

**Q: X wanted to kill Y for the longest time but he often failed. He conducted surveillance on Y and he knew that Y arrives home every 8pm. He packed all his things, the gun was placed in the bag, he put on a coat and hat, and he tried to go to the place as soon as 7pm. He will be waiting for the arrival of Y. He was ready to leave the house but suddenly his phone rang and it was Z. Z was trying to hire X for the amount of 100k to kill Y. X accepted. Z said that he will send the money right now and the balance will come when Y is already dead. X left and executed the crime. He killed Y upon alighting from a jeepney while Y was entering the house. Because of that, X was charged with Murder qualified by Treachery with the aggravating circumstance of in consideration of a price, reward or promise. Two qualifying circumstances were alleged in the information. If you were the judge, how would you appreciate it?**
**A:** There is treachery as the offender deliberately adopted the ways, means, and methods he used in order to commit the crime and because of that Y was totally without any defense. However, there is no in consideration of a price, reward or promise. It was not the primary reason why the crime was committed. X was already about to kill the victim. It was only coincidental that Z gave him a call and asked him to kill Y. But it is not the primary reason, it is not the main consideration. Therefore, it cannot be considered so as to increase further the criminal liability of the accused.

## 12. BY MEANS INVOLVING GREAT RUIN

12. That the crime be committed by means of inundation, fire, poison, explosion, stranding of a vessel or international damage thereto, derailment of a locomotive, or by the use of any other artifice involving great waste and ruin.

If the mean provided for under Paragraph 12 will be used by the offender in killing a person, it is a qualifying aggravating circumstance. To kill a person by fire, by poison, etc. it'll be murder.

**Examples:**

1. X killed Y by burning Y, the crime committed is Murder, qualified by use of fire.
2. X killed Y by poisoning Y, the crime committed is Murder, qualified by using of poison.

## 13. EVIDENT PREMEDITATION

13. That the act be committed with evidence premeditation.

**ELEMENTS:**

1. The time when the offender has determined to commit the crime;
2. An overt act manifestly indicating that he clung to his determination; and
3. A sufficient lapse of time in between the determination and the actual execution of the crime, time for him to reflect upon the consequences of his acts.

It is necessary for the prosecution to prove each one of these elements. Otherwise, it cannot be considered.

Evident premeditation is the stubborn adherence to a decision to commit a crime. It requires deliberate planning before the actual execution of the crime.

**Evidence to be Established**

1. The prosecution must show when the accused decided to commit the crime;

2. The prosecution must prove what act was done by the accused to show that he clung to his determination;
3. The prosecution must establish how long a time had lapsed between the determination and the actual execution of the crime. Was there a sufficient time for him to reflect on the consequences of his act?

If the three has been proven by the prosecution, evident premeditation shall be considered against the accused.

## 14. CRAFT, FRAUD, OR DISGUISE

14. That craft, fraud or disguise be employed.

**Craft** refers to cunning and intellectual trickery resorted to by the accused so that the victim will perform an act that will make the accused carry out his evil design.

**Fraud** refers to deceit and it is evidenced by insidious words and machinations resorted to by the accused so that the victim will perform an act that will make the accused carry out his evil design.

**Disguise** refers to means, ways, or methods used by the offender in order to conceal his real Identity.

Craft, fraud, or disguise may be considered collectively or independently of each other, depending on their presence in the commission of the crime.

## 15. USE OF SUPERIOR STRENGTH

15. That advantage be taken of superior strength, or means be employed to weaken the defense.

**ELEMENTS:**

1. That there exists a notorious inequality of forces between the offender and the offended party; and
2. That the offender took advantage of his superiority of his strength in order to ensure or facilitate the commission of the crime.
3.

**First element – Notorious Inequality Of Forces**
These notorious inequality of forces between the offender and offended party may come in different forms:

1. When the offenders are greater in number than that of the offended party – offenders are five (5) while victim is alone;
2. When the offender is armed and the victim is not armed – offender has a bolo while victim was unarmed;
3. When the offender is greater in personal circumstances than that of the offended party – offender is a big man with full of muscles while victim is a small man, weakling, or a very thin man

All of these will show the notorious inequality of forces between the offender and the offended party. However, that is only the first element.

**Second element – That the offender took advantage of his superiority of his strength in order to ensure or facilitate the commission of the crime**

## 16. TREACHERY

16. That the act be committed with treachery *(alevosia)*.

There is treachery when the offender commits any of the crimes against the person, employing means, methods, or forms in the execution thereof which tend directly and specially to insure its execution, without risk to himself arising from the defense which the offended party might make.

**ELEMENTS:**

1. That the offender deliberately and consciously adopted the ways, means, and methods employed by him in the commission of the crime; and
2. By reason of the said ways, means, and methods employed by the offender, the victim was totally without any defense.

**Q: X was walking when A, B, and C surrounded X. They opened their balisong at the same time and they simultaneously stabbed X. X fell down on the ground. Thereafter, A, B, and C left. Arrested, they were charged as conspirators for the crime of Murder qualified by treachery and abuse of superior strength. If you were the judge, how would you rule?**
**A:** If you were the judge, you have to convict A, B, and C as conspirators for the crime of MURDER qualified by treachery. There was treachery in the commission of the crime. Obviously, the fact that X walking alone when A, B, and C appeared while armed with weapons, showed that they planned the commission of the crime, they planned the killing of X. Because of that, X was not able to put up any defense.

There was no abuse of superior strength. Although A, B, and C are greater in number, and they are all armed, there is no showing that they took advantage of their superiority in strength in order to commit the crime. Their act of stabbing him at the same time are only acts necessary in order to commit the crime. Therefore, the crime committed is Murder qualified by Treachery. There is no abuse of superior strength.

**Q: X was walking. A, B, and C appeared. They opened their Balisong and stabbed X at the same time. X fell down on the ground. A, B, and C knelt down and repeatedly stabbed him with their knives. They did not stop until he was no longer breathing. Thereafter, A, B, and C left. Arrested, they were charged as conspirators for the crime of Murder qualified by treachery and abuse of superior strength. Are they present? And how should they be appreciated?**
**A:** There was treachery in the commission of the crime. Obviously, A, B, and C adopted the ways, means, and methods they will use in order to execute the crime. They suddenly appeared, they were armed with Balisong. Because of that, X was without any defense. There was also abuse of superior strength. There was inequality of forces between A, B, A and C versus X. They were 3 and X was alone. They had a Balisong while X was unarmed. Obviously, they took advantage of their superiority in strength in order to ensure the commission of the crime - after they stabbed X and X had fallen, they knelt down and continuously stabbed him until they were sure that X was dead. They took advantage of their superiority in strength against a wounded victim. So, abuse of strength is also present. Therefore, A, B, and C should be convicted as conspirators for the crime of Murder, qualified by Treachery, and abuse of superior strength is absorbed by Treachery. It is settled that when both treachery and abuse of superior strength attend the commission of a crime, treachery always absorbs abuse of superior strength and not the other way around. In this case, abuse of superior strength will have no effect in the imposition of the penalty as it is simply absorbed by treachery.

**Q: In the course of a fight, X lost. The people in the neighborhood who watched the fight chanted "X is talunan". X felt sad and embarrassed. He wanted to get his redemption but he was already too weak at the time. So X decided to leave but he gave a threat to Y, telling him "I will come back and the next time I come back, you are already dead. I will kill you." X left and tried to calm himself down and sleep, but he couldn't. He heard the laughter and chants and so he woke up, he stood up, took his bolo and sharpened it. He wrapped it in a towel and put it underneath his bed. He is waiting for the opportune time to kill Y. Days and weeks passed. He tried a number of times but there were people around. Until 3 Sundays from the time of the fight, there were no people around. X was at the doorstep of the house. When he saw Y alighting from a tricycle, X believed it was time, rushed at Y with the bolo and stabbed Y before Y even entered the gate. Y died. X was arrested and prosecuted for Murder. The information alleges three qualifying aggravating circumstances of treachery, abuse of superior strength, and evident premeditation. Are they present? If they are, how should the court consider them?**
**A:** Treachery is obviously attendant. X adopted the ways, means and methods he will use in order to kill Y - he waited for the opportune time, he sharepend his bolo and the bolo just waiting for the time. Because of that, at the time of the attack, Y was totally without any defense.

No abuse of superior strength, as there is no showing that X took advantage of his bolo in order to ensure the commission for the crime. Just one hack and he already left, leaving the victim. He did not take advantage, he just did what was necessary to commit the crime. Hence, there is no abuse of superior strength.

There is evident premeditation. The time when he has determined to commit the crime was the time that he lost the fight. An overt act manifestly indicating that he clung to his determination - X sharpened the bolo, wrapped it, and waited for days and weeks to use the bolo and execute the crime. Last element - 3 weeks is already a long time for him in order to reflect upon the consequences of his act. All the elements represent, therefore evident premeditation attends the commission of the crime.

There is treachery and evident premeditation. As held by the SC in **People v. Dayrit**, when both treachery and evident premeditation attended the commission of the crime, treachery qualifies the killing into murder, and evident premeditation shall be considered merely as a generic aggravating circumstance. So X should be convicted of murder qualified by Treachery with the generic aggravating circumstance of evident premeditation.

Killing, attacking, stabbing a sleeping victim is always done treacherously. A sleeping victim is not in a position to evade the blow and put up any defense. Therefore, it is carried out by the accused at such time where there will be no risk upon himself. Hence, it is always done treacherously.

In the case of **People v. Moreno**, however, MOreno attacked the victim but Mijares was able to stand up and thereafter kick and push Moreno outside the house. Thereafter, he fell as he was wounded. Prosecuted for the crime of Murder qualified Treachery, did Treachery attend the commission of the crime despite the fact that the victim

was able to put up a retaliation? SC said yes. Even if Mijares was able to stand up, kick and push the accused, there is still treachery in the commission of the crime. Treachery exists even if the victim was able to retaliate by reason of his reflexes so long as he was not able to defend himself at the time of the inception of the attack. In this case, at the initial assault, he was sleeping. He was not in a position to defend himself. Therefore, treachery attends the commission of the crime.

In the case of **People v. Enriquez**, the SC said that Treachery must be present at the inception of the attack. In this case, the witness saw that the victim had been crawling outside the door of the house. He was already bloodied and the accused stabbed him with a bread knife. The said witness did not see how the attack commenced. What the witnesses saw is that the victim was already wounded. There is no treachery because no one could say that at the inception of the attack, the victim was without any defense.

In the case of **People v. Vilbar** and **People v. Corpin**, it is settled that in case of chance encounter, impulsive killings, crimes committed preceded by repeated altercation, there is no treachery. There is no treachery because the said victim was aware of the impending attack. Hence, treachery cannot be considered against the accused.

**Q: Can there be treachery in the case of the special complex crime of Robbery with Homicide?**
A: In the case of **People v. Escote** and **People v. Juada**, the SC said yes. If by reason or on occasion of the crime of Robbery, Homicide is committed, and the said act of killing is done with Treachery, Treachery may be considered as a generic aggravating circumstance. It is to be considered insofar as the killing is concerned. However, it cannot be considered as a qualifying aggravating circumstance as we have no such crime as Robbery with Murder. Because in the special comprex crime of Robbery with Homicide, Homicide is used in its generic sense, it includes all kinds of killings - Murder, Parricide, Infanticide, even Accidental Death. Therefore, the appreciation of Treachery will only be that of a generic aggravating circumstance.

In the case of **People v. Daniel Matibag**, the Supreme Court said there is Treachery in case of a frontal attack.

## 17. IGNOMINY

17. That means be employed or circumstances brought about which add ignominy to the natural effects of the act.

Ignominy is the moral circumstance which adds disgrace to the natural effect of the crime. The offender performs another act which added moral pain, humiliation, embarrassment on the part of the offended party. An act which was not necessary in order to consummate the crime.

### PEOPLE v. JOSE

In the en banc case of **People v. Jose**, the case of Maggie Delariba, the SC appreciated the aggravating circumstance of Ignominy. The accused ordered Maggie to undress herself and to dance in complete nakedness in front of them for 10 minutes before raping her. Making the rape victim dance in front of the accusedfor 10 minutes in her complete nakedness is not an act necessary to consummate the crime of rape. It is another act done in order to humiliate. Therefore, Ignominy attends the crime.

*Prosec's Comments*: I do not however agree with the SC in appreciating nighttime and abuse of superior strength. It was a chance encounter. Maggie was on her way home when a car arrived and got bumped into – it was like a traffic altercation. There was no showing that the accused planned it. It was Maggie who first spoke and so, the accused were annoyed and took her to get even. The fact that it was nighttime, it was not deliberately sought the cover of darkness to ensure the commission of the crime. Yet the SC appreciated it.

I also do not agree in the appreciation of the aggravating circumstance of abuse of superior strength because it is inherent in the crime of Rape. Rape is always committed by use of force and intimidation. We have Qualified Rape when rape is committed by two (2) or more persons. Therefore, it is an inherent, part or element of the crime and hence, it should no longer be considered as aggravating circumstance so as to increase the imposable penalty. Here, all the accused sentenced to death penalty and thereafter, executed through electric chair.

In the case of **People v. Butler**, SC held that ignominy attended the commission of the crime, because the offender had anal intercourse with the victim after killing the victim. The act of having anal intercourse on the deceased victim is an outrage on her corpse. Hence, SC said ignominy attended the commission of the crime. Although Butler was dismissed because of his minority, SC took time to say that Ignominy would have been considered against the accused.

In the case of **People v. Bumidang**, SC said examining with the use of a flashlight the genitalia of Gloria before

ravishing her right in front of her father who was tid, that is ignominy. You need not examine the genitalia of the rape victim with the use of a flashlight in front of her father. The said act only added moral pain on the part of the said victim. It is not necessary to consummate the crime of rape. Hence, SC said ignominy attended the commission of the crime.

**Q: The accused had carnal knowledge of the victim against the will of the victim using the dog style position. Is it considered an act of ignominy?**
**A:** The accused present evidence that based on recent studies, having sexual intercourse using the dog style position is common among couples. Therefore, it cannot be considered an act of ignominy. SC said yes, the studies are correct. Having sexual intercourse in dog style position cannot be considered as an act of ignominy, IF the sexual intercours is consexual. But fi the dog style position is used int he act of rape, where the sexual intercourse is against the will fo the victim, it should eb considered ignominy. It is an aggravating circumstance.

## 18. UNLAWFUL ENTRY; 19. BREAKING OF A WALL, ROOF, FLOOR, DOOR, OR WINDOW

18. That the crime be committed after an unlawful entry. There is an unlawful entry when an entrance is effected by a way not intended for the purpose.

19. That as a means to the commission of a crime a wall, roof, floor, door, or window be broken.

There is unlawful entry when the offender entered the premises of another through an opening not intended for entrance or egress.

**Q: How is the 18th aggravating circumstance different from the 19th aggravating circumstance??**
**A:** In the 18th, the crime is committed AFTER the unlawful entry. In the 19th, the very means used to commit the crime is the breaking of the wall, roof, floor, door or window.

In case of Robbery by use of Force upon things under Article 299 and Article 302, Par 18 and 19 are considered as inherent in the commission of the crime. In fact, without it, the crime will not be consummated. So in that case, Par 18 and 19 will no longer be considered so as to increase the imposable penalty.

**Q: X entered the house of Y passing through an open window on the second floor. Once inside, he ransacked the house and then left. Is the aggravating circumstance that a crime was committed after the unlawful entry present?**
**A:** Yes. It is no longer considered as an aggravating circumstance because it is an element of Robbery with Use of Force upon things under Article 299. It is the unlawful entry that makes it use of force upon things.

**Q: X tried to look for any part of the house that may be broken so that he can gain entry but he could not find one. He saw that the roof of the house could be easily broken so he made a hole on the roof. Then he lowered a rope, which had a hook, and the hook took one of the bags. In the commission of the crime, is the aggravating circumstance that the roof was broken present?**
**A:** Yes. The crime committed is Theft, not Robbery. The crime committed is Theft and not Robbery because under Art 299, in order to bring about Robbery, whenever the offenders shall have entered the premises of another where personal property were taken. Therefore, for it to be Robbery with Use of Force upon things under Article 299, the law requires the offender must have entered the premises where personal property were taken. In this case, the roof was opened and the rope was lowered. He did not enter, so it is Theft. And in Theft, the use of force is considered as an aggravating circumstance.

**Q: X was passing by when suddenly, he broke the window, placed his hand inside the window, and then took the bag that was on top of the table. In the commission of the crime, is the aggravating circumstance that a window was broken as a means to commit the crime present?**
**A:** YES. It is present because the crime committed is Theft. Since the crime committed is theft, the breaking of the said window in order to get the personal property, in this case, the bag, will be considered as an aggravating circumstance.

**Q: X broke the window, X entered the premises. Upon entering, X took the bag and left. In the commission of the crime is the aggravating circumstance that a window was broken as a means to commit the crime present?**
**A:** NO. It is inherent in the commission of the crime because the crime committed this time is Robbery with use of force upon things under Art. 299. In this case, the breaking of the window is inherent because it is one of the modes of committing Robbery under Art. 299, first paragraph.

**NOTE:** To summarize:
1. If the said offender did not enter the premises in order to take the personal property – **Theft**
2. If the offender entered the premises of another where personal property was taken – **Robbery with use of force upon things**

## 20. AID OF PERSONS UNDER 15 YEARS OF AGE OR BY USE OF MOTOR VEHICLES

20. That the crime be committed with the aid of persons under fifteen years of age or by means of motor vehicles, airships, or other similar means.

If the crime was committed by an offender with the assistance of a minor, taking advantage of minors under 15 years of age, it reveals the offender's greater criminality. He knows that the minor cannot be arrested. He took advantage of the minority and induced them to be part of the commission of the crime. And because of this, it is considered as an aggravating circumstance.

If the offender uses motor vehicles, motorized watercraft, airships, it will also be considered as aggravating circumstance. In the case of **People v. Dayrit**, the use of a motor vehicle was considered by the SC as an aggravating circumstance.

## 21. CRUELTY

21. That the Wrong done in the commission of the crime be deliberately augmented by causing other wrong not necessary for its commission.

**Cruelty** refers to an additional act that brought additional physical pain inflicted on the victim which is not necessary in order to consummate the crime.

In other words, aside from the acts necessary in order to commit the crime, the offender performs another act that adds physical pain on the said victim.

The test in determining the presence of cruelty if there is evidence showing that the offender deliberately and sadistically added physical pain on the part of the said victim.

Therefore, in order for cruelty to be appreciated, it is necessary that:

1. The victim was still alive when the said additional physical pain was inflicted upon him because a deceased victim can no longer suffer additional physical pain; and
2. It is necessary that the offender enjoyed and delighted in seeing his victim agonize because of the additional physical pain that he is inflicting on the said victim.

In the case of **People v. Lucas**, the father tied and raped his daughter. While having sexual intercourse with the daughter, he was burning the face of his daughter with lighted cigarettes. SC ruled that cruelty attended the commission of the crime. To burn the fact of the victim with a lighted cigarette is not necessary to consummate the crime of rape. It is an act that only gave additional pain on the side of the offended party. Therefore, cruelty attended the commission of the crime.

**Q: X was mad at Y. X killed Y. After killing Y, X dismembered the different parts of the body of Y and then, hid the different parts of the body on different places so that it would not be discovered. In the commission of the crime is cruelty attendant as aggravating circumstance?**
**A:** NO. It is not present because the victim, when the parts of his body were dismembered, was already deceased. Therefore, he can no longer suffer the pain of being cut into pieces. Cruelty did not attend the commission of the crime.

**Q: X fired at Y. Y died. X was arrested. When he was frisked, the firearm that he used was confiscated. The Police officers, after investigation, filed two complaints against X - Homicide and Illegal Possession of Loose Firearms under Article 100590. In his counter-affidavit, the counsel of X argued that if ever X is charged in court, it should only be for one information - Complex crime of Homicides with Illegal Possession of Loose Firearms. If you were the public prosecutor, how will you resolve the case?**
**A:** If you were the public prosecutor, you have to indict X for the crime of Homicide with the special aggravating circumstance of Use of Loose Firearms. Under Section 29(1) of RA 10591, if the use of Firearms is inherent in the commission of the crime, it shall be considered as an aggravating circumstance. Based on jurisprudence, it is a special aggravating circumstance. Teredfore, X should be indicted for the crime of Homicide with the special aggravating circumstance of Use of Loose Firearms.

## L. ALTERNATIVE CIRCUMSTANCES (ART. 15)

**Art. 15.** *Their concept.* - Alternative circumstances are those which must be taken into consideration as aggravating or mitigating according to the nature and effects of the crime and the other conditions attending its commission. They are the relationship, intoxication and the degree of instruction and education of the offender.

The alternative circumstance of relationship shall be taken into consideration when the offended party in the spouse, ascendant, descendant, legitimate, natural, or

adopted brother or sister, or relative by affinity in the same degrees of the offender.

The intoxication of the offender shall be taken into consideration as a mitigating circumstances when the offender has committed a felony in a state of intoxication, if the same is not habitual or subsequent to the plan to commit said felony but when the intoxication is habitual or intentional, it shall be considered as an aggravating circumstance.

**Alternative circumstances** - if present or attendant in the commission of a felony can be appreciated by the court either as an aggravating circumstance or as a mitigating circumstance depending on its effect in the commission of the crime.

All the three (3) alternative circumstances under Art. 15 may be considered by the trial court as either aggravating or mitigating:

1. **Considered as aggravating** – If the prosecution was able to prove all the elements of the said aggravating circumstance, and that the said alternative circumstance facilitated the commission of the crime.
2. **Considered as mitigating** – If the defense was able to prove the said alternative circumstance, it shall be appreciated as a mitigating circumstance.

They are alternative because they can be considered as either aggravating or mitigating. Under Art. 15, the three (3) alternative circumstances are:

1. Relationship
2. Intoxication
3. Degree of instruction and education

## RELATIONSHIP

**Relationship** is considered as an alternative circumstance if the offender is related to the offended party as:

1. His spouse,
2. Ascendant,
3. Descendant,
4. Legitimate, natural, or adopted brother or sister, or
5. Relative by affinity in the same degrees.

**Relationship as an Aggravating Circumstance**

As a rule, relationship is an aggravating circumstance:

1. In crime against persons when the crime committed is Serious Physical Injuries and Less Serious Physical Injuries.
2. When the offender is of a lower degree than that of the offended party and the offended party is of a higher degree than that of the offender.

**NOTE:** Relationship is inherent in the crime of Parricide because it is a crime based on relationships.

**Relationship as a Mitigating Circumstance**

As a rule, relationship is considered as a mitigating circumstance in all crimes under Title 10 – Crimes against Property.

Reason: Under Art. 332 of the RPC, in three (3) crimes against property – Theft, Estafa or Swindling, and Malicious Mischief, relationship is an absolutory cause or an exempting circumstance.

Therefore, if in the crimes of Theft, Estafa or Swindling, and Malicious Mischief, relationship is an absolutory cause, then, in all other crimes against property, relationship is considered as a mitigating circumstance. According to the SC, the purpose is to ensure harmony in the family.

## INTOXICATION

**Intoxication** may be considered either as a mitigating circumstance or an aggravating circumstance, depending on who shall prove the elements.

If the prosecution will be able to present the element that the accused is a habitual drinker, that he deliberately got himself intoxicated subsequent to a plan to commit a crime, then intoxication shall be considered as an aggravating circumstance.

But, if the defense will be able to prove that the accused is not a habitual drinker, that the said intoxication was not subsequent to plan to commit a crime, that the said intoxication has affected the mental faculties of the victim then it will be considered as a mitigating circumstance.

The offender has taken such an amount of liquor, as to affect his capability to appreciate the consequences of his act.

**Intoxication as a Mitigating Circumstance**

For intoxication to be considered as a mitigating circumstance, it is necessary for the defense to show that the intoxication is:

1. Not habitual on the part of the offender;
2. Not subsequent to a plan to commit the felony; and

3. That the intoxication did not affect his mental faculties.

If these are present, then intoxication shall be considered as a mitigating circumstance.

**Intoxication as an Aggravating Circumstance**

Intoxication shall be considered as an aggravating circumstance if the prosecution/State was able to prove that:

1. The intoxication was done habitually by the offender;
2. The offender has deliberately taken liquor subsequent to a plan to commit the crime because he found in liquor the stimulant, the strength for him to commit the crime.

## DEGREE OF INSTRUCTION AND EDUCATION

**Degree of Instruction and Education as a Mitigating Circumstance**

**GR:** A low degree of instruction or education would generally mitigate the criminal liability of an offender.

**XPN:** When the act is inherently wrong and it is as wrong to an educated man as it is to an unlettered man.

**Example:** An unlettered man committing falsification of a private document. His low degree of education will be considered as an mitigating circumstance. But, an unlettered man committing homicide, committing robbery, committing rape, commiting child abuse - his low degree of education will not mitigate his liability.

**Q: An ignorant, uneducated man who had never been to school, does not even know how to write his name and just places his thumb mark. He falsified a public document. Can his low degree of education be considered as a mitigating circumstance?**
**A:** YES. His low degree of education will be considered as a mitigating circumstance.

**Q: An ignorant, uneducated man who had never been to school, does not even know how to write his name and just places his thumb mark. He killed his neighbor in the course of a fight. Can his low degree of education be considered as a mitigating circumstance?**
**A:** NO. His degree of education will not mitigate his criminal liability because the crime he committed has nothing to do with his low degree of education. No matter how ignorant he is, he knows that he has no right to take the life of another person. Killing is as criminal to a learned person as to an ignorant. It is a crime that is inherently evil or wrong.

**Degree of Instruction and Education as an Aggravating Circumstance**

A high degree of education will be considered as an aggravating circumstance if the offender took advantage of his high degree of education to facilitate the commission of the crime.

**Example:** A lawyer committing Estafa through falsification of a deed of absolute sale, amounting to Estafa through falsification of a public document. The lawyer took advantage his high learnings in law in order to swindle someone of his property by falsifying deed of absolute sale. Therefore, the lawyer's high degree of education will be considered as an aggravating circumstance.

But if the lawyer, in the course of an argument with another person, lost control of himself and stabbed the other person to death, his high degree of education has nothing to do with the act of killing. The lawyer did not take advantage of his high learnings in law to kill that person. Therefore, his high degree of education will not be considered as an aggravating circumstance.

**Q: X and Y are sisters. X is a Dean's Lister, an honor student with all good grades. On the other hand, Y passed only one (1) subject and in all other subjects, Y failed. Their parents got disappointed with Y and thus, Y was not given allowance for the entire semester as punishment. The best friend of Y will celebrate her birthday party in a bar in Taguig. Y has to attend since it was her best friend who will be celebrating her birthday. Y wanted to buy a gift, but she has no money. She saw her sister's bedroom was open. The sister was not there so she entered. She tried to look for any valuables. She broke the lock of the cabinet, broke the jewelry box and took her sister's expensive necklace. Thereafter, Y sold the necklace for P50,000.00 and used the proceeds in order to buy a gift, and to go to the birthday party. What crime is committed by Y? What is the effect of her relationship with her sister, considering that they live together in the same place. Will it absolve her of her criminal liability? Or will she be liable both civilly and criminally?**
**A:** The crime committed is Robbery with the use of Force upon things under Article 299 2nd act. She is an insider, no need for unlawful entry to enter the place. However, she applied force in breaking the lock of the cabinet. Therefore, the crime committed is Robbery with use of Force upon things under Article 299(2). In case of Robbery with use of Force upon things, relationship is merely a mitigating circumstance. It is an absolutory cause only if the crime

committed is Theft, Estafa or Swindling, or Malicious Mischief, and the siblings are living together. Although in this case, they are living together, the crime committed is Robbery. Hence, the relationship is merely mitigating not absolutory.

**Q: X and Y are common-law spouses and cohabiting as husband and wife. The husband, a gambler, was in need of money. He went inside their bedroom and thereafter, he saw the Rolex watch of his common-law wife. The husband took the watch, valued 2.5M pesos, and sold it. He used the proceeds for his personal benefit. In the commission of the crime, is the common-law husband both criminally and civilly liable or will their relationship exempt him from criminal liability?**
**A:** It is an absolutory cause. The relationship will EXEMPT him from criminal liability, he shall be liable only civilly. The crime committed was Theft because there was no force employed in the taking of the said Rolex watch of the common-law spouse.

Under Art. 332, in the crime of Theft between spouses, relationship is an absolutory cause. The SC ruled that spouses include not only legally married couples, but also include common-law relationships, mistresses and paramours. Since the offender is the common-law spouse of the private offended party, such relationship will absolve him from the criminal liability. In this case, relationship is not a merely mitigating but an absolutory case or an exempting circumstance.

## M. ABSOLUTORY CAUSES

**Absolutory causes** - those circumstances which have the same effect as exempting circumstances, that is it exempts or absolves the offender from criminal liability but not from civil liability.

**Examples:**
1. Instigation
2. Desistance in the attempted stage
3. Mistake of Fact
4. Death and Serious Physical Injuries inflicted in exceptional circumstances (under Article 247)
5. Relationship under Article 322 (trans)

The offender incurs no criminal liability by reason of public policy.

**Instigation**

It is an absolutory cause because the *mens rea* or the evil or criminal intent originated from the mind of the public officer. The said public officer merely lured and/or induced the offender to commit the crime, so that he would have someone to arrest and prosecute.

Since the *mens rea* or the evil intent originated from the mind of the public officer, by reason of public policy, the said offender is absolved from criminal liability and it is the public officer who shall be held criminally liable as a principal by inducement.

**Entrapment**

It is not an absolutory cause because the *mens rea* or the evil or criminal intent originated from the mind of the offender himself. The public officer merely devised ways and means in order to trap and capture the offender *in flagrante delicto,* in the actual act of committing the crime.

It is an act allowed by law in order to trap and capture a criminal *in flagrante delicto*.

| INSTIGATION | ENTRAPMENT |
|---|---|
| The *mens rea* or the evil or criminal intent originated from the mind of the public officer, who merely lured the offender to commit the crime, so that he would have someone to arrest and prosecute. | The *mens rea* or the evil or criminal intent originated from the mind of the offender himself.<br><br>The public officer merely devised ways and means in order to trap and capture him *in flagrante delicto.* |
| By reason of public policy, the offender is absolved from criminal liability | The offender is criminally liable. |
| It is the public officer who becomes liable as principal by inducement. | The public officer incurs no criminal liability. |

**Q: X is selling fish in the public market, but based on the information coming from the police officer, reliable assets and informants, X is not only selling fish but also Shabu. The police officers wanted to confirm this and so, police officer W pretended to be a security guard and he went to X.**

**Police officer W: "X, ikaw ha, ang galing galing mo, napaka-strong mo. Hindi ka ba nahihirapan? Alam mo ako, lagi akong inaantok. Meron ka ba dyang pampasigla? Anong ginagamit mong pampasigla?"**

**X: "Umiinom lang ako ng Redbull. Subukan mo mag Red bull."**

**Police officer W: "Nako, walang effect sa akin ang Redbull. Lagi pa rin akong tulog on duty, kaya lagi ako napapagalitan. Meron ka ba dyang mas matindi? Shabu? May shabu ka ba dyan?"**

**X:"Oo, meron ako. Wag ka lang maingay. Bukas bumalik ka, bibigyan kita."**

**The so next day, police officer W went back to X and asked him, "Nasaan na yung pangako mong Shabu?" X handed a plastic sachet of shabu and the police officer handed over the marked money. Thereafter, he placed handcuffs on X, informing X that he was actually a police officer in disguise. X was charged with Illegal Sale of Dangerous Drugs under Sec. 5 of RA 9165. X argued that he is not criminally liable because he was merely instigated to commit the crime, and therefore, by reason of public policy, he should be absolved of criminal liability. Is X's argument meritorious?**
**A:** NO. X's argument has no merit. What happened wasn't instigation, but is an entrapment. The police officers already have reports and information that X was into drugs and that he is selling drugs. They only devised ways and means to trap and capture X in the actual act of selling drugs. Entrapment is an act and procedure enjoined by law and the courts to trap and capture criminals in *in flagrante delicto*. Therefore, X shall be held criminally liable for Illegal Sale of Dangerous Drugs.

**Q: X was walking on the street. The police officers stopped him and allegedly he was in possession of Shabu. And so, X was charged with Illegal Possession of Dangerous Drugs. It is a bailable offense, but X is a poor man, he cannot post bail. So, he is in city jail while his case is ongoing. After trial on the merits, the judge acquitted X for violation of Sec. 11, Illegal Possession of Dangerous Drugs. After two (2) years of continuous trial, X was acquitted by the court and released from prison. The Police officer learned that X was release and went to the house of X.**

**Police officer: "X, naka-laya ka na pala ha. Kamusta?"**
**X: "Mabuti naman po."**
**Police officer: "Alam mo habang nakakulong ka, itongsi W, winawasak ang kinabukasan ng ating mga kabataan. Nagbebenta ng droga. Alam mo ang mga subject niya mga minor. So, we need your help. We need you to act as our poser buyer in our buy bust operation. Can you do that?"**

**X rejected, but the police officer insisted. X still rejected and so, the police officer left. After two (2) weeks, the police officer went to the house of X with the chief of police. The chief of police asked and insisted that X be their poser buyer in the planned buy bust operation against W. There is a big chance of success of the buy bust operation if X will act as their poser buyer because W will not become suspicious of X as he was W's former customer. X agreed since it was the chief of police who asked for help.**

**During the buy bust operation, X acted as the poser buyer, he bought shabu from W. The moment W handed him the sachet and the moment X handed the marked money to W, the police officers arrested W but also arrested X. X was struggling and asked why he was being arrested, he was just acting as a poser buyer. He was charged with Illegal Possession of Dangerous Drugs. In his defense, X said that he was merely instigated in order to act as a poser buyer, in order to buy Shabu from W. Will his defense lie in his favor?**
**A:** YES. His defense will lie in his favor. In the given facts, it is obviously an instigation and not an entrapment. The evil intent or mens rea originated from the said public officer. They merely induced and lured X to act as the poser buyer because they wanted to arrest X again, because they failed in convicting him. By reason of public policy, X has to be acquitted of the crime charged; otherwise, it is the chief of police, the police officer who lured him to commit the crime who will be criminally liable as a principal by inducement or induction.

## EXTENUATING CIRCUMSTANCES

**Extenuating circumstances** - those circumstances which mitigate, extenuate, lowers, or reduces the imposable penalty. It has the same effect as a mitigating circumstance under Art. 13.

**Examples:**
1. Concealment of dishonor in the cases of Infanticide under Art. 255.
2. Intentional abortion under 258.

**NOTE:** The offender must be the mother of the child.

**Infanticide under Art. 255**

If the offender, who killed her child less than three (3) days old or 72 hours, was the mother of the child herself, and the reason why the mother killed her baby was to conceal her dishonor. Such concealment of dishonor is an extenuating circumstance. It will lower the imposable penalty by two degrees, from reclusion perpetua to merely prison mayor. Therefore, it is akin to a privileged mitigating circumstance.

**Intentional Abortion under Art. 258**

If it is the pregnant woman who expelled the fetus from her womb in order to conceal her dishonor, such concealment of dishonor will mitigate her criminal liability for intentional abortion. The penalty will be lowered by periods. It is an ordinary mitigating circumstance. From prision correccional medium, it shall be lowered to prision correccional minimum.

Concealment of dishonor is a good example of extenuating circumstances which will lower, reduce, or decrease the imposable penalty on the part of the offender.

## N. PERSONS CRIMINALLY LIABLE FOR FELONIES & DEGREE OF PARTICIPATION (ARTS. 16-20)

**Art. 16.** *Who are criminally liable.* - The following are criminally liable for grave and less grave felonies:

1. Principals.
2. Accomplices.
3. Accessories.

The following are criminally liable for light felonies:

1. Principals
2. Accomplices.

### PRINCIPALS (ART. 17)

**Art. 17.** *Principals.* - The following are considered principals:

1. Those who take a direct part in the execution of the act;
2. Those who directly force or induce others to commit it;
3. Those who cooperate in the commission of the offense by another act without which it would not have been accomplished.

### THREE KINDS OF PRINCIPALS

1. ***Principal by Direct Cooperation*** - one who directly executes the crime.

2. ***Principal by Inducement*** - one who directly forces or induce others to commit the crime.

3. ***Principal by Indispensable Cooperation*** - one who cooperates in the commission of the offense by another act without which it would not have been accomplished.

**NOTES:**

★ A Principal by Direct Participation and a Principal by Indispensable Cooperation must necessarily be present at the scene of the crime as without them there is no crime. They are the ones who directly, executes, commits the crimes.

★ Infosar of the Principal by Indispensable Cooperation is concerned, he needs to be present too, the crime would not be consummated. His participation is indispensable to consummate the crime.

★ A Principal by Induction or Inducement need not be present at the scene of the crime. Even if he is absent at the scene of the crime, he still becomes criminally liable when the elements are proven:

**ELEMENTS:**

a. The inducement must be made directly with a deliberate intent of procuring the commission of the crime; and,
b. The inducement is the primary reason or the main consideration why the crime is committed.

If these two are present, even if he is absent at the scene of the crime, he becomes criminally liable as a Principal by Induction or Inducement.

**Q: How is an Accomplice distinguished from a Principal by Indispensable Cooperation? Is an Accomplice a co-conspirator?**

**A:**

| PRINCIPAL BY INDISPENSABLE COOPERATION | ACCOMPLICE |
|---|---|
| A principal by indispensable cooperation is a co-conspirator. Without his act, the crime will not be consummated or accomplished. Hence, a principal by indispensable cooperation is a co-conspirator. | An accomplice is not a co-conspirator. The act of an accomplice is not indispensable in order to consummate the crime.<br><br>With or without the performance of the act by an accomplice, the crime will nevertheless be consummated.<br><br>His act is minor in character; he merely provides moral aid or support on the part of the said principal. |

**PEOPLE v. DULAY**

An accused may be considered a principal by direct participation, by inducement, or by indispensable cooperation. To be a principal by indispensable cooperation, one must participate in the criminal resolution, a conspiracy or unity in criminal purpose and cooperation in the commission of the offense by performing another act without which it would not have been accomplished.

Nothing in the evidence presented by the prosecution does it show that the acts committed by appellant are indispensable in the commission of the crime of rape.

The events narrated by the CA, from the time appellant convinced AAA to go with her until appellant received money from the man who allegedly raped AAA, are not indispensable in the crime of rape. Anyone could have accompanied AAA and offered the latter's services in exchange for money and AAA could still have been raped. Even AAA could have offered her own services in exchange for monetary consideration and still end up being raped. Thus, this disproves the indispensable aspect of the appellant in the crime of rape. It must be remembered that in the Information, as well as in the testimony of AAA, she was delivered and offered for a fee by appellant, thereafter, she was raped by "Speed."

In the case of **People v. Dulay**, Dulay was charged as a principal by indispensable cooperation in the crime of Rape. The prosecution alleged that without Dulay's act, Speed would not be able to commit the act of rape on the girl. When the case reached the SC, the Court said that Dulay is not liable as a principal by indispensable cooperation in the crime of Rape. The Court said all the acts done by Dulay – befriending the girl, bringing the girl in the port area, pushing the girl inside a kubuhan for the girl to be raped by Speed – are not indispensable to consummate the crime of Rape.

According to the Court, the girl may herself present her body before Speed and still, rape will be committed. The acts done by Dulay can be performed by another person, not necessarily Dulay. The SC said that Dulay is not a principal by indispensable cooperation. With or without her acts, Speed could still have raped the girl. The Court said that what Dulay did was an act of procuring a child prostitute. Therefore, the liability of Dulay would be a violation of RA 7610 as a procurer of a child prostitute.

It is evident that the SC looked at the girl as a child prostitute. When the Court said that the girl can presentherself to Speed and still, rape will be committed, the Court believes that the girl is a child prostitute who sells her body. Hence, according to the SC, it is not necessary that there be a Dulay to bring her to a customer.

## ACCOMPLICES (ART. 18)

**Art. 18.** *Accomplices.* - Accomplices are those persons who, not being included in Article 17, cooperate in the execution of the offense by previous or simultaneous acts.

**Accomplices** - are those who, without being a principal, cooperate in the execution of the crime by previous or simultaneous acts.

**ELEMENTS:**

1. That there exists a community of design;
2. That the offender performs acts previous or simultaneous to the commission of the crime; and,
3. The said act must be directly connected to the said act of the principal.

**Community of Design**

There exists a community of design between the principal and the accomplice, when after the principal has authored, has decided to commit the crime, he informs another and that another concurred with the said criminal design and thereafter performs acts, previous or simultaneous, which are directly connected to the acts of the principal.

That another person, that another offender is considered as an accomplice in the commission of the crime.

**NOTE:** An accomplice may or may not directly participate in the commission of the crime. His previous and simultaneous participation in the crime is not indispensable. With or without it the crime would nevertheless be accomplished or consummated.

## ACCESSORIES (ART. 19)

**Art. 19.** *Accessories.* - Accessories are those who, having knowledge of the commission of the crime, and without having participated therein, either as principals or accomplices, take part subsequent to its commission in any of the following manners:

1. By profiting themselves or assisting the offender to profit by the effects of the crime.
2. By concealing or destroying the body of the crime, or the effects or instruments thereof, in order to prevent its discovery.
3. By harboring, concealing, or assisting in the escape of the principals of the crime, provided the accessory acts with abuse of his public functions or whenever the author of the crime is guilty of treason, parricide, murder, or an attempt to take the life of the Chief Executive, or is known to be habitually guilty of some other crime.

**Accessories** - those who, having knowledge of the commission of the crime, and without having participated therein, either as principals or accomplices, take part subsequent to its commission in any of the following manners:

1. By profiting themselves or assisting the offender to profit from the effects of the crime; [FIRST ACT]

2. By concealing or destroying the body of the crime, or the effects or instruments thereof, in order to prevent its discovery; [SECOND ACT]

3. By harboring, concealing, or assisting in the escape of the principals: [THIRD ACT]
   - ➢ If the accessory is a public officer - he must have taken advantage of his public office; or
   - ➢ If the accessory is a private person - it is necessary that the principal:
     - ○ is guilty of:
       - ■ treason, parricide, murder; or
       - ■ an attempt to take the life of the Chief Executive; or
     - ○ is known to be habitually guilty of some other crime.

**NOTE:** The accessory has no knowledge of the decision or intent of the principals to commit the crime. The accessory has no knowledge of the said principals' intent to commit the crime. What the accessory knows is that a crime has been committed. A crime has been accomplished and despite knowledge, the accessory takes part subsequent to its commission. So, the participation is after the fact, after the commission of the crime by the principals.

**FIRST ACT**

1. By profiting themselves or assisting the offender to profit by the effects of the crime.

Either he profited from the proceeds of the crime or he assisted the principal to profit from the said proceeds of the crime.

**Fencing under PD 1612**

**ELEMENTS**

1. That the crime of robbery or theft has been committed;
2. That the offender who is neither a principal nor an accomplice is found in possession of any article, item, object or anything of value, which is the proceeds of robbery or thievery;
3. That the offender knows or should have known that the thing in his possession is a proceeds of robbery or thievery; and
4. There is, on the part of the offender, intent to gain either for himself or for another.

**Accessory vis-a-vis Fencing**

| ACCESSORY (ART 19(1), RPC) | FENCING (PD 1612) |
|---|---|
| The principal may commit any crime such as murder, homicide, etc. | The crime committed by the principal is only limited to accessory or theft. |
| The law requires the prosecution to prove beyond reasonable doubt that the said accessory knows that a crime has been committed.<br><br>There must be actual knowledge from the part of the accessory that a crime has been committed. It is only after having that knowledge that he participates in the commission of the crime through his subsequent acts. | The law does not require that he must have actual knowledge that a robbery or theft has been committed because Sec. 5 of PD1612 provides for a prima facie presumption of fencing.<br><br>The moment there is a robbery or theft, and a person is found to have been found in possession of the said stolen item, the law presumes that the said person is a fence having in his possession the said stolen item in the crime of robbery or thievery. |
| The penalty is two degrees lower from the penalty of the principal in the commission of the crime. | PD 1612 provides for a specific penalty for a fence. |

**SECOND ACT**

2. By concealing or destroying the body of the crime, or the effects or instruments thereof, in order to prevent its discovery.

**Intent to Prevent Discovery of the Crime**

It is necessary that the intention of the offender in concealing or destroying the body of the crime, or the effects or instruments is to prevent the discovery of the crime. That is the way he assisted the said principal after the commission of the crime.

If in concealing or destroying the body of the crime that was not his intention, he has another intent, then he cannot be liable as an accessory.

***"Corpus Delicti"***

Also known as *"body of the crime"* or *"substance of the crime."* It refers to the fact that a crime has been committed by someone.

**ELEMENTS**

1. Proof of the occurrence of a certain event – that a crime has been committed; and
2. Proof of a person's criminal responsibility therefore – that a person is the one liable.

**NOTE:** Body of the crime does not refer to the body of the deceased victim in murder, homicide, parricide or infanticide. It does not refer to the thing taken in theft, robbery or estafa.

For as long as someone has witnessed the commission of the crime, even if the thing taken can no longer be produced in court, even if the body of the victim can no longer be found, and can pinpoint to accused as the perpetrator thereof, there is still body of crime, there is still conviction.

**THIRD ACT**

3. By harboring, concealing, or assisting in the escape of the principals of the crime, provided the accessory acts with abuse of his public functions or whenever the author of the crime is guilty of treason, parricide, murder, or an attempt to take the life of the Chief Executive, or is known to be habitually guilty of some other crime.

**Kinds of Accessory under the Third Act.**

1. The accessory is a public officer - the crime committed by the principal may be any crime but the said public officer must have taken advantage of his public position in order to commit the crime.
2. The accessory is a private person - it is necessary that the principal is:
   a. guilty of:
      i. treason, parricide, murder; or
      ii. an attempt to take the life of the Chief Executive; or
   b. known to be habitually guilty of some other crime.

## ACCESSORIES WHO ARE EXEMPT FROM CRIMINAL LIABILITY (ART. 20)

**Art. 20.** *Accessories who are exempt from criminal liability.* - The penalties prescribed for accessories shall not be imposed upon those who are such with respect to their spouses, ascendants, descendants, legitimate, natural, and adopted brothers and sisters, or relatives by affinity within the same degrees, with the single exception of accessories falling within the provisions of paragraph 1 of the next preceding article.

**Instances where Accessory is Absolved from Criminal Liability**

There are instances wherein accessory is absolved of criminal liability:

1. When the crime committed is a light felony; and,

2. Under Art. 20, if the said accessory is related to the principal as his spouse, ascendants, descendants, legitimate, natural, and adopted brothers and sisters, or relatives by affinity within the same degrees;

   **NOTE:** By reason of relationship, the accessory is absolved from criminal liability if the act performed by the accessory pertains to the second or third act under Art. 19.

   However, if the act done by the accessory is under the first act of Art. 19, there is no absolutory cause, even by reason of relationship.

**Q: X decided to kill Y, his long time enemy. This is the third time, for first and second he failed in his . In order to ensure Y's death, he decided to kill Y inside his house. He was already on his way to the house of Y when he suddenly realized that he needed a lookout. He passed by the house of his best friend Z. He told Z that he has already decided to kill Y and he only needs someone to serve as lookout and he is asking Z to act as one. Out of friendship, Z could not say no so he said yes, he would act as a lookout.**

**They both went in the direction of the house of Y. When they reached the place, X told Z to just stay on the said road opposite the house of Y facing the said house. X told Z, you just stay here, if you see, untoward incident happening, give me a call. I have to immediately leave, I know dangers come. That's the only thing you need to do. Thereafter, X left Z, who served as lookout, and went inside the house of Y. Just a few minutes after, Z heard the barangay chairman and two barangay tanods passing by and he heard the name of Y. It seemed that they were going to the house of Y.**

**Z was so afraid. He gave a call to X, but X did not pick up the phone. Afraid, he left his place and went inside the house of Y. Upon entering, he saw Y down on the floor, bloodied and wounded, almost motionless. He seemed to be no longer breathing. Z told X, "I have been calling you. The chairman seemed to be going to the house of Y. You might be discovered. Come, let us already go. Let's leave this place. X told Z, "Yes, we are going to leave but please throw this body to the well first so they may not know what happened." So, Z dragged the motionless body of Y and threw it to the well. Together, X and Z left the place.**

**The death of Y was discovered. Based on the autopsy report, Y died because of drowning. X and Z were both arrested and they were charged as co-conspirators principals on the crime of murder. Z, however countered, that if he is ever liable, it is only as accessory under the second act. Is Z's defense meritorious? What is the criminal liability of Z?**

A: Both X and Z are principals by direct participation in the crime of murder. They both executed the commission of the crime. Z's argument that he is only an accessory will not lie in his favor. Reason is when he threw the body of Y into the well, Y was still alive because based on the autopsy report, the cause of death was drowning. He is not merely an accessory because his participation is not after the death of Y or after the commission of the crime. He is part of the commission of the crime. He is a principal by direct participation; a co-conspirator in the commission of the crime.

**BAR Q: X and Y asked Z to give them a sketch of the location of the house of W, whom they decided to kill. Z agreed. Z drew the sketch and thereafter gave it to X and Y. By the means of the said sketch, X and Y were able to determine the place of W and thereafter killed W. What is the criminal liability of Z?**

A: Z is liable as an accomplice to the commission of the crime. *First element.* X and Y have already decided to kill W. After they decided to kill W, they went to Z and asked him to draw a sketch of W. The moment drew the sketch he concurred with the decision of X and Y to commit the crime of killing W. There is a community of design. *Second element.* Z performed acts previous to the commission of the crime, by drawing the said sketch. *Third element.* This act is directly connected to the killing of the said victim. Therefore, Z's criminal liability is that of an accomplice.

**Q: X, Y and Z abducted, kidnapped W. They brought W to a beach resort and inside the cottage they tied W. There was a blindfold on the eyes of W and there was masking tape on his mouth of W. He could not shout or ask for help. While X, Y and Z were there and W's hand was tied to a post in the said cottage, they began calling the relatives of W. At that particular moment, A arrived. A saw the situation. W was blindfolded, tied and with tape on his mouth. A heard X, Y and Z calling the relatives of W asking for ransom. A just stood there. After the call, X, Y and Z told A, "You guard him first, we're just going to leave, we'll come back quickly." X, Y and Z left. A was there guarding W. An hour later, XYZ returned. A was still there guarding W.**

**XYZ again called the relatives and now they are amenable to P1M as ransom money from P10M. They decided on the place where the ransom money will be placed. XYZ left again and told A to guard W as they are going to the place where the money was placed. Unknown to XYZ, it was an entrapment moment. The moment they received the ransom money, the police officers and NBI agents jointly arrested XYZ.**

**During investigation, XYZ have no recourse other than to divulge where W is being kept. The police raided the cottage and found W blindfolded, tied with masking tape on the mouth and there was a guard with him, A. A was also arrested. X, Y, Z and A were all charged in court as principals in the crime of kidnapping for ransom.**

**However, according to A, if ever he was liable, it should only be that of an accomplice. He cannot be considered as a principal to the commission of the crime. During the investigation, it turned out, according to A, he is not part of the said kidnapping for ransom. He went there because he got an invitation to a swimming party. Upon reaching the place, it turned out there was no swimming party. He just stayed there.**

**According to him, he is not part of the said kidnapping for ransom. Likewise, A happened to be only 17 years old. If you are the judge, will you also convict A for his participation in the crime of kidnapping for ransom? If so, as what?**

A: First, if that is the problem given, since it is mentioned that the said offender A is a minor, 17 years old. **The first thing is to decide if he acted with discernment or not**. In this case, obviously he acted with discernment because he raised the defense that he is a mere accomplice and that he is not part of the said kidnapping. Therefore, he knows the consequence of his crime if he is convicted. That's why he is making all this alibi. That he just want there to attend a party. Otherwise, he is not making all this alibi. So he acted with discernment.

**Q: Is he liable as a principal or accomplice?**

A: Based on the facts of the case, A's criminal liability is that of an accomplice.

*First element,* there is community design. When A arrived in the place, W was tied in a post blindfolded with a tape on his mouth and he overheard XYZ asking for ransom. At that particular moment, A knew that there is kidnapping for ransom ongoing. But A did not leave the place or reported it to the authorities. Instead, A stayed put and merely acted as guard. In doing so, he concurs with the criminal design of XYZ.

*Second,* he performed simultaneous acts to the commission of the crime of kidnapping for ransom. He has been guarding this kidnapped victim. *Lastly,* this act is directly connected to the crime of kidnapping for ransom. He served as a guard while XYZ were away. Therefore, A's liability is that of an accomplice in the commission of the crime.

**Q: X, the helper, robbed the house of her master while the master was away. She used a hammer to break away the door of the master's bedroom. She used the same to break open the sealed locked cabinets. Thereafter, she took cash and jewelries from the said cabinets. She hurriedly went home and narrated what she did to her mother. She gave the money as well as the jewelries to her mother. The mother was so afraid. The mother said, "You are my only daughter and now you will be arrested. I am sure the moment your employer learned of what happened they will be coming to our house and you will be arrested." The mother was crying and told X to go into hiding to a far-flung place as she does not want to lose X and go behind bars. It is only there that X realized the consequences of what she did and went immediately into hiding. The money as well as the jewelries were left with the mother.**

**The mother knew anytime the police would arrive she would be arrested. The mother left their house. She checked-in at a hotel. The following morning, she went to the house of her best friend and told the latter that she won in a lotto and told her that she can't keep the money in the meantime and told her to keep it first and she will give her a share. The best friend believed her and kept the said money.**

**From that place in Manila, the mother went to different places, Makati, Mandaluyong, San Juan. Then she went**

**to Quezon City. In one small barangay, she found a small jewelry store where she sold the jewelries her daughter had stolen. She sold the jewelries for only P100,000. Mr. Owner inquired from her, "Are you sure you are only selling for P100,000 when it costs P2M?" The mother said "Yes, because I need the money right away." The said store owner gave the mother P100,000. She left. Then, the owner placed some of the jewelries in display. An hour later, here comes the police together with the employer of X. Unknown to the mother, she was spotted by an asset of the Manila Police who reported where she sold the jewelries. Mr. Owner was arrested.**

**What are the criminal liabilities of X, the mother and the store owner?**

A:

***Criminal Liability of X, The Helper***

X, the helper, is criminally liable for the crime of robbery under the second act of Art. 299. She is an insider. There was no unlawful entry. However, she employed force and violence in breaking the lock of the cabinet. Hence, the crime committed is robbery under Art. 299, second act. She is a principal by direct participation. She is the one actually executing the crime.

***Insofar as the mother is concerned, let's determine her criminal liability for each of the acts she performed.***

***First Act - Assisting in the Escape of the Daughter***

**Q: What is the first act that the mother performed? She assisted in the escape of her daughter. For doing so, can she be liable on the third act under Art. 19?**
A: No, because the crime of robbery is not of those enumerated under Art. 19 (3). Likewise, the daughter is not yet found guilty of any crime. In fact, she was not even arrested. Therefore, the mother cannot be held liable under the third act of an accessory.

***Second Act - Leaving the Money to her Best Friend***

**Q: The second act of the mother pertains to the second act of accessory by concealing or destroying the body of the crime or the effects or instruments thereof in order to prevent its discovery. She left the money to her best friend telling her that those her winnings from lotto in order to prevent the discovery of the passage of the said robbery. Can she be held liable under the second act of an accessory?**
A: No, because she is exempted under Art. 20. Her relationship with her daughter is that of an ascendant-descendant relationship. Therefore, she is exempted from criminal liability.

Based on the first and second act of the mother, the mother cannot be criminally liable as an accessory, in these two acts, she can be liable for Obstruction of Justice, a violation under PD 1829. Reason is that for hiding, concealing the said passage of the crime and for assisting in the escape of her daughter she frustrated, hampered, impeded the arrest of her daughter and the investigation and prosecution of the case. Consequently, she can be charged with violation of PD 1829, Obstruction of Justice.

***Third Act - Selling the Stolen Jewelries***

Even if it is only for P100,000, that mother already profited from the effects of the crime. Therefore, the mother can be held liable under the first act of an accessory under Art. 19. The exception under Art. 20 will no longer lie because under the first act will no longer be an exempting circumstance nor an absolutory cause.

***Criminal Liability of the Store Owner***

The store owner is liable as a fence under PD 1612. All the elements of fencing are present.

1. There is a crime of robbery.
2. The said store owner is neither a principal nor an accomplice yet. He was found in possession of the stolen jewelries.
3. Although he has no actual knowledge that robbery has actually been committed, he ought to know the said jewelries were the proceeds of robbery or thievery. He himself could not believe it was sold only for P100,000 when based on his appraisal it is worth P2M. No owner of jewelry will sell such jewelries worth P2M only for P100,000. The third element is present.
4. There is intent to gain for himself or for another.

Therefore, all elements are present. Said store owner can be held liable under PD 1612.

**Q: The store owner was arrested in Quezon City. He was brought by the police to the PNP station in Manila and got his narration. Thereafter, the police filed a case of violation of PD 1612 against the Store Owner before the Office of the Public Prosecutor of Manila. Does the Fiscal Office of Manila have jurisdiction over the case?**

A: The Office of the Public Prosecutor of Manila does not have jurisdiction over the case. Therefore, the outright decision of the Prosecutor's Office must be to dismiss the case. The Supreme Court has ruled that the violation of PD

1612 is not a continuing or transitory offense. Since it is not a continuing or transitory offense, the offender found in possession of a stolen item can only be prosecuted before the place where he was found in possession. Since he was found in possession of the said stolen jewelries in Quezon City, the case should be filed before the Office of the Public Prosecutor of Quezon City. Thereafter, the Information must be filed before the trial court of Quezon City. Manila has no jurisdiction over the case. Therefore, the only thing that the Office of the Public Prosecutor over the said charge is to dismiss the case.

**ONG v. PEOPLE**

In the present case, the SC ruled that the requisites of fencing are present. First, private complainant testified that the crime of robbery had been committed on 17 February 1995. He was able to prove ownership of the tires through Sales Invoice No. 4565 dated 10 November 1994 and an Inventory List.

Second, although there was no evidence to link Ong as the perpetrator of the robbery, he never denied the fact that 13 tires of the private complainant were caught in his possession. The Court finds that the serial numbers of stolen tires correspond to those found in Ong's possession.

Third, the accused knew or should have known that the said article, item, object or anything of value has been derived from the proceeds of the crime of robbery or theft. The words "should know" denote the fact that a person of reasonable prudence and intelligence would ascertain the fact in performance of his duty to another or would govern his conduct upon assumption that such fact exists. Ong, who was in the business of buy and sell of tires for the past 24 years, ought to have known the ordinary course of business in purchasing from an unknown seller. Admittedly, Go approached Ong and offered to sell the 13 tires and he did not even ask for proof of ownership of the tires. The entire transaction, from the proposal to buy until the delivery of tires happened in just one day. His experience from the business should have given him doubt as to the legitimate ownership of the tires considering that it was his first time to transact with Go and the manner it was sold is as if Go was just peddling the 13 tires in the streets.

Finally, there was evident intent to gain for himself, considering that during the buy-bust operation, Ong was actually caught selling the stolen tires in his store, Jong Marketing.

Fencing is malum prohibitum, and P.D. 1612 creates a prima facie presumption of fencing from evidence of possession by the accused of any good, article, item, object or anything of value, which has been the subject of robbery or theft; and prescribes a higher penalty based on the value of the property.

In **Ong v. People**, the SC held that criminal intent is immaterial in fencing because it is *mala prohibitum.*

**Q: Is violation of 1512 a malum prohibitum or malum in se? Does criminal intent matter? If criminal intent is immaterial, how come the fourth element of fencing is that there is on the part of the fencer an intent to gain for himself or for another - how do you reconcile this?**
A: In the case of **Ong v. People**, the SC said that good faith or lack of criminal intent is not a valid defense in Fencing because Fencing or violation of PD 1612 is an act *malum prohibitum*; it is not an act *malum in se*. Since it is an act *malum prohibitum*, criminal intent is immaterial. Good faith is not a defense; therefore, the mere fact that the store owner was found in possession of the said jewelries which are the subject of a Robbery, he becomes liable of the offense of Fencing or violation of PD 1612, unless he was able to rebut it by clear and convincing evidence.

*As to Reconciliation*
What the law requires is that there is intent to gain in having the said proceeds of the robbery or theft, not the criminal intent to commit the crime. What is absent in case of an act *malum prohibitum* is the criminal intent to commit the crime. What is immaterial is the criminal intent to commit the crime, but the intent to gain.

## O. PLURALITY OF CRIMES (REAL AND IDEAL)

**Art. 48.** *Penalty for complex crimes.* - When a single act constitutes two or more grave or less grave felonies, or when an offense is a necessary means for committing the other, the penalty for the most serious crime shall be imposed, the same to be applied in its maximum period.

Under Art. 48, there are different kinds of complexity of crimes:

1. Compound crime; and
2. Complex crime proper.

**NOTE:** In the Bar syllabus, there are five (5) kinds. The three (3) others are:

3. Special complex crime proper;
4. Continued crime/continuous crime/delito continuado; and
5. Continuing offense/transitory offense.

## 1. ABSORPTION SYSTEM

The doctrine of absorption is a principle peculiar only in criminal law. In order for the doctrine of absorption to apply, it is necessary that the crimes must be punished by the same statute and the trial court must have jurisdiction over both or all of these crimes.

Under this doctrine, crimes which are committed in furtherance, incidental to or in connection to the crime originally intended by the offender is absorbed by the said original crime.

In the case of **Gonzales v. Abaya**, the Supreme Court said that the doctrine of absorption, in order for it to apply, the crime must be punished by the same statute and these crimes must all be within the jurisdiction of the same civilian court. Otherwise, the theory of absorption will not lie, even if the said act was committed in furtherance to, incidental to or in connection with the crime originally intended.

In this case, the Supreme Court ruled that the doctrine of absorption would apply for crimes committed in the course of rebellion. If the crime of murder, homicide, and physical injuries were committed by those participating in the public uprising to overthrow the government, if they were committed in furtherance of, incident to or in connection with the crime of rebellion, it is absorbed. There is only one crime to be charged and that is rebellion. The killing and the infliction of physical injuries will simply be absorbed by the crime of rebellion.

In **People v. Cayanan**, it was also ruled that when forcible abduction is merely incidental to the act of rape, the forcible abduction is absorbed by the original criminal intent to rape the victim.

**Q: There was a public uprising to overthrow the government participated by many Filipinos. Among the participants was X. He was armed. While they were there, they saw Y. They approached Y to join them before the uprising but Y refused. Y seemed to be pro-administration so because of that, A, B, and C encircled Y and stabbed Y. A, B, and C were arrested and charged with two crimes - Rebellion and Homicide for having stabbed Y. They countered that if ever they were charged, it should only be for Rebellion as Homicide is already absorbed by Rebellion under the theory of Absorption. Is their argument meritorious?**
A: Yes, their argument is meritorious. If in the commission of the crime of rebellion, the offender killed or injured someone by reason of, in furtherance of, incidental to or in connection with rebellion, the only charge is rebellion. There is no separate and distinct charge for murder, homicide or physical injuries. It is only rebellion, and the murder, homicide or physical injuries are all absorbed by the crime of rebellion.

**Q: X raped Y, a 13-year-old girl, inside her bedroom. Two weeks thereafter, when the girl was on her way to her school, abducted the girl. Forcibly brought the girl in the house of his mother then raped the girl for the second time. Because of this, was charged with two crimes: (1) for the rape inside the bedroom of the girl; and (2) for the rape in the house of the accused, forcible abduction with rape. Is the charge of forcible abduction with rape correct?**
A: No. The Supreme Court said if the forcible abduction is merely incidental to the criminal intent to rape the victime, forcible abduction is simply absorbed under the doctrine of absorption. Hence, in this case, is another count of qualified rape, not rape through forcible abduction, not forcible abduction with rape, because forcible abduction was only committed incident to or in connection with the criminal intent which is to rape of the victim. Hence, under the doctrine of absorption, it is simply absorbed. The crime to be charged is only rape.

## 2. SINGLE IMPULSE RULE

**Single Impulse Doctrine**

Under this doctrine, multiple crimes committed by the same offender under a single criminal impulse are treated as one crime and shall be punished only by a single penalty.

In this case, the basis will be the single criminal impulse of the offender. All crimes which are committed based on the single criminal impulse are treated as one crime and they are punished by a single penalty.

Generally, a single criminal impulse will result in a complex crime as provided for under Art. 48 of the RPC.

> **Art. 48.** *Penalty for complex crimes.* —When a single act constitutes two or more grave or less grave felonies, or when an offense is a necessary means for committing the other, the penalty for the most serious crime shall be imposed, the same to be applied in its maximum period.

Based on this provision, we have two crime crimes:
1. Compound Crime of Delito Compuesto; and
2. Complex Crime Proper or Delito Complejo.

## 3. COMPOUND CRIME / DELITO COMPUESTO

There is a compound crime, when a single act produces two or more grave or less grave felonies.

**ELEMENTS:**

1. That the offender performed a single act; and
2. That the said single act produces or resulted in two (2) or more grave or less grave offenses.

In the case of People vs. Nelmida, the Supreme Court said that the basis of a compound crime is the singularity of the act performed by the offender.

The first thing you have to do if there's a problem with a compound crime: *Did the offender perform only one act resulting in different grave or less grave felonies?*

If there is no one act performed but several acts, definitely, Art. 48 on compound crimes will not arise. It will be inapplicable.

**Q: In the middle of a plaza, full of people. X threw a grenade. The grenade exploded. Ten (10) people died and 10 people fatally wounded but survived. 10 people were thrown but sustained only slight physical injuries. What crime or crimes should be filed against X?**

A: X performed a single act: throwing a grenade in the said plaza. What are the results?

1. 10 died - multiple murder
2. 10 were fatally wounded but they survived - multiple frustrated murder
3. 10 were thrown to the ground but only sustained slight physical injuries - multiple attempted murder

Therefore, the case would be People v. X for the complex crime of multiple murder with multiple frustrated murder and multiple attempted murder. It is based only on one Information.

**Usage of "Count"**

When Art. 48 is applicable, do not use the word court. When you say "counts," it means different Informations.

**Example:** Five counts of murder - It means there are five separate and distinct Information for murder.

So, do not use "count" when it is a complex crime, it is not "count," it should be a complex crime of multiple murder with multiple frustrated murder and multiple attempted murder. It is based on one Information only because it is a complex crime.

**Application in Cases**

In the case of **People v. Punzalan**, the Supreme Court convicted Punzalan of the complex crime of double murder with multiple attempted murder. Art. 48 applies because Punzalan performed the single act of stepping on the accelerator of his vehicle, turning it to the right and running over to the navy personnel. Two died and others were thrown and not wounded. Since he performed only a single act, Art. 48 comes in, the crime committed the complex crime of double murder with multiple attempted murder.

However, in **People v. Nelmida**, Nelmida and his cohorts were charged with the complex crime of double murder with multiple frustrated murder and double attempted murder. Two bodyguards of the mayor died, five were wounded, the mayor and another bodyguard were unhurt. So, the crime is the complex crime of double murder with multiple frustrated murder and double attempted murder.

When the case reached the Supreme Court, it held that Art. 48 does not apply. It is inapplicable because here not one offender, we have several perpetrators of the crime, and each of these several perpetrators of the crime were armed with different guns, and a number of bullets came out from the barrels of their respective guns. Hence, it cannot be said that only one act has been committed.

The Supreme Court held that it is settled that when there are several perpetrators armed with guns and several bullets came out from the barrel of their guns, there are as many crimes committed as there are persons killed and wounded. In this case, since two died, five others were wounded and two were unhurt, then, they are all held liable for two counts of murder and seven counts of attempted murder. Art. 48 is inapplicable because there is no single act performed.

In the case, however, of **People v. Tabaco**, the Supreme Court said that when the weapon used is a high-caliber weapon, a submachine gun, such that by one pull of the trigger several bullets would already come out, you do not consider the single act of pulling the trigger, what you will consider is the number of bullets that came out that killed and wounded the people. In that case, there are as many crimes committed as there are persons killed and wounded.

## 4. COMPLEX CRIME PROPER / DELITO COMPLEJO

**ELEMENTS:**

1. That there be two (2) or more offenses;
2. That one (1) or more of these offenses be necessary to commit the other offense; and,

3. All offenses are punished by the same statute.

In complex crime proper, an offense must be committed by the offender as a necessary means to commit the other offense.

**"Necessary Means"**

It means one of them is needed to facilitate the commission of said main crime.

**Estafa through Falsification of Public Documents**

**Q: Can you complex estafa with falsification of public document?**
A: Yes, if the falsification of public document is a necessary means to commit estafa.

In **Borje, et al. v. People**, Officer Borje. et al. were found guilty of estafa through falsification of public document. The Supreme Court said when a person commits falsification through any of the acts enumerated under Art. 171 of the RPC as a necessary means to perpetrate another crime such as estafa, a complex crime under Art. 48 arises.

In this case, through falsified disbursement vouchers and cash invoices, the accused were able to make it appear that 39 vehicles needed emergency repairs and new spare parts. Because of the falsification of the said documents, the accused officers were able to steal government funds. They were held criminally liable for the complex crime of estafa through falsification of public documents.

**Estafa through Falsification of Commercial Documents**

**Q: Can you complex estafa with falsification of commercial documents?**
A: Yes, when the falsification of commercial documents is a necessary means to commit estafa.

**Illustration:** The accused falsified the withdrawal slip in order to withdraw money from an account of the client of the bank. The crime committed is estafa through falsification of a commercial document. A withdrawal slip is a commercial document. It is a document defined and regulated by the code of commerce. Hence, the crime committed is estafa through falsification of commercial document.

**Estafa cannot be complexed with Falsification of Private Document**

It is because both estafa and falsification of private document have damage or prejudice as elements. According to the Supreme Court, in Batulanon v. People, one and the same damage suffered by the private offended party cannot give rise to two crimes. Hence, estafa cannot be complex with falsification of private document. The offender can only be charged either with estafa or falsification of private document.

When estafa can be committed even without falsifying the private document, the proper charge is estafa, because the falsification of private documents is merely an incident.

If estafa cannot be committed without falsifying the private document, the proper charge is falsification of private document because estafa is a mere consequence. But you cannot complex the two.

## 5. SPECIAL COMPLEX CRIME / COMPOSITE CRIME

Also known as a *"single indivisible offense."* It is one as defined and given a specific penalty by the Revised Penal Code.

In case of a special complex crime, also known as a composite crime or a single indivisible offense, there are two or more crimes committed but in the eyes of the law there is only one criminal offense. It is the law that combines these crimes and it is the law that prescribes a specific particular penalty for these combined crimes.

**Examples:**

1. Art. 294 – when by reason or on occasion of robbery, a crime of Homicide is committed, we have the **special complex crime of Robbery with Homicide**. The penalty prescribed by law is *reclusion perpetua* to death.
2. Art. 294 – when by reason or on occasion of robbery, a crime of Rape is committed, we have the **special complex crime of Robbery with Rape**. The penalty prescribed by law is *reclusion perpetua* to death.
3. Art. 266-B – when by reason or on occasion of rape, a crime of Homicide is committed, we the **special complex crime of Rape with Homicide**. The penalty prescribed by law is death.
4. Art. 267 – when the victim is killed as a consequence of kidnapping or detention, we have the **special complex crime of Kidnapping with Homicide / Kidnapping with Murder.** The penalty prescribed by law is death.

## 6. CONTINUOUS CRIME / CONTINUED CRIME / DELITO CONTINUADO

There is a continued crime when the offender impelled by a single criminal impulse commits a series of overt acts in

about the same place and at same time violating one and the same provision of the law.

In the eyes of the law, all these series of acts merely constitute a partial execution of a single crime because there is only a single criminal impulse, criminal intent and criminal resolution. Hence, there is only one criminal charge against the accused.

**ELEMENTS:**

In **Santiago v. Garchitorena,** the Supreme Court enumerated the following elements of continued crime:

1. There must be plurality of acts performed;
2. There must be singularity or unity of criminal intent, purpose, or impulse; and,
3. There must be a singularity or unity of the criminal provision of the law violated.

**Q: A high rise condominium is almost done construction along Ortigas Ave. Among the persons who are tasked to sell the units is X but he is not empowered to collect the monthly amortizations of the buyers. Five already bought the said units through X as the agent.**

**One time X was in need of P100,000 for the hospitalization of his son. He tried to borrow, but no one would lend him the amount. Because of the circumstances, he decided to go to the said condominium unit to four of the persons who bought the unit from him. He represented to these persons that he is now authorized by ABC Corporation to collect the monthly amortizations of P25,000. So, he collected from the four unit owners. When they asked for the receipt, X said that he needs to remit the same and thereafter he will bring back to them their official receipt. No official receipts came back.**

**The four unit owners discovered that they were deceived and that the ABC Corporation did not authorize them to collect monthly amortizations. These four unit owners filed four criminal complaints of estafa by means of false pretense under Art. 315-2(a) against X before the Office of the Public Prosecutor. If you were the Public Prosecutor assigned in the case, will you indict X as charged by the private complainants? Will you indict X on four informations for violations of Art. 315-2(a) estafa by means of false pretense?**

A: No, if you are the Public Prosecutor, you have to indict X only for one count; one Information of estafa by means of false pretense. What happened here is a continued crime. X, impelled by a single criminal impulse to deceive these four unit owners in order to obtain P100,000 that he needed. He committed a series of overt acts. He took money from these four unit owners in about the same time and same place, violating one and the same provision of the law, estafa under Art. 315-2(a). Therefore, the Office of the Public Prosecutor shall only indict X for only one count of estafa by means of false pretense under Art. 315-2(a) because it is a continued crime.

**Q: X is a City Treasurer. X malversed and misappropriated public funds by falsifying the signatures of the construction workers named in the payroll on four different dates: May 20, 2024, June 20, 2024, July 20, 2024 and August 20, 2024. The alleged construction workers were part of the ongoing building of ___. However, these construction workers named in the payroll did not receive even a single centavo. After the discovery during the audit, City Treasurer X was charged with four counts of malversation through falsification of public documents. He malversed public funds by falsifying the said payroll payments.**

**City Treasurer X contended that the charges imputed against him are related to one another. Therefore, they should only be considered only as a one continuous act or a *delito continuado*. Therefore, the charges should be consolidated in only one or single Information for one count of malversation through falsification of public of document. Is the contention, argument or defense of City Treasurer X correct?**

A: The contention of City Treasurer X is not correct. As said earlier, in case of *delito continuado*, the offended is impelled by a single criminal impulse committing a series of overt acts in about the same place, in about the same time, violating one and the same provision of the law. Its elements are:

1. Singularity of criminal intent or impulse;
2. Plurality of acts; and,
3. Singularity of penal law violated.

In this case, there is no singularity of criminal intent, impulse or purpose because the malversation and the falsification of public documents were committed on four separate and distinct occasions: May 20, 2024, June 20, 2024, July 20, 2024 and August 20, 2024. Therefore, each and every transaction entered into by City Treasurer X on these four different dates, he is guided by four separate and distinct criminal intent. Therefore, there should be separate and distinct charges against him; four counts of malversations and four counts of falsification of public documents. It is not a continued crime or *delito continuado*.

## 7. CONTINUING CRIME / TRANSITORY OFFENSE

Continuing crime or transitory offense is one wherein the offender can be prosecuted before the courts of the place where any of the elements of the crime happened. Not all crimes are continuing or transitory offenses.

There are only few crimes that are continuing or transitory, such as:

1. Treason;
2. Rebellion;
3. Evasion of service of sentence;
4. Kidnapping;
5. Estafa by postdating a check;
6. Violation of BP 22; and,
7. Carnapping.

**Q: In payment of his obligation to Y, X issued a post-dated check to Y in Manila. On the maturity date of the check, Y deposited it to his depositary bank in Makati City. However, the check was dishonored by the drawee bank in Bulacan. Y sent a notice of dishonor to X. Despite the lapse of five banking days, X failed to make good of the check. Y filed a case of violation of BP 22 against X before the Office of the City Prosecutor of Makati. The Office of the City Prosecutor of Makati found probable cause. Upon filing of the information before MeTC Makati, the counsel of X filed a motion to quash on the ground that Makati has no jurisdiction because the dishonor of the check came from a bank in Bulacan. Therefore, only MeTC Bulacan has jurisdiction of the case. Is the argument of the said counsel correct?**

A: The argument of the counsel is wrong. It is settled that violation of BP 22 is a transitory offense and the offender can be prosecuted before the courts of the place where any of the elements of the crime happened. The element of deposit of the check took place in Makati City wherein the private complainant deposited the check to his depositary bank in Makati City. Therefore, Makati has jurisdiction over the case. Makati can proceed with the hearing of said case.

However, since the case was already filed and within the jurisdiction of Makati. No more violation of BP 22 can be filed by the private complainant against X before the MeTC of Manila where the issuance took place and MeTC Bulacan where the dishonor took place. Since Makati has already acquired jurisdiction, other courts would no longer have jurisdiction over the offense.

## P. PENALTIES (ARTS. 21-88)

Penalties are the punishment imposed by the court to an offender found liable for an intentional felony or a culpable felony.

**Art. 21.** *Penalties that may be imposed.* - No felony shall be punishable by any penalty not prescribed by law prior to its commission.

Therefore, only those penalties prescribed by law prior to its commission may be imposed by the court. Note, it is the law that prescribes the penalty for every crime. Judges merely impose the penalty as prescribed by law.

Hence, the moment the judge found that an accused is guilty beyond reasonable doubt, the judge has no recourse but to impose the penalty as prescribed by the law enacted by Congress. It is the law that prescribes the penalty.

Again, no felony shall be punishable by any penalty not prescribed by law prior to its commission. Otherwise, there will be a violation of the ex-post facto provision of the Constitution.

**Kinds of Penalties**

There are two kinds of penalties which may be imposed by the court.

1. Principal penalties - are the penalties prescribed by law and imposed by the courts.
2. Accessory penalties - follow the principal penalty as a matter of law. Hence, in case of conviction, the judge need not state the accessory penalty because the accessory penalty automatically follows the principal penalty to which it attaches.

**Illustration:** The judge convicted X of Qualified Rape. The judge imposed upon X the penalty of *reclusion perpetua*. The judge need not state that X shall suffer from absolute perpetual disqualification and civil interdiction because these accessory penalties automatically follow the principal penalty of *reclusion perpetua*. It is automatic. It need not be stated in the judgment.

**Art. 25.** *Penalties which may be imposed.* - The penalties which may be imposed according to this Code, and their different classes, are those included in the following:

**SCALE**
**PRINCIPAL PENALTIES**

1. Capital punishment:

Death

2. Afflictive penalties:
   Reclusion perpetua,
   Reclusion temporal,
   Perpetual or temporary absolute disqualification,
   Perpetual or temporary special disqualification,
   Prison mayor.

3. Correctional penalties
   Prison correccional,
   Arresto mayor,
   Suspension,
   Destierro,

4. Light penalties
   Arresto menor,
   Public censure.

5. Penalties common to the three preceding classes
   Fine, and
   Bond to keep the peace

**ACCESSORY PENALTIES**

Perpetual or temporary absolute disqualification,
Perpetual or temporary special disqualification,
Suspension from public office, the right to vote and be voted for, the profession or calling.
Civil interdiction,
Indemnification,
Forfeiture or confiscation of instruments and proceeds of the offense,
Payment of costs.

## CAPITAL PUNISHMENT:

### DEATH

Can the death penalty be imposed? RA 9346 proscribes the imposition of death penalty. Crimes like qualified rape, kidnapping with homicide, kidnapping with rape–these crimes remain to be heinous, wherein the penalty prescribed by law is death. However, the judge convicting the accused cannot impose the penalty of death because RA 9346 proscribe the imposition of death penalty.

The SC issued **A.M. 15-08-02**. Under this administrative matter, when there are circumstances which warrant the imposition of death penalty, the phrase "without eligibility for parole" shall be used in order to qualify *reclusion perpetua* so as to emphasize that the accu;sed should have been sentenced to suffer death penalty. However, it cannot be imposed by reason of RA 9346.

On the other hand, when death penalty is not warranted and there is no need to qualify the penalty prescribed is indeed *reclusion perpetua*, there is no need to state the qualification "without eligibility for parole".

The penalty for murder is reclusion perpetua to death under Art. 248, RPC.

X was charged with murder qualified by treachery, with the generic AC of evident premeditation. Under Art. 64, when there are two indivisible penalties, like *reclusion perpetua* to death, and there's the presence of an aggravating circumstance, the maximum penalty of the two, should be imposed. Therefore, X is convicted by the judge of the crime of murder, and because of the presence of evident premeditation, the penalty ought to be death. However, the judge cannot impose death penalty because of RA 9346. So, the judge shall impose the penalty of *reclusion perpetua* with a qualification of "without eligibility for parole". What is the purpose? In order to emphasize that this accused should have been penalized by death, but death penalty cannot be imposed by reason of RA 9346. That is the purpose of the phrase "without eligibility for parole".

X was convicted by the court of simple rape. The penalty prescribed by law for simple rape is *reclusion perpetu*a. Convicting X, the judge imposed the penalty of r*eclusion perpetua*. There is no need for the court to state "without eligibility for parole" because the real penalty to be imposed is *reclusion perpetua* not death penalty.

## AFFLICTIVE PENALTIES:

### RECLUSION PERPETUA

*Reclusion perpetua* is not the same as life imprisonment. *Reclusion perpetua* and life imprisonment are two separate and distinct penalties. Hence, these two penalties should not be used interchangeably. This is a common error of news reporters. If you are watching TV, and a news reporter is so excited to say that "he is now punished with *reclusion perpetua* or life imprisonment". That is very wrong because you should never interchangeably use life imprisonment with *reclusion perpetua.*

The following are the distinctions.

| RECLUSION PERPETUA | LIFE IMPRISONMENT |
|---|---|
| Penalty prescribed by RPC | Penalty prescribed by SPL |
| Under Art. 27 of the RPC, | It has no fixed duration. |

| | |
|---|---|
| as amended by RA 7659, has a fixed duration of 20 years and 1 day to 40 years. | |
| Carries accessory penalties | Has no accessory penalty |

The two are separate and distinct and should never be used interchangeably.

### RECLUSION TEMPORAL

Under Art. 27, it has a duration of 12 years and 1 day to 20 years.

### DISQUALIFICATION

It can either be perpetual, which is for life, or temporary. If temporary disqualification is imposed, it has the same duration as prison mayor i.e., 6 years and 1 day to 12 years. However, if temporary disqualification is only imposed as accessory penalty, it merely follows the duration of the principal penalty to which it attaches.

### PRISION MAYOR

Under Art. 27, it has a duration of 6 years and 1 day to 12 years.

## CORRECTIONAL PENALTIES

### PRISION CORRECCIONAL

It has a duration of 6 months and 1 day to 6 years.

### ARRESTO MAYOR

Under Art. 27, it has a duration of 1 month and 1 day to 6 months.

### SUSPENSION

Suspension can either be a correctional penalty or it can be a mere accessory penalty.

1. If suspension is imposed as principal penalty, in particular correctional penalty, it has the same duration as *prision correccional* i.e., 6 months and 1 day to 6 years.
2. If suspension is merely imposed as an accessory penalty, it merely follows the duration of the principal penalty to which it attaches.

### DESTIERRO

Destierro is a principal penalty. It is an accessory penalty. Destierro does not involve imprisonment. It does not involve incarceration. If a convict is sentenced with *destierro*, he is prohibited from entering the place designated in the judgment of the court. If he enters the said prohibited place, he becomes liable for Evasion of Service of Sentence under Art. 157.

Under Art. 27, the duration of *destierro* is the same as prision correccional i.e., 6 months and 1 day to 6 years.

## LIGHT PENALTIES

### ARRESTO MENOR

The penalty for *arresto menor* has the duration of 1 day to 30 days.

### PUBLIC CENSURE

Public censure is indivisible. It has no fixed duration. When you say public censure, it is an act of reprimand. There's no duration on reprimand. Hence, it is indivisible.

## PENALTIES COMMON TO ALL

### FINE

Fine is a pecuniary penalty imposed by the court in case of conviction. Under Art. 26, as amended by RA 10951, fine can be imposed either as an afflictive penalty, a correctional penalty, or a light penalty.

1. Fine is **afflictive** if it exceeds 1.2M.
2. Fine is **correctional** if it's between 40k to 1.2M
3. Fine is **light** if it's less than 40k

### BOND TO KEEP THE PEACE

Bond to keep the peace is a principal penalty wherein the offender is required to present two sureties to ensure that he will be attending the hearing of the case and that he will not make good of the crime he intended to commit. If he fails to present these two sureties, then he shall be detained.

## ACCESSORY PENALTIES

The first, second, and third accessory penalties i.e., disqualification and suspension, we have already discussed. The fourth accessory penalty listed under Art. 25 is civil interdiction.

### CIVIL INTERDICTION

**Art. 34.** *Civil interdiction*. - Civil interdiction shall deprive the offender during the time of his sentence of the rights of parental authority, or guardianship, either as to the person or property of any ward, of marital authority, of the right to manage his property and of the right to dispose of such property by any act or any conveyance *inter vivos.*

Civil interdiction is an accessory penalty that follows the principal penalty of: Death, if it is not executed; and the principal penalties of *reclusion perpetua* and reclusion temporal.

So the moment a person is convicted of a crime, and the penalty imposed is *reclusion perpetua* or reclusion temporal, necessarily, automatically, that person is also civilly interdicted.

A perpetrator, offender who is civilly interdicted cannot exercise the following rights:

1. Rights of parental authority;
2. Rights of guardianship over the persons or property of his ward;
3. Rights of marital authority;
4. Rights to manage his property;
5. Right to dispose of his property by any act or conveyance *inter vivos.*

A person who is civilly interdicted cannot exercise these rights.

It is settled however that even if a person has the accessory penalty of civil interdiction, he can still prepare a last will and testament because he is only prohibited from disposing or conveying his property by any act *inter vivos*. A last will and testament–a disposal of property–takes effect after death. It takes effect *mortis causa* and not *inter vivos*. Hence, it is allowed.

## INDEMNIFICATION

This refers to the different **damages** which the court may impose upon an offender.

For the tension, the depression, for the sleepless nights, if proven, there will be **moral damages**.

For the expenses incurred in the hospitalization, expenses incurred in the burial, in the wake, if proven by receipts, we have the so called **actual damages** imposed.

If the crime is attended by any aggravating or qualifying aggravating circumstance, we have **exemplary damages**.

These are some of the damages which can be imposed against the offender in case of conviction.

## FORFEITURE AND CONFISCATION OF THE PROCEEDS OR INSTRUMENTS OF THE CRIME

**Art. 45.** *Confiscation and forfeiture of the proceeds or instruments of the crime.* – Every penalty imposed for the commission of a felony shall carry with it the forfeiture of the proceeds of the crime and the instruments or tools with which it was committed. Such proceeds and instruments or tools shall be confiscated and forfeited in favor of the Government, unless they be property of a third person not liable for the offense, but those articles which are not subject of lawful commerce shall be destroyed.

It is an accessory penalty listed under Art. 25.

Under Art. 45, this accessory penalty follows all kinds of principal penalties. So whether the principal penalty is *reclusion perpetua*, or *arresto menor*, all the proceeds, all the effects, all the instruments, all the weapons used in the commission of the crime shall always be forfeited in favor of the State; in favor of the government, except, when it belongs to an innocent person.

If it belongs to an innocent person, then it cannot be forfeited. However, even if it belongs to an innocent person, if it is outside lawful commerce of men, then it has to be destroyed.

## PAYMENT OF COSTS

**Art. 37.** *Cost - What are included.* – Costs shall include fees and indemnities in the course of the judicial proceedings, whether they be fixed or unalterable amounts previously determined by law or regulations in force, or amounts not subject to schedule.

**Cost** refers to expenses of litigation. It includes fees and indemnities in the course of judicial proceedings. Generally, the court will adjudge the accused to pay the cost of proceedings in case he is convicted. But however, in case of acquittal, he cannot be made to pay the said cost of proceedings. Each party, the private complainant and the accused must bear the respective costs of proceedings.

Under Art. 25, we have the following pecuniary penalties:

1. Fine; and,
2. Payment of costs

Pecuniary penalty is different from pecuniary liabilities. Under Art. 38, pecuniary liabilities include:

1. Reparation of damage caused,
2. Indemnification of consequential damages,
3. Fine, and,
4. Cost of proceedings

**Art. 38.** *Pecuniary Liabilities – Order of Payment.* – In case the property of the offender should not be sufficient for the payment of all his pecuniary liabilities, the same shall be met in the following order:

1. The reparation of the damage caused.
2. Indemnification of consequential damages.
3. The fine.
4. The costs of the proceedings.

If an offender is convicted, and he is imposed with pecuniary liabilities, and he happens to be insolvent or he does not have enough funds in order to pay the said pecuniary liabilities, Article 38 provides for the order of payment.

He must first pay reparation for damage caused. Then he must pay indemnification of consequential damages. Both of these go to the private offended party. And then, he has to pay the fine and costs of proceedings.

These are the pecuniary liabilities which the court may adjudge against the offender and the order of payment is provided for under Art. 38.

## ARTICLE 29
## PREVENTIVE IMPRISONMENT

**Art. 29.** *Period of preventive imprisonment deducted from term of imprisonment.* Offenders or accused who have undergone preventive imprisonment shall be credited in the service of their sentence consisting of deprivation of liberty, with the full time during which they have undergone preventive imprisonment if the detention prisoner agrees voluntarily in writing after being informed of the effects thereof and with the assistance of counsel to abide by the same disciplinary rules imposed upon convicted prisoners, except in the following cases:

1. When they are recidivists, or have been convicted previously twice or more times of any crime; and,
2. When upon being summoned for the execution of their sentence they have failed to surrender voluntarily.

If the detention prisoner does not agree to abide by the same disciplinary rules imposed upon convicted prisoners, he shall do so in writing with the assistance of a counsel and shall be credited in the service of his sentence with four-fifths of the time during which he has undergone preventive imprisonment.

Credit for preventive imprisonment for the penalty of *reclusion perpetua* shall be deducted from thirty (30) years.

Whenever an accused has undergone preventive imprisonment for a period equal to the possible maximum imprisonment of the offense charged to which he may be sentenced and his case is not yet terminated, he shall be released immediately without prejudice to the continuation of the trial thereof or the proceeding on appeal, if the same is under review. Computation of preventive imprisonment for purposes of immediate release under this paragraph shall be the actual period of detention with good conduct time allowance: Provided, however, That if the accused is absent without justifiable cause at any stage of the trial, the court may motu proprio order the rearrest of the accused: Provided, finally, That recidivists, habitual delinquents, escapees and persons charged with heinous crimes are excluded from the coverage of this Act. In case the maximum penalty to which the accused may be sentenced is destierro, he shall be released after thirty (30) days of preventive imprisonment. (*As amended by Republic Act 6127, June 17, 1970, E.O. No. 214, July 10, 1988, Republic Act No. 10592, [May 29, 2013]*)

**Illustration:** X was charged with the crime of murder. The evidence of guilt is strong. Upon arrest, he was incarcerated at the provincial jail. While he is at the provincial jail, his case is ongoing trial at the RTC. Is X already convicted? While X was behind bars, X is only undergoing preventive imprisonment.

There is preventive imprisonment when the offender is charged with a non-bailable offense and evidence of guilt is strong. Just like in this case, X was charged with murder and evidence of guilt is strong. Or, even if the crime for which he is charged is not a non-bailable offense, but a bailable one, but that offender happens to have no money, no property to post the bail fixed by the court, in that case, his place behind bars while he is ongoing trial for the purpose of preventing his escape. So the primary purpose of placing an accused under preventive imprisonment is to prevent escape while his case is ongoing trial.

**Rules on Application of Preventive Imprisonment**

★ If a person has undergone preventive imprisonment, the period of time that he has spent behind bars undergoing preventive imprisonment can be deducted from his final sentence in case of conviction.

1. There shall be full credit if the said detention prisoner agrees voluntarily in writing to abide by the same rules and regulations imposed on convicted prisoners.

2. There shall be 4/5th credit if the said detention prisoner does not agree in writing to abide by the same rules and regulations imposed on convicted prisoners.

Whether the said offender agrees, or does not agree, everything must be put in writing in the presence of a counsel of his choice, if he has none, the State will provide him with a counsel. This is based upon the amendment brought about RA 10592 on Art. 29. Whether he agrees or not, everything must be placed in writing in the presence of a counsel because RA 10592 obligates the said counsel to explain to X the consequences of his act–of agreeing or not agreeing.

If he agrees to be under the same rules and regulations as a convicted prisoner, there shall be total credit. If he does not agree i.e., he does not want to be under the same rules and regulations imposed on convicted prisoners, there shall be four-fifth credit of his preventive imprisonment from the final sentence imposed on him by the court.

★ Under Art. 29, as amended by RA 10592, if the maximum penalty imposable is *destierro*, he may only be placed under preventive imprisonment for a period of 30 days. After 30 days, he has to be immediately released, without prejudice to the continuation of the trial of his case.

★ Likewise, under Art. 29, as amended by RA 10592, if a detention prisoner has undergone preventive imprisonment equal to the maximum penalty imposable upon him for the crime he has committed, he shall be immediately released, without prejudice to the continuation of the trial against him or without prejudice to his appeal if his case is under review by the appellate court.

**Example:** An accused placed behind bars and the maximum penalty imposable is *destierro*. The accused is a concubine. Under Art. 334, in case of concubinage, the penalty to be imposed on the concubine is merely *destierro*. The said concubine has undergone preventive imprisonment for a period already of 30 days. The counsel must immediately file a petition for habeas corpus. The ground is Art. 29, as amended by RA 10592, if the maximum penalty is *destierro*, he shall be immediately released after 30 days of preventive imprisonment.

So let's say that her counsel filed a petition for habeas corpus, ground Art. 29 as amended by RA 10592, and the judge granted. The next hearing of the case was set two weeks from that date. On the date of the hearing, X failed to appear. The judge issued a warrant of arrest. X was thereafter arrested and placed behind bars.

The judge is correct, because based on the amendment brought by RA 10592, even if the offender is already released, after serving 30 days of preventive imprisonment, he is obligated to appear in every succeeding hearings of his case. If he failed to appear, then that offender can be arrested and placed again behind bars; not because of the crime he has committed, but for failing to comply with the rules that he has to appear in every hearing of the case.

## ARTICLE 39
## SUBSIDIARY PENALTY

Under Art. 39, we have another penalty. We have what we call subsidiary penalty.

**Art. 39.** *Subsidiary penalty* – If the convict has no property with which to meet the fine mentioned in the paragraph 3 of the nest preceding article, he shall be subject to a subsidiary personal liability at the rate of one day for each eight pesos, subject to the following rules:

1. If the principal penalty imposed be prision correccional or arresto and fine, he shall remain under confinement until his fine referred to in the preceding paragraph is satisfied, but his subsidiary imprisonment shall not exceed one-third of the term of the sentence, and in no case shall it continue for more than one year, and no fraction or part of a day shall be counted against the prisoner.

2. When the principal penalty imposed be only a fine, the subsidiary imprisonment shall not exceed six months, if the culprit shall have been prosecuted for a grave or less

grave felony, and shall not exceed fifteen days, if for a light felony.
3. When the principal imposed is higher than prision correccional, no subsidiary imprisonment shall be imposed upon the culprit.

4. If the principal penalty imposed is not to be executed by confinement in a penal institution, but such penalty is of fixed duration, the convict, during the period of time established in the preceding rules, shall continue to suffer the same deprivations as those of which the principal penalty consists.

5. The subsidiary personal liability which the convict may have suffered by reason of his insolvency shall not relieve him from the fine in case his financial circumstances should improve. (*As amended by RA 5465, April 21, 1969, Republic Act No. 10159, [April 10, 2012]*)

Subsidiary penalty is a penalty imposed by the court in lieu of fine, and fine alone.

Before an offender may be made with subsidiary penalty it is necessary that:

1. He is sentenced by the court with the penalty of fine.
2. He happens to be insolvent to pay the pine
3. It is expressly stated in the judgment of the court that in case of insolvency to pay the fine, he shall suffer subsidiary penalty.

Even if he is imposed with fine, and he happens to be insolvent to pay the fine, but the judge failed to expressly state in his judgement that in case of insolvency, he shall suffer subsidiary penalty, the judge cannot order his arrest to suffer subsidiary penalty. The reason is that subsidiary penalty is not an accessory penalty that follows the principal penalty.

It is a separate and independent penalty imposed in case of non-payment of the fine set by the court.

**Rate:** The rate of subsidiary penalty for imprisonment is one day imprisonment equals to the highest minimum wage rate prevailing in the Philippines at the time of rendition of judgment by the trial court.

**Illustration:** X is convicted with a penalty which includes a fine. He was found to be insolvent to pay the fine. What is the highest minimum wage rate now? Always the one in Metro Manila. It is Php 645.00*. So, one day imprisonment equals to Php 645.00 fine. That is the equivalent.

**n.b. Based on the actual current minimum wage rate in NCR*

Under Art. 39, as amended by RA 10159, the following are the rules in the imposition of subsidiary penalty:

1. **If the penalty imposed by the court that goes with fine is *prision correccional* or *arresto*,** subsidiary penalty shall not exceed 1/3 of the term of the sentence but in no case to be more than 1 year;

2. **If the penalty imposed by the court is fine alone,** subsidiary penalty shall not exceed 6 months in case of grave or less grave felonies, and shall not exceed 15 days in case of light felonies;

3. **If the principal penalty imposed by the court that goes with fine is higher than 6 years, or more than *prision correccional,*** there is no subsidiary penalty even if the accused is insolvent to pay the fine;

4. **If the principal penalty imposed by the court that goes with fine is not to be executed by confinement in a penal institution and is of fixed duration** (e.g., fine and suspension, fine and *destierro)*, subsidiary penalty shall not exceed ⅓ of the term of the sentence but in no case to be more than 1 year.

5. **If the principal penalty that goes with fine is not to be executed by confinement in a penal institution, and is indivisible or without fixed duration even if he is insolvent to pay the fine,** he cannot be made to suffer subsidiary penalty.

| PENALTY IMPOSED | SUBSIDIARY PENALTY OR EFFECTS |
|---|---|
| Principal penalty imposed by court together with fine is:<br>1. *prision correccional* or<br>2. *arresto* | Shall not exceed 1/3 of the term of the sentence but in no case to be more than one year |
| Principal penalty imposed by the court is fine alone | a. Shall not exceed 6 months in case of grave or less grave felonies; and<br>b. Shall not exceed 15 days in case of light felonies |

| | |
|---|---|
| Principal penalty imposed by the court that goes with fine is higher than 6 years (higher than *prision correccional)* | No subsidiary imprisonment shall be imposed upon the culprit even if they are insolvent to pay the crime. |
| Principal penalty imposed is not to be executed by confinement in a penal institution, but such penalty is of fixed duration<br><br>**Ex.**<br>a. fine and suspension; or<br>b. fine and *destierro* | Shall not exceed 1/3 of the term of the sentence but in case to be more than one year |
| Principal penalty that goes with fine is not to be executed by confinement in a penal institution, but such penalty has no fixed duration and is indivisible<br><br>**Ex.** Fine and public censure | He cannot be made to suffer subsidiary penalty even if he is insolvent to pay the fine |

**Q: X was convicted of Slight Physical Injuries. The penalty imposed by the court is *arresto menor* and fine. The judge stated in the judgement that in case of X's insolvency to pay the fine, he shall suffer subsidiary penalty. Is the judge correct?**
A: The judge is correct. Based on the first rule, if the principal penalty that goes with fine is *arresto* or *prision correccional,* subsidiary penalty shall not exceed 1/3 of the term of the sentence but in no case to be more than 1 year. In this case, the penalty imposed were *arresto menor* and fine. Therefore, his subsidiary liability shall not exceed 1/3 of the term of his sentence but in no case more than 1 year.

**Q: X was convicted of the crime of Estafa. The judge imposed upon him the penalty *prision mayor* and fine. On the latter part of the judgment, the judge stated, in case of X's insolvency to pay the fine, he shall suffer subsidiary penalty. Is the judge correct?**
A: The judge is wrong. Based on the third rule, if the principal penalty that goes with fine is higher than *prision correccional*, even if in case of insolvency, he cannot pay the fine, he cannot be made to suffer subsidiary penalty. In this case, the penalty imposed by the court that goes with fine is prision mayor. It is higher than 6 years. Therefore, in that case, he can no longer be made to suffer subsidiary penalty.

**Q: The judge convicted the accused of Reckless Imprudence resulting in Damage to Property. The penalty imposed by the court: fine and public censure. The judge stated in case of insolvency to pay the fine, he shall suffer subsidiary penalty. Is the judge correct?**
A: The judge is wrong. The principal penalty that goes with fine is an indivisible penalty, which is not to be served behind bars. Therefore, even if he is insolvent to pay the fine, he cannot be made to suffer subsidiary penalty.

**Q: X was convicted. Fine was imposed. He cannot pay the fine. He was arrested to suffer subsidiary penalty. After a year, he was released. Trying his luck, before going home, he passed by the lotto station. He placed his bet. Then, upon reaching the house, he tried to look for the winning numbers the following day. And, he realized that he won. He won 300M based on the said bet. As she was shouting, everyone in the neighborhood heard about his winnings. Because of this the office of the city prosecutor, immediately filed a motion before the court that X be ordered to pay the fine imposed on him. The judge granted the fiscal's motion. Is the judge correct?**
A: The judge is correct, because under Art. 39, paragraph 5 as amended by 10159, even if the offender already served a subsidiary penalty, he is still required to pay the fine the moment his financial circumstances shall improve. From an insolvent man he is now a multi millionaire. Therefore, he is obligated to still pay the fine that the court imposed upon him because his financial circumstances have already greatly improved.

One of the penalties under Art. 29 is ***arresto menor.***

> **Art. 88.** *Arresto menor*. - The penalty of arresto menor shall be served in the municipal jail, or in the house of the defendant himself under the surveillance of an officer of the law, when the court so provides in its decision, taking into consideration the health of the offender and other reasons which may seem satisfactory to it.

Under Art. 88 of the RPC, the penalty of *arresto menor* shall be served in the municipal jail or in the house of the accused under surveillance by public officer–usually a police officer. So the moment an offender is charged in court and the penalty imposed is *arresto menor*, under Art. 88, he will not be brought to the Bilibid. He can serve his sentence one (1) to 30 days, either in the municipal jail or in his house; depending on the ruling of the court taking into consideration the health of the said offender and other important reasons.

Art. 88 *arresto menor,* has been amended by RA 11362, otherwise known as the Community Service Act. RA 11362 amended the RPC by inserting **Art. 88-A** which provides for community service.

## RA 11362
## COMMUNITY SERVICE ACT

The Community Service Act allows the courts in the exercise of their discretion to require community service and rehabilitative counselling in lieu of jail time when the penalty imposed on an offender is either *arresto menor* or *arresto mayor.* So the moment, the penalty imposed on the offender is either *arresto mayor* or *arresto menor*, that offender may opt, in lieu of jail time, to serve community service.

When you say community service, under the law, it refers to any actual, physical activity which inculcates civic consciousness and it is intended towards the improvement of public works or the promotion of public service.

The moment the person convicted and penalized with *arresto menor* and opted for community service, if the said offender violates the terms of the community service, he is required to serve the full term of the *arresto menor* penalty in jail, or he shall be placed in his house based on the surveillance of a government officer.

With regards to RA 11362, the SC issued A.M. No. 20-06-14, wherein the SC provided the guidelines in the imposition of community service in lieu of jail time.

Based on this SC Administrative Matter, upon the promulgation of judgment, wherein the judge imposes upon the accused the penalty of either *arresto menor or arresto mayor*, the court, during the said promulgation of judgment, shall announce in open court that this accused, this convict, has three options which he has to decide within 15 calendar days from the promulgation of judgment.

**THREE OPTIONS:**

1. To file an appeal to the appellate court.
2. To apply for probation.
3. To apply that penalty be served by rendering community service in the place where the crime was committed.

The option is granted by the SC to the convict. He can choose any of these three within 15 calendar days from the promulgation of judgment.

**NOTE:** Just like probation, community service can only be availed of by the convict only **once**.

## Q. EXECUTION & SERVICE OF PENALTIES

**Degree of Penalty**

It refers to one entire penalty prescribed by law or one entire penalty imposed by court.

**Period of Penalty**

It refers to the subdivision of a divisible penalty into minimum, medium, and maximum periods.

a. ***Minimum period*** - first 1/3 portion
b. ***Medium period*** - second 1/3 portion
c. ***Maximum period*** - the last 1/3 portion

**NOTE:** The subdivision of the penalty into periods will only apply in case of divisible penalties. It will not apply in case of indivisible penalties because they cannot be divided into periods.

**Art. 63 v. Art. 64**

| ART. 63 | ART. 64 |
|---|---|
| It provides for the rules for the imposition of indivisible penalties, those without periods. | It provides for the rules for the imposition of divisible penalties. |

**Art. 63.** *Rules for the application of indivisible penalties.*—In all cases in which the law prescribes a single indivisible penalty, it shall be applied by the courts regardless of any mitigating or aggravating circumstances that may have attended the commission of the deed.

In all cases in which the law prescribes a penalty composed of two indivisible penalties, the following rules shall be observed in the application thereof:
When in the commission of the deed there is present only one aggravating circumstance, the greater penalty shall be applied.

When there are neither mitigating nor aggravating circumstances in the commission of the deed, the lesser penalty shall be applied.

When the commission of the act is attended by some mitigating circumstance and there is no aggravating circumstance, the lesser penalty shall be applied.

When both mitigating and aggravating circumstances attended the commission of the act, the courts shall reasonably allow them to offset one another in consideration of their number and importance, for the purpose of applying the penalty in accordance with the

preceding rules, according to the result of such compensation.

Under Art. 63, the rules on the imposition of indivisible penalties are:

1. When the penalties prescribed by law is a single indivisible penalty, it shall be imposed regardless of whether there is an aggravating or mitigating circumstances

2. If the penalty prescribed by law consists of two indivisible penalties, you observe the following rules:
    a. If the commission of the crime is attended by one aggravating circumstance with no mitigating circumstance, the greater of the two indivisible penalties shall be the one imposed;

    b. If the commission of the crime is attended with one mitigating circumstance, with no aggravating circumstance, the lesser of the two indivisible penalties shall be the one imposed;

    c. If the commission of the crime is not attended by any mitigating and aggravating circumstances, the lesser of the two indivisible penalties shall be the one imposed;

    d. If the commission of the crime is attended by mitigating and aggravating circumstances, you offset the two and apply the rules.

**Art. 64.** *Rules for the application of penalties which contain three periods.*—In cases in which the penalties prescribed by law contain three periods, whether it be a single divisible penalty or composed of three different penalties, each one of which forms a period in accordance with the provisions of articles 76 and 77, the courts shall observe for the application of the penalty the following rules, according to whether there are or are not mitigating or aggravating circumstances:

When there are neither aggravating nor mitigating circumstances, they shall impose the penalty prescribed by law in its medium period.

When only a mitigating circumstance is present in the commission of the act, they shall impose the penalty in its minimum period.

When only an aggravating circumstance is present in the commission of the act, they shall impose the penalty in its maximum period.

When both mitigating and aggravating circumstances are present, the court shall reasonably offset those of one class against the other according to their relative weight.

When there are two or more mitigating circumstances and no aggravating circumstances are present, the court shall impose the penalty next lower to that prescribed by law, in the period that it may deem applicable, according to the number and nature of such circumstances.

Whatever may be the number and nature of the aggravating circumstances, the courts shall not impose a greater penalty than that prescribed by law, in its maximum period.

Within the limits of each period, the courts shall determine the extent of the penalty according to the number and nature of the aggravating and mitigating circumstances and the greater or lesser extent of the evil produced by the crime.

Under Art. 64, it provides for the rules for divisible penalties or those which can be divided into three periods.

The following are the rules:

1. When the crime is not attended by any mitigating or aggravating circumstances, the penalty shall be in its medium period;

2. When the commission of the crime is attended by one mitigating circumstance with no aggravating circumstance, the penalty shall be in its minimum period;

3. When the commission of the crime is attended by one aggravating circumstance with no mitigating circumstance, the penalty shall be in its maximum;

4. When the commission of the crime is attended by both mitigating and aggravating circumstances, you offset the two and apply the rules;
5. When the commission of the crime is attended by two mitigating circumstances with no aggravating circumstance, you lower the penalty with one degree in its proper period

**NOTE:** These two mitigating circumstances are called special mitigating circumstances because their effect is to lower the penalty by one degree. It only happens when there is no aggravating circumstance attendant.

**NOTE:** Whenever we talk of Art. 64, we have to connect it with ISLAW.

***See discussion on 5. INDETERMINATE SENTENCE LAW***

## 1. COMMUNITY SERVICE

Art. 88 has been amended by RA 11362 or the Community Service Act. So, now we have Art. 88-A which provides that a person convicted of a crime wherein the penalty imposes either *arresto mayor* or *arresto menor*, in lieu of jail time, he can file for community service to be rendered in the place where the crime was committed.

If the offender was convicted and sentenced with *arresto mayor* or *arresto menor*, the judge will announce that this offender has three (3) options and that he shall give his decision on which option he is taking within 15 days from the promulgation of judgment. The options are:

1. He can file an appeal;
2. He can file for probation; or
3. He can file for community service in the place where the crime was committed.

If he opted to file for community service and it was denied, he can still either appeal or file for probation, provided there is still a remaining period within the 15 days from the time of promulgation of judgment.

Even if the said offender has already been granted probation in a previous case, in the subsequent case, he can still apply for community service. So, the fact that he had already undergone probation in a former case, it will not disqualify him to apply for community service in the subsequent case.

**NOTE:** This topic was not discussed in class but included in the 2025 Bar Syllabus.

## 2. RELEASE ON RECOGNIZANCE (RA 10389, THE RECOGNIZANCE ACT OF 2012)

**NOTE:** This topic was not discussed in class but included in the 2025 Bar Syllabus. No prior year notes.

## 3. SUCCESSIVE SERVICE OF SENTENCE

**Art. 70.** *Successive service of sentences; exception.*—When the culprit has to serve two or more penalties, he shall serve them simultaneously if the nature of the penalties will so permit; otherwise, said penalties shall be executed successively, following the order of their respective severity, which shall be determined in accordance with the following scale:

1. Death.
2. Reclusion perpetua.
3. Reclusion temporal.
4. Prision mayor.
5. Prision correctional.
6. Arresto mayor.
7. Arresto menor.

A person sentenced to destierro who is also sentenced to the penalty of prision or arresto shall be required to serve these latter penalties before serving the penalty of destierro.

Here the convict is given multiple sentences.

**Q: Let's say, the father raped his own daughter five (5) times. The father was charged with five (5) counts of Rape. The daughter was 25 years old. The judge imposed upon him the penalty of *reclusion perpetua* for each count of Rape. How shall the said father serve the sentence of five (5) *reclusion perpetua*?**

**A:** He shall serve the five sentences successively, not simultaneously.

Under Art. 70, if a convict is imposed with multiple sentences, he shall serve them simultaneously or "sabay sabay." That is, if the nature of the penalty allows simultaneous service of sentence.

Penalties which could be served simultaneously, for example, imprisonment and fine, imprisonment and suspension, imprisonment and civil interdiction. They can be at the same time.

But, if the penalties are all imprisonment, the offender cannot serve it at the same time. The offender has only one body, he cannot be placed in five different detention cells. Therefore, the accused shall serve the penalty successively or "sunod-sunod."

**Limitation of Successive Service of Sentence**

Under Art. 70, in case of successive service of sentence, there is a limitation called the "three-fold rule".

## 4. THREE-FOLD RULE

Under the three-fold rule, the maximum duration of a convict sentence shall not exceed three (3) times the length of the most severe penalty, but in no case to exceed 40 years.

**Q: X was charged with 11 counts of Unjust Vexation. After trial on the merits, the MTC found X guilty of all 11 counts of Unjust Vexation. The judge convicted X of 11 days of *arresto menor* for each count of Unjust Vexation. How should he serve the sentence?**

**A:** 33 days or one month and three days.

| WITHOUT THREE-FOLD RULE | WITH THREE-FOLD RULE |
|---|---|
| 11 counts of Unjust Vexation multiplied by 11 days = 121 days.<br><br>He will be serving for 121 days or 4 months. | You take into consideration the most severe penalty, which is 11 days. Multiply it by 3. Therefore, ***33 days.***<br><br>**NOTE:** This is because the law provides that the maximum duration of the convict sentence shall not exceed three (3) times the length of the most severe penalty. |

Hence, applying the three-fold rule, instead of serving sentence for 4 months for 11 counts of Unjust Vexation, he will be serving only for 33 days, 1 month and 3 days. That is the effect of the three-fold rule.

**NOTE:** It refers only to service of sentence.

**Q: X killed 3 persons, A, B, C. Thereafter, he also inflicted a fatal wound on D. But D survived because of immediate medical intervention. Therefore, X was charged with three (3) counts of Homicide and one (1) count of Frustrated Homicide. The RTC judge found X guilty beyond reasonable doubt of three (3) counts of Homicide and one (1) count of Frustrated Homicide. For three (3) counts of Homicide, the RTC imposed upon X the penalty of 15 years of reclusion temporal per count of Homicide, and in the case of Frustrated Homicide, the judge imposed upon X 10 years of prision mayor. How shall X serve these multiple sentences?**

**A:** 40 years.

| WITHOUT THREE-FOLD RULE | WITH THREE-FOLD RULE |
|---|---|
| 15 years x 3 = 45<br>10 years x 1 = 10<br><br>= ***55 years*** | 15 x 3 = ***45 years***<br><br>**NOTE:** We take into consideration the most severe penalty. The maximum duration of the sentence shall not exceed three (3) times the length of the most severe penalty.<br><br>However, as provided under Art. 70, the three-fold rule shall not exceed 40 years. Therefore, he shall serve his sentence for ***40 years*** |

## 5. INDETERMINATE SENTENCE LAW (ACT 4103 AS AMENDED BY RA 4203)

The Indeterminate Sentence Law (ISLAW) is the law that modified the imposition of penalties both under the RPC and SPLs.

The ISLAW mandates the courts and judges that when imposing a penalty, they must provide for a maximum and minimum period of sentence so that the minimum period of sentence is already served, that offender/convict becomes eligible for parole. Once on parole, he will be released from prison and he will be serving his sentence outside prison. He only has to report to the parole officer and apply the rules and regulations attached to that parole.

**Objectives of ISLAW**

1. To avoid the unnecessary prolonging the imprisonment of the convict which may result in the economic wastefulness; and

2. To redeem valuable material

**Q: How are the objectives of ISLAW achieved? (BAR Q)**
A: These objectives of the ISLAW are achieved because the moment the offender has already served the minimum term of the sentence, he becomes eligible for parole. Therefore, there is no need for his prolonged imprisonment provided he complies with the conditions for the grant of parole.

Although the ISLAW applies to all offenders and it applies to both violations of the RPC and SPLs, under Sec. 2 thereof, as amended, the following persons are disqualified to be given an indeterminate sentence.

**Q: If they are disqualified to be given an indeterminate sentence, what kind of sentence shall be imposed on them?**
A: It shall be a straight penalty.

**Q: How is an indeterminate penalty different from a straight penalty?**
A: An indeterminate penalty has a maximum and minimum term. The moment he served the minimum period of the sentence, he is eligible for parole. Whereas a straight penalty has no maximum and minimum period. Therefore, by all means, he has to serve in its entirety. There is no way that he can be given the benefit of parole.

However, he could apply for good conduct time allowance, under Art. 97 of Act 4103, as amended by RA

**Disqualified to be given the Indeterminate Sentence**

1. Those persons convicted of offenses punished with death penalty or life imprisonment;
2. Those convicted of treason, conspiracy or proposal to commit treason;
3. Those convicted of misprision of treason, sedition or espionage; to those convicted of piracy;
4. Those who are habitual delinquents;
5. Those who shall have escaped from confinement or evaded sentence;
6. Those who having been granted conditional pardon by the Chief Executive shall have violated the terms thereof;
7. Those whose maximum term of imprisonment does not exceed one year; nor
8. Those already sentenced by final judgment at the time of approval of this Act except as provided in section five hereof. *(Sec. 2, ISLAW, as amended)*

**Q: X is convicted of slight physical injuries. The maximum period of sentence imposed on X is 30 days. Can he be given the benefit of parole?**
A: No because the penalty does not exceed one (1) year. Therefore, it is a straight penalty.

**Q: X escaped from confinement. He was arrested. He was charged with evasion of service of sentence. He was convicted. Can he be given the indeterminate sentence?**
A: No, he is disqualified because he evaded the service of his sentence.

**Q: X was charged with a crime and the prosecution was able to prove that he was a recidivist. Can the judge impose the indeterminate sentence on him?**
A: Yes. The only ones disqualified are those disqualified under the law.

**Q: X is convicted of espionage. Can he be given an indeterminate sentence?**
A: No because he is among those disqualified. Sec. 2 of ISLAW, as amended, provides for the offenders that are disqualified to be given an indeterminate sentence. They shall be serving a straight penalty.

**Q: How do you get the indeterminate sentence?**
A: You have to get the maximum and the minimum of the sentence. In fixing the maximum term of the sentence, the court shall take into account the attendant mitigating and aggravating circumstances based on the rules provided for under Art. 64 of the RPC.

Within the range of the penalties arrived at as the maximum in the Indeterminate Sentence Law, the court shall now fix the maximum of the sentence.

**Q: How about the minimum of the sentence?**
A: In fixing the minimum sentence, the court shall take into account the penalty prescribed by law for the crime he has committed and go one degree lower without considering Art. 64. Within the range one degree lower, the court shall fix the minimum sentence.

## COMPUTATION OF DIVISIBLE PENALTIES
*(Art. 64, in relation to ISLAW)*

**Q: X committed a crime of Homicide. X killed Y. X was charged with Homicide. The penalty of Homicide is reclusion temporal. Let us say that the act of killing was not attended by any aggravating or mitigating circumstances. How do you get the indeterminate sentence?**

A: Reclusion Temporal in its medium period to Prision Mayor in its medium period.

| HOMICIDE = RECLUSION TEMPORAL | |
|---|---|
| No aggravating circumstance | Reclusion Temporal in its medium period<br>➡️Maximum term |
| No mitigating circumstance | Prision Mayor in its medium period<br>➡️Minimum term |

To get the maximum term

You take into consideration the penalty prescribed by law which is reclusion temporal and under Art. 64, if there are no mitigating and aggravating circumstances, then the penalty shall be in its medium period.

Therefore, reclusion temporal in its medium period shall be the maximum term of the sentence.

To get the minimum term

Under Act 4103, as amended, to get the minimum term, you lower the penalty by one (1) degree. The range depends on the sound discretion of the court. Since the maximum term of the sentence is in the medium period, let us make prision mayor also in the medium period.

Therefore, the minimum term of the sentence is prision mayor in its medium period.

So, the court will rule finding the accused guilty beyond reasonable doubt of Homicide. He is hereby sentenced to suffer a penalty, the minimum term of which is prision mayor in its medium period to reclusion temporal in its medium period as a maximum term of the sentence.

**Q: When X killed Y, after the said act of killing, X immediately surrendered to the police authorities. There is no aggravating circumstance and there is one (1) mitigating circumstance of voluntary surrender. Again, the penalty prescribed by law is reclusion temporal. How would you compute the penalty?**

A: Reclusion temporal in its minimum period to Prision Mayor in its minimum period.

| HOMICIDE = RECLUSION TEMPORAL | |
|---|---|
| No aggravating circumstance | Reclusion Temporal in its minimum period<br>➡️Maximum term |
| One (1) mitigating circumstance *(Voluntary Surrender)* | Prision Mayor in its minimum period<br>➡️Minimum term |

To get the maximum period
Under Art. 64, if there is no aggravating circumstance and there is one mitigating circumstance, the penalty shall be in its minimum period. That is the maximum term of the sentence.

Therefore, the maximum term is reclusion temporal in its minimum period

To get the minimum period
To get the minimum term of the sentence, again you lower it by one (1) degree, that is prision mayor. The range depends on the sound discretion of the court.

Therefore the minimum term is prision mayor in its minimum period.

**Q: X killed Y inside his dwelling. Therefore, there is one (1) aggravating circumstance of dwelling and no mitigating circumstance attended the commission of the crime. How would you compute the penalty?**

A: Reclusion temporal in its maximum period to Prision mayor in its maximum period.

| HOMICIDE = RECLUSION TEMPORAL | |
|---|---|
| One (1) aggravating circumstance *(Dwelling)* | Reclusion Temporal in its maximum period<br>➡️Maximum term |
| No mitigating circumstance | Prision Mayor in its maximum period<br>➡️Minimum term |

To get the maximum term

1. get the penalty prescribed by law, that is reclusion temporal.
2. Under Art. 64, if there is one (1) aggravating circumstance with no mitigating circumstance, the penalty shall be in its maximum period. That is the maximum term of the sentence.

To get the minimum term

You lower it by one (1) degree, it shall be prision mayor. The range depends on the sound discretion of the court. Since the maximum term is in the maximum period, then let us make the minimum term also in the maximum period. Therefore, it shall be prision mayor in its maximum period as the minimum term of the sentence.

**Q: When X killed Y, the killing took place inside the dwelling of the victim. After killing, X surrendered to the authorities. So, we have one (1) mitigating circumstance of voluntary surrender and one (1) aggravating circumstance of dwelling. How would you compute the penalty?**

A: Reclusion temporal in its medium period to prision mayor in its medium period

| HOMICIDE = RECLUSION TEMPORAL | |
|---|---|
| One (1) aggravating circumstance *(Dwelling)* | Reclusion Temporal in its medium period ➡️Maximum term |
| One (1) mitigating circumstance *(Voluntary Surrender)* | Prision Mayor in its medium period ➡️Minimum term |

To get the maximum term

First, get the penalty prescribed by law, that is reclusion temporal. Under Art. 64, when there are aggravating and mitigating circumstances, we offset the two (2) and apply the rules. So, you offset the aggravating circumstance of dwelling with the mitigating circumstance of voluntary surrender.

After offsetting, no more modifying circumstances attended the commission of the crime. Therefore, it shall be reclusion temporal in its medium period. That is the maximum term of the sentence.

To get the minimum term

You lower by one (1) degree, that is prision mayor. The range depends on the sound discretion of the court. Since the maximum term is in the medium period, then let us make the minimum term also in the medium period.

**Q: The crime committed was Homicide. The killing was not attended by aggravating circumstances but there are two (2) mitigating circumstances. We have voluntary surrender and *praeter intentionem*. X said that he has no intent to kill the victim, and that he immediately surrendered. How would you compute the penalty?**

**A:** Prision mayor in its medium period to prision correccional in its medium period.

| HOMICIDE = RECLUSION TEMPORAL | |
|---|---|
| No aggravating circumstance | Prision Mayor in its medium period ➡️Maximum term |
| Two (2) mitigating circumstances *(Voluntary Surrender and Praeter Intentionem)* | Prision Correccional in its medium period ➡️Minimum term |

To get the maximum term

Take into consideration the penalty prescribed by law for Homicide, that is reclusion temporal. There is no aggravating circumstance with two (2) mitigating circumstances. Under Art. 64(5), if there are two (2) or more mitigating circumstances and no aggravating circumstance, you lower the penalty by one (1) degree.

**NOTE:** This is called special mitigating circumstance because it lowers the penalty by one (1) degree, not just by period but by degree.

So, from reclusion temporal, it is lowered by one (1) degree to prision mayor. Since you have already considered the two (2) mitigating circumstances as a special mitigating circumstance, then there are no more modifying circumstances remaining. Therefore, it shall be in its medium period. That is the maximum term of the sentence

To get the minimum term

You lower it again by one (1) degree. Again, the range depends on the sound discretion of the court. Since the maximum term is in its medium period, let us make the minimum term also in its medium period.

**Q: The act of killing was attended by three (3) mitigating circumstances, we have voluntary surrender, *praeter intentionem* and passion and obfuscation, with no aggravating circumstance. How would you compute the penalty?**

A: Prision mayor in its minimum period to prision correccional in its minimum period.

| HOMICIDE = RECLUSION TEMPORAL | |
|---|---|
| No aggravating circumstance | Prision Mayor in its minimum period |

| | |
|---|---|
| | ➡️Maximum term |
| Three (3) mitigating circumstances *(Voluntary Surrender, Praeter Intentionem, and passion and obfuscation)* | Prision Correccional in its minimum period<br><br>➡️Minimum term |

To get the maximum term

First, get the penalty prescribed by law, that is reclusion temporal. Under Art. 64, when there are two (2) or more mitigating circumstances and no aggravating circumstance, you lower the penalty by one (1) degree. It becomes prision mayor.

You only need two (2) mitigating circumstances to lower the penalty by one (1) degree, so lower it because of voluntary surrender and praeter intentionem. That is the special mitigating circumstance. There remains one (1) more which is the mitigating circumstance of passion and obfuscation.

**Q: What is the effect of another mitigating circumstance?**
A: The third remaining mitigating circumstance lowers the period to the minimum. So, we have prision mayor in its minimum period, that is the maximum term of the sentence.

To get the minimum term

You lower it by one (1) degree, it is prision correccional in its minimum period. This is the minimum term of the sentence.

**Q: The act of killing was not attended by any aggravating circumstance but attended by four (4) mitigating circumstances, voluntary surrender, *praeter intentionem*, passion and obfuscation, and, at the time X, the accused, was intoxicated. He was not a habitual drinker but was intoxicated at the time, thus, it is considered as a mitigating circumstance. How would you compute the penalty?**

A: Prision mayor in its minimum period to prision correccional in its minimum period.

| HOMICIDE = RECLUSION TEMPORAL | |
|---|---|
| No aggravating circumstance | Prision Mayor in its minimum period<br>➡️Maximum term |
| Four (4) mitigating circumstances | Prision Correccional in its minimum period<br>➡️Minimum term |

| | |
|---|---|
| *(Voluntary Surrender, Praeter Intentionem, passion and obfuscation, and Intoxication)* | |

To get the maximum term

First, get the penalty prescribed by law, that is reclusion temporal. Under Art. 64(5), when there are two (2) mitigating circumstances with no aggravating circumstance, you lower the penalty by one (1) degree. so from reclusion temporal to prision mayor. You only need two (2) mitigating circumstances for a special mitigating circumstance to lower the penalty by one (1) degree.

**NOTE:** There remains two (2) more mitigating circumstances, passion and obfuscation and intoxication. However, you cannot lower the penalty two (2) times. Only once based on the special mitigating circumstance. So, the effect would be the penalty shall be in its minimum period.

To get the minimum term

You lower it by one (1) degree. The range depends on the sound discretion of the court. Since the maximum term is in the minimum period, then the minimum term shall also be in its minimum period.

**Q: X killed the victim. The said act of killing was attended by one (1) aggravating circumstance of dwelling, and there are four (4) mitigating circumstances — voluntary surrender, praeter intentionem, passion and obfuscation, and intoxication. How would you compute the penalty?**

A: Reclusion temporal in its minimum period to prision mayor in its minimum period.

| HOMICIDE = RECLUSION TEMPORAL | |
|---|---|
| One aggravating circumstance *(Dwelling)* | Reclusion temporal in its minimum period<br>➡️Maximum term |
| Four (4) mitigating circumstances *(Voluntary Surrender, Praeter Intentionem, passion and obfuscation, and Intoxication)* | Prision Mayor in its minimum period<br><br>➡️Minimum term |

To get the maximum term

You take into consideration the penalty prescribed by law for Homicide, reclusion temporal. Since there is one (1) aggravating with four (4) mitigating circumstances, you

off-set one (1) mitigating circumstance of voluntary surrender with one (1) aggravating circumstance of dwelling.

After off-setting voluntary surrender with dwelling, there remains three (3) more mitigating circumstances, therefore, the penalty should be in its minimum period. That is the maximum term of the sentence.

To get the minimum term

You lower it by one (1) degree. The range depends upon the sound discretion of the court, that is minimum and so, prision mayor in its minimum period shall be the minimum term of the sentence.

**NOTE:** Special mitigating circumstances under Art. 64(5) will only apply if there is no aggravating circumstance.

Even if, in this case, there are four (4) mitigating circumstances, you cannot reduce the penalty by one (1) degree. You cannot consider this as a special mitigating circumstance because there is the presence of one (1) aggravating circumstance of dwelling. Special mitigating circumstances under Art. 64(4) will only apply if there is no attendant aggravating circumstance.

**Q: The crime committed by X is Homicide. What if, his defense is that he acted in self-defense. Unlawful aggression was present. It was proven that there was unlawful aggression coming from the victim. Likewise, it was proven that there was no sufficient provocation from X. However, the means used by X, that is stabbing the victim, is not reasonable in order to prevent the unlawful aggression. Since one element of self-defense is absent, two are present, therefore, we have the privileged mitigating circumstance of incomplete self-defense. And then, let us say that he voluntarily surrendered and he said he has no intention to commit so grave a wrong, and it was proven. So, we have two (2) ordinary mitigating circumstances of voluntary surrender and praeter intentionem. How would you compute the penalty?**

A: Straight penalty of Arresto Mayor in its medium period.

| **HOMICIDE = RECLUSION TEMPORAL** | |
|---|---|
| No aggravating circumstance | Straight penalty of Arresto Mayor in its medium period |
| Three (3) mitigating circumstances<br>*(1 Privileged: Incomplete Self-Defense)*<br>*(2 Ordinary: Voluntary Surrender and Praeter Intentionem)* | |

Again, the penalty for Homicide is reclusion temporal. The moment you see a privileged mitigating circumstance, it takes preference over all other things. Therefore, since there is the privileged mitigating circumstance of incomplete self-defense, you lower the penalty by two degrees.

Under Art. 69, if majority of the elements are present, you lower it by two (2) degrees. Therefore, from reclusion temporal, you lower it to prision mayor and then to prision correccional; two (2) degrees because of the mitigating circumstance of incomplete self-defense.

After lowering it by two (2) degrees, we have prision correccional. There are two (2) ordinary mitigating circumstances with no aggravating circumstance. You apply Art. 64(5), which is the special mitigating circumstance which provides that when there are two (2) or more mitigating with no aggravating, you lower it by one (1) degree.

Now, we have arresto mayor. Arresto mayor – this is the maximum term of the sentence. Arresto mayor in its medium period because we have already considered all mitigating circumstances.

Arresto mayor in its medium period. You can no longer lower it in order to get the minimum term of the sentence.

**Reason:** Arresto mayor is a penalty which does not exceed one (1) year, meaning the indeterminate sentence law does not apply. Hence, X's penalty will be a straight penalty of arresto mayor in its medium period.

**NOTE:** The ISLAW does not apply to those whose maximum term of imprisonment does not exceed one (1) year.

## COMPUTATION OF INDIVISIBLE PENALTIES
## *(Art. 63, RPC)*

**FIRST RULE: In all cases in which the law prescribes a single indivisible penalty**

**Q: The crime committed is Simple Rape. The penalty for Simple Rape is *reclusion perpetua*. *Reclusion perpetua* is a single indivisible penalty. The said act of X was attended by two (2) mitigating circumstances of voluntary surrender and voluntary plea of guilt. However, there was the aggravating circumstance of nighttime because he took advantage of the darkness**

**of the night to rape the said woman. How do you compute the penalty?**
**A:** Reclusion perpetua.

| SIMPLE RAPE = RECLUSION PERPETUA | |
|---|---|
| One (1) aggravating circumstance *(Nighttime)* | Aggravating and mitigating circumstances are not considered |
| Two (2) mitigating circumstances *(Voluntary surrender and Voluntary Plea of Guilt)* | |

Under Art. 63, the first rule provides that if the penalty prescribed by the law is a single indivisible penalty, it shall be imposed regardless of any mitigating or aggravating circumstances.

Therefore, the moment the penalty prescribed by law is single indivisible penalty like reclusion perpetua, you do not consider any mitigating or aggravating circumstance.

**Q: The crime committed is Qualified Rape under Art. 266-B. The father raped his own daughter. Under Art. 266-B(1), minority and relationship are special aggravating circumstances which qualify the penalty to death. So, we have qualified rape – the prescribed penalty by law is death penalty. What should be the penalty imposed by the court?**

| QUALIFIED RAPE = DEATH | |
|---|---|
| Two (2) aggravating circumstances *(Minority and Relationship)* | Death, reduced to Reclusion Perpetua without eligibility of parole by virtue of Sec. 3, R.A. No. 9346 |
| No mitigating circumstances | |

The penalty prescribed by law is death but you cannot impose the death penalty by reason of RA 9346. Under Sec. 3 of RA 9346, you have to reduce the penalty to reclusion perpetua without the benefit of parole.

Under the SC Administrative Circular 15-08-02, which was released last August 4, 2015, the SC said that in cases where death penalty is imposable, but the same is reduced to reclusion perpetua because of RA 9346, that phrase "without eligibility for parole" shall be used to qualify reclusion perpetua to emphasize that the accused should have been sentenced to suffer death penalty had it not been for RA 9346 which prohibits the imposition of death penalty.

Therefore, in this case, the penalty for death shall be reduced to reclusion perpetua but without the benefit of parole, as provided for under Sec. 3 of RA 9346, in relation to the SC administrative matter.

**SECOND RULE: – If the penalty prescribed by law consist of two indivisible penalties**

**Q: The crime committed by X is Murder qualified by treachery. The penalty prescribed for Murder under Art. 248 is *reclusion perpetua* to death. *Reclusion perpetua* is indivisible, death penalty is indivisible. Therefore, the penalty for Murder consists of two (2) indivisible penalties. Let us say that in the act of killing – murder qualified by treachery, there was no aggravating circumstance, no mitigating circumstance. What penalty would you impose?**

A: Reclusion Perpetua

| MURDER QUALIFIED BY TREACHERY = RECLUSION PERPETUA TO DEATH | |
|---|---|
| No aggravating circumstance | Reclusion Perpetua to Death |
| No mitigating circumstances | |

Under Art. 63, if there is no mitigating and aggravating circumstance, the lesser penalty of reclusion perpetua should be imposed.

**Q: The crime committed by X is Murder qualified by treachery. What if the act of killing was not attended by any aggravating circumstance but the offender voluntarily surrendered? Therefore, there is one (1) mitigating circumstance of voluntary surrender. What penalty shall you impose?**

A: Reclusion Perpetua

| MURDER QUALIFIED BY TREACHERY = RECLUSION PERPETUA TO DEATH | |
|---|---|
| No aggravating circumstance | Reclusion Perpetua to Death |
| One (1) mitigating circumstance *(Voluntary Surrender)* | |

Under Art. 63, the lesser penalty, which is reclusion perpetua, shall be the one imposed.

**Q: The crime committed by X is Murder qualified by treachery. What if X's act of killing Y was attended by**

**one (1) aggravating circumstance of evident premeditation with no mitigating circumstances?**

A: Reclusion Perpetua without eligibility for parole (death reduced to RP under Sec. 3 of RA 9346)

| MURDER QUALIFIED BY TREACHERY = RECLUSION PERPETUA TO DEATH | |
|---|---|
| One (1) aggravating circumstance *(Evident Premeditation)* | Reclusion Perpetua to Death |
| No mitigating circumstance | |

The SC said, if both treachery and evident premeditation attended the commission of the crime, treachery qualifies the killing to Murder and evident premeditation shall be considered as a mere generic aggravating circumstance. So, we have one (1) generic aggravating circumstance of evident premeditation and no mitigating circumstance.

Under Art. 63, if there is one (1) aggravating with no mitigating, the greater penalty which is death shall be imposed. However, you cannot impose death penalty by reason of RA 9346. Therefore, it must be reduced to reclusion perpetua without eligibility for parole as provided for under Sec. 3 of RA 9346.

**Q: What if the crime committed is Murder. X's act of killing Y, resulting to Murder qualified by treachery, was also attended by the aggravating circumstance of evident premeditation and the mitigating circumstance of voluntary surrender? What penalty would you impose?**

A: Reclusion Perpetua

| MURDER QUALIFIED BY TREACHERY = RECLUSION PERPETUA TO DEATH | |
|---|---|
| One (1) aggravating circumstance *(Evident Premeditation)* | Reclusion Perpetua to Death |
| No mitigating circumstance | |

Under Art. 63, if there is one (1) aggravating and one (1) mitigating circumstance, you off-set the two (2) and then apply the rules. Therefore, you offset the generic aggravating circumstance of evident premeditation with the ordinary mitigating circumstance of voluntary surrender.

After off-setting the two (2), you apply the rules, no more aggravating, no more mitigating; therefore, the lesser penalty – reclusion perpetua shall be the one imposed.

**Q: What if the said act of murder was not attended by any aggravating circumstance but there are two (2) mitigating circumstances. X immediately surrendered, X immediately pleaded guilty to the crime of Murder. What penalty shall be imposed?**

A: Reclusion Perpetua

| MURDER = RECLUSION PERPETUA TO DEATH | |
|---|---|
| One (1) aggravating circumstance *(Voluntary Surrender and Voluntary Plea of Guilt)* | Reclusion Perpetua to Death |
| No mitigating circumstance | |

Even if there are two (2) mitigating circumstances of voluntary surrender and voluntary plea of guilt and there is no aggravating circumstance, the rule provided for under Art. 64 for special mitigating circumstances does not apply in case of Art. 63.

Therefore, the fact that there are two (2) mitigating with no aggravating would only mean the lowering of the penalty which is the lesser penalty, reclusion perpetua.

**Q: The crime committed is Simple Rape. The penalty for Simple Rape is reclusion perpetua, a single indivisible penalty. The offender was a minor. He is only 17 years old and he acted with discernment. And there were two (2) mitigating circumstances – he voluntarily surrendered and he voluntarily pleaded guilty. There was no aggravating circumstance. What penalty would you impose?**

A: Prision Mayor in its medium period to prision correccional in its medium period

| SIMPLE RAPE = RECLUSION TEMPORAL | |
|---|---|
| No aggravating circumstance | Reclusion Perpetua<br>↓ (PMC: minority)<br><br>Reclusion Temporal<br>↓ (Special MC: 2 MCs)<br><br>Prision Mayor in its medium period<br>➡️Maximum term |
| Three (3) mitigating circumstances | Prision Correccional in its medium period |

| | |
|---|---|
| *(Privileged: Minority Ordinary: Voluntary Surrender and Voluntary Plea of Guilt)* | ➡️Minimum term |

A: The penalty for simple rape is the single indivisible penalty of reclusion perpetua. Therefore, under Art. 63, if the penalty prescribed by law is a single indivisible penalty, you do not take into consideration any mitigating or aggravating circumstances, except when the mitigating circumstance present is a privileged mitigating circumstance like minority because a privileged mitigating circumstance takes preference above other things.

Hence, in this case, even if Art. 63 provides that a single indivisible penalty shall be imposed as is, when there is a privileged mitigating circumstance, it can defeat that rule. Therefore, from reclusion perpetua, you lower it by one (1) degree to reclusion temporal. From an indivisible penalty governed by Art. 63, it is now a divisible penalty governed by Art. 64, in relation to ISLAW.

To get the maximum term

There are two (2) mitigating circumstances with no aggravating circumstances. These are considered special mitigating circumstances which lowers the penalty by one (1) degree, therefore, you have prision mayor.

You already considered everything, no more modifying circumstances left, therefore, it will be prision mayor in its medium period. That is the maximum term of the sentence.

To get the minimum term

To get the minimum term of the sentence, you lower it by one (1) degree, prision correccional. The range depends on the sound discretion of the court. Since the maximum term is in the medium period, let us make the minimum term also in the medium period. So, the minimum term of the sentence is prision correccional in its medium period.

## COMPUTATION OF PENALTY OF COMPLEX CRIMES

**Q: X committed the crime of Direct Assault with Homicide. Under Art. 48, In case of a complex crime, the penalty for the most serious crime in its maximum period shall be the one imposed. In this case, Homicide is the most serious crime. So, the penalty for Homicide in its maximum period shall be the one imposed. What is the penalty for Homicide? It is reclusion temporal.**

**Let us say that the act of killing was not attended by any aggravating circumstance with one (1) mitigating circumstance of voluntary surrender. How do you get the penalty?**

A: Reclusion Temporal in its maximum period to Prision Mayor in its maximum period

| DIRECT ASSAULT WITH HOMICIDE = RECLUSION TEMPORAL IN ITS MAXIMMUM PERIOD | |
|---|---|
| No aggravating circumstance | Reclusion temporal in its maximum period<br>➡️Maximum term |
| One (1) mitigating circumstance *(Voluntary Surrender)* | Prision Mayor in its maximum period<br>➡️Minimum term |

*To get the maximum term*

Again, the penalty for the most serious crime, that is reclusion temporal, since the law says the penalty should be in the maximum period, therefore, it is reclusion temporal in its maximum period. That is the maximum term of the sentence. Therefore, it is reclusion temporal in its maximum period, that is the maximum term of the sentence.

*To get the minimum term*

You lower the penalty by one (1) degree, prision mayor. The range depends upon the sound discretion of the court. Let us make it also maximum period because the maximum term of the sentence is in the maximum period. This will be the minimum term of the sentence.

**Q: What about the mitigating circumstance of voluntary surrender?**
A: You do not consider it because the moment it is a complex crime under Art. 48, the maximum period of the most serious crime shall be the one imposed. Therefore, you do not consider mitigating circumstances

**Q: The crime committed was Direct Assault with Homicide. But this time, it was committed by a minor, a 17-year old and he immediately pleaded guilty. How do you get the penalty?**

A: Prision mayor in its maximum period to prision correccional in its maximum period.

| DIRECT ASSAULT WITH HOMICIDE = RECLUSION TEMPORAL IN ITS MAXIMMUM PERIOD | |
|---|---|
| No aggravating circumstance | Reclusion temporal<br>↓ (PMC: minority) |

| | |
|---|---|
| | Prision Mayor in its maximum period<br>➡️Maximum term |
| Two (2) mitigating circumstances<br>*(Privileged: Minority*<br>*Ordinary: Voluntary Plea of Guilt)* | Prision Correccional in its maximum period<br><br>➡️Minimum term |

You take the penalty for the most serious crime in its maximum period. What is the most serious crime? Homicide.

There is one (1) privileged mitigating circumstance and one (1) ordinary mitigating circumstance. Even if the law provides that the penalty for the most serious crime in its maximum period shall be the one imposed, since there is a privileged mitigating circumstance of minority, it shall be considered first before the rules in Art. 48. Therefore, reclusion temporal shall be lowered by one (1) degree because of the privileged mitigating circumstance of minority, it now becomes prision mayor.

*To get the maximum term*

Under Art. 48, in the maximum period, so it will be prision mayor in maximum period. That is the maximum term of the sentence.

*To get the minimum term*

To get the minimum term of the sentence, you lower it by one (1) degree, prision correccional. The range depends upon the sound discretion of the court. I will also make it maximum period. That is the minimum term of the sentence.

**COMPUTATION OF PENALTY OF SPECIAL PENAL LAWS**

Under Act 4103, in case of SPLs, if the said SPL *does not* have the same nomenclature of penalties as that of the RPC, the maximum term of the sentence shall not go beyond the maximum penalty prescribed by law and the minimum term of the sentence shall not be less than the minimum penalty prescribed by law.

If the penalty prescribed in the SPL has the same nomenclature of penalty as that of the RPC, then you consider the rules provided for in the RPC.

**Q: Let us say that X was found in possession of less than 5 grams of shabu, let us say .02 grams of shabu. Under Sec. 11 of R.A. No. 9165, Illegal Possession of Dangerous Drugs, if the shabu found in the possession of the accused is less than 5 grams, the penalty is 12 years and 1 day to 20 years. He was proven guilty. How do you get the penalty if you are the judge convicting him?**

A: The penalty should be anywhere between 12 years and 1 day to 20 years. It shall not be less than 12 years and 1 day, and it shall not be more than 20 years.

Therefore, if I were the judge, I will impose the penalty of 12 years and 1 day as the minimum term of the sentence to 14 years and 8 months as the maximum term of the sentence. It is not less than the minimum penalty prescribed by law and it is not more than the maximum penalty prescribed by law.

**Q: X was found in possession of an unlicensed firearm. It is an unregistered pistol. The said firearm was transferred, so the offense is Illegal Transfer of Firearms.**

A: Prision correccional in its medium period to arresto mayor in its medium period

**NOTE:** Under Sec. 41 of RA 10951, the degree on illegal possession of loose firearms, in case of illegal transfer of firearms, the penalty is prision corrreccional. Therefore, it has the same nomenclature as the RPC. Hence, to get the indeterminate sentence, you take into consideration the rules provided for under the RPC.

*To get the maximum term*

The said illegal transfer of firearm is penalized by prision correccional. No mitigating and no aggravating circumstances, therefore, it should be in its medium period. That is the maximum term of the sentence.

*To get the minimum term*

To get the minimum term of the sentence, you lower it by one (1) degree, arresto mayor. The range depends on the sound discretion of the court. Let us make it also in the medium period. That is the minimum term of the sentence. Those are the ways on how you compute the penalties based on Arts. 63 and 64, in relation to the ISLAW.

## 6. PROBATION (PD 968 AS AMENDED BY RA 10707)

Probation is a disposition under which a defendant, after conviction of sentence, is released, subject to conditions imposed by the court and the supervision of a probation officer.

Probation is a mere privilege. It is not a matter of right.

**PURPOSES OF PROBATION**

1. To promote the correction and rehabilitation of an offender;
2. To provide an opportunity for the reformation of a penitent offender;
3. To prevent further commission of crimes;
4. To decongest the jails; and,
5. To save government funds which will be incurred if the offender remains in jail.

There are certain offenders who are disqualified to avail of the benefit of probation, as provided for under Sec. 9 of PD 968 and as amended by RA 10707.

**PD 968**
**PROBATION LAW**

**Sec. 9.** *Disqualified Offenders.* - The benefits of this Decree shall not be extended to those:

1. sentenced to serve a maximum term of imprisonment of more than six years;
2. convicted of any offense against the security of the State;
3. have previously been convicted by final judgment of an offense punished by imprisonment of more than six (6) months and one (1) day and/or fine of more than one thousand pesos (P1,000);
4. who have been once on probation under the provisions of this Decree; and
5. Who are already serving sentence at the time the substantive provisions of this Decree became applicable pursuant to Section 33 hereof.

**PERSONS DISQUALIFIED TO BE GIVEN PROBATION**

1. Those sentenced to serve a maximum term of imprisonment of more than six (6) years

So what is the probationable penalty? 6 years or below.

The moment the penalty imposed on the offender is 6 years and 1 day, he can no longer apply for probation.

2. Those who have been convicted of crimes against national security

Those convicted of treason, conspiracy and proposal to commit treason, espionage. They cannot avail of the benefit of probation.

3. Those who have previously been convicted by final judgment of an offense punished by imprisonment of more than 6 months and 1 day and/or fine of more than P1,000;

4. Those who have been once on probation

Again, because probation can only be availed of only once

**X is convicted of Alarms and Scandals under Art. 155. The penalty is arresto menor. Can X apply for probation? (2010 Bar Q)**
A: In 2010, the answer was NO. X cannot apply for probation even if the maximum term of imprisonment for arresto menor is only 30 days, X cannot apply for probation because he is convicted of a crime against public order. Alarms and Scandals under Art.155, RPC is a crime against public order and under PD 968, those convicted of crimes against national security and against public order cannot avail of the benefit of probation. That was in 2010.

**Q: If the same problem is asked now, X is convicted of Alarms and Scandals, penalized with arresto menor. Can he avail of the benefit of probation? Can he apply and be granted of probation?**
A: The answer now is YES because RA 10707 amending PD 968 **deleted**; erased crimes against public order as those who cannot avail of probation. Now, it is only those convicted of crimes against national security that cannot avail of probation. If he is convicted of a crime against national security, he can avail of probation provided that the maximum penalty of imprisonment imposed on him does not exceed 6 years.

**PERIOD OF PROBATION**

| SENTENCE | PERIOD |
|---|---|
| Imprisonment of **not more than** one (1) year | Probation shall **not exceed two (2) years** |
| Imprisonment of **more than** one (1) year | Probation shall n**ot exceed six (6) years** |
| **Fine** and he is required to suffer **subsidiary penalty** in case of insolvency | Probation shall **not be less than nor more than twice the total number of days of subsidiary imprisonment** computed at the rate of the highest minimum wage rate prevailing in the Philippines and at the time |

| | |
|---|---|
| | of rendition of judgment by the trial court. |

**MORENO v. COMELEC**

**FACTS:** Private respondent Mejes filed a petition to disqualify petitioner Moreno from running for Punong Barangay on the ground that he was convicted by final judgment of the crime of Arbitrary Detention to which he suffered imprisonment of 4 months and 1 day to 2 years and 4 months.

Petitioner Moreno contends that he was already granted probation, thus, the imposition of sentence of imprisonment and accessory penalties were suspended. He also contends that under the Probation Law, the final discharge of the probation shall operate to restore to him all civil rights lost or suspended as a result of his conviction and to fully discharge his liability for any fine imposed.

**ISSUE:** W/N Moreno is disqualified to run as Punong Barangay by reason of the probation granted to him

**RULING:** Moreno is not disqualified to run as Punong Barangay

During the period of probation, the probationer is not even disqualified from running for a public office because the accessory penalty of suspension from public office is put on hold for the duration of the probation. Clearly, the period within which a person is under probation cannot be equated with service of the sentence adjudged. Sec. 4 of the Probation Law specifically provides that the grant of probation suspends the execution of the sentence. During the period of probation, the probationer does not serve the penalty imposed upon him by the court but is merely required to comply with all the conditions prescribed in the probation order.

In the case of **Moreno v. COMELEC** (En Banc), the SC said that the period within which a person is under probation cannot be equated to service of sentence because it is expressly provided under Sec. 4 of the Probation Law that the grant of probation suspends the execution of sentence. Therefore, during the period of probation the said probationer is not serving the penalty imposed on him because the very effect of probation is to suspend the execution of the said sentence. So again, the period on which the person is under probation, is not equivalent to service of the sentence.

**Q: Where do you file the application for probation? When should you file the application for probation? Let's say you are the counsel of this convict sentenced with a penalty imposed on him of a maximum period of 4 years, *prision correccional* medium and he said he wanted to apply for probation. As the counsel, when do you file the application for probation? Where do you file the application?**
**A:** Under Sec. 4 of PD 968, as amended by RA 10707, the court may, after it shall have convicted and sentenced a defendant for a probationable penalty and upon application by the defendant within the period for perfecting an appeal, **suspend** the execution of the sentence and place the defendant on probation for such period and upon such terms and conditions as the court may deem best.

Based on Sec. 4, as amended, first paragraph, probation shall be filed before the MeTC that convicted the accused before the court that heard and convicted the accused. When? It should be filed within the period of perfecting an appeal i.e., 15 days from the promulgation of judgment.

**Q: What is the effect of probation if granted?**
**A:** Under Sec. 4, first paragraph, its effect is to suspend the execution of the sentence.

**Q: Can an offender sentenced by the court apply immediately for probation? Can he, after applying for an application for probation, and it was denied, can he appeal?**
A: Under Sec. 4 of PD 968, as amended, no application for probation shall be entertained or granted if the defendant has perfected an appeal from the judgment of conviction.

**Reason**: Probation bars appeal. Appeal bars probation. Because the two are inconsistent with each other. When an offender applies for probation it means that he is no longer questioning his conviction. He is amenable to his conviction, in effect, he is admitting the commission of the crime but he does not want to serve his sentence behind bars. He wants to serve it outside. And so, he is applying for probation.

On the other hand, when an offender appeals it means he is questioning his conviction. He is insisting his innocence. Hence, the two are inconsistent with each other.

**GR:** No application for probation should be entertained or granted if the defendant has perfected an appeal from a judgment of conviction.

**XPN:** When a judgment of conviction imposing a non-probationable penalty is appealed or reviewed, and such judgment is modified through the imposition of a

probationable penalty by the appellate court, the defendant shall be allowed to apply for probation based on the modified decision before such decision becomes final and executory.

So the moment the judgment imposed by the trial court is a non-probationable penalty and the accused, upon appeal, was given a modified decision lowering the penalty to a probationable penalty, under Sec. 4, that accused can go back to the trial court and apply for probation based on the modified decision imposing a probationable penalty.

**Q: X was convicted of Attempted Rape by the RTC. The judge sentenced X with *prision mayor*. X, however, said that the conviction is unfair. X is questioning his conviction. He is insisting that if ever he is liable, it should only be for acts of lasciviousness. X appealed his conviction. Upon appeal, the CA imposed upon him a penalty of *prision correccional* because the CA agreed with X that the crime he committed is only acts of lasciviousness. The CA reduced the imposable penalty to *prision correccional* in a maximum period of 6 years. Can X go back to the trial court and apply for probation?**
A: Yes, X can go back to the trial court and apply for probation by virtue of Sec. 4 of PD 968, as amended. Under said section, when a judgment of conviction imposing a non-probationable penalty is appealed or reviewed, and such judgment is modified through the imposition of a probationable penalty the said accused *shall* be allowed to apply for probation based on the modified decision before such decision becomes final and executory. In this case, since the penalty imposed by the RTC is *prision mayor*, a non-probationable penalty, when he appealed to the CA and the CA reduced the penalty to only *prision correccional*, because the CA downgraded the crime only to acts of lasciviousness, he shall be allowed to go back to the trial court and apply for probation.

The law uses the word "*shall*" therefore it is mandatory. He shall be allowed to apply for probation.

**Q: What if in the same problem, the CA lowered the imposable penalty only to *prison correccional*, already a probationable penalty. However, X, instead of going back to the RTC to apply for probation, opted to appeal further to the SC. The SC upon review of the case, affirmed in toto the CA's decision, sentenced with *prision correccional*, and the crime is acts of lasciviousness. Can X go back to the trial court and apply for probation?**
A: No more. Under Sec. 4 of PD 968, as amended, the accused shall lose the benefit of probation the moment he seeks a review of the modified decision that already imposes a probationable penalty. Since the CA already imposed upon a him a probationable penalty, the moment he went further to the SC to appeal, even if the SC affirmed the said probationable penalty, or even lower it, he could no longer go back to the trial court and apply for probation. When he opted to go to the SC to appeal further, he loses the benefit of probation.

**Q: X was charged and thereafter convicted of Reckless Imprudence resulting in Homicide. The judge imposed upon him the maximum penalty of *prision correccional* medium maximum 4 years. Since it is a probationable penalty, X immediately applied for probation and the MeTC judge granted X's application. After his probation is granted and he is already out of prison, X filed a notice of appeal. X wanted to appeal the civil liability imposed on him by the trial court judge. The trial court denied to give due course on his notice of appeal. The trial court said your application for probation has already been granted. Therefore, you can no longer appeal. Is the trial court correct?**
A: The trial court is wrong. Probation has nothing to do with civil liability. Probation only affects the criminal liability of the offender. Isn't its effect is to suspend the execution of the sentence? It only affects the criminal liability– the penalty imposed. But it does not affect and will never affect the civil liability which is for the private offended party. Hence, even if X has been granted probation, yes, he can still appeal insofar as the civil liability is concerned. The civil liability cannot be affected by pardon; by probation–because civil liability is private to the offended party. And only the said offended party can waive it.

**Q: X was charged and convicted, with probationable penalty. The application for probation was granted. His probation is for a period of 2 years. After the lapse of 2 years, X changed the place of his residence. X wanted a new life, an environment with new people who would not know that he has been once convicted. X's change of residence came to the knowledge of the probation officer. The probation officer was so mad. The probation officer felt so disrespected. X did not bother to inform him that he is going to change his residence. Because of that, the probation officer immediately filed a petition before the court to revoke the probation granted on X. The judge granted the petition. X's probation has been revoked. A warrant of arrest is issued. X was arrested and placed behind bars. Is the judge correct?**

A: The judge is correct. The SC has ruled that the lapse of the period of probation does not *ipso facto* mean the termination of probation. Before a probationer can stop complying with conditions attached to the grant of

probation, it is necessary that he must receive an Order of Final Discharge coming from the court.

**Order of Final Discharge**

It is only upon the issuance of the Order of Final Discharge that it can be said that his probation is terminated, that his case is terminated, that he can do anything that he wants.

Under Sec. 16 of PD 968, as amended by RA 10707, an order of final discharge shall apply, operate to restore to him all civil rights lost or suspended as a result of the offender's conviction and shall totally extinguish his criminal liability as to the offense for which probation was granted.

So, Order of Final Discharge can be considered as one of the modes for total extinguishment of criminal liability because its effect, aside from restoration of all civil rights lost or suspended, is to the total extinction of his criminal liability as to the offense for which probation was granted.

An Order of Final Discharge shall totally extinguish his criminal liability as to the offense for which probation was granted.

## R. EXTINCTION OF CRIMINAL LIABILITY

The following are the modes of extinguishment of criminal liability:

1. Death
2. Service of sentence;
3. Absolute pardon
4. Amnesty
5. Prescription of crime
6. Prescription of penalty
7. Subsequent valid marriage between the offender and the offended party

### 1. TOTAL EXTINCTION (ART. 89; RA 3226, PERIODS OF PRESCRIPTION FOR VIOLATIONS PENALIZED BY SPECIAL ACTS)

**Art. 89.** *How criminal liability is totally extinguished.* – Criminal liability is totally extinguished:

1. By the death of the convict, as to the personal penalties and as to pecuniary penalties, liability therefor is extinguished only when the death of the offender occurs before final judgment;
2. By service of the sentence;
3. By amnesty, which completely extinguishes the penalty and all its effects;
4. By absolute pardon;
5. By prescription of the crime;
6. By prescription of the penalty;
7. By the marriage of the offended woman, as provided in Article 344 of this Code.

#### a. DEATH

**Q: When does death extinguish criminal liability?**
**A:** Death extinguishes criminal liability at any stage of the proceedings. The moment he dies, there is no more body to serve his penalty imposed on him.

Q: When does death extinguish civil liability?
A:

1. Death extinguishes civil liability if the offender dies before conviction by final judgment. This civil liability pertains to *ex delicto in senso strictiore*, which is civil liability arising from and based solely on the crime committed.

   **NOTE:** Even when the offender dies before final judgment, his civil liability survives if it arises from other sources of obligation (i.e. law, contract, quasi-contract, quasi-delict)

2. The civil liability survives if the offender dies after conviction by final judgment. Here, the said civil liability for the private complainant to recover the civil liability, he has to file a separate and independent civil action against the executor or administrator of the estate of the said convict.

   **NOTE:** See guidelines below on the effect of death on the offender's criminal and civil liability, as ruled by the Court in the case of People v. Bayotas.

**Guidelines for the Effect of Death on the Offender's Criminal and Civil Liability**

1. The death of the accused pending appeal of his conviction extinguishes his criminal and civil liability based solely on the crime committed;

2. The claim for civil liability survives notwithstanding the death of the accused if the same is predicated on other sources of obligation

3. When the civil liability survives, an action for recovery may be pursued by the private complainant by filing a separate and independent civil action to be enforced either against the executor or administrator of the estate of the accused; and

4. The private offended party need not fear his right of forfeiture of his right to file a separate civil action by prescription because the statute of limitation on civil liability is deemed interrupted during the pendency of the criminal case, under Art. 1155 of the NCC. *(People v. Bayotas)*

**Q: X raped Y. Y filed a case of rape against X. X was convicted by RTC Manila. X appealed his conviction. The CA affirmed the conviction. He further appeal to the SC. While the case was on appeal before the SC, X succumbed to death by reason of a heart attack. The SC received a letter of communication coming from the Director of Prisons stating that X was found dead and based on the autopsy report, he died of heart attack while sleeping. The death of X came to the knowledge of Y. Y was now afraid–what would happen to the 100k adjudged in our favor by the RTC. Can Y longer recover now that X is already dead? She consulted her counsel. The counsel told Y that the 100k is already hers. Is the counsel of Y correct?**

A: No. Since the case died while the case was pending review by the SC, both his criminal and civil liability is totally extinguished because death extinguishes criminal and civil liability if the offender dies before conviction by final judgment. The only exception is only when the civil liability arises from other sources of obligation, such as law, contract, quasi-contracts, and quasi-delicts. In this case, the civil liability of X arises from the crime of rape itself. Therefore, when he died before final conviction by final judgment, both his criminal and civil obligations are totally extinguished. Y can no longer have the 100k adjudged by the RTC in her favor.

### b. SERVICE OF SENTENCE

Service of sentence is the satisfaction of the penalty. If the penalty imposed by the court on the convict is imprisonment, he has to serve his sentence behind bars. If the penalty imposed is payment of fine, then he has to pay the fine.

### c. AMNESTY

### d. ABSOLUTE PARDON

**Amnesty vs. Absolute Pardon**

| AMNESTY | ABSOLUTE PARDON |
|---|---|
| Both are acts of grace from the Chief Executive which exempt the offender from the penalty prescribed by law for the crime he has committed. | |
| Amnesty erases or obliterates the effects of the crime as if no crime has been committed | Pardon only excuses the convict from serving his sentence |
| May be granted at any stage of the proceedings. | May only be granted after final judgment |
| It is a public act of the Chief Executive. It is usually issued with the concurrence of the Congress. Hence, courts take judicial notice of amnesty. | It is a private act of the Chief Executive. Thus, courts do not take judicial notice of pardon. |
| Generally granted to a community or group of prisoners who have committed political offenses | May be granted to any offender for any crime committed. |

One of the distinctions between amnesty and pardon is that pardon may be granted only after final judgment. In our jurisdiction, pardon may only be granted after final conviction. Unlike in the US, before Biden went down and be replaced by Trump, the latter granted preventive pardon for all the crimes his son will commit. This will not happen in the Philippines.

### e. PRESCRIPTION OF CRIME

Prescription of crime is the loss or forfeiture of the right of the State to prosecute an offender who has violated the public law. The moment the crime has prescribed, the State loses its right to file a case against the offender.

**Art. 90.** *Prescription of crime.* - Crimes punishable by death, *reclusion perpetua* or *reclusion temporal* shall prescribe in twenty years.

Crimes punishable by other afflictive penalties shall prescribe in fifteen years.

Those punishable by a correctional penalty shall prescribe in ten years; with the exception of those punishable by *arresto mayor*, which shall prescribe in five years.

The crime of libel or other similar offenses shall prescribe in one year.

The crime of oral defamation and slander by deed shall prescribe in six months.

Light offenses prescribe in two months.

When the penalty fixed by law is a compound one, the highest penalty shall be made the basis of the application of the rules contained in the first, second

and third paragraphs of this article. (As amended by RA 4661, approved June 19, 1966).

| PENALTY | PRESCRIPTIVE PERIOD |
|---|---|
| Death, *reclusion perpetua* or *reclusion temporal* | 20 years |
| Other afflictive penalties | 15 years |
| Correccional penalties except arresto mayor | 10 years |
| Arresto mayor | 5 years |
| Libel and similar offenses | 1 year |
| Oral Defamation and Slander by Deed | 6 months |
| Light felonies | 2 months or 60 days |

**Art. 91.** *Computation of prescription of offenses.* - The period of prescription shall commence to run from the day on which the crime is discovered by the offended party, the authorities, or their agents, and shall be interrupted by the filing of the complaint or information, and shall commence to run again when such proceedings terminate without the accused being convicted or acquitted, or are unjustifiably stopped for any reason not imputable to him.

The term of prescription shall not run when the offender is absent from the Philippine Archipelago.

**The Running of Prescriptive Period**

1. The running of the prescriptive period of crimes shall commence from the time of the commission of the crime – from the date the crime has been committed, if it is known.

2. If the time of the commission of the crime is not known, it shall commence from the time it has come to the knowledge of the offended party, or public authorities or agents of public authorities.

**Q: One night, while good friends X and Y were having a drinking spree, it was X's birthday. Y is the only one invited. They were enjoying their drinks until suddenly, while they were discussing, they got pissed off each other. X punched Y. Y retaliated and also punched X. There was a heated altercation between the two until X stabbed Y. Feeling that no one saw the crime, X dismembered the body of Y and placed it in a sack and buried it under the ground. However, unknown to X, Z saw all the acts that he did. The neighbor was afraid so he kept silent. X left that house. 25 years thereafter, Z decided to reveal what he saw 25 years ago. The neighbor went to the police and narrated what he saw. The police went to the house and conducted an investigation. It found the narration to be true. Thereafter, the police filed a case for homicide against X before the Office of the City Prosecutor. Should the Office of the City Prosecutor indict X for the crime of Homicide or has the crime prescribed?**

A: The Office of the City Prosecutor can still file an information for homicide against X even after 25 years has already lapsed from the time of the commission of the crime. No one knows the time of the commission of the crime, except Z who witnessed it. But Z is neither the offended party nor the public authority, nor an agent of the public authority. Hence, even if Z knew the commission of the crime, the running of the prescriptive period has not yet commenced. It only commences the moment Z divulges to a person in authority of what he saw and what took place 25 years ago. Therefore, the crime has not yet prescribed.

**Interruption of Prescription of the Crime**

**Q: When is the running of a period of prescription of the crime interrupted?**

A: In **People v. Pangilinan**, it was held that the commencement of the proceedings for the prosecution of the case before the OCP interrupts the running of the prescriptive period. The running of the prescription of the crime is interrupted whether it is a violation of the provisions of the RPC or SPLs. It is interrupted upon the filing of the case in the Office of the Public Prosecutor, even for purposes of preliminary investigation.

The Court, however, in **Republic v. Desierto** provided a clarification. In Desierto, the SC clarified that for crimes under the Rules of Summary Procedure within the jurisdiction of Metropolitan Manila, it is upon the filing or institution of the case before the proper trial court that suspends the running of the prescriptive period, not upon the filing before the Office of the Public Prosecutor.

Further, the Court held that for SPLs within the scope of the Revised Rules on Summary Procedure, the principle laid down in Solvilla v. Reyes is still controlling. Therefore, for violations of municipal ordinances and BP 22, the ruling in Solvilla v. Reyes is still controlling. The SC therein held that the interruption of the running of the prescriptive period of the crime shall only take place upon the institution of the case before the proper court.

In **People v. Bautista** *(G.R. No. 168641, 27 Apr. 2007)*, Bautista was charged with slight physical injuries. The case

was filed with the Office of the Public Prosecutor within two months from the commission of the crime the Office of the Public Prosecutor later resolved it. However, it took them about a year before they were able to file the case before the MeTC. When the case was filed in the MeTC, the counsel of Bautista immediately filed a motion to quash on the ground of prescription of the crime.

The SC held that the crime has not yet prescribed because the moment the case was filed with the Office of the City Prosecutor, it interrupted the running of the period of prescription of crime.

However, based on the new decision in ***Republic v. Desierto*** *(G.R. No. 136506, 16 Jan. 2023)*, the crime has already prescribed because based on this new decision, the SC clarified that if the crime is covered by the Rules on Summary Procedure, like Slight Physical Injuries, and the incident happened in Metro Manila and other chartered cities, the running of the prescriptive period of crime will be interrupted upon the institution of the criminal proceedings before the proper court. Therefore, it will only be interrupted upon the filing of the case before the MeTC.

## f. PRESCRIPTION OF PENALTY

Prescription of penalty is the loss of the right of the State to place the convict behind bars to serve his sentence imposed upon him.

**Art. 92.** *When and how penalties prescribe.* - The penalties imposed by final sentence prescribe as follows:

1. Death and *reclusion perpetua*, in twenty years;
2. Other afflictive penalties, in fifteen years;
3. Correctional penalties, in ten years; with the exception of the penalty of *arresto mayor,* which prescribes in five years;
4. Light penalties, in one year.

**Prescription of Penalties**

| PENALTY | PRESCRIPTIVE PERIOD |
|---|---|
| Death and *reclusion perpetua* | 20 years |
| Other afflictive penalties | 15 years |
| Correccional penalties except arresto mayor | 10 years |
| Arresto mayor | 5 years |
| Light penalties | 1 year |

**NB:** Do not interchange Art. 90 with Art. 92. The former is prescription of crimes while the latter is prescription of penalties.

**Art. 93.** *Computation of the prescription of penalties.* - The period of prescription of penalties shall commence to run from the date when the culprit should evade the service of his sentence, and it shall be interrupted if the defendant should give himself up, be captured, should go to some foreign country with which this Government has no extradition treaty, or should commit another crime before the expiration of the period of prescription.

The running of the prescriptive period of penalty shall commence the moment the offender evades the service of his sentence. Therefore, it is necessary that the offender is already serving his sentence, and while he is serving his sentence, he escapes. From the time he escapes, that is the time you start counting the period of penalty.

**Q: X was charged with the crime of Homicide. X posted bail. He attended every hearing of his case. After trial on the merits, the Judge convicted X and imposed upon him the maximum of Reclusion Temporal. X did not appeal. X was brought to the National Penitentiary. Within a month from the time he was brought to the bilibid, X saw an opportunity to escape and he had a successful escape. The police authorities, the prison guards armed by a warrant of arrest issued by the court looked for him but X could not be found. 35 years thereafter, the police authorities got an information from a reliable informant. X was found in a far flung barangay in Mindanao. The police, armed with a warrant of arrest, flew to Mindanao. Thereafter, X was arrested. X was placed behind bars. Upon learning of the same, the counsel of X immediately filed a petition for habeas corpus on the ground that the penalty had prescribed as 35 years had already lapsed. If you were the Judge, should you grant or deny said petition for Habeas Corpus?**

A: I would grant the petition on the ground of prescription of the penalty. 35 years had lapsed from the time the said offender evaded the service of his sentence. The penalty imposed on him was reclusion temporal in its maximum period. It prescribes within 15 years. Here, 35 years had lapsed before he was arrested by the police authorities. The State can no longer place him behind bars for him to serve his sentence imposed by the court.

**Q: X was charged with Homicide. He posted bail. While on temporary liberty, he appeared during pre-trial and arraignment. During the arraignment, he pleaded not guilty. But when the trial of his case began, X did not appear anymore. X did not appear in the subsequent hearings. X jumped bail. The Judge said that even in the absence of X, trial shall proceed in absentia. The Judge found X guilty beyond reasonable doubt of**

**Homicide. X was absent during the promulgation of judgment. A warrant of arrest was issued. Judgment became final and executory. The police, armed with a warrant, could not locate X. 25 years thereafter, they got a tip to his whereabouts. X was cited in a far flung barangay in Mindanao. Police flew to Mindanao and arrested X and brought him in Manila. Upon learning of the same, the counsel of X immediately filed a petition for habeas corpus on the ground that the penalty had prescribed as 35 years had already lapsed. If you were the Judge, should you grant or deny said petition for Habeas Corpus?**

A: I would deny the petition for habeas corpus because the penalty has not yet prescribed. The running of the prescriptive period of penalties shall only commence the moment the offender evaded the service of his sentence. For it to be said that the offender has evaded his service of sentence, it is necessary that the said offender is already serving sentence and while serving the sentence, he escapes. Here, X has not yet begun his service of sentence. X jumping bail is not equivalent to escape during service of sentence. Therefore, even if 100 years has already lapsed, he can still be arrested and placed behind bars for him to serve his sentence imposed upon him by the trial court.

### g. SUBSEQUENT VALID MARRIAGE

This only applies in the following crimes:

1. Rape; and
2. Seduction; and
3. Acts of Lasciviousness.

**Q: X fell in love with a man whom she accused of raping her. The two fell in love with one another. They soon got married. What is the effect of their marriage?**

A: Their marriage shall extinguish the criminal liability because of the subsequent valid marriage between the offended party and the accused.

## 2. PARTIAL EXTINCTION (ART. 94)

**Art. 94.** *Partial Extinction of criminal liability.* – Criminal liability is extinguished partially:
1. By conditional pardon;
2. By commutation of the sentence; and
3. For good conduct allowances which the culprit may earn while he is undergoing preventive imprisonment or serving his sentence.

Under Art. 94, the law provides for the modes for partially extinguishing criminal liability. The following are the modes:

1. Conditional pardon;
2. Commutation of sentence; and
3. Good conduct time allowance (GCTA).

### a. CONDITIONAL PARDON

**Art. 95.** *Obligation incurred by person granted conditional pardon.* - Any person who has been granted conditional pardon shall incur the obligation of complying strictly with the conditions imposed therein otherwise, his non-compliance with any of the conditions specified shall result in the revocation of the pardon and the provisions of Article 159 shall be applied to him.

Conditional pardon, like absolute pardon, excuses the convict from service of sentence. However, unlike absolute pardon, which is not subject to conditions, conditional pardon is granted based on certain terms and conditions imposed on the said offender. If the offender violates any of the terms attached to the grant of conditional pardon, then he shall be placed behind bars. That is why conditional pardon only partially extinguishes criminal liability.

### b. COMMUTATION OF SENTENCE

**Art. 96.** *Effect of commutation of sentence.* - The commutation of the original sentence for another of a different length and nature shall have the legal effect of substituting the latter in the place of the former.

From the penalty of death, it is reduced to reclusion perpetua.

Reclusion perpetua is the new penalty to be served by the said offender.

### c. GOOD CONDUCT TIME ALLOWANCE

**Art. 97.** *Allowance for good conduct.* – The good conduct of any offender qualified for credit for preventive imprisonment pursuant to Article 29 of this Code, or of any convicted prisoner in any penal institution, rehabilitation or detention center or any other local jail shall entitle him to the following deductions from the period of his sentence:

1. During the first two years of imprisonment, he shall be allowed a deduction of twenty days for each month of good behavior during detention;

2. During the third to the fifth year, inclusive, of his imprisonment, he shall be allowed a reduction of twenty-three days for each month of good behavior during detention;

3. During the following years until the tenth year, inclusive, of his imprisonment, he shall be allowed a deduction of twenty-five days for each month of good behavior during detention;

4. During the eleventh and successive years of his imprisonment, he shall be allowed a deduction of thirty days for each month of good behavior during detention; and

5. At any time during the period of imprisonment, he shall be allowed another deduction of fifteen days, in addition to numbers one to four hereof, for each month of study, teaching or mentoring service time rendered.

An appeal by the accused shall not deprive him of entitlement to the above allowances for good conduct.

Art. 97, which provides for GCTA, has been amended by RA 10592

**Q: Is the GCTA Act, a law which may be given retroactive application as provided for under the RPC?**

**A:** In the case of **Inmates of New Bilibid v. De Lima *(G.R. No. 212719, 25 June 2019)***, the SC said YES. The SC ruled that although RA 10592 is not a substantive law, because it does not define a crime; it is not a substantive law because it does not prescribe a penalty, it, however, addresses the rehabilitation component of the PH correctional system. Therefore, it can be given retroactive application because it would favor the said offender.

**INMATES OF NEW BILIBID v. DE LIMA**

**FACTS:** After RA 10592 was enacted into law, the IRR was jointly issued by the DOJ Secretary De Lima and DILG Secretary Roxas II. The Inmates of New Bilibid, through then counsel, filed a Petition for certiorari and prohibition with prayer for the issuance of preliminary injunction contending that the provisions of RA 10592 are penal in nature and beneficial to the inmates, hence, they should be given retroactive effect in accordance with Art. 22 of the RPC.

**ISSUE:** W/N RA 10592 should be given retroactive application

**RULING:** YES. Every new law has a prospective effect. Art. 22 of the RPC, however, states that a penal law that is favorable or advantageous to the accused shall be given retroactive effect if he is not a habitual criminal. These are the rules, the exception, and the exception to the exception on the effectivity of laws.

In criminal law, the principle *favorabilia sunt amplianda adiosa restrigenda* (penal laws which are favorable to the accused are given retroactive effect) is well entrenched.

Here, the Court recognized that although R.A. No. 10592 does not define a crime/offense or provide/prescribe/establish a penalty as it addresses the rehabilitation component of our correctional system, its provisions have the purpose and effect of diminishing the punishment attached to the crime. The further reduction on the length of the penalty of imprisonment is, in the ultimate analysis, beneficial to the detention and convicted prisoners alike; hence, calls for the application of Art. 22 of the RPC.

The prospective application of the beneficial provisions of R.A. No. 10592 works to the disadvantage of the inmates and those who are similarly situated. It precludes the decrease in the penalty attached to their respective crimes and lengthens their prison stay; thus, making more onerous the punishment for the crimes they committed. Depriving them of time off to which they are justly entitled as a practical matter result in extending their sentence and increasing their punishment. Evidently, this transgresses the clear mandate of Art. 22 of the RPC.

**Q: Can GCTA be given to persons deprived of liberty by reason of heinous crimes?**

**A: YES,** in the *en banc case* of **Guinto et al. v. DOJ** *(G.R. No. 249027, 03 Apr. 2024),* the Court said that GCTA applies to all convicted prisoners. It held that Art. 97 of the RPC, as amended by RA 10952, is very clear that any convicted prisoner is entitled to good conduct time allowance for as long as the prisoner is in any penal institution, rehabilitation, or detention center.

According to the SC, the IRR enacted by the DOJ which provides that the GCTA does not apply to recidivists, habitual delinquents; escapees; and persons deprived of

liberty by reason of heinous crimes are unlawful. The SC held that in depriving them of the benefit of the GCTA, the DOJ expanded the scope of said law which the DOJ is not empowered to do so. Hence, the SC held that the GCTA applies to all prisoners as long as the prisoner is in any penal institution, penal or rehabilitation center or any other local jail.

**GUINTO ET AL. v. DOJ**

**FACTS:** Petitioners Guinto et al., are inmates of the New Bilibid Prison's Maximum Security Compound and were convicted of heinous crimes.

They filed a Petition for Certiorari and Prohibition with prayer for issuance of a *status quo ante order* as real parties-in-interest and as representatives in a class suit for themselves and on behalf of all those who are similarly situated. According to Guinto et al., respondents Department of Justice (DOJ), Bureau of Corrections (BuCor), Bureau of Jail Management and Penology (BJMP), and the Philippine National Police (PNP) (collectively, the respondents) committed grave abuse of discretion amounting to lack or excess of jurisdiction in excluding persons convicted of heinous crimes from the benefits of R.A. No. 10592, or the New GCTA law.

**ISSUE:** W/N recidivists, habitual delinquents, escapees, and persons charged with heinous crimes excluded from the benefits granted under R.A. No. 10592

**RULING:** NO, they are not excluded. Article 97 of the RPC, as amended by R.A. No. 10592, allows any convicted prisoner to be entitled to GCTA as long as the prisoner is in any penal institution, rehabilitation or detention center or any other local jail.

The argument of the petitioner that "persons convicted with [sic] heinous crimes" are not prevented from earning the benefits under R.A. No. 10592 is tenable.

With the passage of R.A. No. 10592, Section 2 thereof effectively amended Article 94, which now reads as follows:

"Art. 94. Partial extinction of criminal liability. – Criminal liability is extinguished partially:

1. By conditional pardon;
2. By commutation of the sentence; and
3. For good conduct allowances which the culprit may earn while he [or she] is undergoing preventive imprisonment or serving his [or her] sentence.

Therefore, the following may earn GCTA credits:

1. Those offenders who are not recidivists, habitual delinquents, escapees, and charged with heinous crimes under Article 29 of the RPC, as amended by R.A. No. 10592; and

2. Those offenders who are already convicted, regardless if they are recidivists, habitual delinquent, escapees, or convicted of heinous crimes, so long as they are in any penal institution, rehabilitation or detention center or any local jail pursuant to Article 97 of the RPC, as amended by R.A. No. 10592."

Clearly, the DOJ exceeded the rule-making powers granted by R.A. No. 10592 when it included Rule IV, Section 2 and Rule VII, Section 2 of the 2019 IRR, which contradict Section 3 of R.A. No. 10592, by expanding the scope of offenders that cannot earn GCTA credits, to the latter's prejudice.

**Art. 98.** *Special time allowance for loyalty.* – A deduction of one fifth of the period of his sentence shall be granted to any prisoner who, having evaded his preventive imprisonment or the service of his sentence under the circumstances mentioned in Article 158 of this Code, gives himself up to the authorities within 48 hours following the issuance of a proclamation announcing the passing away of the calamity or catastrophe referred to in said article. A deduction of two-fifths of the period of his sentence shall be granted in case said prisoner chose to stay in the place of his confinement notwithstanding the existence of a calamity or catastrophe enumerated in Article 158 of this Code.

This Article shall apply to any prisoner whether undergoing preventive imprisonment or serving sentence.

This applies to prisoners who escape–who leave prison–in times of calamity or disorder.

If the said prisoner returns within the time prescribed by law, there shall be a corresponding deduction of his period of sentence

| TIME RETURNED | DEDUCTION |
|---|---|
| Within 48 hours | ⅕ deduction |
| Did not leave the confinement | ⅖ deduction |

**Art. 99.** *Who grants time allowances.* – Whenever lawfully justified, the Director of the Bureau of Corrections, the Chief of the Bureau of Jail Management and Penology and/or the Warden of a provincial, district, municipal or city jail shall grant allowances for good conduct. Such allowances once granted shall not be revoked.

## S. CIVIL LIABILITY EX DELICTO

### 1. PRIMARY AND SUBSIDIARY

**Art. 100.** *Civil liability of a person guilty of felony.* - Every person criminally liable for a felony is also civilly liable.

For every criminal action filed in court, a civil action goes with it. There is no need for the private offended party to file a separate and independent civil action to recover civil indemnity. In the same criminal action, in case of conviction, the court will impose not only the penalty for the crime committed but also civil liability which goes to the civil liability that goes to the offended party.

**GR:** For every criminal action filed in court, the civil action goes with it.

**XPNs:**

1. When the offended party waives his right to institute a civil action;
2. When the offended party reserves the right to file a civil action, which must be made before the presentation of evidence of the prosecution; and
3. When the offended party instituted a civil action prior to the criminal action.

**Q: What if the accused is acquitted in the criminal action? Does it mean that the private offended party can no longer recover civil indemnity?**

A: The SC said that it depends on the kind of acquittal. In **Lumantas v. Calapiz** *(GR 163753, 15 Jan. 2014)* and **Daluraya v. Oliva** *(G.R. No. 210148, 08 Dec. 2014)*, the SC said that there are two kinds of acquittal:

1. An acquittal based on the ground that the offender is not the author of the crime.
2. An acquittal based on reasonable doubt.

The SC said that if the acquittal is based on the ground that the offender is not the author of the crime, that the offender did not commit the acts and omissions alleged in the information, his acquittal totally bars recovery of civil indemnity.

But if the acquittal is based on reasonable ground, there can still be recovery of civil indemnity because civil indemnity can be proven by mere preponderance of evidence.

**Q: In *Lumantas v. Calapiz*, the doctor was charged with Reckless Imprudence resulting in Serious Physical Injuries. The RTC judge acquitted him. The State failed to prove his negligence in the operation beyond reasonable doubt. So the judge acquitted him but imposed upon him civil liability because the RTC saw that indeed the boy had suffered. The doctor questioned the decision of the RTC before the SC. He was already acquitted, how come he is still imposed civil indemnity. Is the RTC correct?**

A: YES. The SC said yes. The doctor's acquittal of Reckless Imprudence resulting in Serious Physical Injuries is based on reasonable doubt because the State failed to prove his negligence in the conduct of operation beyond reasonable doubt. Therefore, there can still be recovery of civil indemnity because such can be proven by mere preponderance of evidence. Here, the RTC saw that boy had indeed suffered. Hence the award of civil liability in favor of the boy and against the doctor is correct.

#### LUMANTAS v. CALAPIZ

**FACTS:** Sps. Calapiz brought their son Hanz to the hospital for an emergency appendectomy. Hanz was attended by Dr. Lumantas who suggested that Hanz should also undergo circumcision at no added cost. The spouses consented to the same, and Hanz underwent two surgeries. The following day, Hanz complained of pain in his penis which exhibited blisters. His testicles were also swollen. Hanz also urinated abnormally after Dr. Lumantas forcibly removed the catheter. Subsequently, Hanz was discharged but he was confined again because of the abscess formation between the base and the shaft of his penis. Hanz was then diagnosed to have a damaged urethra. Thus, Hanz underwent another surgery. However, Hanz's urethra could not be fully repaired. Lumantas was charged with the crime of Reckless Imprudence Resulting in Serious Physical Injuries. He was, however, acquitted for insufficiency of evidence.

**ISSUE:** Whether Dr. Lumantas is civilly liable despite his acquittal of the crime (YES)

**RULING:** Every person criminally liable for a felony is also civilly liable. Nevertheless, the acquittal of an accused of the crime charged does not necessarily extinguish his civil liability. The Court elucidates on the

two kinds of acquittal recognized by our law as well as on the different effects of acquittal on the civil liability of the accused.

1. Acquittal on the ground that the accused is not the author of the act or omission complained of. This instance closes the door to civil liability, for a person who has been found to be not the perpetrator of any act or omission cannot and can never be held liable for such act or omission. There being no delict, civil liability ex delicto is out of the question, and the civil action, if any, which may be instituted must be based on grounds other than the delict complained of. This is the situation contemplated in Rule 111 of the Rules of Court.

2. Acquittal based on reasonable doubt on the guilt of the accused. In this case, even if the guilt of the accused has not been satisfactorily established, he is not exempt from civil liability which may be proved by preponderance of evidence only.

Here, although it found the Prosecution's evidence insufficient to sustain a judgment of conviction against Dr. Lumantas for the crime charged, the RTC did not err in determining and adjudging his civil liability for the same act complained of based on mere preponderance of evidence. The failure of the prosecution to prove Dr. Lumantas' criminal negligence with moral certainty did not forbid against the latter being civilly liable based on preponderance of evidence

In the case of **Daluraya v. Oliva,** charged with Reckless Imprudence resulting in Homicide, the judge acquitted the accused. The demurrer to evidence was granted by the judge. Case dismissed. On appeal before the CA, the CA affirmed the dismissal of the case, granting the demurrer to evidence. However, the judge imposed upon the accused civil indemnity in favor of the private offended party. The SC said that the CA is wrong. The SC said, based on the RTC decision, the trial court dismissed the case because the prosecution failed to prove the identity of the accused. None of the witnesses presented by the prosecution was able to pinpoint to the accused as the driver of the car that hit the victim. Because of that, the reason for the acquittal is that the prosecution failed to prove that the accused is the author of the crime, since there is no evidence that the accused is the author of the crime, therefore, he cannot be adjudged to pay civil indemnity. He is not the author of the crime. He is not the one who committed the acts or omissions alleged in the information. Therefore, he should be acquitted. The acquittal requires that there is no civil indemnity.

**DALURAYA v. OLIVA**

**FACTS:** Marina Oliva was crossing the street when a Nissan Vanette allegedly being driven by Daluraya ran her over. Marina was brought to the hospital, but she eventually died. Daluraya was charged with Reckless Imprudence resulting in Homicide. The case was, however, dismissed for failure of the prosecution to sufficiently establish that Daluraya committed the crime. CA, however, reversed the ruling of the trial court and it ordered Daluraya to pay respondent actual damages, civil indemnity, and moral damages.

**ISSUE:** W/N Daluraya is civilly liable for the victim's death despite his acquittal in the criminal case for Reckless Imprudence in Homicide on the ground of insufficiency of evidence **(NO)**

**RULING:** Every person criminally liable for a felony is also civilly liable. The acquittal of an accused of the crime charged, however, does not necessarily extinguish his civil Liability. In Manantan v. CA , the Court expounded on the two kinds of acquittal recognized by our law and their concomitant effects on the civil liability of the accused, as follows: "First is an acquittal on the ground that the accused is not the author of the act or omission complained of. This instance closes the door to civil liability, for a person who has been found to be not the perpetrator of any act or omission cannot and can never be held liable for such act or omission. The second instance is an acquittal based on reasonable doubt on the guilt of the accused. In this case, even if the guilt of the accused has not been satisfactorily established, he is not exempt from civil liability which may be proved by preponderance of evidence only."

In case of an acquittal, the ROC requires that the judgment state "whether the evidence of the prosecution absolutely failed to prove the guilt of the accused or merely failed to prove his guilt beyond reasonable doubt. In either case, the judgment shall determine if the act or omission from which the civil liability might arise did not exist."

An examination of the MeTC's Order, which the RTC sustained, will show that Daluraya's acquittal was based on the conclusion that the act or omission from which the civil liability may arise did not exist, given that the prosecution was not able to establish that he was the author of the crime imputed against him.

Records disclose that Daluraya's acquittal was based on the fact that "the act or omission from which the civil liability may arise did not exist" in view of the failure of the prosecution to sufficiently establish that he was the author of the crime ascribed against him. Consequently, his civil liability should be deemed as non-existent by the nature of such acquittal.

In the case of **Matobato, Sr. vs. People** *(GR 229265 15 February 2022)*, the said accused was charged with violation of Sec. 3 of RA 3019 allegedly for transferring funds from the Landbank of Davao to Cooperative Bank. However, after trial on the merits, the Sandiganbayan acquitted the municipal treasurer Matobato. According to the SB, it should be an acquittal because the prosecution failed to prove that the said offender committed gross and inexcusable negligence in the transfer of the said funds. However, although the SB acquitted Matobato from the crime of violation of Sec. 3, RA 3019, he was awarded civil indemnity. The SB imposed upon him civil indemnity. The accused questioned the SB's ruling. The SC said that the SB is correct because according to the SC, we have the so-called three-fold liability rule.

Under the threefold liability rule, the wrongful acts or omissions of public officers may give rise to civil, criminal, and administrative liabilities. This is the threefold liability rule. A public officer committing a crime—his act may result in civil, criminal, or administrative liability. Therefore, even if a public officer is absolved/acquitted in criminal liability, the said public officer may still be held civilly liable and administratively liable. Therefore, the SB is correct in acquitting the accused for failure of the prosecution to prove the second element of Sec. 3(e) of RA 3019. However, civil indemnity has to be awarded to the accused. He has to pay the said amount.

**MATOBATO SR. v. PEOPLE**

**FACTS:** In Sept. 1994, the Municipality of Pantukan authorized the transfer of municipal funds from the Land Bank of the Philippines (LBP) to the Davao Cooperative Bank (DCB). However, DCB went bankrupt in 1998, leading to the municipality being unable to withdraw the funds. COA found discrepancies in the handling of these funds and recommended legal action against the officials involved. Subsequently, the Ombudsman filed charges under RA 3019 against several municipal officials, including Silvino Matobato, Walter Bucao, and Cirila Engbino. Following a trial, the Sandiganbayan acquitted the accused due to lack of evidence of gross negligence. However, they were held civilly liable for the unrecovered funds.

Matobato contended that he could not be held civilly liable since DCB remains under liquidation and actual damages have not yet been fully ascertained; he argued that eventual recovery by the municipality could result in unjust enrichment. Walter and Cirila argued that there was no preponderance of evidence to support the imposition of civil liability and invoked the presumption of regularity in the execution of their official duties.

**ISSUE:** W/N Matobato, Sr. is civilly liable despite DCB remains under liquidation and the damages has not yet been fully ascertained. **(YES)**

**RULING:** Every person criminally liable for a felony is also civilly liable. Yet, the dismissal of the criminal action does not carry with it the extinction of the civil liability where: "(a) the acquittal is based on reasonable doubt as only preponderance of evidence is required; (b) the court declares that the liability of the accused is only civil; and (c) the civil liability of the accused does not arise from or is not based upon the crime of which the accused is acquitted." The quantum of proof to establish civil liability is preponderance of evidence which is defined as the "weight, credit, and value of the aggregate evidence on either side and is usually considered to be synonymous with the term 'greater weight of the evidence' or 'greater weight of the credible evidence.' It is evidence which is more convincing to the court as worthy of belief than that which is offered in opposition thereto." Notably, the Sandiganbayan acquitted Silvino, Walter, and Cirila because their guilt were not proven beyond reasonable doubt. Thus, any civil liability survives because only preponderant evidence is necessary to establish it.

Silvino, as Municipal Treasurer, failed to exercise reasonable care and caution in safeguarding municipal funds. He disregarded warning signs and continued depositing funds with DCB despite its unstable financial situation, ultimately leading to the municipality's inability to withdraw and utilize the funds. Silvino's negligence breached his duties under PD No. 1445 and the Local Government Code. His argument against civil liability pending DCB's liquidation was dismissed as the municipality had already suffered damage due to his negligence.

Similarly, Walter and Cirila cannot evade responsibility by invoking the presumption of regularity. Their negligence in approving the fund transfer and reliance on verbal assurances from the bank manager contradicted their duties as Sangguniang Bayan members. They failed to scrutinize the investment

proposal adequately, allowing the transfer of substantial municipal funds to a risky bank. Under the "threefold liability rule," the wrongful acts or omissions of public officers may give rise to civil, criminal, and administrative liabilities. Corollary, public officers could still be held civilly liable to reimburse the injured party notwithstanding their acquittal.

**NOTE:** The SC said that there is a so-called three-fold liability rule in case of public officers. For every act or omission committed by public officers, he can be held liable civilly, criminally, or administratively. Therefore, even if he is acquitted from criminal liability, he can still be held liable civilly and administratively.

In that case, Matobato and his co-accused were not held criminally liable for violation of Sec. 3 of RA 3019. The second element was absent because there was no proof that they acted with gross inexcusable negligence. The Sandiganbayan said that there was negligence, although not gross inexcusable. Hence, while they were acquitted from criminal liability, they are still liable for civil liability.

**Art. 101.** Rules regarding civil liability in certain cases. – The exemption from criminal liability established in subdivisions 1, 2, 3, 5 and 6 of Article 12 and in subdivision 4 of Article 11 of this Code does not include exemption from civil liability, which shall be enforced subject to the following rules:

First. In cases of subdivisions 1, 2, and 3 of Article 12, the civil liability for acts committed by an imbecile or insane person, and by a person under nine years of age, or by one over nine but under fifteen years of age, who has acted without discernment, shall devolve upon those having such person under their legal authority or control, unless it appears that there was no fault or negligence on their part.

Should there be no person having such insane, imbecile or minor under his authority, legal guardianship or control, or if such person be insolvent, said insane, imbecile, or minor shall respond with their own property, excepting property exempt from execution, in accordance with the civil law.

Second. In cases falling within subdivision 4 of Article 11, the persons for whose benefit the harm has been prevented shall be civilly liable in proportion to the benefit which they may have received. The courts shall determine, in sound discretion, the proportionate amount for which each one shall be liable.

When the respective shares cannot be equitably determined, even approximately, or when the liability also attaches to the Government, or to the majority of the inhabitants of the town, and, in all events, whenever the damages have been caused with the consent of the authorities or their agents, indemnification shall be made in the manner prescribed by special laws or regulations.

Third. In cases falling within subdivisions 5 and 6 of Article 12, the persons using violence or causing the fears shall be primarily liable and secondarily, or, if there be no such persons, those doing the act shall be liable, saving always to the latter that part of their property exempt from execution.

Under Art. 101, for crimes committed by an insane, imbecile or a minor, we have studied under Art. 12, the offender shall be exempted from criminal liability but not from civil liability.

**Q: Who shall pay civil liability?**
A: the person having direct control and custody of the said insane, imbecile, or minor shall be the one to pay the civil liability, primarily. But if it is proven that he acted without negligence or without fault, then it is the property of the insane, imbecile or the minor that shall answer for said civil liability adjudged by the court.

Under Art. 12, exempting circumstances, we have also studied that if the accused is proven to have committed the crime, by reason of irresistible force coming from a third person; by reason of uncontrollable fear, the said person is exempted from criminal liability but not from civil liability

**Q: Who shall primarily pay the civil liability?**
A: the third person who enforced the said uncontrollable fear. The third person who enforced the said irresistible force shall be the one primarily civilly liable. In case of his insolvency, it is the accused himself who shall pay the civil liability to the private offended party.

For crimes committed by their children, the parents are subsidiary civilly liable.

For crimes committed by the students, the school authorities, the teachers are subsidiarily civilly liable.

For crimes committed by their employees in their performance of their functions, the employers shall be subsidiarily civilly liable.

**NOTE:** The subsidiary liability is only insofar as civil liability is concerned.

| OFFENDERS | THE ONE LIABLE |
|---|---|
| Imbecile, insane, or minor | The person having direct control and custody of the said insane, imbecile, or minor shall pay the civil liability.<br><br>However, if it is proven that he acted without negligence or without fault, then it is the property of the insane, imbecile or the minor that shall answer for said civil liability. |
| Person who acts under the compulsion of irresistible force. | The third person who enforced the said uncontrollable fear or said irresistible force shall be the one primarily civilly liable.<br><br>In case of insolvency, it is the accused himself who shall pay the civil liability to the private offended party |
| Person who acts under the impulse of an uncontrollable fear of an equal or greater injury. | |
| Children | The parents are subsidiary civilly liable. |
| Students | the school authorities, the teachers are subsidiarily civilly liable. |
| Employees in their performance of their functions | The employers shall be subsidiarily civilly liable. |

**Art. 102.** *Subsidiary civil liability of innkeepers, tavernkeepers and proprietors of establishments.* - In default of the persons criminally liable, innkeepers, tavernkeepers, and any other persons or corporations shall be civilly liable for crimes committed in their establishments, in all cases where a violation of municipal ordinances or some general or special police regulation shall have been committed by them or their employees.

Innkeepers are also subsidiarily liable for the restitution of goods taken by robbery or theft within their houses from guests lodging therein, or for the payment of the value thereof, provided that such guests shall have notified in advance the innkeeper himself, or the person representing him, of the deposit of such goods within the inn; and shall furthermore have followed the directions which such innkeeper or his representative may have given them with respect to the care and vigilance over such goods. No liability shall attach in case of robbery with violence against or intimidation of persons unless committed by the innkeeper's employees.

**Q: X checked-in in a hotel, he has Php500k cash with him. When he checked in in the hotel, the proprietor of the hotel told him, "sir, we have some policies, rules and regulations for the vigilance of goods and valuables, please find time to read the same." X read it and the hotel requires that all valuables must be deposited to the proprietor of the said hotel. After reading the instructions, X complied. X deposited his bag of money. In a black envelope, it contains 100 pieces of Php500.00. Thereafter, X went to his assigned room. That night, however, a robbery took place in the said hotel. And among the things taken by the offenders is the cash of X. The said offender was arrested. He was charged with Robbery with force upon things. After trial on the merits, he was convicted. He was sentenced to imprisonment and he was imposed with civil liability to pay the things taken. However, the writ of execution was returned unsatisfied. The 500k of X are all gone. The offender is insolvent. Is the proprietor of the hotel subsidiarily civilly liable?**

A: YES. Since X complied with the hotel's rules and regulations for the vigilance of valuables, then the said innkeeper, tavern keeper, proprietor of the said hotel, shall be subsidiarily civilly liable in case of insolvency of the offender who is primarily civilly liable in order to pay X, 500k.

**Q: What if in the same problem, the said offender was doing the robbery, the two guards who were falling asleep, were awakened, and there was an exchange of gunfire between the said offender and the two guards, and the offender shot the two guards, who both died. Thereafter, he ran away after taking all the loot, including the 500k of X. The offender was arrested. He was charged with the special complex crime of Robbery with Homicide. After trial, the offender is convicted and sentenced with imprisonment. He was also required to pay civil indemnity which includes the said 500k to X. But the writ of execution was returned unsatisfied for he is insolvent. Can the said proprietor of the establishment be held subsidiarily civilly liable to pay to X the value of 500k?**

A: NO. Because if the crime committed is a form of robbery with violence or intimidation against persons under Art. 294, RPC, the said innkeeper, tavern keeper or proprietor of the establishment is not subsidiary civilly liable except

when the crime is committed by the employee himself. So in this case, the said proprietor of the establishment is not subsidiarily civilly liable to pay the 500k of X by reason of said offender's insolvency.

**Q: X checked-in in a hotel. X did not notify the management of the hotel that she has jewelries with her, so she did not follow the hotel's rules and regulations as to the care and vigilance of valuables. After using the bathroom in the room where she was checked in, the toilet bowl overflows. So X called the housekeeping and a roomboy arrived in order to repair the toilet bowl that overflowed. While the said roomboy was repairing, X was on top of her bed arranging her jewelries. Unknown to X, the roomboy was looking at her through the mirror inside the bathroom. The roomboy saw all the jewelries of X laid down on the bed. When the roomboy was done fixing the toilet bowl, he asked permission from X to go out and in that particular moment, he also poked a gun at X, and divested X of all her jewelries. Thereafter, the roomboy escaped. Can the proprietor of the establishment be made subsidiarily civilly liable for the restitution of the said jewelries of X? Can the proprietor be made to pay the value of the jewelries taken by the roomboy?**

A: YES, under Art. 102, RPC. It is expressly provided that for subsidiary civil liability of innkeeper in case of robbery with force or intimidation against persons, the said innkeeper,tavern keeper, proprietor of said establishment is not subsidiary civilly liable, except when the act of robbery with force or intimidation against persons, is committed by the hotel's own employee. In this case, it is the roomboy of the hotel that committed the said act of robbery by means of force or intimidation, under Art. 294. Therefore the innkeeper, tavernkeeper, or proprietor of the establishment is subsidiarily civilly liable.

**Q: When you check-in in a hotel, the moment you enter, every place of the hotel, there are signage: "do not leave your valuables unattended and they are not answerable in case of loss". Is the hotel correct?**

A: NO. They just placed it to warn you to keep your valuables but in case your valuables were stolen, and the offender is the employee of said hotel, the said innkeeper, tavern keeper, proprietor of the establishment is subsidiarily civilly liable. In case the room boy/girl cannot pay it, they have to pay it because it is their employee who committed the crime.

**Q: X is the driver of ABC Corp. As he was on his way to the office after doing some errands for the head of office, he hit and bump a car. The car was totally damaged. The owner of the car, however, was not there and was not hurt. X was charged with reckless imprudence resulting to damage to property. After trial on the merits, X was found guilty beyond reasonable doubt. He was sentenced with fine, public censure, and pay the civil liability that is the value of the damaged car. But the the writ of execution remained unsatisfied. X is insolvent to pay the value of the damaged car. What is the remedy of the owner of the damaged car?**

A: His remedy is to go after ABC Corp.

**Q: Is it necessary for the owner of the damaged car to file a separate and independent civil action to recover the value of the damaged car or can he recover the said damage from the very criminal action of reckless imprudence causing damage to property?**

A: SC held that there is no need for said owner of the car to file a separate and independent action in court to recover the value of the damaged car. In the same criminal action for reckless imprudence causing damage to property, all that the owner has to do is to file a motion for the issuance of a subsidiary writ of execution. This motion is against the employer, ABC Corp., not against the employee, X.

The SC said that the subsidiary liability of the employer for crimes committed by their employee is absolute. However, although the subsidiary liability of the employer for crimes committed by their employees is absolute, still, there need to be a hearing of said motion in the name of due process.

In the said hearing, it is necessary for the prosecution to prove that:

1. There exists an employer-employee relationship between the accused and said employer;
2. The employer is engaged in some kind of industry;
3. The employee committed a crime while he was in the performance of his duty;
4. The employee was found guilty beyond reasonable doubt; and
5. The writ of execution remained unsatisfied.

**Art. 103.** *Subsidiary civil liability of other persons.* - The subsidiary liability established in the next preceding article shall also apply to employers, teachers, persons, and corporations engaged in any kind of industry for felonies committed by their servants, pupils, workmen, apprentices, or employees in the discharge of their duties.

## 2. RESTITUTION, REPARATION, AND INDEMNIFICATION

**Art. 104.** *What is included in civil liability.* – The civil liability established in Arts. 100, 101, 102, and 103 of this Code includes:

1. Restitution;
2. Reparation of the damage caused; and
3. Indemnification for consequential damages.

**Art. 108.** *Obligation to Make Restoration, Reparation for Damages, or Indemnification for Consequential Damages and Action to Demand the Same — Upon Whom it Devolves*. — The obligation to make restoration or reparation for damages and indemnification for consequential damages devolves upon the heirs of the person liable.

The action to demand restoration, reparation, and indemnification likewise descends to the heirs of the person injured.

### a. RESTITUTION

**Art. 105.** *Restitution — How Made*. — The restitution of the thing itself must be made whenever possible, with allowance for any deterioration or diminution of value as determined by the court.

The thing itself shall be restored, even though it be found in the possession of a third person who has acquired it by lawful means, saving to the latter his action against the proper person, who may be liable to him.

This provision is not applicable in cases in which the thing has been acquired by the third person in the manner and under the requirements which, by law, bar an action for its recovery.

**Art. 111.** *Obligation to Make Restitution in Certain Cases*. — Any person who has participated gratuitously in the proceeds of a felony shall be bound to make restitution in an amount equivalent to the extent of such participation.

**GR:** Restitution is the return of the thing taken. Even if the thing taken is in possession of an innocent purchaser in good faith, it can still be recovered from him and be given to the rightful owner.

**XPN:** When the innocent purchaser in good faith bought it in a public sale. In this case, restitution is already impossible.

**NOTE:** If restitution is impossible, we have reparation for damage caused.

### b. REPARATION

**Art. 106.** *Reparation — How Made*. — The court shall determine the amount of damage, taking into consideration the price of the thing, whenever possible, and its special sentimental value to the injured party, and reparation shall be made accordingly.

The court shall determine the value of the damage caused, including its special sentimental value to the private offended party and award the amount against the offender.

### c. INDEMNIFICATION

**Art. 107.** *Indemnification — What is Included*. — Indemnification for consequential damages shall include not only those caused the injured party, but also those suffered by his family or by a third person by reason of the crime.

**Indemnification for Consequential damages**

1. Moral damages;
2. Actual damages; and
3. Exemplary damages.

## 3. CIVIL LIABILITY OF AN OFFENDER EXEMPTED FROM CRIMINAL LIABILITY

**Art. 101.** *Rules Regarding Civil Liability in Certain Cases*. — The exemption from criminal liability established in subdivisions 1, 2, 3, 5, and 6 of article 12 and in subdivision 4 of article 11 of this Code does not include exemption from civil liability, which shall be enforced subject to the following rules:

*First*. In cases of subdivisions 1, 2, and 3 of article 12, the civil liability for acts committed by an imbecile or insane person, and by a person under nine years of age, or by one over nine but under fifteen years of age, who has acted without discernment, shall devolve upon those having such person under their legal authority or control, unless it appears that there was no fault or negligence on their part.

Should there be no person having such insane, imbecile or minor under his authority, legal guardianship, or control, or if such person be insolvent, said insane, imbecile, or minor shall respond with their own property, excepting property exempt from execution, in accordance with the civil law.

*Second*. In cases falling within subdivision 4 of article 11, the persons for whose benefit the harm has been prevented shall be civilly liable in proportion to the benefit which they may have received.

The courts shall determine, in their sound discretion, the proportionate amount for which each one shall be liable.

When the respective shares can not be equitably determined, even approximately, or when the liability also attaches to the Government, or to the majority of the inhabitants of the town, and, in all events, whenever the damage has been caused with the consent of the authorities or their agents, indemnification shall be made in the manner prescribed by special laws or regulations.

*Third*. In cases falling within subdivisions 5 and 6 of article 12, the persons using violence or causing the fears shall be primarily liable and secondarily, or, if there be no such persons, those doing the act shall be liable, saving always to the latter that part of their property exempt from execution.

## 4. SHARE OF EACH PERSON CIVILLY LIABLE FOR A FELONY

**Art. 109.** *Share of Each Person Civilly Liable.* — If there are two or more persons civilly liable for a felony, the courts shall determine the amount for which each must respond.

**Q: X, Y, and Z are charged as co-conspirators for the crime of homicide. After trial on the merits, the judge declared them as guilty as conspirators. They are sentenced with reclusion temporal and they were also adjudged to pay civil liability to the private offended party's heirs. There are three accused, how shall the award of civil liability be determined?**

A: Under Art. 109, if there are two or more persons criminally liable for the commission of a felony, the court shall determine the amount for which each offender must pay to the offended party. Usually, it is the court that would determine the amount that each of three accused shall pay to the private offended party. Usually, the court will divide it proportionately among the three accused.

## 5. PREFERENCE IN PAYMENT

**Art. 72.** *Preference in the payment of the civil liabilities.* - The civil liabilities of a person found guilty of two or more offenses shall be satisfied by following the chronological order of the dates of the judgments rendered against him, beginning with the first in order of time.

**Art. 110.** *Several and subsidiary liability of principals, accomplices and accessories of a felony; Preference in payment.* – Notwithstanding the provisions of the next preceding article, the principals, accomplices, and accessories, each within their respective class, shall be liable severally (in solidum) among themselves for their quotas, and subsidiaries for those of the other persons liable.

The subsidiary liability shall be enforced, first against the property of the principals; next, against that of the accomplices, and, lastly, against that of the accessories.

Whenever the liability in solidum or the subsidiary liability has been enforced, the person by whom payment has been made shall have a right of action against the others for the amount of their respective shares.

**Q: X, Y, and Z are charged as principals, accomplice, and accessory, [respectively,] in the commission of the crime. After trial on the merits, they were all convicted and they were all imposed with civil liability. What is the sentence of civil liability among X, Y, and Z, who are principal, accomplice, accessory, respectively. How can the private offended party recover the civil liability from X, Y, and Z?**

A: Under Art. 110 of the RPC, principals, accomplices, and accessories shall be liable severally (in solidum) among themselves for their quotas, and subsidiarily for those of the other persons liable.

This subsidiary civil liability shall be enforced *first* against the property of the principal, *second* against the principal liability of the accomplice, *third* against the property of the accessory. The private complaint can recover from anyone who has the money to pay the civil liability.

The private complainant shall recover from the principal. The principal has to pay all the civil liability even those

corresponding to the accomplice and accessory. The moment the principal pays everything, he has a course of action against the accomplice and the accessory with respect to their shares.

## 6. EXTINCTION AND SURVIVAL OF CIVIL LIABILITY EX DELICTO

**Art. 112.** *Extinction of civil liability.* — Civil liability established in Articles 100, 101, 102, and 103 of this Code shall be extinguished in the same manner as obligations, in accordance with the provisions of the Civil Law.

**Art. 113.** *Obligation to Satisfy Civil Liability*. — Except in case of extinction of his civil liability as provided in the next preceding article, the offender shall continue to be obliged to satisfy the civil liability resulting from the crime committed by him, notwithstanding the fact that he has served his sentence consisting of deprivation of liberty or other rights, or has not been required to serve the same by reason of amnesty, pardon, commutation of sentence, or any other reason.

| Art. 89 | Art. 94 |
|---|---|
| It provides for the modes of total extinguishing the criminal liability. | It provides for partially extinguishing criminal liability. |

There is no provision in the RPC that provides for the extinction of civil liability because under Art. 12, the extinction of civil liability shall be in accordance with the NCC. Therefore, the civil liability adjudged in the criminal action can only be extinguished in accordance with the manner of extinction of civil liability under the NCC (i.e. payment, loss, remission, merger, compensation, novation, etc.).

**UNIVERSITY OF SANTO TOMAS**
**FACULTY OF CIVIL LAW**
**España, Manila**

# CRIMINAL LAW REVIEWER

## *Prosecutor Victoria Garcia*

*This reviewer is based on Prosec Notes from 2021 to 2024 with additional lecture notes this A.Y. 2024-2025.*

*For your personal consumption only.*

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*May the odds be in our favor.*

**AB-4C | 2025**

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# III. BOOK 2, THE REVISED PENAL CODE and RELATED SPECIAL PENAL LAWS

## TITLE 1: CRIMES AGAINST NATIONAL SECURITY AND THE LAW OF NATIONS

### TREASON (ART. 114)

**Art. 114. *Treason.*** Any person who, owing allegiance to the United States or the Government of the Philippine Islands, not even a foreigner, levies war against them or adheres to their enemies, giving them aid or comfort within the Philippine Islands or elsewhere, shall be punished by *reclusion perpetua* to death and shall pay a fine not to exceed Four million pesos (P4,000,000).

No person shall be convicted of treason unless on the testimony of two witnesses at least to the same overt act or on confession of the accused in open court.

Likewise, an alien, residing in the Philippines, who commits acts of treason as defined in paragraph 1 of this article shall be punished by reclusion temporal to death and shall pay a fine not to exceed Four million pesos (P4,000,000). (As amended by R.A. No. 10951, August 29, 2017)

**ELEMENTS:**

1. There is a war in which the Philippines is involved;
2. The offender is either –
    a. A Filipino citizen or
    b. A foreigner who is residing in the Philippines; and
3. The said offender either –
    a. Levies war against the Philippine Government; or
    b. Adheres to the enemies by giving them aid or comfort.

***1. There is a war in which the Philippines is involved;***

It is necessary that there is a war in which the Philippines is involved. Treason is a wartime offense.

In **Laurel v. Misa**, the Supreme Court held that treason is a war time offense, it cannot be committed in times of peace because treason is an act of self-defense and self-preservation of the State against traitors. In times of peace, there are no traitors.

***2. The offender is either a Filipino citizen or a foreigner who is residing in the Philippines; and,***

a. **Filipino citizen** - because he owes permanent allegiance to the Philippine government

b. **Foreigner residing in the Philippines** - while he is here in the Philippines, he also owes temporary allegiance to the Philippine government. Therefore, he too can commit the crime of treason the moment he sides with the enemy in times of war in which the Philippines is involved.

***3. The said offender either levies war against the Philippine government or adheres to the enemies by giving them aid or comfort.***

The last element of treason provides for the two modes or ways of committing treason.

**a. Levying war against the Philippine government**

**ELEMENTS:**

1. It is necessary that there must be an actual assembly of men; and
2. It is for the purpose of executing or effecting a treasonable design by force.

The two elements must concur.

Otherwise stated, the said traitors connived and conspired with the enemy troops to hand over the Philippine government.

**b. Adhering to the enemies, giving them aid or comfort**

The offender is said to have adhered to the enemies when he intellectually and emotionally favors the enemies. It is an internal state of the mind and cannot be seen.

**Q: How should it be established?**

**A:** Since it cannot be seen, it can be established by the offender's act of giving aid or comfort to the enemy. Hence, the two must concur. Adhering to the enemies by giving them aid or comfort.

Performing acts which show that he gives aid or comfort to the enemy, like giving the enemies supplies, giving them arms, giving them means of transportation, or giving them classified information which will weaken the defense of the

Philippines and will strengthen the defense of the enemies.

All of these are modes of showing that he intellectually and emotionally favors the enemy against the Philippine government.

**Two Ways of Proving Treason**

1. **"Two-Witness Rule"**

   The two witnesses must corroborate each other as to the same overt act performed by the said offender. They must testify in open court as to that particular act done by the offender which shows that he favors the enemy as against the Philippine government. Therefore, the law requires direct evidence.

   Treason cannot be proven by mere circumstantial evidence, no matter how many. The law requires there must be direct evidence because the law requires that there must be at least two witnesses who must corroborate each other as to the said treasonable act done by the offender.

2. **By open court confession of guilt**

   The admission of guilt, the confession of guilt must be done in open court. Therefore, extrajudicial confession of guilt – like confession of guilt made before police officers; or confession of guilt made before media – will not bring about a confession of guilt.

   The law requires that the confession of guilt must be done in open court during the trial of the case. Extrajudicial confession will not suffice.

**Q: There is a war in which the Philippines is involved. X sided with the enemy. In doing so, X, together with the enemy troops, burned houses, killed Filipinos and injured families. Because of that, when he was arrested, he was charged with the crime of treason; he was charged with different counts of murder; he was charged with different counts of arson; and he was charged with different counts of physical injuries. Are the charges correct?**

**A:** No, the charges are wrong. If these common crimes were committed by the offender as a way of committing treason, in furtherance of committing treason, they are simply absorbed. They are considered as atrocities of war which are merely absorbed by the crime of treason. Hence, there is only one charge, and it is Treason or violation of Art. 114 of the RPC.

**Q: Samuel, a Filipino citizen of Chinese descent, assisted the Chinese Government in surveying and determining the safest and most secure shores in the Philippines. He thought he was helping the Philippines in this endeavor since the geodetic maps he prepared would allegedly be transmitted to the Philippines for future use. Before the survey was completed, Chinese military vessels entered the Philippines' Scarborough shores, set up a station secured by two warships, and populated two islets which the Chinese Government proclaimed as their own, all with the use of the geodetic maps. Samuel was then charged with Treason by the Philippine Government.**

**The following testified against Samuel: 1) his helper, Therese, who saw Samuel in numerous meetings with the Chinese Government, though she did not understand their conversations since she does not know Chinese; and 2) his gardener, Rolando, who knows Chinese but has bad eyesight. Rolando was present in all these meetings and had a glimpse of the finished geodetic maps signed by Samuel. Is Samuel liable for Treason? (2023 BAR)**

**A:** No, Samuel is not liable for Treason. The second element of Art. 114 is absent.

In the old case of **Laurel v. Misa**, treason is a wartime offense which cannot be committed in time of peace. In this case, there was no mention that there was a war between the Ph and Chinese. Hence, the act of preparing geodetic maps for the Chinese authorities cannot be considered a crime of treason under Art. 114.

## CONSPIRACY AND PROPOSAL TO COMMIT TREASON; PENALTY (ART. 115)

**Art. 115.** ***Conspiracy and proposal to commit treason; Penalty.*** — The conspiracy or proposal to commit the crime of treason shall be punished respectively, by prision mayor and a fine not exceeding P10,000 pesos, and prision correccional and a fine not exceeding P5,000 pesos.ch

**Conspiracy to Commit Treason vs. Proposal to Commit Treason**

| CONSPIRACY TO COMMIT TREASON | PROPOSAL TO COMMIT TREASON |
|---|---|
| It exists when two or more | It exists when the person |

| | |
|---|---|
| persons decided to commit treason. | who decided to commit the said crime proposes its commission to another person. |

**NOTE:** In treason, conspiracy to commit treason and proposal to commit treason will only happen if there is a war in which the Philippines is involved.

**[skipped by Prosec. but included in PY trans]**

## MISPRISION OF TREASON (ART. 116)

**Art. 116.** ***Misprision of treason.*** — Every person owing allegiance to (the United States) the Government of the Philippine Islands, without being a foreigner, and having knowledge of any conspiracy against them, conceals or does not disclose and make known the same, as soon as possible to the governor or fiscal of the province, or the mayor or fiscal of the city in which he resides, as the case may be, shall be punished as an accessory to the crime of treason.

**ELEMENTS:**

1. Offender owes allegiance to the Philippine Government, and is not a foreigner;
2. He has knowledge of conspiracy to commit treason against the Government; and
3. He conceals or does not disclose and make known such conspiracy to commit treason as soon as possible to the proper authorities of the city or municipality in which he resides.

**Offender in Misprision of Treason**

It is committed by **any Filipino citizen,** one who owes permanent allegiance to the Philippine government**,** who, in times of war in which the Philippines is involved, failed to disclose a conspiracy to commit treason that has come to his knowledge as soon as possible to the proper authorities.

**NOTE:** This crime cannot be committed by an alien or a foreigner even if he is residing in the Philippines.

**Rationale**

In times of war in which the Philippines is involved, all Filipino citizens are mandated by law to divulge or disclose, as soon as possible, immediately, to the authorities any conspiracy to commit treason that would come to his knowledge. In other words, he is obligated by law and if he fails to do so, he becomes liable for misprision of treason for having omitted to disclose a conspiracy to commit treason that has come to his knowledge. This is to pre-empt or stop the commission of actual treason.

**Treason vs. Misprision of Treason**

| TREASON (Art. 114) | MISPRISION OF TREASON (Art. 116) |
|---|---|
| It may be committed by both a Filipino citizen and a foreigner. | It can only be committed by a Filipino citizen or one who owes permanent allegiance to the Philippine Government. |

**Q: There is a war in which the Philippines is involved. A, B, C, D and E decided to conspire with the enemy troops to hand over the Philippine government out of money. They needed money, and so they became traitors to the Philippine government. On the date set for the commission of the crime of treason, A, B, C, D and E dropped by the house of W, their common friend and they told W: "W, you are a good man, please be informed that all of us (A, B, C, D and E), your friends, have decided to conspire with the enemy. We needed money for our family. Here is the money that had been given to us in order to do these treasonable acts. We are handing you this money. Whatever happens to us, please use this money for our respective families." And so, A, B, C, D and E left the money to their friend W. Thereafter, A, B, C, D and E went to the enemy troops. W remained silent. He did not inform the authorities of the said conspiracy to commit treason done by A, B, C, D and E which has come to his knowledge. What is the criminal liability of W?**

**A:** W is liable for misprision of treason under Art. 116.

Misprision of treason is committed by any Filipino citizen who, in times of war in which the Philippines is involved, failed to disclose or to divulge to the local authorities a conspiracy to commit treason that will come to his knowledge.

While treason under Art. 114 can be committed both by a Filipino citizen and an alien, misprision of treason can be committed only by a Filipino citizen or one who owes permanent allegiance to the Philippine government. It cannot be committed by an alien even if the said foreigner is in the Philippines.

In times of war in which the Philippines is involved, only Filipino citizens are mandated by law to divulge to the local

authorities, as soon as possible, a conspiracy to commit treason that will come to their knowledge. It is an obligation that they have to do, failure to do so, will make them liable of misprision of treason wherein the penalty is that of an accessory in the crime of treason. Therefore, two degrees lower. It will be *prision mayor* because the penalty for treason is reclusion perpetua to death.

## ESPIONAGE (ART. 117)

**Art. 117. *Espionage.*** — The penalty of prision correccional shall be inflicted upon any person who:

1. Without authority therefor, enters a warship, fort, or naval or military establishment or reservation to obtain any information, plans, photographs, or other data of a confidential nature relative to the defense of the Philippine Archipelago; or

2. Being in possession, by reason of the public office he holds, of the articles, data, or information referred to in the preceding paragraph, discloses their contents to a representative of a foreign nation.

The penalty next higher in degree shall be imposed if the offender be a public officer or employee.

Espionage is a crime which may be committed both in times of war and in times of peace.

**Offenders**

It can be committed by any person. They can be a Filipino citizen or a foreigner. He can be a public officer or employee or a private individual. Anyone can commit the crime of espionage.

**Two Ways of Committing Espionage**

1. By entering, without authority therefor, a warship, fort, or naval or military establishment or reservation to obtain any information, plans, photographs or other data of a confidential nature, relative to the defense of the Philippines; and

   **ELEMENTS:**

   a. Offender can be any person, Filipino or foreigner, public officer or private individual
   b. Offender enters a warship, fort, or naval or military establishment or reservation;
   c. He has no authority thereof; and
   d. His purpose is to obtain information, plans, photographs or other data or confidential nature, relative to the defense of the Philippines.

   **NOTE:** The fact that he entered without asking for permission, it is presumed that his intent is to obtain classified information relative to the defense of the Philippines.

2. By disclosing to the representative of a foreign nation the contents of the articles, data or information referred to in paragraph No. 1 of Art. 117, which he had in his possession by reason of the public office he held.

   **ELEMENTS:**

   a. Offender is a public officer;
   b. He has in his possession the article, data, or information referred to paragraph 1, by reason of the public office he holds; and,
   c. He discloses their contents to a representative of a foreign nation.

   **NOTE:** The offender here is a public officer who, by reason of the duties of his office, has in his possession any information, photographs relative to the defense of the Philippines. The said officer divulges it, he disclosed it to the representative of a foreign nation. The moment he did that, he will become liable for the crime of espionage.

   The crime arises the moment the public officer divulges or discloses the classified information to a representative of a foreign nation.

**Q: What if X entered a military establishment. He did not ask permission; he was just found inside. Can he be charged with the crime of espionage?**

**A:** Yes, he can be charged with the crime of espionage. The fact that he enters the said place without authority, without asking permission, the law presumes his intention was to obtain this classified information relative to the defense of the Philippines. Since the question was merely if he can be charged, he has to rebut and he has to prove otherwise that his intention was to obtain this classified information. But the fact that he enters the prohibited place without authority, the law presumes his intention was to obtain this classified information.

**Q: The Ms. Universe pageant was held in the Philippines. During the said Ms. Universe pageant, one of the judges was the Philippine DND Secretary. Looking at the stage, the DND Secretary has a special liking to Ms. China. He was so attracted to Ms. China. After the pageant, the winners were declared. There was a post-pageant party. The DND Secretary attended because he wanted to meet Ms. China personally. They were introduced. They danced, ate, and talked. The party was not yet over but the DND Secretary and Ms. China decided to leave the said party. They checked-in in a hotel. Inside the room, they ate and drank hard liquor. While they were drinking, they were conversing. Ms. China was asking the DND Secretary, "what will you do? Our country is more powerful than your country. What will you do if our soldiers will take over the Spratly Island? I am sure you will be asking for help, but you will never win against my country." Because of that, the DND Secretary bragged to Ms. China, "No! These are our plans." The DND Secretary narrated one by one in detail the plans of the Philippine Government on how to protect the Spratly Islands in case there will be an invasion coming from China. He divulged everything because he was already drunk. Thereafter, they had sexual intercourse and fell asleep.**

**The following morning, the DND Secretary reached out for Ms. China on the other side of the bed, but the latter was not there. He looked for Ms. China and found her in the garden of the hotel talking over the phone. He was so afraid. The DND Secretary grabbed the phone, threw it on the ground, and stepped on it. Then he pulled her hair, asking the latter "who are you talking to? You are talking to your Defense Secretary, right? You are divulging what I told you last night, right?"**

**When Ms. China denied it, he slapped her a number of times, thereafter, pulling her hair. He dragged her back inside the hotel. There, he was forcing Ms. China to admit that she talked to the Chinese Defense Secretary. But Ms. China denied. According to her, she was only talking to her mother. She was telling her mother about her good experience in the Philippines. The DND Secretary would not believe it. He punched and slapped her. Thereafter, he left her wounded inside the hotel.**

**Is the DND Secretary liable for Espionage?**

**A:** No, the DND Secretary is not liable for espionage. Under the second mode of committing espionage (by disclosing to a representative of a foreign nation the contents of the articles, data or other information relevant to the defense of the Philippines which he had in his possession), the "representative" being referred to is a political representative. Ms. China was not here in the Philippines for political purposes. She was here to represent China in the said Ms. Universe Pageant. Therefore, the said DND Secretary is not liable for espionage.

**Q: What crime may be filed against the DND Secretary?**
**A:** The DND Secretary can be charged by Ms. China with violation of R.A. No. 9262. By just one sexual act, unlike a dating relationship which is continuous, in case of sexual relationship under RA 9262, even one sexual intercourse for one night, there is already a relationship. And if the said man inflicted physical injuries on the said woman on whom he has or had a sexual or dating relationship, it will bring about violation of R.A. No. 9262. Therefore, the proper charge to be filed against the DND Secretary is R.A. No. 9262 or Violence Against Women and their Children Act.

## INCITING TO WAR OR GIVING MOTIVES FOR REPRISALS (ART. 118)

**Art. 118.** ***Inciting to war or giving motives for reprisals.*** — The penalty of reclusion temporal shall be imposed upon any public officer or employee, and that of prision mayor upon any private individual, who, by unlawful or unauthorized acts provokes or gives occasion for a war involving or liable to involve the Philippine Islands or exposes Filipino citizens to reprisals on their persons or property.

**ELEMENTS:**

1. The offender performs unlawful acts unauthorized by the Philippine government; and

2. The said act provokes or gives occasion for:
    a. A war involving or liable to involve the Philippines; or
    b. Exposes Filipino citizens to reprisals on their persons and property while they are in a foreign country.

3. He is not legally authorized to do so.

**NOTE:** In case of inciting to war or giving motives for reprisals, the offender performs acts which are not authorized by the Philippine government. Because of the acts committed by the offender, the Philippine government was forced to enter into war. Or, because of the acts done by the offender, the other foreign country became hostile

to Filipino citizens. They have exposed Filipino citizens to reprisals on their persons and property.

**Q: There was a protest in front of the Chinese Embassy. Some members of NGOs were supporting the Filipino fishermen who were driven away by the Chinese soldiers. They were protesting the acts done by China. In their protest, they burned real flags of China. This angered the Chinese government. They became hostile toward Filipino citizens living in China. Without any reason at all, they would raid the houses of Filipino citizens. They would hurt Filipino citizens in their houses. Because they were hostile, there were reprisals. What case may be filed against these protesters?**

**A:** They can be charged with Inciting to War and Giving Motives for Reprisals under Art. 118. War has not yet happened, but because of acts done by the offenders, the Philippines may enter into war.

**Q: What if a member of this NGO had this rally before the Malaysian Embassy and burned pictures and effigy of the Malaysian President. This angered the Malaysian government and they turned hostile to Filipino citizens who are living in Malaysia. Can the members of the NGO be held liable for the crime of inciting to war and giving motives for reprisals?**

**A:** Yes, they can be held liable for the crime of inciting to war and giving motives for reprisals. Because of their acts the Malaysian government became hostile to the Filipino citizens in Malaysia. They exposed our countrymen to reprisals on their persons and property.

## VIOLATION OF NEUTRALITY (ART. 119)

**Art. 119. *Violation of neutrality*.** — The penalty of prision correccional shall be inflicted upon anyone who, on the occasion of a war in which the Government is not involved, violates any regulation issued by competent authority for the purpose of enforcing neutrality.

**ELEMENTS:**

1. There is a war, but the Philippines is not a party to the said war;
2. The competent authority issued a regulation for the purpose of enforcing neutrality among Filipino citizen; and,
3. The offender violated the regulation issued or declaration by a competent authority and sided with any of the warring states.

**NOTE:** For violation of neutrality to arise, there should be a regulation issued by competent authority for the purpose of enforcing neutrality.

**Illustration**

In case of violation of neutrality, although there is a war, the Philippines is not a party thereof. The Philippine government, then, issued a declaration or proclamation that all Filipinos should stay neutral. However, X sided with one of the warring countries and even gave support. Therefore, X can be held liable for the crime of violation of neutrality.

Therefore, if there is no declaration coming from competent authority enforcing neutrality, that person who sides with any of the warring countries cannot be held liable for the crime of violation of neutrality. It is the violation of the said declaration enforcing neutrality that will give rise to the crime.

**Q: The AFP General was interviewed by CNN Philippines. After the interview, there were other media people outside the offices of CNN and they were trying to have an ambush interview with the AFP General, one of the questions raised was "what can you say about the war between Ukraine and Russia? What should be the stand of the Philippines in this war between Ukraine and Russia?" The AFP General said, "Insofar as the war between Ukraine and Russia is concerned, the Philippines should stay neutral. We should not side with any of the warring countries." Pedro is a supporter of Ukraine. In his Facebook account and other social media accounts, he would post support for Ukraine. He is so against Russia. He would be out there supporting, stating his favoring of Ukraine. This continued despite the statement coming from the AFP General. Is Pedro liable for violation of neutrality?**

**A:** No, Pedro is not liable for violation of neutrality. The statement from the AFP General that the Philippines should stay neutral is a personal opinion. It cannot be considered as a regulation coming from competent authority. It is not a regulation issued by the Office of the President or Malacañang. It is a personal opinion coming from the AFP General. Therefore, since it cannot be considered a regulation that enforces neutrality, even if Pedro continuously sided with Ukraine, he cannot be held liable for violation of neutrality.

## CORRESPONDENCE WITH HOSTILE COUNTRY (ART. 120)

**Art. 120.** ***Correspondence with hostile country.*** — Any person who in time of war, shall have correspondence with an enemy country or territory occupied by enemy troops shall be punished:

1. By prision correccional, if the correspondence has been prohibited by the Government;
2. By prision mayor, if such correspondence be carried on in ciphers or conventional signs; and
3. By reclusion temporal, if notice or information be given thereby which might be useful to the enemy. If the offender intended to aid the enemy by giving such notice or information, he shall suffer the penalty of reclusion temporal to death.

**ELEMENTS:**

1. The crime is committed in times of war in which the Philippines is involved;

2. The offender makes correspondence with an enemy country or any territory occupied by the enemy troops; and

3. That the correspondence is either —
   a. Is prohibited by the Philippine Government;
   b. Carried out in ciphers or conventional signs; or
   c. Containing notice or information which might be useful to the enemy.

**<u>There is a war in which the Philippines is involved</u>**

It is necessary for the said crime to arise that there is a war in which the Philippines is involved.

If there is a declaration coming from the Philippine government saying that all communications are prohibited, then, any act of making communication, no matter how innocent the correspondence, will make the offender liable since it is prohibited.

But, if there is no declaration coming from competent authority prohibiting the making of communication, the crime will only arise if the said communication or correspondence is

1. Carried out in ciphers or conventional signs or
2. Containing notice or information that will be useful to the enemy country.

## FLIGHT TO ENEMY COUNTRY (ART. 121)

**Art. 121.** ***Flight to enemy country.*** — The penalty of arresto mayor shall be inflicted upon any person who, owing allegiance to the Government, attempts to flee or go to an enemy country when prohibited by competent authority.

**ELEMENTS:**

1. There is a war in which the Philippines is involved;
2. The offender owes allegiance to the Philippine Government;
3. The offender attempts to flee to an enemy's territory; and
4. That going or fleeing to the enemy country is prohibited by a competent authority.

It is necessary that there must be a proclamation or a declaration coming from a competent authority which prohibits anyone from going to the enemy territory. If there is such prohibition, any attempt to flee or to go to the said enemy territory will make the offender already criminally liable.

It is not necessary for one to be liable that he indeed arrived in the enemy's state, it suffices that he attempted to go to the enemy's state.

## CRIMES AGAINST THE LAW OF NATIONS

1. Piracy;
2. Qualified Piracy;
3. Mutiny; and
4. Qualified Mutiny

## PIRACY IN GENERAL AND MUTINY ON THE HIGH SEAS (ART. 122)

**Art. 122.** ***Piracy in general and mutiny on the high seas.*** — The penalty of reclusion temporal shall be inflicted upon any person who, on the high seas, shall attack or seize a vessel or, not being a member of its complement nor a passenger, shall seize the whole or part of the cargo of said vessel, its equipment, or personal belongings of its complement or passengers.

The same penalty shall be inflicted in case of mutiny on the high seas.

### PIRACY

In the case of **People v. Lol-lo,** the SC held that Piracy is robbery or forcible depredation on the high seas or PH waters, without lawful authority and done *animo furandi* (with intent to gain), and in the spirit and intention of universal hostility.

**ELEMENTS OF SIMPLE PIRACY:**

1. The vessel is either on the high seas or in the Philippine waters;

2. The offenders are not members of the complement or passengers of the vessel;

3. The offenders either:
    a. Attacked or seized the vessel; or
    b. Seize in whole or in part the cargo, the equipment, or the personal belongings of the passengers or members of the complement.

**NOTE:** Based on Art. 122, as amended by R.A. No. 7659, piracy can now be committed either in the high seas or Philippine waters, offenders must be coming from the outside of the vessel.

**Piracy is Akin to Robbery**

Based on the manner in which piracy is committed, it is akin to robbery. There is the act of taking with intent to gain. The thing taken can either be the vessel itself or the things inside the said vessel, the cargo, equipment or personal belongings of the passengers or members of the complement inside the said vessel.

| ROBBERY | PIRACY |
|---|---|
| The thing taken is the personal property of another. | The thing taken can either be the vessel itself or the things inside the said vessel. |

## MUTINY

**ELEMENTS:**

1. The vessel is either on the high seas or on Philippine waters;
2. The offenders are members of the complement or passengers of the vessel; and
3. The offenders raise a commotion or disturbance on board the ship against the lawful command of the captain or the commander of the ship.

**Offenders**

The offenders this time must come from the inside. In mutiny, the offenders would either be the members of the crew or the passengers of the vessel. They must be coming from the inside because of the manner of committing mutiny, that is by creating a disturbance, by creating a commotion because they wanted to go against the lawful command of a superior authority, and in case of a vessel, the superior authority is the captain of the said vessel. They wanted to go against the lawful order of the captain and so a commotion or disturbance was done inside the said vessel.

**NOTE:** Based on the manner of committing mutiny, it is akin to sedition. It is an act of insubordination, going against lawful authority, carried by unlawful means. Hence, it is akin to sedition.

| PIRACY | MUTINY |
|---|---|
| Can be committed when the vessel is either on Philippine waters or on the high seas. | |
| Offenders are strangers of the vessel. They are not members of the complement or passengers. | Offenders are insiders of the vessel who are the passengers of the vessel or members of the complement. |
| There is intent to gain. The Vessel itself or things inside the vessel are taken. | There is no intent to gain. The offenders are going against the lawful command of the captain. |
| There is the act of attack or seizure of the vessel or things inside the vessel. | There is an act of insubordination, a commotion inside the said vessel.<br><br>The mutineers were going against the lawful command of the superior authority (captain of the vessel). |

## QUALIFIED PIRACY (ART. 123)

**Art. 123.** ***Qualified piracy.*** — The penalty of reclusion temporal to death shall be imposed upon those who commit any of the crimes referred to in the preceding article, under any of the following circumstances:

1. Whenever they have seized a vessel by boarding or firing upon the same;
2. Whenever the pirates have abandoned their victims without means of saving themselves; or
3. Whenever the crime is accompanied by murder, homicide, physical injuries or rap

The following circumstances would qualify piracy:

1. ***Whenever the offenders have seized a vessel by firing or boarding upon the said vessel;***

   **NOTE:** It is necessary by the clear statement of the law that it is the vessel itself that must be seized. Therefore, even if there was boarding, even if there was firing but it was not the vessel itself that was seized, it is piracy but NOT qualified piracy. Because the law expressly states, *"whenever the pirates have seized the vessel."*

   Vessel itself must be the one seized. It is a qualifying circumstance, thus it must be strictly construed.

2. ***Whenever the offenders have abandoned their victims without means of saving themselves;*** and

   After committing the acts of piracy, they left the victims, they left the passengers, the members of the group, without means of surviving, without means of saving their lives, therefore, from simple piracy, now becomes qualified piracy, they abandoned the victims without means of saving themselves. It means that their intention is to kill or for the victims to die.

3. ***Whenever the crime is accompanied by murder, homicide, physical injuries, or rape.***

   **NOTE:** If in the course of the commission of piracy, the pirates would commit any of these common crimes, these will not constitute separate and distinct charges. They are only circumstances that will qualify the penalty and will make the crime qualified piracy. Hence, they will not give rise to a separate and distinct charge. These will also not give rise to complex crime. They are not considered crimes by themselves, but mere circumstances that will qualify piracy.

   **NOTE:** Art. 123 used the phrase "physical injuries" without any distinction as to whether it is serious or less serious. Therefore, any kind of physical injuries that will accompany the crime of piracy will make the crime already qualified piracy.

**NOTE:** According to legal luminaries, the 2nd and 3rd circumstances apply to mutiny.

**Q: The vessel was sailing towards Cebu. Suddenly, two motorboats came. Each motorboard has two men onboard. The men fired shots at the vessel and then thereafter, they boarded the vessel. They went directly to the captain of the said vessel and ordered him to stop at gunpoint, of course, he was afraid and stopped the vessel. Thereafter, the said four armed men told the people therein to place all their valuables, their cash, their jewelry to give it to them. After giving everything to them. The said four men left. What crime is committed by these men?**

**A:** They are liable of piracy under Art. 122 as all the elements are present.

First, the vessel is on Philippine waters, it is sailing towards Cebu. Second, the offender are not members of the complement or passengers of the vessel. The offenders came from the outside. Third, the offenders seized, in part, the personal belongings inside the said vessel. Therefore, all the elements of Simple Piracy under Article 122 are present.

Even if the four men fired and boarded the vessel, since they did not seize the vessel itself. They took only part of the personal belongings of the passengers and members of the crew, such as cash and valuables. Therefore, it is only Simple Piracy and NOT Qualified Piracy.

**Q: What if in the same problem with exactly the same facts, one of the men, A, saw Pedro, one of the passengers, immediately placed his hand inside the pocket of his jacket and tried to hide a valuable wedding ring on his finger which was the only memory left by his deceased wife. Pedro did not want to give the said ring. But too late, A already saw it. A ordered Pedro to hand to him the said ring but Pedro refused. Thus, A immediately hit the head of Pedro with the back of his armalite. Pedro fell to the ground and the other men B, C, and D succeeded in hitting him with the back of their armalites on the different parts of Pedro's body. Thereafter, while Pedro was down, wounded, and bleeding, A forcibly took the wedding ring from his finger. Thereafter, they left. What crime was committed by the four men?**

**A:** The four men are liable for Qualified Piracy under Art. 123 because the act of piracy is now accompanied by the infliction of physical injuries. Under Art. 123, physical injuries is used in its generic sense, the law did not state what kind of physical injuries will qualify piracy. Therefore, whether it is serious physical injuries, less serious physical injuries, or slight physical injuries, for as long as any physical injuries would accompany the act of piracy, it now becomes qualified piracy. In this case, the four men would be charged with Qualified Piracy because of the presence

of the third qualifying Circumstance–the act of piracy was accompanied by infliction of physical injuries on one of the passengers.

**Q: The vessel was sailing towards Cebu. In 20 minutes, it would already reach the shores of Cebu. When the vessel was already nearing Cebu, five members of the complement, five members of the crew, and five passengers of the vessel connived and conspired to take part of the cargo of the said vessel the moment the vessel reaches the shores of Cebu. When the vessel reached the seashores of Cebu, these 5 members of the crew and five passengers, at knifepoint, took part of the cargo of the said vessel and they were bringing the cargo outside. But the police arrived, and they were arrested by the police. They were charged with violation of Article 122 or Piracy. Are they liable under Article 122?**

**A:** No, they are not liable under Article 122. The first element is present, the vessel is on Philippine waters, particularly in Cebu. The third element is present, they took, in part, the cargo of the said vessel. However, the second element of Article 122 is absent. The second element requires that the offenders must NOT be members of the complement or passengers of the vessel. In the problem given, the offenders are members of the complement and passengers of the vessel conniving and conspiring with one another. Therefore, since the second element of Article 122 does not apply, they cannot be charged with violation of Article 122 for Piracy.

**Q: If not Piracy under Article 122, what is the proper charge?**
**A:** The proper charge is Piracy under PD 532 or the Anti-Piracy and Anti-Highway Robbery Law. Under PD 532, piracy is any attack or seizure of the vessel, or the taking in whole or in part of the cargo, equipment, or personal belongings inside the said vessel, regardless of the value therefore, committed by any person, including members of the complement and passengers of the vessel, while the vessel is on Philippine waters. In case of Piracy under PD 532, the offenders can be anyone, he can be an outside, insider, passenger, or a member of the complement. Provided that the vessel is on Philippine waters. In this case, the vessel was on Philippine waters (Cebu) and the offenders were members of the complement and passengers of the vessel. Therefore, the crime committed is a violation of PD 532.

**Q: The Royal S.S. Maru, a vessel registered in Panama, was 300 nautical miles from Aparri, Cagayan when its engines malfunctioned. The Captain ordered his men to drop anchor and repair the ship. While the officers and crew were asleep, armed men boarded the vessel and took away several crates containing valuable items and loaded them in their own motorboat. In the morning, they discovered that they had been robbed. The captain of the said vessel radioed it to the authorities. What crime is committed? (2006, 2016 BAR)**

**A:** The crime committed by the armed men is Piracy under Art. 122 of the RPC. All the elements are present. The vessel is on the high seas which is 300 nautical miles away from aparri cagayan. The offenders are armed men coming from the outside. The offenders took away the equipment inside the vessel.

**Q: What if in the same problem, while the robbery was ongoing, one of the armed men got mad since the crew was snoring. So one of the armed men stabbed him until he died. What is the crime committed?**

**A:** Qualified Piracy under Art 123. The act of piracy was qualified by murder. Killing a sleeping person was done treacherously. Hence, the crime committed is qualified piracy accompanied by murder.

**Q: In the same problem, after taking the equipment and boarding the same in the vessel. Before the band left, they planted an explosive which they detonated from a safe distance. The explosion damaged the hull of the ship, killed 10 crewmen, and injured 15 others. What crime or crimes, if any, were committed? Explain.**

**A:** Qualified Piracy under Art. 123. In this case, piracy is qualified when the armed men planted an explosive device which was detonated resulting in the murder of 10 crew members and physical injuries of others.

**Q: What if MV Sta. Maria, an inter-island vessel, was anchored in the harbor of Leyte. Passengers were disembarking, cargoes were being brought out from the vessel. While the passengers were disembarking, five members of the crew, A, B, C, D, E, at knife point took away the cargoes and the equipment of the vessel and they hurriedly left. However, police officers immediately arrested them and placed them behind bars. A complaint for piracy under Art. 122 was filed against them before the public prosecutor. Will you indict them as charged?**

**A:** No, I will not indict them as charged as the second element is absent. They are members of the crew of the vessel. Therefore, the charge made by the police shall be dismissed. Instead, I will indict them for Piracy under PD 532 or Anti Piracy law of 1974.

## ANTI-PIRACY LAW OF 1974 (PD 532)

**Sec. 2.** ***Definition of Terms -***

b. Vessel. Any vessel or watercraft used for transport of passengers and cargo from one place to another through Philippine Waters. It shall include all kinds and types of vessels or boats used in fishing.

d. Piracy. Any attack upon or seizure of any vessel, or the taking away of the whole or part thereof or its cargo, equipment, or the personal belongings of its complement or passengers, irrespective of the value thereof, by means of violence against or intimidation of persons or force upon things, committed by any person, including a passenger or member of the complement of said vessel, in Philippine waters, shall be considered as piracy. The offenders shall be considered as pirates and punished as hereinafter provided.

Sec. 4. *Aiding pirates or highway robbers/brigands or abetting piracy or highway robbery/brigandage.* Any person who knowingly and in any manner aids or protects pirates or highway robbers/brigands, such as giving them information about the movement of police or other peace officers of the government, or acquires or receives property taken by such pirates or brigands or in any manner derives any benefit therefrom; or any person who directly or indirectly abets the commission of piracy or highway robbery or brigandage, shall be considered as an accomplice of the principal offenders and be punished in accordance with the Rules prescribed by the Revised Penal Code. It shall be presumed that any person who does any of the acts provided in this Section has performed knowingly unless the contrary is proven.

**Definition of Piracy under PD 532**

It refers to any attack or seizure of the vessel or in whole or in part the cargo, equipment or personal belongings of the members of the complement or passengers of the vessel irrespective of the value thereof by means of violence, intimidation of persons, or force upon things. It is committed by any person, including members of the complement or passengers of the vessel while it is on Philippine waters.

SC has ruled that despite the amendment brought about by RA 7659 on Art 122, PD 532 remains to be a good law. Under PD 532, it will only apply if the vessel is in the PH waters. Any person can commit PD 532. Piracy under PD 532 is committed through means of violence, intimidation of persons, or force upon things

Even members of the complement or passengers can commit piracy under PD 532 for as long as the vessel is on Philippine waters.

**Illustration**

The vessel was on the waters of Cebu when the said act of piracy was committed by the very own members of the complement of the vessel in connivance or in conspiracy with the passengers of the vessel. Hence, they are liable of piracy under PD 532, the Anti-Piracy Law of 1974.

**Vessel Under PD 532**

It refers to any watercraft used for transport of passengers or cargo through PH waters. It includes all kinds of vessels or boats used in fishing.

## THE PHILIPPINE ACT ON CRIMES AGAINST INTERNATIONAL HUMANITARIAN LAW, GENOCIDE, AND OTHER CRIMES AGAINST HUMANITY (R.A. No. 9851)

**Section 5.** ***Genocide*** **-** (a) For the purpose of this Act, "genocide" means any of the following acts with intent to destroy, in whole or in part, a national, ethnic, racial, religious, social or any other similar stable and permanent group as such:

(1) Killing members of the group;
(2) Causing serious bodily or mental harm to members of the group;
(3) Deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part;
(4) Imposing measures intended to prevent births within the group; and
(5) Forcibly transferring children of the group to another group.
(6) It shall be unlawful for any person to directly and publicly incite others to commit genocide.

Any person found guilty of committing any of the acts specified in paragraphs (a) and (b) of this section shall suffer the penalty provided under Section 7 of this Act.

**Q: President Duterte was charged before the ICC allegedly he committed genocide, a crime against humanity, because of mishandling the policy on war against drugs. Allegedly, in the implementation of the**

**war on drugs, many innocent people died. He was charged and imprisoned in the Hague Netherland. Is the said act of the former president within the meaning of genocide under RA 9851.**

**A:** No, it is not within the meaning of genocide under RA 9851.

**NOTE:** PVG agrees with the SolGen Guevarra where the act of the President is not within the meaning of genocide, not an act against humanity under our laws.

Under RA 9851, when you say genocide, it means any act with intent to destroy, in whole or in part, a national, ethnic, racial, religious, social or any other similar stable and permanent group as such under Sec. 5 of the law.

The alleged innocent persons killed cannot be considered as belonging to any ethnic, racial, social group. They cannot be said to be a member of a group designed to be killed or inflicted with mental and physical harm.

Within the meaning of our law, the said act cannot be considered as genocide.

## TITLE 2: CRIMES AGAINST FUNDAMENTAL LAWS OF THE STATE

**BAR Q: What are the three kinds of Arbitrary Detention?**
**A:**

1. Arbitrary Detention by detaining a person without legal grounds (Article 124).

2. Arbitrary Detention by failing to deliver the detained person to the proper judicial authorities within 12, 18, or 36 hours (Article 125).

3. Arbitrary Detention by delaying the release of prisoners despite the judicial or executive order to do so (Article 126).

**NOTE:** In case this question is asked, short answer only. Do not explain, it is an objective question. If you are asked to enumerate, just enumerate and do not explain. You have to know how to answer what is being asked; what is the question; what is the bar examiner asking; if he is asking for definition, enumeration, you are not required to explain.

### ARBITRARY DETENTION (ART. 124)

Art. 124. *Arbitrary Detention.* Any public officer or employee who, without legal grounds, detains a person, shall suffer;

1. The penalty of arresto mayor in its maximum period to prision correccional in its minimum period, if the detention has not exceeded three days;

2. The penalty of prision correccional in its medium and maximum periods, if the detention has continued more than three but not more than fifteen days;

3. The penalty of prision mayor, if the detention has continued for more than fifteen days but not more than six months; and

4. That of reclusion temporal, if the detention shall have exceeded six months.

The commission of a crime, or violent insanity or any other ailment requiring the compulsory confinement of the patient in a hospital, shall be considered legal grounds for the detention of any person.

**ELEMENTS:**

1. The offender is a public officer or employee;

   **NOTE:** They must be authorized by law or by his office to detain and arrest a person

2. He arrests and detains another; and

   **NOTE:** There is detention when the offender placed the offended party in incarceration or imprisonment or when there is restraint on the liberty of the person

3. The said detention was without legal ground.
   a. It is not based on a valid warrant of arrest issued by the court
   b. Does not fall under any of the circumstances of valid warrantless arrest
   c. Person was not suffering violent insanity or any illness which requires compulsory confinement

**NOTE:** In order for the detention to be considered illegal, it is necessary that it is without any valid act or authority.

For arbitrary detention to lie against the offender, it is necessary that there is a manifest intent on the part of the public officer to put restraint on the person or liberty of

the offended party. It need not be physical restraint. The mere act of instilling fear on the part of the said persons, such that, if they would leave the place something would happen to them. The determinative factor in Arbitrary Detention, in the absence of actual physical restraint, is fear. *(Astorga v. People)*

**Legal grounds for detention of any person**

1. Person was detained by virtue of a warrant of arrest for a commission of a crime;
2. Person was arrested and detained under circumstances for a valid warrantless arrest;

    a. *In flagrante delicto* arrest - in his presence, the person to be arrested has committed, is attempting to commit, or is about to commit an offense;

    b. Hot pursuit arrest - When an offense has just been committed, and he has probable cause based on personal knowledge of facts and circumstances that the person to be arrested has committed the crime;

    c. Person to be arrested is a prisoner who has escaped from a penal establishment or a place where he is serving final sentence or temporarily detained while his case is pending, or has escaped while being transferred from one penal institution to another.

3. Person was suffering violent insanity or any illness which requires compulsory confinement.

**Q: Under Art 124, what does the word "detention" mean?**

**A:** said offended party has been placed in incarceration or imprisoned. There is restraint in his person or liberty.

**Q: If there is no actual or physical restraint on the person or liberty of the offended party, when is there arbitrary detention?**

**A:** In the case of **Astorga v. People**, the SC said that the determinative factor in arbitrary detention in the absence of actual physical restraint is fear. It is necessary for the offender to instill fear in the mind of the victims.

In this case, at first the SC convicted Astorga. However, after the MR, the SC said that the Mayor is not liable. Based on testimonial evidence of the DENR officers, there is no actual physical restraint imposed on theme. According to the officers, they are free to leave the house of Astorga and free to roam around the brgy. Since there is no actual physical restraint, there must be fear instilled in them to determine the detention. Based on the facts, there was no fear on the part of the DENR officers. Thus, Astorga was acquitted.

**X was driving his car and entered a one way street. After entering the one way street, he parked his car. The police came out then X was apprehended and arrested. X was brought to the PNP station. After investigation, X was detained and was only released after 48 hrs of detention. Is police officer W liable for arbitrary detention under Art 124 of RPC? (BAR Q)**

**A:** YES. All elements are present. First, police officer W is a public officer vested with authority to arrest and detain a person. Police officer detained X after his arrest and after the investigation, X was placed inside the prison cell then only released after 48 hrs. X detention is without legal grounds.

Under the LTO traffic code and regulations, the general procedure for dealing with traffic violations is not the arrest of the offender but rather the issuance of a violation ticket. Traffic violations do not warrant a lawful arrest. Those violators shall only be given traffic violation tickets. Hence, X's arrest and detention is not based on legal grounds.

**Q: What if the election has ended, a new mayor was elected. The new mayor has to change his people from the city hall except those who are civil service eligible and have permanent tenure. He appointed X as the new collecting officer who is a pretty, intelligent, and articulate woman. The city treasurer is so envious of X. One time, because of her heavy workload, X decided to work overtime. It was already 8 o'clock in the evening, X was still there reviewing all the papers, all the documents on top of her table. The city treasurer at the time was also there.**

**X, while reviewing the papers on top of her desk, suddenly said that she needed further documents and so X entered the filing room to look for further documents. When the city treasurer saw X enter the filing room, the city treasurer closed and locked the said filing room. Thereafter, the city treasurer left. After realizing that she was locked inside. X was shouting for help. He was inside. She was inside. But no one could already hear X because there was already no one in the said city hall. Despite her pleas for help, no one could help her. Nobody was inside the city hall**

**except X. She could not use her cell phone. Her cell phone was locked on her table. X was locked up in the filing room of the city hall until the morning, 8 o'clock am, when her pleas for help were heard by the employees going to the office.**

**Is the said city treasurer who closed the door and locked up X inside the said filing room liable for arbitrary detention?**

**A:** No. The city treasurer is not liable for arbitrary detention.

Arbitrary detention is not committed by the said city treasurer because although the city treasurer is a public officer, she is not vested with the authority to effect arrest and detain a person.

Even if the offender is a public officer, if his office does not confer upon him the authority to effect arrest and detain a person, any arrest and detention would not amount to arbitrary detention because the said public officer is merely acting in his private capacity.

Therefore, the crime committed is **serious illegal detention under Article 267** because in this case, the victim X is a woman. The moment the victim of detention is a woman under Article 267, it is always and always serious illegal detention.

Hence, the said city treasurer is not liable under Article 124 arbitrary detention. Instead, the said city treasurer is liable under Article 267 of the RPC, serious illegal detention considering that the victim that she detained is a female.

**Major Menor, while patrolling Bago-Bago community in a police car with SP03 Caloy Itliong blew his whistle to stop a Nissan Sentra car which wrongly entered a one-way street. After demanding from Linda Lo Hua, the driver, her driver's license, Menor asked her to follow them to the police precinct. Upon arriving there, he gave instructions to Itliong to guard Lo Hua in one of the rooms and not to let her out of sight until he returns; then got the car key from Lo Hua. In the meantime, the latter was not allowed to make any phone calls but was given food and access to a bathroom.**

**When Menor showed up after two days, he brought Lo Hua to a private house and told her that he would only release her and return the car if she made arrangements for the delivery of P500,000.00 in a doctor's bag at a certain place within the next twenty four hours. When Menor went to the designated spot to pick up the bag of money, he suddenly found himself surrounded by several armed civilians who introduced themselves as NBI agents. What criminal offense has Menor committed? Explain. (1999 BAR)**

**A:** Menor committed Arbitrary Detention under Art. 124. He is a public officer who detained a person without legal grounds. Violation of a traffic ordinance by entering a one-way street is not a valid reason to arrest and detain the driver. Such only merits the issuance of a traffic violation ticket. Hence, when Lo Hua was ordered to follow the police officers to the precinct (confiscating her license to compel her to do so), and confining her in a room for two days and prohibiting her to make phone calls, is a clear case of deprivation of personal liberty. Giving her food and access to the bathroom will not extinguish or mitigate the criminal liability.

Menor is further liable for robbery, because money or personal property was taken, with intent to gain, and with intimidation. The peculiar situation of Lo Hua practically forced her to submit to the monetary demands of the major. *(UPLC Suggested Answers)*

## FAILURE TO DELIVER DETAINED PERSONS (ART. 125)

**Art. 125.** ***Delay in the delivery of detained persons to the proper judicial authorities.*** — The penalties provided in the next preceding article shall be imposed upon the public officer or employee who shall detain any person for some legal ground and shall fail to deliver such person to the proper judicial authorities within the period of; twelve (12) hours, for crimes or offenses punishable by light penalties, or their equivalent; eighteen (18) hours, for crimes or offenses punishable by correctional penalties, or their equivalent and thirty-six (36) hours, for crimes, or offenses punishable by afflictive or capital penalties, or their equivalent.

In every case, the person detained shall be informed of the cause of his detention and shall be allowed upon his request, to communicate and confer at any time with his attorney or counsel. (As amended by E.O. Nos. 59 and 272, Nov. 7, 1986 and July 25, 1987, respectively).

**ELEMENTS:**

1. The offender here is a public officer or employees vested with authority to effect arrest and detain a person;

2. That offender has arrested and detained a person

3. The said arrest and detention is based on some legal ground; and

4. The said public officer or employee fails to deliver that person arrested to the proper judicial authorities within
    a. 12 hours, for crimes punishable by light penalties, or their equivalent;
    b. 18 hours, for crimes punishable by correctional penalties, or their equivalent; or
    c. 36 hours, for crimes punishable by afflictive or capital penalties, or their equivalent.

**Art. 124 v. Art. 125**

| ARBITRARY DETENTION (Art. 124) | DELAY IN THE DELIVERY OF DETAINED PERSONS (Art. 125) |
|---|---|
| At the outset, the arrest and detention is without legal grounds and arbitrary in nature | At the outset, the arrest and detention is based on legal grounds because it is based on circumstances of valid warrantless arrest.<br><br>It only becomes arbitrary when the public officer fails to deliver him to the proper judicial authorities within the period prescribed |

**NOTE:** The said valid grounds for arrest and detention are those valid grounds for a valid warrantless arrest. This will not apply if the arrest and detention of a person is based on a warrant of arrest issued by the court. Since the order was issued by the court, you no longer have to deliver the person arrested to court because, necessarily, a case has already been filed.

**Art. 125** does not contemplate a situation wherein the public officer arrested the offender based on a warrant of arrest issued by the court. This refers to instances wherein the public officer arrested another based on a valid warrantless arrest.

**Instances When Any Peace Officer or Private Citizen May Arrest Another Even Without a Warrant of Arrest**

In the Rules of Court, any peace officer or private citizen, even without a warrant, may arrest another when:

1. In his presence the person to be arrested has committed, is actually committing or is attempting to commit an offense;

2. When an offense has just been committed, there is probable cause based on personal knowledge of facts and circumstances that the person to be arrested has committed the crime; or

3. When the person to be arrested is an escapee from the penal institution or the place where he is temporarily detained or when he escaped while being transferred from one penal institution to another.

**NOTE:** Once arrested based on a valid warrant of arrest, he should be immediately delivered to the proper judicial

authorities within the period prescribed by law. Otherwise, Art. 125 is committed.

**"Delivery to the Proper Judicial Authorities"**

It means the act of filing the appropriate case before the courts established by law. It refers to legal delivery. When you say proper judicial authorities, it means courts of justices established by law from lowest courts to the Supreme Court.

**Q: Why is it necessary that after a valid warrantless arrest, the public officer is mandated to immediately file the case before the court?**

**A:** So that the court can determine whether he may fix the bail or not and allow the said accused to go out on temporary liberty. He cannot just be placed behind bars, he should be given the opportunity to post bail in case the crime committed is a bailable. Only the proper judicial authority, the court, can do that. Hence, the case must be filed before the proper courts.

**"Or Their Equivalent"**

When the law uses the phrase "or their equivalent", it means Art. 125 applies also even if the crime is a violation of a special penal law. Even if it is a violation of a special penal law, the said public officer or employee arresting an accused based on a valid warrantless arrest is still obligated to deliver him within the equivalent period as provided for under the RPC.

**Q: It was a Saturday, nine o'clock in the evening. The police officers patrolling the area saw X. They found X suspicious. There was something bulging on his waist, on the left part of his waist. The police officer found him in possession of an unlicensed homemade gun. He was arrested. He was brought to the PNP station. He was investigated, interrogated.**

**Thereafter, he was booked and he was placed behind bars. A complaint for violation of R.A. No. 10591, illegal possession of police firearms was prepared. However, they could not file the case before the opposite public prosecutor and before the court because the next day, Sunday, is a non-working day. So, both the fiscal office and the courts are closed. Monday, PAG-ASA said it was signal number four. The Supreme Court itself issued a memorandum saying that all courts in the said place are closed.**

**Tuesday, Pag-asa said signal number three. Still, Supreme Court said in its memorandum all courts in the said place should be closed.**

**Wednesday, the typhoon signal was reduced to number two. It was only on Wednesday wherein the police officers filed the complaint for violation of RA 10591, illegal possession of police firearms before the opposite public prosecutor for inquest purposes.**

**After the inquest, within an hour, the assigned public prosecutor filed the information before the Metropolitan Trial Court of the place.**

**When the case was filed before the METC, the Council of X immediately filed a counter-charge against the arresting police officer. The Council filed a case of violation of Article 125 because they filed a case beyond the required 36 hours. And because of this, the investigating police officer. The counsel filed a case of violation of Article 125 Arbitrary Detention because they filed a case beyond the required 36 hours. And because of this, the investigating public prosecutor issued a subpoena to the arresting police officer to file their counter-affidavit. In their counter-affidavit, the respondent's police officers go for the dismissal of the case based on two grounds. First, according to them, the periods prescribed under Article 125 do not apply to violation of special penal laws like R.A. 10591. And second, according to them, the periods in Article 125 do not run when courts are closed to receive the complaint or information. If you are the assigned public prosecutor, how will you resolve the case?**

**A:** If I were the public prosecutor, I would dismiss the case of Arbitrary Detention under Article 125 filed against the said police officers.

The first argument of the police officers in their counter-affidavit has no merit because Article 125 as I said earlier, applies even to violation of special penal laws. And this is evident from the phrase, light penalties are their equivalent, correctional penalties are their equivalent, afflictive penalties are their equivalent. Or their equivalent means the equivalent of the light, correctional, and afflictive penalties in special penal laws. However, the second argument raised by the police officers in their counter-affidavit has merit.

Therefore, the case of violation of Article 125 must be dismissed. The 12, 18, and 36 hours prescribed under Article 125 do not run during those times wherein courts are closed to receive the complaint or information.

In this case, the required 36-hour in this case did not run during the Saturday night, during the Sunday, during the Monday, during the Tuesday because on all these days, the courts were closed to receive the information or the complaint.

As held by the Supreme Court in the case of **Soria v. Desierto,** the 12, 18, and 36 hours prescribed under Article 125 are office hours. Those hours wherein courts are open to receive the complaint or the information. Hence, the case filed against the police officers for violation of Article 125 must be dismissed by the fiscal service.

**Q: What if coming from a reliable informant, an asset of the police officers, the police officers have been conducting surveillance on X. X was a suspect in the manufacturing of nuclear or chemical weapons until the police officers effected their arrest. X was arrested by the police officers for developing and manufacturing nuclear or chemical weapons. It is an act punished as terrorism under Section 4 of RA 11479, the Anti-Terrorism Act.**

**So, X was brought to the PNP station, he was interrogated, he was investigated, he was booked, his mugshots were taken, his fingerprints were taken, and then thereafter, the police officers placed X behind bars. A criminal complaint for violation of the Anti-Terrorism Act was prepared by the police officers who arrested X. However, the said criminal complaint for violation of the Anti-Terrorism Act was only filed by the arresting police officer 14 days from the time of the arrest. Because of this, the counsel of X immediately filed a case of arbitrary detention under Article 125 against the said police officers because they failed to deliver his client X to the proper judicial authorities within the prescribed period of 36 hours under Article 125. Are the said police officers to file the case 14 days from the time of the arrest of X liable for violation of Article 125 of the RPC?**

**A:** YES. In the case of **Calleja v. Exec. Secretary**, SC said that Sec. 29 of RA 11479 does not amend Art 125 of RPC. Rather, Sec 29 which provides for the filing of the case 14 days from the time of apprehension supplement Art 125 RPC.

SC held that the 14 day period allowed under Sec 29 only applies in specific cases:

1. When there is probable cause to believe that the crime committed is any of the acts punishes Terrorism under Sec 4 of RA 11479; and
2. When there is a written authorization coming from the Anti-Terrorism Council that has been secured by the arresting police officers.

Based on the facts of the case, these two requisites have not yet been complied with. They do not have probable cause, they only relied upon an informant. They should have conducted an operation. They also have no written authorization from the ATC. Since the requisites are not complied with, they are mandated to comply with Art. 125 RPC. They have to file the case before the proper authorities within 36 hours.

**Summary**

**GR:** Art. 125 RPC is the general rule which applies also to Special Penal Laws and Anti Terrorim Act.

**XPN:** Period under Sec. 29 RA 11479 will only apply and operative once the arresting peace officer has secured a written authorization coming from the ATC that indeed these persons are engaged on act of terrorism based on probable cause

**Financing of Terrorism**

Under Sec 4 RA 10168, it is committed by any person who, directly or indirectly, willfully and without lawful excuse, possesses, provides, collects or uses property or funds or makes available property, funds or financial service or other related services, by any means, with the unlawful and willful intention that they should be used or with the knowledge that they are to be used, in full or in part:

(a) to carry out or facilitate the commission of any terrorist act;
(b) by a terrorist organization, association or group; or
(c) by an individual terrorist

If the offender who is financing terrorism is an alien/foreigner, the alien shall, in addition to the penalties prescribed, be deported without further proceedings after serving the penalties.

The deportation will come AFTER the serving of sentence.

## DELAYING RELEASE (ART. 126)

**Art. 126.** ***Delaying release.*** — The penalties provided for in Article 124 shall be imposed upon any public officer or employee who delays for the period of time specified therein the performance of any judicial or executive order for the release of a prisoner or detention

prisoner, or unduly delays the service of the notice of such order to said prisoner or the proceedings upon any petition for the liberation of such person.chanrobles

The last kind of arbitrary detention is under Art. 126, arbitrary detention by failing to release a prisoner despite a judicial or executive order to do so.

**ELEMENTS:**

1. The offender is a public officer or employee;

2. There is a judicial or executive order for the release of the prisoner or detention prisoner, or that there is a proceeding upon a petition for the liberation of such person.

3. The offender without good/valid reason delays:
    a. the service of the notice of such order to the prisoner; or
    b. the performance of such judicial or executive order for the release of the prisoner; or
    c. the proceeding upon a petition for the release or deliberation of a prisoner.

The offender is a **public officer or employee.** There is a judicial or executive order for the release of a prisoner, however, despite the said order or even a petition for the liberation of a prisoner, the said public officer or employee unduly delays the release of the said prisoner.

**Q: What kind of delay is being punished?**

**A:** A delay which is not based on a justifiable ground, without a valid reason. If the said public officer did not release the said prisoner based on legal grounds, he cannot be held liable under Art. 126. Here, what is being punished is the delay to the compliance to the judicial or executive order without any legal reason.

**Examples of an Order for Release of a Prisoner:**

1. ***Judicial Order -*** After trial on the merits, the court acquitted the accused. Upon his acquittal, there would be, let us say he was charged with the crime of murder, an order of release.

2. ***Executive Order -***
    a. A prisoner is said to be a suspect who was allegedly arrested *in flagrante delicto* committing a crime. The case was brought before the Office of the Public Prosecutor for inquest purposes. Upon reading the complaint, the Fiscal said, "no cause" and then, thereafter, "no probable cause." The Fiscal then immediately ordered the dismissal of the case. The said order of dismissal coming from the public prosecutor is an executive order for the release of the prisoner.

    b. The convict was granted an absolute pardon by the president, and the judge issued a release order but still, he would not be released

    c. Allegedly, based on a circumstance of warrantless arrest, X was placed behind bars. The case was brought to the Office of the Public Prosecutor for inquest. Upon looking at the statement, the public prosecutor immediately dismissed the case and ordered the release of the said prisoner. If the order of the public prosecutor was not obeyed, and the prisoner was not released, there is a violation of Article 126.

**Q: X was charged with two crimes: 1) illegal sale of dangerous drugs, non-bailable; and 2) illegal possession of dangerous drugs. He was caught in the act of selling. He was arrested and brought to the PNP station. The cases were raffled to different courts. The fiscal failed to move for its consolidation. The illegal sale was raffled to RTC Branch 12, while the illegal possession was raffled to RTC Branch 6. Both cases proceeded. Meanwhile, X was behind bars because among the charges filed against him was illegal sale, and such is a non-bailable offense since the penalty is life imprisonment to death. In the case for illegal possession heard by RTC Branch 6, two months lapsed, the public prosecutor failed to present any witness for five hearings, even if there was a subpoena, no one would attend. Consequently, the judge dismissed the case. There was a provisional dismissal of the case, and with that comes an order of release. The BJMP warden received the order of release coming from the judge of RTC Branch 6. He read it. However, he just placed it inside his pocket, and he did not release X. Is the BJMP warden liable under Article 126 for arbitrary detention?**

**A:** The BJMP warden is NOT liable. Although there is a judicial order coming from the RTC Branch 6 that X be released, the said BJMP warden has a valid ground, a legal ground, for not releasing X. At that time, X was still being

detained for illegal sale of dangerous drugs, a non-bailable offense, being heard under the RTC Branch 12. Therefore, since he is a reason for not complying with the said judicial order, he cannot be held liable under Article 126.

**Q: X was arrested and was found in possession of a low caliber pistol. He was brought to the PNP station and was investigated. A complaint was prepared but it was a Saturday evening, and so he was placed behind bars. The following day, Sunday, they still could not file a case even if they wanted to since the courts are closed, the fiscal's office is closed. On Monday, it was closed because it was a special non-working holiday. On Tuesday, the signal no. 3 storm on Monday became signal no. 4. The order came not only from the court, but from the Supreme Court itself that courts would be closed. On Wednesday, PAGASA lowered the signal no. to 3, and there was office again. The first thing that the arresting officer of X did was to bring the latter to the fiscal's office for inquest purposes. After the inquest, X was charged against the Information for violation of R.A. 10591 before the proper court. Upon the filing of the case, the counsel of X immediately filed a countercharge before the Office of the Public Prosecutor against the said arresting police officers for violation of Article 125 for failing to deliver the detained person to the proper judicial officers within 36 hours. In their counter-affidavit, the said police officer moved for the dismissal of the case on two grounds: 1) Article 215 does not apply to violations of Special Penal Laws (SPLs) like R.A. 10591; and 2) in case Article 125 applies to violations of SPL, they complied as they were able to deliver X to the proper authorities within 36 hours. Hence, they moved for dismissal. If you were the assigned public prosecutor, how would you rule?**

**A:** If I were the assigned public prosecutor, I would dismiss the case.

The first argument raised by the respondent police officers has no merit. Article 125 applies even to violations of SPL. Under said article, 12 hours for crimes punishable by light penalties or their equivalent; 18 hours for crimes punishable by correctional penalties or their equivalent; or 36 hours for crimes punishable by capital punishment or afflictive penalties or their equivalent. The phrase "or their equivalent" means their equivalent period of time in case of violations of SPL.

However, the second argument raised by the respondent police officers has merit. During the period of time — Saturday night, Sunday, Monday, and Tuesday — when the courts were closed and the Office of the Public Prosecutor was closed, the 12, 18, and 36 hours did not run. The said prescriptive periods would not run during those time that the courts were closed to receive the complaint, the Information, against the respondent, the accused. Since the said courts were open only on Wednesday, the said arresting officers filed the complaint within the proper period of time because that time did not run during Saturday, Sunday, Monday, and Tuesday. Therefore, the case should be dismissed.

In the case of **Astorga v. People**, when you say "detention", it is necessary that the offended party must be detained, incarcerated. However, the Supreme Court said, in lieu of actual restraint on the person of the said offended party, on the liberty of the said party, arbitrary detention would only apply if there is fear on the part of the said offended party; if there was fear imposed by the accused on the part of the said offended party. In this case, SC said there was none. The DENR officers said that they could go around the public place; they were unafraid. Since they lack fear, it cannot be said that the act is arbitrary detention. Hence, in the second resolution, the Supreme Court, after convicting Mayor Astorga, acquitted him.

## EXPULSION (ART. 127)

**Art. 127.** ***Expulsion.*** — The penalty of prision correccional shall be imposed upon any public officer or employee who, not being thereunto authorized by law, shall expel any person from the Philippine Islands or shall compel such person to change his residence.

**ELEMENTS:**

1. Offender is a public officer or employee
2. The public officer or employee acts either:
    a. By expelling a person from the Philippines; or
    b. By compelling a person to change his residence;
3. Offender is not authorized to do so by law.

**NOTE:** This will not apply to public officers who are authorized by law to expel a person from the Philippines, such as the President, or to compel a person to change his residence, such as judges. Thus, judges can include in his decision the change of person's residence. If a person is convicted of a crime and the penalty imposed upon him is *destierro*, then he has no choice but to change his residence. Judges cannot be held liable for expulsion because they have the authority to do so.

**NOTE:** If the expulsion is done by the officers of the Bureau of Immigration and Deportation (BID) as the counter ego of the president, they will not commit the violation under Art. 127 because they are authorized to expel that person from the Philippines.

If the compulsion to change his place of residence is done by a judge, he cannot be held liable under 127 because a judge can compel a person to change place of residence.

**Examples:**

a. In case of expropriation proceedings;
b. If the penalty imposed by the judge unto the offender is destierro and the place wherein he is prohibited from entering happens to be his place of residence.
   He cannot do anything, he has to change his place of residence, he can be compelled to do so, the judge authorized to do so cannot be held liable under Art 127.

## VIOLATION OF DOMICILE (ART. 128)

**Art. 128.** ***Violation of domicile.*** — The penalty of prision correccional in its minimum period shall be imposed upon any public officer or employee who, not being authorized by judicial order, shall enter any dwelling against the will of the owner thereof, search papers or other effects found therein without the previous consent of such owner, or having surreptitiously entered said dwelling, and being required to leave the premises, shall refuse to do so.

If the offense be committed in the night-time, or if any papers or effects not constituting evidence of a crime be not returned immediately after the search made by the offender, the penalty shall be prision correccional in its medium and maximum periods.

**ELEMENTS:**

1. The offender is a public officer or employee;
2. He was not authorized by a judicial order to enter the dwelling and/or make a search therein for papers or other effects;
3. He either:
   a. Enters the dwelling of another against the will of the latter; or
   b. Searching for papers or other effects found therein without the previous consent of the owner; or
   c. After having surreptitiously entered the dwelling, being discovered and asked to leave, he refuses to leave.

**NOTE:** The public officer is punished for violation of domicile because when he conducted the search and he entered the premises of another, <u>he is not armed with a search warrant.</u>

**Q: Who is the offender?**
A: A public officer or employee acting under color of authority.

**Q: When do you say that the said public officer is acting under color of authority?**
**A:** He is a public officer vested with the authority to search a domicile, vested with the authority to conduct a search of a domicile. However, at the time of the search, he is not armed with a search warrant.

He is not armed with a judicial order to enter and search and so he is merely acting under the color of authority. Hence, the said public officer will become liable for violation of domicile.

If the said officer is not vested with the authority to conduct a search and he enters the dwelling of another, the crime committed is **trespass to dwelling under Art 280**.

- If the said public officer is acting in his private capacity in entering the dwelling of another, the crime committed would be trespassing and not violation of domicile under 128.

**<u>Three Ways of Committing Violation of Domicile</u>**

**a. By entering any dwelling against the will of the owner thereof;**

Entry against the will of the owner means that there must be an opposition or prohibition from entering. This can be an express or implied opposition.

**Implied Opposition –** When the door of the house is closed even if not locked, impliedly the owner does not want anyone to enter his house even if he is a public officer, unless such public officer is armed with a search warrant.

**Express prohibition –** There is a note "NO ENTRY", "NO TRESPASSING, KNOCK BEFORE YOU ENTER or upon seeing the public officer, he immediately closes the door.

**b. By searching for papers or other effects found therein without the previous consent of the owner; or**

Even if a public officer or employee is allowed by the owner to enter his house, such permission to enter does not mean this also permitted to conduct the search unless he is armed with a search warrant.

If the police officer is not armed with a search warrant, he must first secure the consent of the owner before conducting any search. If the police officer proceeded with the search without the consent of the owner, he becomes liable for violation of domicile.

Permission to enter doesn't automatically mean permission to conduct the search. Since in the first place he is not armed with a search warrant before he should proceed with the conduct of the search, he must first secure previous consent of the owner.

- If the owner consented- no violation of domicile.
- If the owner does not consent- violation of domicile.

**c. By refusing to leave the premises, after having surreptitiously entered the dwelling.**

After the said peace officer has surreptitiously entered, he was discovered, he was ordered to leave, he refused to leave. Upon surreptitious entry, the said peace officer is not yet liable for violation of domicile.

Entry without the consent, it is an example of surreptitious entry, he is not yet liable for violation of domicile. However, the moment he was ordered to leave and he refuses to leave, that is the time he becomes liable for violation of domicile.

He will only become liable if the owner discovered him to have entered the latter's dwelling and the owner ordered him to leave but he refuses to leave. It is the refusal to leave upon discovery of his surreptitious entering the dwelling that will give rise to violation of Article 128.

**NOTE:** If you are given a problem in Article 128, do not look for all the three modes. These three modes of committing violation of domicile are separate and distinct from each other.

1. Mere entry against the will is already a violation of domicile.
2. Mere searching papers and effects without the consent of the owner is already a violation of domicile.
3. Do not look for all three acts. If you look at all three acts, then you will be wrong in your answer. Only one mode will suffice to commit violation of domicile under Article 128.

**Qualifying Circumstances**

The crime of violation of domicile is qualified if the said act is committed in the following circumstances:

1. Nighttime; or
2. If any papers or effects seized were not immediately returned to the owner.

In **Geroche v. People**, Petitioners Edigardo Geroche, Roberto Garde and Generoso Marfil alias "Tapol" were charged with the crime of Violation of Domicile under Article 128 of the Revised Penal Code (RPC). One evening in the province of Cotabato, the three accused, being a Barangay Captain and the rest being CAFGUs, hence, persons in authority, without proper judicial order, entered the house of Roberto Mallo by forcibly breaking the door of said house against the will of the occupants thereof, search the effects of the house without the previous consent of the owner and then mauled one of the occupants Bariliano Limbag inflicting injuries to the latter.

The Court ruled that petitioners are guilty of committing Violation of Domicile. The entry was done against the will of the offended party. The search was without asking for his consent. The entry was done surreptitiously and they refused to leave when asked. Since the said act was committed at night time and the airgun seized which is not used in the commission of a crime was not immediately returned, the penalty is qualified.

**NOTE:** There are ways of committing violation of domicile even if the public officer is armed with a search warrant and these ways are provided for under Article 129 and Article 130 of the RPC.

**Q: A police officer was conducting surveillance in the person of X. X was just new in the place. The police officers took notice that upon his transfer, selling of drugs and drug addiction became rampant in the place. The police officers got a tip that in the house of X, many people were coming in and out. The police officers started conducting surveillance. PO1 W was assigned to conduct the surveillance. He dressed in**

**civilian attire. One time, he saw the gate was left open. He entered. But, the door was closed. Although the door was closed, he tried to open and he was successful. He went to the sala, there was silence but he could hear voices upstairs. Suddenly, the owner came down and shouted "Who are you?". To prevent any commotion, W immediately left. Is he liable for violation of domicile?**

**A:** Yes, he is liable for Violation of Domicile under the first act – by entering any dwelling against the will of the owner thereof. He is a public officer. He is not authorized by judicial order to enter the dwelling of X. He entered the dwelling of X against the will of the latter. There was an implied prohibition to enter because the door was closed even if the gate was opened. When he entered the dwelling of X without any search warrant, he becomes liable for violation of domicile under Article 128.

**NOTE:** It must be entering against the will of the owner. Entering against the will of the owner is not the same as entering without the consent of the owner.

**Q: What if X and Y, husband and wife, were watching the television, and there were knocks at the door, so he opened the door and there were police officers. Out of respect, they told him to enter his house and to sit, but the police officers said they were there to search his house. X was shocked. The police officers said that they got a report about a missing bicycle at about 5pm, and the person who took the bicycle went inside X's house. X asked if they have a search warrant, but the police officers said they failed to get a search warrant. X said then without such they cannot conduct a search, but the police officers did not listen and they pushed him and proceeded in conducting the search. Upon opening a room, they immediately saw the stolen bicycle. They called the owner and the owner identified it to be the stolen bicycle. The police officers seized the said bicycle and arrested both X and Y. They were both charged with the crime of theft. Can the said bicycle be used as evidence against him? He filed a counter-charge against the police officers for violation of domicile. Are the police officers liable?**

**A:** Yes, the police officers are liable as they committed the second act. Although they were permitted to enter, the police officers were not allowed to conduct a search. When X protested against the search, still the police officers proceeded in conducting the search. Therefore, they committed the second act of violation of domicile—they searched papers or other effects found therein without the consent of the owner.

**Q: Is the bicycle seized and confiscated allegedly belonging to the owner admissible as evidence in the crime of theft filed against X and Y?**

**A:** No, the bicycle found inside his house cannot be used as evidence against X because it is a product of an illegal search conducted by the police officers.

## SEARCH WARRANTS MALICIOUSLY OBTAINED AND ABUSE IN THE SERVICE OF THOSE LEGALLY OBTAINED (ART. 129)

**Art. 129.** ***Search warrants maliciously obtained and abuse in the service of those legally obtained.*** — In addition to the liability attaching to the offender for the commission of any other offense, the penalty of arresto mayor in its maximum period to prision correccional in its minimum period and a fine not exceeding P1,000 pesos shall be imposed upon any public officer or employee who shall procure a search warrant without just cause, or, having legally procured the same, shall exceed his authority or use unnecessary severity in executing the same.

**ELEMENTS:**

1. The offender is a public officer or employee; and
2. The offender either —
    a. Procures a search warrant without just cause; or
    b. Having legally procured the same, exceeds his authority or uses unnecessary severity in executing the same.

Under Article 129, violation of domicile is still committed even if the peace officer is armed with a search warrant.

1. if the said search warrant is procured without just cause.
2. if the said peace officer exceeded his authority in executing a legally procured search warrant.
3. if the said peace officer used unnecessary severity in executing the said search warrant legally procured.

**Ways Committed**

***1. By procuring a search warrant without just cause***

It is without just cause when it is maliciously procured. It is maliciously procured when any of the requisites for the issuance of a search warrant is absent.

**Requisites of a Valid Search Warrant:**

a. It is required that it is for one specific offense;

b. There must be probable cause;

c. The said probable cause was determined by the issuing judge personally through searching questions and answers in writing, under oath or affirmation as the testimony given by applicant of the said search warrant or any witnesses he may produce;

d. The applicant of the search warrant and his witnesses must testify only as to facts personally known to them; and

e. The said search warrant must specifically state the place to be searched and the thing to be seized.

**NOTE:** If any of these requisites is wanting, then the said search warrant is illegally procured. It is procured without just cause. A search conducted by virtue of a search warrant illegally procured without just cause is akin to a search without a search warrant.

***2. By exceeding his authority under the search warrant***

The public officer is said to have exceeded his authority in the search warrant when despite the discrepancy or the variance between the facts alleged in the search warrant and the actual facts on the place to be searched, the peace officer still proceeded with the search.

The Supreme Court said that a search warrant is always specifically worded because the officers serving the search warrant are not allowed to exercise discretion. They must follow what is stated in the search warrant – the things to be seized, the place to be searched, the time of the search. There must be no deviation.

**NOTE:** A search warrant is valid only for a period of 10 days from the date of its issuance appearing on the search warrant.

**GR:** A search warrant may only be conducted at daytime. It may only be implemented at daytime.

**XPN:** When there is a specific order in the search warrant stating that it can be conducted at any time of the day or night. Absence of such order in the said search warrant, a search warrant can only be implemented at daytime.

***3. By using excessive severity in executing a search warrant legally procured***

The public officer is said to have employed excessive severity in the implementation of the search warrant when in the conduct of search, they deliberately caused damage

on the property, they deliberately caused harm or injury to any person in the conduct of the said search.

**XPN:** Under the Rules of Court, the police officers are allowed to break the door or window if at the time they will conduct the search, they are not allowed entry.

## SEARCHING DOMICILE WITHOUT WITNESSES (ART. 130)

**Art. 130.** ***Searching domicile without witnesses.*** — The penalty of arresto mayor in its medium and maximum periods shall be imposed upon a public officer or employee who, in cases where a search is proper, shall search the domicile, papers or other belongings of any person, in the absence of the latter, any member of his family, or in their default, without the presence of two witnesses residing in the same locality.

Committed by conducting a search in the absence of the owner of the house, or any member of his family, or two witnesses residing in the same locality.

**ELEMENTS:**

1. The offender is a public officer or employee;
2. The offender is armed with search warrant legally procured;
3. The offender searches the domicile, papers or other belongings of any person; and,
4. The search is done in the absence of such person, or any member of his family, or in their default, without the presence of two witnesses residing in the same locality

Under **Art. 128**, it is violated because a police officer conducted a search in the absence of a search warrant. However, there are instances where the public officer violated the domicile even if he is armed with a search warrant. These instances are provided under **Arts. 129** and **130**.

**Ways of Violation of Domicile even if armed with a Search Warrant**

1. By procuring a search warrant without just cause; (Art. 129)
2. By exceeding his authority; (Art. 129)
3. By using unnecessary severity in executing a search warrant legally procured; (Art. 129) or
4. By conducting a search in the absence of the owner of the house, or any member of his family, or two witnesses residing in the same locality. (Art. 130)

Under Article 130, the said peace officer armed with a legally procured search warrant searched the dwelling, searched the domicile of another in the absence of the owner of the house or any member of his family or any two witnesses residing in the same locality.

**Hierarchy of Witnesses**

Under the Rules of Court, under Rule 126 of the Rules of Criminal Procedure in relation to Article 130 of the RPC, it is provided that there is a hierarchy of witnesses who must be present in the conduct of the search:

1. Owner of the house himself.

2. It is only in the absence of the owner that the search may be witnessed by any member of his family

3. it is only in the absence of the owner or any member of his family that the law requires that there must be two witnesses residing in the same locality

Hence, the moment the owner is there, his presence will suffice. Only he is required to be present in the conduct of the search. No need for any member of his family, no need for any two witnesses because the owner is there. Only he is required to witness the conduct of the search the moment the owner is there. It is only in his absence that any member of the family or any two witnesses residing in the same locality is required by law to be present in the conduct of the said search.

**GR:** If the owner of the house was present, he should be the one who shall witness the conduct of the search. No need for any person. It is only in his absence that a member of his family or the two witnesses residing in the same locality can witness the conduct of the search.

**XPN:** In case of drugs under RA 9165. If what is the subject of search is drugs, under Section 21, the following must be present:
1. Presence of representative from DOJ or media; and,
2. Any elected public official.

**Q: Is there such a crime as illegal search of a motor vehicle?**

**A:** NO. In the case of **Galvante vs. Casimiro**, the SC said that there is no such crime punished by RPC. What we have is searching for a dwelling, not a motor vehicleThe SC said that a criminal complaint for illegal search of a motor vehicle is not cognizable by the Office of the Ombudsman because illegal search is not a criminal offense under the RPC. There is nothing in the RPC which punishes illegal search of a motor vehicle.

What is being punished is only the conduct of a search inside a dwelling – inside the premises, and not inside the motor vehicle. If the owner of the motor vehicle has been damaged by the illegal search, the proper action is a civil action for damages and not a criminal complaint for illegal search which cannot be recognized by the Office of the Ombudsman because it is not a criminal offense under the RPC.

**Q: What if Police Officer X, a neophyte Police Officer in the area was conducting a patrol when he noticed that the door of Y's house was open. He knew that Y was engaged in drug peddling so he entered Y's house. Nobody was inside the room. He was curious so he opened the cabinets, and began opening the drawers. He found transparent plastic sachets containing white crystalline substance which based on his experience is shabu. He reported it to the Chief PNP. They went to the Court to apply for a search warrant. During the application for a search warrant, Police Officer X testified under oath that he went inside because the door is open and that he also saw from the outside that on top of the table there were plastic sachets containing white crystalline substance. Police Officer X told the Judge that based on his experience, he knew that those crystalline substances are shabu. The Judge believed and issued the search warrant. Police Officers armed with the search warrant raided Y's house and opened the said cabinets, and saw the plastic sachets of shabu – inventoried, taken photographs, marked and thereafter brought to the Police Station and to the PNP crime laboratory tested positive for methamphetamine hydrochloride. So, they filed a case for illegal possession of dangerous drugs against Y. Y wanted to file a counter charge against Police Officer X. Y felt his rights have been violated. What case/s may Y file against Police Officer X?**

**A:** Y can file against Police Officer X a case of Violation of Domicile under Article 128 of the RPC. All the elements of violation of domicile under Article 128 of the RPC are present.

*First*, X is a police officer acting under a color of authority. Although he is vested by law to execute a search, at the time of the search he is not armed with a search warrant.

*Second*, he entered the dwelling of Y. Although the door was opened and the entry could not be said that it was against the will of Y. However, upon entering, he searches without asking for the previous consent of the owner. He opened the drawers of each and every cabinet. Without asking for permission, without asking for the previous consent of Y. That falls under a violation of Article 128, second act, by searching papers and effects found therein without obtaining previous consent of owner.

Hence, Y can file a case of Violation of Domicile under Article 128, second act against Police Officer X.

Y can also file the separate crimes of Perjury under Article 183 and violation of Article 129, Maliciously Obtaining a Search Warrant.

Police Officer X is liable for Perjury. In his testimony under oath in the application or the said search warrant, X perjured himself when he stated that from the outside, he saw from on the top of the table, plastic sachets containing white crystalline substances. Because the truth was he entered the house, opened the drawer, and it was inside the drawer that he found the said white crystalline substance.

To obtain the said search warrant, Police Officer X perjured himself. Although perjury is a necessary means in order to procure the said search warrant without just cause, these two crimes, violation of Article 183, Perjury, and violation of Article 129 cannot be complexed because it is expressly provided under Article 129 that the liability for procuring a search warrant without just cause is in addition to the liability attaching to the offender for the commission of any other offense.

Although perjury was a necessary means to obtain a search warrant without just cause, although perjury was a necessary means to commit a violation of Article 129, you cannot complex these two crimes. They should be charged separate and distinct from each other. Reason for that is that by express provision of Article 129, the liability for procuring search warrant without just cause is in addition to the liability attaching to the offender for the commission of any other crime.

**Q: The search warrant states, "People of the Philippines v. Cong. Arnie Teves for violation of R.A. No. 10591 Illegal Possession of Loose Firearms. The undersigned here, by order, mandates peace officers to**

**seize and confiscate in the house of Cong. Teves located in etc. etc. the following arms and ammunition." The police officers went to his house, but Teves was not there. They raided the houses armed with a search warrant issued by the court. They took pistols, firearms, high-powered firearms, high caliber pistols. When they opened the cabinet, they saw P70M cash. They took all the armalites, all the firearms, all the pistols, and they also took the P70M cash. These police officers inventoried the firearms seized. However, they could not arrest Teves because he was not there. In case Teves arrives, files a complaint for violation of domicile under Art. 129, can the police officers be held liable?**

**A:** YES, they are liable for Art. 129 violation of domicile under the second act. The police officers exceeded their authority when they took the cash. They have no authority to take the cash even if it is a product of the crime because it was not part of the search warrant. The search warrant against Cong. Teves is for violation of RA 10591 Illegal Possession of Loose Firearms, and cash is not a part of ammunition and firearms.

**Q: A search warrant is issued, "People of the Philippines v. X for illegal possession of dangerous drugs. The police officers are hereby commanded to search the house of X, and to seize and confiscate dangerous drugs (shabu) as well as drug paraphernalia and other things involving dangerous drugs." The police officers went to the place of X around 5:00 in the afternoon. They know that X sells drugs secretly using his motorcycle. When they looked at the yard, the motorcycle was not there. So, they knew that X was not yet in the house. In order to be sure, they inquired from the helper, "Is X already in?" The helper said, "Sir, wala pa po eh." They asked what time does he arrive home and the helper responded that X arrives around 7:00 PM. So, the officers waited. Past 8:00 PM, a motorcycle arrived. They moment X parks his motorcycle inside his residence, the police officers immediately told X, "You are under arrest. There is a search warrant." He was immediately placed in handcuffs and thereafter, they brought him inside his house.**

**While he was inside the house, he was told to sit down. The police officer asked, "You read this search warrant? Where is your room? We are going to conduct a search in your house." So, X brought the police officer to his room. Aside from the helper, he lives alone in the said house.**

**After the police officer had been shown the house, they brought back X to the door and was told to sit. X was being guarded by another police officer. He was further told to stay there as they will conduct a search on his house. The search was witnessed by the barangay chairman. They found a bag which contains 10-12 plastic sachets of shabu. The same was inventoried and X was arrested. They filed a case against X for violation of RA 9165. The counsel of X, his brother, filed a countercharge against the police officers for violation of domicile under Arts. 129 and 130.**

**A:** The police officers are liable of violation of domicile under Art. 129 because they exceeded the authority in the search warrant, if there is no express statement in the search warrant that it can be conducted at any time of the day or night, then it can only be served at day time.

In this case, they served it past 8:00 in the evening. Therefore, they exceeded the authority in the search warrant, they violated the second act under Art. 129.

If according to the helper, X only arrives late at night, STILL they should not have proceeded with the search, instead they should go back to the courts and file a motion to AMEND the said search warrant, then the Court will now amend it and state that the search can already be conducted anytime of the day or night. But without that, they cannot serve the search warrant at night.

The police officers are also liable of violation of domicile under Article 130. Article 130 provides for a hierarchy of witnesses who must be present in the conduct of the search. The law says it must be witnessed by the owner of the house, it is only in the absence of the owner of the house that it must be witnessed by any member of his family. It is only in the absence of the owner of the house or any member of his family that there must be 2 witnesses residing from the same locality.

In the problem, the owner of the house was there, but he was not allowed to witness the said search. Therefore, the said search was conducted in violation of Art. 130 and any evidence confiscated will be inadmissible against the owner of the house for being fruits of poisonous tree under the exclusionary rule in Political Law or Remedial Law.

In the case of **Tan v. People**, the Supreme Court said that the said evidence is inadmissible and the said peace officer committed violation of Article 130.

The police did the search, based on the said search warrant issued by the court, is just the first room inside the house. When they reached the said place after the same operation,

the police officers immediately handcuffed Jasper. After he was handcuffed, that was the time the police officers served the search warrant. They searched the room of Jasper in the presence only of the barangay captain. Jasper was not brought to his room in order to observe and witness the conduct of the search. He did not witness the said search.

The Supreme Court said such procedure of the police officer violated Section 8, Rule 126 of the Rules of Court, and therefore it is punishable under Article 130 of the RPC.

The Supreme court reiterated that only in the absence of either the local occupant of the premises, or any member of his family can the search be observed by 2 witnesses residing in the same locality.

The Supreme Court said the police officers conducting the search do not have the discretion to substitute their choice of witnesses to those witnesses prescribed by the Rules of Court and by Article 130.

Hence, because he said search is said to be an unlawful search and the things seized are inadmissible in evidence.

## PROHIBITION, INTERRUPTION AND DISSOLUTION OF PEACEFUL MEETINGS (ART. 131)

**Art. 131.** ***Prohibition, interruption and dissolution of peaceful meetings.*** — The penalty of prision correccional in its minimum period shall be imposed upon any public officer or employee who, without legal ground, shall prohibit or interrupt the holding of a peaceful meeting, or shall dissolve the same.

The same penalty shall be imposed upon a public officer or employee who shall hinder any person from joining any lawful association or from attending any of its meetings.

The same penalty shall be imposed upon any public officer or employee who shall prohibit or hinder any person from addressing, either alone or together with others, any petition to the authorities for the correction of abuses or redress of grievances

**ELEMENTS:**

1. The offender is a public officer or employee

2. The offender committed any of the following acts:
    a. By prohibiting or by interrupting, dissolving, without legal ground, the holding of a peaceful meeting, or by dissolving the same. (any peaceful meeting);

    b. By hindering any person from joining any lawful association or from attending any of its meetings; or,

    c. By prohibiting or hindering any person from addressing, either alone or together with others, any petition to the authorities for the correction of abuses or redress of grievances.

    **NOTE:** These acts are punishable because they go against the bill of rights. Hence, when committed by a public officer or employee and done with abuse, they are considered as criminal acts.

**NOTE:** It is necessary that the meeting was done peacefully; otherwise, the police officer has the right to dissolve the same. Likewise, the association or meeting must be for a valid purpose; otherwise, the police officer has the right to hinder a person from joining the meeting.

**Permit**

This is in the exercise of the freedom of speech, freedom of expression and freedom of assembly. However, these 3 freedoms are not absolute. The Supreme Court has enjoined the power of the State to regulate these meetings through permits.

Before any of these peaceful meetings for a lawful purpose may be held in a public place, there must be a permit coming from the local authority of the place. The permit is only to regulate the said meeting and not to prohibit it. Regulate as to the time, place and to the date, so that the public would not be in inconvenience.

## INTERRUPTION OF RELIGIOUS WORSHIP (ART. 132)

**Art. 132.** ***Interruption of religious worship.*** — The penalty of prision correccional in its minimum period shall be imposed upon any public officer or employee who shall prevent or disturb the ceremonies or manifestations of any religion.

If the crime shall have been committed with violence or threats, the penalty shall be prision correccional in its medium and maximum periods..

**ELEMENTS:**

1. This is committed by an offender who is again a public officer or employee.
2. Then there is a religious ceremony or manifestations of any religion that is about to take place or are going on.
3. That the offender prevents or disturbs the said religious worship or religious ceremony.

**Qualifying Circumstance**

If the said act was committed by means of violation or threat, the penalty is qualified. Therefore, if the act was done by means of intimidation, you do not file a separate charge for grave threat. It is simply a violation of Article 132 with a penalty which is qualified.

## OFFENDING RELIGIOUS FEELINGS (ART. 133)

**Art. 133.** ***Offending the religious feelings.*** — The penalty of arresto mayor in its maximum period to prision correccional in its minimum period shall be imposed upon anyone who, in a place devoted to religious worship or during the celebration of any religious ceremony shall perform acts notoriously offensive to the feelings of the faithful.

**ELEMENTS:**

1. Offender is any person;

2. That the acts must be notoriously offensive to the feelings of the faithful; and,

3. The said offender performs acts:
   a. in a place devoted to religious worship, or
   b. during the celebration of any religious ceremony.

   **NOTE:** If the said act was committed inside a church, even if there was no religious ceremony, the crime will already arise.

**Offender**

Any person may be an offender. Whether the offender is a public officer or employee, or a private individual, if the act is committed, the offended party would feel the same. The kind of offender is immaterial.

**NOTE:** From Arts. 124 to 132 under Title Two, the offender can ONLY be a public officer or employee. The only exception is Article 133, offending the religious feelings wherein the offender can either be a public officer or employee or a private individual. The reason is, whoever may be the offender, a public officer or employee or a private individual, there will be the same offense made on the feelings of the faithful.

**Acts must be notoriously offensive to the feelings of the faithful**

These acts go against the dogma, ritual, practice of a particular religion and the offender ridicules, mocks, or causes damage to the object of veneration of the said religion.

It should be notoriously offensive. It means that it would offend not only a particular religion but also all other religions.

In **Celdran v. People**, during the celebration of the second anniversary of the May They Be One Campaign and the launching of the Hand Written Bible which coincided with the feast of St. Jerome, dignitaries of the catholic church and those of different religion gathered in Manila Cathedral. While Brother Tirona was reading a passage from the Bible, Celdran, in black suit and a hat, went to the center of the aisle and in front of the altar suddenly brought out and raised a placard with the word "DAMASO." Commotion ensued when Celdran started shouting while inside the church disrupting the celebration.

First, the Court ruled that the issue of whether the act complained of is offensive to the religious feelings of the Catholics, is a question of fact which must be judged only according to the feelings of the Catholics and not those of other faithful ones, for it is possible that certain acts may offend the feelings of those who profess a certain religion, while not otherwise offensive to the feelings of those professing another faith.

Second, the Court ruled that the acts of Celdran were meant to mock, insult, and ridicule those clergy whose beliefs and principles were opposed to his own.

Celdran filed a motion for reconsideration arguing that Art. 133 must be declared unconstitutional on the ground of overbreadth or vagueness. It was argued that the terms "notoriously offensive" and "religious feelings" are vague.

However, according to the Supreme Court, Art. 133 cannot be subjected to facial invalidation because it does not encroach on the freedom of expression as it does not regulate speech. There is nothing in the provision which imposes criminal liability on anyone who wishes to express dissent on another religious group. Second, the

terms "notoriously offensive" and "religious feelings" are not vague as these are words commonly used.

Also, jurisprudence provides for examples of acts which are considered notoriously offensive to religious feelings. Moreover, the act of Celdran in purposely dressing in Jose Rizal costume while raising a placard and disrupting the celebration attended by the dignitaries of the catholic church, among others, evinces his intent to cause dishonor or offend the church.

## TITLE 3: CRIMES AGAINST PUBLIC ORDER

## CHAPTER 1: REBELLION, SEDITION AND DISLOYALTY

### REBELLION (ART. 134)

**Art. 134. *Rebellion or Insurrection. — How Committed.*** — The crime of rebellion or insurrection is committed by rising publicly and taking arms against the Government for the purpose of removing from the allegiance to said Government or its laws, the territory of the Philippine Islands or any part thereof of any body of land, naval or other armed forces, or of depriving the Chief Executive or the Legislature, wholly or partially, of any of their powers or prerogatives.

**ELEMENTS:**

1. That there be –
   a. Public uprising; and
   b. Taking up of arms against the government;

2. The purpose of the public uprising or movement is to attain any of the following –
   a. To remove from the allegiance to the Philippine Government or its laws –
      i. The territory of the Philippines or any part thereof; or
      ii. Any body of land, naval or other armed forces; or

   b. To deprive the Chief Executive or Congress wholly or partially, of any of their powers or prerogatives.

**NOTE:** The essence or gravamen of rebellion is armed public uprising.

### COUP D'ETAT (ART. 134-A)

**Article 134-A. *Coup d'etat; How committed.*** — The crime of coup d'etat is a swift attack accompanied by violence, intimidation, threat, strategy or stealth, directed against duly constituted authorities of the Republic of the Philippines, or any military camp or installation, communications network, public utilities or other facilities needed for the exercise and continued possession of power, singly or simultaneously carried out anywhere in the Philippines by any person or persons, belonging to the military or police or holding any public office of employment with or without civilian support or participation for the purpose of seizing or diminishing state power. (As amended by R.A. 6968).

Coup d'etat is committed when the offenders are members of the military or police, or those holding any public office or employment, with or without civilian support.

They commit a swift attack accompanied by violence, intimidation, threat, strategy or stealth, directed against the duly constituted authorities of the Republic of the Philippines, or any military camp or installation, communications network, public utilities or other facilities which are needed for the exercise and continued possession of powers, carried out singly or simultaneously anywhere in the Philippines for the purpose of seizing or diminishing state power.

**ELEMENTS:**

1. That the offender is a person or persons belonging to the military or police or holding any public office or employment, with or without civilian support;

2. That it is committed by means of a swift attack accompanied by violence, intimidation, threat, strategy or stealth;

3. That the attack is directed against:
   a. duly constituted authorities of the Republic of the Philippines,
   b. or any military camp or installation,
   c. communication networks,
   d. public utilities, or
   e. other facilities needed for the exercise and continued possession of power;

4. The said swift attached was carried out singly or simultaneously anywhere in the Philippines;

5. That the purpose of the attack is to seize or diminish state power

The gravamen of coup d'etat is the swift attack directed against the duly constituted authorities.

**Rebellion vs. Coup d'etat**

| REBELLION | COUP D'ETAT |
|---|---|
| The gravamen of rebellion is an armed public uprising. | The gravamen is a swift attack directed against the |

| | |
|---|---|
| The public uprising is always coupled with taking up arms against the government. | duly constituted authorities of the Philippines. |
| It is a crime of the masses. It is a crime of the public, of the civilians.<br><br>It is akin to a civil war. | It suffices that it be committed by any members of the military, the police or any public officer or employee.<br><br>Civilian support is immaterial. |
| To overthrow the government and to replace it with the government of the rebels. | To diminish state powers. |
| It can only be committed by means of force or violence because it requires the carrying of arms. | It may be committed not only by means of force or violence, but also by means of intimidation, threat, strategy or stealth. |

**Theory of Absorption / Political Offense Doctrine**

There is a theory of absorption in rebellion or coup d'etat, also otherwise known as the political offense doctrine.

Common crimes, which are committed in furtherance of, incidental to or in connection with the crime of rebellion or coup d'etat, are divested of their common complexion and they assume the political complexion of the crimes to which they are mere ingredients. Hence, the commission of these common crimes are merely absorbed by the political crimes of rebellion and coup d'etat.

Any ordinary act assumes a different nature by being absorbed in the crime of rebellion. Thus, when a killing is committed in furtherance of rebellion, the killing is not homicide or murder. Rather, the killing assumes the political complexion of rebellion as its mere ingredient and must be prosecuted and punished as rebellion alone. (Ocampo v. Abando, G.R. No. 176830, 11 Feb. 2014)

The so-called theory of absorption in crimes of rebellion or in crimes of coup d'etat provides that if common crimes are committed incident to or in furtherance of the crime of rebellion or coup d'etat, these common crimes will simply be absorbed by the said crime of rebellion or coup d'etat.

Common crimes like murder, homicide, physical injuries, burning of houses or arson – if these are committed in furtherance of, incident to, or in connection with the act of rebellion or in connection with the act of coup d'etat, they will not constitute a separate and distinct charge.

In the case of **Enrile vs. Amin**, the Supreme Court said that not only common crimes committed in furtherance of, incidental to or in connection with the crime of rebellion or coup d'etat may be absorbed by these political crimes. Even violations of special penal laws, if their violations are done in furtherance of, incidental to or in connection with rebellion or coup d'etat, they also be absorbed.

The Supreme Court said that the act done by former head of the AFP, Enrile, of harboring or concealing Gringo Honasan is considered absorbed in the crime of rebellion. There is no need to prosecute him for a separate and distinct charge of violation of PD 1829 Obstruction of Justice.

**Necessity for evidence that common crimes were committed in furtherance of rebellion or coup d'etat**

Before the theory of absorption in rebellion and coup d'etat however, may lie and absorb these common crimes, it is necessary that there must be evidence showing in what way the commission of these common crimes has fostered or has promoted the ideals of the rebels

There must be evidence presented in court that the commission of these common crimes are indeed necessary to promote the ideals of the said rebels. Otherwise, the commission of these common crimes will constitute a separate and distinct charge and will not be absorbed by rebellion or by coup d'etat.

**Q: X is a PNP officer assigned in Quezon Province. The place is perpetuated by the members of the NPA. When he was on his way to the police station, unknown to him, Y an alleged member of the NPA saw him. Y surreptitiously and discreetly followed him. Before X was able to enter the police station, Y repeatedly stabbed him until he died. Y is now being prosecuted for the crime of murder. Y alleged that if ever he shall be held liable it is for the crime of rebellion because: 1) he is a member of the NPA and 2) the killing of Y was done for the promotion of the ideals of the NPA. Hence, he shall be liable, not for murder but rather for the crime rebellion.**

**A:** The argument raised is wrong. In the case of **People v. Lovedioro**, the Supreme Court said that the mere self-serving statement that the accused is a member of the NPA or any rebel group, mere self-serving statement that the accused killed the victim was done to promote the ideals of the rebels will not suffice. Further evidence must be received in court to show in what manner the said killing promoted the ideals of the rebels. In the said case,

the Supreme Court downgraded the crime to homicide, but not rebellion.

In Ocampo v. Abando, A mass grave was discovered by some members of the Philippine Army in Leyte. When they saw the mass grave, it contained skeletal remains of individuals. The AFP believed that these individuals were said to be victims by the CPP/NPA/NDFP to purge their ranks of suspected military informers – they killed these alleged to be informers in favor of the government. Because of this, fifteen (15) counts of murder were filed against fifty-four (54) members of the CPP/NPA/NDFP, which included Saturnino Ocampo, et al.

At that time, Ocampo and other members of the CPP/NPA/NDFP were already facing a case of rebellion before the RTC of Makati. And so, when they learned that there was this case of 15 counts of murder filed against them, they moved that under the political offense doctrine, these alleged common crimes of murder should already be absorbed by the crime of rebellion that they are currently facing at the RTC of Makati. Therefore, they moved that these murder charges filed against them be dismissed because it should already be absorbed by the so-called political offense doctrine.

The SC ruled, however, that under the political offense doctrine, common crimes, perpetrated in furtherance of the political offense of rebellion or the political offense of coup d'etat are divested of their character as "common" crimes and they assume the political complexion of the main crime which is rebellion or coup d'etat. These common crimes cannot be punished separately from the principal offense, neither can they be complexed.

According to the Supreme Court, the moment these killings are committed in furtherance of rebellion, then the killing will not be homicide or murder – they will simply be absorbed by the crime of rebellion under the political offense doctrine because they are merely ingredients in the commission of the crime of rebellion. However, the Supreme Court said that in this case, these 15 counts of murder cannot be dismissed. They cannot simply be absorbed by the crime of rebellion being faced by Ocampo, et al. The reason is that the crime of rebellion within the jurisdiction of the RTC of Makati has not yet even started. Therefore, no evidence had yet been presented in court to show in what manner the commission of these fifteen acts of killing has promoted the ideals of these rebels. Therefore, the Supreme Court said it cannot yet be absorbed.

Furthermore, the SC ruled that the political offense doctrine is not a ground to dismiss the charge against petitioners prior to a determination by the trial court that the murders were committed in furtherance of rebellion. When the political offense doctrine is asserted as a defense in the trial court, it becomes crucial for the court to determine whether the act of killing was done in furtherance of a political end, and for the political motive of the act to be conclusively demonstrated.

The burden of demonstrating political motivation must be discharged by the defense, since motive is a state of mind which only the accused knows. The proof showing political motivation is adduced during trial where the accused is assured an opportunity to present evidence supporting his defense. (Ocampo v. Abando, supra.)

**NOTE:** In the said case, J. Leonen concurred that these 15 counts of murder cannot be absorbed but he has a separate concurring opinion. Although he concurred, his reasoning is different. According to Justice Leonen, these mass killings are considered as genocide – a crime against international humanitarian law. According to him, crimes against international humanitarian law such as genocide can never be absorbed by the crime of rebellion. You cannot kill a mass number of people, you cannot commit genocide and it will only be absorbed by the political offense of rebellion. So, he (J. Leonen) concurred, however, he has a different reasoning.

**Q: PO1 X was assigned in a particular town in Quezon, which is penetrated by NPAs. PO1 X is on his way to the PNP station. His tour of duty was 7 o'clock of that morning until 7 o'clock of the next day. He was walking towards the PNP station and was already in his uniform. While he was walking, he did not notice that in a store which was already open, there was Y, an alleged member of the NPA, who was drinking a cup of coffee alone. The moment PO1 X passed by, Y immediately saw PO1 X, who was in his uniform. And so, Y placed his cup of coffee down and secretly and slowly followed PO1 X.**

**When police officer X was already nearing the PNP station, Y ran at police officer X and repeatedly stabbed him at the back. He did not stop until police officer X was dead. At the time of the stabbing, police officer X was able to give a loud cry for help. And so, other police officers coming from the police station came out and they saw Y stabbing police officer X. Upon seeing the police, Y immediately ran. The police officers chased him and Y, the said member of the CPP-NPA, was arrested. He was charged with the crime of murder.**

**In his counter-affidavit, Y alleged that if ever he is to be charged in court, it should not be for the heinous crime of murder, rather it should be for the political offense of rebellion. According to him: First, he is a member of the NPA. Second, since rebellion is a continuing crime, the fact that the NPA already started a rebellion once, it continued. Third, he committed the act of killing police officer X in order to promote the ideals of the NPA.**

**How should the public prosecutor resolve the case?**

**A:** The public prosecutor should indict Y, the alleged member of the NPA, for the crime of murder and not for the political offense of rebellion. There was yet no showing in what manner the said act of killing has ideals of the NPA. The Supreme Court said mere self-serving statements coming from the accused that he is a member of the NPA, or mere self-serving statements coming from the accused in his counter-affidavit that he did the act of killing to promote the ideals of the NPA will not suffice. There must be additional evidence to show if indeed he is a member of the NPA and if indeed the said act of killing was done to promote the ideals of the rebels. Absent this further evidence, the crime to be charged should be the crime of murder and not the political offense of rebellion.

**Q: Rebellion and murder both have the same penalty. Why would one insist for rebellion instead of murder?**

**A:** This is because if it is a political crime, it is easy to get out by just applying for amnesty. If it is a political crime, the moment there is an amnesty proclamation, they can immediately apply – it is usually done during Christmas or any other occasion. They can immediately get out. This is unlike if they are convicted of a heinous crime or are being charged of a heinous crime. They cannot avail of the so-called amnesty which is for political offenses.

This is why even if they have just the same penalty, many would insist that it should be rebellion instead of the crime of murder. But evidence must first be presented.

## SEDITION (ART. 139)

**Article 139.** ***Sedition; How committed.*** - The crime of sedition is committed by persons who rise publicly and tumultuously in order to attain by force, intimidation, or by other means outside of legal methods, any of the following objects:

1. To prevent the promulgation or execution of any law or the holding of any popular election;
2. To prevent the National Government, or any provincial or municipal government or any public officer thereof from freely exercising its or his functions, or prevent the execution of any administrative order;
3. To inflict any act of hate or revenge upon the person or property of any public officer or employee;
4. To commit, for any political or social end, any act of hate or revenge against private persons or any social class; and
5. To despoil, for any political or social end, any person, municipality or province, or the National Government (or the Government of the United States), of all its property or any part thereof.

**ELEMENTS:**

1. That the offenders rise publicly and tumultously;
2. That they employed force, intimidation or any other means outside of legal methods;
3. That they said public uprising is done in order to obtain the following purposes –
    a. To prevent the promulgation or execution of any law or the holding of any popular election;
    b. To prevent the National Government, or any provincial or municipal government or any public officer thereof from freely exercising its or his functions, or prevent the execution of any administrative order;
    c. To inflict any act of hate or revenge upon the person or property of any public officer or employee;
    d. To commit, for any political or social end, any act of hate or revenge against private persons or any social class; and
    e. To despoil, for any political or social end, any person, municipality or province, or the National Government, of all its property or any part thereof.

**Sedition v. Rebellion**

| SEDITION | REBELLION |
|---|---|
| The public uprising must necessarily be coupled by taking up arms against the government. | There is no requisite that the protesters be armed. |

| | |
|---|---|
| | It suffices that they carried on the act of sedition tumultuously using unlawful methods or means. |
| The purpose of rebellion is always political in nature – to overthrow the government and to replace it with the government of the rebels. | The purpose can either be political or social in nature.<br><br>It can be either going against a law or going against a public officer or employee. |

**SUMMARY**

| *CRIME* | CONSPIRACY | PROPOSAL | INCITE |
|---|---|---|---|
| REBELLION | ✔ | ✔ | ✔ |
| COUP D'ETAT | ✔ | ✔ | ✘ |
| SEDITION | ✔ | ✘ | ✔ |

There is no crime of proposal to commit sedition and inciting to commit coup d'etat. The crimes of proposal to commit sedition and inciting to commit *coup d'etat* are not punishable acts under the Revised Penal Code.

In cases of *Inciting to Rebellion* and *Inciting to Sedition*, the offender must not be a participant in a Rebellion or Sedition, because if he is, the proper charge is Rebellion or Sedition and not merely inciting.

## INCITING TO REBELLION (ART. 138)

**Article 138. *Inciting to rebellion or insurrection.*** - The penalty of prision mayor in its minimum period shall be imposed upon any person who, without taking arms or being in open hostility against the Government, shall incite others to the execution of any of the acts specified in Article 134 of this Code, by means of speeches, proclamations, writings, emblems, banners or other representations tending to the same end. (Reinstated by E.O. No. 187)

**ELEMENTS:**

1. The offender is not in open hostility or does not take up arms against the Government;
2. He incites others in order to publicly uprise for any of the purposes of rebellion to overthrow the government.
3. The inciting is done by means of speeches, proclamations, writings, emblems, banners or other representations tending to the same end.

## INCITING TO SEDITION (ART. 142)

**Article 142. *Inciting to sedition.*** - The penalty of prision correccional in its maximum period and a fine not exceeding 2,000 pesos shall be imposed upon any person who, without taking any direct part in the crime of sedition, should incite others to the accomplishment of any of the acts which constitute sedition, by means of speeches, proclamations, writings, emblems, cartoons, banners, or other representations tending to the same end, or upon any person or persons who shall utter seditious words or speeches, write, publish, or circulate scurrilous libels against the (Government of the United States or the Government of the Commonwealth of the Philippines) or any of the duly constituted authorities thereof, or which tend to disturb or obstruct any lawful officer in executing the functions of his office, or which tend to instigate others to cabal and meet together for unlawful purposes, or which suggest or incite rebellious conspiracies or riots, or which lead or tend to stir up the people against the lawful authorities or to disturb the peace of the community, the safety and order of the Government, or who shall knowingly conceal such evil practices. *(Reinstated by E.O. No. 187)*

Whether it is inciting to rebellion or inciting to sedition, the offender must not yet be a participant in a rebellion or in a sedition. He must not be a participant, because if he is already participating in a rebellion or sedition, then the proper charge is violation of Art. 134 (Rebellion) or Art. 139 (Sedition) because he is already a participant in the ongoing rebellion or sedition. Therefore, in case of inciting to rebellion or inciting to sedition, the offender is not yet a participant in the said rebellion or sedition.

Inciting to rebellion is different from proposal to commit rebellion In case of inciting to rebellion, the act of inducing others to publicly uprise for any of the purposes of rebellion is done PUBLICLY (i.e., via speeches, proclamations, writings, emblems, banners or other representations tending to the same end). Whereas, in case of proposal to commit rebellion, the act of inciting or inducing people to commit rebellion is done SECRETLY, not in public.

**Three Ways to Commit Sedition**

1. By inciting others to the accomplishment for any of the purposes of sedition through speeches,

proclamations, writings, emblems, cartoons, banners, or other representations tending to the same end;

2. By uttering seditious words or speeches which tend to disturb the public.

3. By writing, publishing, or circulating scurrilous libels against the government or public officer or employee tending to to disturb the public.

**ELEMENTS:**

1. The offender is not a participant in a sedition;
2. He incites others to publicly uprise for any of the purposes of sedition;
3. The inciting is done by means of speeches, proclamations, writings, emblems, cartoons, banners, or other representations tending to the same end.

**NOTE:** The elements were not discussed by Prosec. but included in the PY trans.

**Inciting to Rebellion v. Proposal to Commit Rebellion**

| INCITING TO REBELLION | PROPOSAL TO COMMIT REBELLION |
|---|---|
| The act of inducing a person to commit the act of rebellion is done publicly. | The act of inciting – inducing a person to commit rebellion is done secretly and not in public. |

**Q: There is an ongoing rebellion. Thousands of people were participating in this public uprising in Metro Manila, Cebu, and Davao. There was this public uprising all over the country. In Metro Manila, thousands of people participated. Five truckloads of police officers arrived and police officers alighted. Upon coming down from the said truck, they immediately arrested as many participants as they could in the said ongoing public uprising. They placed handcuffs on each one of them and arrested each one of them. Among those arrested was X. He was placed with handcuffs, informed of his constitutional rights and was frisked. When X was frisked, the police officer found a caliber .45 pistol tucked in his waist. It was unlicensed, and there was no registration. Because of that, aside from the crime of rebellion, X was also charged with violation of R.A. No. 10591 (Illegal Possession of Loose Firearms). Are the charges correct?**

**A:** No, the charges are not correct.

The proper charge is only rebellion. Under Sec. 29, 2nd par. of R.A. No. 10591, the law provides that if the use of a loose firearm is in furtherance of, or incident to, or in connection with the crime of rebellion or insurrection, or attempted coup d'etat, they are simply absorbed by the crime of rebellion or insurrection, or attempted coup d'etat. In this case, X was a participant in the said rebellion when he was found in possession of the said unlicensed firearms. Since rebellion is a crime committed by taking up of arms, then it is incident to, in furtherance of, or in connection with the crime of rebellion. Therefore, it is simply absorbed. The only case to be filed against X would be rebellion. There is no separate and distinct charge of violation of R.A. No. 10591 because his use of a loose firearm shall simply be absorbed by the crime of rebellion.

**Q: There was a seditious rally ongoing. The protesters applied for a permit, but the City of Manila denied their application for permit. They were protesting the promulgation of a new law. Hundreds of them were participating. It was carried out in violence. They were encouraging people to participate and those who will not, they will box. It was carried out with violence, fear and intimidation. It was a seditious rally. A truck of police officers arrived and thereafter the police officers tried to arrest as many participants as they could. One of the participants arrested was X. He was handcuffed and recited of his constitutional rights. Thereafter, he was frisked or bodily searched. When he was frisked, the police officers found a caliber .45 pistol tucked in his waist. It was unlicensed and unregistered. And so, he was charged with two crimes – violation of Art. 139, RPC (Sedition) and violation of R.A. No. 10591 (Illegal Possession of Loose Firearms). Are the charges correct?**

**A:** Yes, the charges are correct.

Under Sec. 29, 2nd par. of R.A. No. 10591, the law provides that if the use of a loose firearm is in furtherance of, or incident to, or in connection with the crime of rebellion or insurrection, or attempted coup d' etat, they are simply absorbed by the crime of rebellion or insurrection, or attempted coup d' etat. In this case, X was a participant in the said rebellion when he was found in possession of the said unlicensed firearms. Since rebellion is a crime committed by taking up of arms, then it is incident to, in furtherance of, or in connection with the crime of rebellion. Therefore, it is simply absorbed. The only case to be filed against X would be rebellion. There is no separate and distinct charge of violation of R.A. No. 10591 because his

use of a loose firearm shall simply be absorbed by the crime of rebellion.

**Q: There was a seditious rally ongoing. The protesters applied for a permit, but the City of Manila denied their application for permit. They were protesting the promulgation of a new law. Hundreds of them were participating. It was carried out in violence. They were encouraging people to participate and those who will not, they will box. It was carried out with violence, fear and intimidation. It was a seditious rally. A truck of police officers arrived and thereafter the police officers tried to arrest as many participants as they could. One of the participants arrested was X. He was handcuffed and recited of his constitutional rights. Thereafter, he was frisked or bodily searched. When he was frisked, the police officers found a caliber .45 pistol tucked in his waist. It was unlicensed and unregistered. And so, he was charged with two crimes – violation of Art. 139, RPC (Sedition) and violation of R.A. No. 10591 (Illegal Possession of Loose Firearms). Are the charges correct?**

**A:** Yes, the charges are correct. Under Section 29, par. 3 of RA 10591, the law provides that, if the use of loose firearms is not in furtherance of, not incident to the commission of a crime, then it shall constitute a separate and independent charge.

Sedition is committed without use of firearms. There is no requisite in the elements that it be coupled with taking up of arms. Therefore, the fact that X was found in possession of an unlicensed firearm shall constitute a separate and distinct charge. It is not absorbed because under Section 29, par 2. of RA 10591, the law provides that only two crimes can absorb the use of unlicensed firearms, that is, rebellion or insurrection and attempted coup d'état. Sedition has been removed. Although under the old law on firearms, PD 1866 as amended by RA 8294, sedition absorbs illegal use of firearms, under this new law, RA 10591, sedition has already been erased, deleted, as among the crimes that will absorb illegal possession of loose firearms.

Therefore, since X, aside from participating in the said seditious rally, was found in possession of an unlicensed pistol, he shall be charged separately and distinctly for violation of RA 10591.

**Q: Former President Duterte was arrested and brought to the Hague in the Netherlands for prosecution. A day after his arrest, an incumbent member of the PNP, a police officer, posted a video in his social media saying:**

***"Ako ay isang police officer. Ako ay nangakong magsisilbi sa bayan. Ang aking President ay si Duterte lamang. Kailanman hindi ako susunod sa ating Presidente ngayon. Bangag ngiwi, lango sa droga. Susunod ba kayo sa ganyang presidente. Ang presidente lamang natin ay si Duterte. Anong ginawa niyo kay Duterte? Inalis niyo. Kaya kayo mga kababayan ko, wag kayo sumunod sa present administration. Wag kayo sumunod sa mga taong yan. Lahat yan bangag. Lahat yan under sa droga. Wag maniniwala sa mga namumuno."***

**Through the assets of the government, they were able to determine who this police officer was. What may be filed against the said police officer?**

**A:** He can be charged with Inciting to Sedition. He was uttering scurrilous libels. The seditious speeches were, not only against public officers, but were against the President himself. Therefore, he can be charged and be liable for Inciting to Sedition. He was inflicting any act of hate / revenge encouraging the people to act with hate / revenge against the president.

**Q: What if there is a rebellion ongoing; mass gatherings in Liwasang Bonifacio, Manila. Same gatherings of thousands of people in Cebu, Davao and Cotabato. So, from Luzon, Visayas and Mindanao there were gatherings. It is an act of rebellion. All these people participating therein wanted to overthrow the present administration. Insofar as the thousands of people participating in Liwasang Bonifacio in this public uprising, ten trucks of police officers arrived and they began arresting each and every participant in the said public uprising. Among those arrested are A, B, C, D and E. When they were brought to the police station, they were first bodily searched. Each of them were found in possession of a loose firearm / an unlicensed firearm. What case/s may be filed against A, B, C, D and E?**

**A:** They shall only be charged with one crime and that is the crime of rebellion. Under Sec. 29(2) of RA 10591, if the use of a loose firearm is committed in furtherance of, incident to, or in connection with the crime of rebellion or insurrection or attempted coup d'etat, such use of loose firearm shall be absorbed by the crime of rebellion or insurrection or attempted coup d'etat.

So in this case, only one charge can be filed against A, B, C, D and E. Each of them shall be prosecuted for rebellion and the fact that they are found in possession of a loose firearm is simply absorbed by the crime of rebellion. Not a special

aggravating circumstance. Not a separate distinct charge. Simply absorbed.

**Q: There is a seditious protest along Mendiola. All the banners say, *"Ibalik si Duterte sa Pilipinas, Ibalik!"* It was unruly. They were shouting for the return of the said former president. They were using unlawful means. Passersby were invited to join but they would not join and they would throw bottles at them. So, it was unruly and they had no permit. They applied for a permit before the Office of Mayor Honey Lacuna but the latter denied the same. So, the said rallies were conducted without permit and carried on through unlawful means. The police arrived and arrested participants A, B, C, D and E. When they were frisked, they were each found in possession of loose firearms. What case/s shall be filed against A, B, C, D and E?**
**A:** A, B, C, D and E shall be charged with two crimes. They shall be charged with sedition under Art. 139. Likewise, they shall be charged with Illegal Possession of Loose Firearms under RA 10591. Under Sec. Sec. 29(2) of RA 10591, the amendment brought about by RA 10591 already deleted or erased the word *"sedition."* So, Sedition is no longer a crime which is considered as to absorb the said use of loose firearms. What applies would be the third paragraph of Sec. 29, if the use of loose firearms is not inherent to the commission of the crime it shall constitute a separate and distinct charge. Here, A, B, C, D and E shall be charged with two crimes: Sedition under Art. 139 and Violation of RA 10591.

## CHAPTER 2:
## CRIMES AGAINST POPULAR REPRESENTATION

### ACTS TENDING TO PREVENT THE MEETING OF CONGRESS (ART. 143)

**Article 143.** ***Act tending to prevent the meeting of the Assembly and similar bodies.*** - The penalty of prision correccional or a fine ranging from 200 to 2,000 pesos, or both, shall be imposed upon any person who, by force or fraud, prevents the meeting of the National Assembly (Congress of the Philippines) or of any of its committees or subcommittees, constitutional commissions or committees or divisions thereof, or of any provincial board or city or municipal council or board. *(Reinstated by E.O. No. 187).*

**ELEMENTS:**

1. There is a meeting of Congress or any of its committees or subcommittees, constitutional commissions or committees or divisions thereof, or of any provincial board or city or municipal council or board; and

2. The offender by means of force or fraud, prevented the said meeting.

**NOTE:** The offender can be any person.

**[skipped during lecture but included in PY notes]**

### DISTURBANCE OF PROCEEDINGS (ART. 144)

**Article 144.** ***Disturbance of proceedings.*** - The penalty of arresto mayor or a fine from 200 to 1,000 pesos shall be imposed upon any person who disturbs the meetings of the National Assembly (Congress of the Philippines) or of any of its committees or subcommittees, constitutional commissions or committees or divisions thereof, or of any provincial board or city or municipal council or board, or in the presence of any such bodies should behave in such manner as to interrupt its proceedings or to impair the respect due it. *(Reinstated by E.O. No. 187)*

**ELEMENTS:**

1. There is a meeting of Congress or of any of its committees or subcommittees, constitutional commissions or committees or divisions thereof, or of any provincial board or city or municipal council or board; and

2. The offender either:
    a. disturbs any of such proceedings; or
    b. behaves while in the presence of any such bodies in such manner as to interrupt its proceedings or to impair the respect due it.

**Q: During the height of the pandemic, Congress, particularly the Senate, still work although they no longer went to the Senate Hall. They conduct their committee hearings online. During a hearing, it was the Committee on Appropriations, it was the budget of a department of an office attached to the President. When the said budget was being discussed, aside from the members of the Senate Committee on Appropriations, there was also the head of office of the said office attached (Communications Office) to the office of the President. They were discussing the budget.**

**The Senate Committee Chair noticed that the head of office, W, was standing up, sitting, and roaming around until he received a note. The note came from the Sergeant at Arms stating that, "Sir, it seems that on top of the table of Chairman W is a bottle of wine and a glass, and it seems that he has been drinking that's why he is behaving that way." So, the Senate Committee Chair inquired from Chairman W, "Are you drunk? Is that a bottle of wine on top of your table?" Then, Chairman W denied it. However, the way he answered showed that he was drunk. Because of that, the Senate Committee Chairman on Appropriations dismissed the meeting. They said, "We will cite you in contempt!"**

**Aside from citing him in contempt, can he be charged criminally? Can he be charged of any crime?**

**A:** He can be charged for violation of Article 144 Disturbance of Proceedings. Disturbance of Proceedings is committed when there is a meeting of Congress or any of its committees or subcommittees, constitutional commissions or committees or divisions thereof, or of any provincial board or city or municipal council or board, and the offender disturbed the said proceedings by behaving in such a manner as to interrupt the said proceedings or to impair the respect due it. In this case, this man, he was the head of office and what was being taken up during the said committee hearing was the budget of his office, yet he was there, behaving in such a manner as to disturb the said proceedings. Because of that, the Committee Chair dismissed the said committee hearing for that day.

**PVG:** This is almost a dead provision. I do not know of anyone having been charged although there were many disturbances in the Congress. They will only cite him in contempt. But theoretically, for purposes of the bar exam, he can be charged criminally for violation of Article 144 Disturbance of Proceedings.

**Q: Senator Imee Marcos was in this committee hearing for the circumstances that transpired surrounding the arrest of the former president. There were invitees from the Executive Branch. There was the Committee Chairwoman Senator Imee Marcos and all the other senators. When the chairwoman was explaining the reason behind this investigation, a group of people suddenly stood up from the gallery and they shouted, "Ibalik si Duterte! Ibalik." The Sergeant-In-Arms acted immediately and they were arrested. Aside from being held in contempt, can they be charged criminally?**

**A:** They can be charged with violation of Art. 144, Disturbance of Proceedings. Disturbance of Proceedings is committed when:

1. There is a meeting of Congress or of any of its committees or subcommittees, constitutional commissions or committees or divisions thereof, and

2. The offender either:
    a. disturbs or prevents the said meeting proceedings; or
    b. behaves in such a manner as that will impair the respect due the said members of the Congress.

In this case, these ten people disturbed such proceeding and behaved in such a manner that would impair the respect due to the members of the Congress. Hence, they can be charged with disturbance of proceedings.

## VIOLATION OF PARLIAMENTARY IMMUNITY (ART. 145)

**Article 145.** ***Violation of parliamentary immunity.*** - The penalty of prision mayor shall be imposed upon any person who shall use force, intimidation, threats, or fraud to prevent any member of the National Assembly (Congress of the Philippines) from attending the meetings of the Assembly (Congress) or of any of its committees or subcommittees, constitutional commissions or committees or divisions thereof, from expressing his opinions or casting his vote; and the penalty of prision correccional shall be imposed upon any public officer or employee who shall, while the Assembly (Congress) is in regular or special session, arrest or search any member thereof, except in case such member has committed a crime punishable under this Code by a penalty higher than prision mayor.

**Two Ways of Committing Violation of Parliamentary Immunity**

1. By any person who, by means of force, intimidation, threats, or fraud or any other means, prevents any member of Congress from attending its meeting, from expressing his opinions, or casting his vote. The offender can be any person.

    **NOTE:** The offender is any person.

2. By any public officer or employee who shall, while the Congress is in regular or special session, arrest or search any member thereof who has committed a crime punishable by a penalty not higher than prision mayor.

**NOTE:** The offender is a public officer or employee. In order for violation of parliamentary immunity under the second act to be committed, it is necessary that the said member of Congress be arrested or searched:

a. When Congress was in its regular or special session; and
b. The crime that he allegedly committed carries a penalty NOT higher than prision mayor .

Therefore, if the penalty is HIGHER than prison mayor, ANYTIME he can be arrested without committing violation of parliamentary immunity.

This is a provision which is not only under the RPC but also enshrined in the 1987 Constitution that no member of the Congress may be disturbed in the performance of his functions.

Hence, they cannot be arrested or searched if the crime that they have committed carries a penalty not higher than prision correccional under the Constitution or prision mayor under the RPC.

**Q: Based on the evidence, Congressman X was engaged in manufacture of dangerous drugs. The police conducted a surveillance on the house of Congressman X. Indeed, that house was being used for manufacture of dangerous drugs and said Congressman is engaged in drug trafficking, drug peddling, and drug pushing. They have sufficient evidence for that. These police officers applied for a search warrant. The RTC Judge granted the search warrant. Congress was in session. The police officers raided the said house of Congressman X armed with a search warrant issued by the RTC Judge. Are they liable for Violation of Parliamentary Immunity?**

**A:** No, they are not liable for violation of parliamentary immunity. The crime for manufacture of dangerous drugs carries a penalty higher than prision mayor, it is life imprisonment to death. Therefore, anytime, if there is a search warrant, his house can be searched without the police officers committing Violation of Parliamentary Immunity.

**Q: Senator X had a fight with his wife. In the course of the fight, Senator X stabbed his wife. He brought the wife to the hospital but a day thereafter, the wife died. A case of Parricide was filed against Senator X. The fiscal found probable cause and a case was filed before the court. The RTC Judge found probable cause and issued the warrant of arrest. Armed with a warrant of arrest, the police officers went to the Halls of the Senate and served the warrant of arrest to Senator X. He was handcuffed and brought to the PNP Station for investigation. Thereafter, the filing of the charges against him. Are the arresting peace officers liable for Violation of Parliamentary Immunity?**

**A:** No, they are not liable. Although at the time of the arrest, Congress was in its regular session and he was arrested inside the Halls of the Senate, the peace officers are not liable for Violation of Parliamentary Immunity because Parricide carries a penalty higher than prision mayor. The penalty for Parricide is reclusion perpetua to death. Therefore, anytime, the said senator may be arrested without the peace officers committing violation of Article 145.

**Q: Congressman X, while he was doing his duty, giving aid to his people, was suddenly hit by a man, one of his constituents. The constituent said, "You failed in your promise. I voted for you, but you failed in your promise! You said that you were going to build a school in this area through your CDF. But none!" Then he started calling Congressman X names like liars, cheaters, etc. The congressman was very mad. So, the congressman pulled out his pistol and fired a shot at the said man. The latter was hit near the chest. He was brought to the hospital. The doctor said that it was a shallow wound, a non-fatal wound. Congressman X was charged with a crime of attempted homicide. A warrant of arrest was issued by the court. The police officers served the warrant of arrest to Congressman X while he was in the halls of Congress. The Speaker of the House prevented the police officers from arresting Congressman X. The Speaker of the House said, "You cannot do this! He is inside the halls of Congress. Get out!" However, the police officers, plenty of them, prevailed. They served the warrant of arrest to Congressman X and thereafter, brought him to the police station for investigation and placed him behind bars until he posted bail. Are the police officers liable for Violation of Parliamentary Immunity?**

**A:** Yes, they are liable. The penalty for homicide is reclusion temporal. If it is attempted, the maximum penalty is prision correccional. It is not higher than prision mayor. Therefore, the moment they served the warrant of arrest when Congress was in its regular or special session, they committed a violation of Article 145.

**Q: In the course of their argument, the wife of Senator X accused him of having an affair with his secretary. The wife was nagging and nagging Senator X. Senator X shouted to the wife to stop but she continuously**

**nagged that the said husband is a cheater. Senator X lost control of himself. He is already so mad at the voice of his wife, she pushed her. At that time the wife was already at the topmost portion of the stairs, about to go down. She fell and died. He was charged with Parricide. A warrant of arrest was issued. The police officers armed with the warrant of arrest went into the halls of the Senate and served the warrant of arrest to Senator X. Are they liable for violation of parliamentary immunity?**

**A:** They are not. Parricide carries a penalty higher than prision mayor. The penalty for Parricide is reclusion perpetua to death. Therefore, anytime Senator X may be arrested without the arresting police officer violating his parliamentary immunity.

**Q: Congressman X, in a party, had a heated altercation with a guest. In the course thereof, he stabbed the said guest. It is a non-fatal wound. So, he is now charged with attempted homicide. A warrant of arrest was issued against him. The peace officers went into the halls of Congress and served him the warrant of arrest. He was placed behind bars and was only released after posting the bail fixed by the court. Are the peace officers effecting the warrant of arrest liable for violation of parliamentary immunity?**

**A:** Yes, they are. The crime allegedly committed is only attempted homicide. The penalty is reclusion temporal. Two degrees lower, it is prision correccional. It is lower than prision mayor. Therefore, such arrest constituted violation of parliamentary immunity Art. 145 in the second act.

## CHAPTER 3:
## ILLEGAL ASSEMBLIES AND ASSOCIATIONS

### ILLEGAL ASSEMBLY (ART. 146)

**Article 146. *Illegal assemblies.*** - The penalty of prision correccional in its maximum period to prision mayor in its medium period shall be imposed upon the organizers or leaders of any meeting attended by armed persons for the purpose of committing any of the crimes punishable under this Code, or of any meeting in which the audience is incited to the commission of the crime of treason, rebellion or insurrection, sedition or assault upon a person in authority or his agents. Persons merely present at such meeting shall suffer the penalty of arresto mayor, unless they are armed, in which case the penalty shall be prision correccional.

If any person present at the meeting carries an unlicensed firearm, it shall be presumed that the purpose of said meeting, insofar as he is concerned, is to commit acts punishable under this Code, and he shall be considered a leader or organizer of the meeting within the purview of the preceding paragraph.

As used in this article, the word "meeting" shall be understood to include a gathering or group, whether in a fixed place or moving. *(Reinstated by E.O. No. 187).*

**Two Ways of Committing Illegal Assembly**

**I. Any meeting attended by armed persons for the purpose of committing any of the crimes punishable under the RPC.**

**ELEMENTS:**

1. There is meeting, a gathering or group of persons, whether in fixed place or moving;
2. The meeting was attended by armed persons; and
3. The purpose of the meeting is to commit any of the crimes punishable under the Revised Penal Code.

**NOTE:** When the law says that the meeting must be attended by armed persons, the law does not require that all those in attendance be armed. The law does not also require that the arms be only firearms. It could be any arms that can injure or cause violence to another; not necessarily pistols, guns or firearms.

**II. Any meeting in which the audience, whether armed or not, is incited to commit treason, rebellion or insurrection, sedition, or assault upon a person in authority or agents of person in authority.**

**ELEMENTS:**

1. There is meeting, a gathering or group of persons, whether in fixed place or moving;
2. The meeting was attended by an audience, whether the said audience is armed or not; and
3. The audience were incited to commit treason, rebellion or insurrection, sedition, or direct assault.

The law does not require that the audience be armed. The crime will arise the moment this audience would be incited to commit treason, rebellion or insurrection, sedition, or direct assault.

Both the organizers of the said gathering and the participants therein shall be held criminally liable for Illegal Assembly.

**Q: Ten persons, A, B, C, D, E, F, G, H, I, and J, were having a meeting in a secluded place. The purpose of the said meeting was to commit armed bank robberies in three banks in Metro Manila at the same time. These ten persons divided themselves into three so the police officers would not know where to go. In this meeting, the participation of each one, how much will they take, where would they go after, how will they divide, everything was agreed upon. They were heard by W. W informed the police. They were arrested. They were charged with Illegal Assembly. Will the case prosper?**

**A:** No**,** the charge of Illegal Assembly will not prosper. Although there is a meeting or gathering of a group of persons in a fixed place for the purpose of committing robbery, which is a crime punished under the RPC, there is no statement in the problem that any of these persons were armed. Since none of the participants is armed, the second element of Illegal Assembly under the first act is absent. The second act of Illegal Assembly does not apply. In the said problem, the purpose of the meeting was to commit robbery and not treason, rebellion or insurrection, sedition, or direct assault. Therefore, they cannot be charged with Illegal Assembly. It will not prosper.

**Q: Can they be prosecuted for any other crime?**

**A:** No, because there is no such crime as conspiracy to commit robbery. It is only a means of committing a felony. Hence, the case shall be dismissed.

**Q: A, B, C, D, and E were armed and the others were not. Will the case now prosper?**

**A:** This time they are liable for Illegal Assembly. The moment any of the participants would be armed it is already considered an Illegal Assembly as long as the purpose is to commit a crime under the RPC.

**Q: These 10 men were former officers of the AFP and the purpose of the meeting was to recruit people for public uprising to overthrow the government. In the said meeting, they agreed to participate in the rebellion and they all said, "Yes, it is time! Let's allow the Philippines to experience the leadership of the military or of the AFP." The authorities arrived. They were charged with Illegal Assembly. Are they liable for Illegal Assembly?**

**A:** They are liable under the second act. All of them are incited to commit the crime of rebellion.

**Q: Ten (10) people met in a secluded restaurant. They were inside a private room. They have this secret meeting. These ten people were members of fraternity. In the said meeting, they were discussing the ways and means to kill W, the head of their opposing fraternity. They said that W has to be killed. The ten people were all discussing this. When their orders arrived, the waiter serving the said orders heard the said discussion. The ten people didn't know that this person knew W. The moment the said waiter left the room, the waiter informed the manager what he heard that these ten men belonging to a fraternity are agreeing, deciding, conspiring, and conniving to kill W. W is a frequent customer of the said restaurant. So, the management of the said restaurant immediately gave the nearest police station a call. The police officers arrive after the ten men have come to an agreement that they are going to kill W – the crime of murder punished under the RPC. On their way out, the police officers were there waiting at the door. They were all arrested. They were charged with Illegal Assembly. Are they liable for Illegal Assembly?**

**A:** NO. They are not liable for Illegal Assembly. There is a meeting, gathering, or group of persons in a fixed place – in the said restaurant to commit murder, which is a crime against the RPC. However, the second element is absent. Based on the facts of the problem, none of them is armed. Therefore, Illegal Assembly of the first act will not lie.

Illegal Assembly of the second act also will not lie. The crime that they are about to commit is not treason, rebellion or insurrection, sedition, nor direct assault. Therefore, Illegal Assembly, whether of the first act or the second act, will not lie.

**Q: What crime, if any, did they commit?**

**A:** They did not commit any crime. Their act of conspiring to commit murder W is a mere preparatory act. It is not yet an overt act. There is no such crime as conspiracy to commit murder because it is not a crime by itself. Therefore, they did not commit any crime.

**Q: What if, in the same problem, when the police arrived and each of them were arrested, the police noticed that three of the men were armed. Inside the**

**bag that they were holding, on their shoulder, they found that there was this thing on them – caliber .38 revolver. All of these were confiscated. They were charged with Illegal Assembly. Can they be held liable with Illegal Assembly?**

**A:** YES. There is a meeting, gathering, or group of persons in a fixed place – in the said restaurant. It was attended by armed persons – three of them were armed. Their purpose was to commit the crime of murder, which is punishable under the RPC. Therefore, all ten men may be charged with the crime of Illegal Assembly.

**Q: A, B, and C gathered about fifty (50) people in Payatas. Their purpose was to incite these people to rebel against the government. These people were invited; they did not know yet the purpose, but they were invited. When they arrived, they were arranging the chairs. The police officers, who got a tip about the meeting, suddenly arrived. They were all arrested, together with A, B and C. Are they liable for Illegal Assembly? (BAR Q)**

**A:** NO, they are not liable for Illegal Assembly. The first element is immediately absent. There was yet no meeting, gathering. They were still arranging the chairs in the said place. You cannot call it a meeting or gathering already. It has not yet started. Therefore, the first element is immediately absent.

**Q: What if they are already seated? A, B, and C went on stage and they, with the use of a microphone, introduced General W. General W threw his speech, incited the people. He narrated all of the negative things about the government. He told the people, "Are you waiting for more bad things? Let us uprise! Let us rebel against this government! Let us put down the government and try a new government led by the military!" All of the people raised their arms, and with closed fists, said "Yes! Let us publicly uprise! Let us throw down this government! Let us try a government led by the military!" The police arrived. They were all arrested. What crime or crimes may be filed against A, B, C, the fifty people, and General W?**

**A:** A, B, C and the fifty people can be charged with Illegal Assembly under the second act. Since it is Illegal Assembly under the second act, there is no need to show evidence that any one of them is armed. From the mere fact that these fifty people were incited to commit rebellion, the crime of Illegal Assembly is already present. They were incited. They raised their hands in closed fists, saying "Yes! It is time to rebel, publicly uprise and overthrow the government!" They were incited to commit rebellion. Hence, it is Illegal Assembly.

Insofar as General W is concerned, he may be charged with Inciting to Commit Rebellion. By means of speech, by means of proclamation, he incited the people to publicly uprise in order to overthrow the present government in order to commit the purpose of rebellion. Therefore, he may be charged with Inciting to Rebellion.

### ILLEGAL ASSOCIATIONS (ART. 147)

**[skipped by Prosec but included in the PY trans]**

**Article 147.** ***Illegal associations.*** - The penalty of prision correccional in its minimum and medium periods and a fine not exceeding 1,000 pesos shall be imposed upon the founders, directors, and presidents of associations totally or partially organized for the purpose of committing any of the crimes punishable under this Code or for some purpose contrary to public morals. Mere members of said associations shall suffer the penalty of arresto mayor. *(Reinstated by E.O. No. 187).*

**Kinds of Illegal Association**

I. Associations totally or partially organized for the purpose of committing any of the crimes punishable under the Revised Penal Code.

II. Associations totally or partially organized for the purpose of committing crimes against public morals.

## CHAPTER 4: ASSAULT UPON, AND RESISTANCE AND DISOBEDIENCE TO, PERSONS IN AUTHORITY AND THEIR AGENTS

### DIRECT ASSAULT (ART. 148)

**Article 148.** ***Direct assaults.*** - Any person or persons who, without a public uprising, shall employ force or intimidation for the attainment of any of the purpose enumerated in defining the crimes of rebellion and sedition, or shall attack, employ force, or seriously intimidate or resist any person in authority or any of his agents, while engaged in the performance of official duties, or on occasion of such performance, shall suffer the penalty of prision correccional in its medium and maximum periods and a fine not exceeding P1,000

pesos, when the assault is committed with a weapon or when the offender is a public officer or employee, or when the offender lays hands upon a person in authority. If none of these circumstances be present, the penalty of prision correccional in its minimum period and a fine not exceeding P500 pesos shall be Imposed.

**Forms of Direct Assault**

In direct assault, whether its first or second kind, the law requires that there must be no public uprising. Therefore, in times of sedition or rebellion, when there is public uprising, there is no direct assault.

I. **Without public uprising, by employing FORCE or INTIMIDATION for the attainment of any of the purposes of rebellion and sedition.**

**ELEMENTS:**

1. The offender employs force or intimidation;
2. The aim of the offender is to attain any of the purposes of the crime of rebellion or any of the objects of the crime of sedition; and
3. There is no public uprising.

**Purposes of Rebellion**

1) To remove from the allegiance to the Government or its laws:
   a) the territory of the Philippines or any part thereof; or
   b) any body of land, naval, or other armed forces; or

2) To deprive the Chief Executive or Congress, wholly or partially, of any of their powers or prerogatives.

**Purposes of Sedition**

1) To PREVENT the promulgation or execution of any law or the holding of any popular election;

2) To PREVENT the National Government, or any provincial or municipal government or any public officer thereof from freely exercising its or his functions, or PREVENT the execution of any administrative order;

3) To INFLICT any act of hate or revenge upon the person or property of any public officer or employee;

4) To COMMIT, for any political or social end, any act of hate or revenge against private persons or any social class;

5) To DESPOIL, for any political or social end, any person, municipality, province, or the National Government of all its property or any part thereof.

II. **Without public uprising, by ATTACKING, by EMPLOYING FORCE, or by SERIOUSLY INTIMIDATING or SERIOUSLY RESISTING any person in authority or any of his agents, while in the performance of official duties, or on the occasion of such performance.**

**NOTE:** Whether it is direct assault of the first kind or the second kind, notice that there must be no public uprising. Therefore, in crimes of rebellion and sedition wherein public uprising is an essential element, there can be no direct assault because direct assault requires that there be no public uprising.

If the purpose of the offender is to overthrow the government, or to prevent the promulgation of a law by employing force or violence, but there is no public uprising, the crime committed is direct assault under the first kind.

**ELEMENTS:**

1. The offender
   a. Makes an attack;
   b. Employs force;
   c. Makes a serious intimidation; or
   d. Makes a serious resistance;

2. The assault is against a person in authority or an agent of a person in authority;

3. At the time of assault, the person in authority or his agent is engaged in the performance of his official functions or the assault was on the occasion of such performance of official functions;

4. The offender knows him to be a person in authority or an agent of a person in authority; and

5. There is no public uprising.

**Offender Makes an attack; Employs force; Makes a serious intimidation; or Makes a serious resistance;**

**1. Makes an attack or Employs Force**

a. ***If the attack or force employed on a person in authority*** - it need not to be serious in nature for direct assault to arise because under Art. 148, the mere laying of hands upon the person in authority already qualifies as direct assault.

b. ***If the force employed or the attack is made on an agent of a person in authority*** - for direct assault to arise, the said assault must be dangerous, serious or grave in nature. Otherwise, direct assault is not committed as held in the case of **Mallari v. People.**

**2. Makes a Serious Intimidation or Makes a Serious Resistance**

If it is intimidation or resistance, it must always be serious in nature, regardless of who the offended party is.

**The assault is against a person in authority or an agent of a person in authority.**

a. ***Persons in Authority*** - For purposes of Direct Assault (Art. 148) and Indirect Assault (Art. 149), the following persons are deemed to be persons in authority as provided for in Paragraphs 1 and 3 of Art. 152:

1. Any person vested with jurisdiction, whether as an individual or as a member of some court or governmental corporation, board or commission;

2. Barangay Chairman/Barangay Captain;

3. Teacher, professors, persons charged with the supervision of a public or duly recognized private schools, colleges, and universities; or

4. Lawyers in the exercise of their professional functions, or on occasion of such performance of professional functions.

***b. Agent of Persons in Authority*** - Under Art. 152(2), any person who, by direct provision of law, by election or by appointment by competent authority, is charged with the maintenance of public order, and the protection and security of life and property, shall be deemed to be as an agent of persons in authority, such as:

1. Councilman;
2. Policeman;
3. Barangay leader; or
4. Any person who comes to the aid of persons in authority.

**At the time of assault, the person in authority or his agent is engaged in the performance of his official functions or the assault was on the occasion of such performance of official functions.**

***a. Engaged in the performance of official function***

The moment the person in authority or his agent was attacked while he was performing his official function, direct assault immediately arises. There is immediately a defiance of lawful authority.

***b. On the occasion of such performance of official function***

But, if at the time the person in authority or his agent was attacked, he was not in actual performance of his official function, for direct assault to arise, it is necessary that the assault is done on the occasion of such official function.

The phrase "on the occasion of such performance of official functions" means that the reason behind the assault is the said person in authority or his agent's past performance of official function.

**The offender knows him to be a person in authority or an agent of a person in authority.**

The fourth element requires that the offender knows him to be a person in authority or an agent of a person in authority. The essence of the law is defiance of lawful authority. It cannot be said that there is intended defiance of authority if he did not know that the person he is assaulting is a person in authority or an agent.

**There is no public uprising**

There must be no public uprising.

**Qualifying Circumstances of Direct Assault**

1. When the assault is done with the use of weapon;
2. When the offender is a public officer or an employee; or

3. When the offender lays hands upon a person in authority.

**In relation to Nos. 1 and 2**

These circumstances will qualify direct assault regardless of who the victim is. Whether the victim is a person in authority or his agent, when the direct assault is done with the use of a weapon or when the offender is a public officer or an employee, it will always be in its qualified form.

**In relation to No. 3**

This circumstance will only qualify direct assault if the person on whom hands are laid is a person in authority. If the one assaulted is a mere agent, laying of hands is not a qualifying circumstance.

**Q: The mayor was attending the flag raising ceremony on a Monday morning with the vice-mayor and the councilors. At the back, there were the employees of the city hall. While they were singing the national anthem, two gunfires were heard and the mayor suddenly fell on the ground. Two bullets hit the mayor. The mayor was immediately brought to the hospital but he was declared dead on arrival. W, the gunman, was arrested. What crime/s shall be filed against W?**

**A:** The mayor is a person in authority. At the time of the assault, he was in the performance of his official functions. Therefore, regardless of W's motive, it is immediately Direct Assault. Since it was done with the use of a weapon, it is Qualified Direct Assault. Obviously, it was planned. Therefore, it is Qualified Direct Assault with Murder because the act of killing was done with treachery. Hence, the crime to be filed against W is Qualified Direct Assault with Murder.

**Q: The Mayor solemnized a mass wedding for his constituents living together without the benefit of marriage. Many couples were inside the auditorium and he solemnized their marriage. After that, the Mayor together with his two police escorts, X and Y, were now already working towards his office when Police Officer X told the Mayor, *"Mayor, sandali lang. Kanina pa tayo sinusundan ng taong to."***

**Then, Police X turned around and told W, *"Anong problema mo? Kanina ka pa sunod ng sunod e. Dun sa auditorium nakatingin ka, pinagmamasdan mo kami. Ngayon papunta kami sa office, nakasunod ka pa rin. Anong kailangan mo?"* Instead of answering, W pulled out his caliber .45 gun and fired shots at the Mayor, Police Officer X and Police Officer Y. Both the Mayor and Police Officer X died. Police Officer Y sustained fatal wounds but survived. What crime/s shall be filed against W?**

**A:** W shall be charged with two counts of Qualified Direct Assault with Murder and one count of Qualified Direct Assault with Frustrated Murder.

Two counts of Qualified Direct Assault with Murder insofar as the death of the Mayor and Police Officer X. The mayor is a person in authority. Police Officer X is an agent of a person in authority. At the time of the assault, they were in the performance of their duties. Therefore, it is Direct Assault. It is QUALIFIED; W made use of a firearm. Obviously, it was planned by W. He has been there all along leaving them without any defense. It is Qualified Direct Assault with Murder.

Insofar as Police Officer Y is concerned, the same is true as Qualified Direct Assault, however, it is only with Frustrated Murder because he sustained a fatal wound but survived. Therefore, it is Qualified Direct Assault with Frustrated Murder.

**Q: The Mayor was campaigning for re-election. It was the miting de avance. It was now time for the Mayor to speak. So, he was encouraging the people to give him another term in order to continue his project he had done during his term. While he was delivering his speech, he suddenly fell. He was shot from the outside. The Mayor died. The perpetrator, W was arrested. What crime/s shall be filed against W?**

**A:** To campaign is not the performance of official duties on the part of the Mayor. It is not within the official duty of the Mayor to campaign. Therefore, at the time of the assault, the Mayor was not in the performance of his official function. Therefore, you have to know the motive behind the assault in order to know the crime to be filed against W.

Let's say, W killed the Mayor as an act of revenge because the Mayor dismissed W's brother from employment at the City Hall because of an anomalous transaction without giving the latter an opportunity to express his side. It is an act of revenge.

In that case, the crime committed by W is Qualified Direct Assault with Murder because such Direct Assault was committed on occasion of such performance of official function. The reason for the assault was the said Mayor's past performance of his official function.

**Q: W killed the Mayor because of his illicit affair with the wife of W. As an act of revenge, W killed the Mayor. What is the crime committed?**

**A:** The crime committed is Murder. There is no more Qualified Direct Assault because, in this case, the reason behind the killing is not in any way connected with the Mayor's past performance of official function but because of his private matter. So, in this case, the crime will be Murder.

**The teacher caught the student cheating. The teacher grabbed the test booklet of the said student and told the student that he no longer needs to continue the exam and to leave the premises. The student felt embarrassed and left the classroom. He was very mad. He wanted to get even with said teacher for humiliating and embarrassing him. So, on the next day, when the teacher was discussing in front of the students, here comes Student X. Student X then entered the classroom and thereafter slapped the teacher twice. When the said student was about to slap the teacher the third time, another student intervened. Y stopped X. X punched Y two times on the face. Thereafter, the security guards of the school arrived. The teacher sustained slight physical injuries, only redness on the face. Student Y sustained only a light bruise on the face because of the punch. What crime/s shall be filed against Student X? (BAR Q)**

**A:** Qualified Direct Assault for the injuries sustained by the teacher and Direct Assault for the injuries of Student Y
.
Insofar as the teacher is concerned, under Art. 152(3), the teacher in the performance of his function is a person in authority. Therefore, the crime committed is Direct Assault. The student laid hands on the said teacher. It is Qualified Direct Assault. The teacher sustained only slight physical injuries. It is simply absorbed by Qualified Direct Assault. Therefore, insofar as the teacher is concerned, Student X shall be charged and held liable for Qualified Direct Assault.

Insofar as the student who intervened, the same is true that the teacher is a person in authority who is a victim of Direct Assault. When Student Y intervened, he was giving aid to a person in authority who is a victim of Direct Assault, under Art. 152(2), he is deemed to be an agent of a person in authority. When X punched him, X is in effect causing an assault on an agent of a person in authority. Therefore, the crime committed is Direct Assault. Since he is only an agent, the laying of hands will not qualify Direct Assault. Therefore, insofar as the student who intervened, Student X shall be charged and held liable for Direct Assault.

**Q: The traffic enforcer stopped X who was allegedly violating traffic regulations. He was asking for X's licenses, but the latter refused to give it to him. When X got out of the car, he immediately gave the traffic enforcer a strong punch on the face and on the stomach successively. Because of the rudeness of the attack, the traffic enforcer fell on the pavement. Now, he's on the ground, X kicked him a number of times in his stomach. While X is kicking the traffic enforcer, here comes Z wanting to help and trying to stop X from further hurting the traffic enforcer. X turned to Z and punched the latter two times and went back to his car. The said traffic enforcer suffered serious physical injuries. On the other hand, Pedestrian Z only suffered slight physical injuries. What crime/s shall be filed against X?**

**A:** For the injury sustained by the traffic enforcer, X shall be prosecuted for Direct Assault with Serious Physical Injuries. The traffic enforcer is an agent of a person in authority. By appointment by a competent authority, he is in charge of the maintenance of public order through the regulating traffic rules and regulations. Therefore, he is an agent of a person of authority. At the time of the assault, he was performing his official function. Therefore, it is Direct Assault. He sustained Serious Physical Injuries. You complex it. It is Direct Assault with Serious Physical Injuries.

Insofar as Pedestrian Z is concerned, the victim of Direct Assault is a mere agent of a person in authority. When Z, the pedestrian, came to his aid, he remained a private person. He is not deemed an agent of a person in authority. Therefore, insofar as the injury sustained as far as Z is concerned, the correct charge is Indirect Assault under Art. 149. All the elements are present:

a. The traffic enforcer, an agent of a person in authority, is a victim of direct assault;
b. Someone came to his aid and that is Z, the pedestrian; and
c. X also employed force and intimidation on his part.

Therefore, it is Indirect Assault insofar as the injuries sustained by Z.

**<u>Complex Crimes involving Direct Assault</u>**

Whenever direct assault is committed, and a felony resulted, *e.g.* a person in authority or his agent died or

sustained injuries, direct assault is complexed with the said resulting felony.

**Example:**

1. Direct Assault with Murder;
2. Direct Assault with Homicide;
3. Direct Assault with Frustrated Murder;
4. Direct Assault with Attempted Homicide;
5. Direct Assault with Serious Physical Injuries; and
6. Direct Assault with Less Serious Physical Injuries.

If, however, the resulting injury is only a slight physical injury, which is a light felony, it is simply absorbed by direct assault. Therefore, you do not complex it, because

1. Under Art. 48, light felonies cannot be complexed.
2. In case of direct assault, there will always be the most minor of injuries. Hence, such will simply be absorbed.

**Q: The mayor was inside his office. X arrived. X told the secretary, "Where is the mayor? I need to talk to the mayor." The secretary told X, "Busy, maraming sina-signan na document." X said he will wait. X sat on the bench. The secretary said, "Why? What do you want from the mayor? I might be able to help you." X said, "My son is sick. I need the help of the mayor. I voted for him. He has to help me. I voted for him." The secretary said, "Okay, have a seat first."**

**The secretary went back to his table, opened the drawer, and took 2,000 pesos from the drawer. He went back to X who was seated on the bench. The secretary said, "Here, X. This may be of good help to your son. You can now leave. Bring this. It might be helpful to your son in the hospital." But X said, "No, I do not need the 2,000 pesos. I voted for the mayor. He has to help me. My son is in the hospital. I do not need the 2,000 pesos. I need to talk to him. I will not leave without talking to the mayor."**

**The secretary went inside the office of the mayor. "Mayor, may gusto kumausap sainyo. Ayaw umalis. May sakit daw yung anak sa hospital. Hihingi ng tulong." The mayor told the secretary, "Okay. After five minutes, let him in." After five minutes, the secretary bought X inside the office of the mayor. The secretary said, "Mayor, ito po si X. Hihingi raw po ng tulong." They both shook hands. The mayor smiled at X, and told him, "Upo ka muna. Isa na lang itong document, sisign-an ko lang tapos usap tayo." The moment X was seated, the mayor bowed his head to sign the document. Suddenly, X stood up, he pulled a long knife and stabbed the mayor repeatedly on the neck and chest.**

**The secretary gave a loud cry. There was a commotion. X was arrested, and the mayor was immediately brought to the nearest hospital. Medical intervention was done upon the mayor, and he luckily survived despite fatal wounds on the neck and chest. What crime is committed by X?**

**A:** The mayor is a person of authority, and at the time of the assault, the said person of authority, the mayor is in the performance of his function. In fact, he was inside his office doing his job, signing certain documents. Therefore, regardless of X intent, it is immediately direct assault. Since X made use of a weapon, it is qualified direct assault, and since the mayor sustained fatal wounds but survived, it will be frustrated murder. It is frustrated murder because obviously there was treachery in the commission of the crime. Hence, the crime committed by X is qualified direct assault with frustrated murder.

**Q: What if in the same problem, the mayor was in the office signing his documents, then suddenly the mayor received a call, it came from his brother, the mayor's wife was brought to the hospital, was about to give birth, and the said mayor was so happy. The said mayor decided to leave office and to go to the hospital.**

**The mayor told the driver to be on speed, he wanted to see immediately the act of delivery. He wanted to be there with his wife in the act of delivery. The said driver was driving fast. Suddenly, when they turned right at the intersection going to the street at the said hospital, suddenly there was this motorcycle in front, and because of the motorcycle that suddenly appeared in front of the van of the said mayor, the driver had no recourse but to stop. The moment they were in full stop, there was another motorcycle on the mayor's side. On the said motorcycle, a man immediately repeatedly fired at the van. When the mayor fell on his seat full of blood, the said man opened the door and still repeatedly fire at the head of the mayor and shot the mayor's head. The driver was left unhurt. The two men sped away but later they were arrested. These two men were A and B.**

**During the investigation, when they were being investigated, these two men informed the police investigators that they were the brothers of C. C was an employee of the city hall who was charged by the mayor himself of violation of R.A. 1319, and thereafter dismissed, because of that, their brother committed suicide. And so now, as an act of revenge, according to A and B, they killed the mayor. Based on these, what crime should be filed against A and B?**

**A:** A and B should be charged as co-conspirators for the crime of qualified direct assault with murder. At the time of the assault, the mayor, a person in authority is not engaged in the performance of his official function, he was on his way out, therefore, you have to know the motive of the perpetrators, and what is the motive of the perpetrators? An act of revenge because of the dismissal of their brother, an act done by the mayor as a performance of his past duty as a mayor. Therefore, since the act done by A and B were in connection with the mayor's past performance of his official function, the assault was said to be on occasion of such performance of official function. Hence, the crime committed is direct assault. Weapon was used, and therefore it will be qualified direct assault. The mayor died, obviously it was planned, there was treachery. So, it is qualified direct assault with murder.

**Q: What if in the same problem, upon investigation of A and B, A and B told the investigators that they killed this mayor because they had been looking for this mayor. According to them, this mayor came from Pampanga. At that time, he was just an ordinary citizen. This mayor was just their neighbor. Although an ordinary citizen, he was already one of the richest in their province. According to A and B, when their mother was sick, they asked help from him, being one of the richest men in the place but he refused to give help, and their mother died. They learned in the news that he is the mayor, and so they looked for him, and that is the reason why they were killed.**

**A:** The reason given by A and B was a personal one, it has nothing to do with the mayor's past performance of his official function. Therefore, the crime committed by A and B would be plain murder. It is not qualified direct assault with murder, but only murder because the act of killing was not done on occasion of such performance of his official function because it was not done because of by reason of the mayor's past performance of his official duty. The crime committed is murder.

**Q: A case of rape was filed before the office of the prosecutor, it was assigned to public prosecutor X. Fiscal X called for a clarificatory hearing during the preliminary investigation, and so both parties arrived, that is the respondent W, and the child victim. It was a case of rape, and they appeared during the said clarificatory hearing. When the fiscal arrived, he was seated and thereafter, began asking questions on the said child victim. When the said fiscal began asking questions on the said child victim, the said respondent W immediately and suddenly boxed the face of the fiscal, the said fiscal fell. When the said fiscal fell, the said companion the said child victim tried to stop respondent W from further attacking the said fiscal and so respondent W pulled out an icepick and stabbed the said companion of the complainant, Y. Thereafter, the security guards of the hall of justice arrived and respondent W was arrested. Both the public prosecutor and the person who came to his aid, the companion of the private complainant were brought to the hospital. The public prosecutor sustained serious physical injuries, on the other hand, the said person who came to his aid, by the name of Y, sustained a fatal wound but he survived because of immediate medical intervention. He was hit on the said icepick on the abdomen. It was a fatal wound, but he survived. What crime/s may be filed against respondent W insofar as this incident is concerned?**

**A:** The fiscal under Art. 152 (3) is deemed to be a person in authority. At the time he was assaulted, he was engaged in the performance of his official function and therefore the crime committed is direct assault. Hands were laid on him, therefore, it is qualified direct assault. He sustained physical injuries, therefore, it is qualified direct assault with serious physical injuries. That is the crime committed by W insofar as the fiscal is concerned.

With respect to Y, the person who came to the aid of the public prosecutor concerned, when he came to the aid of the public prosecutor, a person in authority engaged in the performance of his functions, and who was a victim of direct assault, Y is deemed to be an agent of a person in authority under Art. 152 (2), therefore, when W attacked Y, he was attacking an agent of a person in authority, W is liable for direct assault under Art. 148. W sustained fatal wounds but survived, therefore it is direct assault with frustrated homicide. W made use of a weapon, an icepick, so it is qualified direct assault with frustrated homicide.

The crimes committed by W insofar as the public prosecutor is concerned is qualified direct assault with serious physical injuries. Insofar as Y, the person who came to the aid of the public prosecutor concerned, the crime committed is qualified direct assault with frustrated homicide.

**Q: What if the victim was not a public prosecutor, but a police officer. It was the police officer who was called in order to maintain peace and order in the said preliminary investigation. He was there to maintain peace and order when suddenly attacked by respondent W. He was boxed and boxed, and then thereafter, Y the companion of the complainant came to the aid of the said police officer, and Y prevented W from further attacking the police. So, he stabbed Y with**

**a use of an icepick on the abdomen. W was arrested. Police officer as well as the person who came to his aid Y were brought to the hospital. The police officer sustained serious physical injuries. Y, the person who came to his aid sustained a fatal wound on the abdomen but survived because of immediate medical intervention. What crime/s should be filed against W?**

**A:** Insofar as the police officer is concerned, the police officer is an agent of authority. At the time of the assault, he was engaged in the performance of his official function, therefore, it is direct assault. Although W laid hands on him, since he was a mere agent of a person in authority, it will not qualify direct assault, but because he sustained serious physical injuries, it is direct assault with serious physical injuries.

Insofar as Y, the person who came to the aid of the police officer concerned. When Y came to the aid of the police, Y remained to be a private person. He is not deemed to be an agent of a person in authority because the person he aided is already an agent of a person in authority. Therefore, insofar as Y is concerned, the crime committed by W is indirect assault. All the elements are present. The police officer is an agent of person in authority, he is a victim of direct assault, Y came to his aid, and W employed force, intimidation, and even stabbed Y. Therefore, indirect assault was committed, but he sustained fatal wound and he survived. Therefore, it will be indirect assault with frustrated homicide. That will be the crime committed by W Insofar as Y, the person who came to the aid of the police officer

In the case of **People v. Pitulan**, police officers received a call, there were these persons who were onboard a van, and they were acting suspiciously, And so, the police officer went to the said place and they found the said van, and the police officers told them to alight from the said van. However, the driver of the said van, Pitulan did not want to get out. Here comes police officer Monteroso, and the rest of the police officers came to him, and told him to get out. Instead of getting out, Pitulan shot police officer Monteroso.

The SC said that Pitulan is liable for direct assault with homicide. The charge was direct assault with murder. Supreme Court said, it is direct assault with homicide. In this case, the said accused Pitulan was the driver of the van, and he was the one who shot and killed the said police officer Monteroso. Supreme Court said that when the said shooting happened, Monteroso and his team were responding to this report of a suspicious group of men onboard, and at that particular moment, they were in their complete uniform. Since they were in their complete uniform, Pitulan knew that they were police officers in the exercise of their official duties. They were in their complete police officer uniform. Therefore, when Pitulan shot him, he was shooting an agent of a person in authority. Hence, Supreme Court said, it is direct assault.

However, the Supreme Court said it is not murder. It is only homicide. It is only direct assault with homicide, not murder. Supreme Court said, the fact that Pitulan would not want to stop the van, the fact that Pitulan would not want to get out despite the order coming from police officer Monteroso, Supreme Court said Monteroso already forewarned of the violent behavior of Pitulan to evade arrest. Since he was already forewarned, it cannot be said that there is treachery at the time of the act, therefore, it is homicide and not murder

In **Dela Peña v. People**, it was already late at night. There were people having a drinking spree, and these people were loud. They were singing and talking loudly. The people in the area were complaining – they could not sleep because of these people. One of the neighbors therein was Barangay Tanod Carlos. The people told him, "Barangay Tanod pagsabihan mo naman 'yan oh, ang ingay ingay nila, hindi kami makatulog dito sa ating barangay pagsabihan mo naman gabing gabi na." Because of that, Barangay Tanod Carlos came out of his house, went to these men, and told them, "Pare, tumigil na tayo diyan, magsiuwi na tayo. Maraming di makatulog naiingayan sa inyo. Magsiuwi na tayo." However, instead of obeying the said Barangay Tanod, the said men boxed him on his jaw, and hit him with a piece of wood. Thereafter, police officers arrived, and the said men were arrested. The Barangay Tanod filed a case of direct assault against one of these men. The accused charged in court was Dela Peña because he was the one who boxed him and hit with a piece of wood. The Barangay Tanod filed a case of direct assault under Art. 148, direct assault upon an agent of a person in authority. The defense raised by Dela Peña was, "No, he was a barangay, tanod, he cannot be considered as an agent of a person in authority at the time of that particular moment because it was already nighttime. Gabing gabing na, hindi na siya duty, off duty na po siya." That was the defense raised by the said accused.

The SC ruled that The said accused is liable of direct assault. In this case of Dela Peña v. People, the Supreme Court said, the said victim (barangay tanod) is an agent of a person in authority pursuant to the LGC under Sec. 338. A barangay tanod is an agent of a person in authority. The said barangay tanod was boxed on his jaw, he was hit with a piece of wood, and the accused knew him to be a barangay tanod. Hence, there was direct assault.

Supreme Court said there is no merit on the argument raised by the accused that he was already a private person at the time of the assault because it was already midnight, it was past the hours of his duty. Supreme Court said that a barangay tanod, just like a police officer has the duty to maintain peace and order in his community on a daily basis, regardless of the time of day. Therefore, it is the duty of a police officer or a barangay tanod to maintain peace and order in the community, in the vicinity, in the locality on a daily basis, regardless of the time of day even if it is already midnight. Hence, the assault on him is an assault on an agent of a person in authority

## INDIRECT ASSAULT (ART. 149)

**Article 149.** ***Indirect assaults.*** - The penalty of prision correccional in its minimum and medium periods and a fine not exceeding P500 pesos shall be imposed upon any person who shall make use of force or intimidation upon any person coming to the aid of the authorities or their agents on occasion of the commission of any of the crimes defined in the next preceding article.

**ELEMENTS:**

1. A person in authority or an agent of a person in authority is a victim of direct assault;
2. Someone came to his aid; and
3. The offender employed force or intimidation upon such person coming to the aid of the person in authority or agent of a person in authority.

The crime committed by the offender on the person who came to the aid is indirect assault.

**Offended Party is a person in authority or an agent of a person in authority is a victim of direct assault**

Based on the first element, Art. 149 was not amended by Congress, but Congress amended Art. 152. Under Art. 152, 2nd par., any person who comes to the aid of a person in authority who is a victim of direct assault is deemed to be an agent of a person in authority. Therefore, a person coming to the aid of a person in authority who is under direct assault is deemed to be an agent of a person in authority. When he, too, is assaulted, the crime committed is not Art. 149 indirect assault, but direct assault under Art. 148. This is because he is deemed to be an agent of a person in authority.

Therefore, Art. 149 will only apply if the victim of the direct assault is an agent of a person in authority and someone came to his aid and the offender employed force or intimidation on that person who gave the aid.

## RESISTANCE AND DISOBEDIENCE (ART. 151)

**Article 151.** ***Resistance and disobedience to a person in authority or the agents of such person.*** **-** The penalty of arresto mayor and a fine not exceeding 500 pesos shall be imposed upon any person who not being included in the provisions of the preceding articles shall resist or seriously disobey any person in authority, or the agents of such person, while engaged in the performance of official duties.

When the disobedience to an agent of a person in authority is not of a serious nature, the penalty of arresto menor or a fine ranging from 10 to P100 pesos shall be imposed upon the offender.

Under Art. 151, there are two acts punished:
1. resistance and serious disobedience, and
2. simple disobedience.

**Resistance and Serious Disobedience**

**ELEMENTS:**

1. A person in authority or his agent is engaged in the performance of his official function, or gives a local order;
2. Offender seriously disobeys or resisted the said order; and
3. That such resistance or disobedience will not amount to:
    a. Direct assault;
    b. Indirect assault; or
    c. Disobedience to summons issued by Congress.

**Simple Disobedience**

**ELEMENTS:**

1. A person in authority or his agent is engaged in the performance of official duty or gives a lawful order;
2. The offender disobeys such agent of a person in authority; and
3. Such disobedience is not in serious nature.

| RESISTANCE AND SERIOUS DISOBEDIENCE | SIMPLE OBEDIENCE |
|---|---|

| | |
|---|---|
| The person giving the lawful order can either be a person in authority or an agent. | The person giving the lawful order is merely an agent of a person in authority. |
| The said resistance or disobedience to the lawful order is serious in nature although not amounting to violations of Arts. 148, 149, and 150. | The said disobedience is not serious in nature. |

In the case of **Mallari v. People**, there was a commotion in a billiard hall and the police officers responded. The police officers tried to arrest the women who were involved in the said commotion. There was this one woman by the name of Mallari and the said woman refused to be brought to the PNP station. She grabbed the shirt of one of the police officers, Police Officer Navarro, slapped him in the face and thereafter kicked his legs a number of times. Because of this, Police Officer Navarro filed a case against Mallari for Direct Assault against an agent of person of authority. Mallari was convicted up to the Court of Appeals.

The Supreme Court said that when a person resists the arrest being done by a police officer and such resistance is not grave, dangerous or serious in nature, the crime committed is not Direct Assault against an agent of a person in authority. The crime committed is Resistance and Disobedience under Art. 151.

The Supreme Court again clarified is a mere agent of a person in authority, for direct assault to be committed, the attack or the force employed must be dangerous, serious or grave in nature. In this case, Mallari collared Police Officer Navarro and slapped the latter.

The Supreme Court said that the act done by Mallari is not dangerous, not serious or not grave in nature so as to amount to Direct Assault. So, the resulting felony is Art. 151, Resistance and Disobedience.

In the case of **Pablo vs. People**, despite the signage "NO ENTRY," the taxi driver still entered the said road. and so he was stopped by the traffic enforcers of Marikina in their complete uniform. They were asking for his license but he said, "Ticket-an nyo nalang ako, hindi ko ibibigay lisensya ko." An argument ensued, the traffic enforcers were trying to get his driver's license but he would not give it. The traffic enforcers told the passengers to just go to another taxi because there will be a long argument therein. When the taxi driver heard that, he got mad. He pulled out his pistol and pointed it to the two traffic enforcers. Thereafter, other traffic enforcers arrived and the taxi driver was arrested.

The taxi driver was prosecuted for Direct Assault upon an agent of a person in authority. MTCC Marikina convicted him of Art. 151 Resistance and Disobedience based on the ruling of the Supreme Court in **Mallari vs. People** reasoning that the act done by the taxi driver is not serious because he only pointed his gun at the traffic enforcers. The RTC and the CA ruled otherwise and convicted him of Direct Assault upon an agent of a person in authority.

The Supreme Court said the MTCC is wrong and the RTC and CA is correct that it is Direct Assault upon an agent of a person in authority. Based on the reasoning of the MTCC, the second, third and fourth elements of Direct Assault are present but the first element is absent because, based on the case of **Mallari vs. People**, the said act of the taxi driver cannot be considered as serious, dangerous and grave in nature.

The Supreme Court said that it must not be serious as a physical assault but the pointing of a gun at another amounts to serious intimidation. Under the first element, the offender makes an attack, employs force, makes serious intimidation or makes serious resistance. It is serious intimidation because the weapon used is a gun. Therefore, there was an intent to threaten and if he pulled the trigger it could result in the death of the traffic enforcers. Hence, the intimidation being serious, the crime committed is Direct Assault upon an agent of a person in authority.

In **Sydeco v. People**, Sydeco was driving his car with his employees. He is a bar owner. At wee hours of the morning, they passed by Roxas Boulevard where there was a checkpoint. According to the police officers, they took notice of this van because it was swerving from one lane to another. So, they told the van to make a stop. When the van came to a halt, the police officers used their flashlights and inspected the van. Thereafter, the police officer told the accused to get out of his van because he shall be searched. They also told the companions of the accused to get out of the van because they would be searched, and the van should be searched too. But the accused refused saying, "Plain view lang po, Sir. Bawal po ang personal search. Plain view lang." The police officers got mad at him and brought him out and thereafter a case was filed against him for resistance and serious disobedience under Article 151. Accused was convicted up to the Court of Appeals.

The SC acquitted Sydeco, ruling that all the elements of Article 151 are absent. First element, the person in authority or his agent is engaged in the performance of his function or gives a lawful order to the offender. The

Supreme Court said that the order given by the police officers to the accused and to his companions to get out of the said van because they will be searched, and the van will be searched is not a lawful order. The Supreme Court said that an accused or a person can only be searched, and his vehicle can only be searched if he is caught in flagrante delicto committing a crime. Here, the act of the accused in swerving from one lane to another cannot be considered as a criminal act. It is not a violation of the LTO Rules and Regulations unless and until there is a sign board which says no swerving. It being early hours of the morning (3 am), it will not cause traffic. Therefore, the order given by the police officers is not a lawful order. The first element is absent.

Second element, the offender resists or seriously disobeys such person in authority or his agent, is also absent. The said statement by Sydeco, his refusal to get out and to be subjected to a body search and his van to a search, and his insistence to a plain view search is a mere act within his rights. The Supreme Court said he has a right to protest on the said search because he was not caught in flagrante delicto committing a crime. He has a right to invoke his right to privacy. The said act done not being a lawful order, Sydeco has the right to refuse it. His insistence on a plain view search is not considered a refusal nor a violation.

Last element, that such resistance or disobedience will not amount to direct assault, indirect assault, or disobedience to summons issued by Congress, is also absent. Therefore, all the elements being absent, the Supreme Court held that the said accused should be acquitted of the crime charged.

## DISOBEDIENCE TO SUMMONS (ART. 150)

**Art. 150.** ***Disobedience to summons issued by the National Assembly, its committees, or subcommittees, by the Constitutional Commissions, its committees, subcommittees, or divisions.*** - The penalty of arresto mayor or a fine ranging from two hundred to one thousand pesos, or both such fine and imprisonment shall be imposed upon any person who, having been duly summoned to attend as a witness before the National Assembly, (Congress), its special or standing committees and subcommittees, the Constitutional Commissions and its committees, subcommittees, or divisions, or before any commission or committee chairman or member authorized to summon witnesses, refuses, without legal excuse, to obey such summons, or being present before any such legislative or constitutional body or official, refuses to be sworn or placed under affirmation or to answer any legal inquiry or to produce any books, papers, documents, or records in his possession, when required by them to do so in the exercise of their functions. The same penalty shall be imposed upon any person who shall restrain another from attending as a witness, or who shall induce disobedience to a summon or refusal to be sworn by any such body or official.

**Acts Punished**

I. **By refusing, without any legal excuse, to obey summons issued by the Congress or any of its committees, Constitutional Commissions, or subcommittees.**

Under the first act, the crime will arise if the refusal is without any legal excuse. If the said offender or the person to whom a summons was issued is in the hospital, he suffered a heart attack, or he suffered high blood pressure because of receipt of said summons, and suddenly he was brought to the hospital and it was the doctor that prevented him from going to the said hearing otherwise it will aggravate his condition, then he has a valid and legal excuse not to appear to the said hearing and not to obey the summons. It will not bring about criminal liability because there is a legal and valid justifiable excuse.

II. **By refusing to be sworn or to be placed under affirmation while being before such legislative or constitutional body or official.**

Under the second act, the said accused received the summons and appeared during the committee hearing. However, he refused to be sworn in and to be placed under affirmation. He refused to state that tell the truth and nothing but the truth. Thus, he becomes liable for disobedience to summons.

III. **By refusing to answer any legal inquiry or to produce any books, papers, or documents in his possession, when required by such legislative or Constitutional body to do so.**

Under the third act, the said accused received the summons, he appeared during the committee hearing, and he allowed himself to be sworn in. However, when the members of the Senate and the House or Representative began asking questions, he refused to answer the legal inquiry. Or, if there were books or documents in his possession, he refused to bring them. In that case, he becomes liable for violation of Article 150.

However, if the reason for not answering the questions raised by a Senator or Congressman or not bringing the

books is that it will incriminate him in the commission of the crime. Then, he has the right to do so.

**IV. By restraining another to attend as a witness in such legislative or constitutional body.**

Under the fourth act, it is not the accused who received the summons, it is another person. But he restrained that other person from attending the said legislative or committee hearing, from attending and giving his testimony as a witness.

**V. By inducing disobedience to a summons or refusal to be sworn by such legislative or constitutional body.**

These are the acts punished as disobedience to summons. Congress has the power to issue summons because under the Constitution, the Congress has the power to investigate. Since they have the power to investigate in aid of legislation, therefore they have the power to issue summons to those persons who could shed light on the said investigation. If he disobeys the summons, based on any of the acts enumerated under Article 150, the offender becomes liable for Disobedience to Summons.

## CHAPTER 5: PUBLIC DISORDERS

### TUMULTS AND OTHER DISTURBANCES (ART. 153)

**Art. 153.** ***Tumults and other disturbance of public orders; Tumultuous disturbance or interruption liable to cause disturbance.*** - The penalty of arresto mayor in its medium period to prision correccional in its minimum period and a fine not exceeding 1,000 pesos shall be imposed upon any person who shall cause any serious disturbance in a public place, office, or establishment, or shall interrupt or disturb public performances, functions or gatherings, or peaceful meetings, if the act is not included in the provisions of Articles 131 and 132.

The penalty next higher in degree shall be imposed upon persons causing any disturbance or interruption of a tumultuous character.

The disturbance or interruption shall be deemed to be tumultuous if caused by more than three persons who are armed or provided with means of violence.

The penalty of arresto mayor shall be imposed upon any person who in any meeting, association, or public place, shall make any outcry tending to incite rebellion or sedition or in such place shall display placards or emblems which provoke a disturbance of the public order.

The penalty of arresto menor and a fine not to exceed P200 pesos shall be imposed upon these persons who in violation of the provisions contained in the last clause of Article 85, shall bury with pomp the body of a person who has been legally executed.

**Acts Punished**

**I. By causing any serious disturbances in a public place, office, or establishment.**

Under the first act, by causing any serious disturbances in a public place, office or establishment, there must be deliberate intent on the part of the offender to cause a serious disturbance when he went to the said public place. He went to the said public place, deliberately to cause serious disturbance. Therefore, it was planned. He planned to cause serious disturbance in going to the said public place.

**II. By interrupting or disturbing performances, functions or peaceful gatherings or peaceful meetings. Provided, the act does not amount to violation of Articles 131 (prohibition, interruption, and dissolution of peaceful meetings) and 132 (interrupting of religious worship).**

Under the second act, you have to distinguish it from violations of Articles 131 and 132. Article 131 is the prohibition, interruption, and dissolution of peaceful meetings and Article 132 interruption of religious worship. In order to bring about violation of Article 153, the interruption or disturbance of public performances, functions, and peaceful gatherings must not amount to violations of Articles 131 and 132.

**III. By making any outcry tending to incite rebellion or sedition in any meeting, association, or public place.**

**IV. By displaying placards or emblems which provoke a disturbance of public order in such meeting, association, or public place.**

Under the third and fourth act, when you say making an outcry tending to incite rebellion or sedition in any meeting, association, or public place, when you say outcry,

it is an act of shouting perversive, provocative words in order to stir the audience and the people to obtain by means of force and violence any of the objects, purposes, or designs of rebellion or sedition. The outcry, the displaying of placards and emblems must be brought about by some **unconscious outburst of emotions.** Therefore, when the said offender went there, it was not his intention to make the outcry or display these placards, the said outcry or display of placards was brought about by some unconscious outburst of emotions not intentionally done. It was only brought about by the circumstances that took place in the gathering or meeting.

Thus, it must not be intentionally calculated to incite people to rebel or to commit sedition because otherwise, the crime would be inciting to rebellion or inciting to sedition.

**V. By burying with pomp, the body of a person who has been legally executed.**

Under the fifth act, by burying with pomp the body of a person who has been legally executed. A person is said to be legally executed when he committed a heinous crime and he was sentenced with death penalty, a capital punishment and the State executed the death penalty. If this person is buried with such extravagance as if he is a hero, those participating in the said extravagant act of burying can be liable under Article 153. If they will bury this convict executed with pomp, with extravagance as if he was a hero, it will raise public emotion. People will sympathize. People will believe that the State committed a mistake in executing him. In that case, they can be held liable for Disturbance of Public Order.

These are the acts punished as disturbance to public order. If these acts are committed, by more than 3 persons who are armed or provided by means of violence, it is considered as tumultuous in nature.

Therefore, there must be at least four persons who are armed or provided with means of violence for it to be considered as tumultuous.

**Art. 153 vis-a-vis Arts. 131 and 132**

| TUMULTS AND OTHER PUBLIC DISTURBANCES (ART. 153) | PROHIBITION, INTERRUPTION, AND DISSOLUTION OF PEACEFUL MEETINGS (ART. 131) & INTERRUPTING OF RELIGIOUS WORSHIP (ART. 132) |
|---|---|
| ***As to the Person of the Offender*** | |
| The offender can be any person. He can be a public officer or employee, or he can be a private person. | Since it is under Title II: Crimes Against the Fundamental Law of the State, it is committed only by a public officer or employee. Here, the offender is always a public officer or employee. |
| ***If the offender is a public officer*** | |
| The said public officer offender who is making the interruption or disturbance must be a participant in the said peaceful gathering or function. | The public officer offender who is making the disturbance or interruption is an outsider insofar as the said public gathering or religious worship is concerned. |
| ***Purpose*** | |
| The purpose of the offender is to cause a disturbance of public order. To disturb the peaceful gathering. | The purpose of the offender is to prevent a person from freely exercising his freedom of speech, freedom of expression, freedom of gathering, freedom of association, or freedom to express his religious worship. |

**UNLAWFUL USE OF MEANS OF PUBLICATION AND UNLAWFUL UTTERANCES (ART. 154)**

**Art. 154.** ***Unlawful use of means of publication and unlawful utterances.*** - The penalty of arresto mayor and a fine ranging from P200 to P1,000 pesos shall be imposed upon:

1. Any person who by means of printing, lithography, or any other means of publication shall publish or cause to be published as news any false news which may endanger the public order, or cause damage to the interest or credit of the State;

2. Any person who by the same means, or by words, utterances or speeches shall encourage disobedience to the law or to the constituted authorities or praise, justify, or extol any act punished by law;

3. Any person who shall maliciously publish or cause to be published any official resolution or document without proper authority, or before they have been published officially; or

4. Any person who shall print, publish, or

> distribute or cause to be printed, published, or distributed books, pamphlets, periodicals, or leaflets which do not bear the real printer's name, or which are classified as anonymous.

There is no particular law that punishes fake news. In fact, we do not have a particular definition of what fake news is. There was a bill in Congress, but it was not enacted into law. There is no concrete or particular definition of what fake news is. There is no law, in particular, expressly punishing the spreading of fake news. However, the offender can be held liable under Article 154. If it is done via internet, it would be in relation to the Anti-Cybercrime Law.

**Acts Punished**

I. **By publishing or causing to be published by means of printing lithography or any other means of publication, as news any false news which may endanger the public order, or cause damage to the interest or credit of the State.**

Under the first act, what has been published is a false news which must endanger public order or may cause damage to public interest.

The offender, the author, and the publisher knew that it is false. Nevertheless, despite such knowledge that it is false, he still published the same. If the false news would endanger public order or cause damage to the interest or credit of the State, the offender can be held liable under Article 152.

If it is done via internet, it is in relation to R.A. 10175 or the Anti-Cybercrime Law (Cybercrime Prevention Act of 2012) as stated in Sec, 6 as follows:

> **Sec. 6.** All crimes defined and penalized by the Revised Penal Code, as amended, and special laws, if committed by, through and with the use of information and communications technologies shall be covered by the relevant provisions of this Act: Provided, That the penalty to be imposed shall be one (1) degree higher than that provided for by the Revised Penal Code, as amended, and special laws, as the case may be.

II. **By encouraging disobedience to the law or to the constituted authorities or by praising, justifying, or extolling any act punished by law.**

Under the second act, anyone who encourages disobedience to the law or an act which is punished by law can be held liable under Art. 154.

**Q: There was a new law enacted by Congress and there were members of a Non-Governmental Organization who were against the implementation of this new law. The members of the NGO prepared leaflets and distributed it to the people encouraging the people not to comply with the law or obey the law. When they were distributing it to the public, they were arrested. Are they liable for Inciting to Sedition or are they liable for Unlawful Use of Means of Publication under the Second Act of Article 154?**

**A:** They are liable for violation of Article 154, Second Act. They encouraged disobedience to this new law about to be implemented or promulgated. It is already a law. It has already been enacted by Congress and signed by the President. Since it is a law, we are obliged to obey the said law. If you have any grievance against the said law, go through the proper means. But you have to obey the law.
ence, the offender can be liable for violation of Article 154, second act.

**Q: Why not inciting to sedition?**

**A:** Because these offenders, in preparing the leaflets, encouraging the public to disobey the law is not encouraging them to publicly uprise, they were only encouraging them to disobey the law, not to publicly uprise. Therefore, it cannot be inciting to sedition.

III. **By maliciously publishing or causing to be published any official resolution or document without proper authority, or before they have been published officially.**

Take note of the word maliciously. The act of publishing, causing to be published any official resolution or document without proper authority or before they have been published officially must be done with malice (deliberate intent). Otherwise, Article 154 is not violated.

IV. **By printing, publishing, or distributing books, pamphlets, periodicals, or leaflets which do not bear the real printer's name, or which are classified as anonymous.**

Every publication, printing must contain the real printer's name or it cannot be classified as anonymous. Otherwise, the offender becomes liable for unlawful use of means of publication.

These acts are considered as unlawful use of means of publication punished Article 154

## ALARMS AND SCANDALS (ART. 155)

**Article 155.** ***Alarms and scandals***. - The penalty of arresto menor or a fine not exceeding P200 pesos shall be
imposed upon:

1. Any person who within any town or public place, shall discharge any firearm, rocket, firecracker, or other explosives calculated to cause alarm or danger;

2. Any person who shall instigate or take an active part in any charivari or other disorderly meeting offensive to another or prejudicial to public tranquility;

3. Any person who, while wandering about at night or while engaged in any other nocturnal amusements, shall disturb the public peace; or

4. Any person who, while intoxicated or otherwise, shall cause any disturbance or scandal in public places, provided that the circumstances of the case shall not make the provisions of Article 153 applicable.

**Acts Punished**

I. **Discharging any firearm, rocket, firecracker, or other explosives within any town or public place calculated to cause (which produces) alarm or danger.**

The purpose is to cause alarm and danger. In case of discharging of firearms, take into consideration the intent of the offender. If the intent of the offender in the act of discharging the firearm is to kill a person, although the person is not hit, the crime committed is already attempted homicide/murder.

But if the act of discharging the firearm or pointing the gun is done without intent to kill, the discharge of firearm will not kill the person because the offender knew that it is outside the shooting range (malayo siyang maabot pero dinischarge parin nya firearm), the crime committed is Illegal Discharge of Firearms under Article 254.

If the act of discharging of firearm is intended to cause alarm and danger in a public place, the crime committed is alarms and scandals. If the firearm is not discharged but merely poked or merely pointed at the temple, at the head, at the chest, the crime committed can either be grave threats or other crimes. So, in discharging of firearms, if pointed and fired, the crime committed can either be an attempted felony, illegal discharge of firearm, or alarms and scandals.

If it was only pointed or poked, depending on the accompanying word (e.g. papatayin kita or any other term), but he did not do it, it will be grave threats. But if he merely poked it without saying any words, it is only other light threats. So, it depends on the intent of the offender, whether the firearm is discharged or merely poked or pointed at another person.

II. **Instigating or taking an active part in any charivari or other disorderly meeting offensive to another or prejudicial to public tranquility.**

**NOTE:** When you say charivari, it is a disorderly act. The offender, instead of using a certain music, they used other instruments to produce noise – a mock serenade, a mocking use of instruments that caused alarm and danger, annoying or disturbing public peace or order.

III. **Disturbing the public peace while wandering about at night or while engaged in any other nocturnal amusement.**

In your place, there would sometimes be birthday parties wherein there will be karaoke and sometimes, you are already about to sleep but you can still hear the voices of those singing. There are some municipalities who have ordinances that prevent these. But there are certain municipalities that do not have these ordinances, and if you happen to live in that municipality, then these men can be charged with alarms and scandals.

IV. **Causing any disturbance or scandal in a public place whether intoxicated or not, provided Article 153 is not applicable.**

In case of tumults and disturbance of public order under Article 153, the intent of the offender in going to the said public place is to cause serious disturbance – causing any serious disturbance in a public place, office, or establishment (first act punished under Article 153).

In the fourth act punished in alarms and scandals, the offender, in going to the said public place has to intention to cause disturbance or scandal. However, because of the turn of events, he caused scandal or disturbance, whether

intoxicated or not. He becomes liable for alarms and scandals.

### DELIVERING PRISONERS FROM JAIL (ART. 156)

**Article 156.** ***Delivery of prisoners from jails.*** - The penalty of arresto mayor in its maximum period of prision correccional in its minimum period shall be imposed upon any person who shall remove from any jail or penal
establishment any person confined therein or shall help the escape of such person, by means of violence, intimidation, or bribery. If other means are used, the penalty of arresto mayor shall be imposed.

If the escape of the prisoner shall take place outside of said establishments by taking the guards by surprise, the same penalties shall be imposed in their minimum period.

**ELEMENTS:**

1. That there is a person confined in a jail or penal establishment;
2. That the offender removes therefrom such persons or assisted in the escape of such person.

Prisoners being referred to under Article 156 can be any prisoner. He can be a prisoner convicted by final judgment or a detention prisoner, provided he is in jail.

The offender under Article 156 can be any person. He can be a public officer/employee, he can be a private person, he can be an inmate, he can be a stranger.

**NOTE:** Article 156 may be committed by any person except the custodian of the said prisoner. If it is the custodian, it is infidelity in the custody of prisoners under Article 223 or Article 224 of Title VII because there is a violation of the trust and confidence reposed on him as the custodian of the said prisoner.

**Qualifying Circumstances**

1. If violence or intimidation has been used in the commission of the crime;
2. Bribery is used in delivering persons from jail.

## CHAPTER 6:
## EVASION OF SERVICE OF SENTENCE

**Kinds of Evasion of Service of Sentence**

1. Evasion of service of sentence under Art. 157.
2. Evasion of service of sentence on the occasion of disorder, conflagrations, earthquakes, or other calamities.
3. Evasion of service of sentence by violation of the conditional pardon.

### EVASION OF SERVICE OF SENTENCE (ART. 157)

***Article 157. Evasion of service of sentence.*** - The penalty of prision correccional in its medium and maximum periods shall be imposed upon any convict who shall evade service of his sentence by escaping during the term of his imprisonment by reason of final judgment.

However, if such evasion or escape shall have taken place by means of unlawful entry, by breaking doors, windows, gates, walls, roofs, or floors, or by using picklocks, false keys, deceit, violence or intimidation, or through connivance with other convicts or employees of the penal institution, the penalty shall be prision correccional in its maximum period.

**ELEMENTS:**

1. The offender is a convict by final judgment;
2. That he is serving his sentence which consists in a deprivation of liberty; and
3. That he evades the service of his sentence by escaping during the term of his sentence.

**The offender is a convict by final judgment.**

Whatever be the kind of evasion (either Art. 157, 158, or 159), evasion can only be committed by a prisoner convicted by final judgment.

It cannot be committed by a mere detention prisoner because a mere detention prisoner is still facing the trial, it just so happened that he cannot post the bail fixed by the Court or the crime he committed is not bailable, but he is not yet convicted, he is not yet serving his sentence, he is only placed behind bars in order to prevent his escape. Therefore, he has yet no sentence to evade.

**Offender is serving his sentence which consists in a deprivation of liberty.**

Those who are imprisoned are deprived of their liberty.

If the penalty imposed is destierro, the offender may still commit evasion of service of sentence under Art. 157

because destierro also involves deprivation of liberty although partial in nature because a person sentenced with destierro is prohibited from entering the place designated in the judgment of the Court.

If he enters this place which he is prohibited from entering, he commits evasion under Article 157.

**Qualifying circumstances**

If evasion takes place:

1. By means of unlawful entry ("by scaling");
2. By breaking doors, windows, gates, walls, roofs or floors;
3. By using picklock, false keys, disguise, deceit, violence or intimidation; or
4. Through connivance with other convicts or employees of the penal institution.

**Q: X is a prisoner convicted by final judgment. He is serving his final judgment, he is in the penal institution. He has a friend by the name of Y. Y is his childhood friend and best friend. They treat each other as brothers. Y often visits X. In one of his visits, Y was able to bring inside two knives because X had long been requesting Y to help him get out. Finally, Y was able to smuggle inside two sharp knives. Together with the food, the guard was not able to see it. The two friends were now eating. Y told X that he has two knives. Thereafter, he gave one to X. While they were eating, they were planning what they will do. Thereafter, they saw the custodian of X by the name of Z. X himself told Z, *"Sir lunch na! Sipag mo naman, kain ka! Madaming dalang pagkain kaibigan ko. Kain ka Sir"*. Z said, *"Sige, gutom na nga ako!"*. So, the custodian went with them to their table and ate together with them.**

**While the custodian was eating together with X and Y, X looked at Y, and together, with the signal of Y, placed the knives in the neck of Z and told Z to give them the key or else, they will stab him. Since knives were pointed at Z, he cannot do anything, so he gave the key to X. X was able to leave together with Y. What crime/s are committed by X, Y, and Z?**

**A:** X, a prisoner convicted by final judgment, is liable for evasion of service of sentence under Article 157, qualified by intimidation. The penalty shall be qualified because he intimidated the custodian by means of the said knives, pointed at the neck of the custodian.

Y, the friend, is liable for delivering prisoners from jail. All the elements are present. X is a prisoner, he is there in the penal institution and Y assisted in X's removal from the said institution. The penalty is also qualified by intimidation.

Z, the custodian, his liability is under Article 224, infidelity in the custody of prisoner by evasion through negligence. He is a public officer, he is the one entrusted with the custody of X, a prisoner convicted by final judgment, and X was able to escape by reason of his negligence. The negligence punished by law must amount to a deliberate non-performance of his official duty. The duty of a custodian is to guard the prisoner, not to dine or eat together with the said prisoner. When he accepted the offer of X to eat together with them, there is negligence on his part, there is a violation of his duty to guard the said prisoner. Therefore, Z will be liable for infidelity in the custody of prisoners under Article 224 by evasion through negligence.

**Q: X is a prisoner convicted by final judgment. X told his friend Y, who often visits him, that he wanted to go out for Christmas Day. Y, who has a good paying job, promised X that he will be able to spend Christmas Day outside the penal institution. On that same day, before leaving, Y talked to the custodian of X, and Y told the custodian that his friend intends to leave the said penal institution and that if he will allow him to leave, Y will give him Php 100,000. The custodian was in need of money, it was Christmas time, he needed much money. So, the custodian said yes to the offer made by Y. The custodian told Y to give him the money today and X will be able to leave tonight. Y left and thereafter, he came back hours later and he gave the Php 100,000 to the said custodian. That night, X was able to have a successful escape and he went to the house of his friend. What crime/s are committed by X, Y, and the custodian?**

**A:** X, a prisoner convicted by final judgment, is liable for evasion of service of sentence under Article 157. X is a prisoner convicted by final judgment and he evades the service of his sentence by escaping during the term of his sentence.

Y, the friend, is liable for delivering prisoners from jail under Article 156. Since the act of assisting in the removal of X from jail is done by him by making and giving this bribe money to the custodian, he is also liable for corruption of public official under Article 212. So, Y committed to crimes which are delivering prisoners from jail under Article 156 and corruption of public officials under Article 212.

The custodian is liable for infidelity in the custody of prisoner under Article 223 by conniving or consenting the escape of a prisoner. The custodian has been entrusted the custody of this prisoner. The prisoner escaped because he connives, consents with the escape of the said prisoner. Therefore, the said custodian is liable for infidelity in the custody of the prisoner by conniving and consenting with the escape of said prisoner.

How did he connive? He received the bribe, he received the P100,000. Therefore, in addition to infidelity in the custody of prisoner under Art. 223, by conniving or consenting to the escape of the prisoner, the custodian is also liable for direct bribery under Art. 210. A public officer who received a bribe in connection with the performance of his official function – he received the bribe in order to allow X to leave the penal institution. X, the very prisoner he has been entrusted to see.

Therefore, in this case, he will be liable for 2 crimes: 1) infidelity in the custody of prisoner under Art. 223 by conniving and consenting in the escape of the prisoner; and 2) direct bribery under Art. 210.

**Q: Aren't you going to complex it? Isn't it if the said custodian connived and consented because of the bribe money, P100,000 that he received, an offense is a necessary means to commit the other? Therefore, should they be complexed?**

**A:** NO. Because under Article 210 Direct Bribery, the law prohibits the complexity of crimes. Under Art. 210, the penalty for direct bribery shall be in addition to any other liability arising from the crime agreed upon. Therefore, you cannot complex it even if direct bribery was a necessary means to commit infidelity in the custody of prisoners, Art. 210 Direct Bribery prohibits complexing of crimes. Therefore, there will be two crimes committed by the said custodian: infidelity and direct bribery.

## EVASION OF SERVICE OF SENTENCE IN TIMES OF CALAMITIES AND DISORDER (ART. 158)

**Article 158.** ***Evasion of service of sentence on the occasion of disorder, conflagrations, earthquakes, or other calamities.*** - A convict who shall evade the service of his sentence, by leaving the penal institution where he shall have been confined, on the occasion of disorder resulting from a conflagration, earthquake, explosion, or similar catastrophe, or during a mutiny in which he has not participated, shall suffer an increase of one-fifth of the time still remaining to be served under the original sentence, which in no case shall exceed six months, if he shall fail to give himself up to the authorities within forty-eight hours following the issuance of a proclamation by the Chief Executive announcing the passing away of such calamity. Convicts who, under the circumstances mentioned in the preceding paragraph, shall give themselves up to the authorities within the above mentioned period of 48 hours, shall be entitled to the deduction provided in Article 98.

**ELEMENTS:**

1. The offender is a prisoner convicted by final judgment;
2. He is serving his sentence in a penal institution;
3. There is a calamity or disorder arising from an explosion, earthquake, catastrophe, or a mutiny in which he has not participated; and,
4. He escapes in times of these calamities and disorders and thereafter, he fails to give himself up to the proper authorities within 48 hours following the declaration of the Chief Executive that the calamity has already lapsed.

**Offender is serving his sentence in a penal institution**

Under Art. 158, the second element requires that he must be serving his sentence in a penal institution. He must be behind bars, not merely a sentence which merely deprives him of his liberty.

**There is a calamity or disorder arising from an explosion, earthquake, catastrophe, or a mutiny in which he has not participated.**

There must be a calamity, disorder, earthquake or any other catastrophe, or there is a mutiny in which he did not participate.

**He escapes in times of these calamities and disorders and thereafter, he fails to give himself up to the proper authorities within 48 hours following the declaration of the Chief Executive that the calamity has already lapsed.**

Upon his escape, he is not liable under Art. 158. He is allowed to escape because there is a calamity. Prisoners are accountable to the State. In times of calamities, in times of catastrophe, the state can no longer protect them.

Therefore, prisoners may leave. Upon escaping or leaving, they are not liable.

**Q: When will the crime arise?**

**A:** Based on the fourth element, if they fail to return to the proper authorities within 48 hours following the declaration by the Chief Executive that the calamity had already lapsed. If after the calamity had lapsed, the President declared that the calamity had already lapsed and ordered all the prisoners to return within 48 hours, failure to do so will make the offender liable under Article 158. That is the time the crime will arise.

**Q: X is a prisoner serving his sentence at the Bilibid. There was this very strong earthquake, magnitude 7. Everything was falling, the building was shaking, there was a loud siren at the National Penitentiary. They were trained in a seminar that the moment they heard that kind of siren, they are allowed to leave, there is danger. All gates were opened, prisoners were allowed to leave.**

**X left and went to the house of a friend. Two days thereafter, the President, in a press conference in Malacañang, televised and heard over the radio. He was stating, *"The earthquake had already lapsed, I got confirmation and no more aftershocks. All you prisoners of the national penitentiary who left, you are given 48 hours to return. If you fail to return, there will be a manhunt against you, so return within 48 hours."***

**X heard it but did not return. He likes the life outside. Afraid that he will be discovered in the place of his friend, he went from one place to another. He went into hiding. There was a warrant of arrest issued against him. The police officers were looking for him.**

**After several months, the police authorities finally found X and thereafter, X was brought back to jail. What is the effect of X's act of not returning within 48 48 hours following the declaration by the Chief Executive that the calamity had already lapsed?**

**A:** He will be charged with Evasion of Service of Sentence under Art. 158 of the RPC. In case of conviction, he will be penalized with a penalty equivalent to one-fifth (1/5) of the term of his sentence.

Other effect, if you will remember the Indeterminate Sentence Law, among those disqualified to be given an indeterminate sentence is a prisoner who has escaped or evaded the service of sentence. Therefore, X is not entitled to an indeterminate sentence. The penalty to be imposed on him was the straight penalty equivalent to 1/5 of the term of the service of sentence, but in no case to be more than six (6) years.

**Q: What if in the same problem, X after hearing the press conference of the President ordering them to return within 48 hours, X immediately returned. What is the effect?**

**A:** There will be a one-one fifth deduction based on the remainder of his sentence. This is also in Book 1, Art. 90, as amended by RA 10592 or special allowance for loyalty.

**Q: What if in the same problem, despite the earthquake, X did not leave, and he survived. What is the effect on his criminal liability?**

**A:** There will be two-fifths (2/5) deduction based on the term of his sentence. He who stayed put has a greater credit or special allowance for loyalty than he who left and then returned.

**Q: There was an old case in the book of Reyes. It was a CA decision, not an SC decision. The prisoner detained at the Bilibid left during a riot, and he failed to return. Is he liable under Art. 157?**

**A:** This did not reach the Supreme Court, meaning the accused is amenable to the decision of the CA. The CA said a riot is not a mutiny, a catastrophe, nor a calamity. Therefore, Art. 157 will apply. The moment he left the institution, he immediately becomes liable for evasion of service of sentence and no amount of return within 48 hours will bring about an allowance for loyalty because according to the Court of Appeals, a riot is not a mutiny.

When you say a riot, it is a commotion, a fight among inmates (**Gang v. Gang**). But, when you say a mutiny, it is an act of disturbance, commotion, a protest of the prison guards or officers against their lawful authority, the director of prison. Therefore, a mutiny is not a riot.

Hence when the escape is done during a riot, the moment the prisoner escapes, he immediately becomes liable for the liabilities under Art. 157 Evasion of Service of Sentence and no amount of return within 48 hours will give him the benefit of a special allowance for loyalty.

## OTHER CASES OF EVASION OF SERVICE OF SENTENCE (ART. 159)

**Article 159.** ***Other cases of evasion of service of sentence.*** - The penalty of prision correccional in its

minimum period shall be imposed upon the convict who, having been granted conditional pardon by the Chief Executive, shall violate any of the conditions of such pardon. However, if the penalty remitted by the granting of such pardon be higher than six years, the convict shall then suffer the unexpired portion of his original sentence.

This is the third kind of evasion of service of sentence – evasion of service of sentence by violation of the conditional pardon.

**ELEMENTS:**

1. The offender is a prisoner convicted by final judgment;
2. He has been granted conditional pardon by the President or Chief Executive; and
3. He violates the terms of his conditional pardon.

**NOTE:** As discussed in Book 1, Art. 94, conditional pardon is only a mode for partially extinguishing criminal liability because, unlike an absolute pardon, a conditional pardon is subject to strict terms and conditions. The said offender granted conditional pardon must comply with the terms and conditions attached to the conditional pardon. If he violates, he becomes liable for violation of evasion of service of sentence under Art. 159.

**Q: Is evasion of service of sentence under Art. 159 Evasion of Service of Sentence by Violation of Conditional Pardon a substantive felony or not? (BAR Q)**

**A:** It depends. There are two situations being referred to under Art. 159.

1. ***If the penalty remitted by grant of pardon does not exceed or is more than six (6) years*** - for having violated the said conditions of the said pardon, a new penalty shall be imposed on him.

2. ***If the penalty remitted by grant of pardon exceeds or is more than six (6) years*** - even if he violates the conditions, no new penalty shall be imposed on him. He shall only serve the remainder of his sentence. In this case, Art. 159 is NOT A SUBSTANTIVE offense because no new penalty is imposed on the part of the said offender

## CHAPTER 7: COMMISSION OF ANOTHER CRIME DURING SERVICE OF PENALTY IMPOSED FOR ANOTHER OFFENSE; PENALTY

### QUASI-RECIDIVISM (ART. 160)

**Article 160.** ***Commission of another crime during service of penalty imposed for another offense; Penalty.*** - Besides the provisions of Rule 5 of Article 62, any person who shall commit a felony after having been convicted by final judgment, before beginning to serve such sentence, or while serving the same, shall be punished by the maximum period of the penalty prescribed by law for the new felony.

Any convict of the class referred to in this article, who is not a habitual criminal, shall be pardoned at the age of seventy years if he shall have already served out his original sentence, or when he shall complete it after reaching the said age, unless by reason of his conduct or other circumstances he shall not be worthy of such clemency.

**ELEMENTS:**

1. The offender was already convicted by final judgment of one offense;
2. He committed a new felony before beginning to serve such sentence or while serving the same.

A special aggravating circumstance. See discussion in *Aggravating Circumstances.*

# TITLE 4: CRIMES AGAINST PUBLIC INTEREST

## CHAPTER 1: FORGERIES

### FORGING THE SEAL OF THE GOVERNMENT OF THE PHILIPPINE ISLANDS, THE SIGNATURE OR STAMP OF THE CHIEF EXECUTIVE (Art. 161)

**ARTICLE 161.** ***Counterfeiting the great seal of the Government of the Philippine Islands, forging the signature or stamp of the Chief Executive.*** **–** The penalty of reclusion temporal shall be imposed upon any person who shall forge the Great Seal of the Government of the Philippine Islands or the signature or stamp of the Chief Executive.

**ACTS PUNISHED:**

I. Forging the Great Seal of the Government of the Philippines.
II. Forging the signature of the President.

III. Forging the stamp of the President.

## USING FORGED SIGNATURE COUNTERFEIT SEAL OR STAMP (ART. 162)

**Art. 162.** ***Using Forged Signature or Counterfeit Seal or Stamp.*** **—** The penalty of *prisión mayor* shall be imposed upon any person who shall knowingly make use of the counterfeit seal or forged signature or stamp mentioned in the preceding article.

The law punishes the person who, despite knowledge that this document contains the forged seal, forged stamp, or forged signature of the president, would still make use of the same.

**ELEMENTS:**

1. That the Great Seal of the Republic was counterfeited or the signature or stamp of the Chief Executive was forged by another person.

2. That the offender knew of the counterfeiting or forgery.

3. That he used the counterfeit seal or forged signature or stamp.

**Q: What if X applied for a government position, he was told that in order to be accepted, it is necessary that aside from his very good achievements in the CV, it is necessary that there is a recommendation coming from a politician? Without a recommendation coming from a politician, his papers will not be looked into. X does not want to ask the help of his Mayor nor his Congressman. However, X was able to get hold of a document coming from Malacañang which contains the signature of President Marcos. So he went to his best friend Y. Y is very good at counterfeiting and imitating a signature of any person. So, X told Y to imitate/copy/counterfeit the signature of President Marcos. They were able to produce a fake letterhead coming from Malacañang. Indeed, he wrote a recommendation below the said letterhead and thereafter his friend Y affixed the signature of the President, counterfeiting the signature of President Marcos. Thereafter, X attached it to his application letter for the said government agency. The reviewing committee of the said government agency, however, discovered that this attached recommendation coming from the President is a falsity. It contains the counterfeited/imitated signature of the President. What crime/s is committed by X and his friend Y?**

**A:** Insofar as Y who counterfeited/imitated/forged the signature of the President, the committed is under Article 161 - Forging the signature of the President. Art. 161 punishes the act of forging the great seal of the Republic of the Philippines, the stamp of the President, and the signature of the President. On the other hand, Art. 162 punishes the person, who despite knowledge that the said document contains the forged signature of the President, makes use of the same. Therefore, X will be liable under Art. 162 because despite knowledge, he still made use of the said document which contains the forged signature of the President.

## MAKING AND IMPORTING AND UTTERING FALSE COINS (ART. 163)

**Art. 163.** ***Making and Importing and Uttering False Coins.*** **—** Any person who makes, imports, or utters false coins, in connivance with counterfeiters or importers, shall suffer:

1. *Prisión mayor* in its minimum and medium periods and a fine not to exceed 10,000 pesos, if the counterfeited coin be gold or silver coin of the United States or of the Philippine Islands.

2. *Prisión correccional* in its minimum and medium periods and a fine of not to exceed 2,000 pesos, if the counterfeited coin be any of the minor coinage of the United States or of the Philippine Islands.

3. *Prisión correccional* in its minimum period and a fine not to exceed 1,000 pesos, if the counterfeited coin be currency of a foreign country.

**ELEMENTS:**

1. That there be false or counterfeited coins;
2. That the offender either made, imported or uttered such coins; and
3. That in case of uttering such false or counterfeited coins, he connived with the counterfeiters or importers.

**Acts Punished**

I. ***Counterfeiting*** **-** it means imitating the peculiar design of a genuine or authentic one in order to produce a spurious one. Any coin, as long as it is genuine and authentic, can be a subject of counterfeiting. It could be coins of present currency, old, or vintage coins. It could also be coins of foreign currency. As long as it is genuine and authentic, it can be the subject of counterfeiting.

II. ***Importing false coins*** **-** it is the act of bringing the falsified or counterfeited coins to the Philippine ports.

III. ***Uttering of coins*** - it is the act of circulating, passing from one person to another, the counterfeited or falsified coins.

In case of counterfeiting of coins, the coins which can be the subject of counterfeiting may be any coins for as long as it is genuine and authentic. It could be coins of present circulation. It could be old or vintage coins (e.g., coins from the time of Former President Marcos, Sr. and coins from the time of Rizal). It could be foreign coins, any coins. For as long as it is genuine and authentic, it can be the subject of counterfeiting because it can be imitated. What is being punished is the imitation/copying of the peculiar design in order to produce a spurious.

## MUTILATION OF COINS; IMPORTATION AND UTTERANCE OF MUTILATION OF COINS (Art. 164)

**Art. 164.** ***Mutilation of Coins; Importation and Utterance of Mutilated Coins.*** **—** The penalty of *prisión correccional* in its minimum period and a fine not to exceed 2,000 pesos shall be imposed upon any person who shall mutilate coins of the legal currency of the United States or of the Philippine Islands or import or utter mutilated current coins, or in connivance with mutilators or importers.

**Mutilation of coins**

It happens when the offender scratches or scrapes a part of the metal content of a coin, thereby diminishing the intrinsic value of the coin.

For the crime to arise, it is necessary that the coin mutilated **must be of present circulation**. It is one being used in the Philippines as its currency. Mutilation of coins will not arise if the coin mutilated is an old or vintage coin, or a coin of foreign currency. The reason is that even if these coins are mutilated, the public will not be deceived because they are not being used by the public as current currency.

**Counterfeiting vs. Mutilation**

| COUNTERFEITING | MUTILATION |
|---|---|
| The coins which may be subject of counterfeiting may be any coin for as long as it is genuine and authentic. | The coins which must be the subject of mutilation must be in present circulation. If it is not, the crime will not arise. |

## SELLING OF FALSE OR MUTILATED COIN, WITHOUT CONNIVANCE (ART. 165)

**Art. 165.** ***Selling of False or Mutilated Coin, Without Connivance.*** **—** Any person who knowingly, although without the connivance mentioned in the preceding articles, shall possess false or mutilated coin with intent to utter the same, or shall actually utter such coin, shall suffer a penalty lower by one degree than that prescribed in said articles.

**Acts Punished**

I. **Possession of coin, counterfeited or mutilated by another person, with intent to utter the same, knowing that it is false or mutilated.**

**ELEMENT:**

a. Possession;
b. With Intent to utter; and
c. Knowledge.

II. **Actually uttering such false or mutilated coin, knowing the same to be false or mutilated.**

**ELEMENT:**

a. Actually uttering; and
b. Knowledge.

**Q: Mother X went to the market with P2,000. Based on the budget, it is enough to buy the needs of the family. After buying all the needs in the list, she now has a few coins left – the change. She flagged down a tricycle and told the tricycle her address to bring her home. The tricycle stopped at the gate of her house. When the tricycle stopped at the gate of the house, X alighted and took coins from her pocket. The fare is P40 so she gave the driver four (4) P10 coins. When the tricycle driver received the said four (4) P10 coins, the tricycle driver said, "Nay, peke 'to. Bakit ka nagbabayad ng peke, 'nay?" X replied, "Ha hindi ko alam na peke yan, sukli lang yan sa akin sa palengke. Wait here, I'm going inside the house, and I will give you the P40." X went inside her house to get the P40 but when she came back, the tricycle driver was no longer there. She stood there looking for the tricycle driver. Suddenly, the tricycle arrived. Onboard the tricycle were two police officers and told X, "You are under arrest. There is a complaint against you – you paid him fake, counterfeited, falsified P10 coins." So, the said woman was arrested. Is the said woman liable for possession of counterfeited coins under Art. 165?**

**A:** No, the woman is not liable. Although she was found in possession of the counterfeited coins, and that by her acts, there was on her part intent to utter the same, to circulate the same, she lacks knowledge that the coins were counterfeited or imitated. The second element is wanting as she had no knowledge that the coins were counterfeited because they were just given to her as change for the things she bought at the public market. Absent knowledge that the coins were counterfeited or imitated; she cannot then be held criminally liable for possession of counterfeited or mutilated coins. The second element requires that she has knowledge of the fact that the coins are counterfeited and imitated, and despite knowledge, she has the intent to utter the same.

When it comes to the signature of the President, the stamp, the seal, it is forgery. When it comes to coins, it is counterfeiting. When it comes to checks, instruments payable to bearer, payable to order, also forgery. When it comes to documents, it is falsification.

## ILLEGAL POSSESSION AND USE OF FALSE TREASURY OR BANK NOTES AND OTHER INSTRUMENTS OF CREDIT (ART. 168)

**Art. 168.** ***Illegal Possession and Use of False Treasury or Bank Notes and Other Instruments of Credit.*** **—** Unless the act be one of those coming under the provisions of any of the preceding articles, any person who shall knowingly use or have in his possession, with intent to use any of the false or falsified instruments referred to in this section, shall suffer the penalty next lower in degree than that prescribed in said articles.

**ELEMENT:**

1. That any treasury or bank note or certificate or other obligation and security payable to bearer, or any instrument payable to order or other document of credit not payable to bearer is forged or falsified by another person.

2. That the offender knows that any of those instruments is forged or falsified.

3. That he performs any of these acts –
    a. Using any of such forged or falsified instruments; or
    b. Possessing with intent to use any of such forged or falsified instruments.

**Q: What if the CIDG got a report coming from a reliable informant that in the province of Bukidnon, there is this proliferation of counterfeit Php1000 bills. In order to verify the said report, the CIDG conducted a test-buy operation. Police officer X was assigned to act as poseur-buyer. They dealt with a man named alias "Takyo." Police officer X was able to buy counterfeit/fake/falsified Php1000 bills from alias Takyo. After the first transaction, the following morning, police officer X received a call from alias Takyo. Alias Takyo told police officer X "Do you want to buy again these Php1000 bills? I will give you at a lesser price than I sold you yesterday." Because of this, police officer X informed the chief PNP. The chief PNP said "Yes. We are going to conduct a buy-bust operation against alias Takyo." On the said date and time, there was the exchange of marked money and 100pcs. of counterfeit Php1000 bills. The moment alias Takyo accepted the said marked money and police officer X received the counterfeited bills, other police officers arrived and arrested alias Takyo. The said 100pcs. of Php1000 bills were sent by the CIDG to the BSP to determine its authenticity. The BSP immediately issued a certification that these bills seized from alias Takyo were all counterfeit bills. What crime/s, what case/s may be filed against alias Takyo?**

**A:** Alias Takyo can be charged with violation of Art. 168 - Illegal possession and use of false peso bills. All the elements are present. First, the said bank notes, Php1000 bills were counterfeited. That is evidenced by the fact that BSP issued a certification that the seized bills were counterfeit. The second element is also present. The accused alias Takyo has knowledge that the bills are counterfeit, and this was proven by police officer X's direct identification of alias Takyo as the person who gave him the said Php1000 bills, thereafter, he gave the marked money. The third element is also present. It is evident that there is on the part of the accused intent to use the said counterfeit coins - and this is by the fact that he sold it to police officer X. All the elements of Art. 168 being present, he is guilty for violation of the said crime.

## FORGERY (ART. 169)

**Art. 169.** ***How Forgery is Committed.*** **—** The forgery referred to in this section may be committed by any of the following means:

1. By giving to a treasury or bank note or any instrument payable to bearer or to order mentioned therein, the appearance of a true genuine document.
2. By erasing, substituting, counterfeiting or altering by any means the figures, letters, words or signs contained therein.

When it comes to the signature of the President, it is called forgery. When it comes to coins, it is called counterfeiting. When it comes to documents, it is called falsification.

## SECTION FOUR: FALSIFICATION OF LEGISLATIVE, PUBLIC, COMMERCIAL, AND PRIVATE DOCUMENTS, AND WIRELESS, TELEGRAPH, AND TELEPHONE MESSAGES

**Four Kinds of Documents Which May be the Subject of Falsification**

1. ***Public Document*** **–** one prepared and executed by a notary public or a competent public official with all the solemnities required by law.
2. ***Official Document*** **–** a document issued by a public official in the exercise of his official functions.
3. ***Commercial Document*** **–** any document defined and regulated by the Code of Commerce or any other commercial or mercantile law.
4. ***Private Document*** **–** any deed or instrument executed by a private individual without the intervention of the notary public or any competent public official, by which document some disposition or agreement is proved, evidenced or set forth.

**NOTE:** It is necessary to know the kind of document falsified.

If the document falsified is a private document, for the crime to arise under Art. 172, it is necessary that there must be damage, prejudice, or injury caused to the private offended party or to a third person. No injury, no intent to cause damage = no crime of falsification of private document. Damage or intent to cause damage is a material element or indispensable element in falsification of a private document under Art. 172.

If the document falsified is a public, official, or commercial document, the presence of intent to injure/damage or the presence of damage to a third person or a private offended party is not necessary, because what is being punished is

the violation of the public faith and the distraction or perversion of the truth which the document solemnly proclaims. Hence, damage or intent to cause damage is immaterial.

All official documents are public documents, but not all public documents are considered official documents. Before a public document may be considered as an official document, it must be issued by a public official in the exercise of his official functions.

In so far as private documents are concerned, even if they are private documents, the moment they are submitted to a government agency and then thereafter issued by the said custodian of the said government agency, from a private document, it is now considered a public document. If the one issuing it is the official in charge, it is considered as an official document.

Just like perjury, falsification is an intentional felony. Falsification can be committed only by dolo, malice, deliberate intent. Falsification cannot result from imprudence, negligence, lack of foresight or lack of skill. It is always an intentional felony. There must be deliberate intent on the part of the offender to state falsities, to falsify the said document. Otherwise, falsification will not be committed by the said offender.

For the crime of falsification to be committed, it must be a document in the legal sense of the word – one which is capable of creating rights and/or extinguishing an obligation. It must be complete by itself to convey a particular meaning. Otherwise, falsification will not be committed.

## FALSIFICATION BY PUBLIC OFFICER, EMPLOYEE OR ECCLESIASTICAL MINISTER (ART. 171)

**Art. 171.** ***Falsification by Public Officer, Employee or Notary or Ecclesiastic Minister.*** **—** The penalty of *prisión mayor* and a fine not to exceed 5,000 pesos shall be imposed upon any public officer, employee, or notary who, taking advantage of his official position, shall falsify a document by committing any of the following acts:

1. Counterfeiting or imitating any handwriting, signature or rubric;
2. Causing it to appear that persons have participated in any act or proceeding when they did not in fact so participate;
3. Attributing to persons who have participated in an act or proceeding statements other than those in fact made by them;
4. Making untruthful statements in a narration of facts;
5. Altering true dates;
6. Making any alteration or intercalation in a genuine document which changes its meaning;
7. Issuing in authenticated form a document purporting to be a copy of an original document when no such original exists, or including in such copy a statement contrary to, or different from, that of the genuine original; or
8. Intercalating any instrument or note relative to the issuance thereof in a protocol, registry, or official book.

The same penalty shall be imposed upon any ecclesiastical minister who shall commit any of the offenses enumerated in the preceding paragraphs of this article, with respect to any record or document of such character that its falsification may affect the civil status of persons.

**ELEMENTS:**

1. The offender is a public officer, employee, notary public, or an ecclesiastical minister.

2. He takes advantage of his official position.

3. That the said offender falsifies a document by committing any of the following modes stated therein:

    a) By counterfeiting or imitating any handwriting, signature or rubric.

    b) Causing it to appear that persons have participated in any act or proceeding when they did not in fact so participate.

    c) Attributing to persons who have participated in an act or proceeding statement other than those in fact made by them.

    d) Making untruthful statements in a narration of facts.

    e) Altering true dates.

    f) Making any alteration or intercalation in a genuine document which changes its meaning.

g) Issuing in authenticated form a document purporting to be a copy of any original document when no such original exists or including in such a copy a statement contrary to or different from that of the genuine original.

h) Intercalating any instrument or note relative to the issuance thereof in a protocol, registry, or official book.

4. In case the offender is an ecclesiastical minister, it is necessary that the document falsified must affect the civil status of a person.

**Q: When is the offender said to have taken advantage of his position or office?**

**A:** The offender is said to have taken advantage of his position or office when:

a) He has the duty to make or prepare or otherwise intervene in the preparation of the document; or
b) He has the official custody of the document which he falsifies.

If the ecclesiastical minister falsifies a document that will affect the civil status of a person, his criminal liability is under Art. 171. Otherwise, the criminal liability will be under Art. 172.

Even if he is a public officer, if in falsifying the document he did not take advantage of his public position, the crime committed is under Art. 172 first act – falsification of a public, official, or commercial document by a private individual.

Art 171 requires that the offender takes advantage of his official position. Otherwise, the liability is under Art. 172 first act.

**Different Acts of Falsification**

***I. By Counterfeiting or Imitating Any Handwriting, Signature, or Rubric***

***Counterfeiting*** – it means there is an original handwriting, signature, or rubric, and the offender copies or imitates the said original handwriting or signature.

***Simulation*** **-** there is no original signature, handwriting, or rubric, the offender just produced it, just wrote it out of pure imagination. It does not exist.

**Q: X filed a case of falsification of public document against Y. Allegedly, Y falsified X's signature in a deed of absolute sale, saying that X sold this property to Y. X was denying that he affixed his signature on the deed of absolute sale. According to X, it was Y who falsified/counterfeited/imitated his signature as the vendor in the said deed of absolute sale. Y, however, was denying it. Y was saying X deliberately sold it to him, that X was the one who signed the deed of absolute sale. So, X filed a case of falsification of public document by counterfeiting his signature in the said deed of absolute sale. During the hearing of the case, when the prosecutor presented evidence, all that he can produce is a photocopy/ a machined copy of the said deed, where allegedly Y falsified the signature of X. They could no longer produce the original copy of the deed. Based on this piece of evidence, can Y be convicted of falsification of public document?**

**A:** SC said no. SC said there are other handwriting elements which could not be determined in a photocopy of a document. These are minor details which could not be visibly detected by the naked eye - the handwriting movement, the line quality, the emphasis. These cannot be established in a mere machined copy or xerox copy. Therefore, it is necessary to bring about a conviction for falsification that the original which contains the said counterfeited or imitated signature or handwriting must be produced in court. Otherwise, mere presentation of photocopies will bring about an acquittal because it cannot be determined if indeed the said offender has counterfeited the signature of the said private complainant.

***II. Causing It to Appear that Persons Have Participated in Any Act or Proceeding When They Did Not In Fact So Participate***

In this case, some persons failed to participate in any transaction or proceeding, and yet the offender said that the said persons participated therein.

In **Torres v. People**, Torres, who was an Intelligence Agent of the NBI was charged with 6 counts of falsification of public documents. She committed certain acts of falsification in her daily time records (DTR). He was convicted by the CA which the SC affirmed.

SC said that the CA correctly affirmed the conviction of Torres because the totality of the evidence presented by the prosecution was established. The prosecution was able to establish that the accused, a member of the NBI Intelligence Unit, has taken advantage of her official

position in falsifying her DTR by counterfeiting or imitating the signature of her supervisors to make it appear that these supervising officers verified her DTR. Likewise, she made statements where she made it appear that she regularly reported from work in September-November when in reality, she stopped working after September. So, the SC affirmed Torres's conviction for 6 counts of falsification of public document.

In **Constantino v. People**, Atty. Constantino, the notary public who notarized the last will and testament was charged with falsification of public document under Art. 171 by causing it to appear that Dr. Asuncion participated as a witness in the said joint acknowledgment when in reality he did not so participate. He was convicted.

However, SC acquitted Atty. Constantino. SC said at the time the accused notarized the last will, only 3 witnesses signed it. The 4th witness, Dr. Asuncion, had not signed it. Since Dr. Asuncion did not sign the joint acknowledgment before it was notarized, he cannot be considered to have attested and subscribed to its due execution at the time of its notarization. Hence, when Atty. Constantino certified that the persons so attested and subscribed to the document were present before him, he did not commit any act of falsification.

SC said Dr. Asuncion signed the last will only after it has been notarized, it was not the accused who made it appear that Dr. Asuncion participated in the execution of the said joint acknowledgment, but Dr. Asuncion himself. He should be the one to be charged, not Atty. Constantino. However, SC said although Atty. Constantino cannot be liable criminally, he can be held liable administratively. Atty. Constantino acted with negligence when he failed to erase the name of Dr. Asuncion as the 4th witness in the said acknowledgment. When he failed to erase the name of Dr. Asuncion, he gave him the opportunity to sign the said document after its notarization.

### *III. Attributing to Persons Who Have Participated in an Act or Proceeding Statement Other Than Those in Fact Made by Them*

**Q: What if there was this Sanggunian Session presided by the Vice Mayor. In this particular session, everything was taken up, all those in the agenda. After the said session, the secretary of the Sanggunian prepared the minutes of the meeting. Afterwards, she showed it to the VM, being the presiding officer. After reading, the VM told the secretary, "Idagdag mo 'to sa last part. Idagdag mo na this ordinance has been approved unanimously." The secretary said "Pero wala naman pong diniscuss na ordinance nung meeting." To which the VM replied "basta idagdag mo, pipirmahan yan, basta idagdag mo." So the secretary placed therein on the last part of the minutes that this particular ordinance has been approved unanimously by all members of the Sangguinian. Thereafter, the copy was given to the VM and the VM asked each of the councilors to sign the same. The councilors, in respect to the VM, just signed the document without reading it. Councilors Y and Z, however, discovered that there was something in the minutes of the meeting which was not taken up during the said meeting. Councilors Y and Z said that the ordinance was not taken up and although it was stated in the minutes that they approved it, they asserted that they did not do so. Because of that, the VM was charged with falsification of a public document under the 3rd act of Art. 171. Is the VM liable as charged?**

**A:** Yes. He caused it to appear that councilors Y and Z were included among those who unanimously approved the said ordinance when in reality, they did not make the said statements of approving the same. Therefore, the said VM is guilty of violation of Art. 171 under the 3rd act.

### *IV. Making Untruthful Statements in a Narration of Facts*

**ELEMENTS:**

1. That the offender makes in a public document untruthful statements in a narration of facts.
2. The said offender has the legal obligation to disclose the truth of the facts narrated by him.
3. The said facts narrated by the offender are absolutely false.
4. He did so with malice.

In **Galeos v. People**, The SC convicted Galeos of the crime of falsification of public document by making untruthful statements in a narration of facts by falsifying his SALN. One of the questions in the SALN asks whether he has a relative in the government within the 4th degree of consanguinity to which Galeos answered in the negative.

SC said Galeos answered "no" to the said question in his SALN. In doing so, he made untruthful statements in a narration of facts because in reality, Galeos is related to then incumbent Mayor Ong within the 4th degree of consanguinity because they are first cousins. Hence, Art. 171 4th act as been violated.

With regards to the 1994 SALN wherein Galeos left in blank the boxes for the same question, the SC said that he too is guilty of falsification under the 4th act. SC said one is

guilty of falsification in the accomplishment of his information and personal data sheet the moment the said offender withholds material facts which would have affected the approval of his appointment or his appointment in a government position.

In **DOF v. Germar**, A security guard at the Bureau of Customs, Germar, was charged with falsification of public documents under the 4th act - making untruthful statements in a narration of facts, because when there was a lifestyle check on the said security guard, it was discovered that in his SALN he failed to declare 4 out of 7 real estate properties registered in his name. He deliberately did not include said real properties. He was charged with falsification of public document under Art. 171 par. 4.

The SC however said that the security guard is not liable under Art. 171 par. 4. The 2nd element of taking advantage of his public position is patently lacking. SC said that the 2nd element is absent because the said accused, being a security guard, did not have the duty to make or prepare or otherwise intervene in the preparation of SALNs. Neither is he in official custody of the said SALN that he submitted. SC said that the preparation and filing of this SALN is not a special duty of any particular office. It is not based on rank and salary grade. The preparation and filing of SALN is required of all public officers and employees working in the government. The said accused being a security guard, the documents that he is required to make or prepare as part of his official duty would be security reports. SALN is not within his duty to prepare. He prepared, submitted this SALN not because he is a security guard. He submitted a SALN because he is a government employee. Therefore, the 2nd element being absent, he is not liable for falsification under Art. 171 par. 4.

SC said the proper charge would be perjury under Art. 183 because all the elements are present. He made a statement under oath, a SALN is required to be under oath. The said oath was taken before a competent officer duly authorized to receive or administer the oath. In the said SALN, he made willful and deliberate assertion of falsehood by not including his other real estate properties. And his SALN is required by law. All the elements of perjury are present.

However, SC said it is too late to file a case of perjury against the said security guard because at the time of the commission of the crime, perjury was still a less grave felony. Perjury has not yet been amended. At the time, the penalty for perjury was only *prison correccional*, and it has already prescribed.

### *V. Altering True Dates*

**Q: Atty. X went to the court and filed an MR because his client was convicted by the RTC by the crime of estafa under Art. 315. He submitted the MR to the receiving clerk. The clerk received it, stamping it with date and time. The receiving clerk took five copies for the court and gave the rest of the copies to Atty. X. Atty. X was already outside the hall of justice. To his surprise, upon looking at the stamp, it was the only time he realized that he filed the MR out of time. So he went back to the RTC office and talked to the clerk of court, Atty. W, who happened to be his brad in law school. Atty. X told Atty. W about the problem. Atty. W told Atty. X "walang problema, yan lang." Atty. W took the copies already attached to the records of the court and took the copies already received by Atty. X and thereafter Atty. W erased all the dates received by the receiving clerk and he antedated the said receiving date and time to make it appear that the MR was filed on time. What crime is committed by Atty. W?**

**A:** He can be held liable under Art. 171, 5th act. By altering true dates. Likewise, he can be held liable under par. 6, by making alteration or intercalation in a genuine document that changes its meaning. Here, Atty. W altered the true dates which changes the meaning of the said document. From a mere scrap of paper being filed out of time, by antedating it, it can now be considered by the court. Therefore, Atty. W can be held liable under Art. 171, 5th and 6th act.

### *VI. Making Any Alteration or Intercalation in a Genuine Document Which Changes Its Meaning*

a. ***Alteration*** – change in a document
b. ***Intercalation*** **–** insertion in a document which changes its meaning.

### *VII. Issuing in Authenticated Form a Document Purporting to be a Copy of any Original Document When No Such Original Exists or Including in Such a Copy a Statement Contrary to or Different From that of the Genuine Original*

**Acts Punished**

1. By making a simulated document. There is no actual original document but the offender produced it. It is a simulated document.
2. By including such copy a statement contrary to or different from a genuine original.

***VIII. Intercalating Any Instrument or Note Relative to the Issuance Thereof in a Protocol, Registry, or Official Book***

## FALSIFICATION BY PRIVATE INDIVIDUALS AND USE OF FALSIFIED DOCUMENTS (ART. 172)

**Art. 172.** ***Falsification by Private Individuals and Use of Falsified Documents.*** **—** The penalty of *prisión correccional* in its medium and maximum periods and a fine of not more than 5,000 pesos shall be imposed upon:

1. Any private individual who shall commit any of the falsifications enumerated in the next preceding article in any public or official document or letter of exchange or any other kind of commercial document; and

2. Any person who, to the damage of a third party, or with the intent to cause such damage, shall in any private document commit any of the acts of falsification enumerated in the next preceding article.

Any person who shall knowingly introduce in evidence in any judicial proceeding or to the damage of another or who, with the intent to cause such damage, shall use any of the false documents embraced in the next preceding article or in any of the foregoing subdivisions of this article, shall be punished by the penalty next lower in degree.

**Punishable Acts**

***I. Falsification of a public, official, or commercial document by a private individual***

**ELEMENTS:**

1. Offender is a private person or a public officer acting in his private capacity.
2. Offender commits any act of falsification under Article 171.
3. It must be done either in a public, official, or commercial document.

**NOTE:** No need to prove damage since the document falsified is a public, official, or commercial document.

***II. Falsification of private document by any person***

**ELEMENTS:**

1. The offender is any person.
2. He falsifies a private document.
3. He commits any of the act of falsification under Article 171 except paragraph 7 (can be committed only by a public officer).
4. There is damage or intent to cause damage.

**NOTE:** The document falsified is a PRIVATE DOCUMENT. The offender can be any person. He can be a public officer or employee or he can be a private individual.

***III. Use of falsified document***

If the said document is used in any other official transaction outside judicial proceedings, it is necessary to prove damage or intent to cause damage.

If the said falsified document is used in a judicial proceeding, there is no need to prove damage or intent to cause damage.

**Q: X falsified a deed of absolute sale. It was notarized by the notary public. A case of falsification of public document was filed against X. X said he cannot be held liable for falsification because the sale did not proceed, therefore, there was no damage. Is X's defense meritorious?**

**A:** No, the defense of X has no merit. In falsification of public or official document like a deed of absolute sale, the presence of intent to cause damage and intent to injure a third person is not necessary. What is being punished is the violation of the public fate and the destruction of the truth being solemnly proclaimed by the said public or official document.

**Q: X was charged with the falsification of a public document. He falsified a deed of absolute sale. The private complainant, during the hearing of the case, presented only a machine copy of the said deed of absolute sale allegedly containing his signature falsified by X. When asked to produce the original copy, the private complaint said he couldn't produce it, but what he has is the falsified copy of the deed of absolute sale where X allegedly falsified, counterfeited, copied, imitated, the signature of said private complainant. Can X be convicted of falsification of public document by the mere presentation of the photocopy of the deed of absolute sale?**

**A:** No. In the case of **Lamsen v. People**, the Supreme Court said that there are other handwriting elements which could not be determined in a mere photocopy. There are

handwriting details which could not be visibly detected by the naked eye in a mere photocopy. It further said that the handwriting movement, the line quality, the emphasis, cannot be determined in a mere photocopy. Therefore, it is necessary to present the original copy of the said deed of absolute sale. Without presentation of the said deed of absolute sale, the original copy which contains the alleged counterfeited signature, it would be an acquittal. The mere representation of a photocopy would not give rise to a conviction.

**Q: X falsified a document. Y knew it was a falsified document. Y used it in an official transaction. It was discovered. What crime shall be charged against Y?**

**A:** Y shall be charged with use of falsified document.

**Q: X falsified a document. He used it in an official transaction. It was discovered. X is charged with use of falsified document. Is the charge correct?**

**A:** The charge is wrong. It should only be falsification of document.

The crime of use of falsified document will only arise when the person who used the forged document is different from the person who falsified the document. Hence, if the one who used the falsified document is the very same person who falsified the document, the crime is only falsification of public document and not use of falsified document. Falsification of public document and Use of falsified document by the same person will only give rise to a single crime of falsification of public document.

## FALSIFICATION OF WIRELESS, CABLE, TELEGRAPH AND TELEPHONE MESSAGES, AND USE OF SAID FALSIFIED MESSAGES (Art. 173)

**Art. 173.** ***Falsification of Wireless, Cable, Telegraph and Telephone Messages, and Use of Said Falsified Messages.*** **—** The penalty of *prision correccional* in its medium and maximum periods shall be imposed upon officer or employee of the Government or of any private corporation or concern engaged in the service of sending or receiving wireless, cable or telephone message who utters a fictitious wireless, telegraph or telephone message of any system or falsifies the same.

Any person who shall use such falsified dispatch to the prejudice of a third party or with the intent of cause such prejudice, shall suffer the penalty next lower in degree.

## FALSIFICATION OF MEDICAL CERTIFICATES, CERTIFICATES OF MERIT OR SERVICE AND THE LIKE (ART. 174)

**Art. 174.** ***False Medical Certificates, False Certificates of Merit or Service, etc.*** **—** The penalties of *arresto mayor* in its maximum period to *prision correccional* in its minimum period and a fine not to exceed 1,000 pesos shall be imposed upon:

1. Any physician or surgeon who, in connection with the practice of his profession, shall issue a false certificate; and

2. Any public officer who shall issue a false certificate of merit or service, good conduct or similar circumstances.

The penalty of *arresto mayor* shall be imposed upon any private person who shall falsify a certificate falling within the classes mentioned in the two preceding subdivisions.

**Offender**

1. A physician or surgeon who issues a false medical certificate in the practice of his profession.

2. A public officer who issues a false certificate of merit, service or good conduct, moral character, etc.

3. Any private individual who makes or falsifies a medical certificate or certificate of merit or service or good conduct.

The person using the same, knowing that these certificates were falsified can be held liable under Art. 175 – using false certificate.

## USING FALSE CERTIFICATES (ART. 175)

**Art. 175.** ***Using False Certificates.*** **—** The penalty of *arresto menor* shall be imposed upon any one who shall knowingly use any of the false certificates mentioned in the next preceding article.

## MANUFACTURING, IMPORTING AND POSSESSION OF INSTRUMENTS OR IMPLEMENTS INTENDED FOR THE COMMISSION OF FALSIFICATION (ART. 176)

**Art. 176. *Manufacturing and Possession of Instruments or Implements for Falsification.* —** The penalty of *prisión correccional* in its medium and maximum periods and a fine not to exceed 10,000 pesos shall be imposed upon any person who shall make or introduce into the Philippine Islands any stamps, dies, marks, or other instruments or implements intended to be used in the commission of the offenses of counterfeiting or falsification mentioned in the preceding sections of this chapter.

Any person who, with the intention of using them, shall have in his possession any of the instruments or implements mentioned in the preceding paragraph, shall suffer the penalty next lower in degree than that provided therein.

**Q: The police officers got a report that there is this man by the name of X who has been selling fake falsified counterfeited forms of community tax certificates and that he has been making money out of it. So, the police planned a buy-bust operation against X. They assigned police officer Y as the poseur buyer. In the place wherein allegedly X frequent, police officer Y disguised as a private citizen went there. It was outside the NBI office. Y pretended to be applying for an NBI clearance wherein a community tax certificate is required. He saw X and he bought from X one form of community tax certificate, paid the money, and at that moment, the other police officers arrived and X was arrested. True enough, the forms being sold by X are fake forms of community tax certificates. Because of this, he was charged with a crime of falsification of a public document under Art. 172. Is the charge correct?**

**A:** The charge is wrong. The proper charge should be violation of Art. 176 - possession of instruments or implements for falsification. In order for falsification to arise, it is necessary that the writing falsified must be a document in the legal sense of the word. A writing is said to be a document in the legal sense of the word if it is capable of creating rights and/or extinguishing an obligation. It must be complete in itself as to convey a particular meaning. Otherwise, it is not yet considered as a document. Hence, the crime of falsification will not arise.

In this case, what X was selling are only fake or falsified works of community tax certificate. It contains nothing. It is merely a falsified form. Hence, it is not yet a document in the legal sense of the word which can be the subject of falsification. It is merely an instrument which can be used for purposes of falsification. Hence, the proper charge is violation of Art. 176, and not falsification of public document under Art. 172.

## CHAPTER 2: OTHER FALSITIES

### USURPATION OF AUTHORITY, RANK, TITLE, AND IMPROPER USE OF NAMES, UNIFORMS AND INSIGNIA (ART. 177)

**Art. 177. *Usurpation of Official Functions.* —** Any person who, under pretense of official position, shall perform any act pertaining to any person in authority or public officer, without being lawfully entitled to do so, shall suffer the penalty of *prision correccional* in its minimum and medium periods.

**Acts Punished**

1. ***Usurpation of public authority*** – committed by any person, who shall falsely represent himself to be an officer, agent, or representative of any department or agency of the Philippine government or of a foreign government.

   Mere false representation, in order to usurp the public authority and cause damage to another will suffice. There is no need to perform an act.

2. ***Usurpation of official function*** – committed when a person performs an act pertaining to a public authority or any public officer or employee under false pretense of official position, and without being lawfully entitled to do so.

   The offender has to perform an act exclusively pertaining to a public authority, a public officer or employee, and he did so under false pretense of official position although he is not lawfully entitled to do so.

**Q: X and Y went to the Mayor and they wanted to have a civil wedding ceremony to be officiated by the said mayor. They presented all the required documents. The wedding was set at the end of the month, which was a Friday. On the day of the wedding, X and Y, as well as the guests went to the Mayor's office. However, the Executive Assistant to the mayor told X and Y that the Mayor was not at the office because he was attending a conference of the League of Mayors in Baguio, and he will only return to the office next Monday. Upon seeing the mad reaction of the couple, the Executive Assistant said "Calm down. Even if the**

**Mayor is not here, I can solemnize your wedding." The Executive Assistant to the mayor then solemnized X and Y's civil wedding. The guests as well as X and Y were made to affix their signature on the certificate of marriage. However, the Executive Assistant said that he cannot give the couple a copy yet of the certificate of marriage, he will just give it on Monday after the Mayor has signed it. In the certificate of marriage handed to the couple, above the printed name of mayor as solemnizing officer, there was the signature of the said mayor. What crime/s were committed by the Executive Assistant and the Mayor? (BAR Q)**

**A:** The executive assistant is liable for the crime of usurpation of official function under Article 177. He performed an act pertaining to a public authority – the mayor, under false pretense of official position although he is not lawfully entitled to do so. Under the Local Government Code, only the Mayor can solemnize the marriage and the Mayor cannot delegate it to a mere executive assistant or to any other person. Therefore, when the said executive assistant represented that he can perform the said act, and then thereafter he indeed solemnized the marriage between X and Y, he performs an act pertaining to a public authority under a false pretense of official position although he is not lawfully entitled to do so. Therefore, he is liable under Art.177.

The Mayor is liable for falsification of public document under Art. 171. He is a public officer, he took advantage of his official position in falsifying the certificate of marriage. He committed the 4th act under Art. 171 - making untruthful statements in a narration of facts. It was his obligation to state the truth in the certificate of marriage but he affixed his signature therein as solemnizing officer wherein in reality, he was not present at the time of the the solemnization of the said marriage. Therefore, he becomes liable for falsification of a public document under Art. 171 par. 4.

In **Ruzol v. Sandiganbayan**, Mayor Ruzol was charged with Usurpation of Official Function under Art. 177 because he issued 221 permits to transport salvaged forest products. When this came to the knowledge of the DENR officers, they filed a case against the mayor. According to the DENR, the authority, the power to issue these permits is only within the authority of the DENR. For issuing the said permits, Mayor Ruzol issued the same under false pretense of official position although he is not entitled to do so. The defense raised by Mayor Ruzol is that he acted in good faith because his only intention is to avert the occurrence of illegal logging within his jurisdiction.

The SC ruled that good faith is a defense in case of Violation of Art. 177. In the said case, SC acquitted Mayor Ruzol. There was no usurpation of the duties or functions of the DENR. SC said Mayor Ruzol acted in good faith, he issued the said permits to transport salvaged forest products in order to prevent illegal logging within his jurisdiction. Since he acted in good faith, he cannot be held liable.

SC said Art. 177 is a felony, therefore, there must be a concurrence of both the mens rea and the actus reus. Since he does not have the criminal mind, then he cannot be held liable for Violation of Art. 177.

However, the same defense of good faith did not lie in the case of **People v. Hilvano** and in the case of **Miranda v. Sandiganbayan.** SC said the defense of good faith has no merit. In the case of Hilvano, although he acted in good faith because he was tasked by the Mayor to be the Acting Mayor, however, when he received the letter of communication coming from the Provincial Fiscal and Chief Executive saying that it is the vice mayor who shall act as the acting mayor; and still he did not vacate the position, the said defense of good faith will no longer lie in his favor. This time, he already acted in bad faith.

**Q: The mayor went on leave. He has to go to the US for a month. Because of that, he appointed the first councilor, the number one councilor in the area, to be the acting mayor. Thereafter, he flew to the US.**

**Councilor X is now acting and performing his job as an acting mayor. The next day, however, here comes the vice mayor. The vice mayor said, "First city councilor, I am already here. You should already vacate your post as acting mayor because under the law, the moment the mayor is out, the vice mayor automatically becomes the acting mayor. You can already vacate your post."**

**Councilor X said, "No, that's not true. The mayor designated me. The mayor, before leaving, designated me to be the acting mayor. Therefore, I should sit as the acting mayor until he arrives." Since the first councilor did not want to leave his position, what vice mayor asked opinions from the Provincial Fiscal and from the Executive Secretary of the President. Both of them sent messages to Councilor X that he should vacate his position because under the law, under the Administrative Code, under the LGC, it is the vice mayor who automatically becomes the acting mayor the moment the mayor is out or on leave.**

**Despite receipt of this memorandum, clarification coming from the Provincial Fiscal and the Executive**

**Secretary, still, Councilor X did not vacate his position. Because of that, the vice mayor filed a case of violation of Art. 177 against the said councilor acting as mayor. Councilor X said he acted in good faith because he was designated by the mayor as the acting mayor. Is he liable as charged?**

**A: YES.** The Supreme Court said he is liable under Art. 177. In the old case of People v. Hilvano (31 July 1956, En Banc), the Supreme Court said at first, the said councilor can claim good faith because he was designated by the mayor to be the acting mayor. However, the moment communications came from the Provincial Fiscal and the Executive Secretary of the President saying that under the law, under the Administrative Code, under the Local Government Code, it is the vice mayor who should sit as acting mayor the moment the mayor is out, when he (Councilor X) received this communication, still he did not vacate his position. In that case, he already acted in bad faith. Therefore, the Supreme Court held Hilvano liable for violation of Art. 177.

**Q: X and Y went to the mayor and they wanted to have this civil wedding ceremony. They said that they could not afford a church wedding, they don't have the money, so it will merely be a civil wedding ceremony. The mayor asked from X and Y if they have already complied with all the requirements for a valid wedding ceremony. X and Y said yes, and they showed all the documents. The mayor looked at the documents and gave them to his executive assistant. The executive assistant told the mayor, "Mayor, kumpleto naman." The moment the executive assistant told the mayor that everything is in order, all the documents have been complied with, the mayor set the wedding on the last day of the month, April 30.**

**Because of that, these two persons X and Y went to the mayor's office on April 30. It happens to be a Friday. The moment they reached the mayor's office, the executive assistant told X and Y, "I'm sorry, but the mayor is out. The mayor is attending a League of Conference of Mayors. It is happening now in Baguio. It is very far from here. He will be back by Sunday. I will advise that you come back Monday." But, the bride to be, X, became hysterical. "No, that cannot be, everything is already set! The people are already at the reception area at the restaurant – we cannot postpone it! The wedding ceremony shall be now, no other day!" When the executive assistant saw X was already becoming hysterical, he told X and Y, "That's not a problem. I can celebrate and solemnize your marriage. It has been delegated to me by the mayor. Come inside."**

**Thereafter, the executive assistant celebrated, solemnized, officiated the wedding ceremony of X and Y. They were told to affix their signature on the certificate of marriage. They affixed their signature above the printed name of the spouses. The witnesses who served as ninong and ninang also affixed their signatures. But the executive assistant told X and Y, "I cannot yet give you a copy of your Certificate of Marriage. You have to come back Monday. Because it is the mayor who has to sign as the solemnizing officer. Kindly come back Monday." Because of that X and Y left. Here comes Monday, they went back to the office. The executive assistant immediately handed to them a copy of their Certificate of Marriage. In the said Certificate of Marriage, above the printed name of the mayor as the solemnizing officer, there was the signature of the mayor. What crime or crimes is/are committed by the executive assistant and by the mayor?**

**A:** The executive assistant is liable under Art. 177, usurpation of official function. He performs an act pertaining to a person in authority – the mayor – under false pretense of official function although he is not entitled to do so. The power to solemnize, celebrate the marriage by the mayor cannot be delegated to a mere executive assistant. Therefore, he did so under false pretense of official position and without being lawfully entitled to do so. Therefore, he is liable under Art. 177. He is also liable under Art. 171, falsification of public document, that is, the Certificate of Marriage.

**Q: Why falsification?**

**A:** He is a public officer, he took advantage of his official position, he falsified the Certificate of Marriage.

**Q: Which act of falsification under Art. 171 has been violated?**

**A:** He violated the second act. He caused it to appear that it was the mayor who solemnized the marriage but in truth and in fact, he was the one who solemnized the said marriage. Therefore, he is liable for falsification.

**Q: What about the mayor?**

**A:** The mayor is liable under Art. 171. He is a public officer; he took advantage of his public position in falsifying the said Certificate of Marriage.

**Q: Which act of falsification?**
**A:** The fourth act – making untruthful statements in a narration of facts. When the mayor affixed his signature on

the bottom as the solemnizing officer above his printed name, he was in effect saying that he was the one who solemnized, who officiated the civil wedding ceremony between X and Y, when in truth and in fact, he was not present during the said occasion. Therefore, he committed violation of Art. 171 under the fourth act – making untruthful statements in a narration of facts.

**Usurpation of Public Authority vs. Usurpation of Official Functions**

| USURPATION OF PUBLIC AUTHORITY | USURPATION OF OFFICIAL FUNCTIONS |
|---|---|
| There is usurpation of public authority when a person knowingly and falsely represents himself to be an agent, officer or representative of any department or agency of the Philippine Government or of a foreign government. | There is usurpation of official functions when a person performs an act pertaining to a person in authority or a public officer, either of the Philippine Government or of a foreign government under false pretense of official position without being lawfully entitled to do so |
| The mere act of false representation will give rise to the felony. | The offender must perform an act. The said act pertains either to a person in authority or to a public officer either of the Philippine Government or of a foreign government. It will become a crime if he did so under false pretense of official position and without being lawfully entitled to do so. |

## USING FICTITIOUS NAME AND CONCEALING TRUE NAME (Art. 178)

**Art. 178.** ***Using Fictitious Name and Concealing True Name.*** **—** The penalty of *arresto mayor* and a fine not to exceed 500 pesos shall be imposed upon any person who shall publicly use a fictitious name for the purpose of concealing a crime, evading the execution of a judgment or causing damage.

Any person who conceals his true name and other personal circumstances shall be punished by *arresto menor* or a fine not to exceed 200 pesos.

**Acts Punished**

***I. Using Fictitious Name***

**ELEMENTS:**

1. The offender uses a name other than his real name.
2. The offender uses the said name publicly.
3. The purpose of the offender is:
    a. to concealing the commission of a crime;
    b. to evade the execution of a judgment; or
    c. to cause damage to public interest.

***II. Concealing True Name***

**ELEMENTS:**

1. The offender conceals his real name and other personal circumstances.
2. The intent of the offender is to conceal his real identity.

**Using Fictitious Name v. Concealing True Name**

| USING FICTITIOUS NAME | CONCEALING TRUE NAME |
|---|---|
| Purpose is to conceal a crime, evade the execution of judgment, or to cause damage to public interest. | Purpose is to conceal his real identity. The concealment must not only be on his name, but also on his other material personal circumstances. |
| The law requires the element of publicity. | There is no requisite that it be done in public. |

**Q: Atty. X, after a day's hearing, went to a sauna bath parlor and he was receiving a massage from a lady in the said sauna parlor. Suddenly, police officers armed with a search warrant raided the place because based on their surveillance, the place is actually a prostitution den, but in the front, it is a sauna parlor. When they raided the upper most portion of the place, in every room the police were able to arrest prostitutes and their customers. Since Atty. X was at the time receiving a massage from one of the lady employees therein, he too was arrested. He was not caught in the rooms on the upper most portion, he was at the ground floor receiving a massage. The police officers asked his name, Atty X did not divulge his true name because he was so ashamed to reveal that he is a lawyer arrested in the said place. He said that his name was "Y". When he was asked of his profession/job, he said that he was jobless. When he was asked of his civil status, he truthfully stated he is a married man, he stated the name of his wife and children, and his address truthfully. Everything he stated was true,**

**except for his real name and profession. Is Atty. X liable for using a fictitious name or concealing a true name under Art. 178? Or is Atty. X liable for violation of CA 142 as amended, the Anti-Alias Law? (BAR Q)**

**A:** No, Atty X is not liable for using a fictitious name. Although he used a name other than his real name, he did not use it to conceal a crime, evade the execution of judgment, or to cause damage to public interest. He just used it because he was so embarrassed to divulge that he, a lawyer, was there inside a massage parlor. Therefore, he is not liable for using a fictitious name.

He is also not liable for concealing true name. Although he concealed his real name and his work, he did not conceal his other personal circumstances. He truthfully revealed his civil status, the name of his wife and children and his address. Therefore, he has no intention to conceal his real identity. Therefore, he is not liable for concealing true name as he has no intent to conceal his real identity.

Is he liable for violation of CA 142 as amended, the Anti Alias law for using the name Y as an alias? NO. Y cannot be considered as an alias of Atty. X. For a name to be considered as an alias, it must be used for **business purposes habitually and publicly**. In this case, he did not use it for business purposes. Likewise, although there is the element of publicity, there is no element of habituality. Atty. X's use of the name "Y" in a single transaction when investigated by the police without any showing that X wanted to be publicly known as "Y" is not within the meaning of violation of CA 142 as amended.

However, if it is discovered that the one doing the massage on him is a **minor**, in that case, he will become liable under the **Anti Child Abuse Law**.

## ILLEGAL USE OF UNIFORMS OR INSIGNIA (ART. 179)

**Art. 179.** ***Illegal Use of Uniforms or Insignia.*** **—** The penalty of *arresto mayor* shall be imposed upon any person who shall publicly and improperly make use of insignia, uniforms or dress pertaining to an office not held by such person or to a class of persons of which he is not a member.

## FALSE TESTIMONY

**Two (2) Kinds of False Testimony**

1. False testimony in Criminal Proceedings
    a. False testimony against a defendant (Art. 180)
    b. False testimony favorable to a defendant (Art. 181)
2. False testimony in Civil Cases

## FALSE TESTIMONY AGAINST A DEFENDANT (ART. 180)

**Art. 180.** ***False Testimony Against a Defendant.*** **—** Any person who shall give false testimony against the defendant in any criminal case shall suffer:

1. The penalty of *reclusión temporal*, if the defendant in said case shall have been sentenced to death;
2. The penalty of *prisión mayor*, if the defendant shall have been sentenced to *reclusión temporal* or *perpetua*;
3. The penalty of *prisión correccional*, if the defendant shall have been sentenced to any other afflictive penalty; and
4. The penalty of *arresto mayor*, if the defendant shall have been sentenced to a correctional penalty or a fine, or shall have been acquitted.

In cases provided in subdivisions 3 and 4 of this article the offender shall further suffer a fine not to exceed 1,000 pesos.

**ELEMENTS:**

1. There is a criminal proceeding;
2. The offender testified falsely under oath against a defendant;
3. The offender knows that his testimony is an absolutely falsity; and
4. The defendant against whom the false testimony is given, is either acquitted or convicted by final judgment.

**NOTE:** If you will look at the elements of Arts. 180 and 181, the difference lies in the fact that in case of false testimony against the defendant, there is 4th element whereas in case of false testimony favorable to a defendant, the 4th element is not necessary.

## FALSE TESTIMONY FAVORABLE TO THE DEFENDANT (ART. 181)

**Art. 181.** ***False Testimony Favorable to the Defendant.***

— Any person who shall give false testimony in favor of the defendant in a criminal case, shall suffer the penalties of *arresto mayor* in its maximum period to *prisión correccional* in its minimum period and a fine not to exceed 1,000 pesos, if the prosecution is for a felony punishable by an afflictive penalty, and the penalty of *arresto mayor* in any other case.

**ELEMENTS:**

1. There is a criminal proceeding;
2. The offender testified falsely under oath in favor of a defendant; and
3. The offender knows that his testimony is a total falsity.

If you will compare the elements of Art. 180 vs. Art. 181, Art. 180 – False Testimony Against a Defendant has a last element, that defendant against whom the false testimony is given, is either acquitted or convicted by final judgment. Therefore, in case of False Testimony Against a Defendant, it is necessary that there must be a **total or final termination** of the case before the false witness may be prosecuted for violation of Art. 180.

In the case of Art. 181, there is no need to wait for the final termination of the case, right after the giving of false testimony in favor of the defendant, the false witness can already be prosecuted for Violation of Art. 181.

What is the reason? Because in Art. 180, the penalty to be imposed on the false witness depends on the final sentence on the said defendant against whom the false testimony was given. Whereas in Art. 181, the law provides for a particular specific penalty.

| FALSE TESTIMONY AGAINST THE DEFENDANT (Art. 180) | FALSE TESTIMONY FAVORABLE TO THE DEFENDANT (Art. 181) |
|---|---|
| It is necessary that the defendant against whom the false testimony is given must first be acquitted or convicted by final judgment. | No such requirement. |
| The penalty to be imposed on the said false witness would depend on the final sentence imposed on the defendant against whom the false testimony is given. | The law provides for a specific/particular penalty. It does not depend on the final sentence imposed on the defendant against whom the false testimony is given. |

**NOTE:** Whether it is a false testimony against the defendant or false testimony favorable to a defendant, it is not required that in making the decision, the judge must consider the false testimony. There is no such requisite that the false testimony be considered by the judge.

**Q: X was charged with a crime of homicide. The prosecution was about to rest its case but the parents of the victim went to him and asked him whether the evidence presented was enough to convict X. The prosecutor said that they did their best and that they only had circumstantial evidence. He added that a conviction will be assured if they have a direct witness. However, there was none. The parents told the prosecutor that there was someone who witnessed X killing their child but that person refuses to testify. The next morning, the parents went back to the prosecutor bringing along W, stating that W was the one who witnessed the incident. The prosecutor asked some material questions to W. W was able to answer based on the narration in the sworn statement. In reality, W did not see the commission of the crime. He was a paid and rehearsed witness. The prosecutor agreed to present him on the next hearing. During the hearing, the prosecutor filed a motion asking that he be allowed a last witness, W. After trial, the said judge convicted X. X appealed his conviction. While the case was pending review by the CA, X filed a case of violation of Art. 180 against W. Will the case prosper?**

**A:** No, the case will not prosper because the 4th element is absent. The 1st element is present, there is a criminal proceeding. The 2nd element is also element, W testified falsely against X under oath. The 3rd element is also present as W knew that his statement is a total falsity because he was only made to memorize the said statements. However, the last element is absent. There is yet the final termination of the case because the conviction of X was still on appeal before the CA. Hence, the filing of violation of Art. 180 against W is premature. Therefore, the case will not prosper.

**Q: What if in the same case, after W testified against X, despite the testimony of W, the judge acquitted X? The Court doubted the testimony of W because of many inconsistencies. So X filed a case against W for violation of Art. 180.**

**A:** YES. The 4th element is present. An acquittal is always akin to the final termination of the case. It cannot be attacked on appeal, it can only be attacked through a petition for certiorari.

**Q: What if in the same problem, X was charged with homicide. The prosecution already rested its case. It is now time for the defense counsel to present the defense evidence. The defense counsel presented X himself who categorically denied the charge for homicide, saying that he was in another place at the time of the commission of the crime. The defense counsel told X that they must present someone to corroborate that X was in another place at the time of the killing. According to X, he can request his best friend Y to testify that he was with him at the time of the killing. On the following day, X brought Y to the defense counsel. After practicing Y, he was presented in court. Y testified falsely under oath in favor of X. The private complainants were so mad at Y. They knew Y was not with X at the time of the killing, and that Y was a false witness. The private complainants filed a case of violation of Art. 181 against Y. Will the case prosper?**

**A:** Yes. In the case of false testimony favorable to a defendant, right after the false witness testified falsely under oath in favor of the defendant, he can already be prosecuted for violation of Art. 180, there is no need to wait for the final termination of the case.

**FALSE TESTIMONY IN CIVIL CASES (ART. 182)**

**Art. 182. *False Testimony in Civil Cases.* —** Any person found guilty of false testimony in a civil case shall suffer the penalty of *prisión correccional* in its minimum period and a fine not to exceed 6,000 pesos, if the amount in controversy shall exceed 5,000 pesos, and the penalty of *arresto mayor* in its maximum period to *prisión correccional* in its minimum period and a fine not to exceed 1,000 pesos, if the amount in controversy shall not exceed said amount or cannot be estimated.

**ELEMENTS:**

1. There is a civil proceeding.
2. The defendant testifies falsely as to issues relative to the said case.
3. The offender knows that his testimony is false.
4. He did so with malice in order to affect the issues in the said civil case.

**FALSE TESTIMONY IN OTHER CASES AND PERJURY (ART. 183)**

**Art. 183. *False Testimony in Other Cases and Perjury in Solemn Affirmation.* —** The penalty of *arresto mayor* in its maximum period to *prisión correccional* in its minimum period shall be imposed upon any person who, knowingly making untruthful statements and not being included in the provisions of the next preceding articles, shall testify under oath, or make an affidavit, upon any material matter before a competent person authorized to administer an oath in cases in which the law so requires.

Any person who, in case of a solemn affirmation made in lieu of an oath, shall commit any of the falsehoods mentioned in this and the three preceding articles of this section, shall suffer the respective penalties provided therein.

**ELEMENTS:**

1. The offender made a statement under oath or executed an affidavit upon a material matter;

2. The said statement under oath or affidavit was made before a competent officer duly authorized to receive and administer oath;

   **NOTE:** Otherwise, perjury will not be committed. Because the essence of perjury is the violation of the solemnity of the oath.

3. That in the said statement or affidavit, the offender made a willful and deliberate assertion of falsehood; and

4. The said statement or affidavit is required by law.

   **NOTE:** perjury is a crime against public interest.

**NOTE:** If the falsities were made in a statement or affidavit in non-judicial proceedings, quasi-judicial proceedings, in case of administrative proceedings, executive proceedings, legislative proceedings, the crime committed is perjury.

However, if the said false statement under oath is made under judicial proceedings, the crime committed is false testimony.

If falsities were made in a document required to be under oath = perjury. If falsities were made in a document which is not required to be under oath = falsification.

Art. 183 has been amended by R.A. 11594 by only increasing the imposable penalty on Perjury. The amendment, however, did not touch the substance or the elements of Perjury. From a less grave felony, Perjury is now a grave felony punished by prision mayor in its

minimum period and a fine of Php1 million. The purpose of Congress is to increase the imposable penalty on persons who deliberately perjure themselves. It is now in the level of RTC, no longer the lower courts.

**Means of Committing Perjury**

Based on the first element, there are two ways to commit perjury:

1. by making a statement under oath; and

   **NOTE:** It must not be in a judicial proceeding. If the false statement is made in a judicial proceeding, the crime committed is false testimony. For it to be perjury, the said false statement under oath must be made in a quasi-judicial, administrative or legislative proceeding.

2. by executing an affidavit on a material matter.

**The said statement under oath or affidavit was made before a competent officer duly authorized to receive and administer oath**

Whether it is a statement or affidavit, it must be subscribed and sworn to before a competent officer duly authorized to receive and administer oath. Otherwise, perjury will not be committed. The essence of perjury is the violation of the solemnity of the oath. Hence, it is necessary that the said statement or affidavit must be made before a competent officer duly authorized to receive and administer oath.

**There must be willful and deliberate assertion of falsehood**

Just like falsification, perjury is an intentional felony. Hence, good faith is a defense.

Absent deliberate intent, when he was merely coerced, when he was merely threatened to state falsities, the crime of perjury will not arise.

**Q: The offender stated the falsities in the sworn statement or affidavit because he was being coerced. If he will not to state those statements, he will be placed behind bars. There was coercion on the part of a third person. The offender could not do anything so he stated the said falsities. Can he be held liable?**
**A:** NO. He cannot be held liable. It is a defense that he has no criminal intent to perjure himself. There was good faith on his part.

**Amendment on Art. 183**

Art. 183 has been recently amended. However, the amendment has nothing to do with the substance of the crime. The amendment is only to increase the imposable penalty to prision mayor. From a less grave felony, perjury is now punished by prision mayor. The purpose of Congress is to increase the imposable penalty on persons who deliberately perjure themselves. Thus, the amendment is only on the penalty and not on the substance of the crime.

**Q: A case of estafa was filed before the office of the public prosecutor. The public prosecutor read both the complaint and counter-affidavit. He needed further evidence, so he set the case for preliminary investigation for clarificatory hearing. Both parties were required to attend the clarificatory hearing. The private complainant, together with his witnesses, and the respondent, together with his witnesses, attended the said clarificatory hearing. The public prosecutor, under oath, began asking the witness for the private complainant, and the witness began stating falsities. It was discovered that the statements were falsities. What crime is committed by the witness? Is he liable for False Testimony or Perjury?**

**A:** The liability is perjury. It is not false testimony. The said statement under oath was not made in a judicial proceeding, but in a quasi-judicial proceeding.

**Q: X stated falsities in a counter-affidavit on a material matter. What is the crime committed?**

**A:** The crime committed is perjury because is an affidavit is required to be under oath.

**Q: X stated falsities on a document not required to be under oath. What crime is committed?**

**A:** It depends on what the fiscal will file.

In one of the cases assigned to you, the fiscal said that the making of a false statement in a document is considered as falsification of public document. Whereas, in another case, the SC said that it is perjury.

The moment the false statement under oath is made in a document, it can either be:
1. Falsification of public document; OR
2. Perjury.

This depends on the case filed by the public prosecutor against the offender.

### OFFERING FALSE TESTIMONY IN EVIDENCE (ART. 184)

**Art. 184.** ***Offering False Testimony in Evidence.*** **—** Any person who shall knowingly offer in evidence a false witness or testimony in any judicial or official proceeding, shall be punished as guilty of false testimony and shall suffer the respective penalties provided in this section.

This is committed by any person who shall offer in evidence a false witness or a false testimony.

**ELEMENTS:**

1. The offender offered in evidence a false witness or false testimony;
2. The offender knew the witness or the testimony was false; and
3. The offer was made in a judicial or official proceeding.

**NOTE:** The mere act of offering the false testimony or false witness will already give rise to the crime. There is no requisite that the false testimony or false witness be considered. The mere act of the offender of offering the false testimony or false witness will make him criminally liable.

**Amendment on Art. 184**

R.A. 11594 amended Art. 184 only as to the increase in penalty, not with respect to the substance of the crime.

**NOTE:** The law penalizes any person who shall willfully and knowingly offer in evidence false witness or false testimony in any judicial or official proceeding. The penalty of the offender shall be the same penalty as one guilty of false testimony under Articles 180, 181, 182.

**Q: How is Art. 184 different from subornation of perjury?**

**A:** Subornation of perjury is the crime committed by the procurer of a false witness. It is the crime of a person who procures a false witness to testify in court. In case of subornation of perjury, in order for the suborner or the person who procured the false witness to become criminally liable, it is necessary that the false witness must first be convicted of perjury.

This is not true in case of Art. 184. Under Art. 184, the mere fact that the offender offers a false witness, even if the false witness has not yet testified in court or perjured himself, will make him criminally liable. There is no requisite that the false witness must first be convicted of perjury.

**NOTE:** There is no such crime as subornation of perjury under the present RPC because we already have Art. 184.

## TITLE 5: RA 9165: COMPREHENSIVE DANGEROUS DRUGS ACT (AS AMENDED BY RA 10640)

### TRADING OF DANGEROUS DRUGS (SEC. 5)

**Section 5.** Sale, Trading, Administration, Dispensation, Delivery, Distribution and Transportation of Dangerous Drugs and/or Controlled Precursors and Essential Chemicals. - The penalty of life imprisonment to death and a fine ranging from Five hundred thousand pesos (P500,000.00) to Ten million pesos (P10,000,000.00) shall be imposed upon any person, who, unless authorized by law, shall sell, trade, administer, dispense, deliver, give away to another, distribute dispatch in transit or transport any dangerous drug, including any and all species of opium poppy regardless of the quantity and purity involved, or shall act as a broker in any of such transactions. xxxx

**GR:** It is settled that for every prosecution involving dangerous drugs, there must be the drugs itself. No drugs, no prosecution. This is because the drugs is the very *corpus delicti* or the substance of violation of RA 9165.

**XPN**: Trading of dangerous drugs. Under RA 9165, trading refers to transactions involving dangerous drugs:

1. Using electronic devices such as, but not limited to, text messages, email, mobile or landline, two-way radios, internet, messenger, chatrooms; or
2. Acting as a broker for any transaction whether for money or any other consideration.

In the case of **De Lima v. Guerrero,** the Court said that, in case of trading of dangerous drugs, one of the acts punished under Sec. 5 of RA 9165, there is no need to produce the dangerous drugs. The crime of illegal trading of dangerous drugs is broader in scope than that of illegal sale.

Illegal sale may be considered only as one possible component of illegal trading. This is because illegal trading,

based on its definition under RA 9165, can be committed through two (2) modes:

1. Illegal trafficking by using electronic devices;
2. By acting as a broker in any transaction involving illegal trafficking of dangerous drugs.

Those are the two (2) modes of committing illegal trading of dangerous drugs punished under Sec. 5 of RA 9165.

## ILLEGAL TRANSPORTATION OF DANGEROUS DRUGS (SEC. 5)

**Q: There is a police checkpoint. The police officers got a tip that there is this person onboard a motorcycle who is transporting a huge amount of drugs. Based on an informant, the said motorcycle will pass the police checkpoint. In the said checkpoint, the police officers would stop every motorcycle. Here comes the motorcycle driven by X. Upon looking at X, X seems to be so afraid and nervous. The police officer suspected that X is the person being referred to by their informant. X seems to be so afraid and so nervous. In fact, when he was stopped at the checkpoint he was already shivering. And so the police officer asked X, "Are you alright? Are you sick?" X replied "No, Sir. I'm not sick, Sir. I'm alright, Sir."**

**However, the police officer noticed something bulging on X's waist. The police officer said, "There is something on your waist. Can you lift your shirt?" When X lifted his shirt, the police officer found an unlicensed home-made gun. The police officer said, *"Home-made yan ah."* X said, "Yes, Sir." X has no license because the gun is home-made. Thereafter, X was arrested. The police officer confiscated the home-made gun, placed hand cuffs on X, and X was informed of his constitutional rights. X was arrested *in flagrante delicto* for illegal possession of loose firearms under RA 10591.**

**The police officers searched X's motorcycle. There was a container at the back of X's motorcycle. When it was opened, the police officers found another container. When they opened the container, they found six (6) long, elongated plastic sachets of *shabu.* The police officers said, *"Ang dami neto ah. Ang hahaba. San ang dala mo neto?"* But X was not talking.**

**The police officers complied with Sec. 21 of RA 9165. They inventoried and took photographs of the drugs, and sent them to PNP crime lab. The drugs tested positive for methamphetamine hydrochloride or *shabu.***

**X was charged with illegal transportation of dangerous drugs, which is one of the acts punished under Sec. 5 of RA 9165. Is X liable as charged?**

**A:** YES. X is liable for transporting illegal dangerous drugs. X was found in possession of 6 long, elongated plastic sachets of *shabu.* The said items were found inside the container in his motorcycle when he was stopped at a checkpoint, while he was caught in possession of a loose firearm.

Under RA 9165, as amended, to transport dangerous drugs is to carry or convey from one place to another.

The Supreme Court said only essential element, in the case of illegal transportation of dangerous drugs, is the movement of a dangerous drugs from one place to another. It is immaterial to prove whether that the said illegal drugs were delivered or transported to another place. The mere movement from one place to another would suffice in order to bring about conviction for transportation of illegal drugs.

Hence, X is liable under Sec. 5 of RA 9165 for transporting illegal drugs.

## ATTEMPTED ILLEGAL TRANSPORTATION OF DANGEROUS DRUGS

**Sec. 5 in relation to Sec. 26 of RA 9165 – Attempted Illegal Transportation of Dangerous Drugs**

**Section 26.** Attempt or Conspiracy. – Any attempt or conspiracy to commit the following unlawful acts shall be penalized by the same penalty prescribed for the commission of the same as provided under this Act:

(a) Importation of any dangerous drug and/or controlled precursor and essential chemical;

(b) Sale, trading, administration, dispensation, delivery, distribution and transportation of any dangerous drug and/or controlled precursor and essential chemical;

(c) Maintenance of a den, dive or resort where any dangerous drug is used in any form;

(d) Manufacture of any dangerous drug and/or controlled precursor and essential chemical; and

(e) Cultivation or culture of plants which are sources of dangerous drugs.

**Q: X is on his way to Malaysia. He went to NAIA. When his luggage passed by the x-ray machine, he was stopped by the NAIA authorities. They called the police. His luggage were opened. Upon checking, the police officers found *shabu* concealed in the lining of his luggage. X was arrested. X was informed of his constitutional rights. What crime was committed by X?**

A: X is liable for Attempted Illegal Transportation of Dangerous Drugs under Sec. 5 of RA 9165, as amended, in relation to Sec. 26 of same law.

In case of illegal transportation of dangerous drugs, the only essential element to be proven is the movement of the dangerous drugs from one place to another.

In the absence of actual conveyance, an attempted to transport dangerous drugs will bring about violation of Sec. 26 of RA 9165 for Attempted Illegal Transportation of Dangerous Drugs.

In this case, X was stopped when something suspicious was found inside his luggage when they passed through the x-ray machine. The luggage seized were opened. The police officers discovered inside the said luggage dangerous drugs, i.e., plastic sachets of *shabu* neatly concealed in the lining of each of his luggage. At that point in time, the act of transportation of dangerous drugs is already in its ATTEMPTED stage.

Under Sec. 26 of RA 9165, as amended, even an attempt to transport dangerous drugs is already penalized. The penalty is the same as if it is consummated illegal transportation of dangerous drugs.

## ILLEGAL SALE OF DANGEROUS DRUGS

**Sec. 5 of RA 9165 - Illegal Sale of Dangerous Drugs**

**ELEMENTS:**

1. The buyer and the seller are clearly identified;
2. The *corpus delicti* and the price are established; and
3. The *corpus delicti* was transferred from the hands of the seller to the hands of the buyer.

**First Element - The buyer and the seller are clearly identified**

The seller and the poseur buyer must be clearly identified.

**Second Element - The *corpus delicti* and the price are established**

In case of illegal sale of dangerous drugs, the *corpus delicti* is the drugs itself. Since it is an illegal sale, it is necessary to determine how much drugs are involved.

**Third Element - The *corpus delicti* was transferred from the hands of the seller to the hands of the buyer.**

The drugs must be transferred from the hands of the seller to the hands of the buyer for it to become a **consummated** illegal sale of dangerous drugs.

**Q: The police officers received reports that X is engaged drug peddling or drug pushing in a certain *barangay.* The police officers planned a buy-bust operation against X. Y, a neophyte police officer, was assigned as the poseur buyer. In the plan, Y will be buying P1,000.00 worth of *shabu.* The said P1,000.00 has been marked. Based on the plan, the moment the said sale transaction has been consummated, Y, acting as the poseur buyer, shall remove his hat. The moment the police officers see the removal of the hat, they will come forward in order to arrest X. The team involved in the said buy-bust operation proceeded to the place of sale. They were hiding a little far from the said place. Only Y, disguised as a poseur buyer, went to the house of X and bought P1,000.00 worth of *shabu.* X gave Y four (4) plastic sachets of *shabu*, each worth P250.00. Thereafter, Y gave X the marked P1,000.00. Upon the exchange of the marked money and *shabu,* Y removed his hat. The other police officers came forward. Thereafter, X was arrested. Sec. 21 of RA 9165 was followed. The drugs were brought to the PNP crime lab. They tested positive for methamphetamine hydrochloride or *shabu.* X was charged with violation of Sec. 5 for illegal sale of dangerous drugs. Is X liable as charged?**

**A:** YES. X is liable as charged. All the elements are present.

***First***, the buyer and the seller are clearly identified. The buyer is police officer Y, who disguised as a poseur buyer. The seller is X.

***Second,*** the *corpus delicti* and the price were established. The *corpus delicti* are the four (4) plastic sachets of *shabu.* The price is P1,000.00, i.e., P250.00 per plastic sachet of *shabu*.

***Third***, there was a transfer of the plastic sachets of *shabu* from X, the seller, and Y, the buyer.

It is settled that in the crime of illegal sale of dangerous drugs, the delivery of the illicit drugs to the poseur buyer and the receipt by the seller of the marked money consummate the illegal sale transaction.

What is material is the proof that the transaction for the sale actually took place, coupled with the presentation in court of the said dangerous drugs which serves as the *corpus delicti.*

In this case, all elements are proven. Therefore, X is liable for illegal sale of dangerous drugs.

**NOTE:** Supreme Court said, in illegal sale of dangerous drugs, the sale is already consummated the moment there is this exchange of dangerous drugs and money. Since it is sale, it is necessary that money, the price must be established because it is illegal sale of dangerous drugs

**Q: What if the information reads: "People vs. X, Criminal Case No. 1234 for violation of Sec. 5 of RA 9165. The undersigned public prosecutor hereby accuses the above-named accused for violation of Sec. of RA 9165 having been found to have sold four (4) plastic sachets of shabu weighing 0.0010 grams each, which is positive for methamphetamine hydrochloride... CONTRARY TO LAW."**

**In the information, it was stated that a police officer bought shabu from X. During the hearing, the said police officer testified as to the buy-bust operation. When the forensic chemist who conducted the examination of the said dangerous drugs was presented in the witness stand, the forensic chemist testified that the said drugs that were bought, seized, recovered, confiscated, and inventoried from the accused are not *shabu* but ephedrine. Because of the discrepancy between what is alleged in the information (i.e., *shabu* as dangerous drugs), and what is proven in court (i.e., ephedrine as dangerous drugs) through the forensic chemist who examined the drugs, X moved for the dismissal of the case. However, the RTC still convicted X for the crime of illegal sale of dangerous drugs.**

**X appealed. X argued that the RTC erroneously convicted him for violation of Sec. 5 of RA 9165 because there was a discrepancy on the drugs alleged in the information and the drugs proven in court. Should the said conviction be affirmed by the appellate court?**

**A:** YES. The Supreme Court said the discrepancy between the drugs alleged in the information and one proven in court is immaterial, inconsequential, and does not affect the finding of guilt of the accused. Even if the police officers transacted for the sale of *shabu,* the fact that the seized drugs are, in reality, ephedrine will not warrant the reversal of a finding of guilt of the accused.

The crime charged is for violation of Sec. 5 of RA 9165. Under Sec. 5, all dangerous drugs are included therein. Therefore, it is immaterial whether the allegation is for *shabu* or ephedrine because both are dangerous drugs under Sec. 5 of RA 9165.

Hence, if the only discrepancy is on the drugs allegedly seized, and on the drugs proven in court after the examination, the same is not material. What is material is that the prosecution is able to prove that the said seized drugs were indeed the ones submitted to the crime lab, examined by the forensic chemist, and presented in court. Its name and kind are immaterial because they are all considered as dangerous drugs under Sec. 5 of RA 9165.

## ILLEGAL POSSESSION OF DANGEROUS DRUGS (SEC. 11)

**Section 11. *Possession of Dangerous Drugs.*** - The penalty of life imprisonment to death and a fine ranging from Five hundred thousand pesos (P500,000.00) to Ten million pesos (P10,000,000.00) shall be imposed upon any person, who, unless authorized by law, shall possess any dangerous drug in the following quantities, regardless of the degree of purity thereof:

(1) 10 grams or more of opium;

(2) 10 grams or more of morphine;

(3) 10 grams or more of heroin;

(4) 10 grams or more of cocaine or cocaine hydrochloride;

(5) 50 grams or more of methamphetamine hydrochloride or "shabu";

(6) 10 grams or more of marijuana resin or marijuana resin oil;

(7) 500 grams or more of marijuana; and

(8) 10 grams or more of other dangerous drugs such as, but not limited to, methylenedioxymethamphetamine (MDA) or "ecstasy", paramethoxyamphetamine (PMA), trimethoxyamphetamine (TMA), lysergic acid diethylamine (LSD), gamma hydroxyamphetamine

(GHB), and those similarly designed or newly introduced drugs and their derivatives, without having any therapeutic value or if the quantity possessed is far beyond therapeutic requirements, as determined and promulgated by the Board in accordance to Section 93, Article XI of this Act.

Otherwise, if the quantity involved is less than the foregoing quantities, the penalties shall be graduated as follows:

(1) Life imprisonment and a fine ranging from Four hundred thousand pesos (P400,000.00) to Five hundred thousand pesos (P500,000.00), if the quantity of methamphetamine hydrochloride or "shabu" is ten (10) grams or more but less than fifty (50) grams;

(2) Imprisonment of twenty (20) years and one (1) day to life imprisonment and a fine ranging from Four hundred thousand pesos (P400,000.00) to Five hundred thousand pesos (P500,000.00), if the quantities of dangerous drugs are five (5) grams or more but less than ten (10) grams of opium, morphine, heroin, cocaine or cocaine hydrochloride, marijuana resin or marijuana resin oil, methamphetamine hydrochloride or "shabu", or other dangerous drugs such as, but not limited to, MDMA or "ecstasy", PMA, TMA, LSD, GHB, and those similarly designed or newly introduced drugs and their derivatives, without having any therapeutic value or if the quantity possessed is far beyond therapeutic requirements; or three hundred (300) grams or more but lesthan five (hundred) 500) grams of marijuana; and

(3) Imprisonment of twelve (12) years and one (1) day to twenty (20) years and a fine ranging from Three hundred thousand pesos (P300,000.00) to Four hundred thousand pesos (P400,000.00), if the quantities of dangerous drugs are less than five (5) grams of opium, morphine, heroin, cocaine or cocaine hydrochloride, marijuana resin or marijuana resin oil, methamphetamine hydrochloride or "shabu", or other dangerous drugs such as, but not limited to, MDMA or "ecstasy", PMA, TMA, LSD, GHB, and those similarly designed or newly introduced drugs and their derivatives, without having any therapeutic value or if the quantity possessed is far beyond therapeutic requirements; or less than three hundred (300) grams of marijuana.

**ELEMENTS:**

1. The offender is found in possession of any article or item which is identified to be dangerous drugs;
2. He is not authorized by law to possess the same; and
3. There is *animum posssidendi* on the part of the offender. That he freely and consciously possesses the said dangerous drugs.

**The offender is found in possession of any article or item which is identified to be dangerous drugs**

This element must be proven beyond reasonable doubt by the State. Possession is either: (a) actual, physical or material possession; or (b) constructive possession. In constructive possession, the dangerous drugs are found in a place under the direct control and custody of the offender.

**Offender is not authorized by law to possess the same**

This element need not be proven beyond reasonable doubt by the State. The second element is presumed by law. The Supreme Court said that dangerous drugs are per se contraband and illegal. Hence, no person is authorized by law to possess the same. The moment a person is found in possession of any dangerous drugs, the law automatically presumes that he is not authorized to possess the same. No one will ever be authorized to possess contraband. Hence, the second element need not be proven by the State because it is the law itself that presumes it. The burden is on the accused to prove otherwise, i.e., he is authorized by law to possess the same.

Both the first and third element must be proven by the State beyond reasonable doubt, but not the second element.

**There is *animus possidendi* on the part of the offender. That the offender freely and consciously possesses the said dangerous drugs.**

This element must be also proven beyond reasonable doubt by the State. It must be proven that the offender freely and consciously possesses an item which is known to them as a dangerous drug.

**Q: X knows his brother is into drugs. X would always advise his brother to get away from the latter's friends who are also into drugs. However, still his brother is part of the said *barkada.* One time, X's brother was out. The room of his brother was opened. X entered the room of his brother. X was searching for drugs that is being used by his brother. X wanted to throw them away. X opened one of the shoeboxes. There were several plastic sachets of *shabu.* There were also used plastic sachets of *shabu.* There were also drug**

**paraphernalias. X took all of these and placed them inside a transparent plastic bag. X is determined to throw them away to prevent his brother from using them. So, X got out of the house holding the plastic bag which contains all the said drugs and drug paraphernalia. As X was leaving the house, a police car arrived. X is caught in possession of the said dangerous drugs. X is charged with illegal possession of dangerous drugs. Is X liable as charged for violation of Sec. 11 of RA 9165?**

**A:** YES. All the elements are present.

*First*, X was found in possession of these plastic sachets of *shabu* and drug paraphernalia. The plastic sachets of *shabu* are identified to be dangerous drugs.

*Second*, X is not authorized to possess the same.

*Third*, X has *animus possidendi.* Despite X knew that they are dangerous drugs, still X possesses the same. What X will do with the dangerous drugs is immaterial, i.e., whether X will use or throw them, because X was found in actual possession of dangerous drugs.

All the elements are present. Hence, X is liable for violation of Sec. 11 of RA 9165.

**Q: The police officers got a tip. A Nissan Cefiro with plate no. XXX1234 will pass by. The vehicle has dangerous drugs onboard. So, the police officers placed a checkpoint. When the said vehicle arrived, the police officers stopped it at the checkpoint. The police officers noticed that the driver, W, was so afraid, shaking, and sweating profusely. W was told to get out of the vehicle. A search was conducted of the said vehicle. From the compartment of the vehicle, the police officers found and recovered seven (7) heat-sealed plastic sachets of *shabu*. W was charged with the crime of illegal possession of dangerous drugs under Sec. 11 of RA 9165.**

**W argued that he is not the owner of the said vehicle. He was only told to drive the vehicle. Likewise, W argued that he is not the owner of the said drugs. In fact, according to W, he does not know that the said vehicle contains drugs. Therefore, W moved to dismiss the case. Is W liable as charged?**

**A:** YES. W was found in possession of the said dangerous drugs, i.e., seven (7) heat-sealed plastic sachets of *shabu* were recovered from the compartment of the vehicle *(first element)*. Possession includes both actual and constructive possession. Here, W is in constructive possession of the said dangerous drugs which are inside the said vehicle that W is driving. W has direct control, custody and disposal of the things inside the said vehicle. Hence, W can be held liable for illegal possession under Sec. 11 of RA 9165.

**Note:** W is likewise not authorized to possess the dangerous drugs *(second element)*. W also has *animus possidendi (third element)*.. He knew that the said drugs are dangerous drugs, and, still, he was in possession thereof. All the elements are present. Hence, W can be held liable for illegal possession under Sec. 11 of RA 9165.

**Q: People vs. X for illegal possession of dangerous drugs. It was stated therein, illegal possession of dangerous drugs that the assigned police officers are hereby ordered to search the house of X located in this a particular place, and to seize and confiscate an undetermined quantity of methamphetamine hydrochloride, otherwise known as shabu, and paraphernalia used in packing shabu, and to bring it to the court. The police officers went to the said place, and they served the search warrant to X, they were able to confiscate shabu, dangerous drugs, paraphernalia, inventorying the same, photographs the same, and thereafter, positive for methamphetamine hydrochloride, X was charged for illegal possession. There was a motion to quash the said warrant. Motion to quash the said warrant and that the said shabu confiscated be inadmissible in evidence because according to the counsel of X, the said search warrant failed to comply with the requisites for the valid issuance of a search warrant because it failed to specifically state the things to be seized because what was stated in the search warrant is undetermined quantity of methamphetamine hydrochloride, and paraphernalia used in the packing of shabu. Therefore, it failed to expressly state the things to be seized, undetermined quantity. Should the search warrant be quashed? Are the drugs seized admissible in evidence?**

**A:** YES, it is admissible in evidence. The wordings in the search warrant "undetermined quantity of methamphetamine hydrochloride or shabu, and drug paraphernalia used in repacking shabu", Supreme Court said it complies with the requisite of particularity as to the things to be seized. An undetermined quantity of methamphetamine hydrochloride already provides a meaningful restriction on the things that can be seized by the police officers. Therefore, it already prevented exploratory searches.

Based on this, the only thing they can seize is shabu, not money, marijuana, nor ecstasy – only shabu because of the

statement "undetermined quantity of methamphetamine hydrochloride". Except, if they see the other dangerous drugs inadvertently, in that case, they are bound to seize it. But, if in the conduct of the search they were able to see other drugs, they cannot seize those. They can only seize what has been specifically stated in the search warrant.

Here, it was specifically stated that they can only take, seize, and confiscate methamphetamine hydrochloride in an indeterminate portion or quantity. The judge will not put 100 packs, how will the judge know that it is really 100 packs when in fact he is not in the vicinity? So, it must be undetermined quantity. The Supreme Court said that it already provides a meaningful restriction of the things to be seized and taken by the police officers and it already prevents exploratory searches. The Supreme Court said, YES, it is a valid search, and the accused is convicted.

## ILLEGAL POSSESSION OF DANGEROUS DRUGS DURING PARTIES, SOCIAL GATHERINGS, OR MEETINGS (SEC. 13)

**Sec. 13 of RA 9165 – Possession of Dangerous Drugs During Parties, Social Gatherings or Meetings**

> **Section 13.** ***Possession of Dangerous Drugs During Parties, Social Gatherings or Meetings***. – Any person found possessing any dangerous drug during a party, or at a social gathering or meeting, or in the proximate company of at least two (2) persons, shall suffer the maximum penalties provided for in Section 11 of this Act, regardless of the quantity and purity of such dangerous drugs.

**Q: The police officers got a tip from a reliable informant. *"Sir, dito po sa Kalye Ilang-Ilang corner Sampaguita, may naglalaro ng cara y cruz. Limang lalake. Bilis-bilisan niyo lang. Baka pagdating niyo wala na.***

**The police officers immediately informed the chief PNP of the place. Three (3) police officers, on board a police car, went to the place. At a distance, they immediately saw five (5) men playing cara y cruz. The police officers approached them. The five (5) men, A, B, C, D, and E were all arrested for illegal gambling. They were informed of their constitutional rights. Each of them was frisked.**

**When A was frisked, the police officers found two (2) plastic sachets of *shabu* from the pocket of his pants. When B was frisked, the police officers found one (1) plastic sachet of *shabu* from the pocket of his pants. When C, D, and E were frisked, none was found in their possession.**

**Aside from violation of PD 1602 (Illegal Gambling Game), A and B were also charged with illegal possession of dangerous drugs under Sec. 11 of RA 9165. Based on the testimony of the forensic chemist, the said plastic sachets found in the possession of A and B contains only .0001 gram, a very minute amount of drugs. The RTC found A & B guilty. If you were the RTC judge, what penalty would you impose on A and B?**

**A:** If you were the judge, you would have to impose on A and B the maximum penalty of life imprisonment. A & B are liable under Sec. 11 in relation to Sec. 13 of RA 9165.

Under Sec. 13 of RA 9165, if a person is found in possession of any dangerous drugs in a party, gathering or meeting, or in a proximate company of at least two (2) persons, the maximum penalty prescribed by law shall be imposed.

Since death penalty cannot be imposed, then the maximum penalty of life imprisonment shall be imposed on A & B.

The quality, purity, and quantity of the dangerous drugs are immaterial the moment a person is found in possession of dangerous drugs in a party, gathering or meeting, or in a proximate company of at least two (2) persons.

Here, A & B were found in possession of dangerous drugs in the proximate company of three (3) persons, i.e., C, D, and E. Hence, the maximum penalty of life imprisonment shall be imposed upon A & B. The quality, purity, and quantity of the dangerous drugs are immaterial.

**NOTE:** See Plan and Enolva v. People (G.R. No. 247589, 24 August 2020)

**Q: X was charged with illegal possession of dangerous drugs under Sec. 11 of RA 9165. The information alleges that X was caught in possession of 9.38 grams of *shabu.* After trial on the merits, the RTC judge found him guilty beyond reasonable doubt.**

**Looking into Sec. 11 of RA 9165, it is expressly provided that if the amount of drugs is 9.38 grams, the imprisonment is 20 years and 1 day to life imprisonment. Therefore, the RTC judge imposed upon X the penalty of life imprisonment because the *shabu* found in his possession weighed 9.38 grams. Is the RTC judge correct?**

**A:** NO. The RTC judge is wrong. The Supreme Court ruled that the maximum penalty of life imprisonment may only be imposed when the crime of illegal possession of

dangerous drugs was committed during a party, or at a social gathering or meeting, or in the proximate company of at least two (2) persons, regardless of the quantity or purity of the said dangerous drugs.

In this case, X was caught in possession of the said dangerous drugs alone. X was not caught in possession of the said dangerous drugs in a party, or at a social gathering or meeting, or in the proximate company of at least two (2) persons.

Therefore, regardless of the quantity or purity of the said dangerous drugs, the maximum penalty of life imprisonment cannot be imposed upon X. The penalty to be imposed upon X is 20 years and 1 day, but not life imprisonment.

## ILLEGAL POSSESSION OF DRUG PARAPHERNALIA (SEC. 12)

**Section 12.** ***Possession of Equipment, Instrument, Apparatus and Other Paraphernalia for Dangerous Drugs***. - The penalty of imprisonment ranging from six (6) months and one (1) day to four (4) years and a fine ranging from Ten thousand pesos (P10,000.00) to Fifty thousand pesos (P50,000.00) shall be imposed upon any person, who, unless authorized by law, shall possess or have under his/her control any equipment, instrument, apparatus and other paraphernalia fit or intended for smoking, consuming, administering, injecting, ingesting, or introducing any dangerous drug into the body: Provided, That in the case of medical practitioners and various professionals who are required to carry such equipment, instrument, apparatus and other paraphernalia in the practice of their profession, the Board shall prescribe the necessary implementing guidelines thereof.

**The possession of such equipment, instrument, apparatus and other paraphernalia fit or intended for any of the purposes enumerated in the preceding paragraph shall be prima facie evidence that the possessor has smoked, consumed, administered to himself/herself, injected, ingested or used a dangerous drug and shall be presumed to have violated Section 15 of this Act**.

Under Sec. 12, par. 2 of RA 9165, the person who is found to be in possession of drug paraphernalia is presumed to be using and administering dangerous drugs. Thus, the said person is presumed to have violated Sec. 15 (Illegal Use of Dangerous Drugs) of RA 9165.

## ILLEGAL USE OF DANGEROUS DRUGS (SEC. 15)

**Section 15.** ***Use of Dangerous Drugs.*** **–** A person apprehended or arrested, who is found to be positive for use of any dangerous drug, after a confirmatory test, shall be imposed a penalty of a minimum of six (6) months rehabilitation in a government center for the first offense, subject to the provisions of Article VIII of this Act. If apprehended using any dangerous drug for the second time, he/she shall suffer the penalty of imprisonment ranging from six (6) years and one (1) day to twelve (12) years and a fine ranging from Fifty thousand pesos (P50,000.00) to Two hundred thousand pesos (P200,000.00): Provided, That this Section shall not be applicable where the person tested is also found to have in his/her possession such quantity of any dangerous drug provided for under Section 11 of this Act, in which case the provisions stated therein shall apply.

**ELEMENTS:**

The elements of illegal use of dangerous drugs, as enumerated by the Supreme Court in the case of **Dela Cruz v. People**, are:

1. The accused is apprehended or arrested for the commission of a crime;
2. The accused was subjected to a drug test; and
3. After a confirmatory test, the accused was found positive for use of dangerous drugs.

**The accused is apprehended or arrested for the commission of a crime**

The word "crime" does not refer to any crime, but only to crimes punished under RA 9165. In the case of **Dela Cruz v. People,** the first element was absent. Dela Cruz was apprehended for *robbery extortion* which is punished under the RPC and not under RA 9165. Hence, the police officers have no right to subject him to a forced drug test. Otherwise, his right to privacy will be violated. Therefore, Dela Cruz was acquitted for violation of Sec. 15 of RA 9165.

**Q: The police officers got a complaint. According to couple X & Y, Police Officer Z is trying to extort money from them allegedly involving their business. X & Y went to the PNP station of Z. The Chief of Police designed an entrapment operation against Police Officer Z. The Chief of Police told X & Y to meet Police Officer Z, and that they will be around. The moment the money is given by X & Y to Police Officer Z, they will come in order to arrest Police Officer Z. The entrapment procedure was successful. Z was arrested while in possession of the said money he was extorting**

**from X & Y. The police officers who arrested Z believed that something is wrong with him. His eyes are red. He seemed to be *lutang* and under the influence of drugs. So, instead of bringing Z to the police station insofar as the extortion is concerned, they brought Z to the PNP Crime Lab. In the PNP Crime Lab, Z was told to produce his urine. Z refused. Z said, "I want a counsel. I don't want to submit my urine." The police officers prevailed. And so, Z submitted his urine. After a confirmatory test, Z was found positive for use of dangerous drugs. Z was charged with robbery extortion and illegal use of drugs under Sec. 15 of RA 9165. Is Z liable as charged?**

**A:** NO. Z is not liable as charged. The Supreme Court clarified in the case of **Dela Cruz v. People** that the word "crime" in the first element of illegal use of dangerous drugs does not refer to any crime. The word "crime" only refers to crimes punished under RA 9165. Before a person can be subjected to a drug test, it is necessary that he must have been arrested for the commission of a crime punished under RA 9165.

In this case, Z was arrested for the commission of *robbery extortion* which is outside RA 9165. Therefore, the first element is absent. Since Z was not arrested for the commission of any crime punished under RA 9165, the police officers who arrested Z have no right to subject Z to a drug test against his will. Z did not give his consent to the said submission of his urine. The first element being absent, Z should be acquitted of illegal use of dangerous drugs under Sec. 15 of RA 9165.

**Q: A woman shouted, "*magnanakaw magnanakaw!*" Two police officers were passing by. They heard the woman shouting. The woman was pointing to a man who was running away. The woman told the police, *"Sir, may magnanakaw. Kinuha ang cellphone ko."* The police officers chased the man. They saw the man entered into an alley. As the police officers were chasing the said man, they passed by a house with an open door. When they looked inside the house, they saw two persons seated and engaged in using *shabu.* So, instead of chasing the snatcher, the police officers entered the said house and arrested the two persons caught *in flagrante delicto* using dangerous drugs. The two persons were informed of their constitutional rights. The *shabu* and drug paraphernalia were confiscated. They were brought to the PNP station. At the PNP station, they were frisked. They were told to remove everything. <u>When they removed their socks, the police officers found three (3) more plastic sachets of *shabu*</u>. Thus, the two persons were charged with: (1) illegal use of dangerous drugs (Sec. 15, RA 9165); and (2) illegal possession of dangerous drugs (Sec. 11, RA 9165). Are the charges correct?**

A: NO. The charges are not correct. The proper charge is only <u>illegal possession of dangerous drugs.</u> Under Sec. 15, there is a qualification. <u>A person can only be prosecuted for illegal use of dangerous drugs if no other amount of drugs is found in his or her possession.</u>

In this case, aside from the drugs that they were using, these two accused were also found in possession of three (3) plastic sachets of *shabu* inside their socks. Therefore, because of the qualification provided for in Sec. 15, the proper charge is illegal possession of dangerous drugs. There is no more illegal use of dangerous drugs.

The moment a person using dangerous drugs is found in possession of another amount which is not being consumed, the proper charge is illegal possession of dangerous drugs, not illegal use.

**Q: X is a neophyte law student in the Faculty of Civil Law of UST (UST FCL). Suddenly, X saw his name on the bulletin board. Stated therein are the students who will be subjected to drug tests for the month of June. Unknown to X, it is the policy of UST FCL that every month students will be randomly subjected to drug test. X's name is in the said list. X went to the hospital to subject himself to the drug test. After a confirmatory test, X was found positive for use of dangerous drugs. Can UST FCL file a case of violation of Sec. 15 for illegal use of dangerous drugs against law student X?**

**A:** No, UST FCL cannot file a case of violation of Sec. 15 for illegal use of dangerous drugs against X. Even if they were found positive for the use of dangerous drugs, they cannot be prosecuted for Illegal Use of Dangerous Drugs under Section 15 of RA No. 9165. In the case of **Social Justice Society (SJS) v. Dangerous Drugs Board**, the Supreme Court upheld the constitutionality of Section 36 (d) and (e) wherein these so called "mandatory random suspicion less drug testing" conducted by school institutions and private companies among their students or among their employees and/or officers. The Supreme Court held that these are constitutional.

According to the Supreme Court, the moment these students enrolled in this university, moment the employees applied for work in this private company, they waived their right to privacy. They knew that it is the policy of the said company to conduct mandatory random suspicion less drug testing, nevertheless, they still entered and enrolled in the said campus or company. Therefore, in doing so, they waived their right to privacy. Hence, the Supreme Court

said, it is constitutional. However, although it is constitutional, the Supreme Court held in **People v. Solano** that those found positive for use of Dangerous Drugs based on mandatory random suspicion less drug testing cannot be prosecuted for violation of Section 15 because if you will look at Section 15 Use of Dangerous Drugs, the first paragraph states that a person apprehended or arrested found positive for use of dangerous drugs shall be penalized. The phrase is a person apprehended or arrested found positive for use of dangerous drugs. Therefore, the Supreme Court said, the word person immediately follows apprehended or arrested. Hence, only those apprehended or arrested and thereafter subjected to drug testing and found positive can be charged with violation of Section 15.

In this case, Professor X was not apprehended or arrested. CPA X was not apprehended or arrested. They were just subjected to drug testing because of the policy for mandatory random suspicion less drug testing. Therefore, they cannot be charged with violation of Section 15, R.A. No. 9165.

**Q: What if, X just passed the CPA Board Exam. X is now a Certified Public Accountant (CPA). X applied to a well-known accounting firm in Makati. Just a month after, X was accepted in the said accounting firm. X saw his name on the bulletin board from the list of employees who will be subjected to drug tests for the month of June. X was among those who were randomly picked to be subjected to drug test because it is the policy of the said accounting firm to randomly test its employees for the use of dangerous drugs. X was subjected to a drug test. After a confirmatory test, X tested positive for the use of dangerous drugs. Can the officers of the said accounting firm file a case of violation of Sec. 15 for illegal use of dangerous drugs against CPA employee X?**

**A:** NO. In both cases, UST FCL and the said accounting firm cannot file cases for violation of Sec. 15 for illegal use of dangerous drugs against law student X and CPA employee X.

**Q: Is the power of an educational institution or a private company to conduct and require mandatory, random, and suspicion-less drug test constitutional?**

**A:** YES. In the case of **Social Justice Society (SJS) v. Dangerous Drugs Board,** the Supreme Court said Sec. 36(c) and Sec. 36(d) of RA 9165 which require mandatory, random and suspicionless drug testing of students, officers, and employees are constitutional. It is within the prerogative of educational institutions and private companies to require drug testing as a condition for admission. Every student in a school, or officer or employee in a private company, is deemed to have been forewarned of the said drug testing the moment they entered the said school or private company. Therefore, they are deemed to have been waived their right to privacy.

Hence, UST FCL and the accounting firm have the power to require its students and officers and employees to submit to drug tests.

Law student X and CPA Employee X are found to be positive for illegal drugs. However, even if they are found to be positive for illegal drugs, they cannot be charged for violation of Sec. 15 of RA 9165, as amended, for illegal use of dangerous drugs.

In the case of **People v. Solano**, the Supreme Court said Sec. 15 of RA 9165, as amended, is clear and unambiguous. Sec. 15 expressly provides: "A person **apprehended or arrested,** who is found to be positive for use of any dangerous drug, after a confirmatory test, shall be imposed a penalty..." It is clear from the provision of Sec. 15 that the phrase "apprehended or arrested" immediately follows the phrase "a person." Thus, the phrase "apprehended or arrested" qualifies the subject "person." Therefore, it is clear that only apprehended or arrested person found to be positive for use of dangerous drugs may be prosecuted under Sec. 15 of RA 9165, as amended, for illegal use of drugs.

In this case, law student X and CPA employee X were neither apprehended nor arrested. They were only subjected to a mandatory, random and suspicion-less drug test based on the policy of UST FCL and the said accounting firm, respectively. Therefore, even if they were found positive for use of dangerous drugs, they cannot be charged or prosecuted for violation of Sec. 15 of RA 9165, as amended, because they have not been apprehended nor arrested for the commission of the crime.

**Q: The police officers got a report that X was extorting money from someone. So, they planned his entrapment procedure in the said restaurant and on the date of the exchange of money. The moment X accepted the said money, NBI agents immediately arrived, and he was arrested. The NBI agents noticed that X seems to be under the influence of drugs, so, before bringing him to the police station for investigation, he was first brough to the PNP Crime Lab for drug testing, he was ordered to subject his urine for drug test, but he refused, and he was asking for his counsel. However, the police officers prevailed upon him and he subjected his urine for drug test. After confirmatory test, X was found positive for use of dangerous drugs. So, he was charged**

**with violation of Section 15 of R.A. 9165 – Illegal Use of Dangerous Drugs. X was convicted. Is X liable for Illegal Use of Dangerous Drugs?**

**A:** No.

## CHAIN OF CUSTODY RULE (SEC. 21, AS AMENDED)

**Section 21.** ***Custody and Disposition of Confiscated, Seized, and/or Surrendered Dangerous Drugs, Plant Sources of Dangerous Drugs, Controlled Precursors and Essential Chemicals, Instruments/Paraphernalia and/or Laboratory Equipment.*** – The PDEA shall take charge and have custody of all dangerous drugs, plant sources of dangerous drugs, controlled precursors and essential chemicals, as well as instruments/paraphernalia and/or laboratory equipment so confiscated, seized and/or surrendered, for proper disposition in the following manner:

(1) The apprehending team having initial custody and control of the dangerous drugs, controlled precursors and essential chemicals, instruments/paraphernalia and/or laboratory equipment shall, immediately after seizure and confiscation, conduct a physical inventory of the seized items and photograph the same in the presence of the accused or the person/s from whom such items were confiscated and/or seized, or his/her representative or counsel, with an elected public official and a representative of the National Prosecution Service or the media who shall be required to sign the copies of the inventory and be given a copy thereof: Provided, That the physical inventory and photograph shall be conducted at the place where the search warrant is served; or at the nearest police station or at the nearest office of the apprehending officer/team, whichever is practicable, in case of warrantless seizures: Provided, finally, That noncompliance of these requirements under justifiable grounds, as long as the integrity and the evidentiary value of the seized items are properly preserved by the apprehending officer/team, shall not render void and invalid such seizures and custody over said items.

(2) Within twenty-four (24) hours upon confiscation/seizure of dangerous drugs, plant sources of dangerous drugs, controlled precursors and essential chemicals, as well as instruments/paraphernalia and/or laboratory equipment, the same shall be submitted to the PDEA Forensic Laboratory for a qualitative and quantitative examination;

(3) A certification of the forensic laboratory examination results, which shall be done by the forensic laboratory examiner, shall be issued immediately upon the receipt of the subject item/s: Provided, That when the volume of dangerous drugs, plant sources of dangerous drugs, and controlled precursors and essential chemicals does not allow the completion of testing within the time frame, a partial laboratory examination report shall be provisionally issued stating therein the quantities of dangerous drugs still to be examined by the forensic laboratory: Provided, however, That a final certification shall be issued immediately upon completion of the said examination and certification;

(4) After the filing of the criminal case, the Court shall, within seventy-two (72) hours, conduct an ocular inspection of the confiscated, seized and/or surrendered dangerous drugs, plant sources of dangerous drugs, and controlled precursors and essential chemicals, including the instruments/paraphernalia and/or laboratory equipment, and through the PDEA shall within twenty-four (24) hours thereafter proceed with the destruction or burning of the same, in the presence of the accused or the person/s from whom such items were confiscated and/or seized, or his/her representative or counsel, a representative from the media and the DOJ, civil society groups and any elected public official. The Board shall draw up the guidelines on the manner of proper disposition and destruction of such item/s which shall be borne by the offender: Provided, That those item/s of lawful commerce, as determined by the Board, shall be donated, used or recycled for legitimate purposes: Provided, further, That a representative sample, duly weighed and recorded is retained;

(5) The Board shall then issue a sworn certification as to the fact of destruction or burning of the subject item/s which, together with the representative sample/s in the custody of the PDEA, shall be submitted to the court having jurisdiction over the case. In all instances, the representative sample/s shall be kept to a minimum quantity as determined by the Board;

(6) The alleged offender or his/her representative or counsel shall be allowed to personally observe all of the above proceedings and his/her presence shall not constitute an admission of guilt. In case the said offender or accused refuses or fails to appoint a representative after due notice in writing to the accused or his/her counsel within seventy-two (72) hours before the actual burning or destruction of the evidence in question, the Secretary of Justice shall appoint a member of the public attorney's office to represent the former;

(7) After the promulgation and judgment in the criminal case wherein the representative sample/s was presented as evidence in court, the trial prosecutor shall inform the Board of the final termination of the case and, in turn, shall request the court for leave to turn over the said representative sample/s to the PDEA for proper disposition and destruction within twenty-four (24) hours from receipt of the same; and

(8) Transitory Provision: a) Within twenty-four (24) hours from the effectivity of this Act, dangerous drugs defined herein which are presently in possession of law enforcement agencies shall, with leave of court, be burned or destroyed, in the presence of representatives of the Court, DOJ, Department of Health (DOH) and the accused/and or his/her counsel, and, b) Pending the organization of the PDEA, the custody, disposition, and burning or destruction of seized/surrendered dangerous drugs provided under this Section shall be implemented by the DOH.

Under Sec. 21 of RA 9165, as amended, the law provides for the so-called Chain of Custody Rule. Sec. 25 provides for the procedure that members of the Philippine Drug Enforcement Agency (PDEA) must comply with the moment a person is arrested for violation of RA 9165, as amended.

The apprehending team having initial custody and control of the dangerous drugs, controlled precursor, and essential chemicals, instruments/paraphernalia and/or laboratory equipment shall conduct a physical inventory and photograph the same immediately after seizure and confiscation in the presence of:

1. The accused (i.e., the person/s from whom such items were confiscated or seized), or his/her representative or counsel;
2. An elected public official; **and**
3. A representative of the National Prosecution Service (NPS), **or** the media.

Chain of Custody Rule is the duly recorded authorized movements and custody of the seized drugs at any stage from the moment of their seizure and confiscation from the accused, submission of the seized drugs to the forensic laboratory for drug testing, submission to the custodian for safekeeping, presentation to the RTC as evidence, and submission to the PDEA for destruction or disposal.

The purpose of the Chain of Custody Rule is to ensure that there is no alteration or contamination of the said dangerous drugs seized from the accused; that the said dangerous drugs seized from the accused would be the same drugs presented at the crime laboratory for drug testing, and would be the very same drug presented in court as the *corpus delicti* for the crime against the accused. There shall be no alteration, insertion, or switching, contamination of the said dangerous drugs.

Before the amendment of RA 9165 by RA 10640, Sec. 21 requires four (4) witnesses who will be present during the physical inventory and taking of photographs:

1. The accused (i.e., the person/s from whom such items were confiscated or seized), or his/her representative or counsel;
2. An elected public official;
3. A representative of the National Prosecution Service (NPS), **and**
4. A representative of the media.

Based on the amendment brought about RA 10640, Sec. 21 now only requires three (3) witnesses who will be present during the physical inventory and taking of photographs:

1. The accused (i.e., the person/s from whom such items were confiscated or seized), or his/her representative or counsel;
2. An elected public official; **and**
3. A representative of the National Prosecution Service (NPS), **or** the media.

It is necessary that they must affix their signature to the copies of the inventory and be given a copy thereof.

In **People v. Abdulah**, The police officer received a call that there were 2 Muslim women engaged in selling dangerous drugs. They planned a buy-bust operation. It was a success. The Muslim women were arrested for illegal sale. The plastic sachets were confiscated. The confiscated items were placed in a bag. Thereafter, the police officers, after seizing the dangerous drugs, went to the Barangay Hall. There, the inventory and photographing were made in the presence of the accused, the Barangay Captain, and a representative from the media, everything was complied with. So, the Muslim women were convicted by the RTC and such conviction was affirmed by the CA. The SC, however, ruled that it should be an acquittal. The amendment brought about by R.A. 10640 requires that the marking, the taking of photographs, the making of the inventory must be done immediately at the crime scene.

Here, the said drugs were placed in a bag and then brought to the Barangay Hall. In between that area, things may happen. The said marking and taking of photographs was not made in the scene of the crime. Therefore, Section 21 as amended has not been complied with.

Based on the evidence presented, when the arresting police officers were asked as to why they did not mark it in the said area, the police officers said that it is because the said area was a Muslim area. They were afraid that is why they brought the confiscated items to the Barangay Hall. The Supreme Court said that hatred against Muslim community Islamophobia is not a justifiable ground for not complying with Section 21 of R.A. 9165. It must be done immediately right at the scene of the crime, at the scene of confiscation unless there is a valid or justifiable reason.

There are instances before wherein the Supreme Court sustained or affirmed the conviction of many accused convicted of violation of R.A. 9165 even if Section 21 was not strictly complied with. Because then, according to the Supreme Court, as long as there is a

(1) justifiable ground for substantial compliance; and
(2) the apprehending officers were able to preserve the integrity and evidentiary value of the dangerous drugs, that will suffice

**Q: A buy-bust operation was conducted against X. After the drugs that X was selling were turned over to the poseur buyer, the police officers immediately marked them. They were able to confiscate five (5) plastic sachets of *shabu,* marked as Exhibits A, B, C, D, and E. Using a Pentel Pen, the police officers marked them with the date and time when the said dangerous drugs were confiscated, and with the signature of the police officer who arrested X. Everything was placed in the said plastic sachet. Each of them was marked right then and there. Physical inventory and taking of photographs happened in the said place. However, the said physical inventory and taking of photographs were done only in the presence of accused X and the Barangay official, an elective public official. There was neither a representative of the National Prosecution Service (NPS) nor a representative of the media. After the physical inventory, taking of photographs, and marking of confiscated drugs, accused X and the confiscated drugs were brought to the police station.**

**At the police station, the police officers called for a representative of the media and, again, a physical inventory was done this time in the presence of the accused, the elected public official, and the media representative. This is the second inventory andn taking of photographs.**

**X was charged and thereafter convicted for violation of Sec. 5 of RA 9165 for illegal sale of dangerous drugs. X questioned his conviction. According to X, he cannot be held liable. The police officers failed to comply with Sec. 21 of RA 9165, as amended. The marking done at the place, as well as the taking of photographs and inventory, was done only in the presence of the accused and Barangay official. It was only at the PNP station during the second physical inventory and taking of photographs that the media representative was present. During the testimony, the police officers said they failed to bring a media representative because time is of the essence. Hence, they only brought along the Barangay official. They could not find a media representative because, at that time, there was an ongoing fire in a Barangay and all the members of the media were there. Likewise, they could not find a representative of the NPS. But they have to proceed in the said area of the arrest of X.**

**Can X be convicted for the illegal sale of dangerous drugs even if the first time that the inventory and taking of photographs were done not in the presence of either a representative of the NPS or of the media?**

**A:** YES. The police officers have a justifiable reason for substantial compliance. First, the police officers could not find any media or representative of the NPS. Time is of the essence. If they would not be moving, X might be gone. Second, the police officers were able to preserve the integrity and evidentiary value of the dangerous drugs. Right after the seizure and confiscation at the scene of the crime, the police officers marked the five (5) plastic sachets of *shabu* as exhibits A, B, C, D, and E, complete with the date and time of the seizure and confiscation, and with the signature of the apprehending officer. Because of the immediate marking at the scene of the crime, these five (5) plastic sachets of *shabu* can no longer be altered or exchange with another dangerous drugs in the possession of the said police officers. Hence, although the compliance is only substantial in nature, since they have a justifiable reason and were able to preserve the integrity and evidentiary value of the said dangerous drugs, still there can be a conviction of X.

**GR:** In case of warrantless seizure, the physical inventory and taking of photographs must be conducted at the place of seizure.

**XPN:** The physical inventory and taking of photographs may be conducted at the nearest police station or office of the apprehending officer/team, whichever is practicable to conduct physical inventory and taking of photographs at the place of seizure. Provided, the police officers have a justifiable ground, and the integrity and evidentiary value of the seized items are properly preserved. In this case, the police officers have a justifiable ground.

**Q: The police officers got a tip in a Muslim area in Quiapo. There are two women who are engaged in drug peddling. They are said to be the mother of drug pushing in the said Muslim community. The police officers conducted a buy-bust operation, and it was successful. They were able to arrest the two women. Upon arrest and confiscation of plastic sachets of *shabu* that the two women were selling, they were immediately placed in a plastic bag. Thereafter, the two women and the plastic sachets of *shabu* were brought to the Office of the Barangay Chairman. At the said office, the physical inventory, taking of photographs and marking took place in the presence of the two women, the Barangay Chairman, and a media representative. During the hearing of the case for illegal sale of dangerous drugs, the arresting police officers were asked by the public prosecutor, "How come that the physical inventory, taking of photographs, and marking were done at the Barangay Hall, and not at the scene where the said drug operation took place?" The police officer answered, "your honor, it is a Muslim area. Because it is a Muslim area, we feel that it is not a safe place. Hence, we decided not to conduct the physical inventory, taking of photographs, and marking of the confiscated dangerous drugs thereat. After trial on the merits, the judge convicted the two women.**

**A:** When the case reached the Supreme Court, the two women were acquitted. The Supreme Court said, as a general rule, it is necessary, in case of warrantless seizure, the marking of the seized drugs must be done immediately after arrest. Therefore, the marking of the said seized drugs at the scene of the crime.

In this case, the seized drugs were not marked at the scene of the crime. They were placed inside a plastic bag and were brought to the Office of the Barangay Chairman where the physical inventory, taking of photographs, and marking took place. Hence, there is a clear violation of Sec. 21. The police officers do not have the justifiable reason for not complying with Sec. 21. Their alibi that the said Muslim area is unsafe will not lie in their favor. In previous cases, the Supreme Court already denounced the prosecution's reasoning that the target area, being a Muslim area, is unsafe. Islamophobia or hate to Muslim community can never justify an officer's failure to comply with Sec. 21 or the Chain of Custody Rule. Hence, the two women were acquitted.

## PLEA-BARGAINING (SEC. 23, AS AMENDED)

**Sec. 23.** *Plea-Bargaining Provision.* – Any person charged under any provision of this Act regardless of the imposable penalty shall not be allowed to avail of the provision on plea-bargaining

**Q: X was charged with illegal sale of dangerous drugs (Sec. 5, RA 9165). During arraignment, X pleaded not guilty. Preliminary conference followed the marking of exhibit. During the pre-trial, the counsel of X moved, "Your honor, my client X would like to enter into a valid plea-bargaining agreement. May we move that my client be rearraigned? Instead of Sec. 5 for illegal sale, may he be rearraigned for violation of Sec. 12 for illegal possession of drug paraphernalia." The motion was granted. X was rearraigned. From illegal sale under Sec. 5, it is now illegal possession of drug paraphernalia under Sec. 12. Is the judge correct in granting the motion for a valid plea-bargaining agreement?**

**A:** YES. The judge is correct. In the case of **Estipona v. Judge Lobrigo (2017),** the Supreme Court said Sec. 23 of RA 9165, as amended, which prohibits plea-bargaining is unconstitutional because it encroaches upon the power of the Supreme Court to promulgate rules and regulations for the judiciary. Under the Rules of Court, the Supreme Court allows plea-bargaining agreement in criminal cases, which includes violations of RA 9165. Hence, Sec. 23 which prohibits plea-bargaining is unconstitutional. Therefore, it is settled that, even in violation of RA 9165, the accused is allowed to enter into a valid plea-bargaining agreement.

**Q: X was charged of illegal sale of drugs under Sec. 5. During the arraignment, he pleaded not guilty. During pre-trial, his counsel moved, "Your honor, my client, X, the accused in this case, wanted to enter into a valid plea-bargaining agreement. May we move that my client be allowed to be plead guilty to the lesser crime of illegal possession of drug paraphernalia under Sec. 12 of RA 9165. The fiscal raised an objection, "Objection, your honor." The Judge asked, "Ground, Fiscal?" The fiscal answered, "Your honor, we can only allow the accused to plead guilty from illegal sale under Sec. 5 to illegal possession of dangerous drugs under Sec. 11. We cannot allow him to plead guilty from illegal sale under Sec. 5 to illegal possession of drug paraphernalia under Sec. 12. Your honor, that is against to the internal rules set by the Department of Justice. Therefore, we move that the said motion be denied."**

**The motion was overruled. The motion of the defense cancel was granted. The fiscal said, "Your honor, may we enter our continuing objection. May it be placed on record that we have a continuing objection to this Honorable Court's decision to grant the motion of the**

**accused to enter into a valid plea-bargaining agreement." The judge said, "Okay, let it remain on records. But the accused must be rearraigned for the illegal possession of drug paraphernalia." X was rearraigned for illegal possession of drug paraphernalia.**

**Thereafter, X was convicted. The fiscal was mad. Despite the objection, the judge overruled him and allowed accused rearraigned to a lesser crime of illegal possession of drug paraphernalia. The public prosecutor went to the Supreme Court via petition for *certiorari* arguing that it is a grave abuse of discretion on the part of the said judge to grant the motion of accused to enter into a valid plea-bargaining agreement despite the objection from the public prosecutor. The public prosecutor also argued that he is the representative of the State and the alleged private complainant in this case. Therefore, the consent of the public prosecutor is necessary.**

**Is the judge correct? Is it the public prosecutor who is correct?**

**A:** In the case of **Alvero v. People**, **Brion v. People,** and **People v. Montierro**, the Supreme Court said it is settled that an accused under RA 9165 may enter into a valid plea-bargaining agreement. Sec. 23 of RA 9165 which prohibits plea-bargaining has been declared unconstitutional (**Estipona v. Judge Lobrigo).** But the question is, do trial courts have the authority to allow plea-bargaining despite the public prosecutor's continuing objection? The Supreme Court answers in the AFFIRMATIVE. The courts, such as the RTC, may overrule the objection of the public prosecutor. Courts may allow or approve the said plea-bargaining motion when the objection was not supported by evidence on record, and when the said objection is solely anchored on the internal rules of the DOJ which are inconsistent with the Supreme Court's plea-bargaining rule.

In this case, the only reason of the public prosecutor's objection to the motion of the defense counsel is that, based on the DOJ Rules, from illegal sale the accused may only plead guilty to illegal possession of dangerous drugs under Sec. 11, but not to illegal possession of drug paraphernalia under Sec. 12 of RA 9165. The said DOJ Rule is not consistent with the Supreme Court's **Plea-Bargaining Framework in Drugs Cases**. Therefore, the RTC is correct. It can still allow to rearraign the accused to the lesser crime of illegal possession of drug paraphernalia under Sec. 13 despite the continuing objection of the public prosecutor.

Again, the RTC may overrule the objection of the prosecution and approve the plea-bargaining motion of the defense counsel when the objection is not supported by evidence, but is anchored solely on the internal rules or guidelines of the DOJ.

## NON-APPLICABILITY OF PROBATION LAW (SEC. 24, AS AMENDED)

**Sec. 24. *Non-Applicability of the Probation Law for Drug Traffickers and Pushers.*** – Any person convicted for drug trafficking or pushing under this Act, regardless of the penalty imposed by the Court, cannot avail of the privilege granted by the Probation Law or Presidential Decree No. 968, as amended.

In this case, X is charged of illegal sale under Sec. 5 of RA 9165 but was found guilty of illegal possession of drug paraphernalia under Sec. 12 of RA 9156 based on a valid plea-bargaining agreement. Since the penalty for violation of Sec. 12 is 4 years imprisonment and is within the probationable period. Hence, X may apply for probation. X's application for probation shall be granted unless he is disqualified for any other reason. The fact that X was originally charged with illegal sale under Sec. 5 is not a valid ground for denial of his application for probation.

**Q: X was charged for illegal sale of dangerous drugs. During arraignment, he pleaded not guilty. During pre-trial, X's counsel moved that X be allowed to plead guilty to the lesser crime of illegal possession of drug paraphernalia under Sec. 12 of RA 9165. Motion was granted. X was rearraigned. He pleaded guilty to the lesser crime of illegal possession of drug paraphernalia under Sec. 12 of RA 9165. Since the maximum penalty under Sec. 12 is only 4 years imprisonment, the RTC imposed upon X the maximum penalty of 4 years imprisonment. Since the penalty imposed on X is within the probationable penalty of below 6 years, the counsel of X, after X's conviction, immediately filed an application for probation. However, the RTC denied X's application for probation on the ground that, under Sec. 24 of RA 9165, drug traffickers and drug pushers cannot avail the benefit of probation. Since the original crime charged against X is illegal sale, X is considered a drug trafficker and drug pusher. Therefore, X cannot apply for probation. Is the ground of the RTC Judge in denying X's application for probation correct?**

**A:** NO. In the case of **Pascua v. People** and **People v. Reyes,** the Supreme Court said that, under Sec. 24 of RA 9165, in applying the probation law, the offense charged is

immaterial. What is material is the crime for which the accused was found guilty of.

In this case, although X was charged with illegal sale of dangerous drugs, based on a valid plea-bargaining agreement, he was only convicted of illegal possession of drug paraphernalia. Since the penalty prescribed by law and the penalty imposed by the court is a maximum of four (4) years, it is within the probationable penalty of six (6) years. Therefore, he should be given the privilege to apply for probation. He should be given at least the privilege to apply, because whether to grant it or not will still depend on the trial court, not on the Supreme Court.

## ATTEMPT OR CONSPIRACY (SEC. 26, AS AMENDED)

**Section 26.** ***Attempt or Conspiracy.*** – Any attempt or conspiracy to commit the following unlawful acts shall be penalized by the same penalty prescribed for the commission of the same as provided under this Act:
(a) Importation of any dangerous drug and/or controlled precursor and essential chemical;
(b) Sale, trading, administration, dispensation, delivery, distribution and transportation of any dangerous drug and/or controlled precursor and essential chemical;
(c) Maintenance of a den, dive or resort where any dangerous drug is used in any form;
(d) Manufacture of any dangerous drug and/or controlled precursor and essential chemical; and
(e) Cultivation or culture of plants which are sources of dangerous drugs.

**Q: There is a report that there is a "*talamak na bentahan ng droga*" in a certain barangay in Taguig. The chief of police called on two (2) police officers, X and Y. They were assigned to disguise themselves as private citizens and go to said barangay, mingle with people, in order to determine if there is truth as to the said report. X and Y, dressed in civilian attire, went to the said barangay. In the store in the said barangay, X and Y seated on the bench. While talking to each other, suddenly two (2) persons, A and B, approached X and Y. A and B asked X and Y, "Gusto niyo ba 'to? Gusto niyo ba umiskor?" X and Y answered, "Syempre naman. Kaya nga narito kami. Bakit? Meron ka ba?" A and B replied, "Oo naman. Bakit naman kami lalapit sa inyo kung wala?" X and Y said, "Patingin nga." Thereafter, A and B opened the palm of their hands. X and Y immediate saw from each of the hands of A and B, there were five (5) plastic sachets of *shabu*. A and B said, "para sa inyo P200 na lang ang isa. Ang tunay na bentahan ay P250, pero para sa inyo P200 na lang." Upon hearing this, X and Y immediately blew their disguise and told A and B, "arestado kayo, pulis kami." X and Y placed handcuffs on A and B, and confiscated the five (5) plastic sachets of shabu from the hands of A and another (5) plastic sachets of shabu from the hands of B. What case/cases may be filed against A and B?**

**A:** A and B should be charged with attempted illegal sale of dangerous drugs under Sec. 5 of RA 9165, in relation to Sec. 26 of the same law. Under Sec. 26 of RA 9165, a mere attempt or conspiracy in the cases enumerated therein, which includes illegal sale of dangerous drugs, can already be charged.

In this case, the proper charge is attempted sale of dangerous drugs. *First*, the buyer and the seller are clearly identified. The buyers are police officers X and Y. The sellers are A and B. Second, the *corpus delicti* and the price are established. The *corpus delicti* is the five (5) plastic sachets of *shabu* found on the hands of A, and another five (5) plastic sachets of *shabu* found on the hands of A and another five (5) plastic sachets of *shabu* found on the hands of B. The price is P200 each. So, both the first and second elements of illegal sale are present. However, the last element is absent. The last element of illegal sale of dangerous drugs is absent because there was no transfer of the said drugs from the hands of the alleged sellers, A and B to the hands of the buyers, police officers X and Y. X and Y, upon seeing the said drugs and upon learning the price, immediately blew their disguise and effected the arrest even before the drugs were transferred to them. Hence, it is an attempted illegal sale of dangerous drugs under Sec. 5 of RA 9165, in relation to Sec. 26 of the same law.

## PLANTING OF EVIDENCE (SEC. 29)

**Section 29.** ***Criminal Liability for Planting of Evidence.*** – Any person who is found guilty of "planting" any dangerous drug and/or controlled precursor and essential chemical, regardless of quantity and purity, shall suffer the penalty of death.

**Q: A police officer was caught surreptitiously inserting a plastic sachet of *shabu* inside the back pocket of the pants of W. The police officer intended to prosecute W for illegal possession of dangerous drugs under Sec. 11 of RA 9165. What crime is committed by the said police officer?**

**A:** The police officer is liable for planting of evidence under Sec. 29 of RA 9165. 'Planting of evidence' is committed by any person who shall surreptitiously insert a dangerous drug and/or controlled precursor and essential chemical, regardless of quantity and purity, on an innocent person in

order to inflict upon the latter a commission of a violation of RA 9165. The penalty for planting of evidence under Sec. 29 is death.

**Q: X was caught in the act of selling dangerous drugs. In a buy-bust operation, X was caught in the act of selling dangerous drugs. He was brought to the PNP station. During investigation, it was discovered that X is a minor; he is only 17 years old. His birth certificate showed that he was only a minor at the time he was arrested for sale of illegal dangerous drugs in the buybust operation. Upon investigation also, it was revealed, shown, and established that X acted with discernment. He knew the protocol of the government against illegal drugs. He often watched the television, heard over the radio, how people were arrested, killed, for dangerous drugs. He obviously knew that it is illegal, and that it is a criminal act. Nevertheless, he divulged to the police that he acted with discernment for easy money as he is the breadwinner of his family. So, he acted with discernment. Because of that, he was prosecuted for violation of Sec. 5 of R.A. 9165 for illegal sale of dangerous drugs. After trial on the merits, he was convicted for illegal sale of dangerous drugs. The penalty imposed on him is the maximum penalty of life imprisonment. His counsel from the Public Attorney's Office filed a motion for reconsideration stating that the judge committed an error when it imposed the maximum penalty of life imprisonment considering that the said accused was a minor at the time of the commission of the crime. As such, the court should have considered the privilege mitigating circumstance of minority in his favor to lower the imposable penalty to one degree.**

**The said motion was denied by the judge. The judge said that what X violated is a violation of special penal laws, R.A. 9165; therefore, mitigating circumstances under Article 13 of the Revised Penal Code does not apply. Is the judge correct, or is it the counsel that is correct?**

**A:** Yes, the counsel is correct. Under Sec. 98 of R.A. 9165, it is expressly provided that the provisions of the Revised Penal Code shall not apply to violations of R.A. 9165. The Supreme Court said that the law used the word "shall"; therefore, it is mandatory. However, there is a qualification — except when the offender is a minor offender, when the offender is a juvenile offender.

In this case, X is a juvenile offender. He was only 17 years old at the time of the commission of the crime. If the offender is a juvenile offender and the crime he committed carries the penalty of life imprisonment to death, it shall be considered reclusion perpetua to death. Now that it has the same nomenclature as the RPC, the judge can already consider the provisions of the RPC on mitigating circumstances.

The crime allegedly committed by X is illegal sale of dangerous drugs which is punished by life imprisonment; therefore, it shall be considered as reclusion perpetua to death because he was a minor at the time of the commission of the crime. Since it already has the same nomenclature, the judge shall already consider the privilege mitigating circumstance of minority, thus lowering the penalty by one degree. It should then be reclusion temporal, and not reclusion perpetua or life imprisonment.

## LIMITED APPLICABILITY OF THE RPC (SEC. 98)

**Sec. 98.** ***Limited Applicability of the Revised Penal Code***. – Notwithstanding any law, rule or regulation to the contrary, the provisions of the Revised Penal Code (Act No. 3814), as amended, shall not apply to the provisions of this Act, except in the case of minor offenders. Where the offender is a minor, the penalty for acts punishable by life imprisonment to death provided herein shall be reclusion perpetua to death.

**Q: A buy-bust operation was successfully conducted against X, a known drug. In the said buy-bust operation, X was arrested. X was brought to the PNP station. While being investigated and X's personal circumstances were being taken, it was discovered that X, at that time, was only 17 y/o. The police officers asked X for proof of his minority. The mother of X arrived together with the Certificate of Live Birth which showed that X, at that time, was only 17 y/o, a minor. Since based on the investigation X acted with discernment, a charge for illegal sale under Sec. 5 of RA 9165 was filed against X before the RTC. After trial on the merits, the RTC Judge found X guilty as charged. The RTC Judge, in imposing the penalty upon X, sentenced him to life imprisonment. Under Sec. 5 for illegal sale, the penalty is life imprisonment to death. The defense counsel did not question the conviction. However, the defense counsel questioned the penalty imposed upon act. The defense counsel argued that it is erroneous on the part of the RTC Judge to impose the penalty of life imprisonment because, at the time of the commission of the crime, X was a minor. Therefore, according to the defense counsel, the judge should have considered the privileged mitigating**

**circumstances of minority. Is the argument of the defense counsel correct?**

**A:** YES. The argument of the defense counsel is correct. The judge is wrong. Sec. 98 of RA 9165 expressly provides that the provisions of the Revised Penal Code shall not apply to violations of RA 9165. Therefore, Article 10 of the RPC, which provides that the provisions of the RPC shall apply suppletorily to violations of special penal laws, does not apply to violations of RA 9165.

However, there is a qualification, i.e., "**except when the offender is a minor.**" If the offender is a minor, the penalty for acts punishable by life imprisonment to death shall be reclusion perpetua to death. And now, the privileged mitigating circumstance of minority can already be appreciated.

In this case, the crime charged against X is illegal sale. The penalty under Sec. 5 is life imprisonment. Since at the time of the commission of the crime it is proven that X is a minor, the said penalty of life imprisonment to death shall be considered as *reclusion perpetua* to death. Since penalty now has the same nomenclature as that of the RPC, the judge should have considered the modifying circumstance under the RPC. Hence, the judge should have considered the privileged mitigating circumstance of minority because the penalty now is *reclusion perpetua* to death. Applying the privileged mitigating circumstance of minority, the penalty imposed to X should be *reclusion temporal* (which is one degree lower than *reclusion perpetua*) and not life imprisonment.

## TITLE 6: CRIMES AGAINST PUBLIC MORALS

**[Title 6 was skipped by PVG]**

### GRAVE SCANDAL (ART. 200)

**Art. 200.** *Grave scandal.* — The penalties of arresto mayor and public censure shall be imposed upon any person who shall offend against decency or good customs by any highly scandalous conduct not expressly falling within any other article of this Code.

**ELEMENTS:**

1. The offender performs an act or acts;
2. The said act or acts are highly scandalous as offending against morals, decency, or good customs;
3. The act or acts complained of being committed in a public place or within the public knowledge or view; and
4. The highly scandalous conduct is not expressly falling within any other article of this Code.

Based on the first and second element, the offender must be performing a highly scandalous act offensive to morals, decency, or good customs. It must be performed either in a public place or private place.

If he performs the act in a public place, grave scandal immediately arises; however, if the highly scandalous act is done in a private place, for the crime to arise, it must be within public knowledge or view, therefore, someone must have witnessed the performance of said act.

Like an impossible crime, grave scandal is a crime of last resort. It is expressly provided under the law that you can only file a case of grave scandal if the said highly scandalous act would not constitute any other violation of the Revised Penal Code. If the said highly scandalous act would violate another provision of the Code, that is the proper charge, and not the crime of grave scandal.

**Q: Husband and wife having sexual intercourse in a public place at Luneta Park. Are they liable for grave scandal?**

**A:** YES. They have the right to perform the said sexual intercourse as they are married. Walang pumipigil sa kanila. It only becomes grave scandal because they performed it in a public place. Therefore, the said sexual intercourse becomes highly scandalous and offensive to morals. The fact that it was done in a public place even without others knowing it, they are already liable for grave scandal.

**Q: X was 15 years old, while Y was 25 years old. They are in a relationship. They engaged in sexual intercourse at Luneta Park in celebration of their anniversary. They were arrested. Should they be charged for grave scandal?**

**A:** NO. Here, X, a 15-year-old, is not liable for any crime; however, Y is liable not for grave scandal, but for statutory rape because he had carnal knowledge with X who is under 16 years old. Based on Art. 266-A (d), as amended, there is statutory rape when the victim is under 16 years old. In this case, since X was only 15 years old, and Y was 25 years old, the act of sexual intercourse of the latter with X, regardless of consent, constitutes statutory rape. Therefore, the proper charge is statutory rape against only Y.

**Q: X was caught masturbating at the MRT. People were looking at him. Nevertheless, he continued. Can he be charged with grave scandal? Going by the elements: First, he performed an act; second, the said act is highly scandalous; and third, it was done in a public place. How about the fourth element? Does it constitute any other violation of the Revised Penal Code?**

**A:** NO. However, it constitutes a violation of a special penal law, the Safe Spaces Act. As such, he can still be charged with grave scandal because Art. 200 expressly provides that the act must not fall under any other provision of this Revised Penal Code. So, although it constitutes a violation of a special penal law, under the Safe Spaces Act, one of the acts punished there is the act of masturbating in public; although it constitutes a crime, it falls under another law—a special penal law—not under the Code. Therefore, aside from violation of the Safe Spaces Act, he can also be charged for grave scandal as all the elements are present.

**NOTE:** There is no more vagrancy. We only have prostitution which is committed by women who, for money or profit, habitually indulge in sexual intercourse or lascivious conduct.

## TITLE 7: CRIMES COMMITTED BY PUBLIC OFFICERS

### WHO ARE PUBLIC OFFICERS (ART. 203)

**Art. 203.** ***Who are public officers.*** - For the purpose of applying the provisions of this and the preceding titles of this book, any person who, by direct provision of the law, popular election or appointment by competent authority, shall take part in the performance of public functions in the Government of the Philippine Islands, of shall perform in said Government or in any of its branches public duties as an employee, agent or subordinate official, of any rank or class, shall be deemed to be a public officer.

### CHAPTER 2: MALFEASANCE AND MISFEASANCE IN OFFICE

All the felonies under Title 7 can either be a malfeasance, misfeasance, or nonfeasance.

1. ***Malfeasance*** – a public officer performs in his public office an act prohibited by law.

2. ***Misfeasance*** – a public officer performs an official act in a manner not in accordance with what the law provides.

3. ***Nonfeasance*** – a public officer knowingly and willfully refuses, omits, or refrains from doing an act which the law or his office requires him to do.

### KNOWINGLY RENDERING UNJUST JUDGMENT (ART. 204)

**Article 204.** ***Knowingly rendering unjust judgment.-***Any judge who shall knowingly render an unjust judgment in any case submitted to him for decision, shall be punished by prision mayor and perpetual absolute disqualification.

**ELEMENTS:**

1. The offender is a judge;
2. That he renders a judgment in a case submitted to him for decision;
3. That the judgment is unjust;
4. The judge knows that his judgment is unjust.

A judgment is said to be unjust when it is contrary to law, or when it is not supported by evidence, or both.

A judge, however, can only be charged for violation of Art. 204 when he acted in bad faith in rendering the said judgment. If the judge acted in good faith in rendering the said unjust judgment, he cannot be charged or convicted for violation of Art. 204. The source of an unjust judgment can either be:

a. Mere erroneous interpretation of the law; or
b. Ill-will or Ill-motive on the part of the judge.

If the judge renders an unjust judgment based merely on erroneous interpretation of the law, he cannot be held liable criminally, civilly, or administratively because judges, as a rule, enjoy judicial immunity from suit. They are free to interpret the law based on jurisprudence set by the Supreme Court.

However, if the said unjust judgment was rendered by the judge in bad faith based on ill-will, ill-motive or revenge, then he can be charged with violation of Art. 204.

**Judicial Immunity From Suit**

Judges enjoy judicial immunity from suit. So, for them to be liable for knowingly rendering an unjust judgment, it is necessary that in rendering the said unjust judgment, he acted in bad faith. Even if the judgment is, to the eyes of another, unjust, if the judge renders the same by reason of

some erroneous interpretation of the law, mere error on the part of the judge acting in good faith, he cannot be charged with knowingly rendering an unjust judgment.

## JUDGMENT RENDERED THROUGH NEGLIGENCE (ART. 205)

**Art. 205.** ***Judgment rendered through negligence.*** - Any judge who, by reason of inexcusable negligence or ignorance shall render a manifestly unjust judgment in any case submitted to him for decision shall be punished by arresto mayor and temporary special disqualification.

**ELEMENTS:**

1. The offender is a judge;
2. That he renders a judgment in a case submitted to him for decision;
3. That the judgment is manifestly unjust;
4. That it is due to his inexcusable negligence or ignorance.

## UNJUST INTERLOCUTORY ORDER (ART. 206)

**Art. 206.** ***Unjust interlocutory order.*** **-** Any judge who shall knowingly render an unjust interlocutory order or decree shall suffer the penalty of arresto mayor in its minimum period and suspension; but if he shall have acted by reason of inexcusable negligence or ignorance and the interlocutory order or decree be manifestly unjust, the penalty shall be suspension

**ELEMENTS:**

1. The offender is a judge;

2. That he performs any of the following acts:
    a. knowingly renders unjust interlocutory order or decree; or
    b. renders a manifestly unjust interlocutory order or decree through inexcusable negligence or ignorance.

## MALICIOUS DELAY IN THE ADMINISTRATION OF JUSTICE (ART. 207)

**Art. 207.** ***Malicious delay in the administration of justice.*** - The penalty of prision correccional in its minimum period shall be imposed upon any judge guilty of malicious delay in the administration of justice.

**ELEMENTS:**

1. The offender is a judge;
2. There is a proceeding in his court;
3. He delays the administration of justice;
4. The delay is malicious, that is, delay is caused by the judge with deliberate intent to inflict damage on either party in the case.

## DERELICTION OF DUTY IN THE PROSECUTION OF OFFENSES; NEGLIGENCE AND TOLERANCE (ART. 208)

**Article 208.** ***Prosecution of offenses; negligence and tolerance.*** **-** The penalty of prision correccional in its minimum period and suspension shall be imposed upon any public officer, or officer of the law, who, in dereliction of the duties of his office, shall maliciously refrain from instituting prosecution for the punishment of violators of the law, or shall tolerate the commission of offenses.

Under Art. 208, the law punishes dereliction of duties in the prosecution of offenses, or *prevaricación.*

**ELEMENTS:**

1. That the said offender is a public officer or officer of the law who has a duty cause the prosecution of, or to prosecute offenses;

2. He commits dereliction of the duties of his office in any of the following manner:

    a. Knowing the commission of the crime, he does not cause the prosecution of the criminal;

    b. Knowing that a crime is about to be committed, he tolerates its commission;

3. That the offender acts with malice and deliberate intent to favor the violator of the law.

Based on the first element, Art. 208 will only apply to public officers who have the duty:

1. To cause the prosecution of offenses; or
2. To prosecute offenses.

**<u>Public officers who can cause the prosecution of offenses:</u>**

1. Judges

2. Mayors
3. Barangay Chairman
4. Persons in authority
5. Agents of persons in authority

**Public officers charged with the prosecution of offenses:**

1. Fiscals/Public Prosecutors of the DOJ;
2. Special Prosecutors of the Office of the Ombudsman;

In committing the said dereliction of duty, the offender did so with malice and deliberate intent to favor the violator of the law.

## BETRAYAL OF TRUST BY AN ATTORNEY OR SOLICITOR (ART. 209)

**Article 209.** ***Betrayal of trust by an attorney or solicitor-Revelation of secrets.*** **-** In addition to the proper administrative action, the penalty of prision correccional in its minimum period, or a fine ranging from 200 to 1,000 pesos, or both, shall be imposed upon any attorney-at-law or solicitor (procurador judicial) who, by any malicious breach of professional duty or inexcusable negligence or ignorance, shall prejudice his client, or reveal any of the secrets of the latter learned by him in his professional capacity.
The same penalty shall be imposed upon an attorney-at-law or solicitor (procurador judicial) who, having undertaken the defense of a client or having received confidential information from said client in a case, shall undertake the defense of the opposing party in the same case, without the consent of his first client.

**Three (3) Acts Punishable under Art. 209**

1. By causing damage to his client either by:
    a. Any malicious breach of professional duty; or
    b. Inexcusable negligence or ignorance

2. By revealing any of the secrets of his client learned by him in his professional capacity;

3. By understanding the defense of the opposing party in the very same case, without the consent of the first party after having undertaken the defense of the said party, or after having obtained confidential information from the said first party.

**First Act - By causing damage to his client either by Any malicious breach of professional duty or Inexcusable negligence or ignorance**

Under the first act, damage is material. It is necessary that there is damage caused to the said offended party either by any malicious breach of professional duty, or inexcusable negligence or ignorance.

**Q: X was convicted of homicide. X is sentenced to *reclusion temporal.* X's counsel failed to file a motion for reconsideration despite his promise to do so. The judgment of conviction became final and executory. The only reason given by the counsel is that he was too busy with other cases. Can the counsel of X be charged with violation of Art. 209 for betrayal of trust by an attorney or solicitor?**

**A:** YES. X's counsel can be charged with violation of Art. 209 for betrayal of trust by an attorney or solicitor. The counsel of X caused damage on the part of X by malicious breach of professional duty. It is the professional duty of the counsel to file a motion for reconsideration within the time prescribed by law and the Rules of Court. The counsel in this case failed to do so thereby causing severe and grave damage to his client, X. Because of the counsel's failure to file a motion for reconsideration, X will now serve his sentence of *reclusion temporal,* or a penalty of imprisonment from up to 20 years. Therefore, the counsel can be charged with violation of Art. 209.

**Second Act – By revealing any of the secrets of his client learned by him in his professional capacity**

Under the second act, any information divulged by the client to his counsel must not be revealed by the counsel to any other person. It is within the privileged communication between an attorney and his client. To divulge or disclose will be a violation of Art. 209. The basis is the violation of the privileged communication between an attorney and his client.

**Third Act - By understanding the defense of the opposing party in the very same case, without the consent of the first party after having undertaken the defense of the said party, or after having obtained confidential information from the said first party.**

Under the third act, the basis is conflict of interest. After undertaking the case of the first party, in the very same case, the counsel is now the attorney of the second party. There is an obvious conflict of interest. The counsel was the one who filed the case against the defendant, and, yet the counsel is now the attorney of the defendant. In such

case, the counsel can be charged with violation of Art. 209 for betrayal of trust by an attorney or solicitor.

**Illustration:** X filed an estafa case against Y through his counsel Atty. Z. Atty. Z was the one who prepared the complaint for estafa. Now that the case is before the court, Atty. Z is the counsel of X in the said estafa case. However, for failure of X to pay Atty. Z's appearance fee of P20,000 every hearing, Atty. Z said he will be withdrawing as counsel. He withdrew as counsel with the consent of X. Later, his services were engaged by the defendant Y. Since he needed money, and Y said he will be paying all appearance fees, he took the engagement. Atty. Z is now the counsel of the defendant against whom he filed a case when he was the counsel of the private complainant X. There was an obvious conflict of interest.

**PVG:** Do not do that. Even if the first client consented, still, do not do that. There are many clients out there. Never take the services of the opposing party against whom you filed a case. That is so unfair to your first client. It is not only against the Code of Professional Responsibility, it is also against ethics, morality. Nakakahiya kay God 'pag ginawa mo 'yun. Even if it happens if the first client gives his consent, still do not do it. There are other clients.

**Offender is liable criminally and administratively**

Under Art. 209, the offender is liable criminally. In addition, the offender is liable administratively for violation of the Code of Professional Responsibility. These two cases shall prosper at the same time. The criminal case is tried before the courts, while the administrative case is filed either before the Integrated Bar of the Philippines (IBP) or the Supreme Court.

## DIRECT BRIBERY (ART. 210)

**Article 210.** ***Direct Bribery.*** — Any public officer who shall agree to perform an act constituting a crime, in connection with the performance of his official duties, in consideration of any offer, promise, gift or present received by such officer, personally or through the mediation of another, shall suffer the penalty of prision mayor in its medium and maximum periods and a fine of not less than three times the value of the gift, in addition to the penalty corresponding to the crime agreed upon, if the same shall have been committed.

If the gift was accepted by the officer in consideration of the execution of an act which does not constitute a crime, and the officer executed said act, he shall suffer the same penalty provided in the preceding paragraph; and if said act shall not have been accomplished, the officer shall suffer the penalties of prision correccional in its medium period and a fine of not less than twice the value of such gift.

If the object for which the gift was received or promised was to make the public officer refrain from doing something which it was his official duty to do, he shall suffer the penalties of prision correccional in its maximum period to prision mayor in its minimum period and a fine of not less than three times the value of such gift.

In addition to the penalties provided in the preceding paragraphs, the culprit shall suffer the penalty of special temporary disqualification.

The provisions contained in the preceding paragraphs shall be made applicable to assessors, arbitrators, appraisal and claim commissioners, experts or any other persons performing public duties. *(As amended by Batas Pambansa Bldg. 871, approved 29 May 1985.)*

**ELEMENTS:**

1. The offender is a public officer or employee;

2. The offender, directly or through another, receives or accepts any offer, promise, gift or present for any of the following acts:

    a. By agreeing to perform, or by performing, in consideration of any offer, promise, gift or present, an act constituting a crime, in connection with the performance of his official duties;

    b. By accepting a gift in consideration of the execution of an act which does not constitute a crime, in connection with the performance of his official duty;

    c. By agreeing to refrain, or by refraining, from doing something which it is his official duty to do, in consideration of gift or promise, or present.

3. That the said crime or act relates to the exercise of his function as a public officer.

Direct bribery is the crime of a public officer who receives the offer, promise, gift or present, by reason or in connection with the performance of his official duty. The receipt of the said offer, promise, gift or present, must always be in connection with the performance of his official duty. If there is no connection between the said offer, promise, gift or present, and the performance of his official duty, then the crime could be other crime but not direct bribery. This is because, in the direct bribery, the said offer, promise, gift or present, was accepted or received in connection with the performance of the public officer's official duty.

The crime of the person giving the bribe is violation of Art. 212 (Corruption of Public Officials).

**"In connection with the performance of his official duties"**

Direct bribery is the crime committed by a public officer who receives the bribe in connection with the performance of his official duties. Always, the bribe, the money, the consideration, the present or the gift must be received by the public officer in connection with the performance of his official duties.

If there is no relation between the bribe or the consideration and the performance of his official duties, it is another crime, but it is not the crime of direct bribery. It is necessary that the crime was given in connection with the performance of his official duty.

Either he is the one who received it, or another person in his favor.

**First Act - By agreeing to perform, or by performing, in consideration of any offer, promise, gift or present, an act constituting a crime, in connection with the performance of his official duties**

Under the first act, if the thing a public officer being asked to do would constitute a crime in connection with his official duty, mere acceptance of the offer, promise, gift or present, or mere agreement to perform the criminal act, would suffice.

It is not necessary that the public officer:
1. Receives the said offer, promise, gift or present; nor
2. Performs the criminal act.

It is sufficient that public officer:
1. Accepts the offer, promise, gift or present; or
2. Agrees to perform the criminal act.

The same principles apply under the third act.

**Third Act - By agreeing to refrain, or by refraining, from doing something which it is his official duty to do, in consideration of gift or promise, or present.**

Under the third act, if the thing a public officer being asked to do would be to refrain from doing his official duty, mere acceptance of the promise, gift or present, or mere agreement to refrain from doing his official duty, would suffice.

It is not necessary that the public officer:
1. Receives the said promise, gift or present.; nor
2. Actually refrains from doing his official duty.

It is sufficient that public officer:
1. Accepts the promise, gift or present; or
2. Agrees to refrain from doing his official duty.

The same principles will not apply under the second act.

**Second Act - By accepting a gift in consideration of the execution of an act which does not constitute a crime, in connection with the performance of his official duty**

Under the second act, it is necessary that there must be actual receipt of the said gift. Without the actual receipt or acceptance of the said gift, the second act of direct bribery will not lie against the accused. The thing that the public officer being asked to do would not amount to or constitute a crime. It is his duty, but he would not do it without the gift as consideration.

**Prohibition against complexing crimes with direct bribery**

Under the first and third acts, if the public officer indeed performs the criminal act he or she is being asked to do, or refrains from doing his or her official duty, the said public officer would be liable for two (2) crimes:

1. Direct Bribery under Art. 210; and
2. The crime that the public officer has committed for:
    a. Performing an act which constitutes a crime; or
    b. Failure to do his official duty.

These two (2) crimes are separate and distinct from each other. Even if direct bribery is the reason for the commission of the crime, or for the non-performance of a public officer's official duty, the two (2) crimes cannot be complexed under Art. 48 of the RPC. The complexity of the crimes under Art. 48 of the RPC will not apply. It is expressly provided under par. 1 of Art. 210 that the penalty for direct bribery shall be "in addition to the penalty corresponding to the crime agreed upon, if the same shall have been committed."

**Q: X was at Manila Hotel. When he was about to leave Manila Hotel, he chanced upon Judge W sitting on a sofa at the lobby of the hotel. X has a pending civil case in the sala of Judge W, which is already submitted for decision. X knew he will lose the case because all pieces of evidence were against him. X took the strength and courage to talk to the judge. He went to Judge W seated on the sofa and introduced himself as X. He told the judge that he had a case pending at his sala. The judge said "Yes, yes, I remember you. I often see you in court. What can I do for you?" So, X sat in favor of the judge and offered the judge P2 million in exchange for a favorable decision. Judge W told X, "Here is my address. Go to my house tonight, bring the P2 million in cold cash. The decision will be in your favor." Thereafter, X left. Is Judge W liable of direct bribery at that particular stage?**

**A:** YES. Judge W already committed the crime of direct bribery under Art. 210, first par. of the RPC. By merely accepting the offer of X, Judge W, a public officer, agrees to perform an act constituting a crime in connection with the performance of his official duties. Mere agreement will suffice. It is not necessary that he actually received the P2 million. It is not necessary that he actually rendered the said favorable decision in favor of X. Mere acceptance of the said offer in consideration of the P2 million will already give rise to the crime. Under the first act of direct bribery, mere agreement or mere acceptance of an offer will already consummate the crime.

## INDIRECT BRIBERY (ART. 211)

**Art. 211.** ***Indirect bribery.*** — The penalties of prision correccional in its medium and maximum periods, suspension and public censure shall be imposed upon any public officer who shall accept gifts offered to him by reason of his office. *(As amended by Batas Pambansa Bldg. 871, approved 29 May 1985.)*

**ELEMENTS:**

1. The offender is a public officer;
2. That the offender accepts any gift; and,
3. That the gifts are offered or given to the public officer by reason of his or her office.

Indirect bribery is committed when the offender is a public officer and he accepts a gift or present by reason of the public office or by reason of the public position that he holds.

In case of indirect bribery, a public officer is not being asked to do an act. The said gift or present was given to him only because of the position that he holds, because of the office that he occupies.

If he received the said gift or present, he becomes liable for indirect bribery. If he does not receive the said gift or present, then he is not liable of any crime.

The crime of indirect bribery is always in the consummated stage. There are no attempted and frustrated indirect bribery because the public officer is not being asked to do an act. The gift was given to him only because the public officer or position that he or she holds. Hence, if the public officer accepts or receives the gift, he or she is liable for indirect bribery. Otherwise, he or she is not liable for indirect bribery for there is neither attempted nor frustrated indirect bribery.

**Distinguish Direct Bribery and Indirect Bribery**

| DIRECT BRIBERY (ART. 210) | INDIRECT BRIBERY (ART. 211) |
|---|---|
| There is an **agreement** between the public officer and the person who gave the gift. | There is **no such agreement.** |
| The public officer agrees to perform or not to perform an act in connection with the performance of his official duty. | The public officer is not required to do an act. The gift was given only by reason of his office or position that he occupies. |
| In both cases, the public officer charged is the one who received the gift. | |

## QUALIFIED BRIBERY (ART. 211-A)

**Art. 211–A.** ***Qualified Bribery.*** – if any public officer is entrusted with law enforcement and he refrains from arresting or prosecuting an offender who has committed a crime punishable by reclusion perpetua and/or death in consideration of any offer, promise, gift or present, he shall suffer the penalty for the offense which was not prosecuted.

If it is the public officer who asks or demands such gift or present, he shall suffer the penalty of death. *(As added by Section 4, RA No. 7659.)*

**ELEMENTS:**

1. The offender is a public officer entrusted with law enforcement;
2. The offender refrains from arresting or prosecuting an offender who has committed a crime punishable by *reclusion perpetua* and/or death;
3. The offender refrains from arresting or prosecuting the offender in consideration of any promise, gift or present given to him.

Art. 211-A is an amendment brought about by RA 7659 – The Heinous Crime Law. That is why, under Art. 211-A, if the public officer himself solicited the bribe, offer, gift or present, the penalty prescribed will be death penalty.

Art. 211-A is specific. It is necessary that the said public officer must be one entrusted with law enforcement. Second, the offender that he does not want to arrest or prosecute must be held for a crime which is punished by reclusion perpetua and/or death. It is specific compared to direct bribery.

**Q: X is charged with Qualified Rape before the Office of the Public Prosecutor. After preliminary investigation, after clarificatory hearing, the case was already submitted by the public prosecutor for resolution. The public prosecutor told the private complainant and the respondent X, "Come back two weeks thereafter. The resolution will already be released by then." However, within a week's time, X already went back to the fiscal's office and asked from the secretary of the fiscal handling the case, "Is the resolution already out?" The secretary said, "Wala pa po. Wala pa pong ibinibigay sa akin. Wala pa pong resolution." X told the secretary, "Is the fiscal in? Can I talk to him in private?" The secretary said, "May hearing po sa umaga, sa hapon po available." Because of that, X told the secretary he will come back in the afternoon. Here comes the afternoon. X came back to the office in the afternoon and after coming back to the said office, he had a talk with the said public prosecutor. In talking to the public prosecutor, X offered the said public prosecutor P2 million in exchange for a finding of no probable cause and for the dismissal of the case.**

**The fiscal did not immediately give an answer because the fiscal knew that the evidence of qualified rape against X was overwhelming. There is a sworn statement of the private complainant, there is a medico-legal certificate coming from the PNP medicolegal saying that indeed there were hymenal lacerations on the said girl's genital; and from the girl's testimony herself.**

**And so, the fiscal said, "Mahirap 'to kasi 'yung ebidensiya nagpopoint sa 'yo." The fiscal told this to X, but X told the fiscal, "Dadagdagan ko, fiscal. Gawin kong P3 million in exchange for the dismissal of the case." And so the fiscal told X, "Okay, you come back tomorrow. Bring me the P3 million, cold cash, and let us see."**

**The following day, X came back. When X came back, he gave a small bag to the public prosecutor. When the public prosecutor opened it, it was cold cash of P3 million. The prosecutor said, "Come back after a week's time and get the resolution." After a week's time, X came back and the resolution – case dismissed, no probable cause. Because of this, the public prosecutor was charged of the following cases: The public prosecutor was charged with violation of Sec. 3(b) of R.A. No. 3019; with the crime of Qualified Bribery under Art. 211-A.**

**Are the charges correct?**

**A:** No, the charges are wrong. Qualified bribery will not lie against the said public prosecutor because the first element is immediately absent. The first element of qualified bribery under Art. 211-A – the offender is a public officer in charge of law enforcement. The Supreme Court said a public prosecutor is not in charge with the enforcement of the law. This refers to police officers who have the duty to enforce the law. Therefore, the first element is absent. Qualified bribery under Art. 211-A will not lie against the said fiscal.

**Q: How about the charge of violation of Sec. 3(b) of R.A. No. 3019, will the case prosper?**

**A:** NO, it will not prosper. Under Sec. 3(b) of R.A. No. 3019, the law punishes the act of directly or indirectly receiving any gift, present, share, percentage or benefit, for himself or for another person, in connection with any contract or transaction between the government and any other party wherein the public officer in his official capacity has to intervene under the law.

The preliminary investigation issued by the public prosecutor cannot be considered a contract. It cannot be considered as a transaction because the term 'transaction' must be construed as analogous to the term which it precedes, which is 'contract'. Therefore, the charges are wrong.

**Q: What is the proper charge to be filed against the said public prosecutor who received P3 million to bring about a dismissal of the case despite the fact that it has probable cause?**

**A:** The said public prosecutor should be charged with direct bribery under Art. 210. He is a public officer and he received bribe in connection with the performance of his official duty. What is that official duty? To prosecute this offender. It is his duty to file the case against him. Evidence was overwhelming insofar as probable cause is concerned. Therefore, he is liable for direct bribery under Art. 210, third act – he refrained from doing an act which it is his official duty to do in consideration of an offer, promise, gift or present. Since he actually refrains from doing the said duty, he is also liable for Art. 208, dereliction of duty in the prosecution of offenses.

All the elements of dereliction of duty in the prosecution of offenses are present: (1) He is a public officer in charge to prosecute offenders; (2) He does not cause the prosecution of X because of the P3 million that he received. Therefore, he is liable of two crimes – he can be charged with direct bribery under Art. 210, third act; and also violation of Art. 208, dereliction of duty in the prosecution of offenses.

## CORRUPTION OF PUBLIC OFFICIALS (ART. 212)

**Art. 212.** ***Corruption of Public officials.*** – The same penalties imposed upon the officer corrupted, except those of disqualification and suspension, shall be imposed upon any person, who shall have made the offers or promises or given the gifts or presents as described in the preceding articles.

Direct Bribery is the crime committed by the public officer who receives the bribe. The crime committed by the maker of the offer or promise, or the giver of the gift or present, is Corruption of Public Official under Art. 212 of the RPC.

The crime of Corruption of Public Official is committed by any person who shall make an offer or promise, or shall give a gift or present. The offender can be a public officer or employee, or a private person.

On the other hand, the involved public officer, under any circumstances, shall be held liable for either Direct Bribery or Indirect Bribery.

The crime of Corruption of Public Official is consummated the moment the offender makes an order or promise, or gives a gift or present, to the said public officer under the circumstances that the said public officer would have become liable for either Direct Bribery or Indirect Bribery.

In the case of **Mangulabnan v. People,** Judge Flores of the MTCC of San Fernando, Pampanga, as well as Judge Flores' court interpreter, Mangulabnan, was convicted by the Sandiganbayan for violation of Art. 210 of the RPC for Direct Bribery. They were convicted as co-conspirators. Mangulabnan appealed to the Supreme Court. He argued that he should not be liable for Direct Bribery. The Supreme Court affirmed the conviction of Mangulabnan for Direct Bribery for being a co-conspirator of Judge Flores on the following grounds:

*First,* the prosecution was able to establish the conspiracy between Judge Flores and Mangulabnan. Since conspiracy was established, the act of one is the act of all. The act of Judge Flores is the act of Mangulabnan, the court interpreter. Therefore, the criminal liability of Judge Flores will also be the criminal liability of Mangulabnan.

*Second*, all the elements of Direct Bribery have been established by the prosecution.

1. **First element: The offender is a public officer.** Here, Judge Flores and Mangulabnan are both public officers, being the presiding judge and court interpreter of MTCC San Fernando, Pampanga, respectively, at the time of the commission of the crime.

2. **Second element: The offender, directly or through another, receives or accepts any offer, promise, gift or present for any of the following acts:**
    a. **By agreeing to perform, or by performing, in consideration of any offer, promise, gift or present, an act constituting a crime, in connection with the performance of his official duties; xxxx**

    Here, Mangulabnan acted as Judge Flores' middleman in committing the crime of Direct Bribery. Mangulabnan was the one who received the P20k from Manalastas, one of the litigants in the said election protest case. After receiving P20k from Manalastas, Mangulabnan delivered it to Judge Flores.

    The said amount of P20k was given by Manalastas in exchange for the rendition of judgment favorable to Manalastas. It is evident from the fact the Judge Flores released the decision only after receiving the P20k given by Manalastas.

3. **Third Element: That the said crime or act relates to the exercise of his function as a public officer.** Here, the rendition of such judgment relates to the functions of Judge Flores.

The Supreme Court affirmed the conviction for Direct Bribery because all the elements are present. Since the prosecution established conspiracy, the criminal liability of Judge Flores is the criminal liability of the court interpreter, Mangulabnan, who acted as the middleman of Judge Flores in receiving the said bribe or money.

**Q: X was invited to a wedding ceremony. X went to the church to attend the wedding. Upon entering the church, X was shocked. X saw Judge Y seated in one of the benches. Judge Y was also invited in the wedding ceremony. For the longest time, X has been wanting to talk to Judge Y. For many times, he attempted to go to the chamber of Judge Y to talk to the latter privately, but, oftentimes, X becomes nervous. Finally, Judge Y is inside the same church as both are guests. X seated next to the judge and introduced himself. Judge Y told X, "Yes, natatandaan kita. Lagi kang uma-attend ng hearing." X told the judge, "I wanted to talk to you Judge because I want to make an offer. I hope you don't mind it. I know we are inside the church. This is the only time I know. I want to make an offer of P2M in exchange for an acquittal." The judge accepted the offer. Judge Y said, "Here is my calling card. Go to my house tonight. Bring the money." At that particular moment, is Judge Y liable of any crime?**

**A:** YES. Judge Y, by merely accepting the offer made by X, is liable for the first act of Direct Bribery under Art. 210. By accepting the offer of X, Judge Y, a public officer, agrees to perform an act constituting a crime, in connection with the performance of his official duty, in consideration of the P2M offer made by X.

Under the first act of Direct Bribery, mere agreement to perform an act constituting a crime, or mere acceptance of the offer, promise, gift or present, will already consummate the crime of Direct Bribery. There is no need that the offender receives the offer, promise, gift or present, nor perform the act constituting the crime.

Here, it is not necessary that Judge Y received the P2M. There is no need that Judge Y actually acquitted X of the crime charged. It suffices that Judge Y merely agrees or accepted.

**Q: In the same problem, that same night looking at the calling card given by Judge Y, X looked for the house of Judge Y. X was able to determine the house of Judge Y. Without saying anything, X gave two (2) boxes, which contained P1M each, to Judge Y. Thereafter, X left. A week thereafter, on the day of the promulgation of judgment, Judge Y acquired X. This is notwithstanding the fact that the public prosecutor was able to prove all the elements of Direct Bribery, and that, based on the evidence, X is guilty beyond reasonable. What crime/crimes is/are committed?**

**A:** Judge Y is liable for Direct Bribery under Art. 210, Knowingly Rendering an Unjust Judgment under Art. 204 of the RPC, and violation of Sec. 3(e) of RA 3019.

Judge Y received P2M in exchange of the performance of an act constituting a crime in connection with the performance of his official duty. Judge Y performed the crime of Knowingly Rendering an Unjust Judgment under Art. 204 of the RPC. After Judge Y received P2M, he actually performed the criminal act he is being asked to do. Therefore, Judge Y can also be charged with Knowingly Rendering an Unjust Judgment under Art. 204 of the RPC.

Despite the fact that the prosecution was able to prove the guilty of X beyond reasonable doubt, still Judge Y renders an unjust judgment because of the bribe money that he received. Therefore, Judge Y can be charged with Direct Bribery under first paragraph of Art. 210 of the RPC. He can also be charged with Knowingly Rendering an Unjust Judgment under Art. 204 of the RPC.

Based on the express provision of the first paragraph of Art. 210, i.e., that the penalty for direct bribery shall be "in addition to the penalty corresponding to the crime agreed upon, if the same shall have been committed, these two (2) crimes cannot be complexed and shall be prosecuted at the same time. The two (2) crimes are separate and distinct from each other.

Likewise, Judge Y is liable for violation of Sec. 3(e) of RA 3019 for causing undue injury to the private complainant.

**Q: X filed a case of estafa against Y before the Office of the Public Prosecutor for violation of Art. 315(1)(b) for Estafa through Misappropriation or Conversion. The public prosecutor found probable cause. An information for Estafa under Art. 315(1)(b) was filed before the RTC. X wanted to be present in the arraignment. X was present in the court. Y was arraigned. Y pleaded not guilty. When X was about to leave the courtroom, he overheard one of the employees of the court saying that it was the judge's birthday. X asked the court employee if it was really the judge's birthday. The court employee confirmed. X left. After a week, X came back. X went inside the RTC and looked for the clerk of court. X told the clerk of court, "Nalaman kong birthday ni Judge. May kaunti akong regalo para kay Judge. Pakibigay naman." The clerk of court agreed. Thereafter, X left. The clerk of court placed the gift on top of the table inside the chambers of the Judge. The Judge asked, "saan eto galing?" The clerk of court answered, "Judge kay X, the private complainant in the estafa case against Y." The Judge opened it. She found a medium sized Chanel Double Flap Bag costs almost a million bag. The Judge was so happy. Since then, the Judge has been using the said bag. Is the judge liable of any crime? Is X liable of any crime?**

**A:** YES. The **judge** is liable for **Indirect Bribery** under Art. 211 of the RPC. All the elements are present.

1. The offender is a public officer. Here, the judge is a public officer.
2. That the offender accepts any gift. Here, the judge accepted the said Chanel bag.
3. That the gifts are offered or given to the public officer by reason of his or her office. Here, the said Chanel bag was given to the judge by reason of the public office that she holds being the judge of the RTC.

Hence, the judge is liable for Indirect Bribery under Art. 211 of the RPC.

X, the giver of the said gift, is liable for Corruption of Public Official under Art. 212 of the RPC.

X gave the judge a Chanel Bag to the judge, a public officer, and under such circumstances, the judge would have become liable for either direct bribery or indirect bribery. Therefore, X is liable for Corruption of Public Official under Art. 212 of the RPC.

**Q: The parents of the victim went to the PNP station. They filed a complaint for murder against X. The parents of the victim told the PNP that X killed their son by ambushing him. Their statement and narration were taken by the investigating police officer. After their narration were taken, subscribed and sworn to, investigating police officer invited X. X was informed that here is a complaint for murder field against him before the PNP station. X went to the PNP station. But even before the police investigator could start the question, X gave a box to the said police investigator. When the police investigator opened it, it contained P50k. The police investigator told X, "P50k for murder?" X told the police investigator, "My wife will arrive. I'll add the amount." The wife arrived and gave an additional P50k. The police officer told X, "I will no longer file this complaint before of the Office of the Public Prosecutor. Get out of this place." What crime/crimes is/are committed by the said police officer?**

**A:** The police officer is liable for **Qualified Direct Bribery** under Art. 211-A. All the elements are present.

1. The offender is a public officer entrusted with law enforcement.

   Here, the police officer is a public officer entrusted with law enforcement.

2. The offender refrains from arresting or prosecuting an offender who has committed a crime punishable by *reclusion perpetua* and/or death.

   Here, the crime committed by X is murder which is punishable by *reclusion perpetua* or death. There was a narration from the private complainants, the

parents of the victim, that the said killing was done via ambush. Therefore, there is treachery.

3. The offender refrains from arresting or prosecuting the offender in consideration of any promise, gift or present given to him.

   Here, the police officer does not want to prosecute X. the police officer does not want to file a complaint against X before the Office of the Public Prosecutor. The reason is the P100k payment to him.

Hence, the said police investigator is liable for Qualified Bribery under Art. 211-A of the RPC.

**Q: Same facts, except this time the charge of the parents of the victim against X is <u>Homicide</u>. The parents provided a narration that their son was killed in the course of a fight. After their statements were duly subscribed and sworn to, the investigating police officer invited X. When X arrived, he gave the police investigator P50k. Upon seeing the money, the police investigator told X, "Okay. I will no longer file the case. Get out of this place." What crime/crimes is/are committed by the said police officer?**

**A:** The police officer is liable for the crimes of (a) Direct Bribery (Third Act) under par. 3 of Art. 210 of the RPC; and (b) Dereliction of Duty in the Prosecution of Offenses under Art. 208 of the RPC.

All the elements of direct bribery are present.

1. The offender is a public officer.

   Here, the police officer is a public officer.

2. The offender, directly or through another, receives or accepts any offer, promise, gift or present for any of the following acts: xxxx
   c. By agreeing to refrain, or by refraining, from doing something which it is his official duty to do, in consideration of gift or promise, or present.

   Here, the police officer refrains from his duty to file the complaint before of the Office of the Public Prosecutor because of the bribe money, i.e., P50k, that he received from X. He refuses to perform a duty the law requires him to do.

3. That the said crime or act relates to the exercise of his function as a public officer.

   Here, the police officer refrains to file the complaint before the Office of the Public Prosecutor, a duty that relates to his function as a public officer.

Therefore, the police investigator is liable for Direct Bribery (Third Act) under Art. 210 of the RPC.

Dereliction of Duty in the Prosecution of Offenses, or *prevaricacion* (First Act)– All the elements are present.

1. That the said offender is a public officer or officer of the law who has a duty cause the prosecution of, or to prosecute offenses;

   Here, the police officer is a public officer who has a duty to cause the prosecution of offenses.

2. He commits dereliction of the duties of his office in any of the following manner:
   a. Knowing the commission of the crime, he does not cause the prosecution of the criminal;

   Here, the police officer, despite knowledge that X committed the crime, he does not want to cause the prosecution X by not filing a case before the Office of the Public Prosecutor.

3. That the offender acts with malice and deliberate intent to favor the violator of the law.

   Here, the police officer, acted with malice and deliberate intent to favor X because of the bribe money amounting to P50k that he received from X.

Therefore, the police officer is liable for Dereliction of Duty in the Prosecution of Offenses under Art. 212 of the RPC.

Therefore, the said police officer is liable for the crimes of (a) Direct Bribery (Third Act) under par. 3 of Art. 210 of the RPC; and (b) Dereliction of Duty in the Prosecution of Offenses, or *prevaricacion* under Art. 208 of the RPC.

The two (2) crimes cannot be complexed under Art. 48 of the RPC pursuant to par. 1 of Art. 210 of the RPC. The two (2) crimes are separate and distinct from each other.

**Q: X was driving his car in Makati. There was a big signage which says, "No Right Turn." Despite the big and clear signage, X turned right. The MMDA officer was there. X was apprehended by the MMDA officer. X took P200 from his wallet and gave it to the MMDA**

**officer in exchange for the non-issuance of the violation ticket. The MMDA officer refused to accept. X asked, "Naliliitan po ba kayo, Sir? Okay, eto po. P500 na." But the MMDA officer still refused to accept. The MMDA officer asked for X's driver's license, and, thereafter, issued a violation ticket to X. What crime was committed by X?**

**A:** Despite the fact that the said MMDA officer refused to accept the money, X is liable for Corruption of Public Official under Art. 212 of the RPC.

X made an offer of P200 or P500 to the MMDA officer under the circumstances in which the said MMDA officer may become liable for either Direct Bribery or Indirect Bribery.
Hence, X is liable for Corruption of Public Official.

**Q: In the same problem, the MMDA officer, when X offered the P500, initially accepted the money. However, after a few seconds, the MMDA officer returned the money to X, and issued a traffic violation ticket to X. Is X liable of any crime?**

**A:** YES. Regardless of whether the public officer accepts, or accepts and thereafter returns the money, or refuses to accept the money, X is still liable for **Corruption of Public Official** under Art. 212 of the RPC. Art. 212 punishes the mere act of making an offer or promise. Since X made an offer to the MMDA officer, X is liable for Corruption of Public Official under Art. 212.

In the case of Pozar v. CA (1984), the Supreme Court said if the public officer did not accept the bribe money, the crime is not consummated. The giver of bribe money is liable only for ATTEMPTED Corruption of Public Official.

However, if you will look at Art. 212, it punishes the mere act of "making an offer or promise." Therefore, the mere act of making an offer or promise, not necessarily accepting or receiving of an offer or promise, will already make the giver liable for Corruption of Public Official.

## ANTI-GRAFT AND CORRUPT PRACTICES ACT (R.A. No. 3019)

**Q: Can a private person be charged with violation R.A. No. 3019?**

**A: YES.** The Supreme Court, in **Canlas v. People**, said it is settled in jurisprudence that private persons, when acting in conspiracy with public officers may be indicted and may be found guilty for violation of Sec. 3 of R.A. No. 3019.

The moment the public officer conspired with a private person in committing any of the anomalous corrupt acts under Sec 3 of R.A. No. 3019 both of them shall be charged with violation of RA No 3019.

**Q: What if the public officer dies before the institution of criminal action against the both of them can a private person be indicted alone for violation R.A. No. 3019?**

**A:** YES he can be indicted alone. The SC, in the case of **People v. Gorres**, said Yes. What is only necessary is the existence of conspiracy between the public officer and the private person. The law does not require that both of them be charged in court because in certain circumstances, such as in this case wherein the public officer dies, then only the private person can be prosecuted. The fact that the said public officer is already dead does not mean that the conspiracy did not exist at the time of the commission of the crime.

In **Canlas v. People**, Two informations were filed against accused Efren Canlas. According to the informations, former Makati Mayor Jejomar Binay Jr. conspired with petitioner Canlas in giving unwarranted benefits, advantage and preference to Hilmarc's and causing undue injury to the Government by awarding Hilmarc's the contract of the Phase IV construction of the Makati City Hall Parking Building through simulated public bidding. Canlas filed a motion to quash, alleging that he is a private individual and as such, RA 3019 does not apply to him. He argues that he can only be held liable under Sec. 4(b) of RA 3019 and he did not induce or cause any public officer to commit a violation of Sec. 3(e).

The Supreme Court ruled that private persons, when acting in conspiracy with public officers, may be indicted and, if found guilty, held liable for the pertinent offenses under Section 3 of RA 3019, in consonance with the avowed policy of the anti- graft law to repress certain acts of public officers and private persons alike constituting graft or corrupt practices act or which may lead thereto.

## SEC. 3(B)

**Section 3(b)** - Directly Or Indirectly Requesting Or Receiving Any Gift, present, share, percentage, or benefit, for himself or for any other person, in connection with any contract or transaction between the Government and any other part, wherein the public officer in his official capacity has to intervene under the law.

In the case of **Merencillo v. People,** Merencillo, the BIR officer, was charged with two crimes. He was charged with violation of Section 3(b) of RA 3019 and the crime of direct bribery. He asked P 20,000.00 in exchange for the issuance of the Certificate Authorizing Registration (CAR). In course of the entrapment operation, Merencillo was caught in the act of receiving the said P 20,000.00.

All the elements of Section 3(b) of RA 3019 are present. First he is a public officer. Second, he demanded, he received Gift, present, share, percentage, or benefit. The said Gift, present, share, percentage, or benefit was demanded or received by him on his own behalf or for another person. Said Gift, present, share, percentage, or benefit was received or demanded by him, in connection with any contract or transaction which he has to intervene in his official capacity. Likewise, all the elements of Direct Bribery are present. First he is a public officer. He accepted the bribes in exchange for the institutions of an act which do not constitute a crime in connection with the performance of his public official duty.

Merencillo's defense is that he cannot be charged with both crimes. He will be placed in double jeopardy. Is this argument meritorious? NO.

The Supreme Court ruled that Merencillo's argument that charging him with the crimes of violation of Section 3(b) of RA 3019 and direct bribery will place him in double jeopardy has no merit.

First, Supreme Court said, Section 3 of RA 3019 is clear in its beginning statement:

*"In addition to acts or omissions of public officers already penalized by existing law, the following shall constitute corrupt practices of any public officer and are hereby declared to be unlawful."*

Therefore, violations of Section 3 of RA 3019 will always be in addition to any acts or omissions that a public officer is already being penalized by existing law. Hence, Supreme Court said and note, double jeopardy will not arise if a person is charged simultaneously or successively of violation of Section 3 of RA 3019 and the RPC.

Second, the two have different elements. Therefore, double jeopardy will not arise.

Whereas in case of Section 3(b) of RA 3019, a mere request or demand of any gift, present, share, percentage, or benefit is enough to constitute a violation of the law. In case of direct bribery, acceptance of a promise or offer or receipt of any gift or present is required to constitute direct bribery.

Third, they differ in the ambit or scope.

The scope of Section 3(b) of RA 3019 is specific. It is limited only to contracts or transactions involving monetary considerations where the public officer has the authority to intervene under the law. Whereas in case of direct bribery, it has a wider, bigger, and more general in scope. It includes performance of an act constituting a crime, execution of an unjust act which does not constitute, and agreeing to refrain or by refraining from doing an act which it is his official duty to do.

With this, the Supreme Court held Merencillo liable for the two crimes.

**Q: X filed a case of qualified theft against Y before the Office of the Public Prosecutor of Quezon City. The case was assigned to Assistant City Prosecutor W, who told Y "I can dismiss your case outright in the amount of P5k". W was charged with violation of Sec 3(b) of RA 3019. Is he liable as charged?**

**A:** No. In case of ***Soriano v. People en banc,*** the said Assistant City Prosecutor is not liable because the Preliminary Investigation conducted by a public prosecutor is not within the meaning of any contract or transaction involving monetary consideration wherein he is to intervene. Hence it is outside the ambit of f Sec 3(b) of RA 3019. SC that the better charge against the Assistant City Prosecutor is Direct Bribery under Sec. 210 of the RPC.

## SEC. 3(E)

**Sec. 3(e)** Causing Any Undue Injury To Any Party,including the Government, or giving any private party any unwarranted benefits, advantage or preference in the discharge of his official administrative or judicial functions through manifest partiality, evident bad faith or gross inexcusable negligence. This provision shall apply to officers and employees of offices or government corporations charged with the grant of licenses or permits or other concessions.

**ELEMENTS:**

1. The offender is a public officer performing or acting in his official, administrative or judicial functions;

2. He acted with manifest partiality and evident bad faith or gross inexcusable negligence.

3. In doing so, he caused undue injury to any party including the Government, or giving any private party any unwarranted benefits, advantage or preference.

**NOTE:** Offender must be a public officer discharging his official, administrative or judicial functions.
In so far as the second element is concerned, there are three (3) modes of committing violation of Section 3(e) of RA 3019.

1. By manifest partiality;
2. By evident bad faith;
3. By gross inexcusable negligence.

Under the third element, it can either be causing undue injury to any party including the Government, or giving any private party any unwarranted benefits, advantage or preference. Either of the two (2) acts will suffice.

In case of giving any private party any unwarranted benefits, in the case of Ambil Jr. v. Sandiganbayan, the SC took time to distinguish a private person from a private party.

1. ***Private Person*** – one who is not a public officer or employee
2. ***Private Party*** – private person or a public officer/employee acting in a private capacity.

In that case, the SC said that although Mayor Adalim was a public officer, when he was charged with Murder, a non-bailable offense, he was in his private capacity. Therefore, the third element is present according to the SC.

In the case of **Ambil Jr. v. Sandiganbayan,** Governor Ambil transferred Mayor Adalim, who was charged with the crime of murder. As we all know, murder is a nonbailable offense if the evidence of guilt is strong. Mayor Adalim was then at the provincial jail. However, the IBP heard that Governor Ambil transferred Mayor Adalim from the provincial jail to his house. So, the IBP wrote a letter to the NBI to conduct an investigation about these rumors that the said governor transferred the mayor to his house. The NBI conducted an investigation and in the said investigation, the NBI found truth. Because of that, the NBI filed before the Office of the Ombudsman a case of violation of Section 3(e) of RA 3019 against Governor Ambil. The Ombudsman after conducting investigation found truth, and so the Ombudsman filed a case for violation of Section 3(e) of RA 3019 against Governor Ambil. But not only against him, also against the Provincial Jail Warden Apelado. They were charged as co- principals for violation of Section 3(e) of RA 3019.

Governor Ambil argued that he cannot be held liable for violation of Section 3(e) of RA 3019. According to him, although the first element is present, the second and the third element are absent. According to him, he transferred the said mayor from the provincial jail to his house because there was a threat on the life of the said mayor. Therefore, he, as the provincial jailer, has the power to transfer him from the jail to his house in order to protect and save him. Likewise, the third element is absent according to the governor because the third element punishes the act of giving a private party unwarranted benefit. The governor argued that Mayor Adalim is not a private party but a public officer. Therefore, the second and third element of Section 3(e) of RA 3019 being absent and therefore he cannot be held liable.

**Q: Are all the elements present? Is the argument of the governor correct?**

**A:** The Supreme Court said all the elements are present and therefore the arguments raised by the said governor are incorrect.

According to the Supreme Court, the first element is given. Being the governor, he was a public officer and he was acting in his official and administrative functions.

The second element is also present. The Supreme Court said the said governor, when he transferred Mayor Adalim from the jail to his house, acted with manifest partiality in favor of the said mayor as against the other prisoners in the said provincial jail.

Not only that, the Supreme Court also said he acted with evident bad faith. This is because a prisoner can only be transferred from one institution to another if there is an order coming from the court. Here, there is no order coming from the court. Therefore, he acted with evident bad faith.

The third element, according to the Supreme Court, is also present. The argument raised by him that the said mayor is not a private party is erroneous. The Supreme Court said the governor misinterpreted the meaning of the words "private party."

The Supreme Court said a private party is different from a private person. A private person is one which is not a public person or a public officer acting in his private capacity.

Mayor Adalim is within the meaning of a private party because although a public officer, he acted in his private capacity. Therefore, all the elements are present.

Arguments of Provincial Jail Warden Apelado:

First, Apelado raised the justifying circumstance that he was merely acting in obedience with an order issued by a superior authority, the last justifying circumstance under Art. 11.

The Supreme Court said this will not lie, because the order must be lawful. In this case, the order of the superior authority, Gov. Ambil, is not a lawful order and Apelado should have known that it was not lawful because there was no order coming from the court. Only a court can transfer prisoners via a court order.

Second, Apelado argued that he is only of Salary Grade 22 and therefore, the Sandiganbayan has no jurisdiction over him.

The Supreme Court said no. Although the Court has held that only public officers of Salary Grade 27 or above are within the jurisdiction of the Sandiganbayan, in this case, Apelado is being charged as a co-principal, as a co-accused of the governor, who is way beyond Salary Grade 27. Since he is a co-principal and a co-accused of the governor who is within the jurisdiction of the Sandiganbayan, then Apelado, too, is within the jurisdiction of the Sandiganbayan even if he is only of Salary Grade 22.

Ultimately, the Supreme Court ruled that The jurisdiction of the Sandiganbayan over petitioner Ambil, Jr. is beyond question. The same is true as regards petitioner Apelado, Sr. As to him, a Certification from the Provincial Government Department Head of the HRMO shows that his position as Provincial Warden is classified as Salary Grade 22.

Nonetheless, it is only when none of the accused are occupying positions corresponding to salary grade '27' or higher shall exclusive jurisdiction be vested in the lower courts. Here, petitioner Apelado, Sr. was charged as a co-principal with Governor Ambil, Jr., over whose position the Sandiganbayan has jurisdiction. Accordingly, he was correctly tried jointly with said public officer in the proper court which had exclusive original jurisdiction over them — the Sandiganbayan.

**Q: Public officer X was charged by the Ombudsman before the SB for violation of Section 3(e) of RA 3019. In the said information, it alleged that because of the said acts alleged X caused undue injury to Government. However, there was no amount of actual damages suffered by the Government alleged in the information. Because of that the said information upon filing a Motion to Quash was quashed by the Sandiganbayan. A month thereafter, the Ombudsman filed a similar case against X, and had the same averments as the same case. However, instead of causing undue injury to the Government, what was alleged is that public officer X, gave a private party unwarranted benefits. Because of that X, filed a motion to remand a case to the ombudsman for another Preliminary Investigation. The motion was denied. Is SB correct?**

**A:** Yes. SC ruled that there is no need to remand the case to the Ombudsman for the conduct of PI because it is the same as the first case filed, they only differ on what was alleged. In the first case, causing undue injury to the Government, in the second case giving a private party unwarranted benefits. Based on the 3rd element the law used the disjunctive word "OR" it can either be causing undue injury to any party including the Government, **OR** giving any private party any unwarranted benefits, advantage or preference, while in the same case. Therefore, no need to conduct another PI before the Ombudsman.

**Prescriptive Period**

Violations of RA 3019 prescribe in twenty (20) years from the time of the commission or from the time of discovery of the said crime. However, the right of the government to recover ill-gotten wealth cannot be barred by prescription, by laches, or by estoppel.

**Court of Competent Jurisdiction**

The Sandiganbayan has original jurisdiction on violations of RA 3019 if the public officer charged is of Salary Grade 27 or above. Below that, the Ombudsman must file the case before the proper trial court.

## SEC. 7

**Section 7.** ***Statement of assets and liabilities***. Every public officer, within thirty days after the approval of this Act or after assuming office, and within the month of January of every other year thereafter, as well as upon the expiration of his term of office, or upon his resignation or separation from office, shall prepare and file with the office of the corresponding Department Head, or in the case of a Head of Department or chief of an independent office, with the Office of the President, or in the case of members of the Congress and the

officials and employees thereof, with the Office of the Secretary of the corresponding House, a true detailed and sworn statement of assets and liabilities, including a statement of the amounts and sources of his income, the amounts of his personal and family expenses and the amount of income taxes paid for the next preceding calendar year: Provided, That public officers assuming office less than two months before the end of the calendar year, may file their statements in the following months of January.

Public officers can file their SALN within 30 days from assumption into office. And then it must be filed on or before the 30th day of April of the next years and within 30 days after separation from the service.

In RA 3019, it is stated "on or before 15th of April" but there is another law which provides also for the filing of SALN and that is RA6713 which is the code of ethical standards for public officers. Under RA 6713, and this is what is being followed, it must be on or before the 30th day of April

**PVG:** RA 3019 requires all public officers to file their statements of assets, liabilities and net worth (SALN). Failure to file will be a violation of RA3019 and RA6713. But, if the public officer files but states falsities in the SALN, the crime can either be perjury or the crime of falsification of public document.

Remember the case of **Galeos v. People**, where he stated falsities in his SALN, he answered falsities in his SALN. The Supreme Court convicted Galeos of Falsification of Public Document. So, what RA 3019 prohibits is non-filing. But if the public officer files but there are falsities made in the SALN, then the case can either be Falsification of Public Document or the crime of Perjury under Article 183.

## SEC. 13

**Section 13.** *Suspension and loss of benefits.* Any public officer against whom any criminal prosecution under a valid information under this Act or under the provisions of the Revised Penal Code on bribery is pending in court, shall be suspended from office. Should he be convicted by final judgment, he shall lose all retirement or gratuity benefits under any law, but if he is acquitted, he shall be entitled to reinstatement and to the salaries and benefits which he failed to receive during suspension, unless in the meantime administrative proceedings have been filed against him.

The law provides that public officers who are charged shall be placed under preventive suspension. The Supreme Court said, Section 13 is mandatory. The Sandiganbayan has the of RA 3019 under preventive suspension.

As early as the case of **Bayot v. Sandiganbayan,** the Supreme Court has ruled that Section 13 of RA 3019 is constitutional because placing him under preventive suspension is not considered a felony. It is merely a preventive measure. A preventive measure in order to prevent the public officer charged in court for violation of RA 3019 from tampering the evidence, from influencing the witnesses, or from committing further crimes. Since it is a mere preventive measure, and not a penalty imposed, then Supreme Court said, Section 13 is constitutional.

And it is mandatory but it is not automatic. It is not automatic because after the filing of the information by the Ombudsman to the Sandiganbayan, it does not automatically mean that the Sandiganbayan will immediately place the concerned public officer under preventive suspension. The Sandiganbayan must still look at the information. Is the information sufficient in form and substance to bring about a conviction? Is there probable cause? If there is, it is now mandatory on the part of the Sandiganbayan to place the said public officer under preventive suspension.

**Q: The hotel in Quezon City was burned. Many guests died because they couldn't find the exit. Because of that, the heads of the City Engineers Office of Quezon City were charged with violation of Section 3(e) of RA 3019. They were also charged administratively for gross neglect of duty. Both cases were filed to the office of the Ombudsman. The Ombudsman has the jurisdiction on the administrative case. In so far as the criminal case, after finding probable cause, the Ombudsman filed the case before the Sandiganbayan.**

**In so far as the administrative case is concerned, the Office of the Ombudsman placed the said City Engineer under preventive suspension for a period of 6 months. Thereafter, after about 2 years, when the case for violation of Section 3(e) of RA 3019 was filed before the Sandiganbayan, the Sandiganbayan upon a finding of probable cause, also placed the same City Engineer under preventive suspension.**

**The officer's counsel said, that cannot be, he has already undergone preventive suspension in the administrative case, therefore, it is wrong for the Sandiganbayan to place him again under preventive suspension because both cases arise from the same**

**facts and circumstances. Is the argument of the counsel, correct?**

**A:** NO. Supreme Court said, the Sandiganbayan has the duty to place him under preventive suspension. It is not "either or". Even if he has already undergone preventive suspension in the administrative case, still he has to be placed under preventive suspension by reason of Section 13 of RA 3019 which provides for its mandatory application because the law used the word "shall".

## FRAUDS AGAINST THE PUBLIC TREASURY AND SIMILAR OFFENSES (ART. 213)

**Art. 213.** ***Frauds against the public treasury and similar offenses.*** — The penalty of prision correccional in its medium period to prision mayor in its minimum period, or a fine ranging from 200 to 10,000 pesos, or both, shall be imposed upon any public officer who:
In his official capacity, in dealing with any person with regard to furnishing supplies, the making of contracts, or the adjustment or settlement of accounts relating to public property or funds, shall enter into an agreement with any interested party or speculator or make use of any other scheme, to defraud the Government;

1. Being entrusted with the collection of taxes, licenses, fees and other imposts, shall be guilty of any of the following acts or omissions:

2. Demanding, directly or indirectly, the payment of sums different from or larger than those authorized by law.

   a. Failing voluntarily to issue a receipt, as provided by law, for any sum of money collected by him officially.

   b. Collecting or receiving, directly or indirectly, by way of payment or otherwise, things or objects of a nature different from that provided by law.

   c. When the culprit is an officer or employee of the Bureau of Internal Revenue or the Bureau of Customs, the provisions of the Administrative Code shall be applied.

**Acts Punished**

1. Fraud against public treasury; and
2. Illegal exaction.

**Fraud Against Public Treasury**

**ELEMENTS:**

1. That the offender is a public officer;

2. That he should have taken advantage of his office, that is he intervened in the transaction of his official capacity;

3. That he entered into an agreement with any interested party or speculator or made use of any other scheme with regard to:
   a. furnishing supplies;
   b. the making of contracts;
   c. the adjustment or settlement of accounts relating to public property or funds.

4. That the accused had intent to defraud the Government.

**Illegal Exaction**

**ELEMENTS:**

1. That the offender is a public officer entrusted with the collection of taxes, licenses, fees and other imposts; and

2. He is guilty of any of the following acts or omissions:
   a. Demanding, directly or indirectly, the payment of sums different from or larger than those authorized by law

   b. Failing voluntarily to issue a receipt, as provided by law, for any sum of money collected by him officially; or

   c. Collecting or receiving, directly or indirectly, by way of payment or otherwise, things or objects of a nature different from that provided by law.

**Q: Who is the offender in Illegal Exaction?**

**A:** The offender in Illegal Exaction is the public officer who is in charge with the collection of taxes, licenses, fees, and other imposts. He must be a Collecting Public Officer. And he violates the rules on collection.

**First act – By demanding, directly, or indirectly, the payment of sums different from or larger than those authorized by law**

Under the first act, a mere demand of any amount different from that which is authorized by law whether it is higher or lower will already give rise to a crime. The law does not require that payment be made.

**Q: There was this cashier in the city treasurer's office. Here comes X, X said that he is going to get a cedula (residence certificate) and then X said, "How much am I going to pay?" and then, the cashier or the collecting officer said, "you have to pay Php200" but it is actually Php20. X said, "hmp, ang mahal pala, ayoko na." and so he left. Is the said collecting officer liable of any crime?**

**A:** YES, he is liable. For merely demanding an amount larger than that authorized by law, he is already liable for illegal exaction under Article 213(2).

**Q: He is already liable, he merely demanded, but what if in the same problem, X said he was going to get a cedula. The collecting officer saw him and he appears to be poor man and so X asked the collecting officer, "How much am I going to pay?" and the collecting officer took pity of X and said, "Only Php 10". So, the poor man said, "Oh, I have more money, I'll get two". Is the collecting officer liable of any crime?**

**A: YES, he is liable** because he demanded an amount different from that authorized by law. Note that what the law requires is the demanding of an amount, directly or indirectly, different from or larger than those authorized by law. Therefore, even if it is lower, so long as it is different from that provided by law, and so long as it is demanded by the said collecting officer, then it is considered as illegal exaction.

It is not necessary for the said collecting officer to have misappropriated the funds, the moment that he misappropriates the funds, in addition to illegal exaction, he may also be held liable for MALVERSATION, because Illegal Exaction is only about the rules on collection. It has nothing to do with the appropriation or misappropriation of funds or property. Only a violation of the rules on collection.

**Second act – By failing voluntarily to issue a receipt, as provided by law, for any sum of money collected by him officially**

Under the second act, for every sum of money you paid to the government, you have the right to get the official receipt. If the said public officer deliberately fails to issue the said official receipt for the sum of money collected from you, then he becomes liable for Illegal Exaction under the second act.

**Q: So what if it was January 2, all kinds of payment are being made at the start of the year. So the collecting officer in the treasurer's office rans out of official receipt (O.R.). And so he got a half sheet of typewriting paper and he note there about the said payment and a provisional receipt and he gave it to the same person who made the payment. Is the said collecting officer liable of illegal exaction?**

**A:** He is not. Because it was not deliberate he did not voluntarily fail to issue the said O.R. He ran out of the said O.R., it was not voluntary on his part. It was an emergency situation. It is good that she even gave a provisional receipt as a proof of payment. In this case, he cannot be held liable for illegal exaction.

**Third act – By collecting or receiving, directly or indirectly, by way of payment or otherwise**

Under the third act, if the law requires that payment must be made in cash, do not accept any payment other than that in cash. Otherwise, the said public officer will be liable for Illegal Exaction.

**Q: So the collecting officer is known as a sabungero. So here comes one of the persons who was making payment. He has no money, but said, he has a magandang tandang. And so, that was the payment received. What crime is committed?**

**A:** He commits a violation of illegal exaction.

**Q: What if the person who demanded an amount or different from or larger than that which is provided for by law is an officer, a collecting officer from the Bureau of Internal Revenue, or a collecting officer form the Bureau of Customs. Is he liable under Article 213?**

**A:** No, he is not liable for illegal exaction under Art. 213. He is liable under the Tax Code or under the Tariffs and Customs Code. Under Art. 213, it is expressly provided that if the collecting officer is a collecting officer coming from the Bureau of Internal Revenue or Bureau of Customs is not liable under this Article. The reason here is that, this collecting officer from the BIR and the BOC, have the right to ask for penalties, surcharges, and compromise. Therefore, they can always demand and amount different from or that which is larger than that authorized by law. If they exceeded that authority, then they are liable under the Tariffs and Customs Code or under the Tax Code, but NOT UNDER THE RPC.

**Q: X went to the City Hall. He is an owner of a small sari-sari store. The said small sari-sari store is licensed, and so he is now renewing his license. Since he knew that there will be an inspection, and he was afraid to be penalized, he went to the City Treasurer's Office to ask how much he has to pay for the renewal of the license of his small sari-sari store. Y, the city cashier, said, *"You have to pay 1,000 pesos."* X said, *"Wala pa akong benta. Wala pa akong pangbayad. Magi-inspection na bukas."* because he knew Y. Y told X, *"Bigyan mo na lang ako ng limang kahong sigarilyo. Pwede na yun."* X came back. He came with 5 packs of cigarettes to Y, the collecting officer. Is he liable?**

**A: YES.** Y, the collecting officer, is liable for Illegal Exaction. He cannot receive 5 packs of cigarettes. Said 5 packs of cigarettes will not go to the government. Therefore, the act of the collecting officer in receiving an amount which is not authorized by law will make him liable for Illegal Exaction.

**Q: X went to the City Treasurer's Office and X paid for a cedula. He asked how much and the treasurer said it was 50 pesos. The truth is, a cedula, or a community tax certificate, would cost only 20 pesos. But since X was asked 50 pesos, he paid 50 pesos as demanded by the treasurer. Thereafter, the treasurer issued an Official Receipt saying that the amount paid was 50 pesos. After receiving the O.R., X left. The City Treasurer now opened the public vault and placed therein the entire 50 pesos that he collected and closed it. Thereafter, he had this duplicate original copy of the O.R., he erased the number 50, and replaced it with 20. That afternoon, when he was about to leave the office, he remembered that he has big bills in his wallet, all 1,000-peso bills which the jeepney driver would not accept, and so since he needed a smaller amount, opened the public vault, and took the 30 pesos excess collection. Thereafter, he closed the public vault and went out. On his way home, he used the 30 pesos to pay the jeepney fare. What crimes have been committed by the said public officer?**

**A:** First, he is liable for Illegal Exactions. He demanded and even collected an amount different from, in this case larger than, that authorized by law. 20 pesos is the amount authorized by law and yet he demanded and collected 50 pesos. Therefore, he is liable for illegal exactions.

Second, he is liable for Falsification of Public Document. In the said duplicate copy of the official receipt, he altered the amount of 50 pesos. Instead, he replaced it with the correct amount which is only 20 pesos. Therefore, he is liable of falsification of public document— in this case falsification of commercial document because the official receipt is a commercial document— because all the elements are present. He is a public officer, he took advantage of his public position (he is the one in custody of the document that he falsified), and the act of falsification that he committed was f. By making any alteration or intercalation in a genuine document which changes its meaning, since he made an alteration from 50 pesos to 20 pesos. Therefore he is liable also for falsification of public document under Art. 171.

Third, he is liable for *Malversation of Public Funds and Property* under Art. 217. The elements for malversation of public funds and property are all present: 1) he is a public officer, 2) he has funds and property in his possession by reason of the duties of his office, 3) these are public funds and property that he has to account later to the State, and 4) that he appropriated, took, misappropriated, consented or through his abandonment or negligence, he permitted others to misappropriate the same. All the elements are present. He is a public officer charged with the collection, by reason of which he received these public funds.

**Q: Is the 30 pesos a private fund?**

**A:** Yes. The moment he co-mingled the entire 50 pesos that he collected from X with the funds in the public vault, the said 30 pesos excess becomes part of public funds. So when he opened the vault in that afternoon and took 30 pesos, he was in effect taking public funds. Hence, he is liable for malversation of public funds and property.

Fourth, he is also liable for ***Other Frauds.*** He is a public officer, he took advantage of his public position in swindling X of 30 pesos. The said act amounted to estafa—other deceits under Art. 380. But since he took advantage of his public position, the crime is Other Frauds.

In the cases of illegal exactions, falsification of public document and malversation of public funds and property, the offended party was the State. But in the case of Other Frauds, the offended party was X. 30 pesos was swindled from him by this public officer.

**Q: X was new in Manila applying for a job, among documents required is community tax certificate. He went to Manila City Hall, since he was ignorant of the cost he asked the cashier " how much was the community tax certificate?". The cashier said "P500" but based on Manila ordinance it is only P200. X thought it was really P500 so he paid in 5 one hundred peso bill. The cashier placed the money inside the vault. X was asking for a receipt. Cashier said "Oh. I have no more official receipt here." but in reality there are enough receipts left. The cashier issued a provisionary receipt to X. Office hours are done, he looks at his wallet and he has only P100 as transportation but definitely the children would be asking for pasalubong because it is a weekend on the next day. He had no money until he realized that he had an excess collection of P300 which he placed in the public vault. Then he opened the said vault and took the P300 and thereafter closed the vault. He used the P300 to buy personal things for his children. What crime/s is committed by a Public officer cashier?**

**A:** First, he is liable for Illegal exaction under the 1st act because he demanded an amount different from that authorized by law. The amount required is only P200 but demanded P500 Note that what the law requires is the demanding of an amount, directly or indirectly, different from or larger than those authorized by law. Therefore, even if it is lower, so long as it is different from that provided by law, and so long as it is demanded by the said collecting officer, then it is considered as illegal exaction.

He is also liable for ILLEGAL EXACTION UNDER THE SECOND ACT for deliberately failing to issue an official receipt in order to conceal his excess collection.

He is also liable for MALVERSATION under Art. 270. The act of collecting an amount different than that required by law only amounts to Illegal Exaction. If after collecting the said amount, he malversed or misappropriates the said amount, it will give rise to separate crime of Malversation of Public Funds and Property under Art. 270. The moment he opened the vault and place/comingled the P500 became part of public funds. When he opened it again and took 300 pesos by three 100 peso bills, he was in effect taking part of public funds.

Therefore, he becomes liable for malversation of public funds and property.

## OTHER FRAUDS (ART. 214)

> ***Art. 214. Other frauds.*** — In addition to the penalties prescribed in the provisions of Chapter Six, Title Ten, Book Two, of this Code, the penalty of temporary special disqualification in its maximum period to perpetual special disqualification shall be imposed upon any public officer who, taking advantage of his official position, shall commit any of the frauds or deceits enumerated in said provisions

**ELEMENTS:**

1. That the offender is a public officer.
2. That he takes advantage of his official functions.
3. That he commits any of the frauds or deceit enumerated in Articles 315 to 318.

If a public officer commits any of the frauds or deceits constituting estafa or swindling under Art. 315-318, and he does so by taking advantage of his official position, his criminal liability is Other Frauds under Art. 214. It is not estafa or swindling because in the case of a public officer, there is an additional penalty.

If you look at Article 214, the law says that the penalty is the same penalty as the first offense under Art. 315-318. But additional to that, he is punished with temporary disqualification to perpetual disqualification for having taken advantage of his official position. Therefore, if it is a public officer who commits estafa or swindling, the crime is under Art. 214 and there is an additional penalty.

**Q: The military in Mindanao needs blankets. The head of military asked the supply officer in Manila how much a blanket costs. They will be buying 1000 blankets. Supply officer canvassed and found that a blanket cost 500. He connived and conspired with the supplier of the blankets and told him to price apiece of 600 pesos. So it was what was delivered to Mindanao. Therefore, the government issued a check in the amount of 600K wherein it should only be 500K. What crime has been committed by the supply officer?**

**A:** The supply officer is liable for Article 213 first paragraph (Fraud Against the Public Treasury) because there is no allocation of the budget yet. Therefore, when the treasury paid for more than what has been paid, the treasury is defrauded. Hence, the crime committed is Article 213 (1).

**Q: What if the GAA had already been approved by the Congress and signed by the President, there was already a budget for the entire calendar year. In this budget, the military was given a portion for the blankets. So there was 1000 blankets with 500K budget allocated. Upon the enactment of the same, the head of the military asked the supply officer to canvass. Upon canvassing, he found that there were blankets that cost 500 pesos each. But the supply officer connived with the supplier of the blankets and told him that instead of delivering blankets with premium quality costing 500 pesos, he should deliver only inferior quality blankets costing 300 pesos each, anyway, the people in Mindanao would not know. So the poor quality blankets were delivered. What crime is committed?**

**A:** The crime committed is not fraud against public treasury but Other Frauds under Article 214. This is because there is an allocation in the GAA and as such, the treasury can no longer be defrauded because such amount has long been allocated or earmarked for the purchase of the blankets. The fraud is in the implementation of the budget therefore it amounted to Estafa. Other frauds is committed by any public officer, who, by taking advantage of his official position would commit any of the acts of Estafa under Articles 315 – 318.

## PROHIBITED TRANSACTIONS (ART.. 215)

***Art. 215. Prohibited transactions.*** - The penalty of prision correccional in its maximum period or a fine ranging from 200 to 1,000 pesos, or both, shall be imposed upon any appointive public officer who, during his incumbency, shall directly or indirectly become interested in any transaction of exchange or speculation within the territory subject to his jurisdiction

**ELEMENTS:**

1. That the offender is an appointive public officer;
2. That he becomes interested directly or indirectly in any transaction of exchange or speculation;
3. That the transaction takes place within the territory subject to his jurisdiction; and
4. That he becomes interested in the transaction during his incumbency

## POSSESSION OF PROHIBITED INTEREST BY A PUBLIC OFFICER (ART. 216)

***Art. 216. Possession of prohibited interest by a public officer.*** - The penalty of arresto mayor in its medium period to prision correccional in its minimum period, or a fine ranging from 200 to 1,000 pesos, or both, shall be imposed upon a public officer who directly or indirectly, shall become interested in any contract or business in which it is his official duty to intervene.

This provision is applicable to experts, arbitrators and private accountants who, in like manner, shall take part in any contract or transaction connected with the estate or property in appraisal, distribution or adjudication of which they shall have acted, and to the guardians and executors with respect to the property belonging to their wards or estate.

**Persons Liable**

1. Public officer who, directly or indirectly, became interested in any contract or business in which it was his official duty to intervene;

2. Experts, arbitrators and accountants who, in like manner, took part in any contract or transaction connected with the estate or property in the appraisal, distribution, or adjudication of which they had acted; and

3. Guardians and executors with respect to the property belonging to their wards or the estate

## MALVERSATION
## (ART. 217, AS AMENDED BY R.A. NO. 1060)

**Article 217. *Malversation of public funds or property; Presumption of malversation.* -** Any public officer who, by reason of the duties of his office, is accountable for public funds or property, shall appropriate the same or shall take or misappropriate or shall consent, through abandonment or negligence, shall permit any other person to take such public funds, or property, wholly or partially, or shall otherwise be guilty of the misappropriation or malversation of such funds or property, shall suffer:

1. The penalty of prision correccional in its medium and maximum periods, if the amount involved in the misappropriation or malversation does not exceed two hundred pesos.

2. The penalty of prision mayor in its minimum and medium periods, if the amount involved is more than two hundred pesos but does not exceed six thousand pesos.

3. The penalty of prision mayor in its maximum period to reclusion temporal in its minimum period, if the amount involved is more than six thousand pesos but is less than twelve thousand pesos.

4. The penalty of reclusion temporal, in its medium and maximum periods, if the amount involved is more than twelve thousand pesos but is less than twenty-two thousand pesos. If the amount exceeds the latter, the penalty shall be reclusion temporal in its maximum period to reclusion perpetua.

In all cases, persons guilty of malversation shall also suffer the penalty of perpetual special disqualification and a fine equal to the amount of the funds malversed or equal to the total value of the property embezzled.

The failure of a public officer to have duly forthcoming any public funds or property with which he is chargeable, upon demand by any duly authorized officer, shall be prima facie evidence that he has put such missing funds or property to personal use. (As amended by RA 1060).

**ELEMENTS:**

1. Offender be a public officer;
2. He had custody or control of funds by reason of the duties of his office;
3. Those funds and property were public funds and property for which he was accountable; and
4. He appropriated, took, misappropriated or consented, or through his abandonment or negligence, he permitted another person to take them.

**Q: Based on the first, second and third elements, what kind of public officer is the offender in the crime of Malversation under Art. 217?**

**A:** He must be an accountable public officer.

**Q: Who is an accountable public officer?**

**A:** An accountable public officer is a public officer, who, by reason of the duties of his office, has received public funds and property that he has the obligation to account for later to the State.

**Q: Based on the last element, we have two ways of committing Malversation of Public Funds or Property. What are these?**

**A:** Malversation of public funds and property can be committed through the offender's:

1. ***Positive act*** – when he himself appropriated, took, misappropriated the said public funds and property. This is malversation through *dolo* or deliberate intent.

2. ***Passive act*** – when because of the public officer's negligence or abandonment, he permitted another person to misappropriate the said public funds and property in his custody. This is malversation through *culpa* or negligence.

**Q: Is demand an element under Art. 217 or indispensable?**

**A: NO.** Demand is not an element. Under Art. 217, if demand is made to an accountable public officer of funds and property and the same is not forthcoming, the law creates a *prima facie* presumption that the public officer has malversed the public funds and property.

In the case of **Venezuela v. People**, he argued that he did not receive any demand, therefore, he cannot be held liable. SC said No. Demand is not an element of Malversation under Art. 217 because under Art. 217, when demand is made by a competent public officer to an accountable public officer to account for public funds or property, and the same is not forthcoming, what only arises is a *prima facie* presumption of Malversation. So, it is not an element. The said demand would only give rise to *prima facie* presumption of Malversation of Public Funds and Property under Art. 217.

There is an audit and based on a complete, thorough and reliable audit, the public officer indeed received public funds and property. It was gone, there was a shortage and he could not give a justifiable reason for the said shortage or the missing funds. He becomes liable for violation under Art. 217. A *prima facie* presumption arises that the person malversed the public funds and property for his own personal use.

**Q: X won as the new Mayor. He told all the those high ranking official who are coterminous with the former Mayor to resign, so they tendered their resignation and were placed by all men loyal to Mayor X. and that includes city administrator W. All the newly high ranking officials appointed by Mayor X were given Toyota Fortuner coming from the city funds. These cars were MR to them where they use it until the expiration of the term. Upon the expiration they have to return. City administrator W was assigned by the Mayor to attend all meetings, that friday W attended a breakfast meeting, after that meeting he had a luncheon meeting but he forgot his documents so he went back to the City hall. He parked the car just few steps away from his office that would only take him less than 5 mins to get the document he left the car door open and left the key inside and then within 5 mins he came back but the Toyota fortuner MR to him is gone. He asked the guard "Nakita niyo po ba yung fortuner kakaprk ko lang?". The guard answered, "nakita ko sir pero akala ko ikaw yung driver kaya hinayaan ko lang, hindi ko alam hindi pala kayo ang driver" What crime is committed by City administrator X?**

**A:** He is liable for Malversation of public funds and property under Art 217. By reason of his abandonment, his negligence allowed the carnapper to misappropriate the said public property entrusted to his custody.

In the case of **Torres v. People**, Torres was charged with Malversation through dolo or deliberate intent. The Information alleges that he appropriated or misappropriated an encashed amount. But he said No, he was held up in Manila. He was convicted by the lower court of Malversation through culpa or negligence because by reason of his negligence, he became a victim of a holdup incident. Because of that he appealed, according to him, he was denied to be informed of the nature and cause of the accusation against him. He was charged with Malversation through dolo, yet he was convicted of Malversation through culpa.

The SC said No. The dolo or the deliberate intent, or culpa or the negligence are merely modalities in the commission of the crime of Malversation. Since they are merely modes in committing Malversation, whether malversation is committed through dolo or culpa, the same act of malversation is committed and the same penalty shall be imposed. Hence, it cannot be said that he was deprived of nature and cause of the accusation against him.

Also, the SC said that malversation through culpa or negligence is necessarily included in malversation through dolo or deliberate intent.

**Q: X was charged with Malversation under Art. 217 and during the hearing of the case, he was able to prove that the missing amount was appropriated by an Ordinance for a construction of a bridge, but he used it for his constituents who were for the victims of a large fire. The judge convicted him of Technical Malversation under Art. 220. Is the judge correct?**

**A:** NO. The judge is wrong. Since the crime charged against him is Malversation under Art. 217, it is erroneous on the part of the court to convict of Technical Malversation under Art. 220 because the two are different felonies. One is not necessarily included in the other.

**Q: X was charged with the crime of malversation under Art. 217. During the hearing of the case, when X testified, he was able to show and establish in open court that the said funds that were missing during audit has been entrusted to him for his administration. According to him, it is for the construction of three libraries in the public school. Since it was pandemic, classes are online, there was no need to establish the libraries so he used it first in order to provide for the basic needs of his constituents whose houses were gutted by a fire. According to him, it was important to use this for the benefit of his constituents instead of building libraries which at the moment could not be useful since classes are online. Having proven that in court, the judge convicted X of technical malversation although the Information alleges malversation under Art. 217. Is the judge correct?**

**A: NO.** The judge is wrong. Since the Information charged X in court of Malversation under Art. 217, it is incorrect for him to convict the accused public of technical malversation under Art. 220 because malversation under Art. 217 is different, separate and distinct from technical malversation under Art. 220. One is not necessarily included in the other. One is not merely a modality of the other. They are two different and distinct felonies and one does not absorb the other.

If the information alleged is under Article 217 – Malversation, if what was proven during trial is that the accused violated Article 220 – technical malversation, the judge could not convict accused under Article 220 because it is not necessarily included in Article 217. The accused would be deprived to be informed of the accusation against him. He should be acquitted.

**Q: X went to the City Hall. He is an owner of a small sari-sari store. The said small sari-sari store is licensed, and so he is now renewing his license. Since he knew that there will be an inspection, and he was afraid to be penalized, he went to the City Treasurer's Office to ask how much he has to pay for the renewal of the license of his small sari-sari store. Y, the city cashier, said, "You have to pay 1,000 pesos." X said, "Wala pa akong benta. Wala pa akong pangbayad. Magi-inspection na bukas." because he knew Y. Y told X, "Bigyan mo na lang ako ng limang kahong sigarilyo. Pwede na yun." X came back. He came with 5 packs of cigarettes to Y, the collecting officer. Is he liable?**

**A:** YES. Y, the collecting officer, is liable for Illegal Exaction. He cannot receive 5 packs of cigarettes. Said 5 packs of cigarettes will not go to the government. Therefore, the act of the collecting officer in receiving an amount which is not authorized by law will make him liable for Illegal Exaction.

**Q: X is a cashier at the City Treasurer's Office. Here comes a person paying for the renewal of his business license. He inquired from X, "How much do I have to pay?" X said, "A new ordinance has just taken effect since yesterday. For the renewal of your business license, you have to pay 5,000 pesos." The person believed. Said person gave 5,000 pesos to X. X took the money and when the person was asking from X if he could have his official receipt (OR), X said, "Oh. I have no more official receipt here. Anyway, just come back here tomorrow. I will give you your certificate of renewal of business permit. That will suffice because it means you have paid." Because of that, the person left.**

**X placed the entire 5,000 pesos inside the cash vault assigned to him. The amount to be collected should only be 3,000, but he demanded 5,000 and placed the entire money inside the cash vault and thereafter, he continued doing his duty for that day. When it was time to go home, X realized that he has an excess collection in the amount of 2,000 pesos. He opened the cash vault, took the 2,000 pesos (four 500 peso bills), and he placed it inside his wallet and went home. He used it to buy groceries to be given to his family. What crime or crimes is/are committed by cashier X?**

**A:** First, he is liable for Illegal Exaction under Art. 213(2). He is a collecting public officer. He demanded an amount larger than that authorized by law. The amount authorized by law is 3,000 pesos, yet he demanded, and even received 5,000 pesos. He also deliberately failed to issue the official receipt for the sum of money that he has collected. Therefore, he is liable for illegal exaction.

Second, Cashier X is also liable for Malversation of Funds and Property under Art. 217. The moment Cashier X placed the entire 5,000 pesos inside the cash vault, the entire 5,000 pesos became part of public funds. When he opened it again and took 2,000 pesos by four 500 peso bills, he was in effect taking part of public funds. Therefore, he becomes liable for malversation of public funds and property.

## TECHNICAL MALVERSATION (ART. 220)

***Article 220. Illegal use of public funds or property***. - Any public officer who shall apply any public fund or property under his administration to any public use other than for which such fund or property were appropriated by law or ordinance shall suffer the penalty of prision correccional in its minimum period or a fine ranging from one-half to the total of the sum misapplied, if by reason of such misapplication, any damages or embarrassment shall have resulted to the public service. In either case, the offender shall also suffer the penalty of temporary special disqualification. If no damage or embarrassment to the public service has resulted, the penalty shall be a fine from 5 to 50 per cent of the sum misapplied.

**ELEMENTS:**

1. Offender is a public officer;
2. There is public fund or property under his administration;
3. Such public fund or property has been appropriated by law or ordinance; and
4. He applies the same to a public use other than that for which such fund or property has been appropriated by law or ordinance.

**Malversation v. Technical Malversation**

| MALVERSATION (Art. 217) | TECHNICAL MALVERSATION (Art. 220) |
|---|---|
| The public officer has public funds and property in his possession for his safekeeping. | The public officer has public funds and property in his possession for his administration. |
| Public funds and property were entrusted to the said public officer and he has the obligation to account it later to the State. | The public officer has the obligation to apply to the public use for which it has been appropriated by law or ordinance. |
| The public officer appropriated, took or misappropriated public funds for his own personal benefit. | The public officer applied the said public funds and property to another public use other than that to which it has been appropriated by law or ordinance. |
| A crime *malum in se.* | A crime *malum prohibitum.* |

**NOTE:** If the charge is Art. 217, even if evidence shows that the act constitutes technical malversation, the judge has to acquit the accused of Art. 217. A separate case for technical malversation under Art. 220 should be filed.

A judge cannot conviction an accused of technical malversation charged under an Information that alleges malversation under Art. 217.

In **Ysidoro v. People**, The Supreme Court said in this case that criminal intent is not an element of technical malversation. What the law punishes is the act of diverting public funds or property earmarked by law or ordinance for a particular public purpose to another public purpose.

The offense is mala prohibitum. The prohibited act is not inherently evil or wrong; it becomes criminal because positive law forbids its commission based on public policy and order.

Mayor Ysidoro said that he acted in good faith. The Supreme Court said that good faith is not a defense. Criminal intent not being an element of technical malversation, lack of criminal intent is not a defense. Dura Lex Sed Lex. The law is harsh, but it is the law. Mayor Ysidoro's act, no matter how noble or miniscule the amount diverted, still constituted the crime of technical malversation. However, the Supreme Court recognized that Mayor Ysidoro's offense was not grave. It imposed upon Mayor Ysidoro only a penalty of fine and no imprisonment because the offense is not grave warranting a mere fine as penalty.

In the case of **Abdulla v. People**, the DBM issued a check allegedly for salary differentials of the teachers at the Mindanao State University. Instead of using the checks for salary differentials, Abdulla applied it to the credit leaves of the other professors. And so, he was charged with Technical Malversation because of the transfer, different use of funds. SC said No. He is not liable as the first and foremost requirement Art. 220 is that there must be a law or ordinance appropriating the said funds for a particular purpose. In this case, there is no law which states that the said amount will only be used for salary differentials. It was only issued by the DBM saying that it shall be used for salary differentials but there is no law/ordinance stating it can be used solely for salary differentials. Absent any law or ordinance appropriating the funds for a particular use, its transfer to other purposes will not give rise to violation of Art. 220 – Technical Malversation.

**NOTE:** If you are given a problem during the bar, what you need to look first is whether or not a law or ordinance appropriating the public funds or property exists for a particular public use or purpose.

If there is none, the funds can be transferred just like in the case of Abdulla v. People. The funds in the case were transferred because there was no law or ordinance. The 40,000 pesos was just released by the DBM as salary differentials. It came from a lump sum appropriation of the GAA. It is not for a particular public purpose. Therefore, even if it is used for a different purpose, the Supreme Court said that Abudlla is not liable as there is no law or ordinance that appropriates the said amount for a particular public purpose.

**Q: Can Malversation be committed by private persons?**

**A:** YES. Malversation can be committed by private persons.

**Q: Can Malversation be committed against private funds?**

**A:** YES. Malversation can be committed against private funds. If the said private funds have been seized, attached, or deposited by public authorities, they are no longer considered as private funds as they are already under the custody of the law. (in custodia legis)

Any act of taking the same will amount to malversation of public funds and property.

**Q: X was caught in possession of a caliber .45 pistol. No license, so it was confiscated. He was brought to the PNP station and the gun was given to the custodian. A case of violation of R.A. 10591 was charged against X. During the hearing of the case, the public prosecutor moved that a subpoena duces tecum and ad testificandum be issued against the custodian. The public prosecutor wanted the court to see the gun, the unlicensed pistol. The subpoena was issued by the court for the PNP custodian to bring the gun before the court. He did not mind the subpoena. He received it, but he did not appear in court. For the second time, he did not appear in court again. The judge was mad so he issued a show cause order against the PNP custodian. Hence, he became afraid and appeared in court. There, he narrated to the court that the gun is gone because according to him he sold the gun. He was charged with Malversation. He said, "No, it cannot be malversation, as it is private property. It belongs to accused X. He is not yet convicted and therefore it cannot be considered public property." Is his contention meritorious?**

**A:** NO. It is already public property because it has been seized and attached by public authorities. Therefore, it is in custody of the law, and when he sold the same, he committed the crime of malversation of public funds and property because he has the duty to account it later to the State or government.

## ANTI-PLUNDER ACT (R.A. NO. 7080)

**Plunder, Definition**

Plunder is committed by any public officer who by himself or in connivance with any member of his family, relatives by affinity or consanguinity, business associates, subordinates, or any other persons, amasses, accumulates, or acquires ill- gotten wealth through a series or combination of overt criminal acts in the aggregate amount or total value of at least 50 million pesos.

**Q: Can plunder be committed by private persons?**

**A:** YES, in the case of **Napoles v. Sandiganbayan**. Plunder can be committed even by private persons if the said private person is in connivance with the public officer by the mere statement of Sec. 2 R.A. 7080. Plunder is committed by any public officer who by who by himself are in connivance with any members of his family, relatives, or affinity by consanguinity, business associates, subordinates, therefore other persons who are in connivance with him, can also be charge with a crime of plunder, not only public officers.

***Section 2. Definition of the Crime of Plunder; Penalties.*** — Any public officer who, by himself or in connivance with members of his family, relatives by affinity or consanguinity, business associates, subordinates or other persons, amasses, accumulates or acquires ill-gotten wealth through a combination or series of overt or criminal acts as described in Section 1(d) hereof in the aggregate amount or total value of at least Fifty million pesos (P50,000,000.00) shall be guilty of the crime of plunder and shall be punished by reclusion perpetua to death. Any person who participated with the said public officer in the commission of an offense contributing to the crime of plunder shall likewise be punished for such offense. In the imposition of penalties, the degree of participation and the attendance of mitigating and extenuating circumstances, as provided by the Revised Penal Code, shall be considered by the court. The court shall declare any and all ill-gotten wealth and their interests and other incomes and assets including the properties and shares of stocks derived from the deposit or investment thereof forfeited in favor of the State. (As amended by RA 7659, approved Dec. 13, 1993.)

Under Sec. 2, the penalty for plunder is reclusion perpetua to death. The threshold amount is P50,000,000.00. Anything lower than P50M, that crime is any other crime, but not the crime of plunder. The penalty is reclusion perpetua to death, and under sec. 2, in imposing the penalty of reclusion perpetua to death, the court, the justices, may consider mitigating and extenuating circumstances (no aggravating), and also the degree of participation of the said offender. They can consider the mitigating circumstance under art. 13. They can also consider the degree of participation whether he is a principal, a mere accomplice, or an accessory in the crime of plunder.

In ***Estrada v. Sandigabayan,*** SC distinguished the word combination or series of overt criminal acts. SC said when you say "combination" it refers to different acts coming from diff categories under Sec 1(d) p(1). For example is misuse of public funds underSec 1 (d)p(1) and also fraudulent use or sale of property under Sec 1(d)p(2). This is considered as a combination of p(1) and (2)

On the other hand "series of overt criminal acts" means there are two or more acts coming from the same category. For example, malversation, misuse of public funds all found under Sec 1(d)subpara(1)

**Q: Where do you file a case of Plunder?**

**A:**

1. Unless otherwise provided by law, Sandiganbayan has original and exclusive jurisdiction. for public officers of salary grade 27 or above, the Sandiganbayan has jurisdiction.

2. But RA 8429 – only public officers with salary from the time the last act constituting Plunder has been grade 27 or above shall be within the jurisdiction of committed it known/it comes to the knowledge of the the Sandiganbayan. Others, within the jurisdiction authorities.

**Prescriptive Period**

Just like also R.A. 3019, plunder prescribes in 20 years from the time the last act constituting plunder has been committed.

**Q: Public officer X was charged with Plunder. The information filed by the office of the Ombudsman contains 150 pages because the allegation includes 40 acts of misuse of public funds, 50 acts of malversation, and 30 acts of fraudulent sale of public property. Is it necessary for the office of the Ombudsman to prove each and every these criminal act to bring about the conviction of Plunder?**

**A:** No, under Sec. 4 of RA 7080 it shall not be necessary to prove each and every criminal act done by the accused in furtherance of the scheme or conspiracy to amass, accumulate or acquire ill- gotten wealth, it being sufficient to establish beyond reasonable doubt a pattern of overt or criminal acts indicative of the overall unlawful scheme or conspiracy. Provided the amount be 50 million pesos.

**Sec. 4.** ***Rule of Evidence.*** — For purposes of establishing the crime of plunder, it shall not be necessary to prove each and every criminal act done by the accused in furtherance of the scheme or conspiracy to amass, accumulate or acquire ill- gotten wealth, it being sufficient to establish beyond reasonable doubt a pattern of overt or criminal acts indicative of the overall unlawful scheme or conspiracy.

In the case of ***GMA vs. People***, the Supreme Court said, the law on plunder requires that in the information filed in court, it is required that a particular public officer must be identified as the main plunderer. A particular public officer must be identified as the one who amass, or accumulated the ill-gotten wealth. If plunder is charged against several persons in conspiracy with one another, there must be a state, an allegation in the information as to who is the main plunderer. His co-conspirators may be members of his family, relatives, or affinity by consanguinity, business associates, subordinates, or any other person.

In the case, the Supreme Court granted the demurrer to evidence filed by the counsel of the former president. The Supreme Court said, absent a statement in the information, absent an allegation in the information as to who is the main plunderer, who is that particular public officer who amassed the said ill-gotten wealth, then there is no conspiracy in this case. The Supreme Court said, considering that there are 10 persons who were accused of amassing, acquiring ill-gotten wealth, the 366 million shall be divided into 1/10. It amounts only to 36 million, way below the threshold amount of 50M.

Just like in case of violation of R.A. 3019, for public officers of salary grade 27 or above, the Sandiganbayan has jurisdiction. Just like also R.A. 3019, plunder prescribes in 20 years from the time the last act constituting plunder has been committed.

## INFIDELITY IN THE CUSTODY OF PRISONERS (ARTS. 223-225)

Under Art. 223, 224, and 225, we have infidelity in the custody of prisoners.

### CONNIVING WITH OR CONSENTING TO EVASION (ART. 223)

**Art. 223.** ***Conniving with or consenting to evasion.*** **-** Any public officer who shall consent to the escape of a prisoner in his custody or charge, shall be punished:

1. By prision correccional in its medium and maximum periods and temporary special disqualification in its maximum period to perpetual special disqualification, if the fugitive shall have been sentenced by final judgment to any penalty.

2. By prision correccional in its minimum period and temporary special disqualification, in case the fugitive shall not have been finally convicted but only held as a detention prisoner for any crime or violation of law or municipal ordinance.

Under Art. 223, infidelity in the custody of prisoners by conniving or consenting with the escape of prisoners.

**ELEMENTS:**

1. Offender is a public officer;
2. He has in his custody or charge a prisoner, either detention prisoner or prisoner by final judgment;
3. Such prisoner escaped from his custody;
4. That he was in connivance with the prisoner in the latter's escape, or is with his consent.

**EVASION THROUGH NEGLIGENCE (ART. 224)**

**Art. 224.** ***Evasion through negligence.*** **-** If the evasion of the prisoner shall have taken place through the negligence of the officer charged with the conveyance or custody of the escaping prisoner, said officer shall suffer the penalties of arresto mayor in its maximum period to prision correccional in its minimum period and temporary special disqualification.

Under Art. 224, infidelity in the custody of prisoners by evasion through negligence.

**ELEMENTS:**

1. Offender is a public officer;
2. He is charged with the conveyance or custody of a prisoner, either detention prisoner or prisoner by final judgment;
3. Such prisoner escapes through his negligence.

**ESCAPE OF PRISONER UNDER THE CUSTODY OF A PERSON NOT A PUBLIC OFFICER (ART. 225)**

**Art. 225.** ***Escape of prisoner under the custody of a person not a public officer.*** - Any private person to whom the conveyance or custody or a prisoner or person under arrest shall have been confided, who shall commit any of the offenses mentioned in the two preceding articles, shall suffer the penalty next lower in degree than that prescribed for the public officer.

Under Art. 225, infidelity in the custody of prisoners by one who is not a public officer.

**ELEMENTS:**

1. Offender is a private individual;
2. Conveyance (or charge) of custody of prisoner or person under arrest is confided to him;
3. Prisoner or person under arrest escapes
4. Offender consents to the escape of the prisoner or person under arrest or that the escape takes place through his negligence.

Whether it is under Art. 223, 224, or 225, the offender in infidelity in the custody of prisoner must be the said person who has been entrusted with the custody of the prisoner. He must be entrusted either by law, or by appointment of competent authority to be the custodian of the said prisoner because the essence of the crime is violation of the trust and confidence reposed on him as the custodian of the said prisoner. If he is not the custodian, he is not entrusted with the custody of the said prisoner, and he connives and consents with the escape of the prisoner, we studied that, it is under Art. 156, delivering prisoners from jail.

In the case of **Pineda v. People,** SC distinguished Art 223 Infidelity in the custody of prisoners by conniving with or consenting to evasion vs Infidelity in the custody of prisoners by evasion through negligence. According to SC. In case of Art 223., it is necessary that there must be an agreement coupled with a deliberate intent to allow the prisoner to escape. There must be an agreement between the public officer custodian and the prisoner that he is allowing the said prisoner to escape. On the other hand, under Art 224, it contemplates lack of diligence in custody of the said prisoner. The Supreme Court held that the negligence contemplated here is not one of mere laxity. The negligence here must be one which is done with malice amounting to deliberate non-performance of one's official duty.

**Q: X a detention prisoner for the crime of murder. He was brought to the court by a BJMP officer assigned to him for trial. The said BJMP guard asked the accused to sit on the bench assigned for the accused Thereafter the BJMP left him to buy cigarettes. The moment the BJMP guard left, the girlfriend of X arrived and thereafter talk to him. Then they both stood up with a big bag and covered the face of X, they left the court room, and hall of justice. What are the criminal liabilities of the prisoner, BJMP and the girlfriend?**

**A:** As to the prisoner, he is not liable for any crime because he is still a detention prisoner. He is presumed innocent until proven guilty BRD.

As to the BJMP officer, he is liable under Art. 224. infidelity in the custody of prisoners by evasion through negligence. SC said the moment a custodian left a prisoner out he should never lose sight of said prisoner. In this case, the BJMP guard left X alone to buy cigarettes. Therefore he is liable under Art 224.

As to the girlfriend, she is liable under Art. 156 delivering prisoners from jail.

**Q: X is a detention prisoner. He is charged with the crime of murder, non-bailable, that's why he is in a provincial jail. His case is scheduled in the calendar of RTC. Two security guards (BJMP prison guards) assigned to him, placed handcuffs on X. They were waiting for the arrival of the BJMP vehicle that will bring them to the hall of justice, which is more than 30 minutes away from the said place. It is already 8:20, the BJMP has not yet arrived, and so the two BJMP guards, guard Y and Z, decided to bring X outside with handcuffs, they flagged down a jeepney, and thereafter, onboard the said jeepney, they brought him to the said hall of justice. In the hall of justice, they arrived late. They informed the court what happened, and so the court heard the case. After the hearing the case, here comes the wife of X. The wife of X told the two jail guards, "Can I talk to you, sir?", and the jail guards said "Yes. Why?". The wife told the two jail guards, Y and Z, "I was able to save P50,000. 25K for you, sir Y, and 25K for you Z. These are all your if you will allow my husband X to go home with me today." Both BJMP guards looked at each other, and then thereafter, by looking at each other, they took the said cash, and then thereafter they told the woman "leave now immediately." Then, X left together with the said wife. What crime/s is/are committed by the said BJMP guards?**

**A:** The BJMP guards Y and Z are liable for infidelity in the custody of prisoners. They were the ones appointed to be the custodian of the said prisoner X to bring him to the court and back to the detention cell. However, in connivance, they allowed him to leave. They are liable for violation of Art. 223, infidelity in the custody of prisoner by conniving, consenting with the escape of the prisoner because of the bribed money that they received.

They are also liable for direct bribery under Art. 210. They received the said money in connection with the performance of their official duties. It is their official duty to guard X. After the hall of justice, they have to bring X back to the BJMP jail, however, they failed to do so because of the bribed money they have received. Therefore, they are liable for infidelity, and also direct bribery. Which act of direct bribery? The first act. They received the said bribery in order to allow the escape of prisoner. You cannot complex it because direct bribery prohibits complexity of crimes.

## INFIDELITY IN THE CUSTODY OF DOCUMENTS (ARTS. 226-228)

### REMOVAL, CONCEALMENT, OR DESTRUCTION OF DOCUMENTS (ART. 226)

**Art. 226.** ***Removal, concealment or destruction of documents.*** **–** Any public officer who shall remove, destroy or conceal documents or papers officially entrusted to him, shall suffer:

1. The penalty of prision mayor and a fine not exceeding Two hundred thousand pesos (P200,000) o, whenever serious damage shall have been caused thereby to a third party or to the public interest.

2. The penalty of prision correccional in its minimum and medium period and a fine not exceeding Two hundred thousand pesos (P200,000), whenever the damage to a third party or to the public interest shall not have been serious.

In either case, the additional penalty of temporary special disqualification in its maximum period to perpetual disqualification shall be imposed.

**ELEMENTS:**

1. Offender is a public officer
2. He removes, destroys, or conceals documents or papers
3. Said documents or papers should have been entrusted to such public officer by reason of his office
4. Damage, whether serious or not, to a third party or to the public interest should have been caused

Under Article 226, in order for infidelity in the custody of documents to arise, it is necessary that there be damage caused to a third person or to the public interest.

If damage is serious, the penalty is QUALIFIED, therefore, the damage may or may not be serious provided that there is damage, the crime will arise.

**NOTE:** DAMAGE IS NECESSARY in order to give rise to infidelity in the custody of documents.

## OFFICER BREAKING SEAL (ART. 227)

***Art. 227. Officer breaking seal. -*** Any public officer charged with the custody of papers or property sealed by proper authority, who shall break the seals or permit them to be broken, shall suffer the penalties of prision correccional in its minimum and medium periods, temporary special disqualification and a fine not exceeding 2,000 pesos.

**ELEMENTS:**

1. Offender is a public officer
2. He is charged with the custody of papers or property
3. These papers or property are sealed by proper authority
4. He breaks the seals or permits them to be broken

Under Article 227, officer breaking the seal, infidelity in the custody of prisoners to arise, even without damage caused to a third party or to public interest. Damage is NOT an element.

Mere breaking of the seal of the document will already consummate the crime.

## OPENING OF CLOSED DOCUMENTS (ART. 228)

***Art. 228.*** *Opening of closed documents.* - Any public officer not included in the provisions of the next preceding article who, without proper authority, shall open or shall permit to be opened any closed papers, documents or objects entrusted to his custody, shall suffer the penalties or arresto mayor, temporary special disqualification and a fine of not exceeding 2,000 pesos.

**ELEMENTS:**

1. Offender is a public officer
2. Any closed papers, documents, or objects are entrusted to his custody
3. He opens or permits to be opened said closed papers, documents or objects
4. He does not have proper authority

Infidelity in the custody of documents, the public officer has been entrusted with papers, documents or objects, which have been closed by proper authority and the said public officer opened the said closed document or permitted others to open the same. Again, Damage is NOT an element.

Mere act of opening the said closed document will give rise to the crime.

Under Art. 226, removal, concealment, or destruction of documents. When you say removal of documents, it presupposes appropriation of the said official document. The said removal of the said document must be for an illicit purpose, an illegal purpose.

**Concealment**

When you say concealment, it means that the said document in custody of the said public officer are not forwarded to their destination. It is not necessary that they are secreted in a place where they could not be found. What is necessary is that they did not reach their place of destination. They were concealed.

**Destruction**

When you say destruction, it is equivalent to rendering the said document useless, or the obliteration of the said document. Complete destruction of the said document is not necessary for the crime to arise.

**Damage is Necessary**

Of the three crimes (Art 226, 227, 228), it is only under art. 226 wherein damage or intent to cause damage is an element. The third element of Art. 226 requires that there must be damage, or intent to cause damage to a third person, or to public interest. Without damage, there is no crime of infidelity under art. 226. The damage to third person, or to public interest must be actual. There must be an actual damage but not necessarily pecuniary, or material damage. Mere alarm to the public because of the concealment, destruction, or removal of the said document is sufficient.

**Q: X is Clerk of Court of the RTC. There is a probate proceedings, the last will and testament has already been marked as evidence and in the custody of the said clerk of court. The clerk of court destroyed the said document to the prejudice of the instituted heirs. What crime is committed by the Clerk of Court?**

**A:** The crime committed is infidelity in the custody of documents under Art. 226 by the public officer in destroying the said document. He is a public officer, is in custody of the public document and he destroys the last will and testament a documentary evidence for the private complainant and this caused damage whether serious or not to the instituted heirs. Hence, he is liable under Art. 226.

**Q: What if A has been charged with illegal sale of dangerous drugs. The case was on trial, during the trial of the case, the fiscal presented the first police officer who acted as the poseur buyer in the course of the testimony of the police officer, the fiscal produced and showed to him for identification the marked money. So the marked money consists of five 100-peso bills. The fiscal presented it to the police and the police identified it as indeed the marked money because of the serial numbers and because of the markings, and thereafter the marked money have been marked as Exhibit A, A-1, A-2, A-3, A-4, E for the prosecution. After the trial, they were placed inside an envelope and given to the clerk of court, the custodian of the evidence which have already been marked. So trial ended that day, it was now lunch time. The clerk of court was on her table and so the vendor arrived. The clerk of court wanted to buy lunch and she said, how much. The vendor said it costs 50 pesos. The clerk of court pulled out her money; it was a 1000 peso bill. The vendor said, "ang laki naman niyan, wala akong panukli" And so, by reason thereof, he gave it back to the clerk of court. The clerk of court said that she had no smaller bills, and he remembered the exhibits. And so, he took 100 peso bill, marked as Exhibit A-4. And she paid it to the vendor and the vendor gave him the change of 50 peso. After eating, before 1:00, the said clerk of court immediately went outside to change her big 1000 peso bill into smaller bills. When he now has these smaller bills, he got one 100 peso bill and marked it as Exhibit E and then he signed it and placed it inside the envelope. Here comes the next hearing date, on the next hearing date, another police officer was presented, the fiscal produced the said documentary exhibits, the marked money and asked it from the clerk of court. So the fiscal showed it to the police officer, the police officer identified ExhibitsA, A-1, A-2 ,A-3,. However, when it comes to exhibit A-4, the police officer said, "Your Honor, it has a different serial number from the one in our sworn statement" and so because of that, an investigation happened and the court learned that it was taken by said clerk of court and used in buying food. What crime, if any is committed by the said clerk of court? Is it malversation or is it infidelity in the custody of documents?**

**A:** The crime committed is infidelity in the custody of documents under Art. 226 by the public officer in destroying the said document. This marked money becomes documentary evidence the moment they have been marked as exhibits. Money here is not used as a medium of exchange, but as documents because they have been marked as documentary evidence. The moment they have been taken, removed, concealed or destroyed, the crime committed is infidelity in the custody of documents because the clerk of court is the custodian of the documentary exhibits. If money is used, not as a medium of exchange, but like this, as documentary exhibits or any other use other than as a medium of exchange, the one who malversed, or used it is the custodian of the said documents, the crime is infidelity in the custody of documents and NOT malversation.

When the clerk of court took the 100-peso bill, he destroyed the exhibit, the documentary exhibit of the said prosecution and the prosecution was seriously damaged.

## OTHER OFFENSES OR IRREGULARITIES BY PUBLIC OFFICERS (ARTS. 231-245)

### OPEN DISOBEDIENCE (ART. 231)

**Art. 231. *Open disobedience.* -** Any judicial or executive officer who shall openly refuse to execute the judgment, decision or order of any superior authority made within the scope of the jurisdiction of the latter and issued with all the legal formalities, shall suffer the penalties of arresto mayor in its medium period to prision correccional in its minimum period, temporary special disqualification in its maximum period and a fine not exceeding 1,000 pesos.

**ELEMENTS:**

1. Offender is a judicial or executive officer;
2. There is judgment, decision, or order of a superior authority;
3. Such judgment, decision or order was made within the scope of the jurisdiction of the superior authority and issued with all the legal formalities; and
4. Offender without any legal justification openly refuses to execute the said judgment, decision or order which he is duty bound to obey.

In order for open disobedience to arise, it is necessary that the refusal must be clear, manifest, it must be intentional, not a mere omission arising from oversight or mislook.

## OPEN DISOBEDIENCE (ART. 233)

**Art. 233. *Refusal of assistance.*** - The penalties of arresto mayor in its medium period to prision correccional in its minimum period, perpetual special disqualification and a fine not exceeding 1,000 pesos, shall be imposed upon a public officer who, upon demand from competent authority, shall fail to lend his cooperation towards the administration of justice or other public service, if such failure shall result in serious damage to the public interest, or to a third party; otherwise, arresto mayor in its medium and maximum periods and a fine not exceeding 500 pesos shall be imposed.

In Art. 233, we have refusal of assistance. Refusal of assistance is committed by a public officer who fails to lend his cooperation towards the administration of justice, and such failure was made upon demand of a competent authority. Damage is not an element in the refusal of assistance. Damage to public interest merely aggravates the imposition of penalties but damage is NOT an element for the crime to arise. Damage, serious damage is only considered as an aggravating circumstance so as to increase the imposable penalty

## MALTREATMENT OF PRISONERS (ART. 235)

***Art. 235. Maltreatment of prisoners.*** - The penalty of arresto mayor in its medium period to prision correccional in its minimum period, in addition to his liability for the physical injuries or damage caused, shall be imposed upon any public officer or employee who shall overdo himself in the correction or handling of a prisoner or detention prisoner under his charge, by the imposition of punishment not authorized by the regulations, or by inflicting such punishment in a cruel and humiliating manner.

**ELEMENTS:**

1. Offender is a public officer or employee

2. He has under his charge a prisoner or detention prisoner

3. He maltreats such prisoner either of the following manners:

    a. By overdoing himself in the correction or handling of a prisoner or detention prisoner under his charge either:
        i. By the imposition of punishments not authorized by the rules and regulations

        ii. By inflicting such punishments (those authorized) in a cruel or humiliating manner

    b. By maltreating such prisoner to extort a confession or to obtain some information from the prisoner

**Offender**

Any public officer or employee offended party – He must be a prisoner.

In order to be considered a prisoner, it is necessary that the said person has already been arrested, brought to the PNP station and he has been incarcerated. If he is not a prisoner, then, the crime can be physical injuries, whatever injuries that may have been sustained by the prisoner, but NOT maltreatment of prisoners

Maltreatment does not only include physical maltreatment. It shall also include moral, emotional, psychological maltreatment because the law uses the phrase physical injuries or damage caused.

If as a result of maltreatment, the prisoner would die or suffer injuries, there is a separate and distinct charge for homicide or physical injuries because the law provides that the liability for maltreatment shall be in addition for any physical injuries or damage caused.

**Q: X was walking, police car passed by at pinagtripan si X ng police officers. They placed a paper bag on the hand of X and then thereafter they forcibly brought X inside the police car where they mould punch X. When he was seriously wounded, the police officer started to drive the vehicle and drop X in one of the muddy areas. A passerby saw X. X was brought to the hospital. X sustained serious physical injuries. What crime/s should be filed against the police officers?**

**A:** They shall be charged with Serious Physical Injuries. They cannot be charged of Maltreatment of prisoners because X at the time is not yet a prisoner. Therefore, Art 235 will not apply.

## ANTI-TORTURE ACT OF 2009 (R.A. No. 9745)

***Section 3. Definitions. – x x x***

(a) "Torture" refers to an act by which severe pain or suffering, whether physical or mental, is intentionally inflicted on a person for such purposes as obtaining from him/her or a third person information or a confession; punishing him/her for an act he/she or a third person has committed or is suspected of having committed; or intimidating or coercing him/her or a third person; or for any reason based on discrimination of any kind, when such pain or suffering is inflicted by or at the instigation of or with the consent or acquiescence of a person in authority or agent of a person in authority. It does not include pain or Buffering arising only from, inherent in or incidental to lawful sanctions.

**Q: X was walking. While X was walking, police officers Y and Z onboard their police cars so X, they know X, he was said to engage in snatching, robbery in the said place, in the slightly dark place. People always complain of him, however, none of them formally filed a complaint against him since there is no evidence. However, the police officer knew it was X who was doing all this kind of snatching, robbery, theft in this place. One time while the police officers were patrolling the area, they chanced upon X sitting on the bench and they thought, "Hmm, mambibiktima na naman yan." So, the police officers Y and Z went there and then thereafter they saw X stood up from the bench and X was already walking upon seeing the police officers, he was leaving the place. The police officer's car followed X.**

**Thereafter, the car of the police officer stopped and police officer Y and Z immediately went at the back of X and they placed handcuffs on him and placed him inside the car. Thereafter, they brought him to the police station. He was investigated.**

**During the investigation, he was being investigated for robbery, theft, and he did not know anything about that "Wala akong alam diyan sir!" The police officers were mad because he would not admit. He said, "Meron bang nag-complain? Eh sir wala naman ah!" Because of this, the police officers got mad at him and so he was booked. His mugshots were taken, his fingerprints were taken, and thereafter he was placed behind bars. He was struggling he said, "There was no complaint against me sir!" But still, he was placed behind bars. Police officers Y and Z were thinking based on records no one has complained against X.**

**They have no right to place him behind bars and so what they did, they took him out of the prison cell, they brought him to the investigation room and there he was being forced to admit to the commission of snatching and robbery in the area so that they would have reason to place him behind bars but he wouldn't admit and because of that the police officers Y and Z began mauling him. He was mauled by these police officers. Punched everywhere, different parts of the body until he vomited blood because of the punches on the chest.**

**Upon seeing that he vomited blood, the police officers became afraid that he might die in their custody and so he was immediately brought to the nearest hospital. The doctor said he sustained serious physical injuries. What crime/s should be filed against the said police officers Y and Z?**

**A:** Police officers Y and Z should be charged with maltreatment of prisoners. They shall also be charged with serious physical injuries. They shall also be charged with violation of RA No. 9745, the Anti-Torture Act. These crimes shall be filed against the said erring police officers with custody of prisoners.

All the elements of maltreatment are present:

1. Said offender is a public officer;
2. They have in their custody the prisoner. (He has been booked, photographed, etc.);
3. He inflicted upon him punishments which are not required by law.

The law does not require the use of force, the use of mauling in order to obtain a confession or obtain any information. Therefore, they are liable for maltreatment of prisoners. Because of the said act of maltreating X, X sustained serious physical injuries therefore, in addition to maltreatment of prisoners, the said police officers shall also be charged with the crime of serious physical injuries under Article 263.

**Q: Isn't it that the serious physical injuries was just a manifestation of the said act of maltreatment therefore the serious physical injuries should be absorbed in maltreatment?**

**A:** Serious physical injuries cannot be absorbed in maltreatment because under article 235, the law expressly provides the penalty for maltreatment shall be in addition to the physical injuries or damage caused therefore if by reason of the said maltreatment of prisoners then the said prisoners maltreated suffered injuries, suffered damage, the liability for that would be in addition to the said public officer's liability for article 235.

Likewise, the police officers shall be charged under RA No. 9745, the Anti-Torture Act. This maltreatment and serious physical injuries could not be simply absorbed by torture because because under Sec. 15 of RA 9745, the Anti-Torture Act, the law expressly provides that torture as a crime shall not absorb and shall not be absorbed by any other crime or felony committed as a consequence or some means in the conduct or commission thereof. Torture shall be treated as a separate and independent criminal act whose penalty shall be imposable without prejudice to any other criminal liability arising from any domestic or international laws.

Torture as a crime, shall always be separate and distinct. It cannot absorb article 235. It cannot absorb article 263, physical injuries. So, the police officers shall be prosecuted of these three crimes: 1) maltreatment of prisoners; 2) serious physical injuries; and 3) violation of R.A. 9745.

**Sec. 15.** ***Torture as a Separate and Independent Crime.*** - Torture as a crime shall not absorb or shall not be absorbed by any other crime or felony committed as a consequence, or as a means in the conduct or commission thereof. In which case, torture shall be treated as a separate and independent criminal act whose penalties shall be imposable without prejudice to any other criminal liability provided for by domestic and international laws.

**Sec. 16.** ***Exclusion from the Coverage of Special Amnesty Law.*** Persons who have committed any act of torture shall not benefit from any special amnesty law or similar measures that will have the effect of exempting them from any criminal proceedings and sanctions.

**Q: What if in the same problem, the police officers were convicted of violation of R.A. 9745. So, they were now serving their final sentence. They learned from their counsel that the president has issued a special amnesty proclamation for all political offenders. They told their counsel "Apply mo kami Atty. Apply mo kami". The attorney indeed applied in favor of police officers Y and Z in the said amnesty application. Should the said amnesty proclamation be granted?**

**A:** NO. It is expressly prohibited under Section 16. Under section 16, any person who has committed violation of R.A. 9745, cannot be given the benefit of a special amnesty program or any other acts which will lessen their criminal liability.

**Section 17.** ***Applicability of Refouler.*** **-** No person shall be expelled, returned or extradited to another State where there are substantial grounds to believe that such person shall be in danger of being subjected to torture. For the purposes of determining whether such grounds exist, the Secretary of the Department of Foreign Affairs (DFA) and the Secretary of the DOJ, in coordination with the Chairperson of the CHR, shall take into account all relevant considerations including, where applicable and not limited to, the existence in the requesting State of a consistent pattern of gross, flagrant or mass violations of human rights.

Under Sec. 17, no person shall be expelled, returned or extradited to a foreign country where there are substantial grounds/reasonable grounds to believe that the said person shall be subjected to torture. That is the so- called Applicability of Refouler.

**Illustration:** PH has an extradition treaty with El Salvador. The PH government knows that X will be extradited to El Salvador he will be subjected to torture, and so under Sec. 17 of RA 9745 there are substantial grounds/reasonable grounds to believe that the said person shall be subjected to torture to the said foreign country, there should be no extradition to El Salvador.

## ANTICIPATION OF DUTIES OF A PUBLIC OFFICE (ART. 236)

**Art. 236.** ***Anticipation of duties of a public office.*** - Any person who shall assume the performance of the duties and powers of any public officer or employment without first being sworn in or having given the bond required by law, shall be suspended from such office or employment until he shall have complied with the respective formalities and shall be fined from 200 to 500 pesos.

## PROLONGING PERFORMANCE OF DUTIES AND POWERS (ART. 237)

**Art. 237.** ***Prolonging performance of duties and powers.*** - Any public officer shall continue to exercise the duties and powers of his office, employment or commission, beyond the period provided by law, regulation or special provisions applicable to the case, shall suffer the penalties of prision correccional in its minimum period, special temporary disqualification in its minimum period and a fine not exceeding 500 pesos.

## ABANDONMENT OF OFFICE OR POSITION (ART. 238)

**Art. 238.** ***Abandonment of office or position.*** - Any public officer who, before the acceptance of his resignation, shall abandon his office to the detriment of the public service shall suffer the penalty of arresto mayor. If such office shall have been abandoned in order to evade the discharge of the duties of preventing, prosecuting or punishing any of the crime falling within Title One, and Chapter One of Title Three of Book Two of this Code, the offender shall be punished by prision correccional in its minimum and medium periods, and by arresto mayor if the purpose of such abandonment is to evade the duty of preventing, prosecuting or punishing any other crime.

**ELEMENTS:**

1. Offender is a public officer;
2. The said offender tendered his resignation from his position;
3. His resignation has not yet been accepted by his superior;
4. The public officer already abandons his office to the detriment of public service.

It is necessary for the crime to arise, in abandoning his position, he resigned but it was not yet accepted, and it resulted into the detriment of public service. The crime of abandonment of public office is qualified if the office is abandoned in order to evade the discharge of the public officer's duty of preventing, prosecuting, or punishing any of the crimes under Title 1 and Chapter 1 of Title 3 of the RPC (Crimes Against Public Order).

**Q: How would you distinguish dereliction of duty in the prosecution of offenses under Article 208 from Abandonment of Office under Article 238?**

**A:** In case of Abandonment of Office under Article 238, the public officer abandons the office in order to evade the discharge of his duty to prosecute any crime. Whereas, in case of Article 208, the public officer does not abandon his office. He merely fails to prosecute a violator of the law.

## USURPATION OF LEGISLATIVE POWERS (ART. 239)

**Art. 239.** ***Usurpation of legislative powers.*** - The penalties of prision correccional in its minimum period, temporary special disqualification and a fine not exceeding 1,000 pesos, shall be imposed upon any public officer who shall encroach upon the powers of the legislative branch of the Government, either by making general rules or regulations beyond the scope of his authority, or by attempting to repeal a law or suspending the execution thereof.

**ELEMENTS:**

1. That the offender is an executive or judicial officer;
2. That the offender:
    a. Makes general rules and regulations beyond the scope of his authority;
    b. Attempts to repeal a law; or
    c. Suspend the execution thereof.

**NOTE:** It can only be committed by an executive or judicial officer.

**USURPATION OF EXECUTIVE FUNCTIONS (ART. 240)**

**Art. 240.** ***Usurpation of executive functions.*** - Any judge who shall assume any power pertaining to the executive authorities, or shall obstruct the latter in the lawful exercise of their powers, shall suffer the penalty of arresto mayor in its medium period to prision correccional in its minimum period.

**ELEMENTS:**

1. That the offender is a judge;
2. That the offender:
    a. Assumes the power exclusively vested to executive authorities of the Government; or
    b. Obstructs executive authorities from the lawful performance of their functions.

**NOTE:** It can only be committed by a Judge.

## USURPATION OF JUDICIAL FUNCTIONS (ART. 241)

**Art. 241.** ***Usurpation of judicial functions.*** - The penalty of arresto mayor in its medium period to prision correccional in its minimum period and shall be imposed upon any officer of the executive branch of the Government who shall assume judicial powers or shall obstruct the execution of any order or decision rendered by any judge within its jurisdiction.

**ELEMENTS:**

1. That the offender is holding office under the Executive Branch of the Government;
2. That the offender: a. Assumes the power exclusively vested in the Judiciary; or b. Obstructs the execution of any order or decision given by a judge within his jurisdiction.

**NOTE:** It can only be committed by a public officer of the Executive Branch of the Government. Therefore, if the person who assumes judicial power does not belong to the Executive Branch, but belongs to the legislative branch, the crime is not Usurpation of Judicial Function but USURPATION OF PUBLIC FUNCTION AND OFFICIAL AUTHORITY under Article 177. Articles 239, 240, and 241 are specific as to the offenders.

**Example:** If the one who encroached upon the powers of the Judge does not belong to the executive branch, but he is legislator, it cannot be considered as usurpation of judicial functions, rather it will be Usurpation of Public Function and Official Authority Under Article 177.

## DISOBEYING REQUEST FOR DISQUALIFICATION (ART. 242)

**Art. 242.** ***Disobeying request for disqualification.*** - Any public officer who, before the question of jurisdiction is decided, shall continue any proceeding after having been lawfully required to refrain from so doing, shall be punished by arresto mayor and a fine not exceeding 500 pesos.

**ELEMENTS:**

1. That the offender is a public officer;
2. That a proceeding is pending before such public officer;
3. That there has been a question regarding the jurisdiction brought before the proper authority;
4. There is a question brought before the proper authority regarding his jurisdiction, which is yet to be decided.

## ORDERS OR REQUESTS BY EXECUTIVE OFFICERS TO ANY JUDICIAL AUTHORITY (ART. 243)

**Art. 243.** ***Orders or requests by executive officers to any judicial authority.*** - Any executive officer who shall address any order or suggestion to any judicial authority with respect to any case or business coming within the exclusive jurisdiction of the courts of justice shall suffer the penalty of arresto mayor and a fine not exceeding 500 pesos.

**ELEMENTS:**

1. That the offender is an executive officer;
2. That the offender addresses any order or suggestion to any judicial authority;
3. That the order or suggestion relates to any case or business within the exclusive jurisdiction of the courts of justice.

## UNLAWFUL APPOINTMENTS (ART. 244)

**Art. 244.** ***Unlawful appointments.*** **-** Any public officer who shall knowingly nominate or appoint to any public office any person lacking the legal qualifications therefor, shall suffer the penalty of arresto mayor and a fine not exceeding 1,000 pesos.

**ELEMENTS:**

1. Offender is a public officer;
2. He nominates or appoints a person to a public office;
3. Such person lacks the legal qualification thereof;
4. Offender knows that his nominee or employee lacks the qualifications at the time he made the nomination or appointment.

## ABUSES AGAINST CHASTITY (ART. 245)

**Art. 245.** ***Abuses against chastity; Penalties.*** - The penalties of prision correccional in its medium and maximum periods and temporary special disqualification shall be imposed:

1. Upon any public officer who shall solicit or make immoral or indecent advances to a woman interested in matters pending before such officer for decision, or with respect to which he is required to submit a report to or consult with a superior officer;

2. Any warden or other public officer directly charged with the care and custody of prisoners or persons under arrest who shall solicit or make immoral or indecent advances to a woman under his custody.

If the person solicited be the wife, daughter, sister of relative within the same degree by affinity of any person in the custody of such warden or officer, the penalties shall be prision correccional in its minimum and medium periods and temporary special disqualification.

This is committed by any public officer who solicits or makes immoral or indecent advances to any woman who is interested in any matter pending before him, with which he has to make a decision, with which he has to consult a superior authority.

Likewise, it is committed by any warden against any woman who is under his custody.

Likewise it is committed by any warden against the wife, sister, or daughter of a male prisoner under his custody.

**Essence of the Crime**

The essence of the crime is the making immoral and indecent solicitation by the public officer against the victim or offended party. Here, the offended party is always a woman.

**Acts Punished**

1. Public officer solicits or makes any indecent or immoral advances to a woman who is interested in matters pending before him for his decision or where the public officer is required to submit a report or to consult with a superior officer;

2. Warden or other public officer directly charged with the care and custody of prisoners or persons under arrest, and he solicits or makes any indecent or immoral advances to a woman;

3. Warden or other public officer directly charged with the care and custody of prisoners or persons under arrest, and the said officer makes any indecent or immoral advances to the wife, daughter, sister or any relative falling within the same degree of affinity of the male prisoner.

For the crime to arise, it is not necessary that the said woman has accepted or acted on the said solicitation.

**ELEMENTS:**

1. That the offender is a public officer;

2. That he solicits or makes any indecent or immoral advances to a woman;

3. That the offended party is a woman who is:
    a. Interested in matters pending before the public officer for his decision or where the public officer is required to submit a report or to consult with a superior officer; or

    b. Under the custody of the offender, who is a warden or other public officer directly charged with the care and custody of prisoners or persons under arrest; or

    c. The wife, daughter, sister or any relative falling within the same degree of affinity of the person under the custody and charge of the offender (mother is not included here).

**Q: X has a pending case before the fiscal's office. Upon seeing X, the fiscal already has a crush on X. After the resolution of the case, the case is now terminated and is already with the court. The fiscal upon seeing X told X, "Kamusta na? Want to have lunch with me just for today?" Is the public prosecutor liable for abuses against chastity?**

**A:** NO. It will not be considered as an abuse against chastity. It cannot be considered as an immoral solicitation; it is just a mere invitation. The said woman, X, may decline or agree with the said invitation but it is not considered as immoral or indecent solicitation.

## TITLE 8: CRIMES AGAINST PERSONS

### PARRICIDE (ART. 246)

***Art. 246. Parricide.-*** Any person who shall kill his father, mother, or child, whether legitimate or illegitimate, or any of his ascendants, or descendants, or his spouse, shall be guilty of parricide and shall be punished by the penalty of reclusion perpetua to death.

**ELEMENTS:**

1. That a person is killed;
2. That the deceased is killed by the accused; and,
3. That the deceased is the father, mother, or child, whether legitimate or illegitimate, legitimate other descendant, legitimate other ascendant, or legitimate spouse of the accused.

**Offended Party in Parricide**

Parricide is committed when the offender kills his:

1. Father;
2. Mother;
3. Child, whether legitimate or illegitimate;
4. Legitimate other ascendants;
5. Legitimate other descendants; or
6. The legitimate spouse.

**NOTE:** The offended party is specified.

**Parricide is a Crime Based on Relationship**

It is evident that parricide is a crime based on relationship. The said relationship must be:

1. The said relationship must be legitimate (except in the case of a parent and a child - it can be legitimate or illegitimate);

2. The relationship must be in the direct line;

3. The said relationship must be by blood

   **XPN:** Except in case of legitimate spouses.

**Examples:**

1. Grandfather killed a grandson,
2. A mother killing a son,
3. A son killing a father

**Q: So a father killed an illegitimate son. What crime is committed?**
**A:** It is parricide. Although the crime is based on a legitimate relationship, the exception is in case of children, whether legitimate or illegitimate.

**Q: A brother killed another brother. Is the crime committed parricide?**
**A:** No, the crime committed is murder or homicide, as the case may be and not parricide because the relationship between a brother and another brother is in the collateral line and not in the direct line.

**Q: What if there was an argument between a legally adopted son and his father. In the course of the argument, the son stabbed and killed the father. What crime is committed?**
**A:** Homicide. The act of killing was preceded by an argument, a fight and therefore there was no treachery and none of the qualifying circumstances of murder is present and therefore the crime is homicide. It is not parricide because although the relationship is that of legitimate father and son, the relationship is not based on blood. Therefore, the crime is homicide and not parricide.

**Q: What if a stepfather killed his stepson?**
**A:**The stepfather is not liable for parricide. It can either be murder or homicide, as the case may be, because their relationship is not based on blood. The relationship must be legitimate, in the direct line and by blood.

In Parricide, the circumstance which will qualify is relationship. Therefore, the relationship between the offender and the offended party must be stated in the information.

**Q: Let us say that the husband killed the wife. In the information filed by the fiscal, the fiscal failed to state that the husband is the legal husband of the said victim. However, during trial, by virtue of a certificate of marriage, it was proven that the accused was the legal husband of the said victim-wife. Can the husband be convicted of parricide?**

**A:** No**,** the husband cannot be convicted of parricide. This is because the relationship was not alleged in the information although proven during trial. Since the relationship between the husband and the wife is not alleged in the information, although proven during trial, he cannot be convicted of parricide. It can only be murder or homicide, as the case may be.

**Q: What if a husband wanted to kill his wife? So he has a mistress, the husband wanted to dispose of his wife. However, he cannot do it on his own and so the husband hired a high-profile killer, he paid the man 100,000 pesos to kill the wife. And so the man conducted surveillance on the wife, checked the itinerary of the wife and so when the wife was getting out of the grocery, here comes the killer. The killer, on board a motorcycle, went directly to the wife, shot her and off he went. The wife died. What crime/crimes is/are committed by the husband and the hired killer?**

**A:** The husband is liable for parricide as a principal by inducement. The relationship between legitimate spouses will make the crime of parricide.

The killer is liable for murder qualified by treachery with the generic aggravating circumstance of in consideration of price, reward, or promise. The crime committed is murder and there are two qualifying circumstances attended it which are treachery because of the manner of killing and in consideration of a price, reward, or promise. But you only need one qualifying circumstance to qualify the killing to murder and therefore it is murder qualified by treachery. The other qualifying aggravating circumstance shall be treated only as a generic aggravating circumstance.

Conspiracy will not lie. Although they conspired for the killing of the wife, the husband, being the principal by inducement and the killer, being the principal by direct participation, conspiracy will not lie. This is because the circumstance which qualifies parricide, the relationship, is personal to the husband and cannot be transferred to a stranger. That is why there will be two informations filed, one is parricide as against the husband as a principal by inducement and the other one is murder as against the killer.

## MURDER (ART. 248)

***Art 248. Murder.*** – Any person who, not falling within the provisions of Article 246 shall kill another, shall be guilty of murder and shall be punished by reclusion perpetua to death, if committed with any of the following attendant circumstances:

1. With treachery, taking advantage of superior strength, with the aid of armed men, or employing means to weaken the defense or of means or persons to insure or afford impunity.
2. In consideration of a price, reward, or promise.
3. By means of inundation, fire, poison, explosion, shipwreck, stranding of a vessel, derailment or assault upon a railroad, fall of an airship, or by means of motor vehicles, or with the use of any other means involving great waste and ruin.
4. On occasion of any of the calamities enumerated in the preceding paragraph, or of an earthquake, eruption of a volcano, destructive cyclone, epidemic or other public calamity.
5. With evident premeditation.
6. With cruelty, by deliberately and inhumanly augmenting the suffering of the victim, or outraging or scoffing at his person or corpse. (as amended by Republic Act No. 7659, [December 13, 1993])

**ELEMENTS:**

1. A person kills another;
2. The said act of killing is attended by any of the following qualifying circumstances.

    a. When the act of killing is done with treachery, taking advantage of superior strength, with the aid of armed men, employing means to weaken the defense, or employing means or persons to insure or afford impunity;

    b. When the act of killing is done in consideration of price, reward, or promise;

    c. When the act of killing is done by means of fire, inundation, poison, explosion, shipwreck, stranding of a vessel, derailment, or assault upon a railroad, fall of an airship, by means of motor vehicles, or by any other means involving great waste and ruin.

    d. When the act of killing is done on occasion of any calamities enumerated in paragraph c above, or on occasion of an earthquake, eruption of a volcano, destructive cyclone, epidemic, or any other public calamities.

    e. When the act of killing is done with evident premeditation; or

f. When the act of killing is done with cruelty, by deliberately and inhumanly augmenting the suffering of the victim or by outraging or scoffing at his person or corpse.

In murder, the act of killing must be attended by any one, only one of the qualifying circumstances enumerated. If the person kills another and the said killing does not amount to parricide or infanticide, and the said act of killing is not attended by any of the circumstances that are mentioned for the crime of murder, it is under Article 249 Homicide.

**Illustrations**

a. A brother killing his brother in the course of a fight is Homicide. Although they are legitimate brothers, although they are related by blood, their relationship is NOT in the direct line. It will be the crime of Homicide and NOT Murder.

b. A stepson killing his stepfather in the course of a fight is Homicide. It is not parricide because their relationship is not legitimate, it is a stepfather-stepson relationship.

c. Husband killing the wife, vice versa, the crime committed is Parricide. Even if they are not blood related, as long as they are legitimate spouses and they are legally married spouses, the crime committed is Parricide when one kills another.

**Q: The father and the son were having an argument. Ever since the father retired, the son managed the company. But since the son became the head of the company, the company began losing money, and now it is facing bankruptcy. So, there has been an argument between the father and the son. In the course of the said argument, the father slapped the son. The son got mad, he took his pistol and shot his father in the head. The father died. What crime is committed by the son?**
**A:** The son is liable for PARRICIDE. They are legitimate father and son. They are in the direct line. Their relationship is by blood.

**Q: What if the said son is illegitimate?**
**A:** The step-son is still liable for parricide because when it comes to parents and children, it can either be legitimate or illegitimate.

**Q: What if the said son is the step-father's step-son? (same set of facts)**
**A:** The step-son is liable for HOMICIDE. It is not Parricide because although they are related to each other, it is not by blood. The step-son is merely the legitimate son of the wife, but not of the step-father. Since their relationship is not by blood, it cannot be Parricide. It cannot also be Murder because it happened in the spur of the moment and the father was forewarned since there was a heated argument. The crime committed is Homicide.

**Q: What if he is an adopted son? (same set of facts)**
**A:** The crime committed is homicide. Because there was no blood relationship.

**NOTE:** There are some authors that say that it should be Parricide. But Prosec and Reyes both believe that the correct crime is homicide. The reason is because there is no blood relationship, so it cannot be parricide.

Although under the Family Code, the said adopted is considered as legitimate, and therefore he/she has the right of the legitimate child, still, there is no blood relationship. If you will look at the enumeration under Art. 246, except between spouses, there must be blood relationship. So, even if the adopted child is considered and deemed legitimate, still there is no blood relationship so it cannot amount to parricide. And you cannot interpret it because it will be unfavorable against the said adopted child. Parricide is reclusion perpetua to death, whereas, if he is an adopted child it may only be homicide or murder.

**Q: The husband, X, arrived home unannounced. Usually, the husband arrives home around 8:00 P.M., but this time he arrived early because he is not feeling well. So, about 3:00 P.M., he is already in the house. The house is very silent. So, he thought all along that his wife is not yet home. So, he used his spare key to open the door. Once he was inside, wanting to rest, he opened the master's bedroom. Upon opening the master's bedroom, he was shocked, he saw his own wife having sexual intercourse with his very own brother. He was mad. He was jealous. He was in pain. He took his licensed gun and he shot both his wife and his own brother. After killing them, he went to the police. He narrated what happened. After getting the narration of X, the police officers filed a complaint against X before the office of the public prosecutor. The complaint file is a violation of Art. 247 (Death under exceptional circumstances). If you were the public prosecutor, will you indict the husband, X, for the charge filed by the police?**
**A:**NO. If you are the public prosecutor, you have to indict the husband for parricide under Art. 246 because he killed his wife and also for the crime of homicide for having killed his own brother. It cannot be Art. 247. Art. 247 is not a felony. According to the SC, in *People v. Abarca.* Art. 247 is not a felony rather it is an absolutory cause, an exempting circumstance, a matter of defense on the part of the

accused. The SC said that the penalty of *Destierro* prescribed under Art. 247 is not in reality a penalty. The said Destierro is an act of protection on the part of the accused spouse. Protection from any retaliation coming from the relative of the victim. Hence, you cannot file a case for violation of Art. 247. So, the public prosecutor must file Parricide for the killing of the wife and Homicide for the killing of the brother.

**Q: Why not Parricide for the killing of the brother?**
**A:** Although they are related by blood, the relationship is not by direct line. They are collateral relatives. Hence, it cannot be Parricide.

**Q: Why not murder?**
**A:** It cannot be murder because it happened in the spur of the moment, none of the circumstances under Art. 248 attended the act of killing.

**Q: If you are the counsel of husband X, what is your client's defense?**
**A:** Art. 247. You have to prove that the act of killing took place under exceptional circumstances.

**Q: If you are the judge, how will you rule?**
**A:** If you are the judge, you have to convict husband X for Parricide for killing his wife and Homicide for killing his brother. However, since Art. 247 is present, the penalty to be imposed would only be Destierro. So, although the husband will be liable for parricide, the penalty to be imposed is not reclusion perpetua. The penalty to be imposed is not reclusion temporal for homicide. It is only Destierro under Art. 247.

Here, both stages are present:

1. That a legally married spouse surprises the other spouse in the actual act of sexual intercourse with another person; and

2. That the said legally married spouse kills or inflict serious physical injuries upon any or both of them while in the actual act of sexual intercourse or immediately thereafter.

The husband X surprises the spouse in the actual act of sexual intercourse with his brother. And, while they are in the actual act of sexual intercourse, husband X killed them. Since both stages are present, the judge will consider Art. 247.

**Q: When the husband arrived home, he was surprised and shocked to find his wife in the actual intercourse with the nanny of their children. Mad. Angry. Jealous. In pain. He stabbed both the wife and the nanny of his children. Is Art. 247 applicable in this case? (BAR Q)**

**A:** NO. Here, the first stage is not present. The first stage states that a legally married spouse surprises the other spouse in the actual act of sexual intercourse with another person. When you say sexual intercourse, it means the penetration of the penis to the vagina.

Here, the wife and the nanny are both women. There is no penis that will penetrate the vagina. Therefore, it cannot be considered sexual intercourse.

**NOTE:** Even if the bar examiner in the problem used the phrase 'sexual intercouse', it could only be considered as sexual act because for it to be considered as sexual intercourse, there must be penetration. And there cannot be penetration between the wife and the nanny. Hence, Art. 247 is not applicable.

The said husband should be charged with Parricide for having killed his wife and Homicide for having killed the Nanny since the killing happened in the spur of the moment.

Art. 247 is not applicable but he can be given as a mitigating circumstance.

**Q: The husband has been hearing rumors that his wife is having an affair with their neighbor. At first, he did not believe it but even his bestfriend told him. Many allegedly have seen his wife and the said neighbor together. To find the truth, the husband secretly followed his wife. The wife checked-in in a motel. Minutes later, the neighbor checked-in also at the same motel. The said husband was just waiting. After an hour, the said neighbor had left the said motel. Minutes later, his wife also left the said motel. When both were already gone, the husband inquired at the lady in the front desk of the hotel. He found out that his wife and the neighbor are regular customers and they always go there every Wednesday at the same time without fail. They always use the same room which is always reserved for them every Wednesday.**

**The next Wednesday, the husband went ahead to the said motel. He asked the lady at the front desk if he could enter the room reserved for his wife but the lady refused. However, when he offered money in exchange, the lady agreed.**

**The husband then hid inside the cabinet of the room and waited for his wife to arrive. Minutes later, the wife arrived. Another minute later, the neighbor arrived. He waited until the actual act of sexual intercourse. When**

**they were already in the actual act of sexual intercourse, the husband came out from his hiding and stabbed the both of them using the knife he brought along.**

**The husband went to the police and narrated what happened. The police officers filed two complaints: Parricide for having killed the wife and murder for having killed the neighbor. If you are the public prosecutor will you indict the husband as charged by the police?**

**A:** YES. Parricide for having killed the wife and murder for having killed the neighbor.

Parricide because of the relationship.

Murder because of the qualifying aggravating circumstance of treachery. The said husband deliberately adopted the ways, means and methods employed by him in order to kill the said neighbor. And because of that, the neighbor was left with any defense. Who would have known that someone is hiding inside the cabinet and will come out at the act of their sexual intercourse? Definitely he is without any defense.

The beneficial provision of Art. 247 would not lie in favor of the husband. The said beneficial provision of Art. 247 will not lie because there is no 'surprise' in this case. He planned it. He waited for their arrival.

## DEATH CAUSED IN A TUMULTUOUS AFFRAY (ART. 251)

***Art. 251. Death caused in a tumultuous affray.*** – When, while several persons, not composing groups organized for the common purpose of assaulting and attacking each other reciprocally, quarrel and assault each other in a confused and tumultuous manner, and in the course of the affray someone is killed, and it cannot be ascertained who actually killed the deceased, but the person or persons who inflicted serious physical injuries can be identified, such person or persons shall be punished by *prision mayor.*

If it cannot be determined who inflicted the serious physical injuries on the deceased, the penalty of *prision correccional* in its medium and maximum periods shall be imposed upon all those who shall have used violence upon the person of the victim.

**ELEMENTS:**

1. There be several persons;
2. They did not compose groups organized for the common purpose of assaulting and attacking each other reciprocally;
3. These several persons quarreled and assaulted one another in a confused and tumultuous manner;
4. That someone was killed in the course of the affray;
5. It cannot be ascertained who actually killed the deceased; and,
6. The person or persons who inflicted serious physical injuries or who used violence can be identified.

## PHYSICAL INJURIES INFLICTED IN A TUMULTUOUS AFFRAY (ART. 252)

***Art. 252. Physical injuries inflicted in a tumultuous affray.*** – When in a tumultuous affray as referred to in the preceding article, only serious physical injuries are inflicted upon the participants thereof and the person responsible thereof cannot be identified, all those who appear to have used violence upon the person of the offended party shall suffer the penalty next lower in degree than that provided for the physical injuries so inflicted.

When the physical injuries inflicted are of a less serious nature and the person responsible therefor cannot be identified, all those who appear to have used any violence upon the person of the offended party shall be punished by *arresto mayor* from five to fifteen days.

**ELEMENTS:**

1. That there is a tumultuous affray;
2. That a participant or participants therein suffered serious physical injuries or less serious physical injuries; and,
3. It cannot be ascertained who inflicted the serious or less serious physical injuries but the person who appears to have used any form of violence upon the person of the offended party can be identified.

**When Homicide, Murder or Physical Injuries**

Even if the act of killing or the act of inflicting serious or less serious physical injuries happened during a tumultuous affray but the actual perpetrator of the crime or offender can be identified by a witness, then Articles 251 and 252 will NOT apply. Therefore, the crime will be

Homicide, Murder, or Physical Injuries under Article 253 to 256.

**When Art. 251 applies**
In case of death in a tumultuous affray, the victim who died or the deceased can be any person. He can be a participant in the tumultuous affray, or he can be a total stranger to it.

**When Art. 252 applies**
On the other hand, in case of physical injuries inflicted in a tumultuous affray, the law specifies a participant or some participants thereof. Therefore, it is necessary that the person who was inflicted with serious or less serious physical injuries must be a participant or the participants in the said tumultuous affray.

**Common in Both Arts. 251 and 252**
In both instances, the actual perpetrator of the crime cannot be ascertained.

**NOTE:** In the case of Arts. 251 and 252, the crime will only arise if the actual perpetrator of the crime cannot be identified. Even if the killing took place in tumultuous affray or even if the infliction of serious or less serious physical injury took place in a tumultuous affray, if the act of the perpetrator of the crime can be identified or someone witnessed it, then the proper charge is not Art. 251 or Art. 252. Rather, it may be murder, homicide, serious physical injury or less serious physical injury.

**Art. 251 v. Art. 252**

| ART. 251 | ART. 252 |
|---|---|
| The victim can be any person. He may be a participant in the said affray. He can be a stranger to the affray or he may be only passing by. | The law, however, is specific. It is necessary that the victim is a participant in the said affray. |

**Q: X was sleeping. He was awakened by loud noises outside the house. And so, he opened the window. Upon opening the window, he was shocked. He saw many people clapping, some booing. And the reason is, there was a free for all fight.**

**X was not satisfied watching in the window. He wanted to go near the fight. And so he went outside and he went near to the said fight, watching it with excitement. But minutes later, X fell on the ground. He had stabbed wounds in the chest. He asked the people for help. He was brought to the hospital, however, he perished.**

**Upon the investigation of the police officer, no one knows who stabbed X. According to the people who were watching the free for all fight, they were looking at the fight. Hence, they did not see who stabbed X. In fact, they did not even know that X was there watching. They only realized that he was there when he suddenly begged for help. No one can identify who stabbed him. But one of the people watching the fight told the police that he did not see who stabbed X but he saw someone punch X. He saw that Y punched X two times. But he was punched in the face and not in the chest. However, he reiterated that he did not see who stabbed X. Who will be charged for the death of X?**
**A:** It is Y and the case to be filed is Art. 251, death caused in a tumultuous affray. X died in the said tumultuous affray. It cannot be ascertained who killed him but the person who uses any form of violence upon him was identified. Therefore, Y shall be charged and the case to be filed is Art. 251, death caused in a tumultuous affray.

**Q: X is not happy being a mere watcher of the said fight. X wanted to experience how it is to be in the free for all fight, and so he entered the fight. In entering the said fight, X began attacking all participants in the said free for all fight. X attacked anyone near to him and he was being attacked too in the different parts of his body. Until there were three (3) strong punches in his right eye. He shouted in pain. He was screaming and then he left. While leaving he said he could not see in his right eye anymore. So, he was brought to the hospital and he was examined. His right eye was damaged and it needed an operation.**

**When he was asked by the police who punched him in his right eye, he said he cannot recall since there are punches from left and right. But he can recall that Y punched him but not in the eyes rather in the chest. Who shall be charged for the serious physical injury sustained by X and what will be the crime charged?**

**A:** Y will be charged and the crime charged is not physical injury but Physical Injuries inflicted in Tumultuous Affray under Art. 252 of the RPC. Since the person who inflicted the serious physical injury on X cannot be identified and since X is a participant in the said tumultuous affray. When he sustained the said serious physical injury, then the person who used any form of violence upon him shall be the one charged, and that is Y.

## GIVING ASSISTANCE TO SUICIDE (ART. 253)

***Art. 253. Giving assistance to suicide.*** **–** Any person who shall assist another to commit suicide shall suffer

the penalty of prision mayor; if such person leads his assistance to another to the extent of doing the killing himself, he shall suffer the penalty of reclusion temporal.

However, if the suicide is not consummated, the penalty of *arresto mayor* in its medium and maximum periods, shall be imposed.

**Two ways of committing the crime:**

1. By assisting another to commit suicide whether the suicide is consummated or not; or
2. By lending assistance to another to commit suicide to the extent of doing the killing himself.

In case of giving assistance to suicide, the offender can commit it by giving the said person who wanted to take his own life, any moral support, the instrument to be used in the act of committing the suicide.

If the said victim survive, only the one who assisted him become liable because suicide is not a felony under the RPC and not an offense in any Philippine law.

If the person giving assistance to suicide did it up to the extend of doing the killing, the penalty is the same as homicide. It is *reclusion perpetua.*

**NOTE FROM PY TRANS:** For Art. 253 to lie, it is necessary that the initiative to take one's life must come from the victim. It must not come from the accused. The accused merely assisted him in his/her desire to commit the act of suicide.

**Q: X is sick with a terminal disease and he is only breathing through a machine. He does not want this kind of life, only breathing and being taken care of by everybody, and most of all, so much expense for his family, he did not want to be a burden to his family. So, one time, when her husband arrived, he told the husband, "I am already 80 years old, I have lived a full good life, raised good children, so it is time for me to go. I am having a hard time, I am in pain, and I am only breathing through this machine. Please remove this tube that gives life to me." The husband refused and said that, "As long as I'm here, I will take care of you". But the wife said that she has been a burden to everyone for months. She kept on begging the husband. The wife was crying in pain. The husband then removed the tube that gives life to the wife and the wife died. What crime is committed by the said husband?**

**A:**The husband is liable for giving assistance to commit suicide. Giving assistance to suicide is not parricide because the intent to take her own life came from the said woman, came from the said deceased, she only induced, requested, and asked the help of the husband so that she will already die. Under Art. 253, there are two ways of giving assistance to suicide. In this case, the husband is liable in the second act. He lends assistance to killing of the said wife in the act of committing suicide by doing the killing himself. For that, the penalty is higher, the penalty for giving assistance to suicide under the second act is reclusion temporal, when it is the offender who did the act of killing.

## ILLEGAL DISCHARGE OF FIREARMS (ART. 254)

***Art. 254. Discharge of firearm. –***

(a) Any person who shall shoot at another with any firearm shall suffer the penalty of prision correccional in its minimum and medium periods, unless the facts of the case are such that the act can be held to constitute frustrated or attempted parricide, murder, homicide, or any other crime for which a higher penalty is prescribed by any of the articles of this Code.

(b) Any person who shall wilfully and indiscriminately discharge any firearm or other device that may not have been designed as firearm, but can be functionally used as a firearm, shall suffer the penalty of arresto mayor in its maximum period, unless the facts of the case can be held to constitute any other offense for which a higher penalty is prescribed.

(c) If the person who commits the offense provided in this Article is a member of the military and military auxiliary agencies, or law enforcement agencies, authorized to bear firearms and such discharge is not in the performance of official duties, the penalty one degree higher than that prescribed above shall be imposed and the offender may be held administratively liable.

In addition to the penalties imposed herein, any firearm license or permit issued in favor of the offender shall be summarily cancelled, and the offender shall be perpetually disqualified from being granted any firearm license or permit. *(as amended by RA No 11926)*

**ELEMENTS:**

1. That the offender discharges a firearm against or at another person; and
2. That the offender has no intention to kill that person.

Under Article 254, the offender aimed a firearm at another, discharged it, absent an intent to kill. His intention was only to intimidate, to threaten the said person. There is no intent to kill the said person.

**Q: It is New Year. Police officer X wanted to welcome the new year with a Bang! So, he went to the terrace of their house. He pulled out his service pistol and welcomed the new year by firing indiscriminately in the air. What crime is committed?**

**A:** Officer X is liable for Illegal Discharge of Firearms under Art. 254.

**NOTE:** Art. 155 (Alarms and Scandals) and Art. 254 (Discharge of Firearms) have already been amended by R.A. No.11926. Based on the amendment, the act of discharging firearms, even to cause public disorder, is no longer alarms and scandals under Art. 155. It is now under Art. 254, illegal discharge of firearms.

So, under Art. 254, as amended by R.A. No. 11926, the act of discharging of firearms causing injury to another would arise to illegal discharge of firearms; provided, it cannot amount to attempted homicide, attempted parricide, attempted murder.

The act of indiscriminately firing is also an illegal discharge of firearms under R.A. No. 11926. If the offender is a public officer, as in this case, the penalty is higher.

## INFANTICIDE (ART. 255)

***Art. 255. Infanticide.*** **–** The penalty provided for parricide in Article 246 and for murder in Article 248 shall be imposed upon any person who shall kill any child less than three days of age.

If the crime penalized in this article be committed by the mother of the child for the purpose of concealing her dishonor, she shall suffer the penalty of prision mayor in its medium and maximum periods, and if said crime be committed for the same purpose by the maternal grandparents or either of them, the penalty shall be reclusion temporal. *(as amended by Republic Act No. 7659, [December 13, 1993]).*

**ELEMENTS:**

1. A child was killed;
2. The deceased child was less than three days (72 hours) of age; and,
3. The accused killed the said child.

Infanticide is committed by ANY PERSON who kills a child less than three (3) days old or less than 72 hours. It is immaterial who the offender is. The offender may be the parents of the child or a total stranger.

**<u>Age is Controlling</u>**

In infanticide, it is the age of the victim that is controlling. The baby, the infant, must be less than three (3) days or less than 72 hours.

**Concealment of Dishonor**

- ➔ If it is the mother who kills her own baby less than 3 days old and she did so to conceal her dishonor, such concealment of dishonor is deemed a privilege mitigating circumstance because the penalty shall be lower by two degrees. From reclusion perpetua, the penalty will only become prison mayor.
- ➔ If the said child less than 3 days old is killed by the child's maternal grandparents to conceal the dishonor of the mother, it is also considered a privilege mitigating circumstance but this time, the lowering of the penalty is only one degree. The penalty becomes *reclusion temporal*.

**Summary:**

1. If the killing is done by the mother to conceal her dishonor, the penalty is lowered from reclusion perpetua to prison mayor (2 degree lower); and

2. If the killing is done by the maternal grandparents of the child to conceal the dishonor of the mother of the child the penalty is lowered from reclusion perpetua to reclusion temporal (1 degree lower).

## INTENTIONAL ABORTION (ART. 256)

***Art, 256. Intentional abortion.* –** The penalty provided for parricide in Article 246 and for murder in Article 248 shall be imposed upon any person who shall kill any child less than three days of age.

If the crime penalized in this article be committed by the mother of the child for the purpose of concealing her dishonor, she shall suffer the penalty of prision mayor in its medium and maximum periods, and if said crime be committed for the same purpose by the maternal grandparents or either of them, the penalty shall be reclusion temporal. *(as amended by Republic Act No. 7659, [December 13, 1993]).*

Under Arts. 256, 257, 258, and 259, we have Abortion.

1. Under Art. 256, we have Intentional Abortion;
2. Under Art. 257, we have Unintentional Abortion;
3. Under Art. 258, we have Abortion Practiced by the Woman Herself or her Parents; and
4. Under Art. 259, we have Abortion Practice by a Physician or Surgeon.

Although we have four (4) Arts. on Abortion, we only have two (2) kinds of Abortion:

1. Intentional Abortion; and
2. Unintentional Abortion.

In case of Intentional Abortion, the intent of the offender is against the fetus. The offender wanted to kill the fetus inside the womb of a pregnant woman. The offender wanted to expel the fetus from the womb of the said pregnant woman.

**ELEMENTS:**

1. There is a pregnant woman;
2. Violence is exerted, or drugs or beverages be administered, or that the accused otherwise acts upon such pregnant woman;
3. As a result of the use of violence or drugs or beverages upon her, or any other act of the accused, the fetus dies, either in the womb of after having been expelled therefrom; and
4. The abortion is intended.

**There are three (3) ways of committing Intentional Abortion**

1. By exerting violence upon the person of the pregnant woman in order to expel the fetus from her womb; or

2. By acting without violence, without the consent of the said pregnant woman, that is by administering abortive drugs or beverage on the said pregnant woman without her consent; or

3. By acting without violence, with the consent of the said pregnant woman, that is by administering abortive drugs or beverage on the said pregnant woman with her consent.

Again, the intent of the offender is to kill. Therefore, if the fetus did not die, despite the fact that all acts of execution to bring about abortion had been by the offender, the crime committed is Frustrated Intentional Abortion.

## UNINTENTIONAL ABORTION (ART. 257)

***Art. 257. Unintentional abortion.* –** The penalty of prision correccional in its minimum and medium period shall be imposed upon any person who shall cause an abortion by violence, but unintentionally.

**ELEMENTS:**

1. There is a pregnant woman;
2. Violence is used upon such pregnant women without intending an abortion;
3. The violence is intentionally exerted; and
4. As a result of the violence, the fetus dies, either in the womb or after having been expelled therefrom.

In unintentional abortion, there is only one way of committing the crime; that is by exerting physical force or physical violence upon the person of a woman who happens to be pregnant; and by reason thereof, abortion was caused unintentionally.

In case of intentional abortion, the said offender has no intent against the fetus. The intent of the offender is against the woman. The offender may or may not know that the offender is pregnant, but because of the physical force that he has exerted against the woman, abortion was caused unintentionally.

If despite the physical violence employed by the accused to the said woman, the fetus did not die, there is no crime against the fetus. There is no such thing as frustrated unintentional abortion. Because in the first place, the offender has no intent against the fetus, the intent is against the woman.

**Intentional Abortion vs. Unintentional Abortion**

| INTENTIONAL ABORTION | UNINTENTIONAL ABORTION |
|---|---|
| The intent of the offender is against the fetus. | The intent of the offender is against the woman, he has no intent to kill the fetus, the intention is against the woman who happens to be pregnant, and because of the physical force and violence inflicted on the said woman, the fetus was expelled unintentionally. |
| To bring about intentional abortion (Articles 256, 258, and 259), it is necessary that the fetus died in order to bring about a consummated intentional abortion.<br><br>If the fetus did not die despite the fact that the offender already performed all the acts of execution, the crime committed is frustrated intentional abortion because to bring about intentional abortion, the fetus must die. | If despite the physical violence or force inflicted by the offender against the pregnant woman, the fetus did not die, there is no crime against the fetus.<br><br>There is no such crime as attempted or frustrated unintentional abortion, because in an unintentional abortion, the offender has no intent against the fetus. The intent of the offender is only against the woman who happens to be pregnant. |
| Modifying circumstances are considered by the Court in imposing the penalty. | Modifying circumstances is immaterial unless the law provides otherwise. |

**Q: X became pregnant. She informed her boyfriend. Since then the boyfriend left. X wanted to kill herself. She was already 3 months pregnant. So she bought poison and took the said poison. However, she did not die, instead, it was the fetus who died. She was charged with abortion practice by the woman herself under Art. 258. Is she liable as charged?**
**A:** NO. She has no intent against the fetus. Her intention is to take his own life. Absent the intent to kill the fetus inside her womb, she cannot be liable under Art. 258; neither she can be liable under Art. 4(1) or the proximate cause doctrine because taking her own life is not a felonious act in Philippine jurisdiction; therefore, she cannot be held criminally liable for the resulting felony although different from what she intended because in the first place, she was not committing a felonious crime.

**Q: X is living in a far flung barangay in Visayas. It is a small community far from town. The friends and the neighbor of X told X that she looked pregnant. X said that she is not pregnant because she has no boyfriend. The mother overheard it. The mother confronted X but X denied it. But as days go by, the tummy of X gets bigger and bigger. So, to stop these rumors, the mother brings X to the health center. And at the health center, it was confirmed that X is pregnant. X shouted that it is not true and it is impossible.**

**Months passed and X delivered the baby. X, upon seeing her baby wanted to kill the baby but the mother said 'do not touch him, he will be our companion in life'. So, she did not touch the baby. The following day, however, the mother went to the market to buy things for the baby.**

**After an hour, the mother was back but X and the baby were gone. When X arrived, she looked so tired, the baby was no longer with her. When the mother asked where the baby was, X did not answer.**

**The mother went to the forest and the mother found where the baby was buried. What is the crime committed by X?**

**A:** X is liable for Infanticide. X killed the baby who is less than 3 days old or less than 72 hours old.

**Q: What if the act of killing took place when the baby is already three days old?**
**A:** X is liable for Parricide. It is no longer Infanticide because the baby is no longer less than 3 days old. So, now, the crime committed is Parricide based on relationship.

In the first problem, since the crime committed is infanticide and she did so to conceal her dishonor, such concealment of honor will mitigate the criminal liability. However, in the second problem, when the crime committed is already Parricide, concealment of dishonor is no longer a mitigating circumstance.

**Parricide v. Infanticide**

| PARRICIDE | INFANTICIDE |
|---|---|
| Relationship is controlling - the said offender must be related to the offended party such as father, mother, child – whether legitimate or illegitimate, legitimate other ascendants, legitimate other descendants, or the legitimate spouse. | It is the age of the victim (less than three (3) days old, less than 72 hours) that is controlling. |
| Concealment of dishonor is not a mitigating or extenuating circumstance. | Concealment of dishonor is a mitigating or extenuating circumstance. |
| The offender must be related. | The offender can be any person. |
| In case or conspiracy with someone who is not a relative, conspiracy will not lie. | Conspiracy will lie even with strangers because it is the age of the victim or child that is controlling. |

**Q: (same facts) The mother brought X to the health center and it was discovered that X was pregnant. X was screaming and denying that it was true. Since then, X has been crying every night. She has been depressed. She could not sleep and kept on crying. And so, when the baby is about 7 months, there is already pain in the tummy of X. So, she needs to deliver the baby prematurely. The baby was delivered. The baby has an intra-uterine life of less than 7 months.**

**When the baby was out, the mother told X that is just going to get water for the said baby to clean the baby. The mother went to the kitchen to boil some water but when she came back, the baby was no longer alive. X strangled the said baby. What is the crime committed by X?**

**A:** X is liable for intentional abortion.

If the baby has an intrauterine life of less than 7 months, and the baby was killed or died within 24 hours, the crime committed is abortion. If the said baby is killed or died after 24 hours but within less than 3 days, the crime committed is Infanticide.

Here, since the baby was killed right after the delivery, right after the mother went to the kitchen to boil water, the crime committed is intentional abortion.

**Abortion v. Infanticide**

| ABORTION | INFANTICIDE |
|---|---|
| The victim is still a fetus. | The victim is already a person. |
| The umbilical cord is not yet cut, the said fetus still draws life from the said mother. | The umbilical cord is already cut off and the baby is alive. |
| If the baby has an intrauterine life of less than seven (7) months and the baby is killed within 24 hours, it is abortion. | If the baby has an intrauterine life of less than seven (7) months and the baby is killed after 24 hours, it is infanticide. |

**Q: A woman was waiting for a tricycle going to the public market. Suddenly, Y, a neighbor of X, appeared, visibly angry. He confronted X, asking why she had been telling other people that Y's daughter had an abortion. He demanded to know where she got such information and why she was spreading it about their family.**

**X denied the accusation; however, Y claimed he had evidence that X had been texting others about his daughter's abortion. Despite being shown the evidence, X continued to deny it. This enraged Y, who lost control and punched X in the chest. X fell to the ground and began bleeding. Unknown to Y, X was four months pregnant.**

**X was rushed to the hospital. Her husband arrived shortly after and was told that their first-born had died. While X survived, she needed to stay in the hospital for 35 days. What are the crimes committed by Y?**

**A:** In so far as X is concerned, the crime committed is

Serious Physical Injury under Art. 263, because she will be needing medical intervention for more than 30 days.

In so far as the fetus is concerned, the crime committed is Unintentional Abortion. Y didn't know that X is pregnant. But because he punched X to the chest, X fell on the ground which resulted in an unintentional abortion.

**Q: What is the case/s that should be filed against Y?**
**A:** The said acts: Serious Physical Injury and Unintentional Abortion were both less grave felonies resulting from a single act of punching; therefore, there is a complex crime of Serious Physical Injury with Unintentional Abortion under Art. 257.

**Q: What if, in the same problem, the baby survived despite significant blood lost. What is/are the crime/s committed?**
**A:** Y is only liable for injury that he inflicted on the said women, which is Serious Physical Injury. There is no crime, in so far as the fetus is concerned because despite the physical violence he exerted upon the pregnant woman, the baby did not die. There is no such crime as frustrated unintentional abortion.

**Q: X is already nine months pregnant. She was waiting for a ride when her neighbor, Y, confronted her. Same confrontation. Same denial as the previous problem.**

**The neighbor got pissed off and punched her and she was hit near the breast. She fell to the ground and started to bleed. When Y saw that he was bleeding, Y immediately left. X was calling for her help but no one came, so crawled towards the house. As she was crawling towards the house, Y came back. This time Y is armed with a bolo, and seeing that X is crawling towards the gate, he calls on X. X turned around. When X is facing Y, Y hacked X. Both X and the baby died. What is/are the crime/s committed by Y?**

**A:** In so far as the woman is concerned, it is murder. In so far as the baby is concerned, it is intentional abortion.

It is murder because the act of killing is qualified by use of superior strength. The woman is crawling being pregnant. She is so weak; and here comes Y, came back with a bolo. There was a notorious inequality of forces; and Y took advantage of his superiority of strength in order to kill the pregnant woman.

In so far as the baby is concerned, the crime committed is intentional abortion. The man is not satisfied in just killing the said woman. He could have hacked the woman when the woman was crawling, but he called on the woman in order for her to face him. And only then, he hacked her. Therefore, the intention of Y is not only to kill the said woman but also to kill the baby inside her womb.

Since these two felonies are a product of a single act of hacking, again, Art. 48 applies. We have a complex crime of Murder with Intentional Abortion.

**Q: The husband and the wife were having a fight over a financial matter. The said husband lost control of himself because the wife kept answering back. The husband stabbed the wife, who was pregnant at that time. Since the husband stabbed the wife on the tummy, she fell. Shocked with what he did, he brought the wife to the hospital. But the wife and the fetus died. The husband is now being prosecuted for the complex crime of parricide with intentional abortion. Is he liable as charged?**

**A:** NO, it is Parricide with Unintentional Abortion. The Supreme Court said it is Parricide because the act of stabbing the wife, although the husband said that he has no intention to kill as it was during a heated argument, is a felonious act therefore, he is liable for the resulting felony – death of the wife. Thus, Parricide.

Insofar as the fetus is concerned, the Supreme Court said that absent any further evidence that he has the intention to kill the baby inside the womb of his very own wife, it would be Unintentional Abortion. The act of stabbing happened in a spur of the moment, in the heated argument. The sad stabbing was inflicted on the wife. There was no intention to kill the said fetus. The fetus died unintentionally. Therefore, it is Parricide with Unintentional Abortion.

**NOTE:** The penalty is the same, the only difference is the nomenclature of the crime. It matters in the bar, but insofar as the penalty, it does not matter because the penalty will be for parricide, the penalty for the most serious crime in its maximum period.

## ABORTION PRACTICED BY THE WOMAN HERSELF OR HER PARENTS (ART. 258)

***Art. 258. Abortion practiced by the woman herself of by her parents.*** - The penalty of prision correccional in its medium and maximum periods shall be imposed upon a woman who shall practice abortion upon herself or shall consent that any other person should do so.

Any woman who shall commit this offense to conceal

her dishonor, shall suffer the penalty of prision correccional in its minimum and medium periods.

If this crime be committed by the parents of the pregnant woman or either of them, and they act with the consent of said woman for the purpose of concealing her dishonor, the offenders shall suffer the penalty of prision correccional in its medium and maximum periods.

**ELEMENTS:**

1. There is a pregnant woman who has suffered an abortion;
2. The abortion is intended;
3. The abortion is caused by –
    a. the pregnant woman herself;
    b. any other person with her consent; or
    c. any of your parents, with her consent; and
4. For the purpose of concealing her dishonor.

## ABORTION PRACTICED BY A PHYSICIAN OR MIDWIFE AND DISPENSING OF ABORTIVES (ART. 259)

***Art. 259. Abortion practiced by a physician or midwife and dispensing of abortives. –*** The penalties provided in Article 256 shall be imposed in its maximum period, respectively, upon any physician or midwife who, taking advantage of their scientific knowledge or skill, shall cause an abortion or assist in causing the same.

Any pharmacist who, without the proper prescription from a physician, shall dispense any abortive shall suffer arresto mayor and a fine not exceeding One hundred thousand pesos (P100,000).

**ELEMENTS:**

**Physician or Midwife**

1. There is a pregnant woman who suffered an abortion;
2. The abortion is intended;
3. The offender, who must be a physician or midwife, causes or assists in causing, the abortion;
4. Said physician or midwife takes advantage of his or her scientific knowledge or skill.

**Pharmacist**

1. The offender is a pharmacist;
2. There is no proper prescription from a physician; and,
3. The offender dispenses any abortive.

If abortives were dispensed by a pharmacist without any prescription coming from a physician, the pharmacist is liable under Art. 259.

**NOTE FROM PY TRANS:** This does not apply to that viral case in social media where a pharmacist did not want to sell a medicine because there was no prescription. Art. 259 is not the applicable law; the applicable law is about medicine. The reason is that, it is not an abortive that is being bought but rather, a medicine. The pharmacist did not want to sell the medicine because there was no prescription, but the pharmacist is correct.

## DUEL (ARTS. 259-260)

***Art. 259. Responsibility of participants in a duel. –*** The penalty of reclusion temporal shall be imposed upon any person who shall kill his adversary in a duel.

If he shall inflict upon the latter physical injuries only, he shall suffer the penalty provided therefor, according to their nature.

In any other case, the combatants shall suffer the penalty of *arresto mayor,* although no physical injuries have been inflicted. The seconds shall in all events be punished as accomplices.

***Art. 261. Challenging to a duel. –*** The penalty of prision correccional in its minimum period shall be imposed upon any person who shall challenge another, or incite another to give or accept a challenge to a duel, or shall scoff at or decry another publicly for having refused to accept a challenge to fight a duel.

Under Art. 260 and 261, we have a duel.

A duel is a combat fought between two persons based on a previous agreement to engage in a fight.

**ELEMENTS:**

1. There must be a previous agreement to engage in a fight between two (2) or more persons;
2. There must be two (2) or more seconds for each combatant; and,
3. The weapons to be used and the terms of the fight must be agreed upon by the seconds.

If these three elements are present, that fight is considered as a duel.

In case of a duel, a person merely accepting a challenge to a duel – a person merely participating in a duel is already criminally liable even if he did not yet hurt the other person. The mere act of participating in a duel would make the offender already criminally liable.

**In comparison with Tumultuous Affray**
Unlike in tumultuous affray under Art. 251 and 252, there is no criminal liability in a mere participation in the tumultuous affray. Criminal liability will only arise if someone is killed or a participant is inflicted with Serious or Less Serious Physical Injury. But in a duel, a mere participation, a mere acceptance to a challenge to a duel will make the offender already criminally liable.

## MUTILATION (ART. 262)

***Art. 262. Mutilation.*** **–** The penalty of reclusion temporal to reclusion perpetua shall be imposed upon any person who shall intentionally mutilate another by depriving him, either totally or partially, or some essential organ of reproduction.

Any other intentional mutilation shall be punished by prision mayor in its medium and maximum periods.

**Two (2) Ways of Committing Mutilation**
1. By intentionally mutilating another to deprive him of any organ necessary for reproduction; or
2. By intentionally mutilating another to deprive him of any other part of his body.

**NOTE**: These two ways are not included in the discussion but lifted from previous notes.

**Q: X and Y are husband and wife. Despite years of being married, the husband still has many mistresses. He has eyes for other women. The wife, despite all the pains and sufferings, would tolerate everything because she does not want to be separated from her husband. She does not want her children to be without a father and she cannot live without her husband.**

**It is now their 15th year anniversary. The wife told the husband to go home early. She prepared her husband's favorite dishes. When the husband arrived home earlier than usual, all his favorite dishes were on top of the dining table. The husband and wife ate.The wife also prepared hard drinks for the husband. The wife kept pouring hard drinks for the husband until the latter was so drunk, he could not even lift his head from the table.**

**The wife accompanied her husband to the bedroom and placed him on top of the bed. The wife went to the kitchen and took the knife that she sharpened earlier. She unzipped the pants of her husband and cut his penis. What crime is committed by the wife? (same question from 2024 trans)**

**A:** The wife is liable for MUTILATION under Art. 262. In mutilation the offender deliberately cuts off or severs the part of the body of a person.

If the part of the body that is cut-off or that is severed from the body of another is necessary for reproduction, it is castration. And the penalty is *reclusion temporal* to *reclusion perpetua.*

Mutilation is a crime that requires deliberate intent. It cannot be committed by means of imprudence, negligence, lack of foresight, or lack of skill. It can only be committed with deliberate intent to mutilate or to cut-off a body part of a person.

Any other part of the body can also be cut-off.

**Q: What if what has been cut-off is the hair or the nails, is it mutilation? For example, X has beautiful long hair. Y cuts the hair so short. What is the crime committed by Y?**

**A:** If Y's intent is to annoy X, it is Unjust Vexation. If Y's intent is to defame or embarrass X. The crime is Slander by Deed. So, it depends on his intent. But it is not Mutilation because the hair may grow back.

The same is true with the nails.

**Q: X has very long colored nails. He treasures her long colored nails. Y cuts the nails on the index finger. X cuts the nails on the ring finger. The nails on the other fingers were not cut. What is the crime committed?**
**A:** Again, it will depend on the intent. If the intent is to embarrass, then it is Slander by Deed. If the intent is to annoy, then it is Unjust Vexation. But not mutilation because the nails will grow again.

**Q: X and Y are fighting, X is losing the fight. X is a small man. X went to the back of Y and climbed on the back of Y. While X is climbing, Y keeps on punching both sides of the body of X. X was so mad. X bit the right ear of Y. He bit it so hard that the portion of the ear was cut off. Is X liable to mutilation?**

**A:** NO. There was no deliberate intent to cut-off the ear. The crime committed is Serious Physical Injuries under the 3rd category because it caused deformity on the part of Y.

## PHYSICAL INJURIES

As we have said in Book One, Physical Injuries are formal crimes. They have no attempted and frustrated stages. Physical Injuries are punished based on the result.

**Three (3) Kinds of Physical Injuries**

1. Serious physical injuries;
2. Less serious physical injuries; and
3. Slight physical injuries.

### a. SERIOUS PHYSICAL INJURY (ART. 263)

***Art. 263. Serious physical injuries.* –** Any person who shall wound, beat, or assault another, shall be guilty of the crime of serious physical injuries and shall suffer:

1. The penalty of prision mayor, if in consequence of the physical injuries inflicted, the injured person shall become insane, imbecile, impotent, or blind;

2. The penalty of prision correccional in its medium and maximum periods, if in consequence of the physical injuries inflicted, the person injured shall have lost the use of speech or the power to hear or to smell, or shall have lost an eye, a hand, a foot, an arm, or a leg or shall have lost the use of any such member, or shall have become incapacitated for the work in which he was therefor habitually engaged;

3. The penalty of prision correccional in its minimum and medium periods, if in consequence of the physical injuries inflicted, the person injured shall have become deformed, or shall have lost any other part of his body, or shall have lost the use thereof, or shall have been ill or incapacitated for the performance of the work in which he as habitually engaged for a period of more than ninety days;

4. The penalty of arresto mayor in its maximum period to prision correccional in its minimum period, if the physical injuries inflicted shall have caused the illness or incapacity for labor of the injured person for more than thirty days.

If the offense shall have been committed against any of the persons enumerated in Article 246, or with attendance of any of the circumstances mentioned in Article 248, the case covered by subdivision number 1 of this Article shall be punished by reclusion temporal in its medium and maximum periods; the case covered by subdivision number 2 by prision correccional in its maximum period to prision mayor in its minimum period; the case covered by subdivision number 3 by prision correccional in its medium and maximum periods; and the case covered by subdivision number 4 by prision correccional in its minimum and medium periods.

The provisions of the preceding paragraph shall not be applicable to a parent who shall inflict physical injuries upon his child by excessive chastisement.

**How committed**

1. By wounding;
2. By beating;
3. By assaulting; or
4. By administering injurious substance

**Acts Punished as Serious Physical Injuries**

1. When the injured person becomes insane, imbecile, impotent, or blind as a consequence of the injuries inflicted on him.

   **NOTE:** "Impotent" means the person loses his ability to copulate. "Blind" means both eyes could not see.

2. When the injured person:
   a. Loses the use of speech, the power to hear or to smell, or an eye, a hand, a foot, an arm, or a leg;
   b. Loses the use of this part of his body; or
   c. Becomes ill or incapacitated for the work in which he was habitually engaged;

3. When the injured person:
   a. Becomes deformed;
   b. Loses any other part of his body;
   c. Loses the use of this part of his body; or
   d. Becomes ill or incapacitated for the work in which he was habitually engaged for a period of more than 90 days.

**NOTE:** The distinction between 30 days and 90 days is only as to penalty but the moment by reason of injuries sustained by the offended party, he becomes ill or incapacitated form the work in which he is habitually engaged for more than 30 days, it is already Serious Physical Injuries

4. When the injured person becomes ill or incapacitated for the work in which he was habitually engaged for a period of more than 30 days.

These acts are punished as Serious Physical Injury.

The moment that because of the injuries inflicted by the accused on the victim, the victim becomes ill or incapacitated for the work in which he was habitually engaged for more than 30 days, it is Serious Physical Injuries.

**Deformity**

The moment by reason of the physical injuries inflicted to the victim, he became deformed or suffered deformity, you do not determine the healing period. The healing period becomes immaterial, what matters is that it causes deformity on the victim. Regardless of the healing period, the moment the said physical injuries inflicted causes deformity to the victim, it is immediately Serious Physical Injuries.

**ELEMENTS:**

1. The said injury is located on a visible or conspicuous part of the body;
2. It would not heal through the natural healing process; and
3. It causes physical disfigurement on the appearance of the said offended party.

**Qualifying Circumstances**

1. When the offended party is related to the offender as the relatives mentioned in the crime of parricide.
2. When the act of inflicting serious physical injuries is attended by any of the qualifying circumstances under Art. 248 Murder.

## b. LESS SERIOUS PHYSICAL INJURY (ART. 261)

***Art. 265. Less serious physical injuries.–*** Any person who shall inflict upon another physical injuries not described in the preceding articles, but which shall incapacitate the offended party for labor for ten days or more, or shall require medical assistance for the same period, shall be guilty of less serious physical injuries and shall suffer the penalty of arresto mayor.

Whenever less serious physical injuries shall have been inflicted with the manifest intent to kill or offend the injured person, or under circumstances adding ignominy to the offense in addition to the penalty of arresto mayor, a fine not exceeding Fifty thousand pesos (P50,000) shall be imposed.

Any less serious physical injuries inflicted upon the offender's parents, ascendants, guardians, curators, teachers, or persons of rank, or persons in authority, shall be punished by prision correccional in its minimum and medium periods, provided that, in the case of persons in authority, the deed does not constitute the crime of assault upon such person.

If by reason of the injuries inflicted, the offended party would be incapacitated for labor or would be needing a medical intervention for a period of 10 to 30 days, it will be Less Serious Physical Injuries.

**ELEMENTS:**

1. The offended party is incapacitated for labor for 10 days or more (but not more than 30 days), or needs medical attendance for the same period of time; and
2. The physical injuries must not be those described in the preceding articles.

**Qualifying Circumstances**

1. When there is manifest intent to insult or offend the injured person.
2. When there are circumstances adding ignominy to the offense.
3. When the victim is the offender's parents, ascendants, guardians, curators, or teachers.

## c. SLIGHT PHYSICAL INJURY (ART. 266)

***ARTICLE 266. Slight physical injuries and maltreatment. —*** The crime of slight physical injuries shall be punished:

1. By arresto menor when the offender has inflicted physical injuries which shall incapacitate the offended party for labor from one to nine days, or shall require medical attendance during the same period.

2. By arresto menor or a fine not exceeding Forty thousand pesos (P40,000) and censure when the offender has caused physical injuries which do not prevent the offended party from engaging in his habitual work nor require medical assistance.

3. By arresto menor in its minimum period or a fine not exceeding Five thousand pesos (P5,000) when the offender shall ill-treat another by deed without causing any injury.

**Three (3) Kinds of Slight Physical Injuries**

1. When the victim would be needing medical intervention or would be incapacitated for labor for a period of one (1) to nine (9) days;
2. If the victim, despite being injured, will not be needing medical intervention or will not be incapacitated for labor; or
3. When the victim suffers pain but there is no wound or injury (ill treatment of another by deed).

**Q: X was walking. Unknown to him, Y was following him surreptitiously. When X turned on the right corner of the street, Y immediately hit the back of the head of X with a dos por dos. Because of the impact, X fell on the ground. He saw Y rushing and getting out of the place. X went to the doctor and had a medical examination. His head did not sustain any injury at all, both internally and externally. What crime is committed by Y?**
**A:** Y is liable for slight physical injuries of the third act. He inflicted pain on the part of the offended party without causing any injury or any wound. Therefore, it is a form of slight physical injury – ill treatment of another by deed by inflicting pain without causing any injury under Art. 2.

**Q: X wanted to get even at Y. He wanted Y to lose his leg. He wanted to incapacitated Y. So he armed himself with a lead pipe. He then hid in the tree. He knows that Y would pass by the said place. The moment Y passed by, X came out from hiding and with the use of his lead pipe he hit Y several times. When Y is already down on the ground, he continuously hits the right leg of Y until it is so wounded – that's the only time X left. Y was brought to the hospital and the doctor said that they need to cut his right leg. What is the crime committed?**

**A:** X is liable for Qualified Serious Physical Injury. The infliction of serious physical injury becomes qualified the moment it is appended by any of the circumstances that qualifies the killing to Murder. The moment any of the qualifying circumstances in Art. 248 is present in inflicting serious physical injuries, such as in this case which is appended with treachery, then the crime of Serious Physical Injury will be qualified.

**Q: The wife is suspicious that her husband is having an affair. She wanted to know who the woman was. Until one Friday, the husband told the wife that he will be having a dinner meeting at 7:00 P.M. and he needed to take a shower and change his clothes. While the husband was taking a shower, the phone rang. The wife is suspicious. When she looked at the phone, the one calling her husband was her best friend. The call ended, she rolled on the messages and she realized that the other woman of her husband was her own best friend.**

**The following day, she called her best friend and asked for a meeting. During the meeting, she told her best friend that she already knew. She told her best friend to leave her husband alone. That's the last thing she will be asking her. But the best friend said she cannot promise because she loved him more than she loved her – to leave her best friend's husband is like killing herself.**

**The said best friend stood up and was about to leave the said restaurant. The wife, who was still crying, stood up and followed the best friend. She tapped the shoulder of her best friend. When the best friend turned around, she sprayed toxic substances on the face and neck of the best friend. The face and the neck suffered burns. The doctor said it would heal within a period of 30 days but the scar will remain for life until and unless she undergoes plastic surgery. What crime is committed by the wife?**
**A:**The wife is liable for Serious Physical Injury. You do not consider the healing period if the injury will cause deformity. Although the healing period is 30 days, therefore, Less Serious Physical Injury, it will be serious because of deformity. There is deformity because the said deformity is located in the visible or conspicuous part of the body of the victim. The deformity is in the face and the neck. Hence, it caused physical disfigurement on the appearance of the victim. It would not heal through the natural healing process. All the elements for deformity are

present; therefore, the said wife is liable for Serious Physical Injury.

**Q: Instead of confronting her best friend, the wife filed for the violation of R.A. 9262 for marital infidelity. Would it prosper?**

**A:** YES. According to the Supreme Court, the mere act of marital infidelity already consummates the crime. There is nothing more to prove, only the presence of marital infidelity. Because the moment there is marital infidelity, obviously, the other party is suffering emotional depression.

**Q: X is a barker. He was asking people to go inside the jeepney. Here comes Y, passing by. When X turned around to face Y, Y gave him a strong punch. The two front teeth of X were knocked out. X went to the doctor, the injury caused would heal for a period of 7 days.**

**X went to the barangay and filed a case against Y for serious physical injury. But there is no conciliation. So, X filed a case of Serious Physical Injury. The City Prosecutor found probable cause, so the case was filed before the MeTC.**

**During the hearing. Here comes the counsel of Y doing the cross-examination. The counsel of Y told X: 'based on your narration, you lost 2 front teeth, right? Can you smile in front of the court'. X smiled. When X smiled, his teeth were complete. X told the Court that a good samaritan sponsored an implant of his two front teeth.**

**The counsel argued that there is no deformity anymore and X looked more handsome now than before. The jude convicted Y for the crime of Serious Physical injury. He appealed before the RTC. If you are the RTC judge, will you affirm Y's conviction for Serious Physical Injury?**

**A:** NO. In the case of **Ruego v. People**, the SC said that they are saddened that this kind of case will reach the SC. This case should have been settled before the lower courts. In this case the Court ruled that it is the best time to abandon the obsolete doctrine and so, the Court now and henceforth rule that if it is the front teeth that is lost, it is not always serious physical injury.

In determining whether or not the loss of a tooth is Serious Physical Injuries, there must be a factual determination during the trial that the loss of the said tooth resulted in a visible deformity. In this case, the deformity is already cured by the implant, therefore, there is no more deformity. Hence, the SC convicted the accused of Slight Physical Injury because based on the medical certificate it would heal for a period of 7 days.

The Court has already abandoned the old ruling that if it is the front teeth, it would immediately be a Serious Physical Injury because it can be now repaired through technology. If there is no more deformity, what is the cause of action for Serious Physical Injury?

## RAPE

***Art. 266-A. Rape; When And How Committed. —*** Rape is Committed —

1. By a person who shall have carnal knowledge of another person under any of the following circumstances:
   (a) Through force, threat, or intimidation;
   (b) When the offended party is deprived of reason or otherwise unconscious;
   (c) By means of fraudulent machination or grave abuse of authority; and
   (d) When the offended party is under sixteen (16) years of age or is demented, even though none of the circumstances mentioned above be present: Provided, That there shall be no criminal liability on the part of a person having carnal knowledge of another person under sixteen (16) years of age when the age difference between the parties is not more than three (3) years, and the sexual act in question is proven to be consensual, non-abusive, and non-exploitative: Provided, further, That if the victim is under thirteen (13) years of age, this exception shall not apply.

As used in this Act, non-abusive shall mean the absence of undue influence, intimidation, fraudulent machinations, coercion, threat, physical, sexual, psychological, or mental injury or maltreatment, either with intention or through neglect, during the conduct of sexual activities with the child victim. On the other hand, non-exploitative shall mean there is no actual or attempted act or acts of unfairly taking advantage of the child's position of vulnerability, differential power, or trust during the conduct of sexual activities. (As amended by RA No 11648)

2. By any person who, under any of the

circumstances mentioned in paragraph 1 hereof, shall commit an act of sexual assault by inserting his penis into another person's mouth or anal orifice, or any instrument or object, into the genital or anal orifice of another person.

**Three (3) Types of Rape**

In the case of *People v. Jumawan,* the SC said that there are three types of Rape:

1. Rape by carnal knowledge;
2. Rape by sexual assault; and
3. Marital Rape.

**a. RAPE BY CARNAL KNOWLEDGE**

**ELEMENTS:**

1. The offender is a man and the offended party is a woman;
2. The offender had carnal knowledge of the said woman against her will; and,
3. The carnal knowledge is attended by any of the following circumstances:
    a. By using force, threat or intimidation;
    b. When the offended party is deprived of reason or otherwise unconscious;
    c. By means of fraudulent machination or grave abuse of authority; or,
    d. When the offended party is under 16 years of age or otherwise demented even if none of the circumstances mentioned are present.

In case of Rape by carnal knowledge, the law specifies that the victim must be a woman and that the offender must be a man because the crime of rape is done by sexual intercourse or by carnal knowledge.

**b. RAPE BY SEXUAL INTERCOURSE**

**ELEMENTS:**

1. The offender is any person and the offended party is also any person;
2. The offender commits any of the following acts of sexual assault against the victim:
    a. By inserting his penis into another person's mouth or anal orifice; or
    b. By inserting any instrument or object into another person's genital or anal orifice.
3. The said sexual assault is attended by any of the following circumstances:
    a. By using force, threat or intimidation;
    b. When the offended party is deprived of reason or otherwise unconscious;
    c. By means of fraudulent machination or grave abuse of authority;
    d. When the offended party is under 16 years of age or otherwise demented even if none of the circumstances mentioned are present

In case of Rape by sexual assault, the victim can be any person. The offender can be any person. So, it can be a man to woman. A man to another man. A woman to a man. A woman to another woman. Any person to another person.

**c. MARITAL RAPE**

In **People v. Jumawan**, the SC said that that rape exists even in the case of marital relationship because rape is not about sexual intercourse. Rape is about violation of the human dignity of a woman. Therefore, the moment the husband penetrates the wife against the will of the wife, marital rape is committed. The husband is violating the human dignity of his very own wife.

In the case of Jumawan, the SC convicted the husband of marital rape because she penetrated the wife despite the refusal of the wife.

**Q: The father is having a drinking spree with his friends. It started at 6:00 P.M. and ended at 10:00 P.M. They started to part ways, thereafter. The father went home. Upon reaching the house, instead of going inside his bedroom, he went inside the bedroom of his 20 year old daughter. He undressed the daughter and penetrated her. The daughter did not resist and struggled but all throughout, the daughter was crying.**

**The following morning, the daughter who has already lost her mother went to her aunties. The aunties went to the DSWD and filed a case of rape against the father.**

**The defense of the father during the hearing is that it is not an act of rape but a consensual sexual intercourse. The father said he did not employ force, violence or intimidation. And his daughter did not resist or struggle. Therefore, her daughter consented. Is the father correct?**

**A:** NO. The defense of the father has no merit. In case of incestuous rape, if the father raped his daughter, you did need to establish the presence of force, violence and

intimidation because the overpowering and overbearing moral ascendancy and moral influence of the father over the daughter takes the palace of violence, force and intimidation.

The daughter definitely was so afraid, she cannot move. She was suffering in pain.

**Q: X and Y, boyfriend and girlfriend, are having a drinking spree with the best friend of the boyfriend. They were drunk. All of them went to sleep because of the drunkenness.**

**Later, Y felt that a man was on top of her. The man is kissing her private part. The man penetrated her. She opened her eyes and saw that it was Caga, the best friend of X. All along, she thought it was her boyfriend. And so Caga was charged with the crime of rape.**

**Caga argued that he is not liable for rape because Y did not resist and struggle. Is he liable for rape?**

**A:** YES. He is liable for rape because at the time of rape, Y is unconscious by reason of her drunkenness. She was so drunk such that she was unconscious and asleep. Having carnal knowledge of a woman who is asleep, who is unconscious is an act of rape according to the SC in the case of *People v. Caga.*

**Prescription of Crimes**

On April 2, 2025, the Supreme Court in the case of **People v. Consignido**, En Banc totally abandoned the en banc ruling in **Republic v. Desierto** and **Corpus Jr. v. People** (do not be misled when you hear Prosec's lecture in Magnificus Jurist because it was recorded in March 2025 wherein the doctrine on said cases were still effective).

The ruling now is that the Supreme Court went back to its original decision on the prescription of crime as held in the case of People v. Pangilinan.

**Illustration:**

***In Republic v. Desierto and Corpus Jr. v. People (abandoned rulings)***

**GR**: In cases of felonies under the RPC or offenses under SPL, the running of the period of prescription of crime is interrupted upon the filing of a case before the Office of the Public Prosecutor.

**XPN:** In cases of light felonies or those covered by the Rules on Summary Procedure also known as the Rules of Expedited Proceedings in the First Level Courts. (e.g., if the crime charge falls within the Rules on Summary Procedure, in the Metro Manila area, the running of the period of prescription of crime is interrupted or suspended upon the filing of the case before a proper court.

***In People v. Consignido (most recent ruling)***

Regardless of the crime whether it is a violation of the RPC or SPL or even those covered by the Rules on Summary Procedure or Rules of Expedited Proceedings in the First Level Courts the running of the period of prescription of crime will be interrupted once the complaint is filed before the Office of Public Prosecutor.

**BAR EXAM TIP:** Follow the new ruling of the SC which totally abandoned the ruling in Desierto and Corpus, Jr. cases even though said new ruling is not within the coverage of the Bar 2025. The reason is the new ruling is a total abandonment of those cases.

## STATUTORY RAPE

***Art. 266-A. Rape; When And How Committed. —*** Rape is Committed —

1. By a person who shall have carnal knowledge of another person under any of the following circumstances:
xxxx

(d) When the offended party is under sixteen (16) years of age or is demented, even though none of the circumstances mentioned above be present: Provided, That there shall be no criminal liability on the part of a person having carnal knowledge of another person under sixteen (16) years of age when the age difference between the parties is not more than three (3) years, and the sexual act in question is proven to be consensual, non-abusive, and non-exploitative: Provided, further, That if the victim is under thirteen (13) years of age, this exception shall not apply.

As used in this Act, non-abusive shall mean the absence of undue influence, intimidation, fraudulent machinations, coercion, threat, physical, sexual, psychological, or mental injury or maltreatment, either with intention or through neglect, during the conduct of sexual activities with the child victim. On the other hand, non-exploitative shall mean there is no actual or

attempted act or acts of unfairly taking advantage of the child's position of vulnerability, differential power, or trust during the conduct of sexual activities. (As amended by RA No 11648)

**Q: What if the victim of rape was suffering from a mental retardation? The victim of rape is a 25 years old with a mental capacity of a child of 9 years old. What is the proper nomenclature of the crime committed?**
**A:** In the case of **People v. Baay**, the SC said that the crime committed is Simple Rape. The basis is the chronological age of the victim. It cannot be statutory rape because the gravament of statutory rape is the carnal knowledge of a woman under 12 years of age *(RA 11648 was not yet in effect when the SC ruled in People v. Baay that is why statutory rape age here is under 12 years of age)*.

However, in the cases of **People v. Daniega** and **People v. Rabellas**, the SC said that now, the basis is the mental age of the victim. The SC said, it is settled that sexual intercourse with a woman who is mental retardate with a mental age below 12 years of age constitutes Statutory Rape because a person's capacity to decide whether to give consent or to express resistance is determined by her mental age. Also, decision making is a function of the mind.

Therefore, the accused should be convicted of Statutory Rape, the basis is the mental age of the victim.

In case of Statutory Rape, there only two elements that may be proven by the prosecution:

**ELEMENTS:**

1. Age of the victim; and
2. The fact of carnal knowledge

**NOTE:** No need to prove any other circumstances such as the presence of violence, threat, or intimidation. It is only necessary to prove the above.

**Q: What is the age of the victim in statutory rape?**

**A:**

**GR:** Based on Article 266-A(1)(d) as amended by RA No. 11648, (*see table above*), Statutory Rape is now committed when the offender has carnal knowledge of a minor under 16 years old regardless of the consent. The moment that the offender has carnal knowledge of a victim and the victim is under 16 years old regardless of consent, it is immediately and automatically Statutory Rape even if the said under 16 years old girl gave consent.

**XPN**: When the age difference between the parties is not more than three (3) years and the sexual act is proven to be consensual, non-abusive and non- exploitative.

**XPN to XPN:** When the victim is under 13 years old.

**Q: X has carnal knowledge of Y, a 15 years old. What crime is committed by X?**
**A:** X is liable for Statutory Rape. All that is needed to be proven is that the victim is under 16 years old and the fact of carnal knowledge regardless of whether Y gave her consent or not.

**Q: What if X is 18 years old. X has carnal knowledge with Y, a 15 year old. The sexual intercouse is with Y's consent because they are in a relationship. When X was arrested,he was charged with Staturoty Rape. However, during trial, the victim gave her testimony and said that the sexual intercouse was voluntary and that X is her boyfriend. Can the judge convict X of Statutory Rape?**
**A:** No. The judge cannot convict X of Statutory Rape because their case falls on the exception. The age difference between X and Y is not more than 3 years. Based on the testimony of the victim herself, she said, the sexual act is consensual, non-abusive, and non-exploitative. Therefore, since the case falls on the exception, X should be acquitted of Statutory Rape.

**Q: What if X is 15 years old and Y is 12 years old. They are in a relationship. Y voluntarily consented to the sexual act with X. Later, the parents of Y filed against X the crime of Statutory Rape. Is X liable of the crime of Statutory Rape?**

**A:** No. If you look at the problem, it falls on the XPN to the XPN which is when the victim is under 13 years old, even if the age difference of the parties are not more than 3 years and the sexual act is voluntarily, the man will always be criminally liable.

However, although it falls on the XPN to the XPN under RA 11648, under another law which is RA 9344, X cannot be convicted for the crime of Statutory Rape. Under Section 6 of RA 9344, the law expressly provides that if the accused is 15 years old or under, he is totally exempted from criminal liability regardless of discernment.

**REPUBLIC ACT No. 9344**

**AN ACT ESTABLISHING A COMPREHENSIVE JUVENILE JUSTICE AND WELFARE SYSTEM, CREATING THE JUVENILE JUSTICE AND WELFARE COUNCIL UNDER THE DEPARTMENT OF JUSTICE, APPROPRIATING FUNDS THEREFOR AND FOR OTHER PURPOSES**

SEC. 6. Minimum Age of Criminal Responsibility. - A child fifteen (15) years of age or under at the time of the commission of the offense shall be exempt from criminal liability. However, the child shall be subjected to an intervention program pursuant to Section 20 of this Act.

A child above fifteen (15) years but below eighteen (18) years of age shall likewise be exempt from criminal liability and be subjected to an intervention program, unless he/she has acted with discernment, in which case, such child shall be subjected to the appropriate proceedings in accordance with this Act.

The exemption from criminal liability herein established does not include exemption from civil liability, which shall be enforced in accordance with existing laws.

## WOMEN'S HONOR DOCTRINE

This principle recognizes the well-known fact that women, especially Filipinos would not admit that they have been abused or raped or molested, unless and until the abuse or rape had actually happened because it is their natural instinct, particularly a Filipino woman to protect their honor.

If we have the so-called women's honor doctrine insofar as women are concerned, we also have the sweetheart defense theory, insofar as the accused is concerned.

## SWEETHEART DEFENSE THEORY

In a number of cases involving rape, the common defense phrased by the man is that he and the victim are sweethearts. Hence, there is no rape.

If this defense is raised by the accused, it must be proven by compelling evidence. It must be shown that:

1. the accused and victim were lovers; and
2. the victim consented to the alleged sexual intercourse.

Therefore, the mere fact that they are lovers will not suffice. There must be evidence showing that the victim consented to the alleged sexual intercouse. To prove the sweetheart defense theory, it is necessary aside from the fact that there is a relationship between the accused and the victim, the said accused must be able to prove the relationship through certain other pieces of evidence. Otherwise, it would still be a conviction because the SC held that love is not a license for lust. There must be a statement, there must be evidence, that indeed, the victim has consented to the sexual intercourse even if they are lovers.

## SPECIAL COMPLEX CRIME IN RAPE

***ARTICLE 266-B. Penalties.*** **–** Rape under paragraph 1 of the next preceding article shall be punished by reclusion perpetua.

xxxxx

When the rape is attempted and a homicide is committed by reason or on the occasion thereof, the penalty shall be reclusion perpetua to death.

When by reason or on the occasion of the rape, homicide is committed, the penalty shall be death.

xxxxx

When the rape is attempted and a homicide is committed by reason or on the occasion thereof, the penalty shall be reclusion temporal to reclusion perpetua.

When by reason or on the occasion of the rape, homicide is committed, the penalty shall be reclusion perpetua.

**Under 266-B, there are two (2) Instances of Special Complex Crime in Rape**

1. Rape with Homicide – When by reason of or on occasion of rape, homicide is committed. It is punished by death.

2. Attempted rape with Homicide – When rape is attempted and homicide is committed by reason of or on occasion thereof. It is punished by reclusion perpetua to death.

**Q: Two girls X and Y learned that there was this big canteen that just opened in the Poblacion. X and Y wanted to apply for a job as servers in the canteen. X and Y were so happy. They were walking down the rice field. They wanted to go to the Poblacion to apply for a job. Suddenly, a man appeared in front of them. This man was a distant relative. The man punched both X**

**and Y. Thereafter, X and Y were brought to the grassy area. The man undressed X, pinned her down, and went on top of X. At that precise moment, the other girl, Y began crying aloud, stomping her feet, and started asking for help. The man stood up and repeatedly hit Y with lead pipe until Y died. Mad, the man covered the dead Y with dried leaves. The man went back to X and had carnal knowledge of X by means of force and violence. After the carnal knowledge, the man also repeatedly hit X with a lead pipe. Thinking that X died, the man left. But X survived. X crawled until she was able to ask for help. Later, the man was arrested and was charged of the crime of murder for having killed Y and he was charged with the crime of rape for having sexual intercouse with X. If you are the judge, will you convict the accused as charged?**

**A:**No. In the case of **People v. Laoag**, the man is liable for special complex crime of RAPE WITH HOMICIDE. The criminal intent, obviously, of the man was to rape X. On the occasion of the said rape, because Y's act of crying, shouting, asking for help, the man killed Y. The said act of killing took place on the occasion of rape. Hence, even if the victim of homicide is different from the victim of rape, we have the special complex crime of rape with homicide. The law does not require that the said victim of the rape must also be the victim of the killing because the law uses the phrase "by reason or on occasion of rape, homicide is committed".

SC said that when you say "by reason of rape, homicide is committed", it means that the original criminal intent is to rape the victim and by reason of the said act of rape, the accused has to kill the very victim of the rape. Here, the victim of the rape is also the victim of the homicide.

However, the law also uses the phrase "on the occasion of rape, homicide is committed", this means the original criminal intent of the accused was to rape the victim and on the occasion of the said rape, he has to kill a person, that person need not be the rape victim. For as long as the killing took place on the occasion of the said rape, then the special complex of crime of rape with homicide arises.

Here, the victim of rape is different from the victim of homicide the victim of rape was X and the victim of homicide was Y. Hence, the crime committed is special complex crime of rape with homicide.

**Q: X worked overtime. She left the Makati office at almost 12:00 am. She passed by this area of Makati wherein there were yet no buildings. A building is still being constructed. When X passed by the said area, she saw three men having drinks. She did not look at them. She just passed by hoping to go to the bus area in order to go home. However, as she was walking, suddenly, these three men appeared and encircled her. The three men took off their shirts, raised it in the air, and then thereafter, all three men jumped on X. X was pinned down on the ground. The men forcibly removed her clothings. The men made her naked. Although naked, when she saw an opportunity, she ran as fast as she could. However, one of the men chased her and thereafter stabbed her a number of times until she died. The set of men A, B, and C were arrested. What crime is committed by these men?**

**A:** In the case of **People v. Nabong**, the SC said the crime committed is the special complex one of attempted rape with homicide under Art. 266(3). The SC said, it is evident that the original criminal intent of the offenders was to rape the victim. However, rape was not consummated because she saw an opportunity to run and she did run. But in doing so, she was chased and then thereafter she was killed. The killing took place on the occasion by a reason of the said intent to rape her. The killing took place during the attempted rape. Hence, the SC said the crime committed is the special complex run of attempted rape with a homicide.

**From Prosec Notes 2024:** The SC convicted them of special complex crime of ATTEMPTED RAPE WITH HOMICIDE. SC said that it is evident that the criminal intent of the men was to rape the victim. However, rape was not consummated because the girl tried to escape and in escaping, they have to kill her by reason of the attempt to rape the victim, homicide was committed, hence, SC said the crime committed by the three (3) men – they are co-conspirators for special complex crime of Attempted Rape with Homicide.

## QUALIFIED RAPE

***ARTICLE 266-B. Penalties.*** **–** Rape under paragraph 1 of the next preceding article shall be punished by reclusion perpetua.

Whenever the rape is committed with the use of a deadly weapon or by two or more persons, the penalty shall be reclusion perpetua to death.

When by reason or on the occasion of the rape, the victim has become insane, the penalty shall be reclusion perpetua to death.

When the rape is attempted and a homicide is

committed by reason or on the occasion thereof, the penalty shall be reclusion perpetua to death.

When by reason or on the occasion of the rape, homicide is committed, the penalty shall be death. The death penalty shall also be imposed if the crime of rape is committed with any of the following aggravating/qualifying circumstances:

1. When the victim is under eighteen (18) years of age and the offender is a parent, ascendant, step- parent, guardian, relative by consanguinity or affinity within the third civil degree, or the common- law spouse of the parent of the victim;

2. When the victim is under the custody of the police or military authorities or any law enforcement or penal institution;

3. When the rape is committed in full view of the spouse, parent, any of the children or other relatives within the third civil degree of consanguinity;

4. When the victim is a religious engaged in legitimate religious vocation or calling and is personally known to be such by the offender before or at the time of the commission of the crime;

5. When the victim is a child below seven (7) years old;

6. When the offender knows that he is afflicted with Human Immunodeficiency Virus (HIV)/Acquired Immune Deficiency Syndrome (AIDS) or any other sexually transmissible disease and the virus or disease is transmitted to the victim;

7. When committed by any member of the Armed Forces of the Philippines or para-military units thereof or the Philippine National Police or any law enforcement agency or penal institution, when the offender took advantage of his position to facilitate the commission of the crime;

8. When by reason or on the occasion of the rape, the victim has suffered permanent physical mutilation or disability;

9. When the offender knew of the pregnancy of the offended party at the time of the commission of the crime; and

10. When the offender knew of the mental disability, emotional disorder and/or physical handicap of the offended party at the time of the commission of the crime.

Rape under paragraph 2 of the next preceding article shall be punished by prision mayor.

Whenever the rape is committed with the use of a deadly weapon or by two or more persons, the penalty shall be prision mayor to reclusion temporal.

When by reason or on the occasion of the rape, the victim has become insane, the penalty shall be reclusion temporal.

When the rape is attempted and a homicide is committed by reason or on the occasion thereof, the penalty shall be reclusion temporal to reclusion perpetua.

When by reason or on the occasion of the rape, homicide is committed, the penalty shall be reclusion perpetua.

Reclusion temporal shall also be imposed if the rape is committed with any of the ten aggravating/qualifying circumstances mentioned in this article.

See above list for the Qualifying Circumstances applicable to Rape.

*1. When the victim is under eighteen (18) years of age and the offender is a parent, ascendant, step parent, guardian, relative by consanguinity or affinity within the third civil degree, or the common-law spouse of the parent of the victim;*

For Qualified Rape to be committed under Art. 266-B, it is necessary that there must be the *twin qualifying circumstances of minority and relationship*.

**Minority -** the victim is 18 years of age.

**Relationship** - the victim is related to the offender as her parent, ascendant, step parent, guardian, relative by consanguinity or affinity within the third civil degree or the common law spouse of the victim's parent.

Both must be proven and alleged in the Information that there is a minority of the victim and the relationship of the victim with the said offender.

**Q: The information alleges that the accused X had carnal knowledge of Y, a minor. Said accused was the stepfather of Y. During the trial of the case, the**

**minority of the girl was proven beyond reasonable doubt. Her certificate of live birth was presented in court and was identified. However, when the girl and the accused were asked as to their relationship with each other, it was asked if there was a marriage between the accused and the mother of the said girl. And both said during their testimony that no marriage took place between the accused and the mother of the girl. If you were the judge, would you convict the accused as charge as qualified rape?**

**A:** No. In the cases of **People v. Cial** and **People v. De Guzman**, the SC downgraded the crime only to simple rape and not qualified rape. This is because in order to bring about qualified rape, it is necessary that the twin qualifying circumstances of minority and relationship must be proven. In this case, only the minority of the victim was proven beyond reasonable doubt. However, the relationship was not proven. Here, the relationship alleged in the information is stepfather-stepdaughter is different from the kind of relationship proven during trial. During trial, what was proven is that there is a common law relationship because there was no marriage that took place between the accused and the girl's mother. Since there was no marriage that took place between the accused and the girl's mother, it cannot be a stepfather- stepdaughter relationship but only a common law relationship. Hence, the crime must be downgraded to simple rape.

**BAR EXAM TIP:** The only difference is the proper nomenclature of the crime. That is what the Bar examiner is after, if you know the proper nomenclature of the crime. In reality, there is no difference on the penalty because whether it is Qualified Rape or Simple Rape, the penalty is reclusion perpetua. You cannot impose the death penalty.

In the previous example, the proper nomenclature of the crime is Simple Rape and not Qualified Rape because the twin qualifying circumstances of relationship and minority were not proven beyond reasonable doubt.

**[Prosec did not discuss the remaining qualifying / aggravating circumstances of rape]**

In criminal law, there is the principle which recognizes that an accused may only be convicted of one count of rape through sexual intercourse when the penal penetrations occurred during one continuing act of rape And the accused was motivated by single criminal intent. So this is a *continuing act of rape.* Although there were many penetrations, the accused will only be convicted only of one counter.

In the case of **People v. Aron, X** the sister-in-law was sleeping. In the apartment, her elder sister, together with the husband lives on the ground floor. While X, the younger sister lives on the 2nd floor. Whenever X stays at her apartment, she is totally naked wearing only a panty but covers herself with a blanket. Suddenly she realized she could feel someone was inside her bedroom. When she opened her eyes, her brother-in-law was already sitting beside her on the bed. She was shocked. However, the brother-in-law immediately removed her blanket, removed her panty, and penetrated her by means of force and violence.

After that, the said brother-in-law who was holding a knife pointed the knife at the neck of X and told her to get out of the bed to lie on the floor. X obeyed because a knife was pointed at her, the brother-in-law again penetrated her on the floor. Thereafter, still at night, the brother-in-law told the girl to go near the headboard of the bed then penetrated her the third time. Because of these three penetrations, the brother-in-law was charged with three counts of rape. The SC, however, convicted him of only one count of rape. The SC said the accused is liable only for one count of rape because based on the evidence, the three penal penetrations occurred during one continuing act of rape in which the accused was obviously motivated by a single criminal intent. He had only three penetrations because he would not be satisfied in the position. The reason for the said three penal penetration was only to change position. But it is evident according to the Supreme Court that it is only one continuing act of rape. Hence, despite the three penetrations, the Supreme Court convicted the accused of only one count of rape.

**Q: However, in the case of People v. Lucena, the Brgy, Tanod at gunpoint told the victim to alight from the tricycle, remove her clothes and to lie on the grass.Then the Brgy. Tanon at gunpoint penetrated the girl then removed his penis. After 5 minutes he penetrated the girl again. He removed his penis and after 5 minutes, again he penetrated the girl. Thereafter, he told the girl to dress up and brought the girl to their house.**

**Because of the three penal penetrations, Lucena was charged with three counts of rape. Lucene argued before the Supreme Court the he may have committed the crime of rape, however, it is erroneous on the part of the lower court to convict him for three counts of rape because as held by the Supreme Court in the case of People v. Aron, it should only be one count of rape because it is a continuing act of rape. Is the argument correct?**

**A:** No. In this case, the SC convicted Lucena of three counts of rape by sexual intercourse. The SC said that three penal penetrations occurred successively, each at an interval of approximately five minutes. As evidenced that the accused was motivated not by one single criminal impulse but by several criminal intent. Hence, in this case, the SC convicted the accused of three counts of rape through sexual intercourse.

**Q: What if X pretended to be a gay talent manager. X found Y beautiful and so X went to Y and he was entertained by Y and the family of Y. X was able to make Y and her family believe that indeed he is a gay talent manager and that he is looking for talents to do commercial modeling. X was able to gain the trust of Y who is 18 years old and her entire family. One time, through the encouragement and inducement of X, Y voluntarily went with X to a hotel because X told Y that inside the room in the said hotel she will find other girls and there will be a photoshoot and video shoot for a commercial that she was included in. She was so happy that she will now be a commercial model so she voluntarily went with X in the said hotel room. However, upon entering the hotel room, X forcibly pushed Y on the bed. When on top of her and inserted his penis by means of force and violence. Thereafter, Y went to the bathroom. X forcibly took Y. Dragged Y from the said bathroom, brought her back to the bed, and this time inserted his fingers into her vagina. Thereafter, X made Y insert his penis into her mouth. What crime or crimes is/are committed by X?**

**A:** In the case of **People v. Disipulo**, the SC said that the the accused is liable for one count of Rape by Carnal Knowledge and two counts of Rape by Sexual Assault. The SC said, Disipulo committed rape by current carnal knowledge when he inserted his penis into the victim's vagina against their will.

Disipulo committed two counts of rape by sexual assault. First, when he inserted his finger into the vagina of Y. Second, when he forced his penis into the mouth of the girl. These are two separate and distinct acts of sexual assault. Hence, two counts of sexual assault. Because according to the SC, these two acts of sexual assault were committed successively, each with a separate criminal intent. Hence, it cannot be considered as one, but they are to be considered as two.

In this case, Disipulo was held liable for three crimes, one account of rape by sexual intercourse, and two counts of rape by sexual assault.

## SEXUAL ASSAULT / ACTS OF LASCIVIOUSNESS IN RELATION TO RA 7610

RA 11648 did not only amend Statutory Rape under Article 266-A(1)(d), RA 11648 also amended RA 7610 particularly Sec. 5. Under Sec. 5 of RA 7610, children, whether male or female, who, for money, profit, or any other consideration, or due to the coercion or influence of any adult, syndicate or group shall indulge in sexual intercourse or lascivious conduct are deemed to be children exploited in prostitution and other sexual abuse.

**RA 7610 AS AMENDED BY RA 11648**
**SPECIAL PROTECTION OF CHILDREN AGAINST ABUSE, EXPLOITATION AND DISCRIMINATION ACT**

***SECTION 5. Child Prostitution and Other Sexual Abuse.*** – Children, whether male or female, who for money, profit, or any other consideration or due to the coercion or influence of any adult, syndicate or group, indulge in sexual intercourse or lascivious conduct, are deemed to be children exploited in prostitution and other sexual abuse

x x x x

(b) Those who commit the act of sexual intercourse or lascivious conduct with a child exploited in prostitution or subjected to other sexual abuse: Provided, That when the victim is under sixteen (16) years of age, the perpetrators shall be prosecuted under Article 335, paragraph 3, for rape and Article 336 of Act No. 3815, as amended, otherwise known as "The Revised Penal Code", for rape, or lascivious conduct, as the case may be: Provided, That the penalty for lascivious conduct when the victim is under sixteen (16) years of age shall be reclusion temporal in its medium period.

Under Sec. 5(b), those who commit the act of sexual intercourse and lascivious conduct with a child exploited in prostitution and other sexual abuse shall be punished and when the victim is under 16 years old, the perpetrator must be prosecuted for rape or acts of lasciviousness under the RPC, provided that the penalty for lascivious conduct when the victim is under 16 years of age shall be reclusion temporal in its medium period.

So, RA 11648, it also amended RA 7610, Sec. 5 by saying that the victim instead of under 12 years of age will not be under 16 years of age.

**Q: In the case of People v. Recalde, for assaulting a 10 year old boy by inserting his penis into the anal orifice of the boy, Recalde was charged with rape by sexual assault. Since the boy was only 10 years old at the time of the incident, the SC convicted the Recalde of rape by sexual assault in relation to RA 7610, Sec. 5(b). The act of Recalde of inserting his penis into the anal orifice of a boy of 10 years old, although, it is considered as rape by sexual assault under Art. 266-B, it is within the meaning of acts of lasciviousness under RA 7610, Sec. 5(b). Therefore, the SC said, Recalde is liable liable for rape by sexual assault in relation to Sec. 5(b) of RA 7610. What is the need of convicting the accused of such crime and not only rape by sexual assault?**

**A:** The purpose is to increase the impossible penalty. Under article 266-B, the penalty for rape by sexual assault is only prision mayor. If it is said to be in relation to Sec. 5(b) of RA 7610, the penalty will be reclusion temporal in its medium period. Hence, the penalty is increased.

Under Sec. 5(b) of RA 7610 or the Special Protection of Children Against Abuse, Exploitation, and Discrimination, children are considered to be exploited in prostitution and other sexual abuse. These children exploited in prostitution and other sexual abuse are children, whether male or female who for money, profit, or any other consideration or due to the coercion influence of any adult syndicate or group indulge in sexual intercourse or other the serious scandal. They are deemed to be children exploited in prostitution.

Also, Under Sec. 5(b) of RA 7610, those who commit the act of sexual intercourse or the serious conduct with these children exploited in prostitution and other sexual abuse shall be punished. When the victim is under 16 years old, the perpetrators shall be prosecuted for rape rape or acts of lasciviousnews under the RPC and the penalty will be reclusion temporal in its medium period.

Here, the act of Recalde of inserting his penis into the anal office is within the meaning of acts of lasciviousness. Therefore it is in relation to RA 7610, Sec. (5) so as to increase the impossible penalty to reclusion temporal in its medium period.

## ANTI-CHILD ABUSE LAW (RA 7610)

**RA 7610 AS AMENDED BY RA 11648**
**SPECIAL PROTECTION OF CHILDREN AGAINST ABUSE, EXPLOITATION AND DISCRIMINATION ACT**

***SECTION 10. Other Acts of Neglect, Abuse, Cruelty or Exploitation and Other Conditions Prejudicial to the Child's Development***. –

(a) Any person who shall commit any other acts of child abuse, cruelty or exploitation or to be responsible for other conditions prejudicial to the child's development including those covered by Article 59 of Presidential Decree No. 603, as amended, but not covered by the Revised Penal Code, as amended, shall suffer the penalty of prision mayor in its minimum period.

(b) Any person who shall keep or have in his company a minor sixteen (16) years of age or under or who is ten (10) years or more his junior in any public or private place, hotel, motel, beer joint, discotheque, cabaret, pension house, sauna or massage parlor, beach, and/or other tourist or similar places shall suffer the penalty of prision mayor in its maximum period and a fine of not less that Fifty thousand pesos (P50,000.00): Provided, That this provision shall not apply to any person who is related within fourth degree of consanguinity or affinity or any blood recognized by law, local custom and tradition or acts in the performance of a social, moral or legal duty.

(c) Any person who shall induce, deliver or offer a minor to any one prohibited by this Act to keep or have in his company a minor as provided in the preceding paragraph shall suffer the penalty of prision mayor in its medium period and a fine of not less than Forty thousand pesos (P40,000); Provided, however, That should the perpetrator be an ascendant, stepparent or guardian of the minor, the penalty to be imposed shall be prision mayor in its maximum period, a fine of not less than Fifty thousand pesos (P50,000), and the loss of parental authority over the minor.

(d) Any person, owner, manager or one entrusted with the operation of any public or private place of accommodation, whether for occupancy, food, drink or otherwise, including residential places, who allows any person to take along with him to such place or places any minor herein described shall be imposed a penalty of prision mayor in its medium period and a fine of not less than Fifty thousand pesos (P50,000), and the loss of the license to operate such a place or establishment.

(e) Any person who shall use, coerce, force or intimidate a street child or any other child to;
(1) Beg or use begging as a means of living;
(2) Act as conduit or middlemen in drug trafficking or pushing; or

(3) Conduct any illegal activities, shall suffer the penalty of prision correccional in its medium period to reclusion perpetua.

For purposes of this Act, the penalty for the commission of acts punishable under Articles 248, 249, 262, paragraph 2, and 263, paragraph 1 of Act No. 3815, as amended, the Revised Penal Code, for the crimes of murder, homicide, other intentional mutilation, and serious physical injuries, respectively, shall be reclusion perpetua when the victim is under twelve (12) years of age. The penalty for the commission of acts punishable under Article 337, 339, 340 and 341 of Act No. 3815, as amended, the Revised Penal Code, for the crimes of qualified seduction, acts of lasciviousness with the consent of the offended party, corruption of minors, and white slave trade, respectively, shall be one (1) degree higher than that imposed by law when the victim is under twelve (12) years age.

The victim of the acts committed under this section shall be entrusted to the care of the Department of Social Welfare and Development.

## SEC. 10(a), RA 7610

Under Sec. 10(a) of RA 7610, it punishes any person who commit any other acts of child abuse, cruelty, exploitation, or be responsible for conditions prejudicial to the child's development.

The SC ruled that there are four distinct acts punished under Sec. 10(a), these are:

a. Child abuse'
b. Child cruelty;
c. Child exploitation; and
d. Being responsible for conditions prejudicial to the child's development.

**Q: In the case of San Juan v. People, X is 15 years old and was talking with his friends at the basketball court. Police Officer San Juan lives near the said basketball court. Police Officer Sanjuan found X to be very noisy. PO San Juan went to the boys where X was. He scolded X and his friends. He stated invectives against X and his friends. When X walked away, PO San Juan pulled out his gun and pointed the gun on the back of head of X. PO San Juan warned X and his friends to never go and hang out again on the basketball court. They were afraid, especially X. In his hurry to get out of the place, he left his t-shirt at the court, so he went back to his t-shirt. However, when he went back to get his t-shirt, PO San Juan was still there, threatened and chased X with a piece of stick. Later, PO San Juan is charged with violation of Sec. 10(a) of RA 7610. The RTC convicted PO San Juan of the crime charged. However, upon appeal, the CA modified the crime to only grave threats and not violation of Sec. 10(a) of RA 7610. The CA reasoned that the act of PO San Juan pointing the gun at the back of the head of X, a minor only amounts to grave threats. Who is correct between the RTC and CA?**

**A:** The SC en banc said, the RTC is correct. PO San Juan is liable for child abuse under Section 10(a) of RA 7610. The SC said that the act of San Juan falls under Section 10(a) because pointing a firearm towards a minor is intrinsically cruel. One of the acts punished under Sec. 10(a) is cruelty to a minor. Here, PO San Juan pointed a firearm at the back of the head of the minor. The object involved is a gun. Unlike other objects which may be used merely to hurt, to damage, to injure a person, a gun serves no other purpose but to kill the said person. Therefore, the SC said that it is the near possibility of the act resulting in death that will be forever etched in the mind of the said minor. Hence, the said act amounted to child cruelty under Sec. 10(a) of RA 7610.

**Q: X, a 16 years old, wanted to visit her friend. On the way to her friend, X stopped by a barbecue stand to buy barbecue for her friend. In the said barbecue stand there were two women, Y and Z. Within the hearing distance, in the presence of X, Y told Z, "*Tignan mo ang katawan ni X, yang katawan na yan ay hindi na katawan ng isang birhen. Yang katawan na yan ay katawan na ng isang babaeng nagpa-abort. Sigurado ako, nagpa-abort yan si X*". Upon hearing these statements, X was greatly embarrassed, full of shame, and felt humiliated. X immediately went through and did not proceed with the house of her friend. X told the incident to her mother. X since then, did not want to leave the house for shame, embarrassment, and humiliation. A case of violation of Section 10(a) of RA 7610 was filed against Y. Is Y liable?**

**A:** In the case of **Rowena Plasan v. People**, the SC said Yes. The SC said that the remarks made by Y, you see, which were deliberately made in the presence of X, attacks X's character, reputation, and dignity. It exposes X to contempt, to ridicule, and to humiliation. Obviously, it inflicted psychological abuse upon X. Hence, falling within Sec. 10(a) of RA 7610.

## SEC. 10(b), RA 7610

RA 11648 also amended Sec. 10(b) of RA 7610. Under Sec. 10(b) of RA 7610, as amended by RA 11648, expressly provides that any person who shall keep or has in his company a minor – 16 years of age or under, or 10 years or more his junior, in a public place, in a private place – hotel, motel, beer joint, etc. shall suffer the penalty of prision mayor in its maximum period and a fine of not less than P50,000.00, **except when the parties are related within the fourth degree of consanguinity or affinity.**

So those are the amendments brought about by RA 11648 on Sec. 5 and Sec. 10(b) of RA 7610 – The Anti- Child Abuse Act.

Before, the age was 12 years of age but now is 16 years of age.

**Q: X is 22 years old. X was sitting on a bench at Luneta Park. He has a problem in the house. While X was sitting on a bench at Luneta park, here comes Y. Y at that time was 17 years old, and Y is a Sampaguita vendor. Y, sat next to X on the bench, and Y told X that she is selling her Sampaguita and herself for a price of P1,000.00. So Y was offering herself - her body to X at the price of P1,000.00. While Y was talking to Y, the police arrived. The police suddenly placed handcuffs on X, and X was brought to the police station. X was arrested and was charged under Sec. 10(d) of RA 7610 for having been found in the company of a minor in the said public place. Is X liable for the crime charged?**

**A:** No, X is not liable. As what I have stated earlier, Sec. 10(b) of RA 7610, as amended by RA 11648, punishes any person who shall keep or have in his company, a minor -16 years old or under who is 10 years or more his junior, in a public place, in a private place.

Based on this amendment, X is not liable because, first, Y is neither kept nor in the company of X. It was Y who arrived, sat next to X on the bench, and began talking with X. Therefore, X is never a companion of Y. Second, Y is neither 16 years old nor is 10 years X's junior. Based on the facts, Y is already 17 years old, and Y is only five years younger than that of X. Therefore, there is no violation committed by X under Sec. 10(b) of RA 7610, as amended by RA 11648.

**Q: What if in the same problem, when Y offered her Sampaguita and herself to X at the price of P1,000.00, X accepted the offer. X brought Y to an inn, had sexual intercourse with Y and thereafter, X paid Y the price of P1,000.00 – the price being asked by Y. Is X liable under RA 7610?**

**A:** Yes. X is liable under Art. 7610 but not under Sec. 10(b). X is liable under Sec. 5(b) of RA 7610. All the elements of Sec. 5(b) of RA 7610 are present. First, X committed the act of sexual intercourse on Y. The said act was performed with Y, and Y is obviously a child exploited in prostitution and subjected to other sexual abuse at the time, because Y is below 16 years of age. In this case, Y is considered as a child exploited in prostitution and other sexual abuse becayse she indulges sexual intercourse and lascivious conduct for money, for profit, or any other consideration. So, when X accepted the offer of Y and had carnal knowledge of Y, and thereafter paid Y, X now becomes liable not under Sec.10(b) of RA 7610 but under Sec. 5(b) of RA 7610

In the cases of **Bungalon v. People** and **Jabalde v. People**, the SC said that the mere act of laying hands against a child, when done at the spur of the moment, when done at the heat of anger cannot be considered as an act of child abuse. Absent, the intent to debase, degrade, demean the intrinsic worth and dignity of the child as a human being.

**Q: The mother saw her 7-year-old boy being punched on the face two (2) times by the 12-year-old son of the neighbor. The mother came rushing. Upon reaching the scene, the mother pushed the 12-year-old son of the neighbor and thereafter slapped him. She then brought her 7-year-old son inside the house and treated his wounds. The 12-year-old son of the neighbor told his parents the incident. Because of that, the mother was charged with Violation of RA 7610. Is the mother liable as charged?**

**A:** No. The mother is not liable as charged. Again, mere laying of hands upon a child does not automatically bring about child abuse. It is only when the act of laying hands on a child there is the intent to debase, degrade, or demean the intrinsic worth and dignity of a child as a human being. In this case, the mother slapped the 12- year-old son of the neighbor out of anger upon seeing him punch her 7-year-old son. It was out of anger, out of sympathy, out of protection for her own son. It happened at the spur of the moment. At the precise moment, it cannot be said that the mother had the intent to debase, degrade, or demean the intrinsic worth or dignity of the child as a human being. Therefore, the crime committed is only Physical Injuries and not a violation of RA 7610.

## RA 9262: ANTI-VIOLENCE AGAINST WOMEN AND THEIR CHILDREN ACT OF 2004

***SECTION 3. Definition of Terms.*** – As used in this Act

x x x x

(a) **"Violence against women and their children"** refers to any act or a series of acts committed by any person against a woman who is his wife, former wife, or against a woman with whom the person has or had a sexual or dating relationship, or with whom he has a common child, or against her child whether legitimate or illegitimate, within or without the family abode, which result in or is likely to result in physical, sexual, psychological harm or suffering, or economic abuse including threats of such acts, battery, assault, coercion, harassment or arbitrary deprivation of liberty. It includes, but is not limited to, the following acts:

A. **"Physical Violence"** refers to acts that include bodily or physical harm;

B. **"Sexual violence"** refers to an act which is sexual in nature, committed against a woman or her child. It includes, but is not limited to:

a) rape, sexual harassment, acts of lasciviousness, treating a woman or her child as a sex object, making demeaning and sexually suggestive remarks, physically attacking the sexual parts of the victim's body, forcing her/him to watch obscene publications and indecent shows or forcing the woman or her child to do indecent acts and/or make films thereof, forcing the wife and mistress/lover to live in the conjugal home or sleep together in the same room with the abuser;

b) acts causing or attempting to cause the victim to engage in any sexual activity by force, threat of force, physical or other harm or threat of physical or other harm or coercion;

c) Prostituting the woman or child.

C. **"Psychological violence"** refers to acts or omissions causing or likely to cause mental or emotional suffering of the victim such as but not limited to intimidation, harassment, stalking, damage to property, public ridicule or humiliation, repeated verbal abuse and mental infidelity. It includes causing or allowing the victim to witness the physical, sexual or psychological abuse of a member of the family to which the victim belongs, or to witness pornography in any form or to witness abusive injury to pets or to unlawful or unwanted deprivation of the right to custody and/or visitation of common children.

D. **"Economic abuse"** refers to acts that make or attempt to make a woman financially dependent which includes, but is not limited to the following:

1. withdrawal of financial support or preventing the victim from engaging in any legitimate profession, occupation, business or activity, except in cases wherein the other spouse/partner objects on valid, serious and moral grounds as defined in Article 73 of the Family Code;

2. deprivation or threat of deprivation of financial resources and the right to the use and enjoyment of the conjugal, community or property owned in common;

3. destroying household property;

4. controlling the victims' own money or properties or solely controlling the conjugal money or properties.

(b) **"Battery"** refers to an act of inflicting physical harm upon the woman or her child resulting to the physical and psychological or emotional distress.

(c) **"Battered Woman Syndrome"** refers to a scientifically defined pattern of psychological and behavioral symptoms found in women living in battering relationships as a result of cumulative abuse.

(d) **"Stalking"** refers to an intentional act committed by a person who, knowingly and without lawful justification follows the woman or her child or places the woman or her child under surveillance directly or indirectly or a combination thereof.

(e) **"Dating relationship"** refers to a situation wherein the parties live as husband and wife without the benefit of marriage or are romantically involved over time and on a continuing basis during the course of the relationship. A casual acquaintance or ordinary socialization between two individuals in a business or social context is not a dating relationship.

(f) **"Sexual relations"** refers to a single sexual act which may or may not result in the bearing of a common child.

(g) **"Safe place or shelter"** refers to any home or institution maintained or managed by the Department of Social Welfare and Development (DSWD) or by any other agency or voluntary organization accredited by the DSWD for the purposes of this Act or any other suitable place the resident of which is willing temporarily to receive the victim.

(h) **"Children"** refers to those below eighteen (18) years of age or older but are incapable of taking care of themselves as defined under Republic Act No. 7610. As used in this Act, it includes the biological children of the victim and other children under her care.

**Q: What if X and Y are in a relationship. For almost 10 years, they have been living together. At Christmas time, they went to HongKong. While they were celebrating Christmas in HongKong, X told Y she wanted out of the relationship because X found another woman. When the both of them went back to the Philippines, they went to the house that they had built. X who is now separated from Y wanted the latter to leave the said house, but Y said no as they built this house with the use of both their money. However, X forced Y to sign a Deed of Absolute Sale, giving the said house to X. But Y said no and that she will never sign up. X physically abused Y. Because of this physical abuse, Y became unconscious and so Y had to be brought again to the hospital. A case for violation of RA 9262 was filed against X. X countered that Y has no cause of action as RA 9262 does not apply to lesbian relationships just like theirs. Is X correct?**

**A:** No. In the case of **Garcia v. Drilon** and **Jacinto v. Fouts**, the SC said that RA 9262 applies even to lesbian relationships.

Under RA 9262, violence against women and their children refers to any act or series of acts committed by any person against a woman who is:

1. His wife or former wife, or
2. Against a woman with whom the person has or had a sexual or dating relationship, or
3. With whom he has a common child, or against her child whether legitimate or illegitimate within or without the family abode.

The said act or series of acts result in or is likely to result in physical, sexual, psychological harm or suffering, or economic abuse.

The SC said, violence against women and their children may be committed against a woman with whom the person has or had a sexual or dating relationship. The use of the gender neutral word *"any person against a woman"* encompassess even lesbian relationships. The use of the gender neutral word person encompasses even lesbian relationships. Hence, VAWC applies even to lesbian relationships

**Q: Can a father apply for a protection and custody order under RA 9262 on behalf of the child against her very own mother?**

**A:** The SC, in the case of **Knutson vs. Sarmiento-Flores (En Banc),** clarified that a father can apply for a protection order under RA 9262 on behalf of his child against the child's mother who has committed abuses against the child. In the same case, the RTC denied the petition for a protection order against the mother. RTC said No, because RA 9262 is to protect the woman and the child. Therefore, the protection order cannot be against the said woman who is the one being protected by the Law.

SC said No, RA 9262 allows the father of the child to apply for a protection order and custody order. SC said that Sec. 9 of RA 9262 provides that parents or guardians of the offended party may file a petition for a protection order. Therefore, by express provision of the law, parents or guardians of the offended party. The law does not qualify which of the parents of the victim may apply for protection order. Therefore, a father, being a parent, is not disqualified from filing a petition for a protection order in favor of the child against the child's very own mother.

Another reason given by the SC, under the United Nations World Health Organization, it is expressly stated that violence against children includes all forms of violence which may be committed by parents, caregivers, peers, romantic partners, or strangers. Therefore, based on the said United Nations World Health Organization, even mothers may be the offenders in RA 9262.

## PSYCHOLOGICAL VIOLENCE UNDER SEC. 5(i), RA 9262

***SECTION 5. Acts of Violence Against Women and Their Children.*** – The crime of violence against women and their children is committed through any of the following acts:

x x x x

(i) Causing mental or emotional anguish, public ridicule or humiliation to the woman or her child, including, but not limited to, repeated verbal and emotional abuse, and denial of financial support or custody of minor children of access to the woman's child/children.

**Q: What if X and Y are married? Y discovered that X is having an extramarital affair with C? Upon consultation with counsel, Y filed a case of violation of Sec. 5(i) under RA 9262 against X for inflicting psychological violence through marital infidelity. Is X liable for the crime charged?**

**A:** Yes. In the case of **Arrazza v. People** and **XXX v. People**, the SC convicted the husband for violation of Sec. 5(i) of RA 9262. The SC said that for engaging in an extramarital affair with another woman, the husband is liable for inflicting psychological violence upon his wife.

Sec. 5(i) of RA 9262 penalizes forms of psychological violence inflicted against the woman and their children. The elements of Sec. 5(i) are as follows:

**ELEMENTS**

1. Offended party is a woman and/or her child;
2. The woman is either the wife, former wife, of the offender, or is a woman with whom the offended party had a sexual or dating relationship, or is a woman with whom the offender has a child
3. The offender causes on the woman or her child, mental or emotional anguish; and,
4. The said anguish is caused through acts of psychological violence.

Under RA 9262, psychological violence refers to acts or omission causing or likely to cause mental or emotional suffering upon the said victim. Such as but not limited to intimidation, harassment, stalking, damage to property, public ridicule, humiliation, repeated verbal abuse, and marital infidelity.

By expressed definition of psychological violence under RA 9262, marital infidelity is among the modes for inflicting psychological violence upon the woman and her children. Hence, in the problem, the husband acts having an extra marital affair with another woman, C, will bring about infliction of psychological violence upon the said wife, resulting in her emotional anguish and mental suffering.

**Q: What if in the said problem, the husband is having an extra marital affair with another woman. However, the said illicit affair was not taking place not in the Philippines but in a foreign land. X, the husband was having an illicit affair with Z in Japan. May a complaint for psychological abuse under Sec 5(i) of RA 9262 still be filed by the said wife against the husband before the Philippine courts?**

**A:** Yes. In the case of **AAA v. BBB,** the SC said, even if the alleged illicit relationship causing the wife mental and emotional anguish is committed in a foreign land, Philippine courts still have jurisdiction to hear the said case of violation of Sec. 5(i) of RA 9262. What RA 9262 criminalizes is not the marital infidelity per se but the psychological violence causing mental and emotional suffering upon the wife.

According to the SC under Sec. 7 of RA 9262, the acts of violence against women and their children are considered as transitory or continuing acts. So by express provision of Sec. 7, these acts of violence against women and their children are considered as transitory or continuing offenses. It is a transitory or continuing offense even if the extra marital relationship took place in a foreign land.

Here, since the said wife has been inflicted with psychological violence which caused her mental and emotional suffering in the Philippines, the case of violation of Sec. 5(i) inflicting psychological violence through marital identity would still prosper before the Philippine courts.

**Q: Is inflicting psychological violence by denying the woman and her child the financial support legally due them or by inflicting economic abuse upon the woman and or her child considered acts mala in se or acts mala prohibita?**

**A:** In the cases of **Acharon v. People** and **Kalingasan v. People** acts mala in se and not mala prohibita.

The SC said Sec. 5(i), inflicting psychological violence through by denying the said woman and or her child the financial support legally due them and Sec. 5(e) inflicting economic abuse are acts mala in se even if RA 9262 is a violation of special penal law. Since they are acts mala in se, there must be the concurrence of both the mens rea and the actus reus in order for the said accused to be convicted. Therefore, it is not enough for a woman or a child to experience mental and emotional anguish and it is not enough for the husband or a partner to deny financial support that is legally due them. In order for a criminal liability to arise under Sec. 5(i), in so far as it deals with denial of the financial support legally due the woman and her child, there must be the concurrence of both the mens

rea and the actus reus. Hence, there must be evidence on record that the accused willfully and consciously withheld the financial support legally due the woman and or her child for the purpose of inflicting mental and emotional anguish upon them.

Otherwise stated, the actus reus of the offense is the willful denial of financial support. The mens rea is the intention of the said man (ex. husband, partner), to inflict mental or emotional anguish upon them.

**Q: What if it is a violation of section Sec. 5(i) through inflicting psychological violence through marital infidelity. Does it also fall under acts mala in se?**

**A:** No. Even if it is inflicting psychological violence through marital infidelity, it is an act malum prohibitum. There is no need to prove that the said woman suffered mental and emotional anguish. The mere fact that the said husband has an illicit relationship with another woman - obviously, that woman will suffer mental and emotional anguish. Therefore, if it is inflicting psychological violence through marital infidelity, it is *presumed* that the wife suffered psychological violence. There's no need to prove that the woman suffered mental and emotional anguish. The law presumes if there is an illicit relationship with another woman that that wife will definitely suffer mental and emotional damage.

## ECONOMIC ABUSE UNDER SEC. 5(e), RA 9262

***SECTION 5. Acts of Violence Against Women and Their Children***. – The crime of violence against women and their children is committed through any of the following acts:

x x x x

(e) Attempting to compel or compelling the woman or her child to engage in conduct which the woman or her child has the right to desist from or desist from conduct which the woman or her child has the right to engage in, or attempting to restrict or restricting the woman's or her child's freedom of movement or conduct by force or threat of force, physical or other harm or threat of physical or other harm, or intimidation directed against the woman or child. This shall include, but not limited to, the following acts committed with the purpose or effect of controlling or restricting the woman's or her child's movement or conduct:

(1) Threatening to deprive or actually depriving the woman or her child of custody to her/his family;

(2) Depriving or threatening to deprive the woman or her children of financial support legally due her or her family, or deliberately providing the woman's children insufficient financial support;

(3) Depriving or threatening to deprive the woman or her child of a legal right;

(4) Preventing the woman in engaging in any legitimate profession, occupation, business or activity or controlling the victim's own mon4ey or properties, or solely controlling the conjugal or common money, or properties;

x x x x

**Q: Will that amount to "economic abuse" under Sec. 5(e) of RA 9262?**
**A:** The SC said NO. In the cases of Acharon v. People and Calingasan v. People, the SC said that the ruling in Melgar v. People and Reyes v. People have already been abandoned. If an accused is charged under Sec. 5(i) of RA 9262 or "Psychological Violence" and thereafter acquitted, he cannot be convicted in the very same Information for violation of Sec. 5(e) of RA 9262 because Sec. 5(e) – Economic abuse and Sec. 5(i) – Psychological violence penalize two (2) distinct crimes.

| ECONOMIC ABUSE UNDER SEC. 5(e) OF RA 9262 | PSYCHOLOGICAL VIOLENCE UNDER SEC. 5(i) OF 9262 |
|---|---|
| Punishes the deprivation of financial support for the purpose of controlling or restricting the woman or her child's movement or conduct. | Punishes the willful infliction of psychological violence against the woman and her child by denying them the financial support legally due them. |

**NOTE**: Both Sec. 5(e) – Economic abuse and Sec. 5(i) – Psychological punish entirely different acts. Therefore, the variance doctrine does not apply.

## ANTI-HAZING ACT OF 2018
## RA 8049 AS AMENDED BY RA 11053

***Sec. 3. Prohibition on Hazing.*** - All forms of hazing shall be prohibited in fraternities, sororities, and organizations in schools, including citizens' military

training and citizens' army training. This prohibition shall likewise apply to all other fraternities, sororities, and organizations that are not school-based, such as community-based and other similar fraternities, sororities and organizations: Provide, That the physical, mental, and practices to determine and enhance the physical, mental, and psychological fitness of prospective regular members of the AFP and the PNP as approved by the Secretary of National Defense and National Police Commission, duly recommended by the Chief of Staff of the AFP and Director General of the PNP, shall not be considered as hazing purposes of this Act: Provided, further, That the exemption provided herein shall likewise apply to similar procedures and practices approved by the respective heads of other uniformed learning institutions as to their prospective members, nor shall this provision apply to any customary athletic events or other similar contests or competitions or any activity or conduct that furthers a legal and legitimate objective, subject to prior submission of a medical clearance or certificate.

In no case shall hazing be made a requirement for employment in any business or corporation.

Hazing is now totally banned or prohibited in the Philippines after RA 11053 amended RA 8049. What is only allowed are initiation rites without any form of violence involved.

**Q: Is hazing an act malum in se or malum prohibita?**
**A:** In the case of **Dungo v. People**, the SC said that the crime of hazing is an act malum prohibitum because hazing itself is not inherently immoral. However, the law deems the same as against public policy and therefore, penalizes the crime of hazing.

Since it is an act malum prohibitum, criminal intent is immaterial and good faith is not a defense. Therefore, an accused in the crime of Hazing cannot raise the defense that he did not intend to commit so grave a wrong as that committed.

Moreover, criminal intent is immaterial in the crime of hazing. The defense of good faith, the lack of intention to commit so grave a wrong cannot be raised as a defense because hazing is an act malum prohibitum.

## ANTI-TRAFFICKING IN PERSONS
## RA 9208, AS AMENDED BY RA 10364; RA 11862

**[These are prior year notes. The whole topic was skipped by Prosec during lecture]**

**Q: X was caught by the police in the act of offering sexual services of two girls. Both girls were 17 years old. X was offering them to the customers for P2,000.00 each. These two girls consented to the illicit transaction because they need money to feed their families. When X was caught, X is now prosecuted for the crime of qualified trafficking in persons under R.A. No. 9208, as amended.**

**However, X countered that she cannot be held criminally liable for qualified trafficking in persons under R.A. No. 9208. She should be acquitted of the crime charged because according to her, these two minors were not caught in the act of engaging in sexual intercourse with their customers. Therefore, according to her, she cannot be held liable for qualified trafficking in persons, Is X's argument meritorious?**

**A:** NO, X argument has no merit. Under Section 4(e) of R.A. No. 9208, as amended, the law punishes the act of maintaining or hiring a person to engage in prostitution or pornography. Therefore, the exploitation of minors either through prosecution or through pornography is what is explicitly prohibited. The crime of trafficking in persons is consummated even if there is no sexual intercourse ongoing between the said minor trafficked and the customer. The mere act of transaction already consummates the crime. The two minors' acquiescence, approval, or consent to the illicit transaction is not even considered as a circumstance which will lower the penalty because they are minors, they cannot give their own.

**Q: X is 14 years old. X had a misunderstanding with her mother. Medyo napagalitan ng nanay. So, she ran from home. X stayed in the house of her friend. While X was staying, living in the house of her friend, X met Y. Y asked X, "You are beautiful. Do you want to earn money? You can earn easy money by having sexual intercourse with customers. I can find customers for you. You can have money if you will allow me to find a customer for you." Since X was in need of money, X agreed.**

**The next day, Y went back to X and told the latter that he already found a customer for her. X dressed up and thereafter, Y brought X to the said customer. X had sexual intercourse with the said customer and thereafter, the said customer gave X P2,000.00. The moment X accepted the P2,000.00 from the customer, X gave the share of Y P600.00. What crime is committed by Y?**

**A:** In the case of **Brozoto v. People, G.R. No. 233420, April 28, 2021,** the Supreme Court said, Y committed two crimes – Qualified Trafficking in Persons under R.A. No. 9208, as amended and Violation of Section 5(a) of R.A. No. 7610. Y is liable for Qualified Trafficking in Persons under R.A. No. 9208, as amended because the gravamen of the crime of trafficking is the act of recruiting or using, with or without consent, a fellow human being for purposes of sexual exploitation. In this case, Y recruited X for the purpose of prostitution and it is qualified because X is a minor. Y is also liable for violation of Section 5(a) of R.A. No. 7610 because Y acted as a procurer of a child prostitute. Y exploited X in prostitution when he procured and found a customer to engage in a sexual intercourse with X for a fee and for which Y was given a share in the amount of P600.00. Therefore, the said accused is liable for two crimes.

## CYBER-CHILD PORNOGRAPHY (RA 9775 IN RELATION TO RA 10175)

**Q: X is 24 years old while Y is 14 years old. Y has a crush on X, the 24-year-old man. X learned that this girl has a crush on him. So, he began sending her messages on Facebook Messenger. Then X courted Y. Y answered X and they became lovers/sweethearts.**

**The relationship between X and Y was discovered by the mother. The mother disapproved because her daughter was too young. The mother got very mad of this relationship and told her daughter to stop seeing the said man. The mother has the habit of looking at the social media account of her daughter. Until one time the mother read the conversation between her daughter and X. The said man was coaching Y to send him photos of her breasts and vagina to which Y did. When X asked her to undress herself and to take photos of her breasts and vagina, Y did and sent these photos to X.**

**When the mother discovered these, X was charged with violation of Section 10(a) of R.A. No. 7610 and Child Pornography in relation to R.A. No. 10175 or the Cybercrime Act. Is X liable as charged?**

**A:** In this case of **Cadajas v. People, G.R. No. 247348, November 16, 2021**, the RTC acquitted Cadajas for violation of R.A. No. 7610 but convicted him of Child Pornography in relation to the Anti-Cyber Crime Act.

The Supreme Court convicted Cadajas as charged. SC said, based on the photographs and conversations in the Facebook Messenger account, it was evident that Cadajas obtained these photos from the girl by inducing the girl to send her these photos of her private parts.

The photos and conversations in the FB Messenger account were obtained and used as evidence against Cadajas. These, according to the SC, cannot be considered as fruit of the poisonous tree because fruits of the poisonous tree will only apply if the persons who obtained it are police officers or agents of the State. Here, they were obtained by the mother. Hence, SC said, Cadajas' right to privacy has not been violated.

The photos were obtained because Cadajas himself gave his password to his girlfriend Y. Considering that he was the one who gave the password to his girlfriend, his act in effect, Cadajas' authorized the girl to access the same. Therefore, he waived his right to privacy.

The Supreme Court said, he is liable for Child Pornography defined and penalized under R.A. No. 9775, as amended because child pornography is classified as a crime mala in se and not mala prohibita. The intent of Cadajas to abuse the girl and engage in child pornography by inducing her to exhibit her breast and vagina is evident. SC said, Cadajas, being 24 years old, is one with mental maturity and should have known that it is not only illegal but inherently wrong for the minor to show him her private parts. Therefore, Cadajas is liable for violation of the Child Pornography Act. Since the same was done through the use of a computer system, the penalty for Child Pornography shall be one degree higher if it is in relation to the Anti Cyber Crime Act. And since the penalty for Child Pornography under R.A. No. 9775 is reclusion temporal in its maximum period and a fine of P1 Million – P2 Million, the penalty to be imposed on Cadajas would be the indivisible penalty of reclusion perpetua.

**NOTE:** It is always a degree higher if it is done through the computer system.

# TITLE 9: CRIMES AGAINST PERSONAL LIBERTY AND SECURITY

## KIDNAPPING AND SERIOUS ILLEGAL DETENTION (ART. 267)

***Art. 267. Kidnapping and serious illegal detention***. – Any private individual who shall kidnap or detain another, or in any other manner deprive him of his liberty, shall suffer the penalty of reclusion perpetua to death:

If the kidnapping or detention shall have lasted more

than three days.

If it shall have been committed simulating public authority.

If any serious physical injuries shall have been inflicted upon the person kidnapped or detained; or if threats to kill him shall have been made.

If the person kidnapped or detained shall be a minor, except when the accused is any of the parents, female or a public officer.

The penalty shall be death penalty where the kidnapping or detention was committed for the purpose of extorting ransom from the victim or any other person, even if none of the circumstances above-mentioned were present in the commission of the offense.

When the victim is killed or dies as a consequence of the detention or is raped, or is subjected to torture or dehumanizing acts, the maximum penalty shall be imposed. (as amended by Republic Act No. 7659, [December 13, 1993])

Under Art. 267, the first act is punished is kidnapping and serious illegal detention:

**ELEMENTS**

1. The offender is a private person;
2. He kidnaps or detains another or in any other manner deprives him of his liberty;
3. The said kidnapping or detention is illegal;
4. The said kidnapping or detention is attended by any of the following circumstances:
    a. The kidnapping or illegal detention shall have lasted for more than three (3) days;
    b. It is committed by simulating public authority;
    c. Any serious physical injuries shall have been inflicted upon the person kidnapped or detained, or threats to kill him have been made; or
    d. The person kidnapped or detained is a female, a public officer, or a minor.

You remove all of these circumstances, the crime committed is Slight Illegal Detention under Article 268.

**Q: Can a public officer commit the crime?**

**A:** YES. In the case of **People v. Borja**, the SC said that a public officer who detains a person for the purpose of extorting ransom cannot be said to be acting in his official capacity. In this case, said public officer acted in his private capacity.

In the said case, Police Officer Borja and his men abducted Ronalyn. She was forcibly taken, brought inside the van and the van roamed around Quezon City for five (5) hours. Borja called the brother of Ronalyn asking for ransom. SC said that Police officer Borja and his men are not liable for Arbitrary Detention, but they are liable for Kidnapping and Serious Illegal Detention for Ransom.

The essence of kidnapping is the actual deprivation of the victim's liberty coupled with the intent of the accused to effect it. In that case, Ronalyn was deprived of her liberty. She was forcibly taken by Police officer Borja and his cohorts, was placed inside the van and the said van was driven in Quezon City for five (5) hours. For five (5) hours, she was detained and was only released after ransom had been paid.

The SC in this case said that a public officer who detains a person for the purpose of extorting ransom cannot be said to be acting in his official capacity. Public officers may be prosecuted under Art. 267 of the RPC if they acted in their private capacity. Therefore, **the crime committed is not for Arbitrary Detention.** The crime committed is Kidnapping and Serious Illegal Detention for Ransom.

**Qualifying Circumstances**

The following circumstances will qualify the penalty to death:

1. When the kidnapping or detention is for the purpose of extorting ransom from the victim or any other person (kidnapping for ransom)
2. When the victim is killed or dies as a consequence of the kidnapping or the detention or is raped or is subjected to torture or other dehumanizing act, the maximum penalty shall be the one imposed.
3. When the victim is killed or dies as a consequence of the kidnapping or the detention (kidnapping with homicide / murder)
4. When the kidnapped victim is raped. (kidnapping with rape)

**Ransom**

Ransom refers to any consideration given in exchange for the liberty of a person. It can be money or anything. The amount is immaterial. Even if it is only P10.00. If without the said P10.00, the victim held captive will not be

released, then the P10.00 will be considered as ransom. There is no such thing as miniscule amount insofar as ransom is concerned. For as long as it is dependent on the release of a person held captive it is considered as ransom.

**Special Complex Crime or Composite Crime**

Under the last paragraph of Art. 267, we have Composite Crimes or Single Indivisible Offense. This is brought about by the amendment made by R.A. No. 7659 or the Heinous Crimes Law. Under the last paragraph of Article 267, when the said victim is killed or dies as a consequence of the kidnapping or detention or raped or is subjected to torture or
dehumanizing acts, maximum penalty, death shall be the one imposed.

When the victim is killed or dies as a consequence of the kidnapping or detention, we have the Special Complex Crime or the Single Indivisible Offense or the Composite Crime of Kidnapping with Homicide or Kidnapping and Serious Illegal Detention with Homicide or Kidnapping with Murder or Kidnapping with Serious Illegal Detention with Murder.

When the said victim is killed or dies as a consequence of the kidnapping or detention, or is raped, or subjected to torture or dehumanizing acts, the maximum penalty will be imposed.

When the victim is killed or dies as a consequence of the detention, we have the special complex crime/single indivisible offense/composite crime of:

1. Kidnapping with Homicide or Kidnapping and Serious Illegal detention with Homicide; or
2. Kidnapping with Murder or Kidnapping and Serious Illegal Detention with Murder.

If the victim is raped, it is kidnapping and serious illegal detention with rape.

These are considered as special complex crimes (composite crimes). It is the law, through the amendment brought by R.A. 7659 that combined these crimes and brought about the penalty described which is death.

However, in order for these special complex crimes (composite crimes or single indivisible offenses) to arise, it is necessary that the very victim of the kidnapping or detention must be the victim of the killing or rape, as the case may be.

If it is another person who is not the victim of kidnapping or the detention, then the said act of killing or rape shall constitute a separate and distinct charge.

**Q: X was kidnapped. The accused kidnapped X. Thereafter, the accused was asking the family for ransom. However, even before ransom was paid, the accused already killed the victim. What crime is committed by the said accused?**
**A:** The said accused is liable for Kidnapping for Ransom. It is kidnapping for ransom because he detained X for the purpose of extorting ransom from the parents. It is not necessary that ransom be paid. It suffices that the purpose of the offender is to extort ransom from the victim or the family. He killed the victim.

**Q: X kidnapped A, B, C, and D. Thereafter, X called the relatives of A, B, C, and D and asked from the relatives P1M each in exchange for the liberty of A,B,C, and D or a total of P4M.**

**An entrapment operation took place and X was arrested. The Office of the Public Prosecutor only indicted X of only one count of Kidnapping with Ransom. Only one Information was filed before the RTC for Kidnapping for Ransom under Art. 267. In the Information, it was alleged that there were four victims. Is the said Information correct?**

**A:** No. In the cases of **People v. Araneta** and **People v. Dela Cruz**, the SC held that the charge is not correct. Since there are four victims, the Office of the Public Prosecutor should have filed four separate and distinct Information for Kidnapping for Ranson under Art. 267 of the RPC. Since only one Information was filed against the accused, despite the fact that there were four victims kidnapped, the said Information is defective.

**Q: X kidnapped Y. Later, X called the brother of Y and asked the brother P5M in exchange for the liberty of Y. The brother said, our family does not have that amount and requested a lower amount. They eventually agreed on P1M.**

**The place was set where there will be the exchange of money and Y. The brother, however, informed the police authorities. When the kidnapper X received the money, Y was not given to the brother. X suspected that the police were around and so X did not give Y to his brother. Days later, during their search, Y was later found but already dead. What is the crime committed by X?**

**A:** In the case of **People v. Dionaldo** the SC provided for the proper nomenclature of the crime. The SC said the proper nomenclature of the offense would be Special Complex Crime of Kidnapping for Ransom with Homicide. The purpose of the offenders was to extort ransom from the brothers and in the course of the said kidnapping or detention, the victim was killed. Therefore, the proper nomenclature of the crime is the *special complex crime of Kidnapping for Ransom with Homicide* and not merely Kidnapping with Homicide

**Q: X, Y, and Z were mad at W, they had a grudge against W. One night, while X,Y, and Z was inside the restaurant, they mistook A for W. Immediately, X, Y, and X forcibly took A, placed a handkerchief around the mouth and around the eyes of A. Thereafter, they brought A to a secluded place. The following day while X was inside the room with A, X realized that they detained the wrong person. X immediately told Y and Z to return A from the place where they abducted him. Y and Z immediately brought A inside their car to return the latter. While they were already on the road, they were hit by a big 10-wheeler truck. X, Y, and Z are all charged with a special complex crime of Kidnapping with Homicide. Is the charge proper?**

**A:** Yes, the charge is proper. Under Art. 267 of the RPC, it is provided that when the person kidnapped is killed or dies as a consequence of the kidnapping or detention or is subjected to torture or dehumanizing act, the maximum penalty shall be the one imposed. Based on the facts of the case, X, Y, and Z forcibly took A whom they had mistaken to be W, and deprived A of his liberty by locking him inside a secluded place. In a course thereof, A died when he was already to be brought to the place where he was abducted because their car was hit by.

It is not necessary for the special complex crime of kidnapping with homicide to arise that the kidnappers would be the one to kill the victim. For the special complex crime of kidnapping with homicide to arise, the victim is killed or dies as a consequence of the kidnapping or detention. In this case, A died as a consequence of the said kidnapping or detention because their car was hit by a truck on their way to the place from where he was abducted. Therefore, the crime committed is the special complex crime of Kidnapping with Homicide.

**Q: What if X forcibly took Y, brought Y in his house, tied Y, and everything was done against the will of Y. On the 4th day of Y's detention, X ordered Y to undress while he was pointing a gun at Y. Afraid of this, Y complied and took off her clothing. Thereafter, X forced Y to lie down and X climbed on top of her and penetrated her by means of force and violence. What crime or crimes is or are committed by X?**

**A:** X is liable for the special complex crime of Kidnapping and Serious Illegal Detention with Rape. Under Art. 267, last paragraph as amended by RA 7659, when the victim of rape as a consequence of the said kidnapping or detention, we have the special complex crime of Kidnapping and Serious Illegal Detention with Rape, penalized by death penalty, the maximum penalty.

In this case, the said woman Y was abducted. In the course of the said abduction, X had sexual intercourse with her by means of force and violence. Moverover, under Art. 267, the moment the victim of the kidnapping or detention is a woman, a public officer, or a minor, it is always serious in nature. Therefore, since Y is a woman, it is Didnapping and Serious Illegal detention with Rape.

**Q: What if X raped Y by means of force and violence three times such as X raped Y on the 4th day, 5th day, and 6th day of her detention. What crime or crimes should be filed against X?**
**A:** X should be charged with the same crime, the special complex crime of kidnapping and serious illegal detention with rape, regardless of the number of times the victim had been raped. Since it is a special complex crime and single indivisible offense, all the acts of rape, all these multiple rape are merged in the composite integrated whole, that is the special complex crime of Kidnapping and Serious Illegal Detention with Rape.

## SLIGHT ILLEGAL DETENTION (ART. 268)

***Art. 268. Slight illegal detention.*** – The penalty of reclusion temporal shall be imposed upon any private individual who shall commit the crimes described in the next preceding article without the attendance of any of circumstances enumerated therein.

The same penalty shall be incurred by anyone who shall furnish the place for the perpetration of the crime.

If the offender shall voluntarily release the person so kidnapped or detained within three days from the commencement of the detention, without having attained the purpose intended, and before the institution of criminal proceedings against him, the penalty shall be prision mayor in its minimum and medium periods and a fine not exceeding One hundred thousand pesos (P100,000).

### ELEMENTS

1. The offender is a private person;
2. He kidnaps or detains another or in any other manner deprives him of his liberty;
3. The said kidnapping or detention is illegal;
4. The kidnapping or detention was done without the attendance of any of the circumstances enumerated in Article 267.

If the accused kidnap the victim and the said act of kidnapping is illegal, and it did not last for more than three days. It is not committed by simulating public authority. No serious physical injuries have been inflicted. No threats to kill have been made, and the said kidnap victim is not a woman, not a minor, not a public officer. The crime committed is slight illegal detention under Article 268.

In case of Slight Illegal Detention under the Art 268, the spontaneous and voluntary release by the offender of the kidnapped victim will *mitigate* his criminal liability if the release was made: (as a privilege mitigating circumstance)

1. Within three days from the time of the commencement of the detention;
2. Without the offender having attained his purpose; and
3. Before the institution of criminal proceedings against the accused.

If these three are present, the offender's voluntary release of the kidnapped victim in the crime of Slight Illegal Detention will mitigate his criminal liability.

If the victim of the kidnapping and illegal detention is a public officer, a woman, or a minor, it is always serious illegal detention. In this crime, no amount of voluntary, or spontaneous release will mitigate the offender's criminal liability.

**Q: X was engaged in the same business as Y. However, Y's business is more profitable than that of X. X, mad at Y and wanting to take revenge, abducted Y. X wanted to detain Y for about two (2) weeks to one (1) month so that the latter will not be able to attend to his business. X brought Y to a secluded place, left some food, and left. However, X suddenly felt fear of the consequences of his actions. So, X went back to the place where he detained Y and immediately released the latter. Is X liable for any crime?**

**A:** X is liable for SLIGHT ILLEGAL DETENTION under Art. 268. X is a private person. He kidnaps or detains Y against his will, without any legal ground. The detention did not last three (3) days. The act was done without simulating public authority; no serious physical injuries were inflicted on the victim and no threats to kill him have been made; Y is not a female, a public officer, nor a minor.

If the act of kidnapping or detention is not attended by any of the circumstances under Art. 267, the crime committed is Slight Illegal Detention under Art. 268.

**[Articles 269-279 were skipped during lecture. The following are lifted from previous notes.]**

## UNLAWFUL ARREST (ART. 269)

***Art. 269. Unlawful Arrest. -*** The penalty of arresto mayor and a fine not exceeding 500 pesos shall be imposed upon any person who, in any case other than those authorized by law, or without reasonable ground therefor, shall arrest or detain another for the purpose of delivering him to the proper authorities.

**ELEMENTS:**

1. The offender arrests or detains another person;
2. The purpose of the offender is to deliver him to proper authorities; and,
3. The arrest or detention is not authorized by law or there is no reasonable ground therefor.

**NOTE:** No period of detention is fixed by law in Art. 269, but
the motive of the offender is controlling:

- ➔ If his purpose is to deliver him to the proper authorities and file a case against him without legal ground – Unlawful Arrest.
- ➔ If his intent is to detain – Arbitrary Detention.

## KIDNAPPING AND FAILURE TO RETURN A MINOR (ART. 270)

***Art. 270. Kidnapping and failure to return a minor. -*** The penalty of reclusion perpetua shall be imposed upon any person who, being entrusted with the custody of a minor person, shall deliberately fail to restore the latter to his parents or guardians.

**ELEMENTS:**

1. The offender is entrusted with the custody of a minor person (whether over or under 7 years but less than 21 years of age); and,
2. He deliberately fails to restore the minor to his parents or guardians.

## INDUCING A MINOR TO ABANDON HIS HOME (ART. 271)

***Art. 271. Inducing a minor to abandon his home. -*** The penalty of prision correccional and a fine not exceeding seven hundred pesos shall be imposed upon anyone who shall induce a minor to abandon the home of his parent or guardians or the persons entrusted with his custody.

If the person committing any of the crimes covered by the two preceding articles shall be the father or the mother of the minor, the penalty shall be arresto mayor or a fine not exceeding three hundred pesos, or both.

**ELEMENTS:**

1. A minor is living in the home of his parents or guardian or persons entrusted with his custody; and,
2. The offender induces said minor to abandon such home.

**NOTE:** The crime will arise even if the child has not yet left the house of the parents or guardians. Mere inducement with intent to cause damage will suffice.

**Penalty for Parents in Arts. 270 and 271**
If the crimes in Arts. 270 (Kidnapping and Failure to Return a Minor) and 271 (Inducing a Minor to Abandon his Home) are committed by the father or mother of the minor, the penalty is only *arresto mayor.*

## SLAVERY (ART. 272)

***Art. 272. Slavery. -*** The penalty of prision mayor and a fine of not exceeding 10,000 pesos shall be imposed upon anyone who shall purchase, sell, kidnap or detain a human
being for the purpose of enslaving him.

If the crime be committed for the purpose of assigning the offended party to some immoral traffic, the penalty shall be imposed in its maximum period.

**ELEMENTS:**

1. The offender purchases, sells, kidnaps or detains a human being; and,
2. The purpose of the offender is to enslave such human being.

**Qualifying Circumstance**
If the purpose of the offender is to assign the offended party to some immoral traffic (prostitution), the penalty is higher.

## EXPLOITATION OF CHILD LABOR (ART. 273)

***Art. 273. Exploitation of child labor. -*** The penalty of prision correccional in its minimum and medium periods and a fine not exceeding 500 pesos shall be imposed upon anyone who, under the pretext of reimbursing himself of a debt incurred by an ascendant, guardian or person entrusted with the custody of a minor, shall, against the latter's will, retain him in his service.

**ELEMENTS:**

1. The offender retains a minor in his service;
2. It is against the will of the minor; and,
3. It is under the pretext of reimbursing himself of a debt incurred by an ascendant, guardian or any person entrusted with the custody of the child.

## SERVICES RENDERED UNDER COMPULSION IN PAYMENT OF DEBT (ART. 274)

***Art. 274. Services rendered under compulsion in payment of debt.*** - The penalty of arresto mayor in its maximum period to prision correccional in its minimum period shall be imposed upon any person who, in order to require or enforce the payment of a debt, shall compel the debtor to work for him, against his will, as household servant or farm laborer.

**ELEMENTS:**

1. The offender compels a debtor to work for him, either as household servant or farm laborer;
2. It is against the debtor's will; and,
3. The purpose is to require or enforce payment of a debt.

## ABANDONMENT OF PERSON IN DANGER AND ABANDONMENT OF ONE'S OWN VICTIM (ART. 275)

***Art. 275. Abandonment of person in danger and abandonment of one's own victim. -*** The penalty of arresto mayor shall be imposed upon:

1. Anyone who shall fail to render assistance to any person whom he shall find in an uninhabited place wounded or in danger of dying, when he can render such assistance without detriment to himself, unless such omission shall constitute a more serious offense.
2. Anyone who shall fail to help or render assistance to another whom he has accidentally wounded or injured.
3. Anyone who, having found an abandoned child under seven years of age, shall fail to deliver said child to the authorities or to his family, or shall fail to take him to a safe place.

**Acts Punished**

I. Failing to render assistance to any person two whom the offender found in an uninhabited place wounded or in danger of dying when he can render such assistance without detriment to himself, unless such omission shall constitute a more serious offense.

**ELEMENTS:**

1. The person wounded or dying is found in an uninhabited place;
2. The giving of help would not be detrimental to himself; and,
3. He failed to render help.

II. Failing to render help or assistance to another whom the offender has accidentally wounded or injured.

III. Failing to deliver a child under seven (7) years of age whom the offender has found abandoned, to the authorities or to his family, or failing to take him to a safe place.

**Q: In a bar review during the pandemic, a question was raised to me. X is suffering from covid. She could not breathe. The family brought X from one hospital to another. At 19 hospitals, she was refused admission as all were in full capacity and there were no more beds where X can be placed.**

**The family was able to make a call to Juan. They found Juan in Pampanga. While they were on their way to Pampanga through the NLEX, X died in the car.**

**The family was very mad. The family filed a case for Abandonment of Persons in Danger against the 19 hospitals who refused admission to X. Can they be charged?**

**A:** NO. The first circumstance would not apply. The first circumstance is failing to render assistance to any person two whom the offender found in an uninhabited place wounded or in danger of dying. It is necessary that it is the

accused who found the victim inadvertently. That is the situation. He saw the victim, he did not help the victim.

In this case, it was the family who brought the victim to the numerous hospitals. Abandonment of persons will not apply because it is necessary that it was the accused who chanced upon the victim in an uninhabited place, in danger, wounded and dying and he failed to render assistance when he can render it without detriment to himself.

**Q: One early morning, X was jogging. There was a woman in the sea crying for help. She was drowning. X was a celebrated swimmer, a medalist in swimming. Upon seeing the woman whom he knew to be living on the shore, X ignored her. He continued jogging and hurriedly left. Meanwhile, fishermen in the area saw the woman. She was already floating, dying. The fishermen took her and gave her first aid and with God's grace, she survived. Is X liable for abandonment of persons in danger under Art. 275?**
**A:** YES. The said woman was dying, drowning, asking for help. It is in an uninhabited place as it happened in the wee hours of the morning and no one was there. He is a medalist and a celebrated swimmer. He can render his assistance but he failed to give help. Therefore, he can be held liable for abandonment of persons in danger under Art. 275.

**Q: X came from a party. He was tipsy as he had some liquor. He was feeling sleepy. He was driving recklessly. He did not see the woman crossing the pedestrian lane. He hit and bumped the said woman, who died. He alighted from his car. Instead of giving help/administering first aid/bringing the woman to the hospital because he saw people rushing towards her, he left the scene, increasing his speed. He was afraid he'd be ganged up by the people.**

**Later, he was arrested based on the testimony of the people who were able to take his plate number. He was charged with the Office of the Public Prosecutor of two crimes: (1) Reckless Imprudence resulting in Homicide under Art. 365; and (2) Violation of Art. 275-Abandonment of Persons In Danger. Will both cases prosper?**

**A:** YES. Reckless imprudence is a culpable felony. Abandonment of persons in danger is an intentional felony. After he killed the woman by means of his reckless imprudence because of negligence, he deliberately failed to administer the first aid which was within his means to give. Because of that, he can be held liable for intentionally and deliberately failing to render assistance to the woman whom he accidentally injured.

Both crimes can prosper according to the Supreme Court because one is based on negligence and the other is based on intent.

**Illustration of Art. 275, Third Act**

You found a child abandoned under seven (7) years of age. Any person has the obligation to bring the said child to a safe place. If the child cannot be brought to the parents or public authorities, at least, you have to bring the child to a safe place. Otherwise, the said person can be held liable under Art. 275 for such an act of failing to bring a child to a safe place.

## ABANDONING A MINOR (ART. 276)

***Art. 276. Abandoning a minor.*** **-** The penalty of arresto mayor and a fine not exceeding 500 pesos shall be imposed upon any one who shall abandon a child under seven years of age, the custody of which is incumbent upon him.

When the death of the minor shall result from such abandonment, the culprit shall be punished by prision correccional in its medium and maximum periods; but if the life of the minor shall have been in danger only, the penalty shall be prision correccional in its minimum and medium periods.

The provisions contained in the two preceding paragraphs shall not prevent the imposition of the penalty provided for the act committed, when the same shall constitute a more serious offense.

**ELEMENTS:**

1. The offender has the custody of the child;
2. The child is under 7 years of age;
3. He abandons such child; and,
4. He has no intent to kill the child when the latter is abandoned.

Abandoning a minor is committed by any person who has been entrusted with the custody of a child under 7 years of age and he abandons the said child permanently, deliberately, and consciously with no intent to kill the said child.

The penalty will be qualified if death resulted from the said abandonment or when the safety of the child has been placed in danger.

**Q: A OFW mother left her newly born child inside a garbage bin of an aircraft/airplane. Later, she was arrested. What crime is committed by the said mother?**
**A:** The crime committed is Abandoning a Minor under Art. 276. The mother is in custody of the child and she deliberately or and consciously abandoned her child without the intent to kill. Obviously, there was no intent to kill because she could have killed the said child, but she did not-- she placed her child inside a garbage can in the restroom of an aircraft. There was no intent to kill; therefore, the crime committed is Abandoning a Minor under Art. 276.

## ABANDONMENT OF MINOR BY PERSON ENTRUSTED WITH HIS CUSTODY; INDIFFERENCE OF PARENTS (ART. 277)

***Art. 269. Abandonment of minor by person entrusted with his custody; indifference of parents.*** - The penalty of arresto mayor and a fine not exceeding 500 pesos shall be imposed upon anyone who, having charge of the rearing or education of a minor, shall deliver said minor to a public institution or other persons, without the consent of the one who entrusted such child to his care or in the absence of the latter, without the consent of the proper authorities.

The same penalty shall be imposed upon the parents who shall neglect their children by not giving them the education which their station in life require and financial conditions permit.

**Acts Punished**

1. **Abandonment of a child by a person entrusted with his custody**

   It is committed by any person who, having entrusted with the living and education of a minor, shall deliver a minor to a public institution or other persons without the consent of the person who entrusted such minor to the care of the offender or, in his absence, without the consent of the proper authorities.

2. **Indifference of parents**

   It is committed by any parent who neglects any of his children by not giving them the education which their station in life requires and financial capability permits.

## EXPLOITATION OF MINORS (ART. 278)

***Art. 278. Exploitation of Minors.*** - The penalty of prision
correccional in its minimum and medium periods and a fine not exceeding 500 pesos shall be imposed upon:

1. Any person who shall cause any boy or girl under sixteen years of age to perform any dangerous feat of balancing, physical strength or contortion.

2. Any person who, being an acrobat, gymnast, rope-walker, diver, wild-animal tamer or circus manager or engaged in a similar calling, shall employ in exhibitions of these kinds children under sixteen years of age who are not his children or descendants.

3. Any person engaged in any of the callings enumerated in the next preceding paragraph who shall employ any descendant of his under twelve years of age in such dangerous exhibitions.

4. Any ascendant, guardian, teacher or person entrusted in any capacity with the care of a child under sixteen years of age, who shall deliver such child gratuitously to any person following any of the callings enumerated in paragraph 2 hereof, or to any habitual vagrant or beggar.

   If the delivery shall have been made in consideration of any price, compensation, or promise, the penalty shall in every case be imposed in its maximum period.

   In either case, the guardian or curator convicted shall also be removed from office as guardian or curator; and in the case of the parents of the child, they may be deprived, temporarily or perpetually, in the discretion of the court, of their parental authority.

5. Any person who shall induce any child under sixteen years of age to abandon the home of its ascendants, guardians, curators or teachers to follow any person engaged in any of the callings

mentioned in paragraph 2 hereof, or to accompany any habitual vagrant or beggar.

**Acts Punished**

1. Causing any boy or girl under 16 to engage in any dangerous feat of balancing, physical strength or contortion, the offender being any person.
2. Employing children under 16 years of age who are not the children or descendants of the offender in exhibitions of acrobat, gymnast, rope walker, diver, or wild animal tamer, the offender being an acrobat, etc., or circus manager or person engaged in any of said callings.
3. Employing any descendants under 12 years of age in dangerous exhibitions enumerated on the next preceding paragraph, the offender being engaged in any of the said callings.
4. Delivering a child under 16 years of age gratuitously to any person if any of the callings enumerated in paragraph 2, or to any habitual vagrant or beggar, the offender being an ascendant, guardian, teacher, or a person entrusted in any capacity with the care of such child.
5. Including any child under 16 years of age to abandon the home of its ascendants, guardians, curators or teachers to follow any person entrusted in any of the callings mentioned in paragraph 2 or to accompany any habitual vagrant or beggar, the offender being any person.

These acts are considered as exploitation of minors because these acts endanger the life and safety, the growth and development of the minors. Usually, these involve circus.

**NOTE:** If the delivery of the said child is on the basis of a consideration, compensation or money, the penalty will be QUALIFIED.

Mere act of delivering the child gratuitously under 16 years of age means that the crime is already committed.

## PENALTIES (ART. 279)

***Art. 279. Additional penalties for other offenses.***-The imposition ot the penalties prescribed in the preceding articles, shall not prevent the imposition upon the same person of the penalty provided for any other felonies defined and punished by this Code.

This provision applies to Arts. 275-279.

## QUALIFIED TRESPASS TO DWELLING (ART. 280)

***Art. 280. Qualified trespass to dwelling.*** – Any private person who shall enter the dwelling of another against the latter's will shall be punished by arresto mayor and a fine not exceeding Two hundred thousand pesos (P200,000) .

If the offense be committed by means of violence or intimidation, the penalty shall be prision correccional in its medium and maximum periods and a fine not exceeding Two hundred thousand pesos (P200,000).

The provisions of this article shall not be applicable to any person who shall enter another's dwelling for the purpose of preventing some serious harm to himself, the occupants of the dwelling or a third person, nor shall it be applicable to any person who shall enter a dwelling for the purpose of rendering some service to humanity or justice, nor to anyone who shall enter cafes, taverns, inn and other public houses, while the same are open.

**ELEMENTS:**

1. The offender is a private person;
2. He enters the dwelling of another; and,
3. The entry is done against the will of the latter.

If the said act of trespassing is committed by means of violence or intimidation, it will be qualified trespass to dwelling.

**The offender in trespass to dwelling is a private person.**

**Q: Can it be committed by a public officer or employee?**
A: Yes. if the said public officer or employee is acting in his private capacity.

If the said public officer was acting in his official capacity when he entered the dwelling of another, his intention was to conduct a search but he is not armed with a search warrant, the crime committed is under Art. 128 or violation of domicile.

If the said public officer enters a dwelling of another with no intent to conduct a search, not acting in his official capacity, but acting in his private capacity, that public officer can be liable for trespassing under article 218.

As we have studied under Art. 128 – Violation of Domicile, the phrase "entry against the will of the owner" means that there is an opposition or prohibition to enter and despite that opposition or prohibition to enter, the offender still made or performed the act of trespassing.

**"Entry"**

When you say "entry", it must be done against the will of the owner. There is either a prohibition or opposition to enter, which can be express or implied:

1. Express – there is a sign board that says "Do not enter."
2. Implied – door is closed.

**When not applicable**

Even if a person enters the dwelling of another against the latter's will, there is no trespass to dwelling if the entry is done under any of the following circumstances:

1. If the entry to another's dwelling is made for the purpose of preventing some serious harm to himself, the occupants of the dwelling or a third person.
2. If the purpose of the entry is to render service to humanity or justice.
3. If the place where the entrance is made is a café, tavern, inn and other public houses while the same

are open.

In these instances, there is no act of trespassing.

**Q: X is an avid art collector. He has a collection of paintings. There is an exhibit in the house of Y. X was invited to the exhibit in the house of Y. X went to the said place. X took notice of a beautiful painting because this painting looked exactly like the painting which he reported to have been stolen from his house years ago. So, X told Y, *"yung painting na yan, kagayang-kagaya nung painting sa bahay ko na nanakaw. In fact, na report ko sa police na nanakaw iyon. Ganyan na ganyan, walang pagkakaiba.* Y said *"I had nothing to do with that. I bought this painting at a high price from a good friend of mine. I can even show you the receipt if you want."***

**X was able to prove to Y that the painting was the painting stolen from his house. However, Y said *"well, even if that painting is the painting that was stolen from your house, that is mine now because I bought it at a big price."* That night upon reaching his house, X could not sleep. X really wants the painting back. On that very same night, X broke into the house of Y. He destroyed the wall of the house and thereafter took the painting that he has proven to belong to him. What crime is committed by X?**

**A:** X is liable for qualified trespass to dwelling Art. 280. All the elements of qualified trespass to dwelling are present. First, X is a private person. He entered the dwelling of Y against the will of Y. This is evident by the fact that he has to break into the house of Y. Since X destroyed the wall in order to enter the house of Y and get the same painting, by the presence of the same violence, the act of trespassing is qualified. Therefore, Z is liable for a qualified trespassing to dwelling. It cannot be the crime of robbery even if there was the breaking of the wall because the thing X took is proven to have belonged to him. In cases of robbery, the thing taken must belong to another person. Here, the thing X took belongs to him. Hence, the crime committed is qualified trespass to dwelling under Art. 280.

## OTHER FORMS OF TRESPASS (ART. 281)

***Art. 281. Other forms of trespass.*** – The penalty of arresto menor or a fine not exceeding Forty thousand pesos (P40,000), or both, shall be imposed upon any person who shall enter the closed premises or the fenced estate of another, while either or them are uninhabited, if the prohibition to enter be manifest and the trespasser has not secured the permission of the owner or the caretaker thereof.

### ELEMENTS

1. The offender entered the closed premises or the fenced estate of another;
2. The place entered into is uninhabited;
3. Prohibition to enter is made manifest; and,
4. The offender entered without asking the permission of the owner or the caretaker thereof.

**Trespass to Dwelling v. Trespass to Property**

| TRESPASS TO DWELLING | TRESPASS TO PROPERTY |
|---|---|
| ***As to place*** | |
| The place entered into is inhabited. | The place entered into is uninhabited |
| ***As to offender*** | |

| | |
|---|---|
| The offender is a private person or a public officer acting in his personal capacity. | The offender can be any person. |
| ***As to manner of entry*** | |
| The entry is done against the will of the owner. | The entry is done without asking permission from the owner or the caretaker. |
| ***As to prohibition*** | |
| Prohibition to enter is done either expressly or impliedly. | Prohibition to enter is made manifest or evidence. |

**Instances wherein the Offender is Not Liable for Trespassing**

Under Art. 280, there are certain instances wherein even if the offender entered the dwelling of another, the said offender cannot be held criminally liable for trespassing:

1. When the offender enters the premises of another in order to prevent some serious harm to himself, to the occupant of the dwelling, or to another person;
2. When the offender enters the dwelling or premises of another to render services to justice or to humanity; or
3. When the place entered into is a caf., tavern, inn, or similar establishments and when the same is open.

In these instances, there is no trespassing committed even if the offender entered the dwelling or the premises of another person.

**Q: The two (2) Meralco men knocked at the house of the couple X and Y. The wife opened the gate and the Meralco men entered. They were just at the terrace of the house and the wife said, "What can I do for you?" The Meralco men said, "We got reports, you have a jumper. We are going to see to it if indeed you have a jumper." So, the wife told the Meralco men, "Sandali lang po, tawagin ko lang po yung asawa ko." The wife entered the house, closed the door and told the husband, "May mga taga-Meralco, titingnan daw kung may jumper tayo." At that precise moment, the said Meralco men were already looking at the electric meter of the couple. One of the Meralco men said, "Meron! Meron! Positive! May jumper, tayo na!" and they entered the house. Are the said Meralco men liable for trespassing?**

A: Yes. The said Meralco men are liable for trespassing. They entered the dwelling of the said couple against the will of the owner. The entry was done against the will because there was an implied opposition to enter. Even if they were allowed to enter, it is only until the terrace. That the wife entered and then thereafter closed the door, it means you cannot enter inside the house. The moment they entered inside the house and they were not together with the police officer armed with the search warrant or neither were they armed with a search warrant, they committed the crime of trespassing. In that case, they are liable under Art. 280.

## THREATS

**Three (3) Kinds of Threats:**

1. Grave threats (Art. 282)
2. Light threats (Art. 283)
3. Other light threats (Art. 285)

## GRAVE THREATS (ART. 282)

***Art. 282. Grave threats.*** – Any person who shall threaten another with the infliction upon the person, honor or property of the latter or of his family of any wrong amounting to a crime, shall suffer:

The penalty next lower in degree than that prescribed by law for the crime be threatened to commit, if the offender shall have made the threat demanding money or imposing any other condition, even though not unlawful, and said offender shall have attained his purpose. If the offender shall not have attained his purpose, the penalty lower by two degrees shall be imposed.

If the threat be made in writing or through a middleman, the penalty shall be imposed in its maximum period.

The penalty of arresto mayor and a fine not exceeding One hundred thousand pesos (P100,000), if the threat shall not have been made subject to a condition.

**Acts Punished as Grave Threats**

Grave threats is committed when the following acts are committed:

1. By threatening another with the infliction upon his person, honor, or property or that of his family, of any wrong amounting to a crime coupled with a demand of money or the imposition of any other condition, even though not unlawful, the offender attaining his purpose; or

   **ELEMENTS:**

   a. The offender threatens another person with the infliction upon the latter's person, honor or property or upon that of the latter's family, of any wrong;
   b. That such wrong amounts to a crime;
   c. That there is a demand for money or that any other condition is imposed, even though not unlawful; and,
   d. That the offender attains his purpose.

2. By threatening another with the infliction upon his person, honor, or property or that of his family, of any wrong amounting to a crime, coupled with a demand of money or the imposition of any other condition, even though not unlawful, the offender not attaining his purpose; or

3. By threatening another with the infliction upon his person, honor, or property or that of his family, of any wrong amounting to a crime, the threat not being subject to a demand of money or the imposition of any other condition.

   **ELEMENTS:**

   a. The offender threatens another person with the infliction upon the latter's person, honor or property or upon that of the latter's family, of any wrong;
   b. That such wrong amounts to a crime; and,
   c. That such threat is not subject to a condition.

These are the three (3) acts punished as Grave Threats under Art. 282. Based on these 3 acts, it is evident that in the crime of Grave Threats, the wrong threatened to be committed would always and always amount to a crime. The threat may or may not be subject to a demand of money or the imposition of any other condition.

**Q: X and Y are business partners then they had an altercation. The next day, X called Y and told him, "Sige Y, ituloy mo lang yung sinasabi mong gagawin mo. Ituloy mo. Ituloy mo lang 'yan, papatayin kita." And X banged down the phone angrily. Y felt afraid when X said he was going to kill him. Y filed a case of grave threats against X. Will the case prosper?**
**A:** Yes. The case will prosper. Under Art. 282, Grave Threats is committed by any person who shall threaten another with the infliction upon his person, honor, or property or that of his family, of any wrong amounting to a crime. This crime of grave threats is consummated as soon as the said threats come to the knowledge of the person threatened. In this case, X called Y via phone, threatening to kill him. The moment X called Y and told Y, *"Sige ituloy mo 'yan, papatayin kita."* the said act of threats already came to the knowledge of Y who was at the other end of the line. The said crime of threats is already consummated the moment

the threat has come to the knowledge of Y, the person who was threatened. Therefore in this case, X can be held liable for the crime of Grave Threats.

**Garma v. People, GR No. 248317, J. Lazaro-Javier**

The Garma brothers made threats to their Barangay Chairman saying *"we should have killed him (referring to the Chairman)".* The SC in this case, acquitted the Garma brothers of the crime of grave threats.

The SC reasoned that like any other crime under the RPC, grave threats, being a felony must have a mens rea and an actus rea. The actus rea is the actor speaking or the uttering of the threats. The mens rea is the intention of the accused that the said recipient of the threat will feel intimidated. In this case, the words uttered do not constitute grave threats. There is neither mens rea nor actus reus because the words uttered were merely were merely an expression on the part of the Garma brothers without any intention to threaten the Chairman,

**Q: There is a communal water system in the barangay located in the barangay chairman premises. He controls the service of water. One time, the barangay chairman discovered a tap from the main line of said communal water done by W. The barangay chairman disconnected it.**

**Here comes W and told the chairman, "Chairman, bakit mo naman pinutol 'yung linya? Wala kaming tubig eh, lagi na lang kaming umaasa sa'yo ng tubig. Bakit mo naman pinutol?"**

**The chairman pulled out a bolo and immediately shouted, "I'm going to kill you for tapping the water! That water is for the entire people in the barangay. I am going to kill you!" Armed with a bolo, he tried to chase W. When W was running away, the wife arrived. The wife of W said, "Bakit? Ano'ng nangyayari?" When the barangay chairman saw the wife, the barangay chairman aimed the bolo at the wife and said, "Ikaw din! Papatayin kita!" and so, the barangay chairman was chasing both W and the wife of W.**

**As they were running, here comes the father-in-law of W. The father of the wife asked W and the wife, "Ano'ng nangyayari, bakit kayo tumatakbo?" and the father-in-law saw the barangay chairman armed with a bolo and was giving the threat to W and the wife. When the said father-in-law asked the chairman, "Chairman, ano'ng nangyayari?" the chairman said, "Ikaw din! Papatayin kita!" and the three of them were running while the barangay chairman was trying to chase them.**

**Because of this, the barangay chairman was charged with three (3) counts of Grave Threats. The barangay chairman argued that he may be liable for grave threats but it should only be for one count of grave threats as this amounts to a continued crime of grave threats. According to him, he merely acted in defense of the property of his people because W was stopping water from the communal water.**

**A:** In the case of **Paera v. People,** the SC said the accused is liable for three counts of grave threats. Each act of threat constitutes a separate and distinct charge because the accused had different criminal intent in these three acts. Hence, the accused was convicted for three counts of grave threats and not only for one count.

## LIGHT THREATS (ART. 283)

***Art. 283. Light threats.*** – Any threat to commit a wrong not constituting a crime, made in the manner expressed in subdivision 1 of the next preceding article, shall be punished by arresto mayor.

**ELEMENTS:**

1. The offender makes a threat to commit a wrong;
2. The wrong does not constitute a crime;
3. There is demand for money or that other condition is imposed, even though not unlawful; and,
4. The offender has attained his purpose or, that he has not attained his purpose.

The crime is Light Threats when the offender threatens to commit a wrong to another which does not amount to a crime but is always coupled with the demand of money or imposition of any other condition, whether lawful or unlawful.

**Grave Threats v. Light Threats**

| GRAVE THREATS | LIGHT THREATS |
|---|---|
| The wrong threatened to be committed always amounts to a crime. | The wrong threatened to be committed will not amount to a crime. |
| The threat may or may not be subject to a demand of money or imposition of any other condition. | It is always subject to a demand of money or the imposition of any other condition. |

| | |
|---|---|

**Essence of Threat**
The essence of Grave Threats or Light Threats is intimidation, a future harm or future wrong. It is not immediate, but in the future. This is why under Art. 282, Grave Threats can be committed not only personally but also in writing or through a middleman/third person.

**If threat is committed in writing or through a middle man under Art. 282**
Under Art. 282, if the threat is committed in writing or through a middle man, the penalty is QUALIFIED because the wrong threatened to be committed is not now; not impending to happen, but in the future.

If a person is charged with grave threats or light threats, we have the so-called bond for good behavior:

> *Art. 284. Bond for good behavior. - In all cases falling within the two next preceding articles, the person making the threats may also be required to give bail not to molest the person threatened, or if he shall fail to give such bail, he shall be sentenced to destierro.*

The judge will require the person to post a bond for good behavior to ensure that he will not make good the threats he made to the intended victim. If he failed to do so, he will be sentenced to destierro.

## OTHER LIGHT THREATS (ART. 285)

***Art. 285. Other light threats***. – The penalty of arresto menor in its minimum period or a fine not exceeding Forty thousand pesos (P40,000) shall be imposed upon:

Any person who, without being included in the provisions of the next preceding article, shall threaten another with a weapon or draw such weapon in a quarrel, unless it be in lawful self-defense.

Any person who, in the heat of anger, shall orally threaten another with some harm not constituting a crime, and who by subsequent acts show that he did not persist in the idea involved in his threat, provided that the circumstances of the offense shall not bring it within the provisions of Article 282 of this Code.

Any person who shall orally threaten to do another any harm not constituting a felony.

*Note: The word "not" is enclosed in parenthesis because the inclusion of that word in par. 2, Art. 285 is a mistake.*

*(Reyes, Criminal Law Book II, 2008)*

**Acts Punished as Other Light Threats**

1. By threatening another with a weapon or by drawing such weapon in the course of a quarrel unless it be in lawful self-defense;
2. By orally threatening another in the heat of anger with some wrong, amounting to a crime without the offender persisting with the idea involved in the threat; or
3. By orally threatening another in the heat of anger with some wrong which does not constitute or does not amount to a crime.

**Note**: Other Light Threats is only a light felony. It is only punished by arresto menor, 1 to 30 days of imprisonment.

**Q: X and Y are neighbors. X has three (3) children while Y has only 1 child. The children of X, A, B, and C, were bullying the daughter of Y. They were calling the daughter names, they were throwing ketchup sachets on the daughter. The daughter of Y went inside the house and told Y what was being done on her. Of course, Y felt sorry for her daughter so Y went out of the house and confronted the three (3) children, A, B, and C. When the said mother told the 3 children to stop bullying her daughter, these children of X began throwing also ketchup sachets on Y. Because of that, Y told the 3 children, "Mga bobo kayo! Mga wala kayong utak! Mga wala kayong pinag-aralan! Sige, gawin n'yo pa 'to, papakawalan ko ang aso ko, ipapahabol ko kayo, ipapakagat ko kayo sa aso. Sige!" Thereafter, the three (3) children were afraid and went inside the house to tell their mother X what Y did to them.**

**Because of that, Y was charged with a crime of violation of RA 7610 – child abuse. According to the Information, the said act of threatening the children is considered as child abuse. Is the charge correct?**

**A**: The SC said NO. In the case of **Escolano v. People,** the said mother Y is not liable for Child Abuse because the statements made by the woman has no intention to debase, degrade, or demean the intrinsic worth and dignity of A, B, and C as a human being. Those words were merely stated by the said woman out of frustration, out of annoyance, because of the children's unruly behavior. She only stated those words in order to stop the children from their unruly

Behavior. The said woman is liable only for Other Light Threats under Art. 285, second act, by orally threatening another in the heat of anger which some wrong amounting to a crime, without the offender persisting with the idea involved in the threat. In the heat of anger, the said woman stated these words, "Ipapahabol ko kayo sa aso, ipapakagat ko kayo sa aso." because she was in the heat of anger but, she did not persist with the idea involved in the threat. Therefore, the SC said the said woman is liable only for other light threats under Art. 285, second act and not child abuse.

## COERCION

**Essence of Coercion**

The essence of coercion is for a person not to put the law into his hands. You cannot prevent someone from doing a lawful act by means of violence, threat, or intimidation. You cannot compel someone to do something against his will whether it is right or wrong. The reason is you need to go to the proper procedure.

**Three (3) Kinds of Coercion:**

1. Grave Coercion (Art. 286)
2. Light Coercion (Art. 287)
3. Other Similar Coercion (Art. 288)

## GRAVE COERCION (ART. 286)

***Art. 286. Grave coercions.*** – The penalty of prision correccional and a fine not exceeding One hundred thousand pesos (P100,000) shall be imposed upon any person who, without any authority of law, shall, by means of violence, threats or intimidation, prevent another from doing something not prohibited by law, or compel him to do something against his will, whether it be right or wrong.

If the coercion be committed in violation of the exercise of the right of suffrage, or for the purpose of compelling another to perform any religious act, to prevent him from exercising such right or from so doing such act, the penalty next higher in degree shall be imposed.

**Two (2) Kinds of Grave Coercion**

1. Preventive coercion
2. Compulsive coercion

### 1. Preventive Coercion

There is preventive coercion when the offender, by means of violence, threats, or intimidation, prevents another from doing an act not prohibited by law (lawful act).

In case of preventive coercion, the offender was preventing someone from doing a lawful act. To do an act not prohibited by law, by means of threats, violence, or intimidation.

### 2. Compulsive Coercion

There is compulsive coercion when the offender, by means of violence, threats, or intimidation, compelled another to do an act against his will, whether it be right or wrong.

In case of compulsive coercion, the offender was compelling someone to do an act against his will. Whether it is right or wrong, he cannot compel him to do something against his will by means of violence, threat, or intimidation. He becomes liable for compulsive coercion.

**Qualifying Circumstances**

1. If the coercion is committed in violation of the exercise of the right of suffrage.
2. If the coercion is committed to compel another to perform any religious act.
3. If the coercion is committed to prevent another from performing any religious act.

**Threats v. Coercion**

In case of threats, the essence is intimidation. It is the promise of a future wrong, a future harm. The wrong threatened to be committed is not now but in the future. In case of coercion, the wrong threatened to be committed is now – direct, personal, impending to happen, at the point of happening. Hence, in so far as coercion is concerned, it cannot be committed in writing or through a middleman. It is always and always committed personally because it must be direct, personal, impending to happen.

| THREATS | COERCION |
|---|---|
| ***As to when the wrong is threatened to be committed*** | |
| In the future - a promise of a future wrong or harm | Now - direct, personal, and impending to happen |
| ***As to manner of committing the crime*** | |
| Can be committed in writing or through a middleman | Personally - cannot be committed in writing or through a middleman |

**Q: X rides his bike whenever he goes to work. X always leaves his bike on a nearby bike rack. When it was time for X to leave his work at 5pm, X was shocked to see that his bike was no longer there. He was panicked and afraid as his bike was his only means to go home. So, he ran around the block to see what happened on his back. He saw Y onboarded his bike. X shouted at Y, *"Y, Bike ko yan ah! Bakit ka nakasakay jan?"* But Y didn't mind X. X thereafter pushed Y which resulted in Y and the bike falling on the ground. X then immediately took his bike from Y and went away. What crime/crimes is/are committed by X?**

**A:** X was liable for Grave Coercion. X's act of taking the bike away from Y was without intent to gain because the bike belongs to him. However, he was compelling Y to give back the said bite to him. By means of violence, by means of intimidation. Therefore, whether it is right or wrong, that is immaterial as you cannot compel someone to do an act against his will. X is liable for grave coercion, in particular compulsive coercion.

## LIGHT COERCION (ART. 287)

***Art. 287. Light coercions.*** – Any person who, by means of violence, shall seize anything belonging to his debtor for the purpose of applying the same to the payment of the debt, shall suffer the penalty of arresto mayor in its minimum period and a fine equivalent to the value of the thing, but in no case less than Fifteen thousand pesos (P15,000).

Any other coercions or unjust vexations shall be punished by arresto menor or a fine ranging from One thousand pesos (P1,000) to Forty thousand pesos (P40,000), or both.

**First Paragraph**

**ELEMENTS:**

1. The offender must be a creditor;
2. He seizes anything belonging to his debtor;
3. The seizure of the thing be accomplished by means of violence or a display of material force producing intimidation; and,
4. The purpose of the offender is to apply the same to the payment of the debt.

**Second Paragraph**

A form of light coercion is Unjust Vexation. Unjust Vexation refers to the commission of any act that annoys, irritates, vexes another person.

**Unjust Vexation** – any human conduct, although not capable of producing harm or material injury, that annoys or vexes an innocent person.

**Q: In the case of Maderazo v. People, Mayor Maderaso went to the public market, to the stall of Verutiao. Verutiao has not been paying rental fees so the mayor ordered his men to padlock the stall of Verutiao. Thereafter, the mayor left. After an hour, the mayor came back and ordered his men to reopen the stall of Verutiao and to take all the contents therein and to bring it to the police station. Of course, his men followed. At that time, the owner of the stall, Verutiao, was not at the stall. When Verutiao arrived, she was informed of what happened, of the acts done by the mayor. What crime is committed by Mayor Maderaso?**

**A:** The SC convicted the said mayor of UnjustVexation, a form of light coercion under Art. 287. In the case of **Maderaso v. People,** the SC said that the main purpose of the law penalizing unjust vexation is to enforce the principle that no person can take the law into his own hands. No one can take the law into his hands.

Based on the facts of the case, the Mayor went to the stall of the private complainant, padlocked it. Thereafter, he went back to the said stall, padlocked it, reopened it, took the contents, and brought the contents to the police station. The SC said, it is immaterial the said Verutia, the owner of the store, the lessee was not at her stall, because the crime of unjust vexation is still committed since the man felt embarrassed, annoyed, irritated, disturbed when she learned what the mayor did to her store. Hence, Mayor Maderaso is convicted for the crime of Unjust Vexation under Art. 287 as the form of light coercion.

**[Arts. 288-292 were not discussed during the lecture.]**

## OTHER SIMILAR COERCIONS (ART. 288)

***Art. 288. Other similar coercions (Compulsory purchase of merchandise and payment of wages by means of tokens). -*** The penalty of arresto mayor or a fine ranging from 200 to 500 pesos, or both, shall be imposed upon any person, agent or officer of any association or corporation who shall force or compel, directly or indirectly, or shall knowingly permit any laborer or employee employed by him or by such firm or corporation to be forced or compelled, to purchase

merchandise or commodities of any kind.

The same penalties shall be imposed upon any person who shall pay the wages due a laborer or employee employed by him, by means of tokens or objects other than the legal tender currency of the Philippine Islands, unless expressly nance and prohibition requested by the laborer or employee.

**How Committed**

1. **Compulsory Purchase of Merchandise**

   By forcing or compelling directly or indirectly or knowingly permitting the forcing or compelling any employee or laborer to buy merchandise or commodities from the said employer.

   **ELEMENTS:**

   a. The offender is any person, agent or officer of any association or corporation;
   b. He or such firm or corporation has employed laborers or employees; and,
   c. He forces or compels, directly or indirectly, or knowingly permits to be forced or compelled, any of his or its laborers or employees to purchase merchandise or commodities of any kind from him or from said firm or corporation.

2. **Payment of Wages by means of Tokens**

   By paying the wages due to the laborer or employees by any tokens or object other than the legal tender currency of the Philippines unless to be requested by the said employee or laborer.

   **ELEMENTS:**

   a. The offender pays the wages due a laborer or employee employed by him by means of tokens or objects;
   b. Those tokens or objects are other than the legal tender or currency of the Philippines; and,
   c. Such employee or laborer does not expressly request that he be paid by means of tokens or objects.

## FORMATION, MAINTENANCE AND PROHIBITION OF COMBINATION OF CAPITAL OR LABOR THROUGH VIOLENCE OR THREATS (ART. 289)

***Art. 289. Formation, maintenance and prohibition of combination of capital or labor through violence or threats. -*** The penalty of arresto mayor and a fine not exceeding 300 pesos shall be imposed upon any person who, for the purpose of organizing, maintaining or preventing coalitions of capital or labor, strike of laborers or lockout of employers, shall employ violence or threats in such a degree as to compel or force the laborers or employers in the free and legal exercise of their industry or work, if the act shall not constitute a more serious offense in accordance with the provisions of this Code.

**ELEMENTS:**

1. The offender employs violence or threats, in such a degree as to compel or force laborers or employers in the free and legal exercise of their industry or work; and,
2. The purpose is to organize, maintain or prevent coalitions of capital or labor, strike of laborers or lockout of employers.

## DISCOVERING SECRETS THROUGH SEIZURE OF CORRESPONDENCE (ART. 290)

***Art. 290. Discovering secrets through seizure of correspondence. -*** The penalty of prision correccional in its minimum and medium periods and fine not exceeding 500 pesos shall be imposed upon any private individual who in order to discover secrets of another, shall seize his papers or letters and reveal the contents thereof.

If the offender shall not reveal such secrets, the penalty shall be arresto mayor and a fine not exceeding 500 pesos.

This provision shall not be applicable to parents, guardians, or persons entrusted with the custody of minors with respect to the papers or letters of the children or minors placed under their care or custody, nor to spouses with respect to the papers or letters of either of them.

**ELEMENTS:**

1. The offender is a private individual or even a public officer not in the exercise of his official function;
2. He seizes the papers or letters of another;
3. The purpose is to discover the secrets of such another person; and,
4. The offender is informed of the contents of the papers or letters seized.

**Qualifying Circumstance**
When the offender reveals the contents of such paper or letters to another person, the penalty is qualified.

**When not applicable**
Art. 290 is not applicable to parents, guardians or persons entrusted with the custody of minors placed under their care and custody, nor to spouses with respect to the papers or letters of either of them.

**NOTE:** This Article does not require that the offended party be prejudiced. Revealing the secrets is not an element of the offense.

### REVEALING SECRETS WITH ABUSE OF OFFICE (ART. 291)

***Art. 291. Revealing secrets with abuse of office. -*** The penalty of arresto mayor and a fine not exceeding 500 pesos shall be imposed upon any manager, employee, or servant who, in such capacity, shall learn the secrets of his principal or master and shall reveal such secrets.

**ELEMENTS:**

1. The offender is a manager, employee, or servant;
2. He learns the secrets of his principal or master in such capacity; and,
3. He reveals such secrets.

**NOTE:** Damage is not necessary under this Article.

### REVELATION OF INDUSTRIAL SECRETS (ART. 292)

***Art. 292. Revelation of industrial secrets. -*** The penalty of prision correccional in its minimum and medium periods and fine not exceeding 500 pesos shall be imposed upon the person in charge, employee or workman of any manufacturing or industrial establishment who, to the prejudice of the owner thereof, shall reveal the secrets of the industry of the latter.

**ELEMENTS:**

1. The offender is a person in charge, employee or workman of a manufacturing or industrial establishment;
2. The manufacturing or industrial establishment has a secret of the industry which the offender has learned;
3. The offender reveals such secrets; and,
4. That prejudice is caused by the owner.

**NOTE:** Prejudice is an essential element under this Article.

Art. 292 does not state the time of the revelation of the industrial secrets. Therefore, the employee or workman who revealed the secrets of the industry of his employer, after having been dismissed or separated from the establishment, may be held liable under this Article. What is important is that he was an employee or workman of the manufacturing or industrial establishment when he learned the secrets.

## TITLE 10: CRIMES AGAINST PUBLIC PROPERTY

### WHO ARE GUILTY OF ROBBERY (ART. 293)

***Art. 293. Who are guilty of robbery.*** – Any person who, with intent to gain, shall take any personal property belonging to another, by means of violence or intimidation of any person, or using force upon anything shall be guilty of robbery.

**ELEMENTS:**

1. That there be unlawful taking of personal property;
2. The personal property belongs to another person;
3. The act of taking was done with intent to gain; and,
4. The act of taking was done either with violence against or intimidation of persons or with use of force upon things.

**Intent to gain**
It is necessary that the subject of the unlawful taking must belong to another person because the law requires that there was, on the part of the offender, intent to gain.

If the thing taken belongs to the offender, it cannot be said that he has the intent to gain in taking the said person property.

**Two Ways of Committing Robbery**

Based on the last element, we have two ways of committing robbery:

1. Robbery with violence against or intimidation of persons under Article 294; and,
2. Robbery by use of force upon things either under Article 299 or Article 302.

**Q: Police Officer X alighted from the bus. The moment he alighted, he was approached by three men – A, B, and C. The three men declared a hold-up, a robbery. Thereafter, one of the men, B, immediately snatched and took away the bag of Police Officer X. To defend himself, police officer X informed, told the truth to A, B, and C according to police officer X "Police ako".**

**So police officer X informed A, B, and C, that he is a police officer. Nevertheless, A, B, and C did not sign. The statement of police officer x that he is a police officer did not stop A, B, and C, and A, B, and C even told police office X *"Anong police police, walang police police sa amin."* and then thereafter they tried to stab police officer X.**

**However police officer X was able to evade the thrust. Thereafter, B and C both of them punched and kicked police officer X. Police officer X wanting to defend himself, took out his service pistol and fired at the feet of A, B and C, because of that A, B, and C quickly fled pagbabarilin yung paa nila di naman pinataaman yung ground pinatama dun sa paa. A, B, and C quickly fled. In fleeing, in getting out of the scene, A, B, and C left their knives and the bag of police officer X that they are taking, so naiwan yung bag.**

**A case of robbery was filed against A, B, and C and they were charged as conspirators for the crime of robbery. When they were prosecuted for robbery, A, B, and C argued that they cannot be liable for robbery they should be acquitted because the element of robbery is animus lucrandi or intent to gain is absent. According to them, they failed to take the bag, they left the bag, therefore it shows there is no intent to gain, there is no animus lucrandi. Is the defense meritorious? or/are A, B, and C liable as conspirators for the crime of robbery?**

**A:** A, B, and C are liable as conspirators for the crime of Robbery. All elements of Robbery are present. First, there is unlawful taking of the bag of police officer X. The bag belongs to officer X, obviously the act of taking was done with intent to gain, and the taking was done by them, because they were able to complete the act of taking because they punched him and one even thrust a knife at him.

The argument raised by the three accused has no merit. The moment A, B, and, C unlawfully took the bag of police officer X the moment they had already taken the said bag, the crime of robbery is already consummated, and it is immaterial that X for the said police officer was able to subsequently recover the bag forcibly taken from him when the three robbers fled in fear and they dropped the bag. The said circumstance that they left the bag out of fear does not preclude the presence of intent to gain/animus lucrandi. The said animus lucrandi/intent to gain is presumed from the forceful taking of the bag. Therefore, they are liable for the crime of Robbery.

## ROBBERY WITH VIOLENCE AGAINST OR INTIMIDATION OF PERSONS (ART. 294)

***Art. 294. Robbery with violence against or intimidation of persons - Penalties. -*** Any person guilty of robbery with the use of violence against or intimidation of any person shall suffer:

1. The penalty of reclusion perpetua to death, when by reason or on occasion of the robbery, the crime of homicide shall have been committed.
2. The penalty of reclusion temporal in its medium period to reclusion perpetua, when the robbery shall have been accompanied by rape or intentional mutilation, or if by reason or on occasion of such robbery, any of the physical injuries penalized in subdivision 1 of article 263 shall have been inflicted, or the person robbed shall have been held for ransom or deprived of his liberty for more than one day.
3. The penalty of reclusion temporal, when by reason or on occasion of the robbery, any of the physical injuries penalized in subdivision 2 of the article mentioned in the next preceding paragraph, shall have been inflicted.
4. The penalty of prision mayor in its medium period to reclusion temporal in its minimum period, if the violence or intimidation employed in the commission of the robbery shall have been carried to a degree clearly unnecessary for the commission of the crime, or when in the course of its execution, the offender shall have inflicted upon any person not responsible for its commission any of the physical injuries covered by subdivisions 3 and 4 of said article 263.
5. The penalty of prision correccional to prision mayor in its medium period in other cases.

Under Article 294, the following acts are penalized as robbery with violence against or intimidation of persons:

1. When by reason or on occasion of the robbery, the crime of homicide is committed.
2. When robbery is accompanied by rape or intentional mutilation or arson.
3. When by reason or on occasion of such robbery, any of the physical injuries resulting in insanity, imbecility, impotency or blindness is inflicted.
4. When by reason or on occasion of robbery, any of the physical injuries resulting in the loss of the use of speech or the power to hear or to smell, or the loss of an eye, a hand, foot, an arm, or a leg or the loss of the use of any such member or incapacity to go to work in which the injured person is thereto habitually engaged is inflicted.
5. If violence or intimidation employed in the commission of the robbery is carried to a degree clearly unnecessary for the commission of the crime.
6. When in the course of its execution, the offender shall have inflicted upon any person not responsible for the commission of the robbery any of the physical injuries in consequence of which the person injured becomes deformed or loses any other member of his body or loses the use thereof or becomes ill or incapacitated for the performance of the work in which he is habitually engaged for more than 90 days or the person injured becomes ill or incapacitated for labor for more than 30 days.
7. If violence employed by the offender does not cause any of the serious physical injuries defined in Article 263, or if the offender employs intimidation only.

**Acts Punished**

1. Special Complex Crime of Robbery with Homicide;
2. Special Complex Crime of Robbery with Rape;
3. Special Complex Crime of Robbery with Intentional Mutilation;
4. Special Complex Crime of Robbery with Arson
5. Special Complex Crime of Robbery with Serious Physical Injuries
6. Robbery with Unnecessary Violence, and
7. Simple Robbery under Art. 294 par. 5, when the robbery is attended only by light physical injuries or with intimidation.

**Importance of the Sequence of Commission of the Crimes**

It is necessary for you to know the sequence under Article 294. If in the commission of the act of robbery, there is killing, there is rape, there is mutilation, there is arson, the crime committed by the offender is the special complex crime of Robbery with Homicide because it is the first in sequence under Article 294.

What is material is the sequence under Article 294 and not the sequence as to the acts committed by the offender. even if in the commission of the robbery, the act of rape comes ahead of homicide or killing, since under Article 294, the first in sequence is the special complex crime of Robbery with Homicide, the crime committed is the special complex crime of Robbery with Homicide. All the other acts, the rape, the intention of mutilation, the arson, the serious physical injuries are only merged in the said single indivisible offense of Robbery with Homicide.

In a special complex crime of Robbery with Homicide, the original criminal intent of the offender is to commit robbery. There must be proof that the intent to rob must precede the taking of human life. For as long as the original criminal intent of the offender is to rob, the homicide, or the killing may take place before, during, or after the robbery.

Since it is a special complex crime, the word **"Homicide"** is used in its generic sense. The word **"Homicide"** includes any kind of death such as Murder, Parricide, Infanticide, and even Accidental Death. Regardless of the number of persons killed, it will always be Robbery with Homicide. Since it is a special complex crime, regardless of the person who is killed, whether it is the owner of the property or a total stranger to the said owner or he can be the robber himself, for as long as the killing took place on the occasion of the said robbery, it is the special complex crime of Robbery with Homicide.

**Q: X, Y, and Z met A and B. X, Y, and Z and the group of A and B decided to play poker. In the said poker game, X won. Thereafter, both groups decided to go home. Both groups parted ways.**

**While X, Y, and Z were on their way home, Z noticed that A and B were on top of the hill, also walking in their direction. Suddenly, A and B fired at X, Y, and Z.**

**Z saw that X and Y were hit and they fell on their right foot. To save his life, Z dove in a canal. Thereafter, A and B went down from the hill. A and B went to X and Y. A and b took the winnings of X in the amount of P20,000.00. Thereafter, A and B left. X and Y died. Z, who dove in the canal, was able to save his life. A and B were arrested.**

**A and N were charged with Double Murder for the death of X and Y. They were also charged with robbery for taking the winnings of X, and they were also charged with attempted murder for firing at Z but Z is not wounded. So, three (3) cases were filed against the accused. Are the charges correct? If you are the judge, will you convict the accused as charged?**

**A:** In the case of **People v. Cabbab. Jr.,** the Supreme Court said **NO**. The Supreme Court convicted the accused with the **SPECIAL COMPLEX CRIME OF ROBBERY WITH HOMICIDE.** It is evident that the original criminal intent of the accused was to rob X of his winnings. In order to commit the said act of robbery, they fired at the victim. Even if X and Y died, and even if Z was shot at but was not hurt, the crime committed is the special complex crime of robbery with homicide. All the acts were committed with the original criminal intent of robbery. It is evident that the original criminal intent was to rob because their intention was to get the winnings of X.

In the case of **People v. Cabbab, Jr.**, the Supreme Court said that any other act producing the injuries short of death is integrated in the homicide committed by reason or on occasion of the robbery. Therefore, even if insofar as Z, it is only attempted murder or attempted homicide, this act which is short of death is simply integrated in the single, indivisible offense of **Robbery with Homicide**. In this special complex crime, all other acts committed short of death will be integrated in the single indivisible offense of Robbery with Homicide for as long as the original criminal intent is to rob.

**Q: X, who is in need of money, decided to rob the house of Y. Knowing that this house of Y would always have an open window on the second floor, he climbed through the open window. Once inside, he ransacked the house. While he was taking a cell phone on top of the table, it fell. The owner, Y, was awakened. He got out of bed. He got out of the bedroom. He saw X. He shouted at X. Then, X fired at him. Y died.**

**The wife heard the said gunfire and came out of the bedroom. Upon seeing X, and his dead husband, the wife shouted, X fired at the wife. As X was getting out of the said house, two helpers, the driver and the gardener, stopped him. So, X boxed them. X mauled them. Thereafter, X got out of the gate. To ensure that there will be no trace of him, he set the house on fire. What crime/s is/are committed by X?**

**A:** The crime committed by X is the **SPECIAL COMPLEX CRIME OF ROBBERY WITH HOMICIDE.** Based on the facts of the case, the original criminal intent of X was to rob the house.

By reason or on the occasion of the act of robbery, X committed two acts of killing. He committed two acts of inflicting serious physical injuries. He committed arson. Since all of these acts were committed on the occasion of the said original criminal intent to rob, they are merged in the composite or integrated in the special complex crime of Robbery with Homicide under Article 294.

**Q: The husband and wife were done with the dinner. They were about to go to sleep, when the husband heard his name being called outside repeatedly. The husband became afraid. The husband knew those voices. They were the voices of the group of W with whom he had an argument the other day. The husband x was afraid because of the repeated calling of his name.**

**What husband X did was he peeped through the window of their house. There was a small opening in the said window. He peeped through it and the husband saw W and his gang. However, W saw X peeping on the window. Upon the instruction of W, W and his gang repeatedly fired at X on the said window.**

**X, hit by a number of bullets, fell on the floor. W and his gang entered the house of X and went directly to X who was wounded, bleeding, lying on the floor. To ensure his death, they still fired at him at the different parts of his body. After ensuring the death of X, W saw the wife and the son. W and his men tied the wife and the son. Thereafter, they ransacked the house. After ransacking the house, taking everything with value, they left. What crime/s is/are committed by W and his gang?**

**A:** W and his gang are liable for **TWO SEPARATE CRIMES OF MURDER AND SIMPLE ROBBERY UNDER ARTICLE 294 PARAGRAPH 5**. It is not a special complex crime of robbery with homicide. Based on the facts of the case, the original criminal intent of the offender is not to rob. The original criminal intent of W and his gang was to kill X. Therefore, the crime committed is MURDER.

The act of taking the valuables inside the house or the act of ransacking the house was only an afterthought. After they entered the house and ensured the death of X, they ransacked the house after tying the wife and the son. Since the act of robbery was attended only by slight physical injuries, that is by tying the wife as well as the son, the crime committed is Simple Robbery under Article 294 paragraph 5.

In this case, W and his gang may be held liable for two separate and distinct crimes of Murder, for having killed husband X, and Simple Robbery under Art. 294 par. 5, as an afterthought, they ransacked the said house after tying the wife and the son of X.

**People v. Catacutan, G.R. No. 260731. February 13, 2023, Lazaro-Javier, J.**

**Q: X became text mates with Y. One day, X went to the bachelor's pad of Y. X and Y had sex. When Y fell asleep, X grabbed a knife from the kitchen, returned to bed, and then stabbed Y repeatedly.**

**Y embraced him and told him to stop. Nevertheless, X still stabbed him a number of times. To ensure the death of Y, X even slashed the neck of Y. Thereafter, X ransacked the said bachelor's pad of Y. He took everything that he could take. Everything valuable such as gadgets, jewelries, money, everything inside the bachelor's pad of Y.**

**A day thereafter, while X was having a drinking spree with his friends, X admitted to his friends that he killed Y because Y did not comply with their agreement. According to X, Y promised him P1,000.00 in exchange for sex. But after their sex, Y only gave him P500.00. Mad at Y, according to X, he decided to kill Y and to take the valuables inside the house.**

**X is now arrested. X is being prosecuted for the special complex crime of robbery with homicide. Is he liable for the special complex crime of robbery with homicide?**

**A:** The Supreme Court, in the case of **People v. Catacutan** speaking through the bar chair, Justice Amy Lazaro-Javier, said **NO**. X is not guilty of the special complex crime of robbery with homicide. However, **X is guilty of the separate crimes of Homicide and Theft**.

The Supreme Court held the accused guilty of two separate and distinct crimes. One is Homicide and Theft. It is not the special complex crime of robbery with homicide. Based on the facts of the case, the original criminal intent of X was not to rob. The original criminal intent of X was to kill Y because Y did not comply with his words that he will give X P1,000.00 in exchange for their sexual intercourse.

What X did was an act of revenge at the spur of the moment when Y would not give him the promised P1,000.00. Hence, the crime committed is HOMICIDE.

As an afterthought, after killing Y. He ransacked the house. He took the valuables therein. Therefore, there is another crime committed. Such other crime is not robbery. The other crime is THEFT. The owner of the said bachelor's pad is already dead at the time of the taking.

The Supreme Court convicted the accused of two crimes, Homicide and Theft. The evidence presented was even corroborated by the testimony of the friend of the accused. The friend of the accused testified during their drinking spree that he was killed because he felt shortchanged. He was deceived and was given only P500.00 in exchange for their sexual intercourse wherein the promise amount is P1,000.00. It is evident that X killed Y out of anger for failure of Y to comply with the said agreement.

In this case of **People v. Catacutan,** the Supreme Court held the accused liable for two separate and distinct crimes of Homicide and Theft and not the special complex crime of Robbery with Homicide.

**Q: Can there be treachery in the special complex crime of robbery with homicide?**
**A:** Yes. According to the Supreme Court, in the case of P**eople v. Escote**, as well as in the case of **People v. Layug.** the Supreme Court, although the special complex crime of robbery with homicide is classified as a crime against property under Title 10, treachery can be appreciated if the act of killing was done treacherously. However, the treachery shall be appreciated as a mere generic aggravating circumstance and not as a qualifying aggravating circumstance.

Even if the act of killing that accompanies the crime of Robbery is done treacherously, the presence of treachery cannot qualify the killing to Murder. There is no such crime as Robbery with Murder. The word **"homicide"** in such special complex crime is used in its generic sense including all kinds of killing. So even if the act of killing was done treacherously, treachery is to be considered only as a generic aggravating circumstance and not as a qualifying aggravating circumstance.

**Q: Police Officer X, was on board his police car. He was behind a jeepney. Police Officer X, upon looking at the jeepney, believed that something was going on inside the said jeepney. It seems that a hold-up was on going inside the said jeepney. Based on what he could see, it seems that the passengers were being held up. There were three (3) men who were taking the valuables of the passengers. When the holduppers, A, B and C, alighted from the jeepney, Police Officer X tried to apprehend them. One of the robbers, by the name of C, pulled out his gun. C tried to fire at Police Officer X. But**

**Police Officer X was quick enough to grapple for the possession of the gun. In the process, the said gun fired hitting the said holdupper C. C died instantly. The other holduppers, A and B, were arrested by Police Officer X. Thereafter, they were charged with the special complex crime of robbery with homicide. A and B countered that if ever they are liable, it should only be for the crime of robbery. A and B said that they have nothing to do with the killing of C, a friend and a fellow holdupper. They have nothing to do with his death. It was the Police Officer, who arrested them, who killed their fellow holdupper in the course of their grappling for the possession of the gun. Thus, they argued that if ever they are liable, they should be liable only for the crime of robbery and not the special complex crime of robbery with homicide. Is their argument meritorious?**

**A:** In the case of **People v. Casabuena,** the Supreme Court said **NO**. If you will look at the wordings of Article 294, the person who may be killed in the special complex crime of Robbery with Homicide may be any person including the robber or holdupper himself. The law says that any person guilty of robbery with the use of violence against or intimidation of **any person** shall suffer the penalty. The Supreme Court said that the use of **"any person"** is inclusive. It includes anyone including the robbers or holduppers themselves.

Based on the wordings of Art. 294 par. 1, it is evident that whoever is killed in the course of robbery, the crime committed is the special complex crime of Robbery with Homicide even if the person killed is one of the robbers or holduppers.

**Q: In the same problem, Police Officer X was tailing behind the jeepney. There was an untoward incident inside the jeepney since the passengers were being held up. There were three (3) men, A, B and C, trying to stage a hold-up inside the jeepney. However, before they were able to get anything from the passengers, one of the holuppers immediately took notice of a police car behind them. So, C told his fellow holduppers, *"May pulis! May pulis sa likod! Alis na tayo!"* Because of that, A, B and C told the driver of the jeepney to stop. Thereafter, A, B and C alighted from the jeepney without taking anything from the passengers. They became so afraid upon noticing that there was a police car at their back. So, they did not consummate the said act of robbery. However, the moment they alighted, Police Officer X was already there and apprehended all three of them.**

**C put up a fight. He took out his pistol and was about to fire at the said Police Officer. However, Police Officer X was quick to grapple the said gun. In the course thereof, the gun fired killing C, one of the holduppers. Thereafter, Police Officer X arrested both A and B. Since the robbery was not consummated and A and B were not able to take away anything from the passengers of the jeepney, after investigation, A and B were charged with the special complex crime of attempted robbery with homicide under Art. 297. They countered that the charge was wrong. If ever they should be charged, it should only be for attempted robbery because they have nothing to do with the killing of C, a friend and a fellow holdupper. They said that it was the Police Officer who fired and killed their friend. Since they have nothing to do with the death of their friend, the proper charge to be filed against them is only Attempted Robbery and not the special complex crime of attempted robbery with homicide. Is the argument of A and B correct?**

**A:** The argument of A and B is correct. Art. 297 has different wordings from Art. 294. Under Article 297, the law provides when by reason of or on occasion of an attempted or frustrated robbery, a homicide is committed, the person guilty of such offenses shall be punished by reclusion temporal in its maximum period to reclusion perpetua. Under Art. 297, for the special complex crime of Attempted Robbery with Homicide to arise, it is necessary that the said offenders must be guilty of both offenses, the attempted robbery and the killing.

In this case, the Supreme Court said that the said accused, A and B, were not the ones who did the killing. It was in the course of the grappling for the possession of the gun by the said police officer. Since A and B were not the ones guilty of the act of killing, then, it cannot be said that they are the persons who are guilty of both offenses. It is correct that if ever they are to be charged or liable, it is only for Attempted Robbery and not for the special complex crime under Art. 297 Attempted Robbery with Homicide.

Article 294 has different phraseology than that of Article 297. For the said robber to be liable for the special complex crime of Attempted Robbery with Homicide, by express provision of Article 297, it is necessary that they must be guilty of both offenses, attempted robbery and homicide or the killing.

**Q: There was this canteen on the right side of the road. There were two ladies in the said canteen, X and Y. X told Y, *"O, mamalengke ka muna. Bumili ka ng mga gulay. Lulutuin natin."* When Y left the canteen to go to the public market to buy some vegetables, X was left alone in the said canteen. While X was alone in the said canteen, A and B arrived. They sat. Thereafter, A and B**

**ordered food. As X was preparing the food, A approached X and poked a knife at X. On the other hand, B closed the door of the canteen and took cash from the drawer of the said canteen. Thereafter, A, by means of force, brought X inside the restroom and then raped X. After A raped X, B followed. B also raped X. After both of them had raped the said victim X, by means of force and violence, A and B were now on their way out with the money they had taken from the drawer. On their way out, A and B took notice of the bags of X and Y. A and B got the bags of X and Y. What crime/s is/are committed by A and B?**

**A:** A and B would be liable for the **SPECIAL COMPLEX CRIME OF ROBBERY WITH RAPE**. When by reason or on occasion of the crime of robbery, rape is committed, we have the special complex crime of Robbery with Rape. When robbery is accompanied by the act of rape, it is special complex crime of Robbery with Rape.

Here, it is evident that the primary or main objective of A and B was to rob the eatery or canteen. Based on the facts, this intent is shown by the fact that through violence, by pointing a knife at X, they took the money from the said drawer of the canteen. However, during the said act of robbery, A raped X. Thereafter, B raped X. Since the act of rape took place accompanying the act of robbery, we have the special complex crime of robbery with rape. It is immaterial even if the said victim was raped two times. It is also immaterial even if A and B were the ones who raped the victim successively. We have only the single indivisible offense of Robbery with Rape because the original criminal intent was to rob and thereafter, rape the victim.

Even if on their way out. A and B took the bags of X and Y, the said act of taking the bags of X and Y will not constitute a separate and distinct charge of Theft. Here, the crime of Robbery with Rape is a continued crime which refers to a series of act committed. Hence, even the act of taking the bags of X and Y is absorbed in the special complex crime of robbery with rape. This act of taking the bags of X and Y is only a consequence of the original criminal intent which is to rob the eatery. Hence, the said offenders will be liable for the special complex crime of Robbery with Rape.

**[Arts. 295-298 were skipped by Prosec during lecture]**

## ROBBERY WITH PHYSICAL INJURIES, COMMITTED IN AN UNINHABITED PLACE AND BY A BAND (ART. 295)

***Art. 295. Robbery with physical injuries, committed in an uninhabited place and by a band. -*** If the offenses mentioned in subdivisions 3, 4 and 5 of the next preceding article shall have been committed in an uninhabited place and by a band, or by attacking a moving train, street car, motor vehicle or airship, or by .entering the passengers' compartments in a train or, in any manner, taking the passengers thereof by surprise in the respective conveyances, the offender shall be punished by the maximum period of the proper penalites.

In the same cases, the penalty next higher in degree shall be imposed upon the leader of the band.

**Punishable Acts**
Robbery committed:

1. In an inhabited place;
2. By a band;
3. By attacking a moving train, street car, motor vehicle or airship;
4. By entering the passenger's compartments in a train or, in any manner, taking the passengers thereof by surprise in the respective conveyances; or,
5. On a street, road, highway or alley and the intimidation is with use of firearms.

**Qualifying Circumstance**
Penalty next higher in degree shall be imposed upon the leader of the band.

## DEFINITION OF A BAND AND PENALTY INCURRED BY MEMBERS THEREOF. (ART. 296)

***Art. 296. Definition of a band and penalty incurred by the members thereof.*** - When more than three armed malefactors take part in the commission of a robbery, it shall be deemed to have been committed by a band (cuadrilla).

Any member of a band who is present at the commission of a robbery in an uninhabited place and by a band, shall be punished as principal of any of the assaults committed by the band, unless it be shown that he attempted to prevent the same.

**ELEMENTS:**

1. More than three armed malefactors;
2. Take part in the commission of a robbery;
3. The others members of the band committed; an assault; and,
4. He did not attempt to prevent the assault.

**Qualifying Circumstances**

1. The member of the band who is present at the commission of a robbery by the band, shall be punished as principal of any of the assaults committed by the band.
2. The member of a band who is present at the commission of a robbery in an uninhabited place and by a band, shall be punished as principal o

## ATTEMPTED AND FRUSTRATED ROBBERY COMMITTED UNDER CERTAIN CIRCUMSTANCES (ART. 297)

***Art. 297. Attempted and frustrated robbery committed under certain circumstances. -*** When by reason or on occasion of an attempted or frustrated robbery a homicide is committed the person guilty of such offenses shall be punished by reclusion temporal in its maximum period to reclusion perpetua, unless the homicide committed shall deserve a higher penalty under the provisions of this Code.

**When by reason or on occasion of an attempted or frustrated robbery a homicide is committed; Penalty**
Reclusion temporal in its maximum period to reclusion perpetua, unless the homicide committed shall deserve a higher penalty under the provisions of this Code.

See discussion on page 168.

## EXECUTION OF DEEDS BY MEANS OF VIOLENCE OR INTIMIDATION (ART. 298)

***Art. 298. Execution of deeds by means of violence or intimidation. -*** Any person who, with intent to defraud another, by means of violence or intimidation, shall compel him to sign, execute or deliver any public instrument or document, shall be held guilty of robbery and punished by the penalties respectively prescribed in this Chapter.

**ELEMENTS:**

1. With intent to defraud another;
2. By means of violence or intimidation; and,
3. Compel him to sign, execute or deliver any public instrument or document.

## ROBBERY BY USE OF FORCE UPON THINGS

The other kind of robbery is under Article 299 and Article 302.

1. **Art. 299 –** Robbery in an inhabited house or public building or edifice devoted to worship
2. **Art. 302** – Robbery in an uninhabited place or private building

***Art. 299. Robbery in an inhabited house or public building or edifice devoted to worship.*** - Any armed person who shall commit robbery in an inhabited house or public building or edifice devoted to religious worship, shall be punished by reclusion temporal, if the value of the property taken shall exceed Fifty thousand pesos (P50,000), and if:

a. The malefactors shall enter the house or building in which the robbery was committed, by any of the following means:
    1. Through an opening not intended for entrance or egress.
    2. By breaking any wall, roof, or floor or breaking any door or windows.
    3. By using false keys, picklocks or similar tools.
    4. By using any fictitious name or pretending the exercise of public authority.

Or if –

b. The robbery be committed under any of the following circumstances:
    1. By the breaking of doors, wardrobes, chests, or any other kind of locked or sealed furniture or receptacle;
    2. By taking such furniture or objects to be broken or forced open outside the place of the robbery.

When the offenders do not carry arms, and the value of the property taken exceeds Fifty thousand pesos (P50,000), the penalty next lower in degree shall be imposed.

The same rule shall be applied when the offenders are armed, but the value of the property taken does not exceed Fifty thousand pesos (P50,000).

When said offenders do not carry arms and the value of the property taken does not exceed Fifty thousand pesos (P50,000), they shall suffer the penalty prescribed in the two next preceding paragraphs, in its minimum period.

If the robbery be committed in one of the dependencies of an inhabited house, public building, or building dedicated to religious worship, the penalties next lower in degree than those prescribed in this article shall be imposed.

***Art. 302. Robbery is an uninhabited place or in a private building.*** – Any robbery committed in an uninhabited place or in a building other than those mentioned in the first paragraph of Article 299, if the value of the property taken exceeds Fifty thousand pesos (P50,000), shall be punished by prision correccional if any of the following circumstances is present:

1. If the entrance has been effected through any opening not intended for entrance or egress.
2. If any wall, roof, flour or outside door or window has been broken.
3. If the entrance has been effected through the use of false keys, picklocks or other similar tools.
4. If any dorm, wardrobe, chest or by sealed or closed furniture or receptacle has been broken.
5. If any closed or sealed receptacle, as mentioned in the preceding paragraph, has been removed even if the same to broken open elsewhere.

When the value of the property takes does not exceed Fifty thousand pesos (P50,000), the penalty next lower in degree shall be imposed.

In the cases specified in Articles 294, 295, 297, 299, 300, and 302 of this Code, when the property taken is mail matter or large cattle, the offender shall suffer the penalties next higher in degree than those provided in said articles.

Both Article 299 and Article 302 punishes robbery by use of force upon things. The same acts were punished. The only difference is in the place of the commission of the robbery. In Article 299, it is in an inhabited house, public building, or edifice devoted to religious worship. Whereas, in Article 302, it is in an uninhabited house or private building.

**Three Modes of Committing of Robbery by Use of Force upon Things**

There are three (3) acts of robbery by use of force upon things either under Article 299 or Article 302.

1. When the offender enters the premise of another where personal property was taken through any of the following means:
    a. Through an opening not intended for entrance or egress;
    b. By breaking any wall, roof, floor, door, or window;
    c. By using of false keys, picklocks, or other similar means; or
    d. By using a fictitious name or pretending the exercise of public authority.

2. When the offender was able to enter the premises of another without the use of unlawful entry and once inside, with intent to gain, they took the personal property of another by breaking the closed or sealed door, wardrobe, chest, or receptacle; and

3. When the offender, without unlawful entry, was able to enter the premise of another and once inside, he took the closed or sealed receptacle, brought it outside, and force has to employed in order to take the things inside the closed or sealed receptacle.

These are the three (3) ways of committing robbery whether it is under Art. 299 or Art. 302.

**FIRST MODE**

Under the first mode of robbery by use of force upon things, what makes it robbery by use of force upon things is the element of unlawful entry. Under the first act, when the offender enters the premises where personal property is taken, and the entry is done in the following manner:

1. Through an opening not intended for entrance or egress;
2. By breaking any wall, roof, floor, door, or window;
3. By using of false keys, picklocks, or other similar means; or
4. By using a fictitious name or pretending the exercise of public authority.

It is clear that the offender must enter where personal property is taken.

**SECOND MODE**

Under the second mode of robbery by use of force upon things, there is no unlawful entry. The offender was able to gain entry without force. It can be committed by an insider in the house. It becomes robbery by use of force upon things because in the act of taking the personal property of

another with intent to gain, the said offender broke the closed or sealed door, wardrobe, chest or receptacle or furniture.

**THIRD MODE**

Under the third mode of robbery by use of force upon things, what makes it robbery by means of force upon things is the fact that the said offender, once inside the premises of another, brought out the closed or sealed receptacles outside in order to take the things inside the closed or sealed receptacles. Force must be employed to open it.

These are the three (3) ways of committing robbery by use of force upon things.

**Q: X entered the house of Y by passing through an open window in the bathroom. There was a window in the bathroom. It was slightly open. X forcibly lifted them up to make the opening bigger sufficient for him to enter. Thereafter, he went through the said window. Upon passing through the window and once inside the house of Y, X took valuables. What crime is committed by X?**

**A:** X is liable for **ROBBERY BY USE OF FORCE UPON THINGS UNDER ART. 299 FIRST ACT**. He entered through an opening not intended for ingress or egress. A window, whatever window whether in the bathroom or in the house itself, is not an opening not intended for entrance or egress. Therefore, the crime committed is robbery by use of force upon things under Article 299.

**Q: The key to the house of W was lost. W was looking everywhere, he could not find the key to the house. It might have fallen but she could not locate it. X found the lost key of W on the side of the house of W. Instead of returning the key to W, X used it to gain entry inside the house of W. With used of the said lost key, he was able to enter the house. Thereafter, he took valuables inside the house. What crime is committed by X?**

**A:** X is liable for **ROBBERY BY USE OF FORCE UPON THINGS UNDER ART. 299 THIRD ACT** or robbery in an inhabited house or public building or edifice devoted to worship by means of false keys under Art. 299 a(3).

The fact that he used false keys makes it unlawful entry. Under Art. 305 of the RPC, the term "false keys" shall include genuine keys stolen from the owner. When X found the lost key of the house of W and X did not return it, the said genuine key is deemed to be a false key. When he used it in order to open the house and thereafter, he ransacked the house, the crime committed is Art. 299 a(3). The said act of entering was done through the use of false keys and then, he ransacked the house.

Therefore, the crime committed is robbery under Art. 299 A(3).

The three-armed men, A, B and C, entered into the house of D by breaking the doorknob of the front door and thereafter, they took valuables. This act done by A, B and C constituted the robbery in an inhabited house under Article 299. However, when they were about to leave, A saw the owner and suddenly punched the owner. A inflicted upon the owner slight physical injuries by punching him in the face that constituted simple robbery under Article 294 par 5 when robbery is accompanied by slight physical injury or intimidation.

Both are committed by A, B and C, robbery under Art. 299 (robbery by use of force upon things in an inhabited house) and simple robbery under Article 294 par. 5. As held by the Supreme Court in the case of **Napolis v. CA** and **Fransdilla v. People**, where the elements of both the provisions of Article 294 par 5, simple robbery, and the elements of Art. 299 are present, the crime is complex which calls for the imposition of the penalty for the most serious crime in its maximum.

If both Article 299 and Article 294 par. 5 attended the act of robbery, they have to be complexed. The penalty for the most serious crime in its maximum period should be the one imposed. The penalty for Article 299 is higher than the penalty for Article 294 par. 5. Therefore, in this case, Article 294 par. 5 will not absorbed Article 299.

Generally, like for example, the accused entered the house by passing through the window. Once inside the house, he ransacked the house and killed the owner. In reality, what are the crimes committed?

When he entered the house by passing through window, it is robbery by use of force upon things under Article 299. The other one is the special complex crime of robbery with homicide under Article 294 par. 1. The penalty for Article 294 is always greater than Article 299. In this case, Article 299 which is robbery by use of force upon things is simply absorbed by the special complex crime of robbery with homicide because it carries a higher penalty than that of Art. 299.

However, it is not the case when the kind of robbery involved under Article 294 par. 5 is simple robbery. When it is only simple robbery, the penalty is lower than that of Article 299. Therefore, in such case, the Supreme Court

said that it must be complex but it is not a special complex crime. It is a complex crime under Article 48 which provides that when a single act produces two or more grave offenses, or when the offense is a necessary means to commit another offense. It is a complex crime under Art. 48 and not a special complex crime.

**[Arts. 300-301, and 303-307 were skipped by Prosec during lecture]**

## ROBBERY IN AN UNINHABITED PLACE AND BY A BAND (ART. 300)

***Art. 300. Robbery in an uninhabited place and by a band. -*** The robbery mentioned m the next preceding article, to a band, if committed in an uninhabited place and by a band, shall be punished by the maximum period of the penalty provided therefor.

Robbery mentioned in the next preceding article, if committed in an uninhabited place and by a band, shall be punished by the maximum period of the penalty provided therefor.

## WHAT IS AN INHABITED HOUSE, PUBLIC BUILDING OR BUILDING DEDICATED TO RELIGIOUS WORSHIP AND THEIR DEPENDENCIES (ART. 301)

***Art. 301. What is an inhabited house, public building or building dedicated to religious worship and their dependencies. -*** Inhabited house means any shelter, ship or vessel constituting the dwelling of one or more persons, even though the inhabitants thereof shall temporarily be absent therefrom when the robbery is committed.

All interior courts, corrals, warehouses, granaries, barns, coachhouses, stables or other departments or inclosed places contiguous to the building or edifice, having an interior entrance connected therewith, and which form part of the whole, shall be deemed dependencies of an inhabited house, public building or building dedicated to religious worship.

Orchards and other lands used for cultivation or production are not included in the terms of the next preceding paragraph, even if closed, contiguous to the building and having direct connection therewith.

The term "public building" includes every building owned by the Government or belonging to a private person but used or rented by the Government, although temporarily unoccupied by the same.

1. Inhabited house means any shelter, ship or vessel constituting the dwelling of one or more persons, even though the inhabitants thereof shall temporarily be absent therefrom when the robbery is committed.
2. "Deemed dependencies" of an inhabited house, public building or building dedicated to religious worship includes all interior courts, corrals, warehouses, granaries, barns, coach-houses, stables or other departments or enclosed places contiguous to the building or edifice, having an interior entrance connected therewith, and which form part of the whole.
3. Orchards and other lands used for cultivation or production are not included in the terms of the next preceding paragraph, even if closed, contiguous to the building and having direct connection therewith.
4. "Public building" includes every building owned by the Government or belonging to a private person but used or rented by the Government, although temporarily unoccupied by the same.

## ROBBERY OF CEREALS, FRUITS, OR FIREWOOD IN AN UNINHABITED PLACE OR PRIVATE BUILDING (ART. 303)

***Art. 303. Robbery of cereals, fruits or firewood in an uninhabitted place or private building. -*** In the cases enumerated articles 299 and 302, when the robbery consists in the taking of cereals, fruits, or firewood, the culprit shall suffer the penalty next lower in degree than that prescribed in said articles.

In cases enumerated in articles 299 and 302, when the robbery consists in the taking of cereals, fruits, or firewood, the culprit shall suffer the penalty next lower in degree than that prescribed in said articles.

## POSSESSION OF PICKLOCKS OR SIMILAR TOOLS (ART. 304)

***Art. 304. Possession of picklocks or similar tools. -*** Any person who shall without lawful cause have in his possession picklocks or similar tools specially adapted to the commission of the crime of robbery, shall be punished by arresto mayor in its maximum period to prision correccional in its minimum period.

The same penalty shall be imposed upon any person who shall make such tools. If the offender be a locksmith, he shall suffer the penalty of prision correccional in its medium and maximum periods.

**ELEMENTS:**

1. Without lawful cause;
2. Have in his possession picklocks or similar tools; and,
3. Especially adapted to the commission of the crime of robbery.

**Qualifying Circumstances**

1. Arresto mayor shall be imposed upon any person who shall make such tools.
2. If the offender be a locksmith, he shall suffer the penalty of prision correccional in its medium and maximum periods.

## FALSE KEYS (ART. 305)

***Art. 305. False keys.*** **-** The term "false keys" shall be deemed to include:

1. The tools mentioned in the next preceding article.
2. Genuine keys stolen from the owner.
3. Any keys other than those intended by the owner for use in the lock forcibly opened by the offender

**ELEMENTS:**

1. The tools mentioned in the next preceding articles;
2. Genuine keys stolen from the owner; and,
3. Any keys other than those intended by the owner for use in the lock forcibly opened by the offender.

## WHO ARE BRIGANDS (ART. 306)

***Art. 306. Who are brigands - Penalty.*** **-** When three or more armed persons form a band of robbers for the purpose of committing robbery in the highway, or kidnapping persons for the purpose of extortion or to obtain ransom, for any other purpose to be attained by means of force and violence, they shall be deemed highway robbers or brigands.

Persons found guilty of this offense shall be punished by prision mayor in its medium period to reclusion temporal in its minimum period if the act or acts committed by them are not punishable by higher penalties, in which case, they shall suffer such higher penalties.

**ELEMENTS:**

1. When three or more armed persons;
2. Form a band of robbers; and,
3. It is for the purpose of:
    a. committing robbery in the highway;
    b. kidnapping persons for the purpose of extortion or to obtain ransom; or
    c. attained by means of force and violence.

When all the above elements are present, they shall be deemed highway robbers or brigands.

**Qualifying Circumstances.**

1. Prision mayor in its medium period to reclusion temporal in its minimum period if the act or acts committed by them are not punishable by higher penalties, in which case, they shall suffer such higher penalties.
2. If any of the arms carried by any of said persons be an unlicensed firearm, it shall be presumed that said persons are highway robbers or brigands, and in case of conviction, the penalty shall be imposed in the maximum period.

## AIDING AND ABETTING A BAND OF BRIGANDS (ART. 307)

***Art. 307. Aiding and abetting a band of brigands.*** **-** Any person knowingly and in any manner aiding, abetting or protecting a band of brigands as described in the next preceding article, or giving them information of the movements of the police or other peace officers of the Government or of the forces of the United States Army, when the latter are acting in aid of the Government, or acquiring or receiving the property taken by such brigands, shall be punished by prision correccional in its medium period to prision mayor in its minimum period.

It shall be presumed that the person performing any of the acts provided in this article has performed them knowingly, unless the contrary is proven.

**ELEMENTS:**

1. There is a band of brigands;
2. The offender knows the band to be of brigands; and,
3. The offender does any of the following acts:
    a. He in any manner aids, abets or protects such band of brigands;
    b. He gives them information of the movements of the police or other peace officers of the government; or
    c. He acquires or receives the property taken by such brigands.

## ANTI-HIGHWAY ROBBERY LAW OF 1974 (PD 532)

**BAR Q: Four armed men, A, B, C and D, boarded a passenger jeepney. The said passenger jeepney was traveling along Santa Cruz, Manila. C and D seated themselves in front of the jeepney. A poked a knife at E and B declared a hold-up. The passenger E gave his necklace and cellphone to A.**

**A police man saw a commotion inside the jeepney. The said police officer took out his pistol and fired a shot in the air warning the said holduppers. A, B, C and D, afraid, laid down their knife on the bench of the jeepney. Thereafter, the said police officer arrested all four of them.**

**After investigation, the police officer charged A, B, C and D with the crime of brigandage or Anti-Highway Robbery under PD 532. If you are the public prosecutor assigned in the case before whom the police officer filed the complaint, will you indict A, B, C and D for the crime charge of brigandage or violation of PD 532?**

**A:** No. If you are the public prosecutor, you should indict A, B, C and D with the crime of robbery by a band under Article 296 and not brigandage or violation of PD 532. When more than three (3) armed malefactors shall have acted together in the commission of the robbery, it is robbery in band under Article 296.

Here, A, B, C and D were all armed and they committed robbery upon passengers of the said jeepney. Therefore, it is robbery in a band.

It cannot be a violation of PD 532 or Anti-Highway Robbery or Brigandage. Even if it is committed by A, B, C and D in a motor vehicle on a public highway, the crime is not classified as a violation of PD 532. The crime of Highway Robbery and Brigandage will only lie if there is evidence showing that they have primarily organized themselves for the particular purpose of committing highway robbery or brigandage. In this case, there was no showing that A, B, C and D primarily organized their group in order to commit highway robbery. Absent that piece of evidence, it cannot be highway robbery or brigandage.

**TWO WAYS OF COMMITTING HIGHWAY ROBBERY or BRIGANDAGE**

1. Brigandage under Article 306 of the RPC
2. Highway Robbery under PD 532 or the Anti-Highway Robbery Law of 1974

| BRIGANDAGE UNDER ART. 306, RPC | HIGHWAY ROBBERY UNDER PD 532 |
|---|---|
| The law requires that there must be at least four armed malefactors. | Even one person can commit highway robbery. |
| The mere act of forming a band of robbers to commit highway robbery will already give rise to the crime. | There must be an actual commission of robbery on a Philippine Highway. |
| There is a preconceived or predetermined particular victim. | There is no predetermined or particular victim. Highway robbery is committed against any person who passes by on the Philippine highway.<br><br>It is committed indiscriminately against anyone who will be passing by on Philippine highways. |
| Any person who aids, abets, protects or takes possession of the profits of brigandage will be liable separately and distinct under Article 307. | Any person who aids, abets, protects or takes possession of the profits of the brigandage will be liable as an accomplice under PD 532. |

**Q: The jeepney stopped because it was red light. While the jeepney was not moving because of the red light, X boarded the jeepney. X seated next to Y. The moment the light turned green, and the jeepney was about to leave, X snatched and grabbed the necklace of Y. Thereafter, he jumped from the jeepney.**

**Upon a complaint filed by Y, X was arrested. X was charged with the crime of robbery by use of force upon things or violence against or intimidation. The information alleges that X snatched and grabbed the necklace of Y and thereafter, jumped outside the jeep taking away the necklace of Y. If you were the judge, will you convict X of the charge of robbery with violence against or intimidation of persons under Article 294 or will you convict the accused only of theft?**

**A:** In the case of **Del Rosario v. People** and **Ablaza v. People**, the distinguishing element between robbery and theft is the use of violence against or intimidation of persons in the act of taking another person's personal property. There is always violence against or intimidation of persons in the crime of robbery. This is absent in the crime of theft.

In this case, the information alleges that the accused grabbed, he snatched the necklace of Y. The mere allegation in the information that the said accused grabbed, snatched the necklace of the victim does not automatically mean that the act of taking was done with violence.

The Supreme Court said that to grab means to take, to seize by a sudden motion. The use of the word grab or snatch does not automatically suggest the use of violence or the use of physical force in the act of taking. The use of the word to grab, or to snatch only refers to the suddenness of the act of taking. Therefore, before the accused, who grabbed or snatched the necklace as alleged in the information, may be convicted the crime of robbery, aside from alleging that the accused grabbed or snatch the necklace, there must be an allegation and proof that force, violence, intimidation was employed by the accused in order to take, grab, or snatch the necklace. Absent such allegation of such use of force, violence, it cannot be considered as robbery. It can only be the crime of theft.

## WHO ARE LIABLE FOR THEFT (ART. 308)

**Art. 308. *Who are liable for theft.* –** Theft is committed by any person who, with intent to gain but without violence against or intimidation of persons nor force upon things, shall take personal property of another without the latter's consent.

Theft is likewise committed by:

1. Any person who, having found lost property, shall fail to deliver the same to the local authorities or to its owner;
2. Any person who, after having maliciously damaged the property of another, shall remove or make use of the fruits or object of the damage caused by him; and
3. Any person who shall enter an enclosed estate or a field where trespass is forbidden or which belongs to another and without the consent of its owner, shall hunt or fish upon the same or shall gather cereals, or other forest or farm products.

Under Article 308, the law punishes theft. Theft is the unlawful taking of the personal property of another person with intent to gain without the consent of the latter and without violence against, or intimidation of persons or use of force upon things.

### ELEMENTS

1. There must be unlawful taking of personal property;
2. The personal property must belong to another person;
3. The act of taking must be done with intent to gain;
4. The act of taking must be done without the consent of the owner; and,
5. The act of taking was accomplished without violence against or intimidation of persons, or without use of force upon things.

These are the elements of theft.

**Q: What do you mean by personal property?**
**A:** The thing taken must be personal property belonging to another person.

**Q: Does it include the services rendered?**
**A:**: In the *en banc* case of **Laurel v. Abrogar**, PLDT charged the accused because the said accused engaged in international simple re-sale or the unauthorized routing of their international long-distance call using the lines, cables, antenna, frequency of PLDT which resulted to damages on the part of PLDT amounting to millions of pesos.

A motion to quash was filed because according to the accused, these services cannot be considered as property. Hence, the charge for Theft filed by PLDT was not correct.

The Supreme Court said the case may prosper. In the said case, the SC held that the term "property" in the crime of Theft under Article 308 refers to those property defined under the New Civil Code. Therefore, any property which is not included in the enumeration of real properties under

the New Civil Code and is capable of appropriation can be the subject of theft under Article 308.

The Supreme Court said that the only requirement for personal property to be the object of Theft, to be the object of unlawful taking under the RPC, is that it is capable of appropriation that is to deprive the lawful owner of the thing. Thus, the Supreme Court said the case will prosper.

**Other Persons Liable for Theft**

Under Article 308, there are other people who are also liable for theft:

1. Any person who has found lost property who shall fail to deliver the same to the owner or to the local authorities.
2. Any person, after having maliciously damaged the property of another, shall remove or make use of the fruits or objects of the damage caused by him.
3. Any person who shall enter the fenced estate of another where trespass is forbidden and without the consent of the owner, shall hunt or fish upon the same or shall gather fruits or cereals, or any other forest or farm products.

**Q: After a day of work, X arrived home. X was just opening the gate of the house. He looked into the ground and saw a wallet. A man's wallet. X picked up the wallet. X opened the wallet and there were peso bills. There were also dollar bills. X hurriedly went inside the house and called his wife. He said, *"May napulot ako. May nakita ako sa gate natin."* They both opened the wallet and took the money and counted the money which amounted to P10,000.00 and $200.00. The husband said, *"anong gagawin natin? Ibabalik ko ba?"* The wife said, *"hindi. Ang tagal ko na nagdadasal ng pera. Bigay iyan ng Dioys. Huwag mo isauli."* So, the husband did not return the said wallet even if there were two IDs of the owner stating the name of the owner, the place of work and the residence of the owner which is just in another town. It is just a jeepney ride away from them. X did not return the wallet and kept the contents of the wallet. What crime is committed by X?**

**A:** X is liable for Theft under Article 308. He found a lost property. He found a wallet. He is obligated by Article 308 to deliver said wallet either to the local authorities or to the owner as named in the ID. When X failed to do either, he became liable for Theft under Article 308.

**Q: Same problem. X happens to be an honest man. Upon seeing the wallet, he did not bring it inside. He opened it and he saw money, and IDs. X knew the owner of the wallet. X went to the nearest police station. It is just within walking distance from their place. So, X went to the police station. X said, *"Sir, may napulot po akong wallet. Na-check ko iyong ID ng may ari pero medyo malayo. Walang pamasahe papunta doon. Kaya sa inyo ko na lang po binibigay."* X told the police at the front desk. The police at the front desk had the act of X be blottered. Thereafter, X surrendered the said wallet to the said police officer. After that, X left the police station.**

**The said police officer was alone at the front desk. The others were all inside. The said police officer looked into the wallet. He found in the wallet several peso bills, the ID of the said owner. At the time, the police officer was in need money. So, the police officer did not return the wallet and money to the owner of the said wallet even if the name was in the ID. What crime was committed by the said police officer?**

**A:** The said officer is liable for **Theft** under Article 308. As held by the Supreme Court in the case of **Pante v. People**, the word finder under Article 308 is not limited to the actual finder of the lost property. Because of the gist of the offense is the unlawful taking and the misappropriation of the property found. The word finder also includes not only the finder in fact but also the finder in law.

In this case, the finder in fact is X but the finder in law is the police officer. The moment X surrendered the said lost wallet to the said police officer, the police officer became the finder in law. The obligation under Article 308 to return the wallet to the owner thereof is now the obligation of the said police officer.

In the case of **Pante v. People,** after counting dollars, Word alighted from his car. He did not notice the dollar fell on the ground. Two miners-employees passed by. The two miners saw the money. The two miners took the money.

The two miners brought the money to Pante. Pante said, *"huwag niyong ibalik. I-didivide natin among us."* Pante has greater shares than the amount he gave to the said two miners. Pante used the money to buy many things for the house. Later, Pante was arrested for the crime of Theft. Among the defenses raised by Pante was that how can he return the money to Word? He did not know that the said money was owned by Word. Therefore, how would he know that it is owned by another person.

The Supreme Court said that the defense of Word is wrong. The RPC does not require the thief to know the owner of the lost property. The RPC gave the thief the option to return the property either to the local authorities or to the owner. Granted for the sake of argument that Pante did not

know that the owner of the said lost property is Word, he is still obligated to return it to the local authorities. When he failed to do so, he became liable for the crime of Theft.

## PENALTIES (ART. 309)

**Art. 309. *Penalties.*** - Any person guilty of theft shall be punished by:

1. The penalty of prision mayor in its minimum and medium periods, if the value of the thing stolen is more than 12,000 pesos but does not exceed 22,000 pesos; but if the value of the thing stolen exceeds the latter amount, the penalty shall be the maximum period of the one prescribed in this paragraph, and one year for each additional ten thousand pesos, but the total of the penalty which may be imposed shall not exceed twenty years. In such cases, and in connection with the accessory penalties which may be imposed and for the purpose of the other provisions of this Code, the penalty shall be termed prision mayor or reclusion temporal, as the case may be.
2. The penalty of prision correccional in its medium and maximum periods, if the value of the thing stolen is more than 6,000 pesos but does not exceed 12,000 pesos.
3. The penalty of prision correccional in its minimum and medium periods, if the value of the property stolen is more than 200 pesos but does not exceed 6,000 pesos.
4. Arresto mayor in its medium period to prision correccional in its minimum period, if the value of the property stolen is over 50 pesos but does not exceed 200 pesos.
5. Arresto mayor to its full extent, if such value is over 5 pesos but does not exceed 50 pesos.
6. Arresto mayor in its minimum and medium periods, if such value does not exceed 5 pesos.
7. Arresto menor or a fine not exceeding 200 pesos, if the theft is committed under the circumstances enumerated in paragraph 3 of the next "preceding article and the value of the thing stolen does not exceed 5 pesos. If such value exceeds said amount, the provisions of any of the five preceding subdivisions shall be made applicable.
8. Arresto menor in its minimum period or a fine not exceeding 50 pesos, when the value of the thing stolen is not over five pesos, and the offender shall have acted under the impulse of hunger, poverty, or the difficulty of earning a livelihood for the support of himself or his family..

## QUALIFIED THEFT (ART. 310)

**Art. 310. *Qualified theft.* -** The crime of theft shall be punished by the penalties next higher by two degrees than those respectively specified in the next preceding article, if committed by a domestic servant, or with grave abuse of confidence, or if the property stolen is motor vehicle, mail matter or large cattle or consists of coconuts taken from the premises of the plantation or fish taken from a fishpond or fishery, or if property is taken on the occasion of fire, earthquake, typhoon, volcanic eruption, or any other calamity, vehicular accident or civil disturbance. *(As amended by R.A. 120 and B.P. Blg. 71. May 1, 1980).*

Under Article 310, the law punishes Qualified Theft. Theft is qualified:

1. When theft is committed by a domestic servant;
2. When theft is committed with grave abuse of confidence;
3. When the property stolen is a motor vehicle, male matter, or large cattle;
4. When the property stolen are coconuts from the premise of a plantation;
5. When the property stolen is fish from the fishpond or fisheries;
6. When the property is taken on occasion of a fire, earthquake, typhoon, volcanic eruption, or any other calamity, vehicular accident, or civil disturbance.

These are the circumstances that will qualify theft. Any of these circumstances will make the crime Qualified Rheft instead of Simple Theft.

**<u>When committed by a domestic servant</u>**

Theft by a domestic servant is always qualified regardless of no grave abuse of confidence. The moment the prosecution is able to prove that the accused is the domestic servant of the owner of the stolen property, it is already qualified theft. If theft is committed by a domestic servant, it is qualified. There need not be proof that he committed the act of stealing with grave abuse of confidence.

The Supreme Court held that domestic servant and grave abuse of confidence were separated from each other by the disjunctive word “OR”. Therefore, since the word used by law is “OR”, they are separate and distinct from each other.

Hence, the mere fact that the offender is a domestic servant of the owner of the property stolen, it is immediately qualified.

**When committed with grave abuse of confidence**

If theft is committed with grave abuse of confidence, it is qualified theft. When you say grave abuse of confidence, it means that there is a relationship of guardianship, dependency, and vigilance between the offender and the offended party.

**BAR Q: X and Y are live-in partners. X and Y are living together without marriage. X and Y are renting a condo unit in Makati. Unknown to Y, the woman, for more than a year already, X was secretly saving money in an envelope under their bed to buy Y, the living partner, an engagement ring. Anytime, X wanted to propose marriage to Y.**

**One day, X was out of the house. While Y was cleaning their bedroom. Y took notice of a white envelope. When Y opened the envelope, it contained so much money. Y, the woman, took the money from the envelope and left the condo unit. As the public prosecutor, what crime, if any, will you charge Y?**

**A:** As the public prosecutor, you have to charge Y with a crime of **QUALIFIED THEFT** because of the qualifying aggravating circumstance of grave abuse of confidence under Article 310.

The act of taking the money saved by X is attended by grave abuse of confidence. There is grave abuse of confidence when there is a relationship of guardianship, dependency, and vigilance between the parties.

In this case, since they are living together, the said woman, the live-in partner, has already been vested with physical access or the material possession of the said stolen goods. He violated the said trust and confidence reposed on him by taking the said money. The woman has already access to all the things inside the house. It is evident that the said man has already a firm trust on the said live-in partner. Hence, when the said money was taken, the crime committed is qualified theft under Article 310 because of the presence of grave abuse of confidence.

If the thing taken is a motor vehicle, the crime committed is Carnapping.

## ANTI-CARNAPPING (RA 3019)

**ELEMENTS:**

1. There be actual taking of motor vehicle;
2. The said motor vehicle belongs to another person;
3. The act of taking must be done with intent to gain; and,
4. The act of taking is done either without the consent of the owner, or with violence against or intimidation of persons or use of force upon things.

These are the elements of Carnapping under RA 10883, the New Anti-Carnapping Law.

**Q: Under RA 10883, what is the meaning of motor vehicle which is the subject of the carnapping?**
**A:** Under RA 10883, a motor vehicle refers to any vehicle propelled by any power other than muscular power using the public highways, except road rollers, trolley cars, street sweepers, sprinklers, lawn mowers, bulldozers, graders, forklifts, amphibian trucks and cranes if not used on any public highways. This is the motor vehicle under RA 10883.

**Q: X and Y are neighbors. They live next to each other. Both their houses have lawns, yards. X owns a motorized lawn mower. X uses his motorized lawn mower to maintain his lawn, his front yard. The neighbor of X, who is Y, has long been envious of X because the lawn of X is always well-maintained. X owns a motorized lawn mower. Y has no motorized lawn mower. For a number of times, Y had approached X borrowing the lawn mower. But in all these times, X denied the request of Y to use the motorized lawn mower.**

**One day, Y saw that the motorized lawn mower of X was unattended and parked on the sidewalk in front of the house of X. Y got out. He saw that no one was around in the neighborhood. No one was there. When he saw that no one was watching, Y took the motorized lawn mower of X and brought it to his lawn. Thereafter, he mowed his lawn. After finishing, Y returned the motorized lawn mower to where it was previously located.**

**Unknown to him, X has a CCTV camera monitoring all the activities in front of the house and X saw Y getting the lawn mowers. What crime/s has been committed by Y? Is Y liable for carnapping under RA 10883?**

**A:** X is not liable for Carnapping under RA 10883. Based on the definition of RA 10883 it expressly excludes lawn mowers from the definition of motor vehicle. The crime committed is qualified theft under Article 310. Based on the definition of qualified theft under Article 310, it covers the taking of a mother vehicle under which the lawn mower is. The crime committed by Y is qualified then and not Carnapping because a motorized lawn mower is not within the definition of a motor vehicle under RA 10883.

Insofar as carnapping is concerned, Carnapping may be committed by the offender even if in the act of taking the motor vehicle, there was no violence or intimidation employed, or there was no use of force upon things. For as long as the motor vehicle was taken without the consent of the owner, it is already considered as carnapping. There is no need to look for the employment of violence against or intimidation of persons or the use of force upon things.

The mere fact that the said motor vehicle was taken without the consent of the owner of the said motor vehicle, it is already carnapping under RA 10883.

**Q: While X was in Greenbelt in Makati, X took notice of the ford mustang parked along beside Greenbelt Makati. X went near the car. X was trying to forcibly open the car. Unknown to him, the security guard of the mall has long been eyeing X based on his suspiciousness. When the security guard saw X that he was trying to open the said car, the said security guard of the greenbelt went to X and tried to arrest X. Refusing arrest, X shot the security guard. The guard died instantly. Thereafter, X, who was able to forcibly open the said car, took away the said car. What crime is committed by X.**

**A:** X is liable for two separate and distinct crimes of Carnapping and Homicide. It is not Carnapping only. Under Section 3 of RA 10883, the penalty of life imprisonment shall be imposed when the owner, the driver, or the occupant of the carnapped motor vehicle is killed or raped in the commission of the carnapping.

So, under Section 3 of RA 10883, if it is the owner, the driver, or the occupant of the carnapped motor vehicle who is killed or who is raped in the commission of carnapping, the crime is carnapping or violation of RA 10883, but the penalty will be the highest penalty of life imprisonment.

In this case, it is not the crime committed. It is not Carnapping, wherein the penalty will be life imprisonment. The crime committed is Carnapping for taking said motor vehicle and at the same time, insofar as the killing of the security guard is concerned, the crime committed is the separate and distinct crime of Homicide. The said Homicide cannot be absorbed by Carnapping under RA 10883 because the security guard of the mall who was killed by the carnapper, was not the owner, the driver, or the occupant of the said carnapped motor vehicle. In order for the act of killing to be absorbed by Carnapping and to bring about the maximum penalty of life imprisonment, it is necessary that the person killed must be the owner, the driver or the occupant of the said carnapped motor vehicle. Here, since it is a security guard, since it is another person, the said act of killing will constitute a separate and distinct charge of the crime of Homicide.

**Q: Why homicide and not murder?**
**A:** Because the killing happened at the spur of the moment, impulsively.

**Q: Z argued that he returned the vehicle. He only used the sports car from Friday to Sunday. Therefore, there was no intent to gain. Is Z correct?**
A: NO. Intent to gain is NOT limited to pecuniary benefit. It includes any benefit which may be derived or expected from the act of taking. The mere use of the motor vehicle for a road trip already gave gain on the part of Z. Therefore, his act is attended with intent to gain. All the elements of carnapping are present. Z is liable for carnapping under R.A. No. 10883.

**Penalties under RA 10883**

Under R.A. No. 10883, if the act of carnapping is committed without the consent of the owner, but without violence against or intimidation of persons, the penalty is 20 years and 1 day to 30 years.

If the act of taking or carnapping is done with violence or intimidation of persons, or by force upon things, the penalty is 30 years and 1 day to 40 years.

If on the occasion of the said act of carnapping, the owner, the driver, or the occupant of the motor vehicle is killed or dies or is raped, the penalty is life imprisonment. Despite the killing or the rape committed against the owner, driver, or occupant of the motor vehicle, the crime committed is carnapping under R.A. No. 10883, but the penalty is life imprisonment (maximum penalty). Hence, it becomes a non-bailable offense.

## ESTAFA / SWINDLING

**There are four (4) Articles on Estafa**:

1. Art. 315 – Swindling (Estafa)
2. Art. 316 – Other forms of swindling
3. Art. 317 – Swindling a minor

4. Art. 318 – Other deceits

Whatever may be the kind of estafa committed, there are two general elements of estafa.

**TWO (2) GENERAL ELEMENTS OF ESTAFA:**

1. The offender defrauded another by abuse of confidence or by means of deceit; and
2. Damage or prejudice, capable of pecuniary estimation, is caused to the offended party or a third person.

As to the first element, it does not necessarily mean that there must always be deceit. In lieu of deceit, Estafa can be committed by means of abuse of confidence.

As to the second element, it is necessary that there must be damage or prejudice caused to the offended party or to a third person. Moreover, it is necessary that the said damage or prejudice is capable of pecuniary estimation because the penalty is dependent on the amount of the damage caused.

Whatever be the kind of Estafa, there must always be the presence of these two elements.

## ESTAFA / SWINDLING (ART. 315)

**Ways of committing estafa:**

1. With unfaithfulness or abuse of confidence;
2. By means of false pretenses or fraudulent acts; or,
3. Through fraudulent means.

### 1. WITH UNFAITFULNESS OR ABUSE OF CONFIDENCE

1. With unfaithfulness or abuse of confidence, namely:
    a. By altering the substance, quantity, or quality of anything of value which the offender shall deliver by virtue of an obligation to do so, even though such obligation be based on an immoral or illegal consideration.
    b. By misappropriating or converting, to the prejudice of another, money, goods, or any other personal property received by the offender in trust or on commission, or for administration, or under any other obligation involving the duty to make delivery of or to return the same, even though such obligation be totally or partially guaranteed by a bond; or by denying having received such money, goods, or other property.
    c. By taking undue advantage of the signature of the offended party in blank, and by writing any document above such signature in blank, to the prejudice of the offended party or any third person.

**Under Par. (a) - Onerous Obligation**

**ELEMENTS:**

1. The offender has an onerous obligation to deliver something of value, even though such obligation is based on an immoral or illegal consideration;
2. He alters its substance, quantity, or quality; and,
3. Damage or prejudice is caused to the offended party.

For as long as the offender has the onerous obligation to deliver something of value to another person, he should not alter its quantity, its quality, or its substance. Any alteration would bring about a violation of Estafa under Article 315 (1)(a).

Note that under Article 315 (1)(a), it can either be based on legal or illegal consideration. The law does not take into consideration that it must always be legal. Even if the consideration is immoral or illegal, still, estafa is committed if there is an alteration or substitution.

**Under Par. (b) - Estafa through Misappropriation or Conversion**

Under Article 315, estafa or swindling, one of the popular which is commonly asked in the bar is Estafa under Article 315 1(b) or the estafa through misappropriation or conversion.

Estafa through misappropriation or conversion is committed by misappropriating or converting to the prejudice of another, money, goods, or other personal property received by the offender in trust or on commission or for administration, or under any other obligation involving the duty to make delivery of or to return the same even though such obligation be totally or partially guaranteed by a bond, or by denying having received such money, goods or other personal property.

**ELEMENTS:**

1. Money, goods, or personal property be received by the offender in trust or in commission or for administration or under any other obligation involving the duty to make delivery of or to return the same, even though such obligation, be totally or partially, are guaranteed by a bank;
2. There be misappropriation or conversion of the said money, goods, or personal property by the person who received it, by the offender, or he denied having received the same;
3. Misappropriation or conversion resulted to the prejudice of the offended party; and,
4. There is demand for the return of the said money, goods, or personal property.

***First Element***

Based on the first element of Article 315 1(b), to constitute estafa, both material and juridical possession of the said money, goods, or property must have been transferred by the offended party to the offender. When the said offended party transfers the said money, goods, or other personal property to the offender, the said offender receives the material and the physical and the juridical possession of the said money, goods or personal property.

**Q: What is juridical possession?**
**A:** Juridical possession is a possession in the concept of an owner. It is a possession which gives the trustee a right over the property received which the trustee may set up even against the owner.

In case of estafa, the offended party gave to the offender party the said money, goods or personal property. And the said offender will receive both the physical and material and juridical possession of the said money, goods, or personal property. Even if the offended party gave the said money, goods, or personal property to the offender but the said offender has received only the physical or material possession, not the juridical possession, and he misappropriated it, the crime committed is Qualified Theft. So, to amount estafa, it is necessary that aside from physical or material possession, the said offended party has transferred to the said offender the juridical possession of the said money, goods, or personal property.

For Estafa to arise it is necessary that both physical or material possession and juridical possession has been received by the offender upon receipt of the money, goods, or other personal property.

**<u>Under Par. (c) - Signature in Blank Paper</u>**

**ELEMENTS:**

1. The paper with the signature of the offended party is in blank;
2. The offended party delivered it to the offender;
3. Above the signature of the offended party a document is written by the offender without authority to do so; and,
4. The document so written creates a liability of, or causes damage to, the offended party or any third person.

**Q: X went to Y and told him, *"Y I lost my job and I heard that you are allowing your jewelry to be sold on commission basis. Would you entrust me to sell your jewelry? You know me to be a good person, we used to work for the same company."* After much consideration, Y agreed and entrusted some of his jewelry and allowed X to sell it on commission basis. X chose the jewelries and Y listed the jewelries X had chosen. Y said, *"All of these cost P300,000.00. You can sell these on a commission basis. You can decide on how much you would charge as commission over the cost of the jewelries as long as you will return the jewelries if unsold or give me the cost of the same jewelries on commission basis for a period of 30 days. After 30 days, you have to return to me the jewelry you have failed to sell, and you have to remit to me the proceeds and cost of the jewelry minus your commission."* Thereafter, Y gave the chosen jewelry to X.**

**After a month passed, Y was waiting for X to return the jewelry unsold or to remit the proceeds of the sale, but no X arrived in the house. Thus, Y gave X a call saying, *"The 30th day was yesterday, where are the jewelries? Where are the proceeds from the sale of the jewelry?"* X replied, *"Yes, I was about to go to your house yesterday and today, but I have an important visitor. Expect me to be there tomorrow. I have already sold all the jewelry. I would be giving to you the exact amount of P300,000.00 having subtracted my commission from the total sales."* Y said that he would be waiting for X. The following day, Y waited for the arrival of X, but he did not arrive. Y gave X another call, but X would no longer pick up the phone. Y sent messages through text messages and social media accounts, but X did not reply.**

**Y is mad so he filed a case for Estafa under Article 315-1(b) – Estafa through Misappropriation or Conversion against X. X's defense was that Y's case will not lie against him because he did not receive any formal written demand from Y. Is X liable for the crime of Estafa?**

**A:** X is liable for the crime of Estafa under Article 315-1(b) because all the elements are present.

*First,* Y delivered the said jewelry to X. When Y delivered the said jewelries to X for sale on commission basis, what Y transferred to X was not only the material or physical possession of the said jewelry but also the juridical possession of the said jewelry. For a period of one (1) month, X has a better right over the said jewelries than that of the owner Y. Therefore, what has been transferred to him was juridical possession.

*Second,* X misappropriated the said jewelry. He failed to return the said jewelry and the proceeds of the sale. *Third,* this prejudiced Y in the amount of P300,000.

The first three (3) elements were present but the contention of X is that the fourth element is not present as there was no demand. He did not receive any demand letter.

The Supreme Court said that under Article 315-1(b), demand may come in any form. It is not required under Article 315-1(b) that demand be a formal written demand. Demand may come in any form. In fact, according to the Supreme Court, demand is not necessary if there is clear and convincing evidence that the accused already misappropriated, appropriated, or converted the said money, goods, or personal property.

In this case, it is evident that X already misappropriated the said jewelry. Therefore, demand is not even necessary. Under Article 315-1(b), demand is immaterial whether it is in writing, via phone call, or personal. There is no requisite that it should be in a formal written demand.

**Q: X was charged with estafa under Article 315 1(b) or estafa through misappropriation or conversion. X was convicted by the RTC. In its appeal. X argued that the conviction made by the RTC is wrong. According to X, he did not receive any demand letter coming from the said private complainant. Yes, according to him, the private complainant told him and went to his house. The private complainant emailed him. However, he did not receive any formal written demand coming from the private complainant to return the said thing. Therefore, absent the fourth element of demand to return property, absent a formal written demand to return the property, the fourth element being absent, X argued that it should be an acquittal. Is X's ground in the appeal correct? Will it give rise to his acquittal?** *(2025 version of the question above)*

**A:** The Supreme Court has repeatedly held, in particular in the case of **Corpus v. People**, that the fourth element that there be demand for the return of the thing is not an indispensable element under Article 315 1(b). The said fourth element of demand under Article 315 1(b) or estafa through misappropriation or conversion need not be a formal written demand. The demand under Article 315 1(b) may come in any form. It can be an oral demand, call demand or an email demand, any kind of demand.

In fact, according to the Supreme Court, demand is not necessary when there is already evidence showing that the said offender has already misappropriated or converted the said money, goods, or personal property. Therefore, demand is immaterial because in this case, the mere fact that he failed to return the said property, it is already clear and convincing evidence that he misappropriated the said property. Whatever kind of demand and in this case, demand is not written.

**Q: X is a grade school principal in the school. X was entrusted by the president of the school to collect the tuition fees from the parents and the students during the said enrollment period and to issue an official receipt and then, to forward the tuition fees collected to the school. After the enrollment period, everybody noticed that principal X stopped reporting for work. So, the treasury of the school reviewed the books of the school and discovered principal X non-remittance of the said matriculation fees received and collected by her from the students, parents during the said enrollment period.**

**The treasurer reported to the president of the school. They did everything they could to contact Principal X for a meeting. But Principal X never came to any of these meetings that they requested.**

**Thereafter, the President filed a case for Estafa through misappropriation or conversion under Article 315 1(b). It was filed before the public prosecutor. If you are the public prosecutor assigned to the case, will you indict principal X as charged by the president of the school? Will you indict principal X for Estafa through misappropriation or conversion under Article 315 1(b)?**

**A: NO.** If you were the public prosecutor, you should not indict Principal X of estafa through misappropriation or conversion under Article 315 1(b). Instead, you should indict principal X for the crime of QUALIFIED THEFT under Article 310 with the qualifying circumstance of grave abuse of confidence. In Estafa under Article 315 1(b), it is essential that the accused acquire both material or physical

possession and juridical possession of the thing, money, or the property received.

In this case, based on the facts, principal X was authorized by the president of the school to receive or collect tuition fees from the parents or the students and to issue an official receipt and to forward the collections of the tuition fees to the school. Principle X is merely a temporary custodian of the school. Hence, what principle X acquires is only the physical or material possession of the said unremitted matriculation fees and not the juridical possession.

Hence, the proper charge is not estafa. The proper charge is qualified theft because of the presence of grave abuse of confidence. That is the ruling of the Supreme Court in the case of **Reside v. People**.

**Q: The mother went to a store that sells secondhand laptops. The store owner saw her and asked her what he can do for her. The mother told him that she needs two (2) secondhand laptops. The storeowner showed here around and told her that they have a policy in their store that she can choose the laptop that she wants and bring it home for trial purposes. However, she has to return it within seven (7) days if she is not buying it. If she fails to return it within seven (7) days, then it means she is buying it and she needs to pay the price. Thus, the mother chose two (2) laptops, and she brought them home. The seven-day trial period lapsed and she did not return the laptops. The owner of the store called her and asked where are the laptops or the money. The mother said that she is going to give the laptops back. However, days passed, the laptops were not returned and no money was paid. Because of this, the owner of the store filed a case of Estafa under Article 315-1(b) – Estafa through Misappropriation or Conversion against the said mother. Is the said woman liable as charged?**

**A:** NO, the woman is not liable. The first element is absent.

Under the first element, it is necessary that when the said laptop was transferred to the mother, what has been transferred would be the juridical possession of the said property. Hence, she has the obligation to remit, to give back, and to return the said laptop to the owner of the store.

Based on their agreement, if the laptop was returned within seven (7) days, she is not buying it; if the laptop was not returned after seven (7) days, it means that she is buying it and she has to pay it. Seven (7) days have lapsed and she did not return the laptop. Therefore, what has been transferred to her is not only the juridical and material possession of the laptop but ownership of the laptop. She was already deemed to have bought the laptop based on the agreement. Therefore, the obligation of the mother to return the laptop is not criminal in nature but civil in nature to pay for the value of the said laptop because what was transferred to her was already the ownership of the laptop upon the lapse of seven (7) days.

## 2. BY MEANS OF FALSE PRETENSES OR FRAUDULENT ACTS

2. By means of any of the following false pretenses or fraudulent acts executed prior to or simultaneously with the commission of the fraud:
    a. By using fictitious name, or falsely pretending to possess power, influence, qualifications, property, credit, agency, business or imaginary transactions, or by means of other similar deceits.
    b. By altering the quality, fineness or weight of anything pertaining to his art or business.
    c. By pretending to have bribed any Government employee, without prejudice to the action for calumny which the offended party may deem proper to bring against the offender. In this case, the offender shall be punished by the maximum period of the penalty.
    d. By postdating a check, or issuing such check in payment of an obligation, the offender knowing that at the time he had no funds in the bank, or the funds deposited by him in the bank were not sufficient to cover the amount of the check, and without informing the payee of such circumstances.

**Under Art. 315(2)(a) - Estafa by means of false pretense**

**ELEMENTS:**

1. There must be a false pretense, or fraudulent acts, or fraudulent means;
2. Such false pretense, fraudulent acts or fraudulent means must be made or executed prior to or simultaneously with the commission of the fraud;
3. The offended party must have relied on the said false pretense, fraudulent acts or fraudulent means and was therefore, induced to part with his money, goods, or property; and
4. The offended party suffered damage.

For any acts punished under Article 315 2(a), (b), and (d), for estafa to arise, it is necessary that the false pretense, fraudulent acts or fraudulent means must be prior to or simultaneously with the act of defraudation. The false pretense, fraudulent acts or fraudulent means must be in concomitant with the act of defraudation. Otherwise, there is no estafa under Article 315 (2) (a).

It simply means that were it not for the false pretense, fraudulent acts or fraudulent means, the offended party would not have parted with his money, goods, or other personal property.

Under Article 315 2(a), the false pretenses, fraudulent acts or fraudulent means, which is executed prior to or simultaneously with the commission of the fraud may come by using a fictitious name or by falsely pretending to possess power, business influence, qualification, property, credit, agency, business, or imaginary transaction or by means of other similar deceits.

**Q: A, B and C passed the CPA exam. A, B and C wanted to work in a foreign land. They want to earn dollars. That has been the dream of these three friends A, B, and C. This desire of A, B, and C to work as accountants in a foreign land came to the knowledge of W.**

**W gave A, B, and C a visit in their boarding house. W represented to A, B, and C that he has a recruitment and placement agency that can bring them to work in Dubai. W showed to A, B, and C in his cellphone these different men and women who are now working in Dubai and are earning really big amounts, big salary in Dubai.**

**Because of this A, B, and C were more enticed and induced to work in Dubai through the help of W's recruitment and placement agency. Because of W's promise that just like the others in the cell phone, A, B, and C will be earning huge salary in Dubai as public accountants. W said, of course, that is possible. But they have to give him placement fees inclusive of everything the amount of P100,000.00 each. According to W, *"you need not worry of any document. All that I will ask you to do on the date of your travel is to go to NAIA. There at Naiya. I will be giving you everything. Because this P100,000.00 that you will give me is inclusive of all things."* So, A, B and C took out their savings, withdrew their savings, and gave each of them P100,000.00 pesos to W.**

**W never came back. A, B, and C never left the Philippines. Months had passed, no words from W. A, B, and C looked into the website of POEA. They discovered that W lied. W has no recruitment and placement agency that can bring them to work in Dubai as certified public accountants. What crime/s may A, B and C file against W?**

**A:** They can file **ESTAFA BY MEANS OF FALSE PRETENSE** under Article 315 2(a). They can also file **ILLEGAL RECRUITMENT IN LARGE SCALE**.

These two cases are cumulative remedies which A, B and C can file against W. One does not exclude the other. Both cases can prosper at the same time. They can even be consolidated upon motion of the counsel.

There is estafa by means of false pretense under Article 315 2(a). Because were it not for W's false pretense, false representation that he has the recruitment and placement agency that can bring A, B, and C to work in Dubai, A, B, and C would not have been induced and would not have parted with their P100,000.00 each.

Likewise, there is illegal recruitment in large scale. Illegal recruitment in large scale is committed when the offended parties were the victim of the said illegal recruitment and placement would be three or more persons individually or as a group. Here, A, B, and C were deceived as a group. Therefore, it is illegal recruitment in large scale. These two cases can prosper at the same time.

**Q: Same problem. When W did not appear anymore and when A, B, C failed to leave the Philippines, they checked the website. They found out that W has indeed a recruitment and placement agency. W has a licensed recruitment and placement agency. Nevertheless, they were not able to leave the Philippines. W did not appear anymore. Can they still file a case of estafa under Article 315 2(a) by means of false pretense against W?**

**A: YES**. According to the Supreme Court, in the case of **People v. David**, the fact that the accused or the illegal recruiter has a license does not negate the fact that the offender employed the deceit against the private offended party.

The fact that the illegal recruiter has a license does not negate the fact that the said offender employed deceit against the said private offended party.

In this case, W misrepresented to A, B and C that he could provide them with overseas employment wherein fact there was none, they were not able to leave the PH, where in not for these false pretenses, A B C would not have parted with their 100k, therefore estafa under 315 (2) (a) can still be charged.

**Under Art. 315(2) (d) - Estafa by post-dating a check**

**ELEMENTS:**

1. That a check has been drawn or postdated in payment of an obligation contracted at the time of the issuance of the check;
2. That the said check has no sufficient funds; and
3. The said check was dishonored, and the payee sustains damage.

In order to constitute estafa by post- dating a check, it is necessary that the act of issuing a check in payment of the obligation must be the efficient cause of the defraudation; the act of issuance of the check must be prior to or simultaneous with the act of fraud, otherwise there is no crime of estafa thru postdating a check.

**X obtained a loan from Y. A month thereafter, X went to Y's office to pay in the form of a check. X issued a check to Y in the amount of 100k. When Y deposited the said check, it bounced due to insufficiency of funds. What case may Y file against X when the latter despite receipt of dishonor notice did not make good of the said check.**

**A:** Y cannot file a case for estafa under Art 315 (2) (d) because X's issuance of a check was done in payment of an obligation that is pre- existing. Based on the first element, it is necessary that the check is for payment of an obligation contracted at the time of the issuance of the check.

If the check was drawn in payment for a pre-existing obligation, it cannot be said that the false pretense in the issuance of the check is in concomitance with the act of defraudation. Instead, the crime committed is for violation of BP 22.

For every bounced / worthless check, when notice of dishonor is received by the drawer and the drawer failed to make good of the check within 5 banking days, that drawer is liable for violation of BP 22.

**Estafa by post-dating a check v. B.P. 22**

| ESTAFA BY POSTDATING A CHECK | B.P. 22 |
|---|---|
| The check was issued concurrently, reciprocally in payment of the | Liability occurred even in payment of a pre-existing obligation. |

| | |
|---|---|
| exchanged consideration. | |
| Damage and deceit are essential elements. | Damage and deceit are immaterial. |
| Crime against property. | Crime against public interest. |
| The drawer is given three (3) days from the receipt of notice of dishonor to make good of the check. | The drawer of the check is given five (5) banking days to make good of the check. |
| Malum in se; Good faith a defense | Malum prohibitum; Good faith not a defense |

**BP 22**

**BATAS PAMBANSA BLG. 22**

**AN ACT PENALIZING THE MAKING OR DRAWING AND ISSUANCE OF A CHECK WITHOUT SUFFICIENT FUNDS OR CREDIT AND FOR OTHER PURPOSES.**

**S**ection 1. Checks without sufficient funds. - Any person who makes or draws and issues any check to apply on account or for value, knowing at the time of issue that he does not have sufficient funds in or credit with the drawee bank for the payment of such check in full upon its presentment, which check is subsequently dishonored by the drawee bank for insufficiency of funds or credit or would have been dishonored for the same reason had not the drawer, without any valid reason, ordered the bank to stop payment, shall be punished by imprisonment of not less than thirty days but not more than one (1) year or by a fine of not less than but not more than double the amount of the check which fine shall in no case exceed Two Hundred Thousand Pesos, or both such fine and imprisonment at the discretion of the court.

The same penalty shall be imposed upon any person who, having sufficient funds in or credit with the drawee bank when he makes or draws and issues a check, shall fail to keep sufficient funds or to maintain a credit to cover the full amount of the check if presented within a period of ninety (90) days from the date appearing thereon, for which reason it is dishonored by the drawee bank.

Where the check is drawn by a corporation, company or entity, the person or persons who actually signed the check in behalf of such drawer shall be liable under this Act.

Section 2. Evidence of knowledge of insufficient funds. - The making, drawing and issuance of a check payment of which is refused by the drawee because of insufficient funds in or credit with such bank, when presented within ninety (90) days from the date of the check, shall be prima facie evidence of knowledge of such insufficiency of funds or credit unless such maker or drawer pays the holder thereof the amount due thereon, or makes arrangements for payment in full by the drawee of such check within (5) banking days after receiving notice that such check has not been paid by the drawee.

**Two Ways of Committing BP 22:**

1. Making or drawing and issuance of a check knowing at the time of the issue that the offender does not have sufficient funds in the bank.

   **NOTE:** The drawer of the check knew that at the time of the issuance of the check, he had no funds in the bank.

2. The failing to give sufficient funds are credit with the drawee bank such that when the check presented within the period of 90 days from the date appearing on the check, it was dishonored by the bank.

   **NOTE:** At the time of the issuance of the check, the drawer has funds in the bank, however, the crime will arise because he failed to make good the check or he failed to keep such sufficient funds to the said drawee bank within the period of 90 days such that when the check was deposited within 90 days, it was dishonored by the drawee bank.

   **Q: What if the check was presented by the payee to the drawee bank beyond the 90 day period, can there still be a charge and conviction for violation of BP 22 even if presented way beyond the 90 day required by law.**
   A: Yes, the drawer can still be held liable for as long as not beyond 180 days or for as long as not yet a stale check. What is only lost by presenting it after the 90 days of the date appearing of the check, is the presumption of knowledge of insufficiency of funds on the part of the drawer,

but such can still be proven by other circumstantial evidence.

**Three (3) Important Periods in case of BP 22**

1. Within 5 banking days, the drawer, maker or issuer must make arrangements either to the bank or payee to make good of the check in order to prevent criminal liability.
2. Within 90 days, the drawer, maker or issuer of the check must maintain sufficient funds in the bank to destroy the prima facie presumption of knowledge of insufficiency of funds
3. Within 180 days, the payee must deposit or encash the check, if it fails to encash the same within 180 days, it becomes a stale check hence valueless, No action for a violation of BP 22 can arise.

**Q: What if X issued a check to Y. The said check bounced when the check was deposited to the drawee bank. Y sent a notice of dishonor to X. The latter failed to make good of the said check. So Y filed a case for violation of BP 22 against X before the fiscal's office. Fiscal sent a subpoena ordering X to file his counter affidavit. When X received the subpoena and discovered that Y filed a case against him. X was so afraid, instead of filing a counter affidavit, X went to the house of Y and replaced the check, Y said "eto na ang check amounting to the value of the check plus interests". It was a good check when Y deposited the check. Y was able to get the full value of the check plus interest. In the fiscals office, since X failed to file a counter affidavit, the fiscal found probable cause for violation of BP 22 against X. Hence, a case was filed. X insisted that he has already paid Y by issuing a new check hence he moves for the dismissal of the information. He was nevertheless convicted of violation of BP 22. Is the conviction proper?**

**A:** No. Violation of Bp22 is a crime against public interest for issuing a check which has no value. The moment X pays Y by issuing a new check covering the entire amount plus interest; public interest is no longer damaged. The fiscal's office should not have filed the case for violation of BP 22 nor shall it have convicted X for violation of BP 22. In cases of violation of BP 22, deceit and damage are not material.

### 3. BY FRAUDULENT MEANS

3. Through any of the following fraudulent means:
   a. By inducing another, by means of deceit, to sign any document.
   b. By resorting to some fraudulent practice to insure success in a gambling game.
   c. By removing, concealing or destroying, in whole or in part, any court record, office files, document or any other papers.

**Under Par. (a)**

**ELEMENTS:**

1. The offender induced the offended party to sign a document;
2. Deceit was employed to make him sign the document;
3. The offended party personally signed the document; and,
4. Prejudice was caused.

**Under Par. (b)**

Resorting to some fraudulent practice to insure success in a gambling game.

**Under Par. (c)**

**ELEMENTS:**

1. The offender removed, concealed or destroyed any court record, office files, documents or any other papers; and,
2. With intent to defraud another.

### SYNDICATED ESTAFA

**PRESIDENTIAL DECREE No. 1689 April 6, 1980**

**INCREASING THE PENALTY FOR CERTAIN FORMS OF SWINDLING OR ESTAFA**

**Section 1.** Any person or persons who shall commit estafa or other forms of swindling as defined in Article 315 and 316 of the Revised Penal Code, as amended, shall be punished by life imprisonment to death if the swindling (estafa) is committed by a syndicate consisting of five or more persons formed with the intention of carrying out the unlawful or illegal act, transaction, enterprise or scheme, and the defraudation results in the misappropriation of money contributed by

stockholders, or members of rural banks, cooperative, "samahang nayon(s)", or farmers association, or of funds solicited by corporations/associations from the general public.

When not committed by a syndicate as above defined, the penalty imposable shall be reclusion temporal to reclusion perpetua if the amount of the fraud exceeds 100,000 pesos.

Under PD 1689, we have syndicated estafa.

**ELEMENTS:**

1. Any act of Estafa under Article 315 or 316 is committed;
2. It is committed by group of five (5) persons acting as a syndicate; and
3. The defraudation consists in the misappropriation of money contributed by the stockholders or members of the corporation, rural banks, cooperatives, "samahang nayon(s)", or farmers' associations, or of funds solicited by corporations/associations from the general public.

**Q: Q: A, B, C, D, and E graduated from college and they all come from wealthy families and wanted to put up an investment corporation. A, B, C, D, and E combined their funds and they put up their investment corporation. But for the company to grow and stay, they needed investors. Thus, they tried to look for investors. They went to this Barangay wherein they know that many people have already retired. With the help of the Barangay Captain, they said that they needed an audience to invite the people to invest in their newly formed corporation. The Barangay Captain obliged to their request and the Barangay Captain gathered their constituents.**

**On that day, A, B, C, D, and E went to the covered court and discussed their newly formed investment corporation to the constituents of the Barangay Captain. They guaranteed them immediate return of the amount of investment and 50% net profits/interest on the amount invested, telling the people that no bank on earth can give them such interest, only them because they have the funds. Because of their good words, 21 constituents of the Barangay Chairman invested in the said corporation. They were given certificates of investments, and after being given such, these people were also given postdated cheques, representing their 50% proceeds of the investment.**

**However, on the maturity date of the said cheques, these 21 people deposited their cheques to the bank but were dishonored. They sent the notice of dishonor to A, B, C, D, and E, but the said notice of dishonor was returned to the sender because of the wrong address. What crime/s should be filed against A, B, C, D, and E?**

**A:** Each of these 21 people can file a syndicated estafa under PD 1689 against A, B, C, D, E. All elements are present.

In this case, A, B, C, D, and E committed estafa under Article 315-2(a) - Estafa by means of False Pretense. Were it not for their good words and promises, the 21 people would not have parted with their money. Therefore, the false pretense was in concomitance with the act of deprivation.

Second element, the offender must be a syndicate consisting of five (5) or more persons. They are five persons, the law deems that they are a syndicate.

Third element, in this case, these money were solicited from the general public, the 21 persons.

All in all, the 5 accused will be held liable for 21 counts of syndicated estafa and shall be sentenced with 21 counts of Life Imprisonment based on PD 1689 vis-a-vis **People v, Tibayan** and **Hao-v-People.**

## OTHER FORMS OF SWINDLING (ART. 316)

**Art. 316.** ***Other forms of swindling.*** **-** The penalty of arresto mayor in its minimum and medium periods and a fine of not less than the value of the damage caused and not more than three times such value, shall be imposed upon:

1. Any person who, pretending to be the owner of any real property, shall convey, sell, encumber or mortgage the same.
2. Any person who, knowing that real property is encumbered, shall dispose of the same, although such encumbrance be not recorded.
3. The owner of any personal property who shall wrongfully take it from its lawful possessor, to the prejudice of the latter or any third person.
4. Any person who, to the prejudice of another, shall execute any fictitious contract.
5. Any person who shall accept any compensation given him under the belief that it was in payment of services rendered or labor performed by him, when in fact he did not actually perform such services or labor.

6. Any person who, while being a surety in a bond given in a criminal or civil action, without express authority from the court or before the cancellation of his bond or before being relieved from the obligation contracted by him, shall sell, mortgage, or, in any other manner, encumber the real property or properties with which he guaranteed the fulfillment of such obligation.

Other Forms of Swindling can be committed by the following:

1. Any person who, pretending to be the owner of any real property, shall convey, sell, encumber or mortgage the same.
2. Any person who, knowing that real property is encumbered, shall dispose of the same, although such encumbrance be not recorded.
3. The owner of any personal property who shall wrongfully take it from its lawful possessor, to the prejudice of the latter or any third person.
4. Any person who, to the prejudice of another, shall execute any fictitious contract.
5. Any person who shall accept any compensation given him under the belief that it was in payment of services rendered or labor performed by him, when in fact he did not actually perform such services or labor.
6. Any person who, while being a surety in a bond given in a criminal or civil action, without express authority from the court or before the cancellation of his bond or before being relieved from the obligation contracted by him, shall sell, mortgage, or, in any other manner, encumber the real property or properties with which he guaranteed the fulfillment of such obligation.

## SWINDLING A MINOR (ART. 317)

**Art. 317. *Swindling a minor.* -** Any person who, taking advantage of the inexperience or emotions or feelings of a minor, to his detriment, shall induce him to assume any obligation or to give any release or execute a transfer of any property right in consideration of some loan of money, credit or other personal property, whether the loan clearly appears in the document or is shown in any other form, shall suffer the penalty of arresto mayor and a fine of a sum ranging from 10 to 50 per cent of the value of the obligation contracted by the minor.

**ELEMENTS:**

1. The offender takes advantage of the inexperience or emotions or feelings of a minor;
2. He induces such minor to assume an obligation or to give release, or to execute a transfer of any property right;
3. Consideration is some Loan of money, credit or other personal property; and,
4. Transaction is to the detriment of such minor.

## OTHER DECEITS (ART. 318)

**Art. 318. *Other deceits.* -** The penalty of arresto mayor and a fine of not less than the amount of the damage caused and not more than twice such amount shall be imposed upon any person who shall defraud or damage another by any other deceit not mentioned in the preceding articles of this chapter.

Any person who, for profit or gain, shall interpret dreams, make forecasts, tell fortunes, or take advantage of the credulity of the public in any other similar manner, shall suffer the penalty of arresto menor or a fine not exceeding 200 pesos.

***Who is liable?***

a. Any person who, for profit or gain, shall interpret dreams, make forecasts, tell fortunes, or take advantage of the credulity of the public in any other similar manner;
b. Any person who shall defraud or damage another not punishable under Art. 315, 316 and 317, it is punishable under Art. 318 – Other Deceits.

## ARSON

**Art. 320. *Destructive arson*.**—The penalty of reclusion temporal in its maximum period to reclusion perpetua shall be imposed upon any person who shall burn:

1. Any arsenal, shipyard, storehouse or military powder or fireworks factory, ordnance storehouse, archives or general museum of the Government.

2. Any passenger train or motor vehicle in motion or vessel out of port.

3. In an inhabited place, any storehouse or factory of inflammable or explosive materials.

4. Any theater, church, cockpit, or other building where meetings are held, when occupied by a numerous assemblage.

*[Arts. 320-326-B were expressly repealed by PD 1613; thereafter Art. 320 was restored by RA 7659 but not Arts. 321-326-B]*

Arson is the malicious destruction of the property by means of fire.

**Two Kinds of Arson**

1. Destructive Arson; or
2. Simple Arson under PD 1613.

The classification of Arson into Destructive and Simple Arson is based on the character and location of the property burned regardless of the value of the property. Whatever the kind of Arson, there are two general elements of Arson.

**TWO GENERAL ELEMENTS OF ARSON:**

1. Corpus delicti, which is the presence of fire by reason of criminal intent; and,
2. The identity of the accused as the one responsible for the fire.

**Stages of Commission of the Crime of Arson**

Arson admits only of two stages (1) Attempted, and (2) consummated.

Arson is **consummated** when any part of the property has been burned. Arson is **attempted** when the burning was stopped or prevented due to some cause or accident other than the offender's spontaneous desistance.

**Q: X wanted to get even with Y. X decided to burn the house of Y, however all along he thought Y's family was on vacation in Baguio. He didn't know that 2 helpers were there. X though the house is empty. X set the house on fire. The 2 helpers were sleeping and were burned together with the house. X was arrested and since 2 persons died, X was charged with the complex crime of Arson with Homicide. Is there a crime such as complex crime of Arson with Homicide?**

**A:** No. In **People v. Malngan,** the Supreme Court said there is no complex crime of arson with homicide even if in the course of burning the house, property, dwelling, building of another, someone is killed. The reason given by the Supreme Court is that Article 320 of the Revised Penal Code, with respect to destructive arson, and PD 1613, with respect to simple arson, provide only one penalty for the commission of arson whether considered as destructive or simple when death results. According to the Supreme Court, arson is itself the end and death is simply a consequence. Therefore, there is no complex crime of arson with homicide.

Three examples cited by the Supreme Court in **People v. Malngan**:

**1. When the crime committed is Arson**

Therefore, very clear, whether it is Destructive Arson or Simple Arson, if death results by reason of the Destructive Arson or Simple Arson, a complex crime will not arise, the said death is simply absorbed, its effect is only to increase the imposable penalty.

a. Under Art 320 if as consequence of the destructive arson, death results - penalty is death
b. Under PD 1613 on simple arson - penalty is RP - death.

**2. When the crime committed is Murder**

If, however, the intent of the offender is to kill the victim who is inside his house, in order to kill him, he burned the house, the crime committed is murder because the killing is done by means of fire.

**3. When the crime committed is Arson and Murder / Homicide**

If the offender killed the victim, and after killing the victim the said offender brought the deceased body of the victim inside the house and set the house on fire to conceal the said act of killing, there are two crimes committed: one is murder for having killed the victim and the other one is arson for burning the house after placing the deceased victim in order to conceal the crime.

**Different Ruling in People v. Soria**

In **People v. Soria (2020)**, penned by our very own former CJ Diosdado Peralta, when the house was burned and a helper who was sleeping inside was burned to death, the accused is liable for Arson with Homicide. But he did not state the reason why it is Arson with Homicide. He just stated in the end the accused is liable for Arson with Homicide but there is no explanation why it is Arson with Homicide. So I will still stay in the En Banc case of **People v. Malngan** that the crime committed is Arson, only that the penalty is increased, the said death is simply absorbed, the effect is only to increase the imposable penalty.

**BAR EXAM TIP:** In case you are given a problem that there is Arson and someone is killed, answer based on **People v. Malngan;** the crime committed is arson but because of the death, the penalty is aggravated. There is no complex crime of Arson with Homicide.

But perhaps, in the lower part of your answer, you can answer *"recently however, in the case of **Soria v. People,** the crime committed is a complex crime of Arson with Homicide."*

**NOTE:** Prosec said base our answer in the case of Malngan because the more recent cases of Soria does not explain why there is a complex crime of Arson with Homicide and neither does it expressly contradicts the explanation of the Supreme Court in the older case of Malngan.

**Q: X went to the rest house of Y, his mortal enemy. X wanted to get even with Y. To get even with Y, he decided to burn down the rest house of Y. X poured gasoline on the walls of the rest house of Y. However, when X was about to light the match, Z, the caretaker, arrived. Hence, X, upon seeing Z, immediately fled. He failed to burn the rest house. What crime is committed by X?**

**A:** Attempted Arson. A charge of frustrated arson is improper because the crime of arson has no frustrated stage – it is either consummated or attempted.

Arson is consummated when any part of the property has been burned. Arson is attempted when the burning was stopped or prevented due to some cause or accident other than the offender's spontaneous desistance.

In this case, X was stopped from burning the rest house of Y by the arrival of Z, the caretaker. Therefore, the crime committed by X is attempted arson, and NOT frustrated arson.

**Same Problem: : X went to the rest house of Y, his mortal enemy. X wanted to get even with Y. To get even with Y, he decided to burn down the rest house of Y. X poured gasoline on the walls of the rest house of Y. With the use of the match, he was able to set it on fire, the left part was burning as well as the roof thereof. Then the caretaker Z arrived. Firemen were called and they were able to put out the fire. What crime is committed by X?**

**A:** Arson in the consummated stage. The moment X caused damage on any part of the said house, dwelling or building - it is already the crime of consummated arson. The entire house need not be burned down, it suffices that any part thereof is burned. Here, the left part of the house is damaged. Arson is therefore already consummated.

**Q: There is this grocery store licensed to sell firecrackers and pyrotechnics. The sons of the owner, brothers A and B were manning the store, and suddenly here comes X and Y. X and Y arrived on board a motorcycle. When X and Y arrived, X remained seated on the motorcycle, while Y went inside the store. X, who remained outside seated on the motorcycle, lit the fuse of a mother rocket or kwitis. Thereafter, X threw the said kwitis on the other firecrackers at display on the said store. Because of that, the said store exploded. The said store was totally raged by fire and the owner by the name of C was killed inside . What crime/s is/are committed by X?**
A: In the case of **People v. Pugal** , the Supreme Court said that the crime committed is Destructive Arson. Under Art. 320 of the RPC, as amended by RA 7659, the law punishes as destructive arson the malicious burning of things, whether public or private, including a storehouse or factory of inflammable or explosive materials by any person.

In arson, the corpus delicti is proof of the fire's occurrence and the offender's criminal intent. In this case, X's intent to burn the said store is evident by his act of throwing the kuwitis and thereafter, throwing it on the firecrackers on display at the store. Obviously, X intended to burn the store, resulting in the death of its owner. Thus, the crime committed is destructive arson.

## MALICIOUS MISCHIEF (ART. 327)

**Art. 327. *Who are liable for malicious mischief.*—**Any person who shall deliberately cause to the property of another any damage not falling within the terms of the next preceding chapter shall be guilty of malicious mischief.

**ELEMENTS:**

1. That another property was damaged;
2. That the damage was deliberately caused; and
3. That the damage does not constitute the crime of arson.

Under Art. 327, any person who shall "deliberately cause" the property of another any damage not constituting arson shall be guilty of malicious mischief.

In case of malicious mischief, just like mutilation under Art. 262, requires **deliberate intent** and cannot be committed by imprudence or negligence because it is the deliberate act of cutting the body part of a person.

Art. 327 is committed by any person WHO SHALL DELIBERATELY CAUSE ANY DAMAGE NOT CONSTITUTING ARSON. So even if the accused damaged the property of another but there is no deliberate intent, crime is not malicious mischief.

## PERSONS EXEMPT FROM CRIMINAL LIABILITY (ART. 332)

**Article 332. Persons exempt from criminal liability.** - No criminal, but only civil liability, shall result from the commission of the crime of theft, swindling or malicious mischief committed or caused mutually by the following persons:

1. Spouses, ascendants and descendants, or relatives by affinity in the same line.
2. The widowed spouse with respect to the property which belonged to the deceased spouse before the same shall have passed into the possession of another; and
3. Brothers and sisters and brothers-in-law and sisters-in law, if living together.

The exemption established by this article shall not be applicable to strangers participating in the commission of the crime.

**Q: X was charged with the complex crime of Estafa through Falsification of Public Document. Before arraignment, X moved for the dismissal of the case. According to X, the private complainant in this case, Y, is his very own father. Further, his relationship with the private complainant, being his very own father, is an absolutory cause under Art. 332 in the crime of estafa. Therefore, X moved that the crime of estafa through falsification of public document filed against him by his very own father be dismissed. If you were the judge, would you grant or deny X's motion to dismiss?**

**A:** The said motion to dismiss must be denied. X's argument has no merit.

Art. 332 provides for absolutory cause in the crimes of theft, swindling, and malicious mischief. However, Art. 332 limits the responsibility of the offender to civil liability only in these crimes and free him from criminal liability if they are related to each other. So, no criminal liability, but only civil liability shall result from the commission of the crimes of theft, swindling, and malicious mischief by and among the:

1. Spouses, ascendants and descendants, or relatives by affinity in the same line.
2. The widowed spouse with respect to the property which belonged to the deceased spouse before the same shall have passed into the possession of another; and
3. Brothers and sisters and brothers-in-law and sisters-in-law, if living together.

Relationship is an absolutory cause in theft, swindling, and malicious mischief. Therefore, the said offender-relative only obtains civil liability and he is free from criminal liability.

However, in the case of the **Intestate Estate of Manolita Gonzales vda. De Carungcong v. People**, the Supreme Court said that the coverage of Art. 332 is strictly and exclusively limited to the felonies stated therein – theft, swindling, and malicious mischief. It does NOT apply if these crimes are complexed with another crime such as in this case, estafa through falsification of public document.

Applying the same in the present case, since the case filed by the father against the son is estafa through falsification of public document, since estafa is already complexed with falsification of public documents which is a crime against public interest, then the absolutory cause under Art. 332 will no longer lie in his favor.

**NOTE:** The purpose of Art. 332 providing an absolutory cause is to ensure harmony in the family.

**Q: What about Qualified Theft, will the absolutory cause under Art. 332 apply?**

**A:** YES. It is not complexed; it is only qualified by circumstances under Art. 310. But still, it is not complexed. It is still theft, only in its qualified form.

**Q: X has just arrived from the USA, he learned that Y and Z, his siblings, conspired against him to sell the properties of their deceased parents. It seems nothing is left for X. He was so mad. One time, he went to the house of Y and Z. Upon arrival, he was looking for Y and Z; he only saw the children. So he asked the children where Y and Z were and was told they were at a meeting. X asked the children (nieces and nephew) if he could wait inside. While inside, he saw many valuables, X took all the valuables and placed them**

**inside his bag. When Y and Z arrived, they discovered what X did. Upon realizing that the valuables were taken by their brother, they filed a case of theft. X moved for the dismissal due to their relationship being siblings as under Art 332 he will only incur civil liability. Will X defense prove merit?**

A: No. Under the 3rd act, the absolutory cause will only apply if the brothers and sisters are leaving together, therefore the said absolutory cause will not apply

**NOTE:**

- ➔ If a stranger conspired with the relatives, the said stranger will not be absolved because the relationship is personal to the relative.
- ➔ When you say spouses, it does not only mean those who are legally married. It includes mistresses, concubines, and paramours.
- ➔ When you say ascendants and descendants, it even includes step-parents because according to the law, the purpose is to ensure harmony in the family.

## TITLE 11: CRIMES AGAINST PUBLIC CHASTITY

### ADULTERY (ART. 333)

**Art. 333.** ***Who are guilty of adultery.*** - Adultery is committed by any married woman who shall have sexual intercourse with a man not her husband and by the man who has carnal knowledge of her knowing her to be married, even if the marriage be subsequently declared void.

Adultery shall be punished by prision correccional in its medium and maximum periods.

If the person guilty of adultery committed this offense while being abandoned without justification by the offended spouse, the penalty next lower in degree than that provided in the next preceding paragraph shall be imposed.

**Q: Who are the offenders in adultery?**
**A:** The offender is the married woman and paramour, the man having sexual intercourse with her other than her husband

**Q: Who is the offended party?**
**A:** The husband shall be filed against BOTH the married woman and the paramour. Only the legal husband can file the case because adultery is a private crime. Therefore, it cannot be prosecuted by the state de officio. There must be a complaint coming from the complainant, the legal husband.

**Q: Q: What if the paramour did not know that the woman with whom he had sexual intercourse is a married woman? Will it absolve him from criminal liability? Does it mean that he shall no longer be charged in court?**

**A:** If it so happens that the other man that the woman is a married woman, it is a matter of defense on the part of the said man. It must be proven in court that he lacks knowledge that this woman is a married woman. If he is able to prove that he lacks knowledge that this woman is married, then he will be acquitted of the crime of adultery and only the said legally married woman will be convicted of adultery.

***Adultery is a formal crime***
Adultery is a formal crime; it has no attempted and frustrated stages. It is punished only in the consummated stage. Adultery is consummated upon the carnal union between a married woman and another man not being her husband.

### CONCUBINAGE (ART. 334)

**Art. 334.** ***Concubinage.*** **-** Any husband who shall keep a mistress in the conjugal dwelling, or shall have sexual intercourse, under scandalous circumstances, with a woman who is not his wife, or shall cohabit with her in any other place, shall be punished by prision correccional in its minimum and medium periods.

The concubine shall suffer the penalty of destierro.

**ELEMENTS:**

1. That the offender must be a married man;
2. That he committed any of the following acts:
    a. Keeping mistress in the conjugal dwelling;
    b. Having sexual intercourse, under scandalous circumstances, with a woman who is not his wife; or
    c. Cohabiting with her in any other place.
3. As regards the woman, she must know him to be married.

**Q: Who is the offender and offended party in Concubinage?**
**A:** The offender is the legally married man AND the mistress/ concubine. The offended party is the wife. Only

the wife can file the case against them because concubinage is a private crime, same as adultery. The complaint must come from the private offended party - in this case, the wife.

**Q: In Singgit & But-ay v. People, Ariel Singgit and But-ay were charged with Concubinage. The information alleged that although Ariel is legally married, he cohabited and lived together with co- accused But-ay, a woman who is not his wife in a private dwelling. The MTCC convicted the accused as charged, the RTC affirmed. On appeal before the SC, both accused contended that they should be acquitted because if the information is read, it alleges that the said act of cohabitation took place in a "private dwelling". To state that private dwelling is erroneous because it should be "conjugal dwelling". Is the argument meritorious?**
A: SC affirmed the conviction. The argument of the accused has no merit. The gravamen of concubinage per the SC is the assault to the marital vow or to the family caused by the infidelity of one spouse. The allegation of "private dwelling" is correct because here what the accused committed is based on the 3rd mode "cohabited in any other place". The "conjugal dwelling is only applicable in the "first act".

## SEDUCTION (ART.S 337-338)

**Art. 337.** ***Qualified seduction.***—The seduction of a virgin over twelve years and under eighteen years of age, committed by any person in public authority, priest, house-servant, domestic, guardian, teacher, or any person who, in any capacity, shall be entrusted with the education or custody of the woman seduced, shall be punished by prision correccional in its minimum and medium periods.

The penalty next higher in degree shall be imposed upon any person who shall seduce his sister or descendant, whether or not she be a virgin or over eighteen years of age.

Under the provisions of this Chapter, seduction is committed when the offender has carnal knowledge of any of the persons and under the circumstances described herein.

**Art. 338.** ***Simple seduction.***—The seduction of a woman who is single or a widow of good reputation, over twelve but under eighteen years of age, committed by means of deceit, shall be punished by arresto mayor.

**Two kinds of seduction:**

1. Qualified seduction (Art 337); and,
2. Simple Seduction (Art 338)

Both articles have already been amended by RA 11648. Based on the amendment, under Art 337, qualified seduction is now seduction of a minor 16 or over but under 18, committed by any person in public authority, priest, home servant, domestic, guardian, teacher, or any person who, in any capacity, shall be entrusted with the education or custody of the minor seduced.

**Q: Where is the amendment?**
**A:** It is as to the victim. The victim is now a minor 16 and over but under 18 years of age.

The same is true with Art 338, Simple Seduction. It is seduction committed by deceit.

**Q: Why minor 16 and over but under 18?**
A: Because the moment the sexual intercourse is done on a minor under 16, it is automatically statutory rape, under Art 266-A 1(d) as amended by RA 11648 regardless of consent. In case of qualified or simple seduction, the victim must be a minor 16 and over but under 18, because if under 16, automatic statutory rape regardless of consent.

**ELEMENTS:**

1. That the offended party is a minor who is sixteen (16) and over but under eighteen (18) years;
2. That the offender had sexual intercourse with the minor;
3. That the minor who is sixteen (16) and over but under eighteen (18) years allowed the carnal knowledge.
4. That there was:
    a. Abuse of authority, abuse of confidence, or abuse of relationship, in case of qualified seduction; or
    b. Means of deceit, in case of simple seduction.

Whether it is qualified seduction or simple seduction, for the crime to arise, there must be the element of sexual intercourse or carnal knowledge. Without sexual intercourse or carnal knowledge, there is no crime of seduction.

**Q: Why not rape?**
**A:** It is only seduction, and not rape, because in cases of qualified seduction and simple seduction, the carnal knowledge was allowed by the minor.

In case of qualified seduction, the sexual intercourse was allowed by the minor because there was:

1. Abuse of authority;
2. Abuse of confidence;
3. Abuse of Relationship

In the case of simple seduction, the said woman allowed it because of deceit. She was deceived.

## CORRUPTION OF MINORS (ART. 340)

**Art. 340. *Corruption of minors.*** - Any person who shall promote or facilitate the prostitution or corruption of persons underage to satisfy the lust of another, shall be punished by prision mayor, and if the culprit is a pubic officer or employee, including those in government-owned or controlled corporations, he shall also suffer the penalty of temporary absolute disqualification.

**ELEMENTS:**

1. The offender promotes or facilitates the corruption of persons underage; and,
2. The purpose is to satisfy the lust of another.

**NOTE:**

- ➔ Under the present wordings of the law, a single act of promoting or facilitating the corruption or prostitution of minor is sufficient to constitute violation of this article.
- ➔ The victim must be of good reputation, not a prostitute or corrupted person. It is NOT necessary that unchaste acts are done; mere proposal consummates the offense.

## WHITE SLAVE TRADE

**Art. 341. *White slave trade.*** - The penalty of prision mayor in its medium and maximum period shall be imposed upon any person who, in any manner, or under any pretext, shall engage in the business or shall profit by prostitution or shall enlist the services of any other for the purpose of prostitution (As amended by Batas Pambansa Blg. 186.)

**Punishable Acts**

1. Engaging in the business of prostitution;
2. Profiting by prostitution; and,
3. Enlisting the service of women for the purpose of prostitution

**NOTE:** Mere enlisting of the services of women for the purpose of prostitution whether the offender profits or not is punishable.

## ABDUCTION (ART. 342-343)

**Art. 342. *Forcible abduction.*** - The abduction of any woman against her will and with lewd designs shall be punished by reclusion temporal.

The same penalty shall be imposed in every case, if the female abducted be under twelve years of age.

**Art. 343. *Consented abduction.* -** The abduction of a virgin over twelve years and under eighteen years of age, carried out with her consent and with lewd designs, shall be punished by the penalty of prision correccional in its minimum and medium periods

**Definition**

Forcible abduction is the abduction, the carrying away, the taking away of a woman against her will. At the outset, there is lewd design on the part of the man.

**Q: Who is the victim?**
A: A woman

**ELEMENTS OF FORCIBLE ABDUCTION:**

1. The person abducted is any woman, regardless of her age, civil status, or reputation;
2. Abduction is against her will; and,
3. Abduction is with lewd designs.

**NOTE:** Where lewd design was not proved or shown, and the victim was deprived of her liberty, the crime is kidnapping with serious illegal detention under Art. 267.

**In Forcible Abduction, sexual intercourse is not an element**

Remember that in the crime of seduction, sexual intercourse or carnal knowledge is an element, without which seduction will not arise, in the crime of forcible abduction as well as consented abduction, carnal knowledge or sexual intercourse is not an element.

Since it is not an element, therefore, if after abducting the said woman, the said offender would have carnal knowledge of the said woman, a crime of rape will result.

If by reason of the forcible abduction the man had sexual intercourse with the woman, it would result in a complex crime of forcible abduction with rape. Only one forcible

abduction and one rape is necessary to form a complex crime of forcible abduction with rape.

If there is abduction and 7 counts of rape, the crimes committed are: forcible abduction with rape and 6 counts of rape

**ELEMENTS OF CONSENTED ABDUCTION:**

1. The offended party must be a virgin;
2. She must be over 12 and under 18 years of age;
3. The taking away of the offended party must be with her consent, after solicitation or cajolery from the offender; and,
4. The taking away of the offended party must be with lewd designs.

**NOTE:** The virginity mentioned in this Article should not be understood in its material sense and does not exclude the idea of abduction of a virtuous woman of good reputation because the essence of the offense is not the wrong done to the woman but the outrage to the family and the alarm produced in it by the disappearance of one of its members. *(Valdepenas v. People, 16 SCRA 811)*

**Q: X abducted Y, at the outset, there is lewd design, the abduction is against the will of Y. While X was carrying Y, Y was shouting for help.**

**X brought Y to his house. He placed her in one of the rooms, he tied Y. On the second day of Y's captivity, X had forcibly sexual intercourse with Y by means of force and violence. On the 3rd night, X had carnal knowledge by use of force and violence. The same thing occurred on the 4th and 5th night. What crime/s is/are committed by X?**

**A:** In reality, X committed forcible abduction and we have 4 acts of rape (2nd day to 5th day). But of what crimes is X to be indicted? If in the act of forcible abduction the said offender commits multiple acts of rape against the victim, the first act of rape against the victim must be COMPLEXED with forcible abduction because the latter is a necessary means to commit the first act of rape. However, the succeeding multiple acts of rape will constitute distinct crimes of rape.

Here, the first act of rape will be complexed with forcible abduction and the latter 3 acts of rape is separate. So file 4 information. First, complex crime of rape thru forcible abduction. Second Information, rape. Third information, rape. Fourth information, last act of rape.

**Q: What if X is sleeping inside her room, her brother in law (husband of elder sister) entered the room. The said brother in law undressed X, X was crying for help but the brother in law was successful in having carnal knowledge with X, 13 years old. A week thereafter, X dressed in her uniform was already near the school. X was about to enter the gate, but suddenly here came the tricycle of the brother-in-law and forcibly took away X and placed X inside the tricycle, and they went to one place to another and eventually to the house of the parents of the brother-in-law. There, he raped the said girl. Because of this, the brother in law is now charged with 2 crimes, first is qualified rape and second is rape thru forcible abduction. If you were the judge, would you convict the accused as charged?**

**A:** In the case of **People v. Cayanan**, the SC convicted accused of two counts of qualified rape. The said rape inside the bedroom and the rape when the girl was abducted - if it is evident from the facts that the original criminal intent is to rape the victim, the forcible abduction is absorbed in the crime of rape. In this case, based on the evidence, the purpose is for raping her the second time. The real intent of the offender is to rape the victim, hence the forcible abduction merely incidental to commit the crime of rape is absorbed. Hence, the accused is liable for qualified rape due to twin requirement of minor and relationship (brother in law, sister in law are 3rd degree affinity)

**Q: While X was doing the grocery, here comes Y, the enemy of her husband. Y passed by onboard his van. Y saw X and said, *"Asawa yun ng aking kalaban ah."***

**So, Y parked his vehicle and rushed towards X. He carried away X, brought her inside his van, and brought her in a room inside his house.He intended to detain X for a month so that his enemy will look for his wife. He wanted to get even – to give his enemy sleepless nights looking for the wife.**

**On the second day of captivity, Y became so interested with X that he had carnal knowledge with the wife, X. The following day, again, Y had carnal knowledge of X, as well as the day after that, until X was able to escape. What crime/s should be filed against Y?**

**A:** Y should be charged of only one crime and that is, the single and indivisible offense, the composite crime, the special complex crime of Kidnapping and Serious Illegal Detention with Rape.

It is kidnapping and serious illegal detention with rape because in this case, at the outset, the intent of the offender

is to detain the said woman so that the husband of the woman, his enemy will have sleepless nights looking for the wife.

Even if the offender committed multiple acts of rape, it will simply be absorbed by the said indivisible and single offense.

**Q: Same problem. After Y abducted X intending to detain X for a month to get even with the husband of X, he got so interested in X. He tried to have carnal knowledge of X, but the latter put up a fight. She was able to grab a piece of wood which she used against Y. She hit Y and she was able to run away and escape. The police filed two case: kidnapping and serious illegal detention and the other is attempted rape. Are the charges correct?**

**A:** YES. To bring about the special complex crime of kidnapping and serious illegal detention with rape, rape must be consummated. If rape is merely attempted, it will constitute a separate and distinct charge.

**Forcible Abduction with Rape v. Kidnapping and Serious Illegal Detention with Rape**

| HEADER | HEADER |
|---|---|
| It is a complex crime under Art. 48. The forcible abduction is necessary means to commit the act or rape. | It is a special complex crime. It is the law which combines the crime under Art. 267. |
| At the outset, there was lewd design on the part of the offender. | At the outset, the intent of the offender is to detain the woman kidnapped. |
| If there are multiple acts of rape done on the victim, the first act of rape is complexed with forcible abduction; and the succeeding acts of rape will constitute different counts of rape. | All acts of multiple rapes will be absorbed by the single indivisible offense of kidnapping and serious illegal detention with rape. |
| Rape must be consummated. If rape is merely attempted, it is simply absorbed by forcible abduction because it is simply a manifestation of the lewd design element of forcible abduction. | Rape must be consummated. If rape is merely attempted, it will constitute a separate and distinct charge. |

## TITLE 12: CRIMES AGAINST PUBLIC CIVIL STATUS

### SIMULATION OF BIRTHS (ART. 347)

**Art. 349.** ***Simulation of births, substitution of one child for another and concealment or abandonment of a legitimate child.*** - The simulation of births and the substitution of one child for another shall be punished by prision mayor and a fine of not exceeding 1,000 pesos.

The same penalties shall be imposed upon any person who shall conceal or abandon any legitimate child with intent to cause such child to lose its civil status.

Any physician or surgeon or public officer who, in violation of the duties of his profession or office, shall cooperate in the execution of any of the crimes mentioned in the two next preceding paragraphs, shall suffer the penalties therein prescribed and also the penalty of temporary special disqualification.

**Acts Punished**

**I. Simulation of births**

Simulation of birth takes place when the woman pretends to be pregnant when in fact she is not and on the day of the delivery, takes the child of another as her own.

- ➔ If the simulation is done in the birth certificate, the crime committed is simulation of birth.
- ➔ If the simulation is done in any other document aside from birth certificate, the crime committed is falsification of a public or private document as the case may be.

**II. Substitution of a child with another**

**III. Concealing or abandoning any legitimate child with intent to cause such child to lose its civil status**

**ELEMENTS:**

1. The child must be legitimate;
2. The offender conceals of abandons such child; and,
3. The offender has the intent to cause the child to lose its civil status.

### USURPATION OF CIVIL STATUS (ART. 348)

**Art. 349.** ***Usurpation of civil status.*** **-** The penalty of prision mayor shall be imposed upon any person who shall usurp the civil status of another, should he do so for the purpose of defrauding the offended part or his heirs; otherwise, the penalty of prision correccional in its medium and maximum periods shall be imposed.

**ELEMENTS:**

1. The offender is any person; and,
2. The offender usurps the civil status of another.

**Qualifying circumstance**
If the purpose is to defraud offended parties and heirs.

### BIGAMY (ART. 349)

**Art. 349.** ***Bigamy.—***The penalty of prision mayor shall be imposed upon any person who shall contract a second or subsequent marriage before the former marriage has been legally dissolved, or before the absent spouse has been declared presumptively dead by means

of a judgment rendered in the proper proceedings.

**ELEMENTS:**

1. That the offender is legally married;
2. That the first marriage has not been legally dissolved, or the absent spouse has not yet been presumed dead by a judicial proceeding;
3. The offender contracts a second or subsequent marriage; and
4. The second or subsequent marriage has all the requisites for the validity of a marriage.

**Two ways of committing bigamy:**

1. A legally married spouse contracts a second or subsequent marriage with another without the first marriage being legally dissolved.
2. When the said legally married spouse contracts a second or subsequent marriage before the absent spouse has been presumed dead.

## MARRIAGE CONTRACTED AGAINST PROVISIONS OF LAWS (ART. 350)

**Art. 350.** ***Marriage contracted against provisions of laws.***—The penalty of prision correccional in its medium and maximum periods shall be imposed upon any person who, without being included in the provisions of the next preceding article, shall contract marriage knowing that the requirements of the law have not been complied with or that the marriage is in disregard of a legal impediment. If either of the contracting parties shall obtain the consent of the other by means of violence, intimidation or fraud, he shall be punished by the maximum period of the penalty provided in the next preceding paragraph.

**ELEMENTS:**

1. The offender contracted marriage;
2. He knew at the time that the:
    a. Requirements of the law were not complied with; or
    b. Marriage was in disregard of a legal impediment; and,
    c. The act of the offender does not ·constitute Bigamy. *(People v. Salazar, February 11, 1980)*

**Qualifying circumstance**

If either of the contracting parties obtains the consent of the other by means of violence, intimidation or fraud.

## PERFORMANCE OF ILLEGAL MARRIAGE CEREMONY (ART. 352)

**Art. 352.** ***Performance of illegal marriage ceremony.***—Priests or ministers of any religious denomination or sect, ny. or civil authorities who shall perform or authorize any illegal marriage ceremony shall be punished in accordance with the provisions of the marriage law.

**Persons liable**

1. The offender is a priest or minister of any religious denomination or sect, or civil authorities; or
2. The offender performs or authorizes any illegal marriage ceremony.

**NOTE:** Art. 352 presupposes that the priest or minister or civil authority is authorized to solemnize marriages. If the priest or ministers are not authorized to solemnize marriage under the law, and shall perform the marriage ceremony, they may be prosecuted for Usurpation of Authority or Official Functions under Art. 177 of the RPC and not under this article.

**X and Y are married. It was a happy marriage for five (5) years until the said wife discovered that his husband was having an affair. Not only that, she realized that the said husband is already married to another woman, Z.**

**After finding evidence as to the fact of marriage between Y and Z, the wife filed a case for bigamy against the said husband. In the said case of bigamy against the said husband, the husband said that he cannot be held liable for bigamy.**

**According to the husband, the first marriage was null and void. According to the husband, his marriage with X is null and void because both of them are minors at the time of celebration of marriage.**

**If you were the judge and the defense of the accused was that he was able to prove that the marriage was null and void, should you convict or acquit the said accused?**

**A:** If you were the judge, you should render a judgment of acquittal based on the case of **Pulido v. People**.

In the case of **Pulido v. People,** en banc, the Supreme Court declared that proof that the first marriage is a void ab initio marriage is a valid defense in a criminal prosecution for bigamy even without obtaining a judicial declaration of absolute nullity of marriage.

There is no need to present or to prove in said court that the said first marriage has been legally dissolved. Provided, the said accused can prove that the said first marriage is void ab initio.

The SC ruled that the accused has the right to collaterally attack the first marriage in a criminal prosecution for bigamy, because Art 40 of the FC did not amend Article 349 of the RPC.

However, this applies only in a void ab initio marriage. If the first marriage is merely voidable, the accused cannot interpose an annulment decree as a defense in the criminal prosecution for bigamy because the voidable first marriage is considered valid and subsisting when the second marriage was contracted. The crime of bigamy is therefore, consummated when the second marriage was celebrated during the subsistence of the voidable first marriage.

**Q: Would your answer be the same, would you acquit the accused, would you apply the Pulido ruling if the marriage was said to be null and void by reason of psychological incapacity?**
**A:** NO. In the case of **Tenebro v. CA**, en banc, the Supreme Court said that subsequent judicial declaration of nullity of marriage on the ground of psychological incapacity does not retroact to the date of the celebration of the marriage insofar as the Philippine penal laws are concerned. Therefore, an individual who conducts a second or a subsequent marriage during the subsistence of a valid marriage is liable for bigamy, notwithstanding the declaration that the said marriage is void ab initio on the ground of psychological incapacity.

**Q: X and Y were married in Davao based on the religious rights of Iglesia ni Cristo. After X and Y got married in 1988, they had 2 children. In 2005, X told the wife, Y, "I have to go to Tagum to find a job." So, X went to Tagum and left his family in Davao. Until later, Y discovered that her husband X was cohabiting with Z in Tagum. Based on further investigation, Y learned that X and Z were married in 2005 before a judge. So angry, so hurt, Y filed a case of bigamy against X and Z. In the said bigamy case, the defense of X and Z is that, although it is true that they got married while X's marriage with Y was still subsisting, they cannot be held liable because they both converted to Islam prior to their marriage. Their defense is that both of them are already Muslim.**

**After trial on the merits, the RTC convicted X and Z of bigamy; thereafter, the CA affirmed the conviction of bigamy. What is the Supreme Court's ruling? Are X and Z guilty of bigamy or are X and Z, as parties to a civil marriage who converted to Islam and subsequently married under the Muslim Code, exempted from criminal liability?**

**A:** In the case of **Malaki v. People**, the Supreme Court upheld the finding of guilt of X and Z.

As a general rule, married Muslims cannot marry another. As an exception, the male Muslim may do so if

1. he can deal with the women with equal companionship and just treatment as enjoined by the Islamic Code; and
2. if the wife consented to the second marriage OR in case the wife refuses to give consent, the Shari'ah Court gives permission.

It does not automatically mean that when you are a Muslim, you can already marry another, as it is in violation of our civil laws. However, a Muslim man may do so if he can prove that he can treat all his wives equally, in companionship, and in everything. It is also important that the wife consented; or if she refuses, there is the consent coming from the Shari'ah Court.

In this case, the Supreme Court said the wife was the one who filed the case against the said husband and second wife. Therefore, the said wife did not consent. It stated that the consent of the first wife or the permission of the Shari'ah Court is condition sine qua non to the subsequent marriage. The wife's knowledge of the impending subsequent marriage is essential and may not be waived.

Here, Y, the wife, lacks knowledge. In fact, she was the one who filed the case because she was so hurt. Therefore, both the accused X and Z are liable for the crime of bigamy.

**Q: Would your answer be the same, would you acquit the accused, would you apply the Pulido ruling if the marriage was said to be solemnized by an Aglipayan minister. Here, the couple are both catholics, they tried to go to the church, the judge or the mayor but they would not marry them; only the Aglipayan minister had the courage to marry them. The reason is X and Y are both men and cannot obtain a marriage license. What crime/s is/are committed by X and Y and the Aglipayan minister?**

**A:** X and Y are liable for "Illegal Marriage" under Art 350. They both knew they lack the legal capacity to enter marriage because in the PH, same sex marriage is not yet a a law. Same sex marriage is not yet legal. The fact that they know it is not legal will make them liable for "illegal marriage".

The religious officer who performed the same will be liable under Art. 352 "Performance of Illegal marriage ceremony" for knowingly performing or authorizing the illegal marriage ceremony.

## TITLE 13: CRIMES AGAINST HONOR

### LIBEL

**Art. 353.** ***Definition of libel.*** — A libel is public and malicious imputation of a crime, or of a vice or defect, real or imaginary, or any act, omission, condition, status, or circumstance tending to cause the dishonor, discredit, or contempt of a natural or juridical person, or to blacken the memory of one who is dead.

**ELEMENTS:**

1. The offender makes a malicious allegation/ imputation against the said offended party;
2. There is publication of the said malicious imputation;
3. The victim must be identified; and,
4. There exists malice in the said allegation/ imputation.

The element of publication is satisfied the moment a 3rd person has read/ heard such libelous material/ remark.

The element of identification of the person defamed is satisfied the moment a 3rd person reading/hearing the libelous article can pinpoint to the offender party as the victim (i.e. one subject of the defamatory article/ remark). It is not necessary that the person defamed be specifically identified.

The last element is malice. In case of libel, malice is presumed by law as provided under Art 354. Under Art. 354, every defamatory imputation is presumed by law to have malice, to be malicious. This is known as **malice in law.** It is the law that presumes the presence of malice, even if it is true, if there is no good intention, no justifiable motive on the part of the author of the article or statement.

There is another form of malice, **malice in fact.** It cannot be presumed by law; rather, it must be proven by the private complainant and the prosecution beyond reasonable doubt

An exception to this is the so-called privilege communications. There are two kinds:

1. ***Absolute Privilege Communication*** – one which is totally not actionable, such that, totally you cannot file a case of libel against a person if there is absolute privilege communication.

   **Q: X filed a case for breach of contract against Y a specific performance case. The counsel of Y, Atty Z filed an answer. He attacked the agreement stating libelous remarks against the agreement between the parties. Can lawyer Z be charged with libel?**

   **A:** No. If the defamatory remark is made in a pleading filed before the court. In that case, it is an absolute privilege communication, totally not actionable. No matter how hurt the person, the person cannot file a case against the lawyer Z for stating a defamatory remark in the said answer because the answer is a pleading filed before the court.

2. ***Conditional or Qualified Privilege Communication*** **–** the offender or author can be charged; however, the burden to prove malice lies on the said private complainant or the person allegedly defamed. If the said person and the prosecution failed to prove malice on the part of the author, then it would be an acquittal. This time, the law would not presume malice. This is known as malice in fact. It is malice which must be proven by the prosecution beyond reasonable doubt; failure to do so, it would be an acquittal.

   Eg. Qualified Privilege Communication
   1) A private communication made by any person to another in the performance of any legal, moral, or social duty; and
   2) A fair and true report made in good faith without any comments or remarks of any judicial, legislative, or other official proceedings, which are not of confidential nature, or of any statement, report or speech delivered in said proceedings, or of any other act performed by public officers in the exercise of their official functions.

**Q: A defamatory article was published against public officer X. The said article was published in a leading newspaper, Daily Inquirer, It was published therein that X was able to amass ill gotten wealth thru many of his contract transactions entered into. When X and his family read it, he felt maligned, and his family as well felt embarrassed. Pinangalanan mismo si X kaya X wanted to file cases against X, and so he filed. Can the case prosper?**

**A:** Yes, because the attack is on the work of X and he felt malign therefore he can file a case of libel but the burden is with X to establish that the intent of the publication is to malign him. Otherwise, it will be an acquittal.

**Art. 355.** ***Libel by means of writings or similar means.—***A libel committed by means of writing, printing, lithography, engraving, radio, phonograph, painting, theatrical exhibition, cinematographic exhibition, or any similar means, shall be punished by prision correccional in its minimum and medium periods [...]

The following are the ways of committing libel:

1. by means of writing,
2. printing,
3. lithography,
4. engraving,
5. radio,
6. phonograph,
7. painting,
8. theatrical exhibition,
9. cinematographic exhibition, or
10. any similar means

**Q: W has a column in a tabloid. In X's gossip column, X made a malicious article against X. X is a famous business–actor who is now separated from his wife. The article published stated that Y is an abusive husband, he is a drunkard which is the reason his wife separated from X, he is also in bankruptcy. He lost all his projects and has no more money.**

**X read the article and felt so maligned. He filed a libel case against W. Defense of W is that he is not liable for libel because X has already attained status of a public figure so even his personal life can be legitimate subject of public comments.**

**Is W liable for libel?**

**A:** Yes.

First, there is an imputation with malice that X is abusive and a drunkard and is now in bankruptcy.

Second, there is publication based on the fact it is published in the gossip column in the tabloid

Third, X is identified as subject of defamatory remark

Last element, there is malice. W attacked the personal life of X as a husband and not the public life being an actor or business. Any attack against the private character of a public figure not related to his work is considered libelous in nature.

**Q: What if W published the said article in the gossip column. Aside from that he published the same article in his social media account. And both were read by X. Can X file two cases (1) Libel under Art 355 based on the publication in the newspaper and (2) Cyber Libel as published in social media.**

**A:** NO. Both cases will not prosper. In the case of **Disini**, the SC ruled that there is no question that if a libelous material is against published online or vice versa. The same material cannot be subject to 2 crimes of libel. This is because libel under Art 255 and violation of Sec. 4(c)(4) of RA 10175 or Anti-Cybercrime Prevention Act of 2012 involves the same element and is just the same offense. Online libel is now punished under Art 355. It merely establishes the computer system as another means of publication. Therefore for W to charge X of two crimes of libel would amount to a violation of double jeopardy principle.

## CYBER LIBEL

**REPUBLIC ACT NO. 10175**

**AN ACT DEFINING CYBERCRIME, PROVIDING FOR THE PREVENTION, INVESTIGATION, SUPPRESSION AND THE IMPOSITION OF PENALTIES THEREFOR AND FOR OTHER PURPOSES**

**Section 4. Cybercrime Offenses. —** The following acts constitute the offense of cybercrime punishable under this Act:

(c) Content-related Offenses:

**(4) Libel. —** The unlawful or prohibited acts of libel as defined in Article 355 of the Revised Penal Code, as amended, committed through a computer system

or any other similar means which may be devised in the future.

xxxxxx

**REVISED PENAL CODE**

**ART. 355. Libel by means of writings or similar means.—**A libel committed by means of writing, printing, lithography, engraving, radio, phonograph, painting, theatrical exhibition, cinematographic exhibition, or any similar means, shall be punished by prision correccional in its minimum and medium periods or a fine ranging from 200 to 6,000 pesos, or both, in addition to the civil action which may be brought by the offended party.

Online Libel is defined as the unlawful prohibited acts of libel as defined under Art 355 of RPC, as amended, committed through a computer system or any other similar means.

Very clear, cyber libel is only a means of committing libel under Art 355.

**Q: What if X in a publication in his FB account alluded to Y as a thief and he has amassed properties by deceiving his properties. According to X, Y is an "estafadora", after getting the confidence of his relatives, he is able to amass lots of money. This is posted in the FB account of X.**

**10 followers of X liked it. 10 commented. 10 shared it. Because of this, Y was very mad. Y filed cyber libel against X, against the 10 followers who liked, commented and shared it. WIll all the cases prosper?**

**A:** No. Online libel is constitutional only with respect to the original author of the post but is void with respect to all other persons who simply received the post and reacted to it. Hence, all persons who merely liked, commented and shared it are not liable. In so far as they are concerned, the cases filed against the followers shall be dismissed.

In **Penalosa v. Ocampo** penned by Leonen J., SC said that cyber libel is not within the meaning of Art 355, cyber libel is not within the meaning of other similar means under Art 355. Hence, in this case, SC ruled that cyber libel has a prescriptive period of 10 years because the penalty for cyber libel is a degree higher than Art 355 (i.e. prision correccional) so the penalty for cyber libel shall be prison mayor, an afflictive penalty which prescribes in 15 years. This case of **Penalosa** is in consonance with the SC ruling in an unsigned resolution entitled **Tolentino v. People** wherein the SC applied the 15 year prescriptive period under Art 92 RPC for cyber libel. **Tolentino** is however an unsigned resolution, it cannot be found in the SC website, it is unsigned because not even 1 justice signed it. It was only signed by the acting division clerk of court.

HOWEVER, in the recent case of **Causing v. People** reiterating the en banc decision of **Disni**, SC ruled that cyber libel under Sec 4 c(4) of RA 10175 is within the meaning of Art 355 of the RPC. It is within the meaning of "other similar means" in Art 355. So just like ordinary libel under Art 355, cyber libel prescribes in 1 year pursuant to Art 90 of the RPC.

**Causing v. People** and **Disini** are better decisions if you look at the definition of cyber libel, it is clear that it is under Art 355 of the RPC. So if given as a question in the BAR, answer based on Disini which is upheld in Causing (2022).

**NOTE:** In **Disini v. Secretary of Justice**, the Supreme Court ruled that online libel is constitutional only with respect to the original author of the post; however, it is void with respect to others who simply received it, reacted to it, or liked it. Therefore, all those who received, reacted to it, or liked or even shared it, are not liable.

**Q: What court has jurisdiction over libel cases?**
**A:** It is the Regional Trial Court (RTC). The RTC shall have jurisdiction over any violations of libel, whether ordinary libel or online libel. Under Art. 260 of the Revised Penal Code and Sec. 21 of R.A. 10175. Thus, whether it is online libel or ordinary libel, it is only the RTC that will have jurisdiction over cases involving libel.

**Q: What if X made a defamatory remark against Y on national television. What crime is committed by X?**

**What about if X made a defamatory remark against Y on the radio?**

**What about if X stated a defamatory remark in a miting de avance in front of the crowd?**

**A:** X is liable for oral defamation or slander. If the defamatory statement is not made through any of the means stated under Art 355 even in a meeting attended by many people. It will be the crime of Slander.

**Types of Slander**

1. Grave slander/ Grave Oral Defamation - serious
2. Simple slander/ Simple Oral Defamation - not serious or insulting in nature.

The same is true if instead of words, acts were done to malign or humiliate another

1. Grave slander by deed
2. Simple Slander by deed.

## TITLE 14: CRIMINAL NEGLIGENCE

**Art. 365.** ***Imprudence and negligence.—***Any person who, by reckless imprudence, shall commit any act which, had it been intentional, would constitute a grave felony, shall suffer the penalty of arresto mayor in its maximum period to prision correccional in its minimum period; if it would have constituted a less grave felony, the penalty of arresto mayor in its minimum and medium periods shall be imposed.

Any person who, by simple imprudence or negligence, shall commit an act which would otherwise constitute a grave felony, shall suffer the penalty of arresto mayor in its medium and maximum periods; if it would have constituted a less serious felony, the penalty of arresto mayor in its minimum period shall be imposed.

When the execution of the act covered by this article shall have only resulted in damage to the property of another, the offender shall be punished by a fine ranging from an amount equal to the value of said damages to three times such value, but which shall in no case be less than 25 pesos.

A fine not exceeding 200 pesos and censure shall be imposed upon any person who, by simple imprudence or negligence, shall cause some wrong which, if done maliciously, would have constituted a light felony.

In the imposition of these penalties, the courts shall exercise their sound discretion, without regard to the rules prescribed in article 62.

The provisions contained in this article shall not be applicable:

1. When the penalty provided for the offense is equal to or lower than those provided in the first two paragraphs of this article, in which case the courts shall impose the penalty next lower in degree than that which should be imposed, in the period which they may deem proper to apply.

2. When, by imprudence or negligence and with violation of the Automobile Law, the death of a person shall be caused, in which case the defendant shall be punished by prision correccional in its medium and maximum periods.

Reckless imprudence consists in voluntarily, but without malice, doing or failing to do an act from which material damage results by reason of inexcusable lack of precaution on the part of the person performing or failing to perform such act, taking into consideration his employment or occupation, degree of intelligence, physical condition and other circumstances regarding persons, time and place.

Simple imprudence consists in the lack of precaution displayed in those cases in which the damage impending to be caused is not immediate nor the danger clearly manifest.

**Quasi-offenses**

**Four (4) ways of committing quasi- offense:**

1. Any person who, by reckless imprudence, shall commit any act which, had it been intentional, would constitute a grave felony, or less grave felony or light felony.

2. Any person who, by simple imprudence or negligence, shall commit an act which would otherwise constitute a grave felony or less grave felony.

3. By causing damage to property of another thru reckless imprudence or simple imprudence or negligence.

4. Any person who, by simple imprudence or negligence, shall cause some wrong which, if done maliciously, would have constituted a light felony.

**ELEMENTS:**

1. That the offender does or fails to do an act;
2. The doing or failure to do an act is voluntary;
3. That it is done without malice;
4. Material damage results from the said reckless imprudence; and,
5. There is an inexcusable lack of precaution taken in consideration of his employment, occupation, degree of intelligence, physical condition and other circumstances.

**Q: X was charged with reckless imprudence resulting in homicide, less serious physical injuries and damage to properties. After trial on the merits, the MTC found X guilty as charged solely on the ground that based on the evidence, the vehicle that X was driving was an unregistered motor vehicle and the drivers license of X was merely a student permit. The MTC judge ruled that**

**since it was proven that the car was unregistered and the license was a mere student permit, negligence on X's part is presumed. Is the MTC judge correct?**

**A:** No. The SC ruled in a number of cases, the mere fact that the said offender was driving an unregistered motor vehicle or carrying a student permit does not automatically mean negligence on his part. In order to establish negligence, there must be a direct causal connection between the negligence and the injuries sustained. And that negligence cannot be presumed on the failure to register and the student's permit. Absent that direct causal connection, it will be an acquittal.

**Q: X was driving his car. He hit and bumped another car. The driver of the other car died. The passenger of the said driver survived. X sustained physical injuries. Under investigation, X was charged with two complaints. 1 is reckless imprudence resulting in slight physical injuries for the injuries sustained by the said wife of the deceased. The other is (case 2) reckless imprudence resulting in homicide and damage to property for the death of the driver and damage caused to the car. After inquest, the fiscal filed a case for reckless imprudence resulting in slight physical injuries sustained by the said wife in the MTC. On the other hand, the other complaint must undergo preliminary investigation because the victim is dead and the damage to the car must be assessed.**

**The MTC judge rendered the decision. 60 days thereafter, here comes case 2. When it was filed before the same MTC, the counsel of the accused immediately filed motion to quash on the ground of double jeopardy. Counsel for the accused argued that since X has already been convicted of case 1, he can no longer be charged and convicted for another crime based on the same negligence or imprudence.**

**A:** In the case of **Ivler**, the SC granted the Motion to Quash,the information in Case 2 is quashed. SC ruled that reckless or simple imprudence are not merely modalities in committing a crime, but rather are crimes by themselves, what is punished is the reckless imprudence, not the killing nor the injuries.

This decision in Ivler was affirmed in **Morales v. People** where the SC ruled that reckless, simple imprudence are crimes by themselves and cannot be divided on the resulting felonies. All the resulting felonies must be merged in one and the same information because Art 48 (complex crimes) does not apply in quasi crimes (Art 365). In Ivler, it was already emphasized that reckless/ simple imprudence are distinct species of crimes separately defined and penalized under Title 14 of the RPC - they are crimes by themselves and not modalities of committing a crime. NO COMPLEXING OF A SINGLE QUASI CRIME BY BREAKING IT INTO DIFFERENT RESULTING ACTS INTO SEPARATE OFFENSES. No splitting of charges under Art 365 regardless of the number of consequences of the reckless/ simple imprudence.

**Q: X is tipsy while driving his car recklessly. He hit a toyota wigo which had already entered the intersection. The other driver sustained serious physical injuries and his other two companions suffered slight physical injuries and the Wigo car sustained damage amounting to 100k. What is the proper charge?**

**A:** Reckless imprudence resulting in multiple physical injuries and damage to property. Why? There was reckless imprudence resulting in three physical injuries (multiple) and the car was damaged in the amount of 100k. No splitting of charges and all shall be included in 1 information.